A defendant was indicted for engaging in a fraudulent investment scheme. At the criminal trial, the prosecutor called a witness who had participated in the scheme with the defendant. The witness testified about the operation of the scheme and was cross-examined by the defendant's attorney. The case resulted in a mistrial.

An investor who was allegedly defrauded by the scheme has now brought a civil action against the defendant. She seeks to introduce the witness's testimony from the criminal trial. The witness has moved to a foreign country.

Is the witness's testimony in the criminal trial admissible in the civil action?

A. No, because the burden of proof in a criminal action is different from the burden of proof in a civil action.

B. No, because the parties are not identical in the two actions.

C. Yes, because it is prior testimony of an unavailable declarant.

D. Yes, but only if the investor demonstrates that she was unable to obtain the witness's attendance by subpoena or other reasonable means.

Explanation:

Unavailable declarant

(FRE 804(a))

Declarant is unavailable as witness if declarant:

is exempted from testifying by privilege
refuses to testify
has lapse of memory
is dead or ill
is absent from trial or hearing & proponent could not obtain attendance or testimony by subpoena or other reasonable means
FRE = Federal Rule of Evidence.

Hearsay is a statement made outside the present proceeding that is offered to prove the truth of the matter asserted therein and is **generally inadmissible**. But an **exception** to the rule against hearsay applies to a **declarant's former testimony** if:

the testimony was given at a **trial**, hearing, or deposition in the current case or a different proceeding that involved **similar parties and issues**

the party against whom the testimony is offered had an **opportunity** and similar motive to develop that testimony through **direct or cross-examination** of the declarant *and*

the declarant is unavailable as a witness.

A **declarant** is **unavailable** if (1) he/she is **absent** from the trial or hearing and (2) the proponent **could not obtain** the declarant's **attendance by subpoena** or other reasonable means.

Here, the investor seeks to introduce the witness's testimony from the defendant's criminal fraud trial in the civil fraud action against the defendant (similar parties and issues). That former testimony is being introduced against the defendant, whose attorney cross-examined the witness in the criminal case. And though the witness is absent from the civil trial (in foreign country), the witness's former testimony is only admissible if the investor also shows that she could not obtain the witness's attendance by subpoena or other reasonable means **(Choice C)**.

(Choice A) The burden of proof in a criminal action *is* different from the burden of proof in a civil action. But this has no bearing on the admissibility of the former testimony of an unavailable declarant.

(Choice B) The parties need not be identical in the two actions for the former testimony of an unavailable declarant to be admissible.

Educational objective:

A declarant's former testimony is admissible if (1) the testimony was given at a trial, hearing, or deposition in the same case or a different proceeding that involved similar parties and issues, (2) the party against whom the testimony is offered had an opportunity and similar motive to develop that testimony through examination of the declarant, and (3) the declarant is unavailable.

References

Fed. R. Evid. 804(b)(1) (hearsay exception – former testimony).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In a murder prosecution, the defendant testified that the killing had occurred in self-defense when the victim tried to shoot him. In rebuttal, the prosecution seeks to call the victim's father to testify that the day before the killing the victim told her father that she loved the defendant so much she could never hurt him.

Is the victim's father's testimony admissible?

A. No, because the testimony is hearsay not within any exception.

B. No, because the victim's character is not an issue.

C. Yes, as a statement of the declarant's then-existing state of mind.

D. Yes, because the victim is unavailable as a witness.

Explanation:

Then-existing state of mind

(FRE 803(3))

Hearsay exception for statements of declarant's (available or not) then-existing:

state of mind (eg, motive, intent, plan)
emotional, sensory, or physical condition (eg, mental state, pain, bodily health)
BUT NOT

memory of past events or belief *unless* related to validity or terms of declarant's will
FRE = Federal Rule of Evidence.

The **hearsay** rule generally bars the admission of an out-of-court statement offered to prove the truth of the matter asserted therein. But there is an **exception** for statements of a declarant's **then-existing state of mind**—eg, **motive**, intent, plan—which can be admitted as substantive proof that the declarant later acted in accordance with that state of mind. This is true regardless of the declarant's availability as a witness.

Here, the victim's out-of-court statement that she loved the defendant so much she could never hurt him is hearsay since it is being offered for its truth. But since the statement concerns the victim's *lack of motive* to harm the defendant, it falls within the then-existing state of mind exception to the hearsay rule. Therefore, the statement is admissible to prove that the victim did not try to shoot the defendant—regardless of her availability as a witness **(Choices A & D)**.

(Choice B) In a murder trial, the prosecution can introduce reputation or opinion testimony about the *victim's* peaceful character to rebut the defendant's claim of self-defense. Therefore, the victim's character (ie, her general propensity for peacefulness) *could* be an issue in this case.

Educational objective:

One hearsay exception is for statements of a declarant's then-existing state of mind (eg, motive, intent, plan), which can be admitted as substantive proof that the declarant later acted in accordance with that state of mind.

References

Fed. R. Evid. 803(3) (hearsay exception – declarant's then-existing state of mind).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for an assault that occurred in State A. To support his defense that he was in State B on the date of the assault, the defendant identifies and seeks to introduce a letter he wrote to his sister a week before the assault in which he stated that he would see her in State B on that date.

Is the defendant's letter admissible?

A. No, because it is a statement of belief to prove the fact believed.

B. No, because it lacks sufficient probative value.

C. Yes, as a prior consistent statement to support the defendant's credibility as a witness.

D. Yes, within the state of mind exception to the hearsay rule.

Explanation:

Then-existing state of mind

(FRE 803(3))

Hearsay exception for statements of declarant's (available or not) then-existing:

state of mind (eg, motive, intent, plan)
emotional, sensory, or physical condition (eg, mental state, pain, bodily health)
BUT NOT

memory of past events or belief *unless* related to validity or terms of declarant's will
FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein. Such statements are inadmissible unless they are excluded or excepted from the rule against hearsay. One **hearsay exception** is for statements of a declarant's **then-existing state of mind**—eg, motive, intent, or **plan**—which can be admitted as substantive proof that the declarant later **acted in accordance** with that state of mind.

Here, the defendant's letter is hearsay because it was written before the assault (out-of-court statement) and is being offered to show that the defendant planned to see his sister in State B on the date of the assault in State A (asserted truth). But since the letter concerns the defendant's *plan*, it falls under the then-existing state of mind exception to the hearsay rule. Therefore, the letter is admissible to prove that the defendant acted in accordance with that plan and was in State B on the date of the assault.

(Choice A) Although statements of the declarant's memory or belief typically fall outside the then-existing state of mind exception to the hearsay rule, statements of the declarant's then-existing plan do not (as seen here).

(Choice B) Probative value is the degree to which evidence makes a material fact more or less likely. Here, the defendant's letter is sufficiently probative because it makes it far more likely that he was in State B on the day of the assault.

(Choice C) A prior statement that is *consistent* with the witness's current testimony is admissible if the witness is subject to cross-examination and the statement is offered to (1) rebut a charge of fabrication or improper influence or (2) rehabilitate the witness. But here, there is no indication that the defendant's credibility was impeached.

Educational objective:

Statements of a declarant's then-existing state of mind (eg, motive, intent, plan) are excepted from the rule against hearsay and are admissible as substantive proof that the declarant later acted in accordance with that state of mind.

References

Fed. R. Evid. 803(3) (hearsay exception – declarant's then-existing state of mind).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff has sued a defendant, alleging that she was run over by a speeding car driven by the defendant. The plaintiff was unconscious after her injury and, accompanied by her husband, was brought to the hospital in an ambulance.

At trial, the plaintiff calls an emergency room physician to testify that when the physician asked the plaintiff's husband if he knew what had happened, the husband, who was upset, replied, "I saw my wife get run over two hours ago by a driver who went right through the intersection without looking."

Is the physician's testimony about the husband's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, because it relates an opinion.

C. Yes, as a statement made for purposes of diagnosis or treatment.

D. Yes, as an excited utterance.

Explanation:

An out-of-court statement offered for the truth of the matter asserted therein is inadmissible under the rule against hearsay unless it is excluded from that rule or falls within a **hearsay exception**. In the context of an emergency room visit (as seen here), a declarant's out-of-court statement may fall within the hearsay exception for:

excited utterances – statements related to a startling event or condition that are made while the declarant is still under the stress of the excitement caused by the event or condition *or*

statements for medical diagnosis or treatment – statements made for and reasonably pertinent to medical diagnosis or treatment that describe the declarant's medical history, symptoms, or the inception or general cause of those symptoms.

Here, the husband made a statement to the emergency room physician *two hours* after seeing the wife get run over by the car. It is therefore unlikely that he was still in the state of excitement necessary for that statement to qualify as an excited utterance **(Choice D)**. Additionally, his statement pertained more to the driver's recklessness than the wife's medical diagnosis or treatment **(Choice C)**. And since no other hearsay exception (or exclusion) applies, testimony about the husband's statement is inadmissible.

(Choice B) The fact that an out-of-court statement relates an opinion does not automatically render it inadmissible. That is because an opinion is admissible if it is (1) rationally based on the declarant's personal knowledge, (2) helpful to understanding the declarant's statement or determining a fact in issue, and (3) excepted or excluded from the hearsay rule.

Educational objective:

An out-of-court statement offered for the truth of the matter asserted therein is inadmissible unless it is excluded from the rule against hearsay or falls within a hearsay exception (eg, excited utterance, statement for medical diagnosis or treatment).

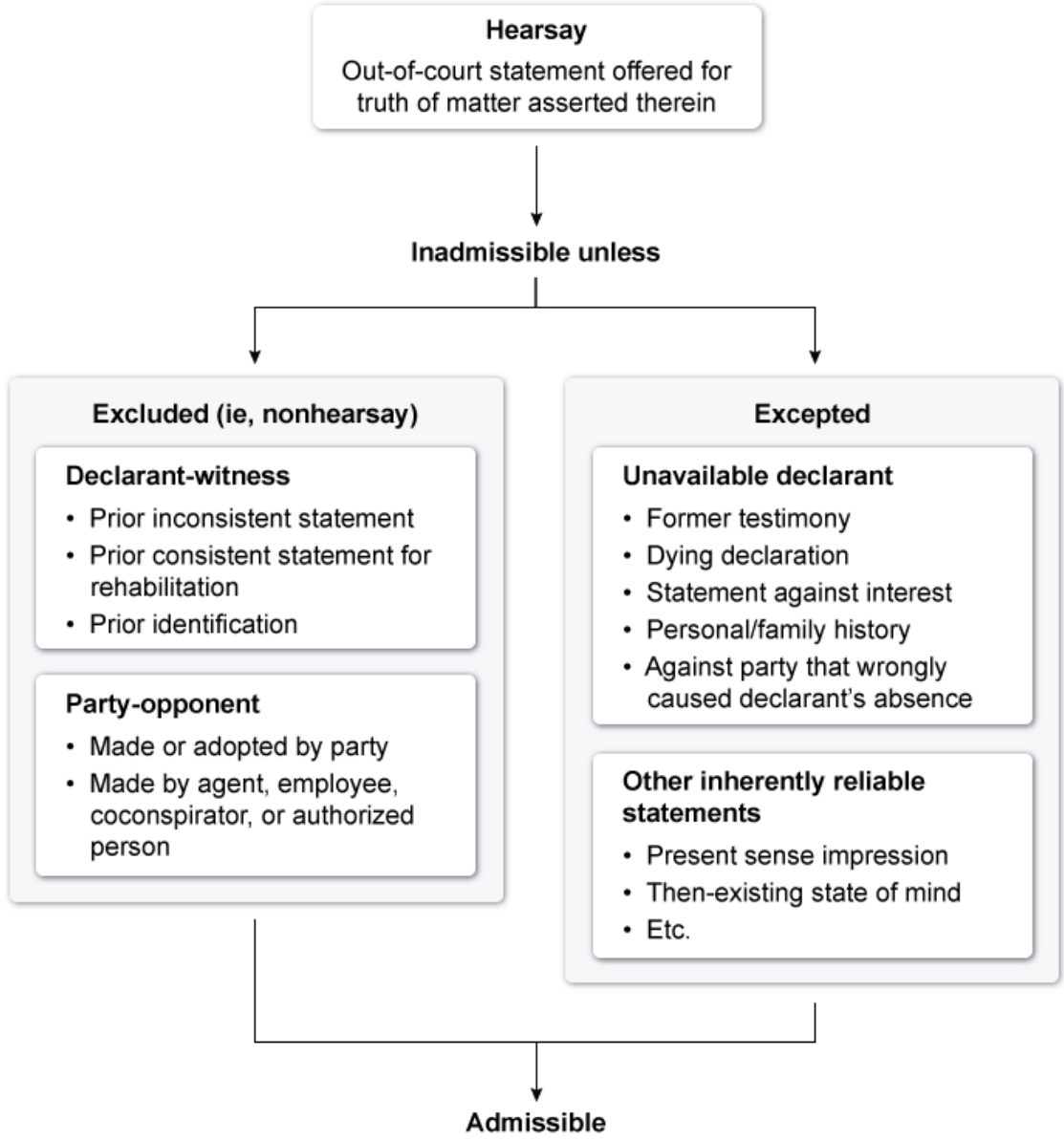
References

Fed. R. Evid. 801(c) (hearsay definition).

Fed. R. Evid. 803 (hearsay exceptions).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.


Hearsay
Out-of-court statement offered for truth of matter asserted therein
Inadmissible unless
Excluded (ie, nonhearsay)
Declarant-witness
• Prior inconsistent statement
• Prior consistent statement for rehabilitation
• Prior identification
Party-opponent
• Made or adopted by party
• Made by agent, employee, coconspirator, or authorized person
Excepted
Unavailable declarant
• Former testimony
• Dying declaration
• Statement against interest
• Personal/family history
• Against party that wrongly caused declarant's absence
Other inherently reliable statements
• Present sense impression
• Then-existing state of mind
• Etc.
Admissible

©UWorld

A homeowner sued a plumber for damages resulting from the plumber's allegedly faulty installation of water pipes in her basement, which caused flooding. At trial, the homeowner is prepared to testify that when she first detected the flooding, she turned off the water and called the plumber at his emergency number for help and that the plumber responded, "I'll come by tomorrow and redo the installation for free."

Is the homeowner's testimony regarding the plumber's response admissible?

A. No, because it is hearsay not within any exception.

B. No, because the statement was an offer in compromise.

C. Yes, as a subsequent remedial measure.

D. Yes, as evidence of the plumber's fault.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is **generally inadmissible**. But Federal Rule of Evidence (FRE) 801 **excludes** some statements from the rule against hearsay and allows them to be offered as substantive evidence (eg, to establish fault). This includes **statements made by an opposing party** that are **offered against that party**.

Here, the homeowner seeks to introduce the plumber's out-of-court statement—that he would redo the installation for free—to prove that his initial pipe installation was faulty. But since this statement was made by the plumber (a party-opponent) and is being offered against him at trial, it is excluded from the rule against hearsay. Therefore, the statement can be used as evidence of the plumber's fault **(Choice A)**.

(Choice B) Under FRE 408, an offer of compromise (ie, settlement offer) is inadmissible to prove the validity or amount of a disputed claim. But this rule only applies if there was a *pending dispute* at the time the offer was made (not seen here).

(Choice C) FRE 407 *bars* the admission of subsequent remedial measures to prove a party's negligence or culpable conduct. But here, the homeowner is seeking to introduce the plumber's statement—not any subsequent measures taken to remedy the flooding.

Educational objective:

Statements of an opposing party are excluded from the rule against hearsay—and are admissible as substantive evidence—when offered against that party.

References

Fed. R. Evid. 801 (nonhearsay statements).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for murdering his girlfriend and her unborn child. Whether the girlfriend was pregnant at the time of the murder is at issue. The prosecution has called a witness to testify that the girlfriend told her, two days before the murder, "I'm pregnant with [the defendant's] child."

Is the witness's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because there has been no showing that the defendant murdered the girlfriend to prevent her from testifying.

C. Yes, as a statement by the girlfriend of her then-existing physical condition.

D. Yes, because the girlfriend is unavailable to testify.

Explanation:

Then-existing state of mind hearsay exception

(FRE 803(3))

Type of statement	**Examples**	**Admissibility**
State of mind	Motive, intent, plan	Admissible as substantive evidence
Emotional or physical condition	Fear, pain, bodily health	
Memory or belief	Reflection on prior event or belief about matter	Inadmissible unless related to declarant's will

FRE = Federal Rule of Evidence.

The **rule against hearsay** prohibits the admission of a statement made outside the present proceeding that is offered for the truth of the matter asserted therein. However, one **exception** to this rule permits admission of a **statement concerning** the **declarant's then-existing** state of mind (eg, motive, intent, plan) or **emotional/physical condition** (eg, mental feeling, pain, bodily health).*

Here, the witness seeks to testify that the girlfriend told her, "I'm pregnant with [the defendant's] child." This out-of-court statement is hearsay since it is offered to prove that the girlfriend was in fact pregnant when she made the statement. But since the statement concerns the girlfriend's then-existing physical condition (pregnancy), it is excepted from hearsay and is therefore admissible **(Choice A)**.

*The declarant's statement concerning the then-existing condition can be used to prove the existence of that condition but not its cause.

(Choice B) A party who wrongfully caused a hearsay declarant's unavailability as a witness, and did so intending that result, cannot later exclude the declarant's statement from evidence. Here, there has been no showing that the defendant murdered his girlfriend to prevent her from testifying, so this exception is inapplicable. But the girlfriend's statement is still admissible as a statement of her then-existing physical condition.

(Choice D) Some hearsay exceptions only apply if the declarant is unavailable to testify; however, the hearsay exception for then-existing physical conditions is not one of those exceptions. Therefore, the girlfriend's statement would be admissible under this exception even if she had been available.

Educational objective:

Statements regarding a declarant's then-existing state of mind (eg, motive, intent, plan) or emotional/physical condition (eg, mental feeling, pain, bodily health) are excepted from the rule against hearsay.

References

Fed. R. Evid. 803(3) (hearsay exception for a declarant's then-existing physical condition).

Copyright © UWorld. All rights reserved.

A defendant is on trial for robbing a bank in State A. She testified that she was in State B at the time of the robbery. The defendant calls her friend to testify that two days before the robbery the defendant told him that she was going to spend the next three days in State B.

Is the friend's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because it is offered to establish an alibi by the defendant's own statement.

C. Yes, because a statement of plans falls within the hearsay exception for then-existing state of mind.

D. Yes, because the statement falls within the present sense impression exception to the hearsay rule.

Explanation:

Then-existing state of mind hearsay exception

(FRE 803(3))

Type of statement	Examples	Admissibility
State of mind	Motive, intent, plan	Admissible as substantive evidence
Emotional or physical condition	Fear, pain, bodily health	
Memory or belief	Reflection on prior event or belief about matter	Inadmissible unless related to declarant's will

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is generally inadmissible. But statements of the declarant's **then-existing state of mind**—eg, **statements of motive, intent, or plan**—are **excepted from hearsay**. And since they are excepted, these statements can be used as substantive evidence to prove that the declarant later acted in conformity with that state of mind.

Here, the defendant's out-of-court statement is hearsay since it is being offered for its truth—ie, that she was going to spend three days in State B. But since this is a statement about her *plans*, it falls within the hearsay exception for then-existing state of mind. Therefore, the friend's testimony as to this statement is admissible as proof that the defendant was in State B on the day of the robbery **(Choice A)**.

(Choice B) There is no rule prohibiting the use of the defendant's own statement to establish an alibi—ie, a defense that places the defendant elsewhere when the charged offense was committed.

(Choice D) The present sense impression exception applies to hearsay statements that (1) describe an event or condition and (2) are made while or immediately after the declarant perceived it. This exception is inapplicable here because the defendant was describing her plans—not a perceived event or condition.

Educational objective:

Statements concerning the declarant's then-existing state of mind (eg, statements of motive, intent, or plan) are excepted from the rule against hearsay.

References

Fed. R. Evid. 803(3) (then-existing state of mind exception).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A pedestrian sued a driver for injuries suffered in a hit-and-run accident.

At trial, the pedestrian called a witness who testified that he saw the accident and that as the car sped off he accurately dictated the license number into the voice recorder app on his cell phone. The witness has stated that he no longer remembers the number.

May the voice recording be played?

A. No, because it is hearsay not within any exception.

B. Yes, as a present sense impression and as a recorded recollection.

C. Yes, as a present sense impression only.

D. Yes, as a recorded recollection only.

Explanation:

Reasoning for common hearsay exceptions

Exception	Reason for reliability
Present sense impression	No time to fabricate statement
Excited utterance	
Past recollection recorded	Records made when fresh in person's mind
Then-existing mental/physical condition	Persons can perceive their own mental or physical state
Statement for medical diagnosis/treatment	Self-interest creates motive for truth
Business & public records	Accuracy verified to preserve legal rights & reputation
Documents & statements on property interest	
Certificates of birth, marriage, baptism	

Hearsay is an out-of-court statement (eg, the voice recording) offered to prove the truth of the matter asserted therein (eg, that the driver was responsible for the hit-and-run). These statements are **generally inadmissible** because they are considered inherently unreliable. But some out-of-court statements are **sufficiently reliable** to be **excepted** from the hearsay rule.

One hearsay exception applies to present sense impressions—ie, statements **describing an event** or condition that were made **while** or immediately after the declarant **perceived it**. These statements are inherently reliable because the declarant did not have time to reflect, distort, or fabricate prior to speaking. Here, the voice recording was made *while* the witness watched the car speed away from the accident. Therefore, the recording is admissible as a present sense impression.

Another exception applies to recorded recollections—ie, records that (1) concern a matter that a witness **once knew but cannot recall** at trial, (2) were made or adopted when the matter was **fresh in the witness's mind**, and (3) **accurately** reflect the witness's personal knowledge at that time. Here, the witness could not recall the license number at trial. And since his recording was made while the license number was fresh in his mind and was accurately dictated at that time, it is sufficiently reliable. Therefore, the recording is *also* admissible as a recorded recollection **(Choices A, C & D)**.

Educational objective:

The present sense impressions exception applies to statements describing an event or condition that were made while or immediately after the declarant perceived it. The recorded recollections exception applies to records that (1) concern a matter a witness once knew but cannot recall, (2) were made or adopted when the matter was fresh in mind, and (3) accurately reflect the witness's personal knowledge.

References

Fed. R. Evid. 803(1) (hearsay exception – present sense impression).

Fed. R. Evid. 803(5) (hearsay exception – recorded recollection).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At a defendant's trial for theft, a witness called by the prosecutor testified to the following: (1) that from his apartment window, he saw thieves across the street break the window of a jewelry store, take jewelry, and leave in a car; (2) that his wife telephoned the police and relayed to them the license number of the thieves' car as the witness looked out the window with binoculars and read it to her; and (3) that he has no present memory of the number, but that immediately afterward he listened to a playback of the police tape recording giving the license number (which belongs to the defendant's car) and verified that she had relayed the number accurately.

Is playing the tape recording for the jury proper?

A. No, because it is hearsay not within any exception.

B. No, because the witness's wife lacked firsthand knowledge of the license number.

C. Yes, because it is a public record or report.

D. Yes, because it is a recorded recollection.

Explanation:

Recorded recollection

(FRE 803(5))

Hearsay exception—regardless of declarant's availability—for records that:

concern matter witness once knew but cannot recall at trial
witness made or adopted when matter was fresh in his/her mind *and*
accurately reflect witness's personal knowledge at time record was made
FRE = Federal Rule of Evidence.

The **rule against hearsay** generally bars the admission of an out-of-court statement (eg, tape recording) offered to prove the truth of the matter asserted therein (eg, license number). But if a statement falls within an exclusion or exception to this rule, it is admissible as substantive evidence. One such **exception** applies to a **recorded recollection**, which allows a record to be read—or, in the case of audio recordings, played—into evidence if it:

concerns a matter that a witness **once knew but cannot recall** at trial
was **made or adopted** by the witness **when** the matter was **fresh in his/her mind** *and*
accurately reflects the witness's personal knowledge at the time it was made.

Here, the witness testified that he had no memory of the license plate number he had read to his wife as he watched the thieves leave the jewelry store. But immediately after reporting the burglary—ie, while the matter was fresh in his mind—the witness adopted the recording by verifying that it accurately reflected the number he had read to his wife. Therefore, the recording is admissible under the hearsay exception for recorded recollections and can be played to the jury **(Choice A)**.

(Choice B) The witness's wife did not need to have firsthand knowledge of the license plate number for the recording to be admissible as a recorded recollection. That is because the witness adopted the recording and verified its accuracy.

(Choice C) The public records exception to the hearsay rule applies to a public office's records or statements that set out (1) office activities, (2) matters observed by office representatives while under a legal duty to report, and (3) factual findings from legally authorized investigations when offered in civil cases or against the government in criminal cases. But the tape recording falls outside these categories.

Educational objective:

A record that (1) concerns a matter a witness once knew but cannot recall, (2) the witness made or adopted when the matter was fresh in mind, and (3) accurately reflects the witness's personal knowledge is admissible as a recorded recollection.

References

Fed. R. Evid. 803(5) (hearsay exception – recorded recollection).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman sued a landlord for injuries received when she fell down a stairway in the landlord's apartment building. The woman, a guest in the building, alleged that she caught the heel of her shoe in a tear in the stair carpet. The woman calls a tenant at the apartment building to testify that the tenant's roommate had said to the tenant a week before the woman's fall: "When I paid the rent this morning, I told the landlord he had better fix that torn carpet."

Is the roommate's statement, as reported by the tenant, admissible?

A. No, because it is hearsay not within any exception.

B. Yes, to prove that the carpet was defective.

C. Yes, to prove that the landlord had notice of the defect.

D. Yes, to prove both that the carpet was defective and that the landlord had notice of the defect.

Explanation:

The **rule against hearsay** bars the admission of an **out-of-court statement** offered to **prove the truth** of the matter asserted therein. When such a statement is **contained within another** (ie, double hearsay), *neither* statement is admissible unless *both* are excluded or excepted from the hearsay rule.

Here, the roommate's statement to the landlord that he "had better fix that torn carpet" is *inadmissible* hearsay if it is offered for the truth of the matter asserted—ie, that the carpet was defective. That is because the statement does not fall within a hearsay exclusion or exception **(Choice B)**. However, the statement is *not* hearsay if it is offered for a different purpose—eg, to show that the landlord had notice of the defect.

Even if the roommate's statement to the *landlord* is not hearsay, it is only admissible if the roommate's statement to the *tenant* is also admissible. That statement is *inadmissible* hearsay because it is being used solely to prove the truth of the matter asserted—ie, that the roommate had told the landlord about the defect—and is not excluded or excepted from hearsay. Therefore, *both* statements as reported by the tenant are inadmissible **(Choices C & D)**.

Educational objective:

When a hearsay statement is contained within another, *neither* statement is admissible unless *both* are excluded or excepted from the rule against hearsay.

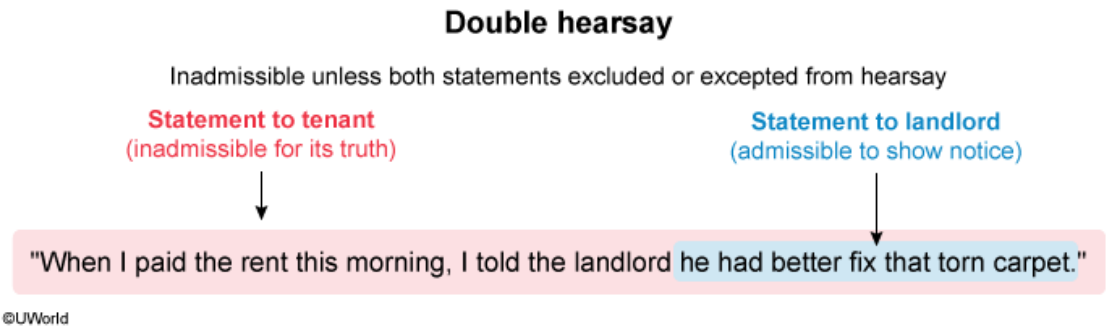
References

Fed. R. Evid. 801 (definition of hearsay).

Fed. R. Evid. 805 (hearsay within hearsay).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.



A defendant is on trial for evading $100,000 in taxes. The prosecution offers in evidence an anonymous letter to the IRS, identified as being in the defendant's handwriting, saying, "I promised my mother on her deathbed I would try to pay my back taxes. Here is $10,000. I'll make other payments if you promise not to prosecute. Answer yes by personal ad saying, 'OK on tax deal.'"

Is the letter admissible?

A. No, because it is an effort to settle a claim.

B. No, because the probative value is substantially outweighed by the risk of unfair prejudice.

C. Yes, as a statement of present intention or plan.

D. Yes, as an admission of a party-opponent.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Under the rule against hearsay, an out-of-court statement (eg, the defendant's letter to the IRS) offered to prove the truth of the matter asserted therein (eg, the defendant owed back taxes) is generally inadmissible. But certain statements are excluded from this rule and are therefore considered **nonhearsay**. One exclusion applies to **statements made by** and **offered against** an **opposing party**. As a result, the letter to the IRS written by the defendant and offered against the defendant at trial is admissible.

(Choice A) Statements made during settlement or plea negotiations are generally inadmissible because public policy encourages the settlement of disputes. But for this rule to apply, both parties must intend to enter such negotiations (not seen here). And in a criminal case, the statements must be made to a prosecutor—not a government agency (as seen here).

(Choice B) Relevant evidence may be excluded if its probative value is substantially outweighed by the risk of unfair prejudice—eg, that the jury will decide the case based only on emotion. Here, the letter is highly probative because it concerns the central issue in the case—whether the defendant evaded taxes. And since the letter poses no danger of unfair prejudice, this is not a basis for excluding it.

(Choice C) Statements of present intention or plan fall under the then-existing mental state exception to the rule against hearsay. Here, the defendant's promise was *contingent* upon the IRS promising not to prosecute so it likely is not a statement of plan. But this hearsay exception is unnecessary to admit that statement since it is nonhearsay.

Educational objective:

Statements made by and offered against an opposing party are excluded from the rule against hearsay.

References

Fed. R. Evid. 801(d)(2) (nonhearsay – statement by party-opponent).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff has sued a defendant, a former employee, for trespass and conversion. The plaintiff alleges that the defendant unlawfully entered the plaintiff's car lot at night and caused irreparable damage to a vintage car while doing so. There are no witnesses to the incident. At trial, the plaintiff seeks to introduce evidence that the defendant was the trespasser.

Which of the following would most likely be excluded by the rule against hearsay?

A. A printout of a satellite image with a marker drawn by the plaintiff's wife of where the vintage car was parked on the lot.

B. An automatically generated fax confirmation showing that the defendant sent the fax from the property the day before the damaged car was discovered.

C. The defendant's cell site location history showing that the defendant was on the property.

D. Time-stamped security footage from the car lot of the plaintiff's dog barking at something outside the view of the camera on the night in question.

Explanation:

The **rule against hearsay** bars the admission of **out-of-court statements** offered to prove the **truth of the matter asserted** therein. A statement is defined as a person's assertion (oral, written, or nonverbal) that was intended to be an assertion. Therefore, the hearsay rule only applies to statements **made by a person**.

Here, the only statement made by a person is the marker that the plaintiff's wife drew on a printout of a satellite image. Since the wife's marker is a written, out-of-court statement that is being used to prove the truth of where the damaged car was parked, it would most likely be excluded by the rule against hearsay. Had the marker been automatically produced by computer software, then the hearsay rule would not apply.

Similarly, an automatically generated fax confirmation and cell site location history would not be excluded on hearsay grounds because this information is generated by technology—not a person **(Choices B & C)**. The same logic applies to security footage. And though a dog barking may be used to prove that there was an intruder, the hearsay rule does not apply to "statements" made by an animal **(Choice D)**.

Educational objective:

The rule against hearsay bars the admission of an out-of-court statement made by a person—not a machine or animal—that is offered to prove the truth of the matter asserted therein.

References

Fed. R. Evid. 801 (defining "statement" as a person's oral, written, or nonverbal conduct that is intended as an assertion).

Copyright © UWorld. All rights reserved.

Examples of nonhearsay assertions



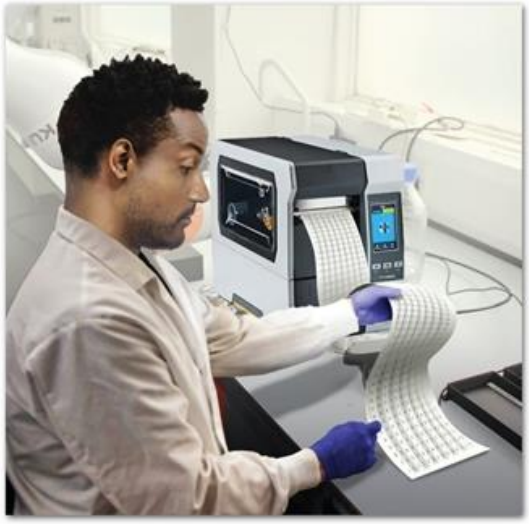
Dog's bark



Automatically generated timestamp on fax



Printout from computerized telephone-tracing equipment



Data generated by forensic lab's diagnostic machine

A defendant is on trial for robbing a particular bank with his best friend. The friend has left the country and cannot be found. The prosecutor has called the friend's mother to testify to a conversation she had with her son the day before he left the country. She implored him not to go, but he said, "Mom, I have to go. I was involved in a robbery at the bank, and I don't want them to catch me." The prosecutor has other evidence indicating that the defendant and the friend were together on the morning of the robbery.

Is the statement by the friend to his mother admissible?

A. No, because inculpatory statements against penal interest do not satisfy the confrontation clause.

B. No, because the friend's statement to his mother was not corroborated.

C. Yes, as a statement against penal interest that is not testimonial under the confrontation clause.

D. Yes, as a statement of the friend's state of mind that is not testimonial under the confrontation clause.

Explanation:

A **statement against interest** is one that:

is contrary to the declarant's proprietary (ie, ownership) or pecuniary (ie, monetary) interest

tends to invalidate the declarant's claim against someone else *or*

exposes the declarant to civil or **criminal liability**.

These statements are **excluded** from the **rule against hearsay** if they were made by an unavailable declarant. But if the statement is offered in a **criminal case** and exposes the declarant to criminal liability, then the statement must also be supported by **corroborating circumstances** that clearly indicate its trustworthiness.

Here, the friend has left the country and cannot be located (unavailable), and his stated involvement in a robbery (criminal liability) is corroborated by evidence that he was with the defendant on the morning of the robbery **(Choice B)**. Therefore, his statement falls within this hearsay exception. But since the friend cannot be confronted at the defendant's criminal trial, the introduction of this statement raises Sixth Amendment concerns.

The Sixth Amendment **confrontation clause** secures a criminal defendant's right to cross-examine witnesses offering testimonial evidence against the defendant. Evidence is **testimonial** if it was made primarily for use in a **criminal investigation or prosecution**. And such evidence is inadmissible unless (1) the declarant is unavailable as a witness at trial and (2) the defendant had a prior opportunity to cross-examine the declarant.

Here, the friend's statement is admissible because it was made to his mother—not for an investigation or prosecutor—so it is not testimonial under the confrontation clause **(Choice A)**.

(Choice D) Statements of a declarant's then-existing state of mind (eg, motive, intent, plan) are excepted from the rule against hearsay. Since that state of mind must exist at the time the statement is made, statements of past memory or events (as seen here) do not fall under this exception.

Educational objective:

Statements against interest—eg, ones that expose the declarant to civil or criminal liability—are excepted from the rule against hearsay if they were made by an unavailable declarant. But these statements are only admissible in a criminal case if they comply with the confrontation clause.

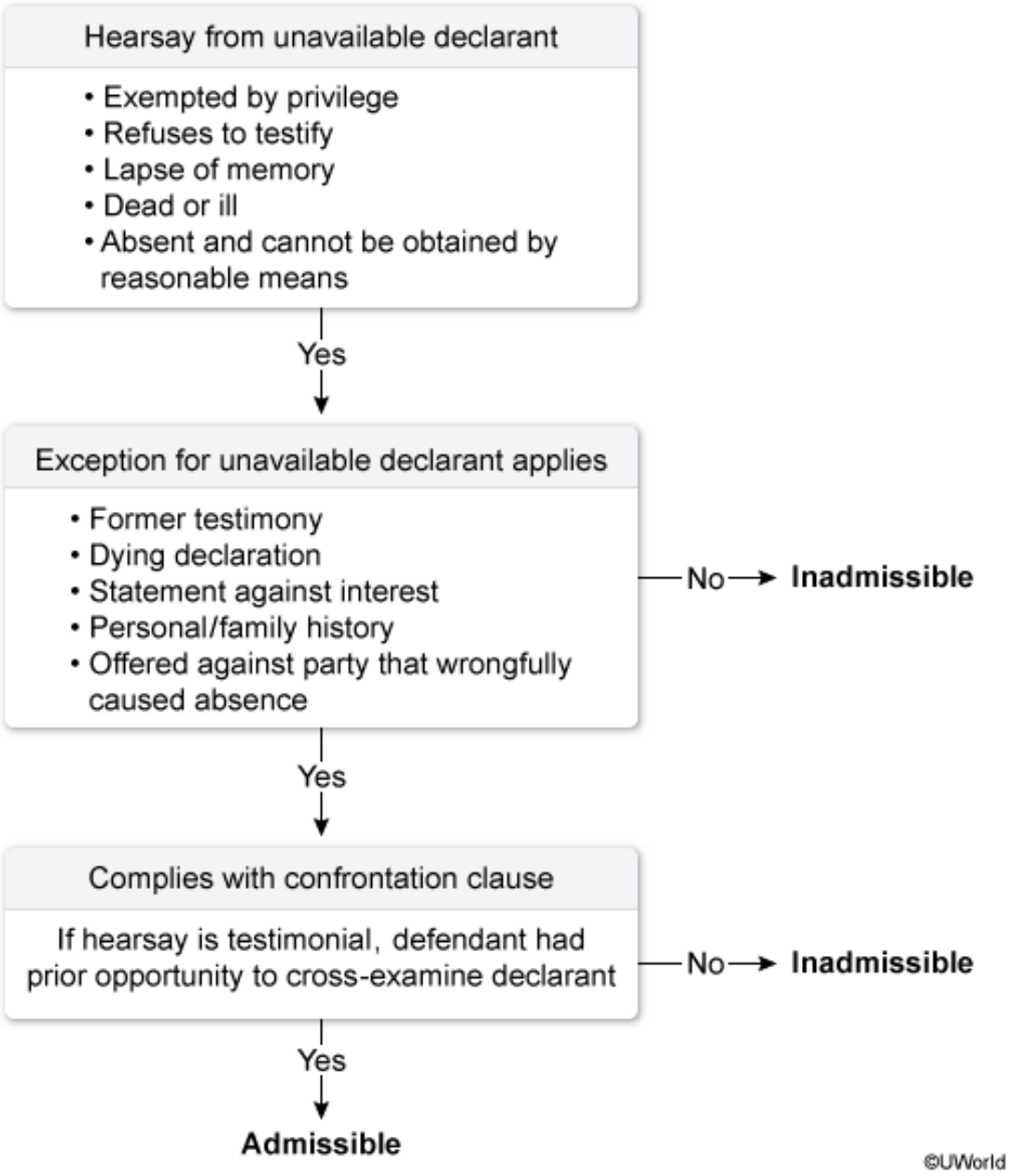
References

Fed. R. Evid. 804(b)(3) (hearsay exception for statements against interest).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Unavailable declarant and confrontation clause analysis



In a medical malpractice suit by a plaintiff against his doctor, the plaintiff seeks to introduce a properly authenticated photocopy of his hospital chart. The chart contained a notation made by a medical resident that an aortic clamp had broken during the plaintiff's surgery. The resident made the notation in the regular course of practice, but he had no personal knowledge of the operation and cannot remember which of the operating physicians gave him the information.

Is the photocopy of the plaintiff's hospital chart admissible?

A. No, as a violation of the best evidence rule.

B. No, because it is hearsay within hearsay.

C. Yes, as a record of regularly conducted activity.

D. Yes, as recorded recollection.

Explanation:

Business records hearsay exception

(FRE 803(6))

Business record admissible if it was:

made at or near time of recorded event (or act, opinion, condition, diagnosis)
made by or based on information from someone with personal knowledge *and*
made & kept as a regular practice in the course of regularly conducted business activities
FRE = Federal Rule of Evidence.

Under the hearsay rule, out-of-court statements (eg, notations in a hospital chart) are generally inadmissible when offered to prove the truth of the matter asserted therein (eg, clamp broke during surgery). However, one **hearsay exception** applies to **business records** that were:

made **at or near the time** of the recorded event (or act, condition, opinion, diagnosis)
made by or based on information from someone with **personal knowledge** of that event
and
made and kept as a **regular practice** in the course of **regularly conducted business activities**.

Hospital charts are maintained as a regular practice in the regular course of hospital activities and are created near the time of the recorded event. And though the resident here did not have personal knowledge of the operation, the chart was based on information from someone who did—an operating physician. The chart is therefore admissible under the business records exception. And since duplicates are generally admissible to the same extent as original writings under the best evidence rule, a photocopy of the hospital chart is admissible **(Choice A)**.

(Choice B) Hearsay within hearsay occurs when one hearsay statement is contained within another hearsay statement—eg, a patient claims her husband caused her injury and her physician notes that on her chart. When this occurs, both statements are inadmissible unless *both* are excepted or excluded from hearsay.

(Choice D) A recorded recollection is a hearsay exception for records that (1) contain information that a witness once knew but cannot recall well enough to testify, (2) were made or adopted by the witness when a matter was fresh in his/her mind, and (3) accurately reflect the witness's knowledge at the time the record was made. But this exception is inapplicable here because the chart is not being used to supplement a witness's testimony.

Educational objective:

Business records are excepted from hearsay if they were (1) made near the time of the recorded event, (2) made by or based on information from one with personal knowledge, and (3) made and kept as a regular practice in the course of regular business activities.

References

Fed. R. Evid. 803(6) (records of a regularly conducted activity).

Fed. R. Evid. 1003 (admissibility of duplicates).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged with drug trafficking. Prior to trial, a woman who intended to testify against the defendant was savagely attacked and left comatose. At a pretrial hearing, the prosecution called the defendant's neighbor, who testified that the defendant said he was no longer worried about the woman testifying because he "took care of her." At trial, the prosecution has called a narcotics detective to testify to the woman's formal statement to the police, which detailed the defendant's role in a large-scale drug trafficking operation.

Is the detective's testimony admissible?

A. No, because the testimony is hearsay not within any exception.

B. No, because the testimony violates the confrontation clause.

C. Yes, as a prior identification of the defendant.

D. Yes, as a statement against a party who caused the declarant's unavailability.

Explanation:

The rule against hearsay bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein—eg, the woman's statement to the police implicating the defendant in drug trafficking. However, **statements made by a declarant** who is **unavailable to testify** as a witness may be **excepted** from this rule. One exception applies when an unavailable declarant's hearsay statement is **offered against a party** who:

wrongfully caused, or acquiesced in wrongfully causing, the **declarant's unavailability** *and*
did so **intending that result**.

The party seeking to admit the hearsay statement under this exception must prove the above elements by a preponderance of the evidence.

Here, the defendant's neighbor testified at the pretrial hearing that the defendant said he was no longer worried about the woman testifying at trial because he "took care of her." This testimony established, by a preponderance of the evidence, that the defendant wrongfully caused the woman's unavailability as a witness and did so intending that result. Therefore, the detective's testimony as to the woman's statement is admissible under this hearsay exception **(Choice A)**.

(Choice B) The Sixth Amendment confrontation clause bars the admission of testimonial statements made by an unavailable hearsay declarant unless the defendant has had the opportunity to cross-examine that declarant. However, this right is forfeited by wrongdoing when, as here, a criminal defendant wrongfully causes a declarant's unavailability with the intent to procure that result.

(Choice C) One hearsay exclusion (ie, nonhearsay) applies when a declarant testifies and is subject to cross-examination about a prior statement that identified someone the declarant had perceived earlier. But this exclusion does not apply here because the woman is unavailable to testify.

Educational objective:

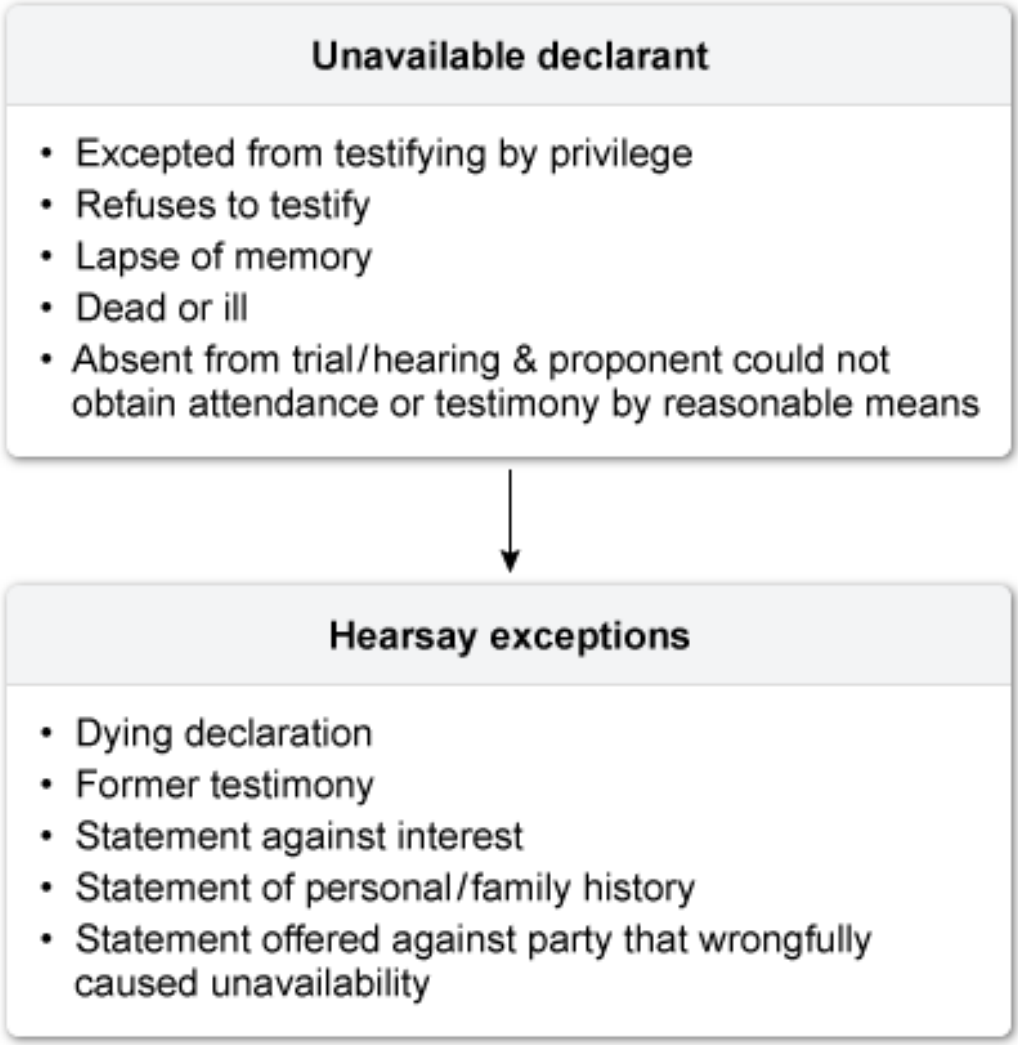
An unavailable declarant's statement offered against a party who (1) wrongfully caused, or acquiesced in wrongfully causing, the declarant's unavailability as a witness and (2) did so intending that result is excepted from the rule against hearsay.

References

Fed. R. Evid. 804(b)(6) (statement against party who caused declarant's unavailability).

Copyright © UWorld. All rights reserved.

Hearsay exceptions for unavailable declarants



©UWorld

A plaintiff, the first wife of a celebrity who recently died, sued an insurance company alleging that the celebrity's life insurance proceeds were improperly disbursed to the celebrity's second wife. In support of her claim, the plaintiff has produced a copy of the life insurance policy stating that all of the life insurance proceeds would be disbursed to the celebrity's first wife unless the celebrity remarried and remained married for at least 30 days. The celebrity's second wife alleges that they were married in secret well before the celebrity's death. The plaintiff now seeks to introduce evidence of the register of weddings at the church where the celebrity married the second wife to prove that they were married for less than 30 days before his death.

Is the church's wedding register admissible?

A. No, because the wedding register is hearsay not within any exception.

B. No, because there is no evidence that the church official who created the register is unavailable as a witness.

C. Yes, because the date in the wedding register is relevant to determine the duration of the marriage.

D. Yes, provided that the wedding register is part of the regularly kept records of the church.

Explanation:

Religious records exception

(FRE 803(11))

Out-of-court statements are admissible for their truth if they:

concern personal or family history (eg, birth, legitimacy, death, ancestry, marriage, divorce) *and*
are in regularly kept records of religious organization (eg, recorded in connection with religious ceremony)
FRE = Federal Rule of Evidence.

The **rule against hearsay** bars the admission of out-of-court statements (oral, written, or nonverbal) offered to prove the truth of the matter asserted therein *unless* a hearsay exclusion or exception applies. One hearsay **exception** applies to **statements** that:

concern **personal or family history** *and*
are in a **regularly kept record** of a **religious organization**.
That is because such records generally contain additional guarantees of trustworthiness found in the solemn nature of religious ceremonies and the lack of personal interest of the church official making the record.

Here, the plaintiff seeks to introduce the church's wedding register (out-of-court statement) to prove that the celebrity and his second wife were married on the date listed therein. But since the wedding register concerns personal and family history, it is excepted from hearsay—and therefore admissible—*if* the register is part of the regularly kept records of the church **(Choice A)**.

(Choice B) The religious records hearsay exception does not require that the proponent establish the declarant's unavailability as a witness.

(Choice C) The date in the church's wedding register is relevant to determine the duration of the marriage—a material issue in this case. But relevant evidence can still be excluded on other grounds, such as the rule against hearsay. Therefore, the wedding register is only admissible if it falls within a hearsay exclusion or exception.

Educational objective:

Statements in regularly kept records of a religious organization that concern personal or family history are excepted from the rule against hearsay.

References

Fed. R. Evid. 803(11) (hearsay exception for regularly kept religious records regarding personal or family history).

Copyright © UWorld. All rights reserved.

Several defendants, senior executives of a corporation, were charged with securities fraud.

The government called as a witness another executive of the corporation, who had not been charged and who had been given immunity from prosecution, to authenticate handwritten notes that she had made after meetings of the corporation's management team at which the alleged fraud was discussed. The witness testified that she had prepared the notes on her own initiative to help her remember what had happened at the meetings. After this testimony, the government offered the notes into evidence to establish what had happened at the meetings.

Should the witness's notes be admitted?

A. No, because the notes are hearsay not within any exception.

B. No, because the witness's immunity agreement with the government makes her notes untrustworthy and thus substantially more prejudicial than probative.

C. Yes, because they are business records.

D. Yes, because they are past recollections recorded.

Explanation:

An out-of-court statement (eg, writing) offered for the truth of the matter asserted therein is hearsay and generally inadmissible. However, **business records** are **excepted from the rule against hearsay** if those records were:

made **at or near the time** of the recorded event (or act, condition, opinion, diagnosis)

made by or based on information from someone with **personal knowledge** of that event *and*

made and kept as a **regular practice** (eg, routine meeting minutes) in the course of **regularly conducted activities of the business**.

But an individual's *personal* notes (even those made in a business setting) are not the *organization's* regularly kept business records **(Choice C)**. And when offered for the truth asserted, such personal notes are inadmissible hearsay unless another hearsay exception applies (not seen here).

(Choice B) The witness's immunity from prosecution had no effect on the trustworthiness of her notes because she wrote them *prior* to the immunity agreement. Therefore, the notes are not substantially more prejudicial than probative, and this is not a basis for excluding them.

(Choice D) The past recollection recorded (ie, recorded recollection) hearsay exception applies to records that (1) concern a matter a witness once knew but cannot recall at trial, (2) were made or adopted by the witness when the matter was fresh in his/her mind, and (3) accurately reflect the witness's knowledge at that time. But here, the witness has not claimed that she has forgotten what happened at the meetings. And even if she had, she could only *read* the notes into evidence since only opposing parties could offer them as an *exhibit*.

Educational objective:

Business records are excepted from hearsay if they were (1) made at or near the time of the recorded event, (2) made by or based on information from someone with personal knowledge, and (3) made and kept as a regular practice in the course of regular activities of the business.

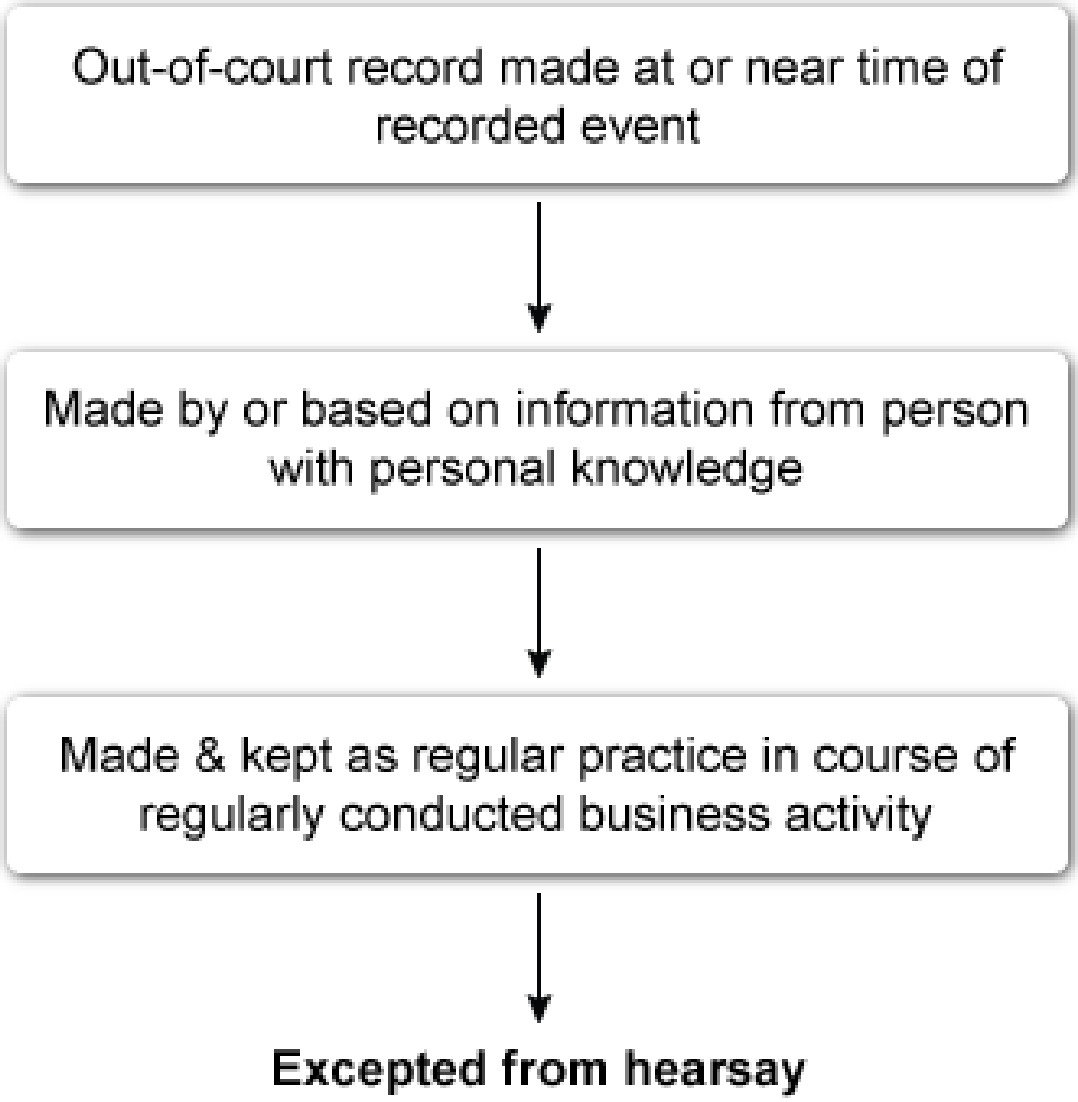
References

Fed. R. Evid. 803(6) (hearsay exception – records of a regularly conducted activity).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Business records hearsay exception
(FRE 803(6))



FRE = Federal Rule of Evidence.

©UWorld

A defendant, a nurse at a nursing home, is charged with murdering a resident at the home by adding an allegedly lethal substance to the resident's food. At trial, to prove that the substance added to the resident's food could result in death, the prosecutor, without first calling any witnesses, offers to read into evidence several pages from a standard medical treatise that supports the prosecution's claim that the substance the defendant added to the food is lethal.

Is the evidence offered admissible?

A. No, because the treatise excerpts were not offered during the examination of a qualified expert.

B. No, because the treatise itself must be introduced as an exhibit.

C. Yes, although hearsay, under the learned treatise exception to the hearsay rule.

D. Yes, because the lethal nature of the substance is relevant to the defendant's state of mind and intent.

Explanation:

Learned treatise hearsay exception

(FRE 803(18))

Statement in publication admissible if:

statement called to attention of, or relied upon by, expert during examination *and*
publication established as reliable authority by any party's expert or judicial notice
FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement (eg, the treatise excerpts) offered to prove the truth of the matter asserted therein (eg, the substance added to the victim's food is lethal) and is **generally inadmissible**. But under the **learned treatise exception** to the hearsay rule, a party may **read statements in a publication** into evidence if:

the statement is called to the **attention of**, or relied upon by, an **expert** witness **during examination** *and*

the publication is established as a **reliable authority** by any party's expert or judicial notice.

Here, the excerpts were taken from a standard medical treatise, which could probably be established as a reliable authority. But since they were not offered during the *examination* of a qualified expert, the learned treatise exception does not apply. Therefore, the excerpts are inadmissible hearsay and the prosecutor cannot read them into evidence **(Choice C)**.

(Choice B) A statement that is admitted under the learned treatise exception may be *read* into evidence, but neither the statement nor the publication itself may be *introduced* as an exhibit.

(Choice D) Although the lethal nature of the substance is relevant to the defendant's state of mind and intent, the statements in the treatise are still inadmissible hearsay absent an exception (none of which apply here).

Educational objective:

Under the learned treatise exception to the rule against hearsay, a statement in a publication may be read into evidence if (1) the statement is called to the attention of, or relied upon by, an expert witness during examination and (2) the publication is established as a reliable authority by any party's expert or judicial notice.

References

Fed. R. Evid. 803 (exceptions to the rule against hearsay).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a church, claiming that the church improperly removed a headstone from a small cemetery on the church's property. In the deed to the church, an easement was reserved for the use of burial plots by the grantor and his heirs and assigns. At trial, the plaintiff seeks to introduce evidence of the inscription on the removed headstone that read, "Here lies [family name of the grantor]."

Is the inscription on the headstone admissible?

A. No, because it is hearsay not within any exception.

B. No, because the inscription is a prior statement by an unavailable declarant.

C. Yes, as a statement of fact about family history contained in a family record.

D. Yes, provided that the plaintiff can authenticate the headstone by a preponderance of the evidence.

Explanation:

Examples of family records excepted from hearsay

(FRE 803(13))

Family bible
Genealogy
Family chart
Engraving on ring or urn
Inscription on portrait
Engraving/inscription on burial marker
FRE = Federal Rule of Evidence.

The **rule against hearsay** bars the admission of out-of-court statements (oral, written, or nonverbal) offered to prove the truth of the matter asserted therein *unless* a hearsay exclusion or exception applies. One **exception** applies to **statements of fact** about **personal or family history** contained **in a family record**—regardless of the declarant's availability **(Choice B)**.

Here, the plaintiff seeks to introduce the inscription (out-of-court statement) to prove that the person named in the inscription (the grantor's heir) is the person buried there. But since the inscription is a factual statement about family history (relative's death) contained in a family record (headstone), it is excepted from hearsay. Therefore, the inscription is admissible **(Choice A)**.

(Choice D) Tangible evidence (eg, headstone inscription) must be authenticated before it can be admitted at trial. This requires proof that the item is what the proponent claims it to be. This is an easier standard to meet than a preponderance of the evidence, which requires that a party show that the greater weight of the evidence (more than 50%) supports his/her argument.

Educational objective:

Statements of fact about personal or family history contained in a family record are excepted from the rule against hearsay, regardless of the declarant's availability.

References

Fed. R. Evid. 803(13) (hearsay exception for statements regarding personal or family history in family records).

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for injuries sustained in an automobile collision. During the plaintiff's hospital stay, a staff physician examined the plaintiff's X-rays and said to the plaintiff, "You have a fracture of two vertebrae, C4 and C5." An intern who was accompanying the physician on her rounds immediately wrote the diagnosis on the plaintiff's hospital record.

At trial, the hospital records custodian testifies that the plaintiff's hospital record was made and kept in the ordinary course of the hospital's business.

Is the entry reporting the physician's diagnosis admissible?

A. No, because no foundation has been laid for the physician's competence as an expert.

B. No, because the physician's opinion is based upon data that are not in evidence.

C. Yes, as a record of regularly conducted business activity.

D. Yes, as a statement of then-existing physical condition.

Explanation:

Business records hearsay exception

(FRE 803(6))

Business record admissible if it was:

made at or near time of recorded event (or act, opinion, condition, diagnosis)
made by or based on information from someone with personal knowledge *and*
made & kept as a regular practice in the course of regularly conducted business activities
FRE = Federal Rule of Evidence.

Under the hearsay rule, out-of-court statements (eg, entries in a hospital record) are generally inadmissible when offered to prove the truth of the matter asserted therein (eg, patient has two fractured vertebrae). However, one hearsay exception applies to **business records** that were:

made **at or near the time** of the recorded event (or act, condition, opinion, diagnosis)
made by or based on information from someone with **personal knowledge** of that event *and*
made and kept as a **regular practice** in the course of **regularly conducted business activities**.
Hospitals create and maintain patient records as a regular practice in the regular course of hospital business. They are created near the time of the recorded event (eg, patient exam) and are made by or based on information from someone with personal knowledge of the event (eg, physician, nurse, intern). As a result, the entry in the plaintiff's hospital record reporting the physician's diagnosis is admissible under the business records hearsay exception.

(Choices A & B) A witness is only qualified to provide expert testimony if the witness has specialized knowledge, skill, experience, training, or education in the relevant field. But here, there is no need to lay such a foundation for the physician's expertise since she is not giving expert testimony. And even if she were, the facts/data underlying her opinion need not be in evidence (or even admissible) if other experts would reasonably rely thereon.

(Choice D) Statements made by a *patient* (or other declarant) regarding his/her then-existing physical condition (eg, pain, bodily health) are excepted from hearsay. But here, the *physician's* diagnosis of the patient's condition does not fall within this exception.

Educational objective:

Business records are excepted from hearsay if they were (1) made near the time of the recorded event, (2) made by or based on information from one with personal knowledge, and (3) made and kept as a regular practice in the course of regular business activities.

References

Fed. R. Evid. 803(6) (business record).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man sued to assert an interest in the large estate of an elderly woman who had died intestate. The man claimed to be the woman's nephew. At trial, the man produced a genealogy chart which was authenticated as belonging to the woman. The genealogy chart contained members of the woman's family in generations both before and after her and recorded the man's birth to the woman's oldest sister.

Is the information in the genealogy chart admissible?

A. No, because it is hearsay not within any exception.

B. No, because the man did not produce the creator of the chart.

C. Yes, as a recorded recollection.

D. Yes, as proof that the man is entitled to a portion of the woman's estate.

Explanation:

Examples of family records excepted from hearsay

(FRE 803(13))

Family bible
Genealogy
Family chart
Engraving on ring or urn
Inscription on portrait
Engraving/inscription on burial marker
FRE = Federal Rule of Evidence.

Under the rule against hearsay, out-of-court statements offered to prove the truth of the matter asserted therein are inadmissible unless an exclusion or exception applies. One **hearsay exception** applies to **statements of fact** about **personal or family history** contained **in a family record** (eg, genealogy chart). Once the family record is authenticated,* the information in that record is admissible to prove the truth of the matter asserted.

Accordingly, the genealogy chart is admissible to prove that the man is the woman's nephew and is therefore entitled to a portion of her estate **(Choice A)**.

*A party authenticates an item of tangible evidence by introducing evidence sufficient to support a finding that the item is what the party claims it is.

(Choice B) A statement of fact about family history contained in a family record is admissible under this hearsay exception regardless of the declarant's availability. Therefore, the fact that the man did not produce the creator (ie, declarant) of the genealogy chart at trial is not a basis to exclude it.

(Choice C) The hearsay exception for recorded recollections allows a record to be read into evidence if it (1) concerns a matter the witness once knew but cannot recall at trial, (2) was made or adopted by the witness when the matter was fresh in his/her mind, and (3) accurately reflects the witness's personal knowledge at the time it was made. Here, the man did not suffer a memory lapse and there is no indication that he adopted the genealogy chart at the time it was made, so this exception does not apply.

Educational objective:

One hearsay exception applies to statements of fact about personal or family history contained in a family record. Once authenticated, the information in that record is admissible to prove the truth of the matter asserted.

References

Fed. R. Evid. 803(13) (hearsay exception for statements regarding personal or family history in family records).

Copyright © UWorld. All rights reserved.

A defendant, the mayor of a city, ran an illegal gambling business with his ruthless business partner. The defendant was charged with dishonest and fraudulent dealings in violation of a federal statute and conspiracy to obstruct law enforcement. At trial, the prosecutor called a witness, a secretary working at the police department. The witness intends to testify that an investigating officer told her that he was afraid to arrest the mayor's business partner because certain officers had been punished for arresting members of the business partner's operation in the past.

Is the witness's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because the statement was not made while under the stress of a startling event.

C. Yes, as a statement by the officer of his then-existing emotional condition.

D. Yes, provided that the officer is unavailable to testify.

Explanation:

Then-existing state of mind hearsay exception

(FRE 803(3))

Type of statement	Examples	Admissibility
State of mind	Motive, intent, plan	Admissible as substantive evidence
Emotional or physical condition	Fear, pain, bodily health	
Memory or belief	Reflection on prior event or belief about matter	Inadmissible unless related to declarant's will

FRE = Federal Rule of Evidence.

The rule against hearsay prohibits the admission of a statement made outside the present proceeding that is offered for the truth of the matter asserted therein unless an exception or exclusion applies. One **hearsay exception** permits admission of a **statement concerning** the **declarant's then-existing** state of mind (eg, motive, intent, plan) OR **emotional/physical condition** (eg, mental feeling, pain, bodily health).

Here, the witness seeks to testify that an officer said that he was afraid to arrest the mayor's business partner because certain officers had been punished for arresting members of the business partner's operation in the past. This out-of-court statement is hearsay since it is offered for its truth—to prove that the officer was afraid of being punished if he arrested the business partner. But since the statement concerns the officer's then-existing emotional condition—his fear of punishment—it is excepted from hearsay and is therefore admissible **(Choice A)**.

(Choice B) An excited utterance is a hearsay exception for a statement that relates to, and was made while under the stress of, a startling event or condition (eg, had the officer blurted out the statement after witnessing a punishment). But though the officer's statement was not made under the stress of excitement, it is still admissible as a then-existing emotional condition.

(Choice D) Some hearsay exceptions only apply if the declarant is unavailable to testify. But the exception for a then-existing emotional condition is not one of those exceptions. Therefore, the witness's statement would be admissible under this exception regardless of whether the officer is available.

Educational objective:

Statements regarding a declarant's then-existing state of mind (eg, motive, intent, plan) or emotional/physical condition (eg, mental feeling, pain, bodily health) are excepted from the rule against hearsay.

References

Fed. R. Evid. 803(3) (hearsay exception for a declarant's then existing emotional condition).

Copyright © UWorld. All rights reserved.

A plaintiff has sued a defendant for personal injuries the plaintiff suffered when she was bitten as she was trying to feed a rat that was part of the defendant's caged-rat experiment at a science fair. At trial, the plaintiff offers evidence that immediately after the incident the defendant said to her, "I'd like to give you this $100 bill because I feel so bad about this."

Is the defendant's statement admissible?

A. No, because it is not relevant to the issue of liability.

B. No, because it was an offer of compromise.

C. Yes, as a present sense impression.

D. Yes, as the statement of a party-opponent.

Explanation:

Nonhearsay statement by party-opponent

(FRE 801(d))

Out-of-court statement is nonhearsay if offered against opposing party AND:

made or adopted by opposing party
made by person authorized by opposing party to make statement on subject
made by opposing party's agent/employee on matter within scope of relationship
OR

made by opposing party's coconspirator during & in furtherance of conspiracy
FRE = Federal Rule of Evidence.

An **out-of-court statement** offered for the **truth of the matter** asserted therein is generally inadmissible under the hearsay rule. But when such a statement is **made by** and **offered against** a **party-opponent**, it is **excluded** from the **hearsay rule** (ie, is nonhearsay). Therefore, the opposing party's statement is admissible as substantive evidence so long as it is relevant and not prohibited by another evidentiary rule—eg, the rule barring offers of compromise (raised here).

An **offer of compromise** (ie, a settlement offer) is **inadmissible** to prove the **validity or amount** of a **disputed claim**. But this rule only applies if there was an *actual dispute* regarding a party's liability or the value of a claim at the time the offer was made. Since there is no indication that the present dispute over the defendant's liability existed when the defendant offered the plaintiff $100, this rule does not apply **(Choice B)**. Therefore, this party-opponent's statement is admissible.

(Choice A) Evidence is relevant if it has *any* tendency to make a material fact more or less probable. The defendant's offer and remorseful statement tend to prove that the defendant is at fault for the plaintiff's injuries. Therefore, the statement *is* relevant.

(Choice C) A present sense impression is a hearsay exception for out-of-court statements about an event made during or immediately after the declarant perceived it. But the defendant's statement here needs no such exception because it is a statement of a party-opponent (ie, nonhearsay).

Educational objective:

A statement made by an opposing party is excluded from the rule against hearsay when offered against that party.

References

Fed. R. Evid. 801(d) (nonhearsay statements).

Fed. R. Evid. 408 (compromise offers and negotiations).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for knowing possession of a stolen television. The defendant claims that the television was a gift from a friend, who has disappeared. The defendant seeks to testify that he was present when the friend told her neighbor that the television had been given to the friend by her mother.

Is the defendant's testimony about the friend's statement to the neighbor admissible?

A. No, because the defendant has not presented evidence of circumstances that clearly corroborate the statement.

B. No, because the friend's statement is hearsay not within any exception.

C. Yes, as nonhearsay evidence of the defendant's belief that the friend owned the television.

D. Yes, under the hearsay exception for statements affecting an interest in property.

Explanation:

Hearsay—an **out-of-court statement** offered to prove the **truth of the matter asserted** therein—is **inadmissible** absent an exception. Therefore, a statement offered for another purpose—eg, to show the statement's **effect on the listener**—is **not hearsay** and is generally admissible.

Here, the defendant is on trial for knowingly possessing a stolen television that he claims was gifted to him by his friend. The defendant seeks to testify that he overheard his friend say that her mother had given her the television. Although this is an out-of-court statement, it is not hearsay. That is because the statement is being offered to prove that the defendant *believed* that the friend owned the television before giving it to him (effect on listener)—not that the friend had actually owned it (the matter asserted) **(Choice B)**. Therefore, the defendant's testimony is admissible nonhearsay evidence.

(Choice A) Unlike other hearsay exceptions, a statement against interest is the only hearsay exception that must be supported by corroborating evidence—but only if the statement is offered in a criminal case and exposes the declarant to criminal liability. This exception does not apply here because the friend's statement (1) is not hearsay and (2) does not expose her to criminal liability.

(Choice D) The hearsay exception for statements affecting an interest in property applies when (1) a statement appears in a document, (2) the statement relates to the document's purpose, and (3) later dealings with the property are consistent with the statement's truth. This exception is not applicable here because the friend's statement is not hearsay and did not appear in a document (since she *told* her neighbor).

Educational objective:

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein. An out-of-court statement that is offered for another purpose (eg, to show its effect on the listener) is not hearsay and is generally admissible.

References

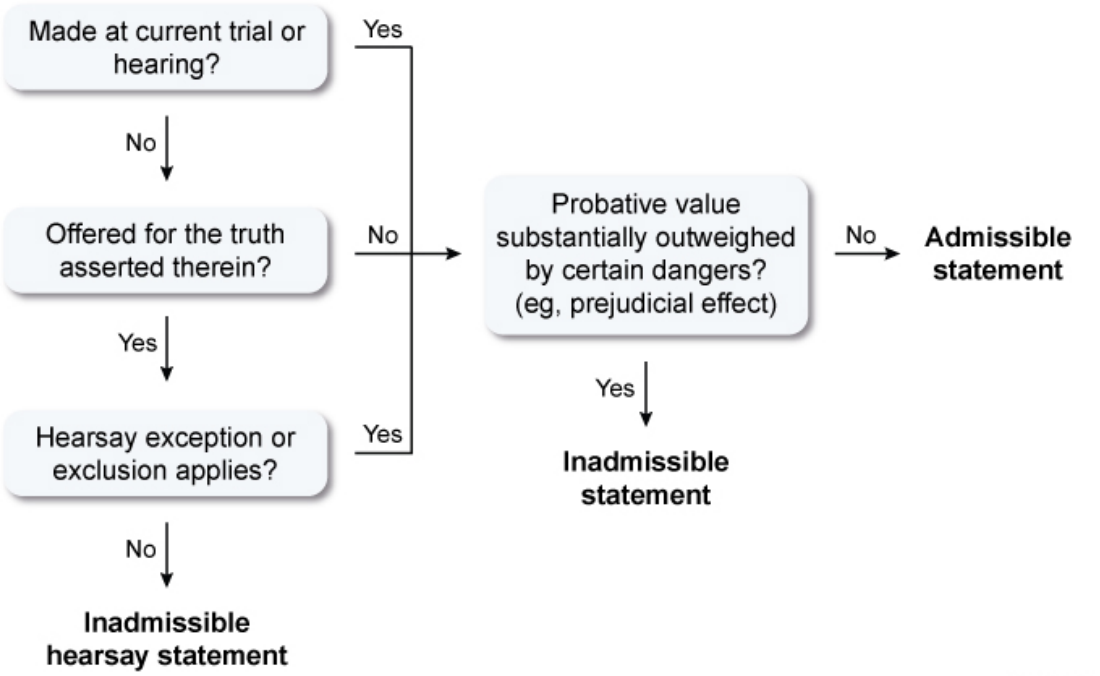
Fed. R. Evid. 801(c) (hearsay definition).

Fed. R. Evid. 802 (rule against hearsay).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of statements



©UWorld

A defendant was charged with robbery of a savings and loan branch after being arrested near the scene and found with marked bills. An hour after the robbery, the officer investigating the crime videotaped an interview with an eyewitness, in which the eyewitness described the crime and the robber. The officer then arranged for a lineup, at which the teller who was robbed identified the defendant as the robber. The officer later obtained computerized records of that day's deposits and withdrawals at the savings and loan, which allowed the calculation of how much cash was taken in the robbery.

A month later, the teller testified before a grand jury, which indicted the defendant. The teller and the eyewitness both died of unrelated causes shortly afterward. At trial, the defendant's attorney objects to evidence offered against the defendant on the basis that it violates the confrontation clause.

Which of the following, if properly authenticated, may be admitted against the defendant over this objection?

A. A transcript of the teller's sworn grand jury testimony.

B. The computerized records from the savings and loan.

C. The officer's testimony that the teller picked the defendant out of the lineup as the robber.

D. The videotape of the eyewitness's statement.

Explanation:

Testimonial v. Nontestimonial evidence

Testimonial	Evidence made primarily for purpose of criminal investigation or prosecution—eg: Witness statements made after apprehension of suspect Grand jury testimony Lab results Transcripts of prior testimony Affidavits
Nontestimonial	Any other evidence—eg: Witness statements made before apprehension of suspect Statements made to assist police in ongoing emergency 911 calls Jail booking records

The Sixth Amendment **confrontation clause** secures a defendant's right to confront witnesses offering **testimonial evidence** against him/her in a **criminal case**. Evidence is **testimonial** in nature if it was made primarily for use in a criminal investigation or prosecution, and it is inadmissible *unless*:

the declarant is unavailable as a witness at trial *and*

the defendant had a prior **opportunity to cross-examine** the declarant.

Here, the savings and loan's computerized records of deposits and withdrawals on the day of the robbery were made for ordinary business purposes. Therefore, they are *not* testimonial in nature and can be admitted over the defendant's objection.

In contrast, transcripts of sworn grand jury testimony, identifications at police lineups, and videotapes of eyewitness statements are made primarily for use in a criminal investigation or prosecution. Here, the witnesses who offered this testimonial evidence—the teller and eyewitness—have died and are unavailable for cross-examination. And since there is no indication that the defendant had a prior opportunity to cross-examine them, this evidence is inadmissible **(Choices A, C & D)**.

Educational objective:

The confrontation clause limits the admissibility of testimonial evidence—ie, evidence made primarily for use in a criminal investigation or prosecution—against a criminal defendant. Such evidence is inadmissible unless (1) the declarant is unavailable as a witness and (2) the defendant had a prior opportunity to cross-examine the declarant.

References

Crawford v. Washington, 541 U.S. 36, 68 (2004) (defining testimonial hearsay).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a ladder manufacturer for injuries he suffered to his neck and back when a rung of the ladder on which he was standing gave way. When the plaintiff's back and neck continued to be very sore more than two weeks after his fall, his treating physician had sent him to an orthopedist for an evaluation. Though the orthopedist did not treat the plaintiff, he diagnosed an acute cervical strain. At trial, the plaintiff has called the orthopedist to testify that, in response to the orthopedist's inquiry about how the plaintiff had injured his back, the plaintiff had told him, "I was standing near the top of a 15-foot ladder when I abruptly fell, landing hard on my back, after which the ladder toppled onto my neck."

Should the statement be admitted?

A. No, because it relates to the inception or the cause of the injury rather than the plaintiff's physical condition.

B. No, because it was not made to a treating physician.

C. Yes, because it was made for the purpose of medical diagnosis or treatment.

D. Yes, because the plaintiff is present and can be cross-examined about it.

Explanation:

Statement made for medical diagnosis or treatment

(FRE 803(4))

Hearsay exception for statement by declarant (available or not) that is:

made for & reasonably pertinent to medical diagnosis or treatment *and*
describes declarant's:
medical history
past or present symptoms or sensations *or*
inception or general cause of symptoms
FRE = Federal Rule of Evidence.

Under the rule against **hearsay**, an out-of-court statement is presumed unreliable and is generally inadmissible when offered for the truth of the matter asserted therein. One **exception** to this rule applies to statements that are:

made for and reasonably pertinent to **medical diagnosis or treatment** *and*

describe the declarant's **medical history**, past or present **symptoms**, or the **inception or general cause** of those symptoms **(Choice A)**.

There is **no requirement** that these statements be **made to a physician**, so statements to nurses, family members, ambulance drivers, etc. are admissible so long as they meet the above criteria **(Choice B)**. Here, the plaintiff's statement to the orthopedist falls within this exception because the statement was pertinent to a medical diagnosis and described the inception or cause of his injuries. As a result, it should be admitted.

(Choice D) The plaintiff *is* present and can be cross-examined about the statement. And since a statement made for medical diagnosis or treatment is admissible regardless of the declarant's availability, this is not a basis for admitting the statement.

Educational objective:

One exception to the hearsay rule applies to statements that are (1) made for and reasonably pertinent to medical diagnosis or treatment and (2) describe the declarant's medical history, past or present symptoms, or their inception or general cause.

References

Fed. R. Evid. 803(4) (hearsay exception – statement made for medical diagnosis or treatment).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is charged with aggravated assault. The physical evidence at trial has shown that the victim was hit with a lead pipe in the back of the head and on the forearms and left in an alley. The medical examiner has testified that the injuries to the victim's forearms appear to have been defensive wounds. The victim has testified that he cannot remember who attacked him with the lead pipe. He would further testify that he remembers only that a passerby found him in the alley, and that he told the passerby that the defendant had hit him with the lead pipe; he then lost consciousness.

The defendant objects to this proposed testimony, arguing that it is hearsay and that the victim had no personal knowledge of the identity of the perpetrator.

Is the victim's testimony concerning his previous statement to the passerby admissible?

A. No, because the prosecutor has failed to show that it is more likely than not that the victim had personal knowledge of the perpetrator's identity.

B. No, because the victim has no memory of the attack itself and therefore cannot be effectively cross-examined.

C. Yes, because it is the victim's own out-of-court statement.

D. Yes, because the victim is subject to cross-examination and there is sufficient showing of personal knowledge.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

The rule against hearsay generally bars the admission of out-of-court statements offered for the truth of the matter asserted therein. But certain statements are *excluded* from this rule and considered **nonhearsay**. This includes statements that:

are made by a **declarant who testifies** and is **subject to cross-examination** *and*
identify a person as someone the declarant perceived earlier.

To be admissible, these prior statements of identification must be based on the declarant-witness's **personal knowledge**. This requirement is met if a **reasonable juror could find** that the witness was speaking about his/her **firsthand observation or experience**—a standard that is significantly easier to satisfy than "more likely than not" **(Choice A)**.

Here, the victim's proposed testimony seeks to identify the defendant as someone the victim had previously perceived and identified as his attacker. Since the victim can be cross-examined about his statement, it is nonhearsay. Additionally, the victim's prior statement of identification was based on personal knowledge because evidence of defensive wounds is sufficient to persuade a reasonable juror that the victim saw his attacker firsthand. Therefore, the victim's testimony concerning this statement is admissible.

(Choice B) In *United States v. Owens*, the Supreme Court admitted an out-of-court statement identifying a declarant-witness's attacker even though the declarant could not remember the attack at trial. The Court reasoned that the confrontation clause only guarantees a defendant an *opportunity* for effective cross-examination. This guarantee is met when the defendant can challenge the witness's credibility (eg, bias, lack of memory).

(Choice C) The fact the victim made the out-of-court statement identifying the defendant as his attacker is insufficient on its own to admit that statement.

Educational objective:

An out-of-court statement that identifies a person as someone the declarant perceived earlier is nonhearsay if the declarant testifies at trial and is subject to cross-examination about the prior identification.

References

Fed. R. Evid. 801(d)(1)(C) (prior statement of identification).

Fed. R. Evid. 602 (lay witness personal knowledge).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A cyclist sued a defendant corporation for injuries sustained when she was hit by a truck owned by the defendant and driven by its employee, who was making deliveries for the defendant. The day after the accident, the employee visited the cyclist in the hospital and said, "I'm sorry for what I did."

At trial, the employee has testified that he exercised due care.

Why is the cyclist's testimony relating what the defendant's employee said at the hospital admissible to prove negligence?

A. It is a prior inconsistent statement.

B. It is a statement against interest.

C. It is a statement by a party-opponent's agent.

D. It is a statement of then-existing state of mind.

Explanation:

Nonhearsay statement by party-opponent

(FRE 801(d))

Out-of-court statement is nonhearsay if offered against opposing party AND:

made or adopted by opposing party
made by person authorized by opposing party to make statement on subject
made by opposing party's agent/employee on matter within scope of relationship
OR

made by opposing party's coconspirator during & in furtherance of conspiracy
FRE = Federal Rule of Evidence.

Hearsay is an **out-of-court statement** offered to prove the **truth of the matter** asserted therein and is generally inadmissible. But such statements are **excluded** from this rule (ie, are nonhearsay) if they:

are **offered against** an opposing party
were made by that party's **agent or employee** *and*
pertained to a matter within the **scope of that relationship** while it existed.
These statements are attributed to the opposing party and are admissible as substantive evidence at trial (eg, as proof of negligence).

Here, the employee's apology is being offered to prove the truth of the matter asserted—that he felt responsible for the accident. But it is *nonhearsay* because it is offered against the defendant, was made by its employee, and concerned an accident that occurred while the employee was making deliveries for the defendant in its truck. As a result, this statement by a party-opponent's agent is admissible to prove the corporation's negligence.

(Choice A) A witness's prior inconsistent statement is admissible to *impeach* the witness on a material matter. But it is only admissible to *prove* the truth asserted (ie, as substantive evidence) if the statement was made under oath at a trial, hearing, or other proceeding—which did not occur here.

(Choice B) A statement against interest is a hearsay exception for statements that are so contrary to the declarant's proprietary, pecuniary, or penal interest that a reasonable person in the declarant's position would only have said it if he/she believed it to be true. But since this exception only applies if the declarant is unavailable as a witness, it is inapplicable here.

(Choice D) Statements regarding the declarant's then-existing state of mind—not later statements of memory, belief, or reflection (eg, "I'm sorry for what I did")—are excepted

from the hearsay rule. Therefore, the employee's apology is not admissible under this exception.

Educational objective:

Statements that are (1) offered against an opposing party, (2) made by that party's agent or employee, and (3) pertinent to a matter within the scope of the agency or employment are excluded from the hearsay rule.

References

Fed. R. Evid. 801(d)(2) (opposing party's statement).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman sued a neighbor for shooting her husband from ambush. The woman offers to testify that, the day before her husband was killed, he described to her a chance meeting with the neighbor on the street in which the neighbor said, "I'm going to blow your head off one of these days."

Is the woman's testimony concerning her husband's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, because it is improper evidence of a prior bad act.

C. Yes, because the neighbor's statement is that of a party-opponent.

D. Yes, to show the neighbor's state of mind.

Explanation:

The **rule against hearsay** bars the admission of an **out-of-court statement** offered to **prove the truth** of the matter asserted therein. When such a statement (eg, the neighbor's threat) is **contained within another** (eg, the husband's description of the encounter), neither statement is admissible unless *both* are excluded or excepted from the rule against hearsay.

One hearsay exclusion applies to **statements by a party-opponent** that are offered against that party. Since the neighbor is a party to this lawsuit and his statement is being offered against him, that statement is excluded from hearsay (ie, constitutes nonhearsay). But since the husband's statement describing his chance meeting with the neighbor does not fall within any hearsay exclusion or exception,* the woman's testimony about both statements is inadmissible **(Choice C)**.

*The hearsay exception for statements offered against a party that wrongfully caused the declarant's unavailability does not apply here because the neighbor did not shoot the husband with the intent to prevent him from testifying.

(Choice B) Evidence of a prior bad act cannot be used to prove a person's propensity to behave in a certain manner. But here, the neighbor's statement was offered to prove that he killed the husband—not that the neighbor was prone to violence. Therefore, this rule is inapplicable.

(Choice D) The hearsay exception for statements of a declarant's then-existing state of mind is unnecessary because the neighbor's statement is nonhearsay. And even if this exception applied, the neighbor's statement would remain inadmissible because it is contained within the husband's inadmissible hearsay statement.

Educational objective:

When an out-of-court statement that is offered for the truth of the matter asserted therein is contained within another, neither statement is admissible unless both are excepted or excluded from the rule against hearsay.

References

Fed. R. Evid. 805 (hearsay within hearsay).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Hearsay within hearsay
(FRE 805)

Woman's statement is hearsay



Witness's statement is hearsay within hearsay



FRE = Federal Rules of Evidence

©UWorld

A plaintiff has brought a civil suit against a defendant for injuries arising out of a fistfight between them. The day after the fight, a police officer talked to the plaintiff, the defendant, and an eyewitness, and made an official police report.

At trial, the plaintiff seeks to introduce from the properly authenticated police report a statement attributed to the eyewitness, who is unavailable to testify at trial, that "[the defendant] started the fight."

Should the court admit the statement from the report?

A. No, because it is hearsay not within any exception.

B. No, unless the entire report is introduced.

C. Yes, because it is an excerpt from a public record offered in a civil case.

D. Yes, because it was based on the eyewitness's firsthand knowledge.

Explanation:

Hearsay is an out-of-court statement (eg, police report) offered for the truth of the matter asserted therein. When such a statement contains another that is offered for its truth (eg, eyewitness's statement), a **hearsay within hearsay** (ie, multiple hearsay) issue arises. In such cases, both statements are **inadmissible unless *both*** are excluded or excepted from hearsay.

For example, police reports are typically excepted from hearsay as either:

business records – records (1) made at or near the time of the recorded event, (2) made by or based on information from someone with personal knowledge of the event, and (3) made and kept as a regular practice in the course of a regular business activity *or*

public records – records of a public office concerning (1) office activities, (2) matters observed pursuant to a legal duty (excluding police observations in criminal cases), or (3) factual findings from a legally authorized investigation in a civil case or against the government in a criminal case.

However, statements in police reports by third parties who are under no business or legal duty to report fall under neither exception and therefore must independently satisfy a hearsay exclusion or exception to be admissible.

Here, the police report itself likely falls within a business or public records hearsay exception since it records the officer's personal knowledge and observations. However, those exceptions do not apply to the eyewitness's statement since the eyewitness lacked a business or legal duty to report on the fight. And since the eyewitness's statement is not otherwise excluded or excepted from the hearsay rule, it is inadmissible.

(Choices B, C & D) The eyewitness's statement is inadmissible because it does not independently satisfy a hearsay exclusion or exception. This is true regardless of whether (1) the entire police report is introduced, (2) an excerpt of that report falls within the public records hearsay exception, or (3) the statement was based on the eyewitness's firsthand knowledge.

Educational objective:

When a hearsay statement is contained within another (ie, hearsay within hearsay), both statements are inadmissible unless both are excluded or excepted from the hearsay rule.

References

Fed. R. Evid. 805 (hearsay within hearsay).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Hearsay within hearsay
(FRE 805)

Woman's statement is hearsay



Witness's statement is hearsay within hearsay



FRE = Federal Rules of Evidence

©UWorld

A plaintiff sued his insurance company for the proceeds of a casualty insurance policy covering his 60-foot yacht, claiming that the yacht was destroyed by an accidental fire. The company has denied liability, claiming that the plaintiff hired his friend to set the fire. In the hospital the day after the fire, the friend, who had been badly burned in the fire, said to his wife, in the presence of an attending nurse, "I was paid to set the fire." Two weeks later, the friend died of an infection resulting from the burns.

At trial, the insurance company calls the wife to testify to the friend's statement.

Is the wife's testimony admissible over the plaintiff's objection?

A. No, because the marital privilege survives the communicating spouse's death.

B. No, because the statement was made after the conspiracy ended.

C. Yes, because it is a statement against interest.

D. Yes, because it is a statement by a coconspirator.

Explanation:

Statement against interest

(FRE 804(b)(3))

Hearsay statement that reasonable person in unavailable declarant's position would only make if true because it:

is contrary to declarant's proprietary or pecuniary interest
tends to invalidate declarant's claim against someone else *or*
exposes declarant to civil or criminal liability
FRE = Federal Rule of Evidence.

The **rule against hearsay** generally bars the admission of an out-of-court statement offered to prove the truth of the matter asserted therein. But there is an **exception** for a **statement against interest**—ie, a statement that a reasonable person in the declarant's position would only have made if he/she believed it to be true because it:

is contrary to the declarant's proprietary or pecuniary interest
tends to invalidate the declarant's claim against someone else *or*
exposes the declarant to civil or **criminal liability**.
For this exception to apply, however, the declarant must be unavailable as a witness (eg, deceased).

Here, the friend's out-of-court statement ("I was paid to set the fire") is hearsay since it is being offered for its truth. But a reasonable person in the friend's position would only have said this if it were true since the statement exposed the friend to criminal liability for arson. And since the friend is unavailable to testify (deceased), the wife's testimony as to the friend's statement is admissible under the statement against interest hearsay exception.

(Choice A) Spousal communications are generally privileged if they are made during a valid marriage and reasonably *intended* to be confidential. This marital privilege survives the communicating spouse's death. But here, confidentiality was not intended since the friend's statement to his wife was made in the nurse's presence.

(Choices B & D) An out-of-court statement made by an opposing party's coconspirator *during* and in furtherance of the conspiracy is admissible nonhearsay (ie, is excluded from the hearsay rule) when offered against that party. This exclusion does not apply to the friend's statement, which was made *after* the conspiracy had ended. But the statement is still admissible as a statement against interest.

Educational objective:

A statement against interest is a hearsay exception for statements that are so contrary to the declarant's proprietary, pecuniary, or penal interest that a reasonable person in the declarant's position would only have said it if he/she believed it to be true. But this exception only applies if the declarant is unavailable as a witness.

References

Fed. R. Evid. 804(b)(3) (hearsay exception – statement against interest).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At a woman's trial for bank robbery, the prosecutor has called a private security guard for the bank who has testified, without objection, that while he was on a coffee break, the woman's brother rushed up to him and said, "Come quickly! My sister is robbing the bank!" The woman now seeks to call a witness to testify that the brother later told the witness, "I got my sister into trouble by telling a security guard that she was robbing the bank, but now I realize I was mistaken." The brother is unavailable to testify.

Is the witness's testimony admissible?

A. No, because the brother will be afforded no opportunity to explain or deny the later statement.

B. No, because the prosecutor will be afforded no opportunity to confront the brother.

C. Yes, because it is substantive proof that the woman did not rob the bank.

D. Yes, but only as an inconsistent statement to impeach the brother's credibility.

Explanation:

When a **hearsay statement** is admitted under (1) *any* hearsay exception or (2) the hearsay exclusion for statements made by an opposing party's agent, employee, or coconspirator, the **declarant may be impeached** (and then rehabilitated) as though the declarant had testified **as a witness**. The *same* methods for impeaching a witness can therefore be used against the declarant. This includes a declarant's **inconsistent statement** that—unlike a witness's inconsistent statement—can be used for impeachment **regardless of**:

whether the inconsistent statement **occurred prior to or after** the hearsay statement *or*
whether the declarant has an **opportunity to explain or deny** the inconsistent statement **(Choice A)**.

Here, the brother's hearsay statement—"My sister is robbing the bank!"—was admitted into evidence presumably under the hearsay exception for excited utterances. As a result, his inconsistent statement to the witness—"I was mistaken"—is admissible to *impeach* his credibility. But since the brother's inconsistent statement constitutes hearsay, it cannot be used as *substantive* proof that the woman did not rob the bank unless it is also excepted or excluded from the hearsay rule **(Choice C)**.

(Choice B) The Sixth Amendment confrontation clause gives criminal defendants—not prosecutors (as seen here)—the right to cross-examine opposing witnesses.

Educational objective:

When certain hearsay is admitted into evidence, the declarant can be impeached as though he/she had testified as a witness. But the declarant's inconsistent statement—unlike a witness's one—can be used for impeachment even if (1) it occurred after the hearsay statement or (2) the declarant had no opportunity to explain or deny it.

References

Fed. R. Evid. 806 (attacking and supporting the declarant's credibility).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching hearsay declarant
(FRE 806)



FRE = Federal Rule of Evidence

©UWorld

A defendant is on trial for the robbery of an armored bank truck. A man and his wife witnessed the robber flee from the armored truck. The man testified that the robber removed his mask and exposed his face as he fled. The man further testified that he recognized the defendant as the robber. The defendant now seeks to introduce the grand jury testimony of the man's wife, who has refused to testify at trial despite a court order requiring her to do so.

During her grand jury testimony, the wife affirmatively stated that the robber never removed his mask or exposed his face. Despite evidence to the contrary, the prosecution did not press the wife on this matter, as it had more than enough evidence linking the defendant to the robbery to secure an indictment.

If the court does not admit the wife's grand jury testimony, what is the most likely explanation?

A. Grand jury testimony is specifically excluded from the definition of former testimony.
B. The prosecution lacked the motive to develop the wife's testimony at the grand jury proceeding.
C. The wife is available to testify at trial.
D. The wife is unavailable to testify at trial.

Explanation:

Former testimony

(FRE 804(b)(1))

Hearsay exception for unavailable declarant's testimony that:

was given at trial, hearing, or deposition in current case or different proceeding that involved similar parties & issues *and*

is offered against party who had opportunity & similar motive to develop testimony by direct or cross-examination

FRE = Federal Rule of Evidence.

Out-of-court statements (eg, the wife's grand jury testimony) offered to prove the truth of the matter asserted therein are generally inadmissible under the rule against hearsay. However, certain statements are excluded or excepted from this rule. One **hearsay exception** allows admission of **former testimony** if:

the declarant is unavailable—eg, the declarant refuses to testify despite a court order to do so (as seen with the wife here)

the testimony was given at a **trial, hearing, or deposition** in the current case or in a different proceeding that involved **similar parties and issues** *and*

the party against whom the testimony is offered had an **opportunity** and **similar motive to develop** that testimony through **direct or cross-examination** of the declarant.

However, this exception **rarely applies to grand jury testimony** because (1) a suspect/defendant is seldom present at grand jury proceedings and (2) the prosecution's motive to develop a grand jury witness's testimony is often lacking.*

Here, the wife previously testified before the grand jury that the robber did not remove his mask or expose his face. The prosecution lacked the motive to press the wife on this testimony because it had more than enough evidence to secure an indictment. And since the wife's testimony is not otherwise excluded or excepted from the hearsay rule, it is inadmissible.

*For example, motive may be lacking because other evidence is sufficient to implicate the suspect, the testimony took place early in the grand jury investigation, or a statement exculpating the suspect is a minor part of the witness's overall testimony.

(Choice A) Although the former testimony exception rarely applies to grand jury testimony because the defense can rarely show that the prosecution had a similar motive to develop the testimony, grand jury testimony is not specifically excluded from the exception.

(Choices C & D) The wife is *not* available to testify at trial since she refused to testify despite a court order requiring her to do so. But even when a declarant is unavailable, the declarant's statement can still be admissible if it falls within an exception or exclusion to the hearsay rule (not seen here).

Educational objective:

The former testimony exception rarely applies to grand jury testimony because (1) a suspect/defendant is seldom present at grand jury proceedings and (2) the prosecution's motive to develop a witness's testimony is often lacking.

References

Fed. R. Evid. 804(b)(1) (hearsay exception for former testimony).

Copyright © UWorld. All rights reserved.

A defendant is on trial for participating in a drug sale. The prosecution calls an undercover officer to testify that, when the dealer sold the drugs to the undercover officer, the dealer introduced the defendant to the undercover officer as "my partner in this" and the defendant shook hands with the undercover officer but said nothing.

Is the undercover officer's testimony as to the dealer's statement admissible?

A. No, because the statement of the dealer is hearsay not within any exception.

B. No, because there is no evidence that the dealer was authorized to speak for the defendant.

C. Yes, as a statement against the defendant's penal interest.

D. Yes, as the defendant's adoption of the dealer's statement.

Explanation:

Under Federal Rule of Evidence 801, an opposing party's statements are **excluded** from the **rule against hearsay** when they are offered against that party. This includes **statements made by another** that an **opposing party has adopted** explicitly (eg, by verbal agreement) or implicitly (eg, by conduct or silence). Adoption by **silence** occurs when:

the silent party **understood** and had the **ability to deny** the statement *and*

a **reasonable person** would have **denied** the statement under similar circumstances if it was untrue.

Here, the defendant implicitly adopted the drug dealer's statement when the defendant shook the officer's hand and remained silent after the introduction. That is because the defendant understood the statement and would have denied it if it were false—just as a reasonable person would have done to avoid criminal liability. Therefore, the officer's testimony as to the defendant's statement is admissible under this hearsay exclusion **(Choice A)**.

(Choice B) Statements made by a person authorized to speak for an opposing party that are offered against that party are also excluded from the rule against hearsay. This exclusion does not apply here since there is no indication that the dealer was authorized to speak for the defendant. But the statement is still admissible as the defendant's adoptive admission.

(Choice C) A statement against penal interest—ie, one that exposes the declarant to criminal liability—is a hearsay *exception* that applies when the declarant is unavailable as a witness. This exception does not apply here because the dealer's statement is *excluded* from the hearsay rule (ie, is nonhearsay) and there is no evidence that the dealer is unavailable as a witness.

Educational objective:

Statements adopted by an opposing party are excluded from the rule against hearsay if they are offered against that party. Adoption by silence occurs when (1) the silent party understood and had the ability to deny the statement and (2) a reasonable person would have done so under similar circumstances if it was untrue.

References

Fed. R. Evid. 801 (nonhearsay statements).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Adoption of Statement



©UWorld

A consumer has sued the manufacturer of a microwave oven for burn injuries allegedly caused by the manufacturer's negligent failure to warn purchasers of the dangers of heating foods in certain types of containers.

The consumer has offered into evidence three letters, all received by the manufacturer before the oven was shipped to the consumer, in which customers had complained of serious burns under circumstances similar to those in the consumer's case. The manufacturer has objected to the letters on the grounds of hearsay and, in the alternative, has asked for a limiting instruction directing that the letters be considered not for the truth of the assertions contained in them but only regarding the issue of notice.

How should the court respond?

A. The court should overrule the objection and deny the request for a limiting instruction.

B. The court should overrule the objection and give the limiting instruction.

C. The court should overrule the objection but allow only that the letters be read to the jury, not received as exhibits.

D. The court should sustain the objection and treat the request for a limiting instruction as moot.

Explanation:

An **out-of-court statement** is only **hearsay** if it is **offered for the truth** of the matter asserted therein. Therefore, an out-of-court statement offered for some **other relevant purpose** is **not barred** by the hearsay rule. However, upon a timely request by the opposing party, the **court *must***:

limit the admissibility of that statement to its nonhearsay purpose *and*

instruct the jury accordingly—eg, "the evidence may be considered not for the truth of the assertions contained in them but only regarding the issue of notice."

Here, the consumer has offered three letters (out-of-court statements) in which customers complained of serious burns under circumstances like those in this negligent failure to warn case. Since the purpose of these letters is to show that the manufacturer had notice of the purported injuries—not to prove that it actually caused them (truth of the matter asserted)—the letters are *not* hearsay. Therefore, the manufacturer's hearsay objection should be overruled **(Choice D)**. But the court must give the limiting instruction requested by the manufacturer **(Choice A)**.

(Choice C) If the letters are admissible for a nonhearsay purpose, there is no rule limiting *how* they may be admitted—eg, through testimony, as exhibits.

Educational objective:

The hearsay rule does not apply to out-of-court statements offered for some relevant purpose other than proving the truth of the matter asserted therein. But the court, upon timely request, must limit the statement to its nonhearsay use and instruct the jury accordingly.

References

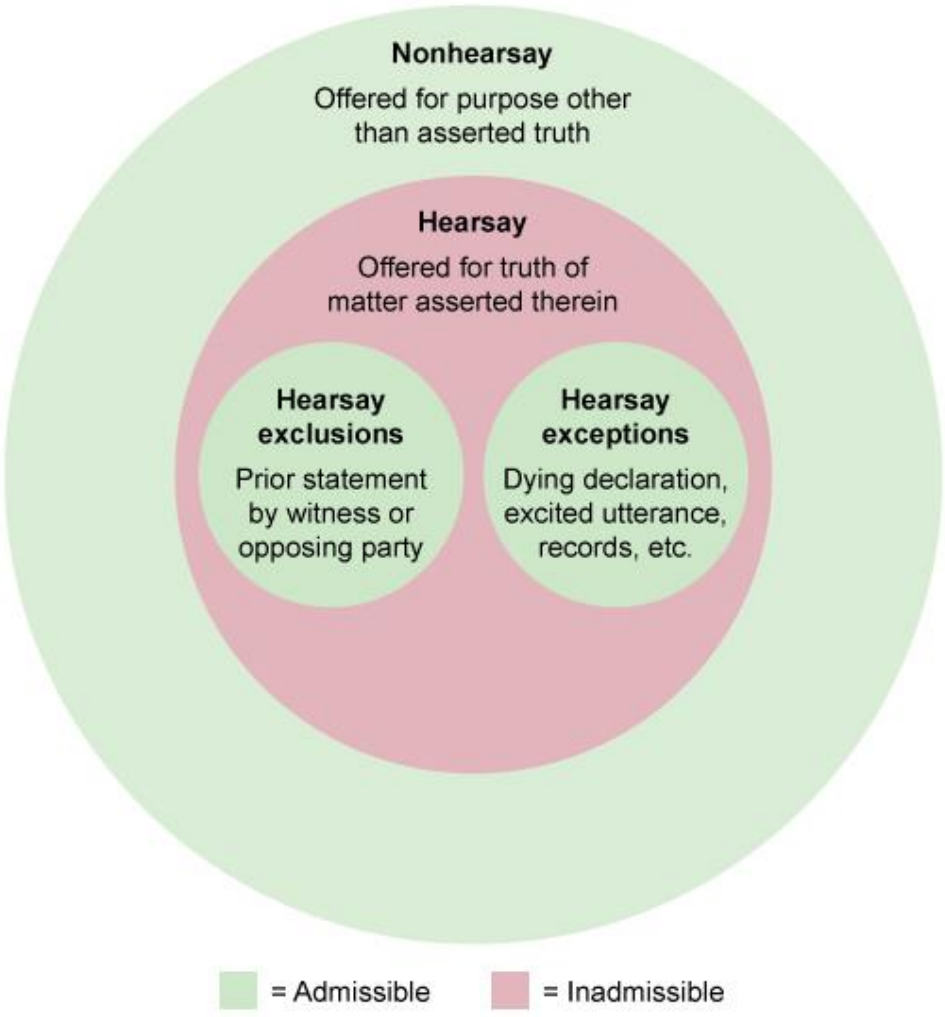
Fed. R. Evid. 801(c) (definition of hearsay).

Fed. R. Evid. 105 (limiting use of evidence to its admissible purposes).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of out-of-court statements



©UWorld

Plaintiff, a management trainee, brought a sex discrimination lawsuit against her employer for wrongful termination of her employment. At trial, the plaintiff is prepared to testify that a janitor at the company told her that he had heard her supervisor say to other male coworkers about her, "Make it hard for her. Maybe she'll go home where she belongs."

Is the plaintiff's proposed testimony admissible?

A. No, because the janitor's statement is hearsay not within any exception.

B. No, because the statements of both the janitor and the supervisor are hearsay not within any exception.

C. Yes, because the janitor's statement is a present sense impression, and the supervisor's statement is a statement of his then-existing state of mind.

D. Yes, because the statements of both the janitor and the supervisor are statements concerning a matter within the scope of their employment.

Explanation:

Under the **rule against hearsay**, out-of-court statements offered for the truth of the matter asserted therein are generally inadmissible. And when testimony consists of **double hearsay**—ie, a hearsay statement contained within another hearsay statement—**each statement** must be **independently admissible** before a jury can consider that testimony. This requires that *both* statements fall within a:

hearsay **exclusion**—eg, a statement made by the opposing party's employee within the scope of employment and offered against the opposing party *or*

hearsay **exception**—eg, a statement describing an event or condition made while or immediately after the declarant perceived it (ie, a present sense impression).

Here, the plaintiff seeks to testify about the janitor's statement regarding the supervisor's statement. Both out-of-court statements are being offered for their truth. But since the *supervisor's* statement was made within the scope of his employment and is being offered against the employer (a party-opponent), it is excluded from the hearsay rule **(Choice B)**.

However, the *janitor's* out-of-court statement was made *outside* the scope of his employment because the statement was not relevant to his work duties **(Choice D)**. Therefore, it does not fall within this hearsay exclusion (or any other exclusion). And the statement is not a present sense impression because it was not made while or immediately after the janitor heard the supervisor **(Choice C)**. And since the statement does not fall within any other hearsay exception, the plaintiff's proposed testimony is inadmissible.

Educational objective:

Hearsay within hearsay (ie, double hearsay) is inadmissible unless *both* statements fall under a hearsay exclusion or hearsay exception.

References

Fed. R. Evid. 805 (hearsay within hearsay).

Fed. R. Evid. 803–04 (hearsay exceptions).

Fed. R. Evid. 801 (hearsay exclusions).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Hearsay within hearsay
(FRE 805)

Woman's statement is hearsay



Witness's statement is hearsay within hearsay



FRE = Federal Rules of Evidence

©UWorld

In a civil trial for professional malpractice, the plaintiff sought to show that the defendant, an engineer, had designed the plaintiff's flour mill with inadequate power. The plaintiff called an expert witness who based his testimony solely on his own professional experience but also asserted, when asked, that a certain book on milling systems was a reliable treatise in the field and consistent with his views.

On cross-examination, the defendant asked the witness whether he and the treatise were ever wrong. The witness answered, "Nobody's perfect." The defendant asked no further questions. The defendant later called his own expert witness and asked, "Do you accept the book on milling systems as reliable?" The witness said, "It once was, but it is now badly out of date." The plaintiff requested that the jury be allowed to examine the book and judge for itself the book's reliability.

Should the court allow the jury to examine the book?

A. No, because the jury may consider only passages read to it by counsel or by a witness.
B. No, because the plaintiff's expert did not rely on the treatise in his testimony but on his own experience.
C. Yes, because an expert has testified that the treatise is reliable.
D. Yes, because the jury is the judge of the weight and credibility to be accorded both written and oral evidence.

Explanation:

An out-of-court statement is hearsay when offered to prove the truth of the matter asserted therein. Such statements are generally inadmissible. However, statements in a **learned treatise**, periodical, or pamphlet are **excepted** from the **rule against hearsay** and are admissible for their truth when:

the statements are **called to the attention** of, or relied on by, an **expert witness** during examination *and*

the publication is **established** as a reasonably **reliable authority** by a **party's expert** or by judicial notice.

Expert testimony that a treatise is a reliable authority lays a foundation for admitting the statements therein. But those statements may only be **read into evidence**, so the treatise itself may not be offered as an exhibit.

Here, the plaintiff's expert witness asserted, when asked on direct examination, that the book on milling systems was a reliable treatise in the field. And though the expert did not rely on the book during his testimony, his assertion is sufficient to establish it as reliable and admissible under the learned treatise hearsay exception **(Choice B)**. But since the jury may only consider passages *read* to it by counsel or a witness, the court may not allow the jury to *examine* the book itself **(Choice C)**.

(Choice D) A jury assesses the weight and credibility of evidence only *after* it has been admitted. And here, the jury may not examine the book itself because it is inadmissible.

Educational objective:

Statements in a publication (eg, learned treatise) may be read into evidence if they are (1) called to the attention of, or relied on by, an expert witness during examination and (2) the publication is established as a reliable authority by any party's expert or by judicial notice. However, the publication itself may not be offered as an exhibit.

References

Fed. R. Evid. 803(18) (hearsay exception – statements in learned treatises).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Statements in learned treatises hearsay exception
(FRE 803(18))

The beneficiary of a decedent's life insurance policy has sued the life insurance company for the proceeds of the policy. At issue is the date when the decedent first experienced the heart problems that led to his death.

The decedent's primary care physician has testified at trial that the decedent had a routine checkup on February 15. The physician then identifies a photocopy of a questionnaire, provided by the physician and completed by the decedent on that date, in which the decedent wrote: "Yesterday afternoon I broke into a big sweat and my chest hurt for a while." The beneficiary now offers the photocopy in evidence.

Should the court admit the photocopy?

A. No, because the original questionnaire has not been shown to be unavailable.

B. No, because the statement related to past rather than present symptoms.

C. Yes, as a business record.

D. Yes, as a statement for the purpose of obtaining medical treatment.

Explanation:

Statement made for medical diagnosis or treatment

(FRE 803(4))

Hearsay exception for statement by declarant (available or not) that is:

made for & reasonably pertinent to medical diagnosis or treatment *and*
describes declarant's:
medical history
past or present symptoms or sensations *or*
inception or general cause of symptoms
FRE = Federal Rule of Evidence.

Under the **rule against hearsay**, an out-of-court statement (eg, a writing) is presumed unreliable and is generally inadmissible when offered to prove the truth of a matter asserted therein. One **exception** to this rule applies to statements that:

are **made for** and reasonably pertinent to **medical diagnosis or treatment** *and*

describe the declarant's **medical history**, past or present **symptoms**, or the **inception or general cause** of those symptoms **(Choice B)**.

Such statements are deemed reliable because patients have an incentive to be truthful in order to receive proper medical care.

Here, the decedent noted his physical symptoms in the physician's medical questionnaire. And the decedent's statement about his sweating and chest pains was clearly made to obtain medical diagnosis and treatment. Therefore, the *questionnaire* is admissible as a statement made for this purpose. And under the best evidence rule, a duplicate is generally admissible to the same extent as the original writing—regardless of whether the original is available **(Choice A)**. Therefore, the *photocopy* of the questionnaire is admissible.

(Choice C) For a record to be admissible under the business records hearsay exception, the record must have been made and kept as a regular practice in the course of regularly conducted business activities. Here, the record was made by the decedent—not the physician (or other hospital employee) as a regular practice in the regular course of medical activities. As a result, this exception does not apply.

Educational objective:

One exception to the hearsay rule applies to statements that (1) were made for and reasonably pertinent to medical diagnosis or treatment and (2) described the declarant's medical history, past or present symptoms, or their inception or general cause.

References

Fed. R. Evid. 803(4) (statement made for medical diagnosis or treatment).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In an arson prosecution, the government seeks to rebut the defendant's alibi that he was in a jail in another state at the time of the fire. The government calls a witness to testify that he diligently searched through all the records of the jail and found no record of the defendant having been incarcerated there during the time the fire occurred.

Is the witness's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because the records themselves must be produced.

C. Yes, as a summary of voluminous documents.

D. Yes, as evidence of absence of an entry from a public record.

Explanation:

Hearsay exceptions for public records

Existing public records	Records or statements of public office/agency admissible if they set forth:
	activities of office or agency
(FRE 803(8))	matters observed pursuant to legal duty (excluding police observations in criminal cases) OR
	factual findings from legal investigation if offered in civil case or against government in criminal case
Absence of public records	Evidence that diligent search failed to locate public record or statement admissible if:
(FRE 803(10))	introduced through testimony or self-authenticating evidence certified under FRE 902 AND
	in criminal cases, prosecutor gives written notice of intent to offer certification 14 days before trial & defendant does not object in writing within 7 days of receiving notice

FRE = Federal Rule of Evidence.

The **rule against hearsay** bars the admission of out-of-court statements (eg, a writing) offered to prove the truth of the matter asserted therein. One **exception** to this rule applies to the ***absence* of public records**, where evidence that a **diligent search** failed to locate a **public record** is admissible to prove that (1) a record **does not exist** OR (2) a matter regularly kept in public records **did not occur**. This evidence can be introduced through witness testimony or self-authenticating evidence certified under Federal Rule of Evidence (FRE) 902.

Here, the witness seeks to testify that he diligently searched the jail records and found no record of the defendant being incarcerated at the time of the fire. Since incarceration is regularly recorded in public records, this witness testimony falls within the hearsay exception for the absence of public records **(Choice A)**. As a result, it can be used to prove that the defendant's incarceration did not occur.

(Choice B) A party need not produce the records themselves to offer testimony that a search of public records failed to disclose a particular entry therein. Therefore, the failure to produce the records is not a basis to exclude the witness's testimony.

(Choice C) Under FRE 1006, a party may use a summary, chart, or calculation to prove the content of voluminous writings that are otherwise admissible. But this rule does not apply here because the witness is seeking to testify to the *absence* of an entry from the jail records—not to *summarize* those records.

Educational objective:

Under the absence of public records hearsay exception, evidence that a diligent search failed to locate a public record is admissible to prove that (1) a record does not exist or (2) a matter regularly kept in public records did not occur.

References

Fed. R. Evid. 803(10) (hearsay exception for absent public records).

Fed. R. Evid. 902(1) (self-authenticating evidence).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for theft of a used car that he took for a test drive and did not return. He was arrested in the car two days later. In his defense, the defendant has testified that he had no intention of keeping the car but got caught up in marital problems and simply delayed returning it. The defendant calls a witness to testify that the defendant told him, during the two days, "I'm going to return this car as soon as I work things out with my wife."

Is the witness's testimony admissible?

A. No, because it is a self-serving statement by an accused.

B. No, because it is hearsay not within any exception.

C. Yes, as a prior consistent statement of the defendant.

D. Yes, as a statement by the defendant of his then-existing state of mind.

Explanation:

Under the rule against hearsay, testimony regarding an out-of-court statement is generally inadmissible to prove the truth of the matter asserted in that statement. But such testimony is admissible if the statement falls under an exception to the hearsay rule. One **hearsay exception** applies to statements concerning the declarant's then-existing state of mind (eg, motive, intent, plan) or emotional/physical condition (eg, mental feeling, pain, bodily health).

Here, the witness seeks to testify that the defendant told him, "I'm going to return this car as soon as I work things out with my wife." This out-of-court statement is hearsay since it is offered to prove the truth of the matter asserted—ie, that the defendant intended to return the car once he dealt with his marital issues. But since the statement concerns the defendant's *intent*, it is admissible under the then-existing state of mind exception to the rule against hearsay **(Choice B)**.

(Choice A) Statements by a party-opponent are excluded from the hearsay rule (ie, nonhearsay) if the statement is offered *against* that party. And though this does not apply to self-serving statements that *favor* the party-opponent, those statements may still be admissible if they fall under a hearsay exception (as seen here).

(Choice C) A witness's out-of-court statement is nonhearsay if it is (1) consistent with the witness's present testimony and (2) used to support the witness's credibility *after* it has been attacked. The defendant's statement does not fall under this hearsay exclusion because there is no indication that his credibility has been attacked.

Educational objective:

Statements regarding a declarant's then-existing state of mind (eg, motive, intent, plan) or emotional/physical condition (eg, mental feeling, pain, bodily health) are excepted from the rule against hearsay.

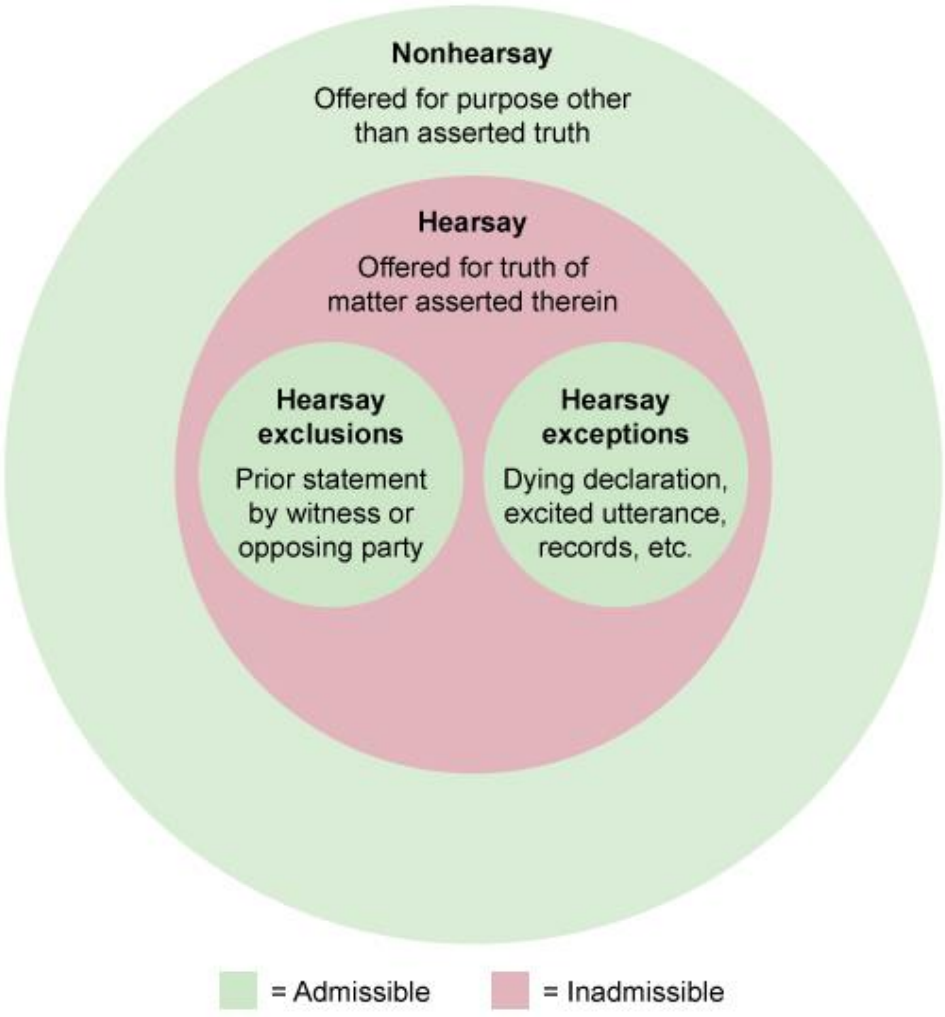
References

Fed. R. Evid. 803(3) (hearsay exception for a declarant's then-existing state of mind).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of out-of-court statements



©UWorld

A hotel sued a motel for infringement of the hotel's trade name. To establish a likelihood of name confusion, the hotel offers a series of memoranda which it had asked its employees to prepare at the end of each day listing instances during the day in which telephone callers, cab drivers, customers, and others had confused the two names.

Are the memoranda admissible?

A. No, because they are hearsay not within any exception.

B. No, because they are more unfairly prejudicial and confusing than probative.

C. Yes, because they are past recollection recorded.

D. Yes, because they are records of regularly conducted business activity.

Explanation:

Hearsay is an out-of-court statement (eg, the memoranda) offered to prove the truth of the matter asserted therein (eg, that the motel was often confused with the hotel). Such statements are inadmissible unless excluded or excepted from the rule against hearsay. One **exception** raised here applies to **records of regularly conducted business activity**—ie, business records that are:

made **at or near the time** of the recorded event (or act, condition, opinion, diagnosis)
made by or based on information from someone with **personal knowledge** of that event
and
made and kept as a **regular practice** in the course of regularly conducted business activities.

But records made in preparation for litigation do not fall under this exception. And since the hotel created the memoranda to later establish a likelihood of name confusion at trial, this exception is inapplicable **(Choice D)**.

Another hearsay exception raised here applies to **past recollection recorded** (ie, recorded recollection). Under this exception, a record may be **read into evidence** if:

a witness **once knew** the recorded information **but cannot recall** it at trial
the witness **made or adopted** the record **when the matter was fresh** in his/her mind *and*
the record **accurately** reflects the witness's personal knowledge at the time it was made.

Here, there are no facts to support the above requirements, so this exception is also inapplicable **(Choice C)**. And since the memoranda are not otherwise excluded or excepted from hearsay, they are inadmissible.

(Choice B) Relevant evidence should be excluded if its probative value is substantially outweighed by certain dangers—including unfair prejudice and confusing the issues. Here, the memoranda are highly probative since they concern the central issue in the case (name confusion) and pose no danger of unfair prejudice or confusion. But the memoranda remain inadmissible as hearsay not within any exception or exclusion.

Educational objective:

Records made in anticipation of litigation fall outside the business records exception to the hearsay rule. And a record may not be admitted under the recorded recollection exception unless a witness who once knew the recorded information cannot recall it at trial.

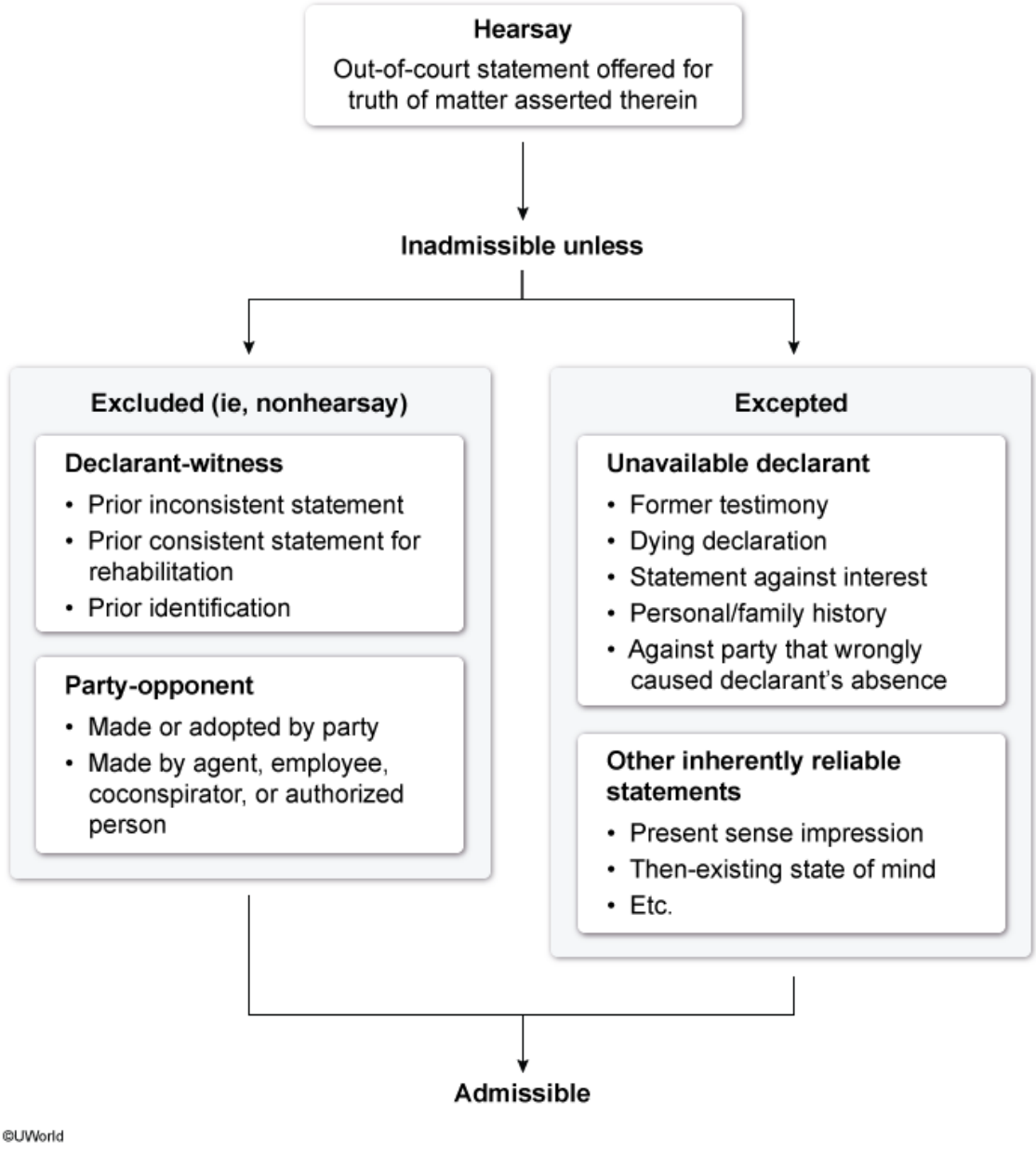
References

Fed. R. Evid. 803(5) (hearsay exception – recorded recollection).

Fed. R. Evid. 803(6) (hearsay exception – business records).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.



A plaintiff sued his insurance company for the full loss of his banquet hall by fire. The insurance company defended under a provision of the policy limiting liability to 50 percent if "flammable materials not essential to the operation of the business [were] stored on the premises and cause[d] a fire."

The insurance company called the keeper of the city fire inspection records to identify a report prepared and filed by the fire marshal as required by law, indicating that shortly before the fire, the fire marshal had cited the plaintiff for storing gasoline at the banquet hall.

Is the report admissible?

A. No, because it is hearsay not within any exception.

B. No, because the proceeding is civil, rather than criminal.

C. Yes, as a public record describing matters observed as to which there was a duty to report.

D. Yes, as a record of regularly conducted activity, provided that the fire marshal is unavailable.

Explanation:

A written out-of-court statement or record offered for the truth of the matter asserted in the writing is **hearsay** and generally inadmissible unless it falls within a hearsay exception. A written statement of a public office falls within the **public records exception** to the hearsay rule if it records:

activities of the public office or agency (eg, fire marshal)

matters observed pursuant to a **legal duty to report**, excluding observations of law-enforcement personnel in criminal cases *or*

factual findings from a legally authorized investigation offered (1) in a civil case or (2) against the government in a criminal case.

Here, the fire marshal's report is hearsay because it was made before this lawsuit and is being offered to prove that the plaintiff stored gasoline in his banquet hall. But the fire marshal is required by law to report citations made while inspecting the premises and file them in the city fire inspection agency's records. Therefore, the report is admissible* under the hearsay exception for public records **(Choice A)**.

**Here, the testimony of the keeper of the city fire inspection records is sufficient to authenticate the report—ie, to prove it is what it is claimed to be.*

(Choice B) Public records are more broadly admissible in civil cases than in criminal cases—eg, observations of law-enforcement personnel are only admissible in civil cases. And the fire marshal's report is admissible in this civil action under the public records hearsay exception.

(Choice D) The fire marshal's report would fall under the business records hearsay exception if it was (1) made at or near the time of the recorded event, (2) based on personal knowledge, and (3) made and kept as a regular practice. But this exception would apply *regardless* of the fire marshal's availability.

Educational objective:

The public records hearsay exception applies to records of (1) a public agency's own activities (2) matters reported pursuant to a legal duty—but *not* observations of law-enforcement in criminal cases—or (3) factual findings from a legally authorized investigation offered in a civil case or against the government in a criminal case.

References

Fed. R. Evid. 803(8) (public records).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissible public records
(FRE 803(8))

Matters reported as legal duty



Legally authorized investigation



Activities of public agency



FRE = Federal Rule of Evidence

©UWorld

A woman sued a man for damages for the death of her husband resulting from an automobile collision. At trial, the man calls the husband's doctor to testify that the day before his death, the husband, in great pain, said, "It was my own fault; there's nobody to blame but me."

Under which hearsay exception should the doctor's testimony be admitted?

A. The dying declaration exception.

B. The excited utterance exception.

C. The statement against interest exception.

D. The then-existing state of mind exception.

Explanation:

Common hearsay exceptions

Declarant unavailable	Former testimony
	Dying declaration
	Statement against interest
	Statement of personal or family history
	Statement offered against party that wrongfully caused declarant's unavailability
Declarant's availability irrelevant	Present sense impression
	Excited utterance
	Mental state or physical condition
	Medical diagnosis or treatment
	Recorded recollection
	Business or public records
	Learned treatises, periodicals, or pamphlets
	Judgment of previous conviction
	Residual (catch-all) exception

The **statement against interest** exception to the rule against hearsay only applies when the **declarant is** unavailable **as a witness**. Additionally, the hearsay statement must be one that a reasonable person in the declarant's position would have made only if that person believed the statement to be true because it:

was contrary to the declarant's **proprietary** (ie, ownership) or **pecuniary** (ie, monetary) **interest**

tended to **invalidate the declarant's claim** against someone else *or*

exposed the declarant to **civil or criminal liability**.

Here, the husband is unavailable as a witness because he is deceased. And his hearsay statement is one that a reasonable person in his position would have made only if that person believed it to be true because—at a minimum—it exposed the husband to civil liability for the accident. Therefore, the statement is admissible under the statement against interest exception.

(Choice A) The dying declaration exception applies to statements that (1) were made while an unavailable declarant believed his/her death was imminent and (2) concerned the circumstances of that impending death. This exception does not apply here because, though the husband was in great pain, there is no indication that he believed his death was imminent.

(Choice B) The excited utterance exception applies to statements that (1) relate to a startling event or condition and (2) were made while the declarant was still under the stress of excitement caused by that event or condition—not seen here.

(Choice D) The then-existing state of mind exception applies to statements about the declarant's motive, intent, or plan—eg, a plot to sue over a car accident. But this exception does not apply to mere statements of memory or belief—eg, the husband's reflection on the car accident—unless they relate to the declarant's will (not seen here).

Educational objective:

The statement against interest exception applies to hearsay statements that (1) are contrary to the *unavailable* declarant's proprietary or pecuniary interest, (2) tend to invalidate the declarant's claim against someone else, or (3) expose the declarant to civil or criminal liability.

References

Fed. R. Evid. 804 (hearsay exceptions for unavailable declarants).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial in federal court for bank robbery. Before the police had any suspects, a police officer interviewed an eyewitness at the police station and showed her a "mug book" containing dozens of photographs. The eyewitness identified the defendant's photograph as that of the robber.

At trial, the eyewitness surprises the prosecutor by testifying that she is unable to identify the defendant as the robber. The prosecutor calls the officer to testify that the eyewitness identified the defendant from the photograph in the police station. The eyewitness remains present in the courthouse and can be recalled.

Is the officer's testimony admissible?

A. No, because the eyewitness was unable to identify the defendant at trial.

B. No, because the eyewitness's testimony has disappointed the prosecutor but has not affirmatively harmed the prosecution's case.

C. Yes, because the eyewitness's statement of identification as reported by the officer is not excluded by the hearsay rule.

D. Yes, because the hearsay rule does not exclude out-of-court statements if a declarant testifies and is available for cross-examination.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement that is offered to prove the truth of the matter asserted therein and is generally inadmissible under Federal Rule of Evidence 802. But an out-of-court statement is **excluded** from the hearsay rule and admissible as substantive evidence if (1) the **declarant testifies** and is **subject to cross-examination** at trial AND (2) the declarant's statement:

is *inconsistent* with the declarant's testimony and was given under penalty of perjury at a trial, hearing, deposition, or other proceeding

is *consistent* with the declarant's testimony and is offered to (1) rebut an allegation that the declarant recently fabricated that testimony or has testified due to recent improper influence or (2) rehabilitate the declarant's credibility as a witness *or*

identifies a person as someone the declarant **perceived earlier**.

Here, the eyewitness identified the defendant's photograph as that of the robber during an interview at the police station but was unable to identify the defendant as the robber while testifying at trial. As a result, the prosecutor called an officer to testify as to the witness's earlier statement identifying the defendant. Since that statement identifies a person as

someone the eyewitness perceived earlier and the eyewitness can be recalled for cross-examination, the statement is not excluded by the hearsay rule **(Choices A & D)**.

(Choice B) In the past, a party was not allowed to impeach its own witness unless the witness's testimony surprised the party and affirmatively damaged the party's case (the affirmative-damage rule). But this rule is no longer used. And even if it were, it would not apply here because the officer's testimony is being offered to prove the defendant's guilt—not to impeach the eyewitness's testimony.

Educational objective:

A declarant's out-of-court statement is "nonhearsay" when (1) he/she testifies at trial and is subject to cross-examination and (2) the statement identifies a person as someone the declarant perceived earlier.

References

Fed. R. Evid. 801(d)(1) (declarant-witness's prior statement).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man and his friend were charged with conspiracy to dispose of a stolen diamond necklace. The friend jumped bail and cannot be found.

Proceeding to trial against the man alone, the prosecutor calls a witness, the friend's sister, to testify that the friend confided to her that "[The man] said I still owe him some of the money from selling that necklace."

Is the sister's testimony admissible?

A. No, because the friend is not shown to have firsthand knowledge that the necklace was stolen.

B. No, because the friend's statement was not in furtherance of the conspiracy.

C. Yes, as evidence of a statement against interest by the friend.

D. Yes, as evidence of a statement by party-opponent by the friend.

Explanation:

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is **inadmissible unless** it falls within a hearsay exclusion or exception. One **hearsay exclusion** raised here applies to statements by a party-opponent that are offered against that party—eg, the *man's* statement that the friend owed the man money. But since the man's statement is contained within the friend's hearsay statement (ie, hearsay within hearsay), neither statement is admissible unless the friend's statement is *also* admissible.

The friend's statement is not excluded from hearsay because he is not a party-opponent or testifying witness **(Choice D)**. However, his statement may fall within the **hearsay exception** for statements against interest. This exception applies to statements made by an unavailable declarant that a reasonable person would only have made if it were true (eg, because it exposes one to civil or criminal liability).

Here, the friend is unavailable because he jumped bail. And his statement—"[the man] said I still owe him some of the money from selling that necklace"—exposes him to criminal liability for conspiring with the man. As a result, it falls within this hearsay exception and the sister's testimony about the friend's statement (and the man's statement contained therein) is admissible.

(Choice A) Proof of firsthand knowledge is not necessary to admit the friend's statement under the statement against interest exception (or any other exception) to the hearsay rule.

(Choice B) The statement was not in furtherance of the conspiracy—ie, an agreement between two or more persons to commit a crime (eg, sell stolen property). But the statement still exposed the friend to criminal liability for conspiracy because it references an agreement to commit a crime. Therefore, it is a statement against interest.

Educational objective:

Out-of-court statements offered for the truth asserted therein are only admissible if they fall within a hearsay exclusion or exception. And if such a statement is contained within another (ie, hearsay within hearsay), then neither statement is admissible unless both are excluded or excepted from hearsay.

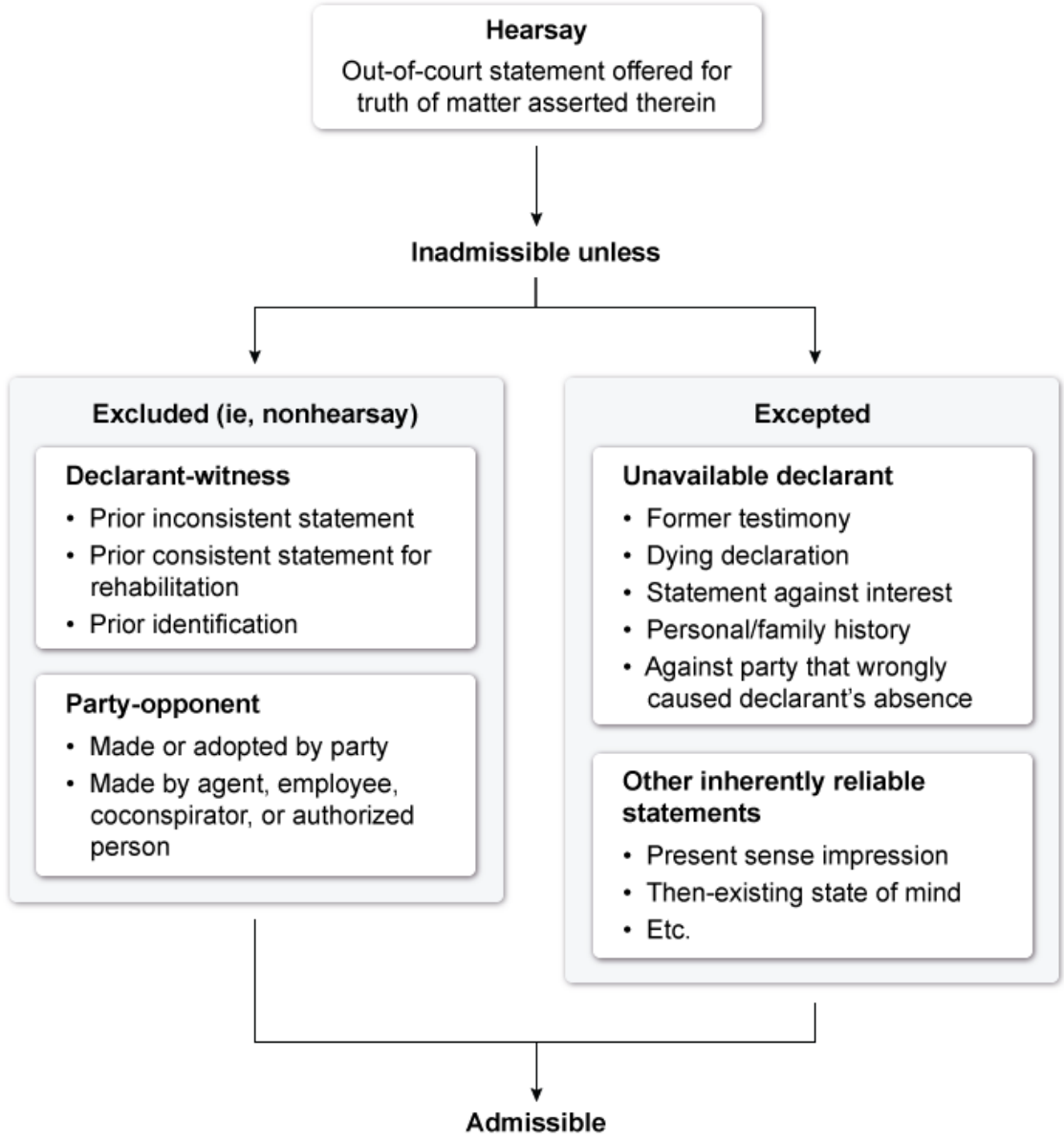
References

Fed. R. Evid. 805 (hearsay within hearsay).

Fed. R. Evid. 804(b)(3) (hearsay exceptions for statements against interest).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.


Hearsay
Out-of-court statement offered for truth of matter asserted therein
Inadmissible unless
Excluded (ie, nonhearsay)
Declarant-witness
• Prior inconsistent statement
• Prior consistent statement for rehabilitation
• Prior identification
Party-opponent
• Made or adopted by party
• Made by agent, employee, coconspirator, or authorized person
Excepted
Unavailable declarant
• Former testimony
• Dying declaration
• Statement against interest
• Personal/family history
• Against party that wrongly caused declarant's absence
Other inherently reliable statements
• Present sense impression
• Then-existing state of mind
• Etc.
Admissible

©UWorld

In a defendant's prosecution for assault, a witness is called to testify that the victim had complained to the witness that the defendant was the assailant.

When is the witness's testimony most likely to be admitted?

A. The witness is a doctor whom the victim consulted for treatment.
B. The witness is a minister whom the victim consulted for counseling.
C. The witness is a police officer whom the victim called on instructions from her husband.
D. The witness is the victim's husband whom she telephoned immediately after the event.

Explanation:

Reasoning for common hearsay exceptions

Exception	Reason for reliability
Present sense impression Excited utterance	No time to fabricate statement
Past recollection recorded	Records made when fresh in person's mind
Then-existing mental/physical condition	Persons can perceive their own mental or physical state
Statement for medical diagnosis/treatment	Self-interest creates motive for truth
Business & public records Documents & statements on property interest Certificates of birth, marriage, baptism	Accuracy verified to preserve legal rights & reputation

Hearsay is an out-of-court statement offered for the truth of the matter asserted therein. This type of statement is presumed *unreliable* and is therefore generally inadmissible. But certain statements are **excepted** from the rule against hearsay because they are inherently *reliable* (eg, because they would be hard to fabricate). This includes:

excited utterances – statements related to a startling event or condition that are made while the declarant is still under the stress of excitement from the event or condition *and*

present sense impressions – statements describing or *explaining* an event or condition that are made while or immediately after the declarant perceived it.

Here, a witness seeks to testify that the victim had complained to the witness that the defendant was her assailant. This out-of-court statement is hearsay since it is being offered for its truth. But if the witness is the victim's husband—whom she telephoned *immediately after* the assault—the victim's statement likely qualifies as an excited utterance or present sense impression. Therefore, testimony on this statement would most likely be admissible.

(Choice A) Another hearsay exception exists for statements made for and reasonably pertinent to medical diagnosis or treatment that describe the declarant's medical history, symptoms, or their inception or general cause. Therefore, the doctor could testify to the victim's statements about her medical *condition*—but not about the assailant's *identity* (unrelated to the victim's medical care).

(Choices B & C) No hearsay exception exists for out-of-court statements made to clergy (eg, a minister) for the purpose of receiving counsel or for statements made to law enforcement (eg, a police officer).

Educational objective:

Statements excepted from hearsay include statements (1) related to a startling event or condition made while the declarant is still under stress from it (ie, excited utterances) and (2) describing or explaining an event or condition made while or immediately after the declarant perceived it (ie, present sense impressions).

References

Fed. R. Evid. 803(1)-(2) (hearsay exceptions – present sense impression, excited utterance).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged with murder. The defendant has pleaded not guilty, claiming that on the night of the murder, he was visiting a friend in a neighboring town. During the investigation, a detective interviewed the friend. The friend informed the detective that he and his wife hosted a dinner party at their home on the night of the murder. The friend stated that the dinner party was attended by the defendant and the friend's sister. The friend further stated that the defendant became intoxicated at the dinner party, so the friend took the keys to the defendant's vehicle to prevent the defendant from leaving. Soon after the interview with the detective, the friend died.

Prior to trial, the defendant properly notified the prosecution of his intent to introduce the transcript of the friend's unsworn interview with the detective at trial.

Is the transcript of the friend's unsworn interview with the detective admissible?

A. No, because it is hearsay not within any exception.

B. No, because its admission violates the Sixth Amendment confrontation clause.

C. Yes, because the friend is unavailable to testify.

D. Yes, under the residual hearsay exception.

Explanation:

The **rule against hearsay** bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein. However, certain statements are expressly excluded or excepted from the rule. And even when **no specific exception applies**, a hearsay statement is admissible under the **residual or catchall exception** if:

the statement is supported by **sufficient guarantees of trustworthiness**

the statement is **more probative** on the point than any **other evidence obtainable** through **reasonable efforts** *and*

the proponent gives the adverse party **notice of the intent** to offer the statement.

Here, the defendant sought to introduce the deceased friend's hearsay statement. The statement does not fall under any specific hearsay exclusion or exception. And though the defendant notified the prosecution of his intent to introduce the statement, it is not admissible under the residual hearsay exception. That is because testimony regarding the defendant's whereabouts on the night of the murder is reasonably obtainable from other sources—eg, the friend's wife or sister **(Choice D)**. Therefore, the transcript of the friend's unsworn interview is *not* admissible.

(Choice B) The confrontation clause bars admission of a testimonial statement *against* a defendant unless (1) the declarant is unavailable and (2) the defendant had a prior opportunity to cross-examine the declarant. Here, the friend's statement was offered by (not against) the defendant, so the confrontation clause is not implicated.

(Choice C) The friend *is* unavailable since he is deceased. However, his statement must still meet the requirements of a hearsay exclusion or exception to be admissible (not seen here).

Educational objective:

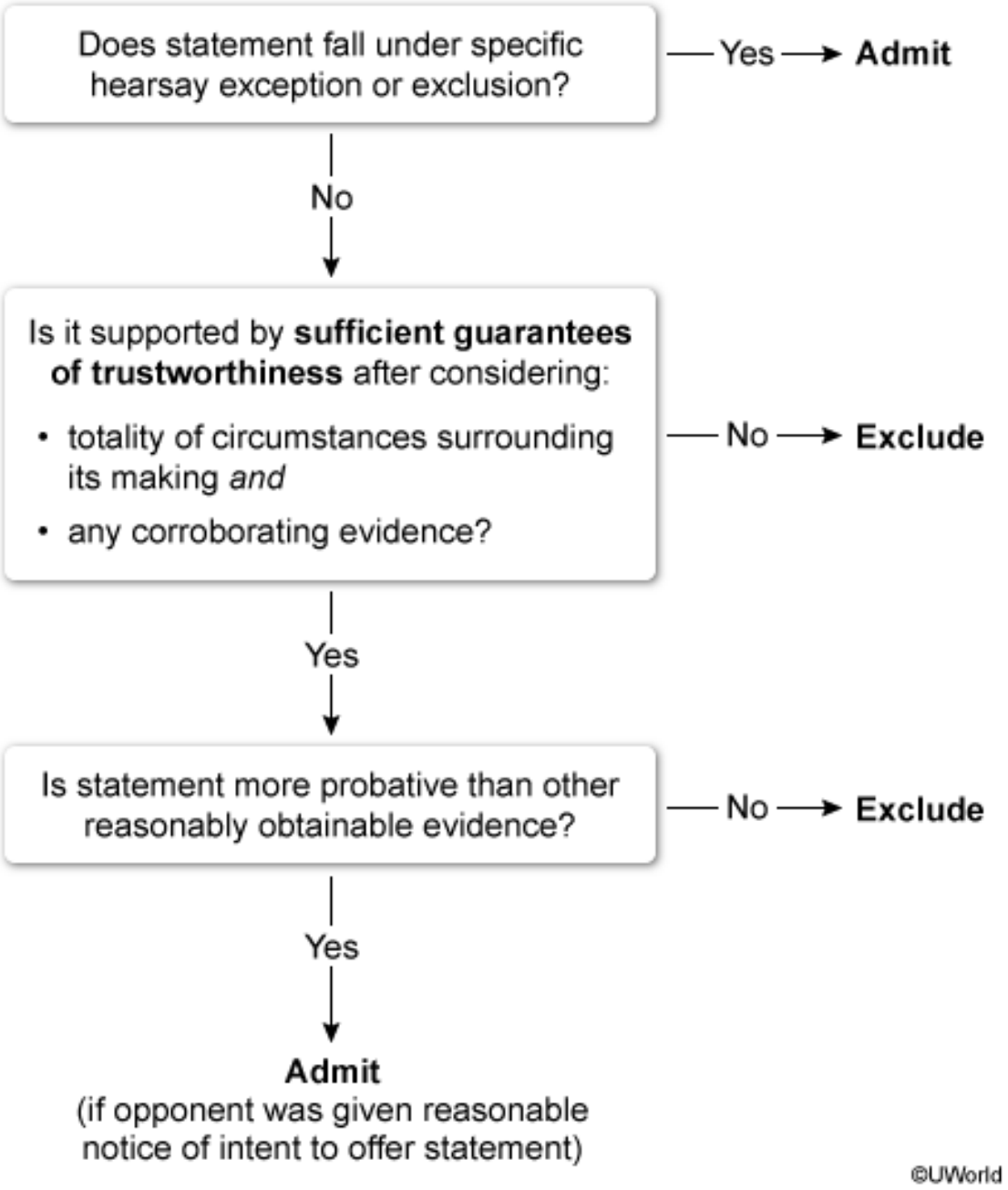
A hearsay statement is admissible under the residual or catchall exception if (1) the statement is supported by sufficient guarantees of trustworthiness, (2) it is more probative on the point than any other evidence obtainable through reasonable efforts, and (3) the proponent gives the adverse party notice of the intent to offer the statement.

References

Fed. R. Evid. 807 (residual hearsay exception).

Copyright © UWorld. All rights reserved.

Residual hearsay exception



©UWorld

In an automobile collision case, the plaintiff introduced evidence that a bystander made an excited utterance that the defendant ran a red light. The defendant called a witness to testify that later the bystander, now deceased, told the witness that the defendant went through a yellow light.

Is the witness's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because the bystander is not available to explain or deny the inconsistency.

C. Yes, as impeachment and as substantive evidence of the color of the light.

D. Yes, but only for the purpose of impeaching the bystander.

Explanation:

Impeachment with inconsistent statements

Type	Use	Methods of introduction
Witness's prior inconsistent statement (FRE 613)	Impeach witness's trial testimony	Examining witness about prior statement Introducing extrinsic evidence if: witness can address & opposing party can question witness about statement *or* justice so requires
Hearsay declarant's inconsistent statement (FRE 806)	Impeach declarant's hearsay statement	Introducing extrinsic evidence regardless of: when inconsistent statement occurred *or* whether declarant had opportunity to address statement

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is *inadmissible* unless it falls within a hearsay exception or exclusion. If the hearsay statement is **admitted**, the **declarant's credibility may be attacked*** with the same methods used to impeach a testifying witness—eg, an **inconsistent statement**. Such a statement may be **used for impeachment** regardless of whether:

it was made before or after the hearsay statement *or*
the declarant had an opportunity to explain or deny the inconsistency **(Choice B)**.
However, the inconsistent statement may **not** be used as **substantive evidence** (ie, for its truth) unless it is also excepted or excluded from the hearsay rule.

Here, the bystander's hearsay statement—that the defendant ran a red light—was admitted as an excited utterance. Therefore, the defendant can offer testimony regarding the bystander's inconsistent statement—that the light was yellow—for the purpose of impeaching the bystander. But that statement is not admissible as substantive evidence of the light's color because it is not excepted or excluded from the hearsay rule **(Choice C)**.

*Once attacked, evidence supporting the declarant's credibility may then be admitted.

(Choice A) The bystander's inconsistent statement is *not* hearsay since it is being used to impeach the bystander—not to prove the truth of the matter asserted (that the light was yellow).

Educational objective:

A hearsay declarant's credibility may be attacked using any method allowed to impeach a testifying witness, including offering evidence of the declarant's inconsistent statement. But that statement may not be used as substantive evidence (ie, for its truth) unless it is also excepted or excluded from the hearsay rule.

References

Fed. R. Evid. 806 (attacking and supporting a declarant's credibility).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At the trial of a contract dispute, the plaintiff has offered to testify to what she heard the defendant say in a private conversation between the two of them, which the plaintiff secretly recorded on an audiotape that she did not offer in evidence.

Is the plaintiff's testimony admissible?

A. No, because of the plaintiff's deception, even if the recording was not illegal.
B. No, because the statement must be proved by introduction of the audiotape itself.
C. Yes, because the original document rule does not apply to audiotapes.
D. Yes, because the plaintiff has personal knowledge of the statement of a party-opponent.

Explanation:

A witness may testify to any **relevant matter** about which he/she has **personal knowledge** so long as that testimony is not excluded by a specific rule, law, or constitutional provision. For example, hearsay—ie, an out-of-court statement offered to prove the truth of the matter asserted therein—is generally inadmissible even if it is relevant. But some out-of-court statements are considered **nonhearsay** and are admissible for their truth. This includes **statements made by** and **offered against a party-opponent**.

Here, the plaintiff sought to testify about what the defendant said in their private conversation. This conversation presumably pertained to the disputed contract, thereby making the defendant's out-of-court statement relevant. And since (1) the plaintiff has personal knowledge about that statement and (2) the statement was made by and is offered against the defendant (nonhearsay), the plaintiff's testimony about the statement is admissible.

(Choice A) A statement by an opposing party is admissible even if it was obtained deceptively—eg, by secretly recording a conversation.

(Choices B & C) The original document (ie, best evidence) rule requires that a party produce an original or reliable duplicate to prove the contents of a writing, photograph, or *recording*. But here, no such original or duplicate is needed since the plaintiff is seeking to testify to her personal knowledge of the defendant's statement—not to what she heard on the audiotape.

Educational objective:

A witness may testify to any relevant matter about which he/she has personal knowledge so long as that testimony is not excluded by a specific rule, law, or constitutional provision (eg, the hearsay rule). And statements made by and offered against an opposing party are considered nonhearsay and, if relevant, are admissible for their truth.

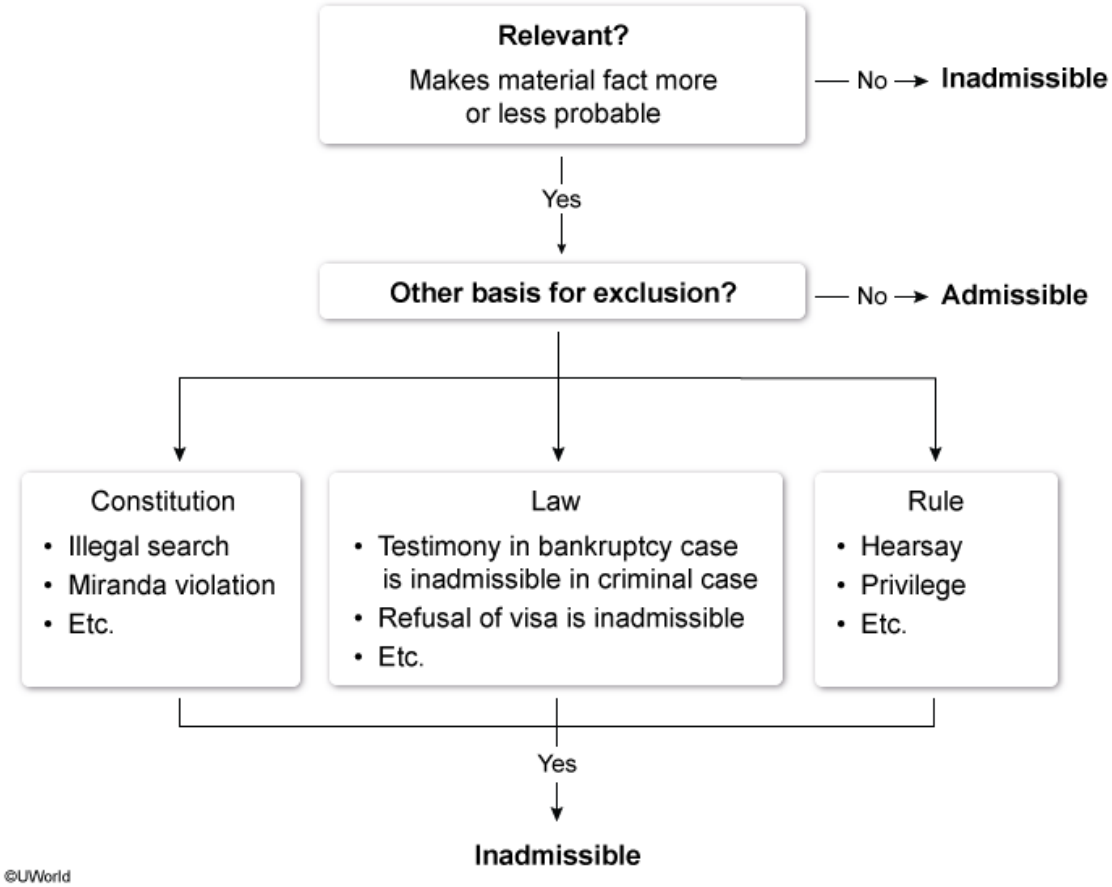
References

Fed. R. Evid. 801 (nonhearsay statements).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Exclusion of relevant evidence
(FRE 402)



©UWorld

A defendant was prosecuted for homicide. He testified that he shot in self-defense. In rebuttal, the prosecution called a police officer who testified that he came to the scene in response to a telephone call from the defendant. The officer offers to testify that he asked, "What is the problem here, sir?" and the defendant replied, "I was cleaning my gun and it went off accidentally."

Is the officer's testimony about the defendant's statement admissible?

A. No, because of the defendant's privilege against self-incrimination.

B. No, because the statement is hearsay not within an exception.

C. Yes, as an excited utterance.

D. Yes, to impeach the defendant and as evidence that he did not act in self-defense.

Explanation:

Witness's prior inconsistent statement

Use	Applicability	Methods of introduction
Impeachment	Always admissible to discredit witness's trial testimony	Examining witness about prior statement
Substantive evidence	Admissible to prove truth only if excluded or excepted from hearsay	Introducing extrinsic evidence if: witness can address & opposing party can question witness about statement *or* justice so requires

A **prior inconsistent statement** is a statement that was made by a witness in the past that is inconsistent with the witness's current testimony. Such statements can be used to **impeach** a witness by showing that the witness is unreliable.* Therefore, the officer's testimony—that the defendant previously claimed that he accidentally shot his gun—can be used to impeach the defendant's testimony that he shot in self-defense.

However, an out-of-court statement can only be used to prove the truth of the matter asserted therein if it falls within an exclusion or exception to the rule against hearsay. One exclusion is for **statements made by** and **offered against** an **opposing party**. Here, the prosecution seeks to admit the defendant's prior out-of-court statement against him. Therefore, it falls under this exclusion and can also be admitted to prove the truth asserted—that the defendant shot his gun accidentally, not in self-defense **(Choice B)**.

*A party need not show or disclose the contents of a prior inconsistent statement to a witness before questioning the witness on the inconsistency. But the party must, on request, show the statement or disclose its contents to an adverse party's attorney.

(Choice A) The Fifth Amendment privilege against self-incrimination applies to custodial interrogations. Here, the defendant was not under arrest or restrained in his freedom of movement (ie, not in custody) when he responded to the officer. Therefore, this privilege does not apply.

(Choice C) An excited utterance is a hearsay exception for statements that relate to an exciting event and were made while the declarant was under the stress of excitement from that event. This exception is inapplicable here since the defendant's statement is not hearsay and even it if was, there is no indication that it was made under the stress of excitement.

Educational objective:

Prior inconsistent statements—ie, statements made by a witness in the past that are inconsistent with the witness's current testimony—can be used to impeach a witness. But these out-of-court statements can only be used to prove the truth of the matter asserted therein if they fall within an exclusion or exception to the hearsay rule.

References

Fed. R. Evid. 801 (nonhearsay statements).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A patient sued a hospital for medical negligence, claiming that a nurse employed by the hospital failed to administer critical medication prescribed by the patient's treating physician during the patient's hospitalization.

At trial, to prove the nurse's failure to administer the prescribed medication, the patient has called the medical records librarian, who has authenticated the hospital's record of the patient's treatment, which contains no entry showing that the medication in question was administered.

Is the hospital record admissible?

A. No, because it is hearsay not within any exception.

B. No, because the nurse's testimony would be the best evidence of her actions in treating the patient.

C. Yes, because, although hearsay, it is a statement against interest by agents of the hospital.

D. Yes, because it is within the hearsay exception covering the absence of entries in business records.

Explanation:

Business records hearsay exception

Existing record	Admissible as substantive evidence if:
(FRE 803(6))	made at or near time of recorded event (or act, opinion, condition, diagnosis)
	made by or based on information from someone with personal knowledge *and*
	made & kept as regular practice in course of regularly conducted business activities
Absence of record	Admissible as substantive evidence if:
	evidence is offered to prove matter did not occur or exist
(FRE 803(7))	record was regularly kept for that kind of matter *and*
	opponent does not establish a lack of trustworthiness

FRE = Federal Rule of Evidence.

An out-of-court statement (eg, hospital record) offered to prove the truth of the matter asserted therein is generally inadmissible under the rule against hearsay. However, evidence that a **matter is *not* included** in a **business record** is **excepted from the hearsay rule** and may be offered as substantive evidence if:

the evidence is offered to **prove that a matter did not occur** or exist

a **record was regularly kept** for a matter of that kind *and*

the opponent does **not** establish a **lack of trustworthiness** for the source of that information.

Here, the authenticated hospital record is hearsay, but it falls within the hearsay exception covering the absence of entries in business records. That is because the missing entry in that record is being used to prove that the administration of medication—a matter that would regularly be recorded by the hospital—did not occur. And since there is no indication that the record is untrustworthy, it is admissible **(Choice A)**.

(Choice B) The best evidence rule requires that an original (or reliable duplicate) of a writing, recording, or photograph be produced to prove its contents. But this rule does not mandate the use of live testimony over a document.

(Choice C) The statement against interest hearsay exception applies to a statement that goes against the declarant's pecuniary, proprietary, or penal interest AND is made by a declarant who is *unavailable* as a witness. Since there is no indication that the nurse is unavailable, this exception does not apply here.

Educational objective:

The hearsay exception for the absence of entries in business records applies when (1) evidence is offered to prove that a matter did not occur or exist, (2) a record was regularly kept for a matter of that kind, and (3) the opponent does not establish a lack of trustworthiness.

References

Fed. R. Evid. 803(6) (business records hearsay exception).

Fed. R. Evid. 803(7) (absence of business records hearsay exception).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A graduate student sued a professor for sexual harassment. The student alleges that the professor repeatedly made unwanted advances during her two years as the professor's teaching assistant. At trial, the professor testified that he and the graduate student were involved in an on-and-off consensual relationship, and that the graduate student's suit has been brought in retaliation for his refusal to recommend her for a prestigious fellowship. On cross-examination, the graduate student's attorney accused the professor of fabricating the relationship to avoid liability for sexual harassment.

The professor seeks to call the university department chair to testify that the professor told the department chair about his relationship with the graduate student 18 months before the graduate student accused him of harassment.

Is the department chair's testimony admissible?

A. No, because a prior consistent statement cannot be used to rehabilitate the professor's character for truthfulness.

B. No, because the testimony is hearsay not within any exception.

C. Yes, because the testimony rebuts a charge of recent fabrication.

D. Yes, because the testimony reports the professor's then-existing state of mind.

Explanation:

Nonhearsay statements by declarant-witness

(FRE 801(d)(1))

Prior statement of identification	Identifies person as someone declarant perceived earlier
Prior *inconsistent* statement	Inconsistent with declarant's current testimony *and* made under penalty of perjury at former proceeding
Prior *consistent* statement	Consistent with declarant's current testimony *and* offered to either: rebut charge of fabrication/improper influence if made before motive arose *or* rehabilitate declarant's credibility when attacked on other grounds

FRE = Federal Rule of Evidence.

Under the hearsay rule, out-of-court statements are not admissible to prove the truth of the matter asserted therein. However, certain statements are **excluded** from this rule and are considered **nonhearsay**. This includes out-of-court statements made by a **declarant** who has **testified** and is **subject to cross-examination** at trial (eg, the professor) if those statements:

identify a person as someone the declarant perceived earlier

are inconsistent with the declarant's current testimony and were made under penalty of perjury at a former proceeding *or*

are **consistent with** the declarant's **current testimony** and offered to **rebut a charge of fabrication** or improper influence OR to rehabilitate the declarant's credibility when attacked on other grounds.

However, a prior consistent statement may only be used to rebut a charge of *recent* fabrication or improper influence if the statement was **made before a motive** for the alleged fabrication or improper influence **arose**.

Here, the professor seeks to introduce his prior *consistent* statement to rebut a charge that he recently fabricated his relationship with the student. This statement to the department chair was made 18 months before the student accused the professor of harassment—before he had motive to fabricate the relationship. Therefore, the department chair's testimony is admissible nonhearsay **(Choice B)**.

(Choice A) The professor's character for truthfulness was not attacked because the graduate student's assertion concerned one instance of dishonesty—not the professor's general propensity for dishonesty. If it had been attacked, a prior consistent statement could not be used to rehabilitate his character for truthfulness because a witness's character may only be supported in the same way it was attacked.*

*A witness's character for truthfulness is attacked by (1) reputation or opinion testimony or (2) specific instances of conduct that are probative of that character. As a result, a party looking to rehabilitate the witness's character for truthfulness must use the same methods.

(Choice D) One hearsay exception applies to statements regarding a declarant's then-existing state of mind. This exception does not apply here because the professor's statement is nonhearsay and does not communicate his emotional, sensory, or physical condition.

Educational objective:

A prior consistent statement is nonhearsay if it (1) was made by a declarant who has testified and is subject to cross-examination, (2) is offered to rebut a charge of fabrication or improper influence, and (3) was made before any motive for fabrication arose.

References

Fed. R. Evid. 801(d)(1) (nonhearsay statements – witness's prior statement).

Copyright © UWorld. All rights reserved.

In a civil action for personal injury, a man alleges that he was beaten up by a bouncer during an altercation in a crowded bar. The bouncer's defense is that he was not the person who hit the man. To corroborate his testimony about the cause of his injuries, the man seeks to introduce, through the hospital records custodian, a notation in a regular medical record made by an emergency room doctor at the hospital where the man was treated for his injuries. The notation is: "Patient says he was attacked by the bouncer at the bar."

Is the notation admissible?

A. No, as hearsay not within any exception.

B. No, unless the doctor who made the record is present at trial and available for cross-examination.

C. Yes, as a statement made for the purpose of medical diagnosis or treatment.

D. Yes, as hearsay within the exception for records of regularly conducted activity.

Explanation:

Common hearsay exceptions

Declarant unavailable	Former testimony
	Dying declaration
	Statement against interest
	Statement of personal or family history
	Statement offered against party that wrongfully caused declarant's unavailability
Declarant's availability irrelevant	Present sense impression
	Excited utterance
	Mental state or physical condition
	Medical diagnosis or treatment
	Recorded recollection
	Business or public records
	Learned treatises, periodicals, or pamphlets
	Judgment of previous conviction
	Residual (catch-all) exception

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein. This type of statement is considered inherently unreliable and therefore is only admissible if it falls within an exclusion or exception to the rule against hearsay. One **exception** raised here applies to **records of regularly conducted activity**—ie, records that are:

made **at or near the time** of the recorded event (or act, condition, opinion, diagnosis)
made by or based on information from someone with **personal knowledge** of that event
and
made and kept as a **regular practice** in the course of regularly conducted business activities.

As a result, this exception would apply to statements in medical records that contain information within the personal knowledge of health care professionals, such as the patient's vital signs or the physician's diagnosis. But statements that merely report how a patient was injured (as seen here) would not fall within this exception **(Choice D)**.

Another hearsay **exception** raised here applies to statements made for **medical diagnosis or treatment**—ie, statements that describe the declarant's medical history, past or present symptoms, or the **inception or general cause of those symptoms**. This exception would apply to statements about *how* a patient was injured—not *who* is responsible for that injury

(as seen in the notation) **(Choice C)**. And since no other hearsay exclusion or exception applies, the notation is inadmissible.

(Choice B) A record of regularly conducted activity is admissible regardless of whether the person who made the record is present at trial and available for cross-examination. So had the notation met this exception, the doctor's presence at trial would be irrelevant.

Educational objective:

Medical records containing information within the personal knowledge of health care professionals fall within the hearsay exception for records of regularly conducted activity. And statements in those records that describe the declarant's medical history, symptoms, or their general cause fall within the hearsay exception for statements made for medical diagnosis or treatment.

References

Fed. R. Evid. 803(4) (hearsay exception for statements made for medical diagnosis or treatment).

Fed. R. Evid. 803(6) (hearsay exception for records of regularly conducted activity).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for bribing a government procurement officer by providing the officer with free vacation facilities. When the defendant was approached by an FBI investigator, the defendant stated that her invitation to the procurement officer to spend his vacation in the defendant's mountain cabin was a favor to a friend, unrelated to his government office. The defendant also said to the investigator that she would reveal some "hot" information on a large-scale fraud in exchange for the investigator's promise to "stop worrying about a little vacation."

Is the investigator's testimony about the defendant's offer to give information admissible?

A. No, because it is hearsay not within any exception.

B. No, because the defendant made the offer in a negotiation for settlement of a criminal investigation.

C. Yes, as a matter observed and reported by the investigator pursuant to a duty imposed by law.

D. Yes, as a statement of an opposing party.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Under the rule against hearsay, out-of-court statements offered to prove the truth of the matter asserted therein are generally inadmissible. But under Federal Rule of Evidence (FRE) 801, some out-of-court statements being offered for their truth are *excluded* from this rule and therefore are nonhearsay. One **hearsay exclusion** applies to **statements made by** and **offered against** an **opposing party**. As a result, the defendant's offer to give information to the FBI investigator is admissible as a statement of an opposing party **(Choice A)**.

(Choice B) Under FRE 408 and 410, statements made during settlement or plea negotiations are generally inadmissible because public policy encourages the settlement of disputes. But for these rules to apply, both parties must intend to enter settlement negotiations (not seen here). Additionally, in a criminal case, the statements must be made to a prosecuting attorney—not a law enforcement agent (as seen here).

(Choice C) The public records *exception* to the hearsay rule applies to a public office's records or statements that set out (1) office activities, (2) matters observed by an office representative while under a legal duty to report, and (3) in a civil case or against the government in a criminal case, factual findings from a legally authorized investigation. But this exception is inapplicable here since the defendant's statement is nonhearsay.

Educational objective:

Statements made by an opposing party that are offered against that party are excluded from the hearsay rule.

References

Fed. R. Evid. 801(d)(2) (opposing party's statement is not hearsay).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In a jurisdiction without a dead man's statute, a man's estate sued the man's neighbor claiming that the neighbor had borrowed from the man $10,000, which had not been repaid as of the man's death. The man was run over by a truck. At the accident scene, while dying from massive injuries, the man told an officer to "make sure my estate collects the $10,000 I loaned to [the neighbor]."

Is the officer's testimony about the man's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, because it is more unfairly prejudicial than probative.

C. Yes, as an excited utterance.

D. Yes, as a statement under belief of impending death.

Explanation:

Hearsay is an out-of-court statement (eg, statement made at the accident scene) offered to prove the truth of the matter asserted therein (eg, that the neighbor owed the man $10,000). Because these statements are inherently unreliable, they are only admissible if they fall within an exclusion or exception to the **rule against hearsay**.

One hearsay exception applies to **excited utterances**—ie, statements relating to an **exciting event or condition** that were made while the declarant was **under the stress** of excitement caused by that event or condition. But here, the man's statement did not relate to the accident (an exciting event), nor was it made under the stress of any such event. Therefore, this exception is inapplicable **(Choice C)**.

Another hearsay exception applies to **dying declarations**—ie, statements made under the **belief of impending death** that relate to the **cause or circumstances** of the declarant's impending death. But here, the man's statement concerned his estate—not the cause of the accident **(Choice D)**. And since no other hearsay exclusion or exception is raised or applies here, the man's hearsay statement is inadmissible.

(Choice B) Evidence should be excluded if its probative value is substantially outweighed by the danger of unfair prejudice—eg, the risk that the jury will decide the case based on pure emotion. Here, the man's statement about the loan is highly probative since it goes to the key issue in dispute. But that probative value is not substantially outweighed by a danger of unfair prejudice, so this is not a basis for excluding the statement.*

*Neither the Federal Rules of Evidence nor this jurisdiction has a dead man's statute—ie, a statute that applies in civil cases and bars the use of testimony from an interested party about communications with a dead party against the dead party. But even if this jurisdiction had such a statute, it would not bar the officer's testimony because he is not an interested party.

Educational objective:

An out-of-court statement may only be offered to prove the truth of the matter asserted therein if it falls within a hearsay exclusion or hearsay exception (eg, excited utterance, dying declaration).

References

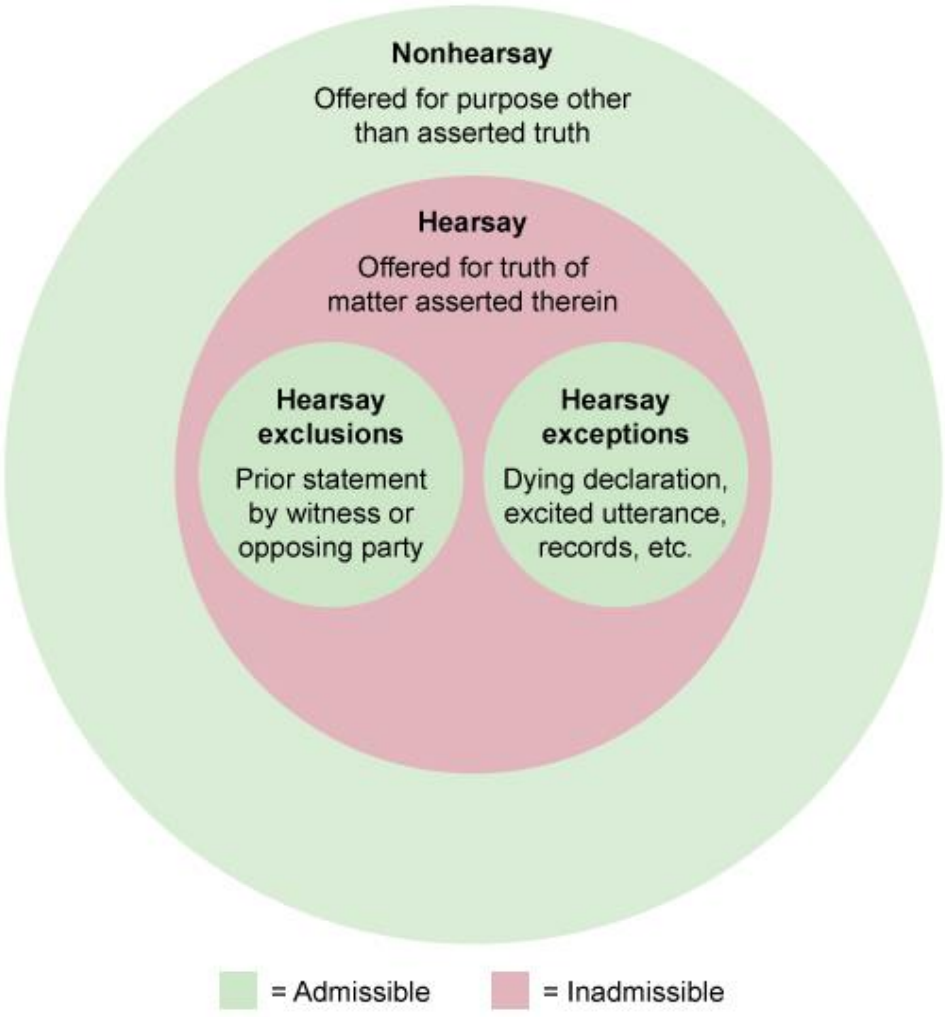
Fed. R. Evid. 803(2) (excited utterances).

Fed. R. Evid. 804(b)(2) (dying declarations).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of out-of-court statements



©UWorld

A plaintiff sued a defendant for wrongful death arising out of a traffic collision between the plaintiff's decedent and the defendant. At trial, the investigating police officer authenticated a voice recording of her shift-end dictation of comments used in preparing the written report of her factual findings. She has testified that the voice recording was accurate when made and that she currently has no clear memory of the details of the investigation.

Is the voice recording admissible as evidence?

A. Yes, under the public records exception to the hearsay rule.

B. Yes, under the recorded recollection exception to the hearsay rule.

C. No, because it is hearsay and is a police report being offered against the defendant in a wrongful death case.

D. No, because the police report itself is the best evidence.

Explanation:

Recorded recollection

(FRE 803(5))

Hearsay exception—regardless of declarant's availability—for records that:

concern matter witness once knew but cannot recall at trial
witness made or adopted when matter was fresh in his/her mind *and*
accurately reflect witness's personal knowledge at time record was made
FRE = Federal Rule of Evidence.

The **hearsay rule** bars the admission of an out-of-court statement (eg, voice recording) offered to prove the truth of the matter asserted therein (eg, factual details of the officer's investigation). But one exception to this rule applies to **recorded recollections**, which allows a record to be read—or, in the case of audio recordings, played—into evidence if it:

concerns a matter that a witness **once knew but cannot recall** at trial
was **made or adopted** by the witness when the matter was **fresh in his/her mind** *and*
accurately reflects the witness's **personal knowledge** at the time it was made.

Here, the officer testified that she has no clear memory of the details of her investigation. But she made the voice recording at the end of her shift—while the matter was fresh in her mind—and she testified that it was accurate when made. Therefore, the recording is admissible under the recorded recollection hearsay exception and can be played to the jury.

(Choice A) Although the officer's *formal* written report is likely admissible under the public records hearsay exception, her *informal* dictated comments made to help her prepare the report are not.

(Choice C) The voice recording is not a police report since it contains only *informal* comments. And if it were a police report, the public records hearsay exception would allow it to be offered in this civil case (or against the government in a criminal case).

(Choice D) The best evidence rule requires that a party produce an original or reliable duplicate to prove the contents of a writing, photograph, or recording. This rule does not apply here since the voice recording is being offered to prove facts as the officer remembered them at the end of her shift—not the police report's contents.

Educational objective:

A record that (1) concerns a matter a witness once knew but cannot recall, (2) the witness made or adopted when the matter was fresh in his/her mind, and (3) accurately reflects the witness's personal knowledge at that time is admissible as a recorded recollection.

References

Fed. R. Evid. 803(5) (recorded recollection).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with perjury for having falsely testified in an earlier civil case that he knew nothing about a business fraud.

In the perjury trial, the defendant again testified that he knew nothing about the business fraud. In rebuttal, the prosecutor has called the defendant's neighbor to testify that after the civil trial was over, the defendant admitted to the neighbor privately that he had known about the fraud.

Is the neighbor's testimony in the perjury trial admissible?

A. No, because it is hearsay not within any exception.

B. No, because it relates to the business fraud and not to the commission of perjury.

C. Yes, both to impeach the defendant's testimony and as substantive evidence of the perjury.

D. Yes, but only to impeach the defendant's testimony.

Explanation:

A **prior inconsistent statement** is a statement that was made by a witness in the past that is inconsistent with the witness's current testimony. These statements may be used to **impeach** that witness. Here, the defendant testified that he knew nothing about the business fraud, but he previously admitted to the neighbor that he had known about the fraud. Therefore, the neighbor's testimony regarding the defendant's prior inconsistent statement is admissible to impeach him.

A prior inconsistent statement is also admissible as **substantive evidence**—ie, to prove the truth of the matter asserted therein—if the statement is excepted or excluded from the rule against hearsay. **Statements made by** and offered against an **opposing party** are **excluded from** the **hearsay rule** (ie, are nonhearsay). And since the defendant's prior statement is being offered against him, it is nonhearsay and admissible as substantive evidence that the defendant committed perjury in the civil case **(Choices A & D)**.

(Choice B) The neighbor's testimony relates to business fraud *and* the commission of perjury. But even if it did not relate to perjury, the prior statement could still be admitted for impeachment purposes or as substantive evidence of the defendant's guilt.

Educational objective:

A prior inconsistent statement may be used to impeach a witness's trial testimony. And an opposing party's out-of-court statement is nonhearsay when offered against that party and can therefore be admitted as substantive evidence.

References

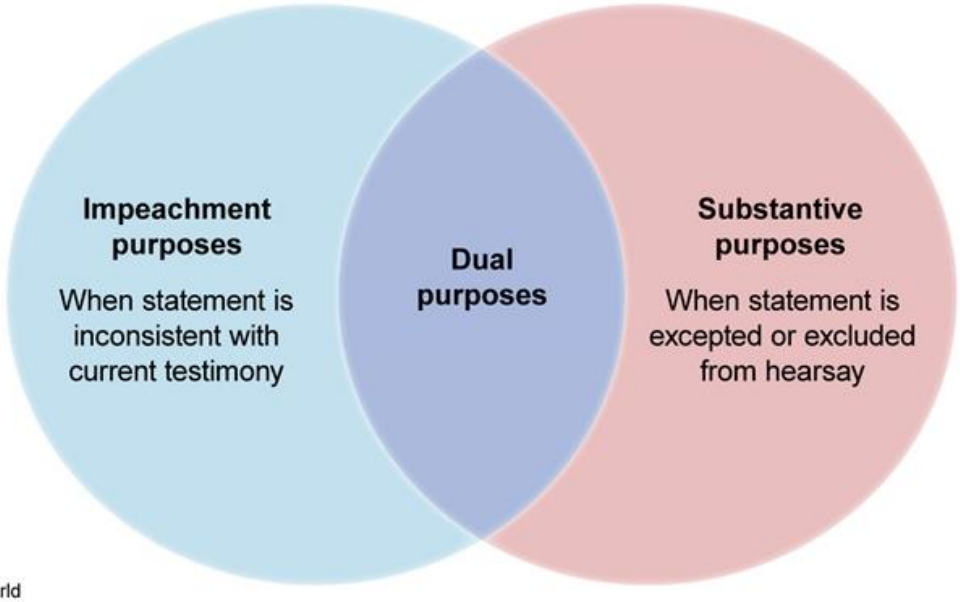
Fed. R. Evid. 613 (prior inconsistent statements).

Fed. R. Evid. 801(d)(2)(A) (statement by party-opponent).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Use of witness's prior inconsistent statement



©UWorld

A defendant was charged with aggravated assault. At trial, the victim testified that the defendant beat her savagely, but she was not asked about anything said during the incident. The prosecutor then called a witness to testify that when the beating stopped, the victim screamed: "I'm dying—don't let [the defendant] get away with it!"

Is the testimony of the witness concerning the victim's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, because the victim was not asked about the statement.

C. Yes, as a statement under belief of imminent death, even though the victim did not die.

D. Yes, as an excited utterance.

Explanation:

Common hearsay exceptions

Declarant unavailable	Former testimony
	Dying declaration
	Statement against interest
	Statement of personal or family history
	Statement offered against party that wrongfully caused declarant's unavailability
Declarant's availability irrelevant	Present sense impression
	Excited utterance
	Mental state or physical condition
	Medical diagnosis or treatment
	Recorded recollection
	Business or public records
	Learned treatises, periodicals, or pamphlets
	Judgment of previous conviction
	Residual (catch-all) exception

Under the **rule against hearsay**, an out-of-court statement offered to prove the truth of the matter asserted therein is **generally inadmissible**. But one **exception** to this rule applies to excited utterances—ie, statements:

relating to a **startling event** or condition *and*
made while the declarant was under the **stress of excitement** caused by that event or condition.

Such statements are **admissible**—regardless of the declarant's availability as a witness at trial—because it is unlikely that these spontaneous statements would be fabricated.

Here, the victim's out-of-court statement ("I'm dying—don't let [the defendant] get away with it!") is hearsay because it is being offered to prove that the defendant was her attacker. But since the statement related to the defendant's savage assault of the victim and was made while she was excited by that startling event, the statement is admissible as an excited utterance **(Choice A)**.

(Choice B) There is no requirement that a declarant be asked about his/her hearsay statement while testifying for that statement to be admissible.

(Choice C) A dying declaration is a statement (1) made while the declarant believed his/her death was imminent (2) concerning the cause or circumstances of that impending death. These statements are only excepted from the hearsay rule in civil cases and

prosecutions for criminal homicide—not aggravated assault. And though the declarant need not be dead for this exception to apply, he/she must be unavailable (not seen here).

Educational objective:

An excited utterance is a statement relating to a startling event or condition that is made while the declarant is under the stress of excitement caused by that event or condition. This type of statement is excepted from the hearsay rule regardless of the declarant's availability.

References

Fed. R. Evid. 803(2) (hearsay exception for excited utterances).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A decedent's estate sued a jewelry store claiming that one of the jewelry store's security guards wrongfully shot and killed the decedent when the decedent fled after being accused of shoplifting. The guard was convicted of manslaughter for killing the decedent. At his criminal trial, the guard, who was no longer working for the jewelry store, testified that the jewelry store's security director had instructed him to stop shoplifters "at all costs." Because the guard's criminal conviction is on appeal, he refuses to testify at the civil trial. The decedent's estate now offers an authenticated transcript of the guard's criminal trial testimony concerning the instruction of the jewelry store's security director.

Is the transcript of the guard's criminal trial testimony about the security director's instruction admissible?

A. No, because it is hearsay not within any exception.

B. Yes, although hearsay, as former testimony.

C. Yes, as a statement of an agent of a party-opponent.

D. Yes, because the instruction from the security director is not hearsay.

Explanation:

Hearsay is an out-of-court statement (eg, the security director's instruction) offered to prove the truth of the matter asserted therein (eg, that the guard was to stop shoplifters at all costs). When a **hearsay statement** is **contained in another** hearsay statement (eg, the guard's criminal trial testimony), both statements are **inadmissible *unless*** both fall within an exclusion or exception to the hearsay rule.

One **hearsay exclusion** applies to statements made by an **opposing party's agent or employee** that (1) concern a matter within the **scope of the agency/employment relationship** and (2) are offered against the opposing party. The security director's statement falls within this exclusion because it was made while he was acting in the course of his employment with the jewelry store and is being offered against the store. But this statement is only admissible if the guard's criminal trial testimony is also excluded or excepted from hearsay **(Choices C & D)**.

This raises the **hearsay exception** for **former testimony** of an unavailable declarant (eg, one who refuses to testify) that:

was **given at a trial**, hearing, or deposition in the current or any prior proceeding *and*

is offered against a party who had—or, for civil cases, whose predecessor in interest had—an **opportunity** and similar motive to **develop the testimony by examination**.

Here, the guard is unavailable because he has refused to testify at the current civil trial. However, his former testimony does not fall under this hearsay exception because the jewelry store—the party against whom the testimony is offered—did not have the opportunity to question the guard at the criminal trial **(Choice B)**. And since this testimony is hearsay not within any exclusion or other exception, the transcript of the guard's testimony about the security director's instruction is inadmissible.

Educational objective:

When one hearsay statement is contained in another hearsay statement, both statements are inadmissible unless both fall within an exclusion or exception to the hearsay rule.

References

Fed. R. Evid. 805 (hearsay within hearsay).

Fed. R. Evid. 801(d)(2) (hearsay exclusion – opposing party's statement).

Fed. R. Evid. 804(b)(1) (hearsay exception – former testimony).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Hearsay within hearsay
(FRE 805)

Woman's statement is hearsay



Witness's statement is hearsay within hearsay



FRE = Federal Rules of Evidence

©UWorld

A defendant was prosecuted for murder of a man whose body was found one morning in the street near the defendant's house. The state calls a neighbor to testify that during the night before the body was found he heard the defendant's wife scream, "You killed him! You killed him!"

Is the neighbor's testimony admissible?

A. No, because it reports a privileged spousal communication.

B. No, if the wife objects on spousal immunity grounds.

C. Yes, as a report of a statement of belief.

D. Yes, as a report of an excited utterance.

Explanation:

Reasoning for common hearsay exceptions

Exception	**Reason for reliability**
Present sense impression Excited utterance	No time to fabricate statement
Past recollection recorded	Records made when fresh in person's mind
Then-existing mental/physical condition	Persons can perceive their own mental or physical state
Statement for medical diagnosis/treatment	Self-interest creates motive for truth
Business & public records Documents & statements on property interest Certificates of birth, marriage, baptism	Accuracy verified to preserve legal rights & reputation

Under the **rule against hearsay**, **out-of-court statements** are presumed unreliable and, therefore, are generally **inadmissible** when offered to prove the truth of the matter asserted therein. However, certain out-of-court statements are excepted from this rule because they are inherently reliable. One such **exception** is **excited utterances**—ie, spontaneous statements that are:

related to a **startling event** or condition (regardless of the declarant's participation in that event) *and*

made while the **declarant was still under stress** from that event (ie, before the declarant could reflect on the event and fabricate the statement).

These requirements are assessed using multiple factors, including the content of the statement and the declarant's condition (eg, demeanor, vocal tone, physical condition).

Here, the state seeks to introduce the neighbor's testimony about the wife's out-of-court statement ("You killed him! You killed him!") to prove the truth of the matter asserted therein (that the defendant killed the man). Although that statement is hearsay, it relates to a startling event (the man's death) and was made while the wife was still under stress (as evidenced by her repeated screams). Therefore, the neighbor's testimony is admissible as a report of an excited utterance.

(Choice A) Spousal communications are privileged if they are made during a valid marriage and reasonably intended to be confidential. But here, confidentiality was not intended since the woman screamed loudly enough for the neighbor to hear.

(Choice B) A criminal defendant's spouse may assert spousal immunity and refuse to testify against the criminal defendant. But this privilege would not apply here since the neighbor—not the defendant's wife—was called to testify.

(Choice C) A statement of a declarant's then-existing state of mind is a hearsay exception. But mere *statements of belief* or memory do not fall within this exception unless they relate to the declarant's will (not seen here).

Educational objective:

Excited utterances—ie, spontaneous statements that (1) relate to a startling event and (2) were made while the declarant was still under stress from that event—are excepted from the hearsay rule.

References

Fed. R. Evid. 803(2) (excited utterance hearsay exception).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged in federal court with tax evasion. The prosecution alleges that the defendant took money from his closely held corporation and gifted it to his ex-girlfriend in order to avoid paying taxes on the money. At trial, the defendant testified that he merely transferred the money to his ex-girlfriend to hold in trust for the corporation. The defendant further testified that, after their relationship ended and she claimed ownership of the money, he successfully sued the ex-girlfriend for return of the money. The defendant now seeks to introduce an authenticated copy of the state court civil judgment obtained against the ex-girlfriend three years ago to show that the money was not a gift to the ex-girlfriend and belonged to the corporation. The prosecution objected to admission of the state court judgment.

Should the court admit the state court judgment?

A. No, because the copy of the state court judgment violates the "best evidence" rule.

B. No, because the judgment is hearsay not within an exception.

C. Yes, because the judgment was issued in a civil, not criminal, case.

D. Yes, under the hearsay exception for statements affecting an interest in property.

Explanation:

Hearsay exceptions for records & statements affecting property interest

(FRE 803(14)–(15))

Records	Record of document that purports to affect property interest is admissible if:
	record admitted to prove content of original recorded document, along with signing & delivery by each purported signee
	record kept in public office *and*
	statute authorizes recording such documents in that office
Statements	Statement in document that purports to affect property interest is admissible if:
	matter stated was relevant to document's purpose *and*
	later dealings with property do not contradict truth of statement or purport of document

FRE = Federal Rule of Evidence.

The **rule against hearsay** bars the admission of **out-of-court statements** (here, the state court judgment) offered to prove the **truth of the matter asserted** therein (that the money belonged to the corporation) **(Choice B)**. However, certain statements are excluded or excepted from this rule. For example, statements in **documents** that purport to **affect a property interest** are **excepted** from hearsay if:

the matter stated was **relevant** to the **document's purpose** *and*

later dealings with the property **do not contradict** the **truth of the statement** or the **purport of the document**.

Here, the state court judgment purported to affect the corporation's interest in property (money) and contained statements that were relevant to the judgment's purpose (establishing ownership of the money). Additionally, there is no indication that the money was later dealt with in a manner that was inconsistent with the judgment. Therefore, the court should admit the judgment under this hearsay exception.

(Choice A) The "best evidence" rule generally requires that an original—or a reliable duplicate—be produced to prove the contents of a writing, recording, or photograph. Therefore, the admission of an authenticated copy of the state court judgment would not violate this rule.

(Choice C) The admissibility of a judgment under the hearsay exception for statements in documents that purport to affect a property interest does not hinge on whether the

judgment was entered in a civil or criminal case. Therefore, the fact that the state court judgment was issued in a civil case is not a basis for admitting it.

Educational objective:

Statements in documents that purport to affect a property interest are excepted from hearsay if (1) the matter stated was relevant to the document's purpose and (2) later dealings with the property do not contradict the truth of the statement or the purport of the document.

References

Fed. R. Evid. 803(15) (hearsay exception for statements in documents affecting a property interest).

Copyright © UWorld. All rights reserved.

A defendant was prosecuted for bankruptcy fraud. The defendant's wife, now deceased, had testified adversely to the defendant during earlier bankruptcy proceedings that involved similar issues. Although the wife had been cross-examined, no serious effort was made to challenge her credibility despite the availability of significant impeachment information. At the fraud trial, the prosecutor offers into evidence the testimony given by the defendant's wife at the bankruptcy proceeding.

Is this evidence admissible?

A. No, because it is hearsay not within any exception.

B. No, because the defendant has the right to prevent use of his spouse's testimony against him in a criminal case.

C. Yes, because it is a statement by a person identified with a party.

D. Yes, under the hearsay exception for former testimony.

Explanation:

Former testimony

(FRE 804(b)(1))

Hearsay exception for unavailable declarant's testimony that:

was given at trial, hearing, or deposition in current case or different proceeding that involved similar parties & issues *and*
is offered against party who had opportunity & similar motive to develop testimony by direct or cross-examination
FRE = Federal Rule of Evidence.

The **rule against hearsay** prohibits the admission of a statement made outside the present proceeding that is offered for the truth of the matter asserted therein. However, one **exception** to this rule permits admission of an unavailable (eg, deceased) **declarant's former testimony** if:

the testimony was given at a **trial, hearing, or deposition** in the current case or a different proceeding that involved **similar parties and issues** *and*

the party against whom the testimony is offered had an opportunity and similar motive to develop that testimony through **direct or cross-examination** of the declarant.

Here, the prosecution sought to introduce the deceased wife's prior testimony against the defendant at his fraud trial. Her testimony was given at earlier bankruptcy proceedings that involved similar issues. And though the defendant made no significant effort to discredit the wife at those proceedings, he had an opportunity and similar motive to do so on cross-examination.* Therefore, the wife's testimony is admissible under the hearsay exception for former testimony **(Choice A)**.

*The admission of the wife's former testimony does not raise Sixth Amendment confrontation issues because the criminal defendant a prior opportunity to cross-examine her.

(Choice B) A criminal defendant has no right to prevent the use of his spouse's testimony against him in a criminal case. Instead, under the spousal-immunity privilege, a criminal defendant's current spouse may refuse to testify against the defendant about events that occurred before or during the marriage.

(Choice C) A statement made by a person identified with a party—ie, an agent, employee, or person authorized to speak on that party's behalf—may fall within the hearsay exclusion for an opposing party's statement. Since there is no evidence that the wife filled any of these roles, this is not a basis to admit her prior testimony.

Educational objective:

The hearsay exception for former testimony allows admission of testimony (1) given at a trial, hearing, or deposition in the same case or a different proceeding that involved similar parties and issues and (2) offered against a party who had an opportunity and similar motive to develop that testimony through direct or cross-examination.

References

Fed. R. Evid. 804(b)(1) (hearsay exception for former testimony).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for copyright infringement because the defendant's book contained some slightly disguised house plans on which the plaintiff held the copyright. The plaintiff is prepared to testify that he heard the defendant's executive assistant for copyright matters say that the defendant had obtained an advance copy of the plans from the plaintiff's office manager. The defendant's attorney objects.

How should the court rule on the admissibility of the plaintiff's testimony?

A. The testimony is admissible as a statement of a coconspirator.
B. The testimony is admissible as a statement of an employee of a party-opponent.
C. The testimony is inadmissible, because it is hearsay not within any exception
D. The testimony is inadmissible, because there is no showing that the assistant was authorized to speak for the defendant.

Explanation:

The **rule against hearsay** generally bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein. However, some statements are excluded from the rule (ie, are **nonhearsay**) and can be offered for their asserted truth. This includes out-of-court statements **offered against a party-opponent** that were:

made or adopted by the party-opponent

made by a person authorized by the party-opponent to make a statement on the subject

made by the **party-opponent's agent or employee** about a matter **within the scope** of that agency or employment **relationship** *or*

made by the party-opponent's coconspirator during and in furtherance of the conspiracy.

Here, the plaintiff seeks to testify against the defendant (party-opponent) about an out-of-court statement made by the defendant's executive assistant for copyright matters (employee). This statement asserts that the defendant had obtained an advance copy of the plaintiff's house plans—a copyright matter within the scope of the assistant's employment. As a result, the plaintiff's testimony is admissible as a statement of a party-opponent's employee **(Choices A & D)**.

(Choice C) Since the assistant's out-of-court statement constitutes *nonhearsay*, it does not require a hearsay exception to be admissible.

Educational objective:

An out-of-court statement offered against a party-opponent for its truth is nonhearsay if it was (1) made or adopted by the party-opponent, (2) made by a person the party-opponent authorized to make such a statement, (3) made by the party-opponent's agent or employee about a matter within the scope of that relationship, or (4) made by the party-opponent's coconspirator during and in furtherance of the conspiracy.

References

Fed. R. Evid. 801(d)(2) (nonhearsay statements by a party-opponent).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Nonhearsay statements by party-opponent





©UWorld

At a defendant's trial for the sale of drugs, the government called a drug user to testify, but the drug user refused to answer any questions about the defendant and was held in contempt of court. The government then calls an officer to testify that, when the drug user was arrested for possession of drugs and offered leniency if he would identify his source, the drug user had named the defendant as his source.

Is the officer's testimony concerning the drug user's identification of the defendant admissible?

A. No, because it is hearsay not within any exception.
B. No, because the drug user was not confronted with the statement while on the stand.
C. Yes, as a prior inconsistent statement by the drug user.
D. Yes, as an identification of the defendant by the drug dealer after having perceived the defendant.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement: is inconsistent with current testimony & was made under penalty of perjury is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or* identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was: made or adopted by party made by person authorized by party made by party's agent/employee on matter within scope of relationship *or* made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is generally inadmissible. But certain statements—though they meet this definition—are excluded from this rule and considered nonhearsay. For example, a **declarant-witness's prior statement** is **nonhearsay** if (1) the **witness testifies** and is **subject to cross-examination** about the statement and (2) the statement:

is inconsistent with the witness's current testimony and was made under penalty of perjury

is consistent with the witness's current testimony and offered to (1) rebut a charge of fabrication or improper influence or (2) rehabilitate the witness's credibility *or*

identifies a person as **someone the witness perceived** earlier.

Here, the drug user's out-of-court statement is being offered for the truth of the matter asserted—ie, that the defendant was the drug user's source. And though the statement identifies a person the drug user perceived earlier, it is *not* excluded from the hearsay rule because the drug user did not testify **(Choice D)**. And since no other exclusion or exception to the hearsay rule applies, the statement is inadmissible.

(Choice B) A declarant need not be confronted with an out-of-court statement on the stand before it can be admitted. Therefore, a failure to do so is not a basis to exclude the officer's testimony.

(Choice C) A prior statement that (1) is inconsistent with a witness's testimony and (2) was made under oath is nonhearsay if the declarant testifies and is subject to cross-examination about the statement. But this rule is inapplicable here since the drug user did not testify at trial.

Educational objective:

A witness's prior statement that identifies a person as someone the witness perceived earlier is nonhearsay if the witness testifies and is subject to cross-examination about the statement.

References

Fed. R. Evid. 801(d)(1) (nonhearsay statements – witness's prior statement).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

The plaintiff sued the defendant, a doctor, for psychiatric malpractice and called another doctor as an expert witness. During the expert witness's direct testimony, he identified a text as a reliable authority in the field. He seeks to read to the jury passages from this book on which he had relied in forming his opinion on the proper standard of care.

Are the passages admissible?

A. No, because a witness's credibility cannot be supported unless attacked.

B. No, because the passage should be received as an exhibit and not read to the jury by the witness.

C. Yes, as a basis for his opinion and as substantive evidence of the proper standard of care.

D. Yes, as a basis for his opinion but not as substantive evidence of the proper standard of care.

Explanation:

An out-of-court statement (eg, a passage from a book) is barred by the **rule against hearsay** when offered to prove the truth of the matter asserted therein. However, **statements in a learned treatise**, periodical, or pamphlet are **excepted** from this rule and are admissible for their truth when:

the publication is established as a reasonably **reliable authority** by a party's expert or judicial notice *and*

the statements are called to the attention of or **relied on by** an **expert witness** during examination.

Expert testimony that a treatise is a reliable authority (as seen here) lays a foundation for admitting the statements therein. The statements can then be used as a basis for the expert's opinion *and* as substantive evidence to help prove a material fact (here, the proper standard of psychiatric care) **(Choice D)**. However, the expert may only **read** the statements **into evidence**—the treatise itself cannot be received as an exhibit **(Choice B)**.

(Choice A) It is true that a witness's credibility cannot be supported unless attacked. But here, the expert seeks to read the passages to establish the proper standard of psychiatric care—not to support his credibility.

Educational objective:

Statements in a learned treatise, periodical, or pamphlet are excepted from the rule against hearsay when (1) the publication is established as a reasonably reliable authority by a party's expert or judicial notice and (2) the statements are called to the attention of or relied on by an expert witness during examination.

References

Fed. R. Evid. 803(18) (hearsay exception for statements in learned treatises).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Statements in learned treatises hearsay exception
(FRE 803(18))

Step 1
(expert examination)



Step 2
(establish reliability)



Step 3
(read into evidence)



In a jury trial, the plaintiff sued the defendant for breach of contract. The plaintiff's position was that a woman whom he understood to be the defendant's agent said: "On behalf of [the defendant], I accept your offer." The defendant asserted that the woman had no actual or apparent authority to accept the offer on the defendant's behalf.

Is the plaintiff's testimony concerning the woman's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, if the woman does not testify and her absence is not excused.

C. Yes, provided the court first finds by a preponderance of the evidence that the woman had actual or apparent authority to act for the defendant.

D. Yes, upon or subject to introduction of evidence sufficient to support a finding by the jury that the woman had actual or apparent authority to act for the defendant.

Explanation:

Nonhearsay statements

(FRE 801(d))

Statement by declarant-witness	Out-of-court statement admissible if witness subject to cross-examination & prior statement:
	is inconsistent with current testimony & was made under penalty of perjury
	is consistent with current testimony & offered to (1) rebut charge of fabrication/improper influence or (2) rehabilitate witness *or*
	identifies person witness perceived earlier
Statement by party-opponent	Out-of-court statement admissible if offered against opposing party & statement was:
	made or adopted by party
	made by person authorized by party
	made by party's agent/employee on matter within scope of relationship *or*
	made by party's coconspirator during & in furtherance of conspiracy

FRE = Federal Rule of Evidence.

Hearsay is an **out-of-court statement** offered to prove the truth of the matter asserted therein and is generally inadmissible. But certain statements, though they meet this definition, are considered **nonhearsay** and can therefore be used as substantive evidence. This includes statements **made by or attributable to** an **opposing party** when **offered against that party**. One way a statement is attributable to an opposing party is if:

the declarant was the **opposing party's agent**—ie, had actual or apparent authority to act on the party's behalf *and*

the statement (1) was made during the **agency relationship** and (2) concerned a matter **within the scope** of that relationship.

The relevance of such statements is conditioned upon the declarant's authority to act on the opposing party's behalf. As a result, the court must determine if there is sufficient evidence for a reasonable jury to find that this preliminary fact exists.

Here, the plaintiff seeks to introduce the woman's statement accepting the plaintiff's offer on the defendant's behalf. If the plaintiff introduces evidence that would allow a reasonable

jury to find that the woman had actual or apparent authority (ie, agency) to act for the defendant, then her statement is admissible nonhearsay **(Choice A)**.

(Choice B) A statement attributable to an opposing party is admissible against that party regardless of the declarant's availability. Therefore, the woman's absence—whether excused or not—and failure to testify do not bar admission of her statement.

(Choice C) Courts typically apply the preponderance-of-the-evidence standard to decide preliminary questions of admissibility—eg, whether a witness is qualified to testify, privilege exists, etc. However, when the *relevance* of evidence is conditioned upon the existence of a preliminary fact (as seen here), the court need only find that there is sufficient evidence to support (but not necessarily establish) the existence of that preliminary fact.

Educational objective:

A statement is attributable to an opposing party and therefore admissible nonhearsay if it is offered against that party and was (1) made by the party's agent (2) about a matter within the scope of an existing agency relationship.

References

Fed. R. Evid. 801(d)(2) (nonhearsay – statement by party-opponent).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man was charged with the armed robbery of a convenience store and pleaded not guilty. At trial, the man testified on direct examination that he had never been inside the store that was robbed. Intending the man to testify that he told police the same, the man's attorney then asked, "What, if anything, did you tell the police when you were arrested?" The prosecutor has objected.

Is the intended testimony admissible?

A. No, because the man has a substantial motive to fabricate his testimony that he had never been inside the store.

B. No, because the testimony is hearsay not within any exception.

C. Yes, because the statement to police was made before the man had a motive to fabricate his testimony.

D. Yes, to prove that the man had never been inside the store.

Explanation:

Nonhearsay statements by declarant-witness

(FRE 801(d)(1))

Prior statement of identification	Identifies person as someone declarant perceived earlier
Prior *inconsistent* statement	Inconsistent with declarant's current testimony *and* made under penalty of perjury at former proceeding
Prior *consistent* statement	Consistent with declarant's current testimony *and* offered to either: rebut charge of fabrication/improper influence if made before motive arose *or* rehabilitate declarant's credibility when attacked on other grounds

FRE = Federal Rule of Evidence.

Hearsay refers to out-of-court statements (here, the man's statement to police) offered to prove the truth of the matter asserted therein (that he had never been inside the store). Such statements are inadmissible unless specifically excluded or excepted from the rule against hearsay. One **hearsay exclusion** applies when the declarant is on the witness stand and an out-of-court statement that is **consistent** with the declarant-witness's **current testimony** is offered to:

rebut a charge of **fabrication or improper influence**, if the out-of-court statement was made before a motive for the alleged fabrication or improper influence arose *or*

rehabilitate the declarant-witness's **credibility** when attacked on other grounds.

Here, the man's prior statement to police *is* consistent with his current testimony, but it was not offered to rehabilitate the man's credibility. Nor was it offered to rebut a charge of fabrication or improper influence. And even if it had, the statement was made *after* the man had a motive to fabricate (ie, after his arrest) **(Choice C)**. Therefore, it does not meet the criteria for admission as a prior consistent statement. And since no other hearsay exclusion or exception applies, the man's intended testimony is *not* admissible.

(Choice A) The man may have a substantial motive to fabricate his testimony because he has been accused of a crime. That motive does not provide a basis to exclude otherwise admissible testimony but may be used by the prosecution to impeach the man by attacking his credibility as a witness.

(Choice D) The man's intended testimony cannot be admitted to prove that he had never been inside the store because it is hearsay not within any exception.

Educational objective:

A declarant-witness's prior consistent statement is excluded from the rule against hearsay if (1) it is offered to rebut a charge of fabrication/improper influence and was made before a motive to fabricate arose or (2) it is offered to rehabilitate the witness's credibility.

References

Fed. R. Evid. 801(d)(1)(B) (declarant-witness's prior consistent statement).

Copyright © UWorld. All rights reserved.

In a civil action for misrepresentation in the sale of real estate, the parties contested whether the defendant was licensed by a public agency established by statute to license real estate brokers. The defendant testified that she was licensed. On rebuttal, the plaintiff has offered a certification, bearing the seal of the secretary of the public agency. The certification states that the secretary conducted a thorough search of the agency's records and all relevant databases, and that this search uncovered no record of a license ever having been issued to the defendant. The certification is signed by the secretary.

Is the certification that there is no record of a license having been issued to the defendant admissible?

A. No, because it is hearsay not within any exception.

B. No, because the writing was not properly authenticated.

C. Yes, for the limited purpose of impeaching the defendant.

D. Yes, to prove the nonexistence of a public record.

Explanation:

Hearsay exceptions for public records

Existing public records	Records or statements of public office/agency admissible if they set forth:
	activities of office or agency
(FRE 803(8))	matters observed pursuant to legal duty (excluding police observations in criminal cases) OR
	factual findings from legal investigation if offered in civil case or against government in criminal case
Absence of public records	Evidence that diligent search failed to locate public record or statement admissible if:
(FRE 803(10))	introduced through testimony or self-authenticating evidence certified under FRE 902 AND
	in criminal cases, prosecutor gives written notice of intent to offer certification 14 days before trial & defendant does not object in writing within 7 days of receiving notice

FRE = Federal Rule of Evidence.

Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein. These statements are inadmissible unless they fall within an **exception to the hearsay rule**. One exception applies to *existing* public records. Another exception applies to the ***absence* of public records**, which allows the admission of evidence that a **diligent search failed to locate** a public record to prove that:

the public **record** does **not exist** *or*

a **matter** regularly kept in public records did **not occur**.

But this evidence must be **admitted through witness testimony** or self-authenticating evidence certified under Federal Rule of Evidence 902—eg, a signed and sealed document from a public agency.

Here, the plaintiff has offered a certification to show that a thorough search of the agency's records uncovered no record of a license having been issued to the defendant. And since the certification has the agency's seal and the secretary's signature, it is self-authenticating evidence. As a result, it is admissible under the absence of public records exception to prove the nonexistence of the defendant's license **(Choice A)**.

(Choice B) Domestic public documents bearing a government seal and signature attesting to their truth are self-authenticating. Therefore, no other evidence was needed to authenticate the certification here.

(Choice C) The certification is admissible to impeach the defendant's testimony. But since the certification is excepted from the rule against hearsay, it is also admissible to prove that the defendant did not have a real estate license.

Educational objective:

Under the absence of public records exception, evidence that a diligent search failed to locate a public record is admissible to prove that (1) the public record does not exist or (2) a matter regularly kept in public records did not occur. However, this evidence can only be admitted through witness testimony or self-authenticating evidence.

References

Fed. R. Evid. 803(10) (hearsay exception for absent public records).

Fed. R. Evid. 902(1) (self-authenticating evidence).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In litigation on a federal claim, the plaintiff had the burden of proving that the defendant received a notice. The plaintiff relied on the presumption of receipt by offering evidence that the notice was addressed to the defendant, properly stamped, and mailed. The defendant, on the other hand, testified that she never received the notice.

Which of the following is correct?

A. The burden shifts to the defendant to persuade the jury of nonreceipt.

B. The jury may find that the notice was received.

C. The jury must find that the notice was not received, because the presumption has been rebutted and there is uncontradicted evidence of nonreceipt.

D. The jury must find that the notice was received.

Explanation:

A **presumption** is a conclusion that can be drawn once a party proves an underlying fact or set of facts. Under the **"bursting bubble" approach** followed by the Federal Rules of Evidence, the opposing party in a civil suit can overcome a rebuttable presumption by producing **sufficient evidence** to **contradict the presumed fact**.* Once this occurs, the **presumption "bursts"** and the fact finder (eg, jury) must weigh the evidence to decide the issue.

Here, the plaintiff offered evidence that the notice was addressed to the defendant, properly stamped, and mailed. This created a rebuttable presumption that the defendant received the notice. But the presumption was overcome by the defendant's testimony that she never received the notice. Since the presumption burst, the jury must weigh the evidence to decide the issue. Therefore, the jury *may* find that the notice was received **(Choices C & D)**.

*The bursting-bubble approach does not apply to conclusive presumptions or in federal diversity cases, where state law governs the effect of a presumption.

(Choice A) Once a party produces sufficient evidence to establish a presumption, the burden of production shifts to the opposing party to produce sufficient evidence to rebut the presumption. But the ultimate burden of persuasion—in most civil cases, proving a fact by a preponderance of the evidence—remains with the party who had it originally. So here, the burden stays with the plaintiff to persuade the jury of receipt.

Educational objective:

Under the "bursting bubble" approach, a rebuttable presumption "bursts" when the opposing party in a civil case produces sufficient evidence to contradict the presumed fact. The fact finder must then weigh the evidence to decide the issue.

References

Fed. R. Evid. 301 (presumptions in civil cases).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

"Bursting bubble" approach
(presumptions in civil cases)



©UWorld

A plaintiff is suing the defendant for injuries suffered in an automobile collision. At trial, the plaintiff's first witness testified that, although she did not see the accident, she heard her boyfriend say just before the crash, "Look at the crazy way [the defendant] is driving!"

The defendant offers evidence to impeach the boyfriend by asking the witness if it is true that the boyfriend beat up the defendant just the day before the collision.

Is the defendant's question to the witness proper?

A. No, because impeachment cannot properly be by specific instances of conduct.

B. No, because the boyfriend has no opportunity to explain or deny the defendant's assertion.

C. Yes, because it tends to show the boyfriend's character.

D. Yes, because it tends to show the possible bias of the boyfriend against the defendant.

Explanation:

Impeaching witness v. hearsay declarant

Method	Witness	Declarant
Character for truthfulness	Specific instance of conduct involving bad act or criminal conviction of felony/crime of dishonesty Reputation or opinion testimony on truthfulness	
Self-interest/bias	Motive to lie or partiality to party	
Specific contradiction	Evidence directly contradicting testimony on material issue	
Inconsistent statement	*Prior* statement admissible *if* witness can explain/deny & be questioned by opposing party (or if justice requires)	Admissible *regardless* of when statement occurred & whether declarant can explain/deny

When an out-of-court statement is admitted under a hearsay exception, the **hearsay declarant** may be **impeached** (ie, discredited) **as if** the declarant had **testified at trial**. One way a declarant can be impeached is by introducing evidence that the declarant's statement was motivated by **bias or self-interest**.

Here, the court admitted the boyfriend's statement implying that the defendant was responsible for the crash—likely under the excited utterance exception. As a result, the boyfriend can be impeached as though he had testified at trial. Evidence that the boyfriend beat up the defendant the day before the crash tends to show the boyfriend's possible bias against the defendant. Therefore, the defendant's question to the witness is proper.

(Choice A) A specific instance of conduct *is* admissible to impeach a witness or hearsay declarant. For example, a party may examine the witness about such conduct if it is probative of the witness's character for truthfulness or establishes the declarant's bias (as seen here).

(Choice B) A hearsay declarant need not be given an opportunity to explain or deny the offered impeachment evidence. In contrast, a *witness* can only be impeached with an inconsistent statement if the witness is given the opportunity to explain or deny—and the opposing party can question the witness about—the statement.

(Choice C) Character evidence shows a person's general traits or propensities and is generally inadmissible to show conformance therewith on a particular occasion. But here, evidence that the boyfriend beat up the defendant is being offered to show the boyfriend's potential bias—not a character trait.

Educational objective:

When a hearsay declarant's statement is admitted into evidence, the declarant may be impeached in the same manner as a testifying witness—eg, by showing that the declarant's statement was biased or motivated by self-interest.

References

Fed. R. Evid. 806 (attacking & supporting declarant's credibility).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A college student sued an amusement company for injuries he sustained when the amusement company's roller coaster allegedly malfunctioned so that the student fell out.

At trial, after the student presented his case, the amusement company called a witness who testified that just before the accident he had heard a bystander say to the bystander's companion, "That crazy fool is standing up in the car!" The student has offered the testimony of another witness who would testify that the day after the accident she was with the same bystander, and that in describing the accident, the bystander told her that the car had jerked suddenly and "just threw the guy out of his seat."

How should the court rule with respect to this offered testimony?

A. Rule it admissible only to impeach the bystander's credibility.

B. Rule it admissible to impeach the bystander's credibility and to prove the amusement company's negligence.

C. Rule it inadmissible, because the bystander herself was not called as a witness.

D. Rule it inadmissible, because the bystander was given no opportunity to deny or explain her apparently inconsistent statement.

Explanation:

Impeaching witness v. hearsay declarant

Method	Witness	Declarant
Character for truthfulness	Specific instance of conduct involving bad act or criminal conviction of felony/crime of dishonesty Reputation or opinion testimony on truthfulness	
Self-interest/bias	Motive to lie or partiality to party	
Specific contradiction	Evidence directly contradicting testimony on material issue	
Inconsistent statement	*Prior* statement admissible *if* witness can explain/deny & be questioned by opposing party (or if justice requires)	Admissible *regardless* of when statement occurred & whether declarant can explain/deny

When a hearsay statement is admitted under (1) *any* hearsay exception or (2) the hearsay exclusion for statements made by an opposing party's agent, employee, or coconspirator, the **declarant's credibility** may be **attacked** (and then supported) as though the declarant had testified as a witness. The *same* methods for impeaching a witness can therefore be used against the declarant. But unlike a *witness's* inconsistent statement, a *declarant's* **inconsistent statement** can be used for impeachment **even if**:

the inconsistent statement **occurred after** the hearsay statement *or*

the declarant had **no opportunity to explain or deny** the inconsistent statement **(Choices C & D)**.

Here, the bystander's hearsay statement was admitted at trial (likely as an excited utterance). As a result, the student can attack the bystander's credibility by offering testimony from another witness about the bystander's inconsistent statement that the car jerked and threw the student out of his seat. But this statement cannot be used as substantive evidence—eg, to prove the amusement company's negligence—because there is no indication that the statement falls within an exclusion or exception to the hearsay rule **(Choice B)**.

Educational objective:

When a hearsay statement is admitted under any hearsay exception—or the hearsay exclusion for statements made by an opposing party's agent, employee, or coconspirator—the declarant's credibility may be attacked as though the declarant had testified (eg, by introducing the declarant's inconsistent statement).

References

Fed. R. Evid. 806 (attacking a declarant's credibility).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At a defendant's trial for a gang-related murder, the prosecution introduced, as former testimony, a statement by a gang member who testified against the defendant at a preliminary hearing and has now invoked his privilege against self-incrimination.

If the defendant now seeks to impeach the credibility of the gang member, which of the following is the court most likely to admit?

A. Evidence that the gang member had three misdemeanor convictions for assault.
B. Testimony by a psychologist that persons with the gang member's background have a tendency to fabricate.
C. Testimony by a witness that, at the time the gang member testified, the gang member was challenging the defendant's leadership role in the gang.
D. Testimony by a witness that the gang member is a cocaine dealer.

Explanation:

Impeaching witness v. hearsay declarant

Method	Witness	Declarant
Character for truthfulness	Specific instance of conduct involving bad act or criminal conviction of felony/crime of dishonesty Reputation or opinion testimony on truthfulness	
Self-interest/bias	Motive to lie or partiality to party	
Specific contradiction	Evidence directly contradicting testimony on material issue	
Inconsistent statement	*Prior* statement admissible *if* witness can explain/deny & be questioned by opposing party (or if justice requires)	Admissible *regardless* of when statement occurred & whether declarant can explain/deny

When an out-of-court statement is admitted under a hearsay exception—eg, the former testimony exception (as seen here)—the **declarantcan be impeached** as if the declarant had testified at trial.

For instance, evidence that the declarant was biased or motivated by self-interest when making the out-of-court statement can be used to attack the declarant's credibility. Therefore, the defendant can impeach the gang member through witness testimony that, at the time the gang member testified, he was challenging the defendant's leadership.

(Choice A) A witness or hearsay declarant can be impeached with evidence of a prior conviction involving a felony or crime of dishonesty. Since misdemeanor convictions for assault do not involve dishonesty, they are not admissible to impeach the gang member.

(Choice B) Only a few courts have allowed experts to testify to a witness's credibility. Therefore, the psychologist's "expert" opinion—ie, that persons with the gang member's background tend to fabricate—is not the evidence *most likely* to be admitted.

(Choice D) A witness may be impeached with bad acts that did not result in conviction if those acts are probative of the witness's character for truthfulness and are introduced through the witness's *own* testimony. Therefore, evidence that the gang member is a cocaine dealer cannot be introduced through another witness's testimony.

Educational objective:

When an out-of-court statement is admitted under a hearsay exception, the declarant can be impeached as if the declarant had testified at trial—eg, by showing that the declarant was biased or motivated by self-interest.

References

Fed. R. Evid. 806 (attacking hearsay declarant's credibility).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for the burglary of a small-town jewelry store. The prosecution called a witness to testify that, on the night of the burglary, the witness was leaving a diner located behind the jewelry store and saw a man who she is certain was the defendant exit the jewelry store carrying a knapsack. On cross-examination, the defendant's attorney confronted the witness about the lack of artificial lighting behind the jewelry store and in its immediate vicinity. The defendant's attorney asked the witness how she could be certain that the person she saw was the defendant. The witness responded that the moon was full and provided enough light for her to see the defendant clearly.

The defendant's attorney provided the court with data from the U.S. Naval Observatory stating that, on the night of the burglary, there was a new moon, which is not illuminated and therefore provides no light. The attorney then requested that the court take judicial notice of this fact. The prosecutor has objected to the defense attorney's request.

How should the court rule on the prosecutor's objection?

A. Overrule the objection.

B. Sustain the objection, because judicial notice is not an appropriate method to establish the phases of the moon.

C. Sustain the objection, because the data is hearsay.

D. Sustain the objection, because the moon's phase on the night in question is irrelevant.

Explanation:

Any evidence used to impeach a witness on a material issue is considered relevant. Here, evidence about the new moon discredits the witness's assertion that there was a full moon on the night of the burglary. This concerns a material issue because whether there was enough light to identify the defendant is of consequence in determining the outcome of this case. Therefore, the moon's phase is relevant **(Choice D)**.

Relevant evidence can be introduced through any method allowable under the evidentiary rules. For example, Federal Rule of Evidence 201 allows the court to take judicial notice of any adjudicative fact that is **not subject to reasonable dispute** because it:

is generally known or common knowledge within the community where the court is sitting *or*

can be **accurately and readily determined** from sources whose **accuracy cannot** reasonably **be questioned** (eg, data from the U.S. Naval Observatory).

When, as here, a **party requests** that the court take judicial notice of such a fact and **supplies the necessary information** to satisfy the above criteria, the **court *must* grant** that request. Therefore, the court should overrule the prosecutor's objection and take judicial notice of the new moon **(Choice B)**. And since this is a criminal jury trial, the court should then instruct the jury that it *may* accept the noticed fact as conclusive.

(Choice C) Hearsay is an out-of-court statement that is inadmissible—absent an exclusion or exception—when offered to prove the truth of the matter asserted therein. Here, the moon data was not offered into evidence; the defendant's attorney merely asked the court to judicially notice the data. And even if the data had been offered for its truth, it would likely be admissible under the hearsay exception for business records.

Educational objective:

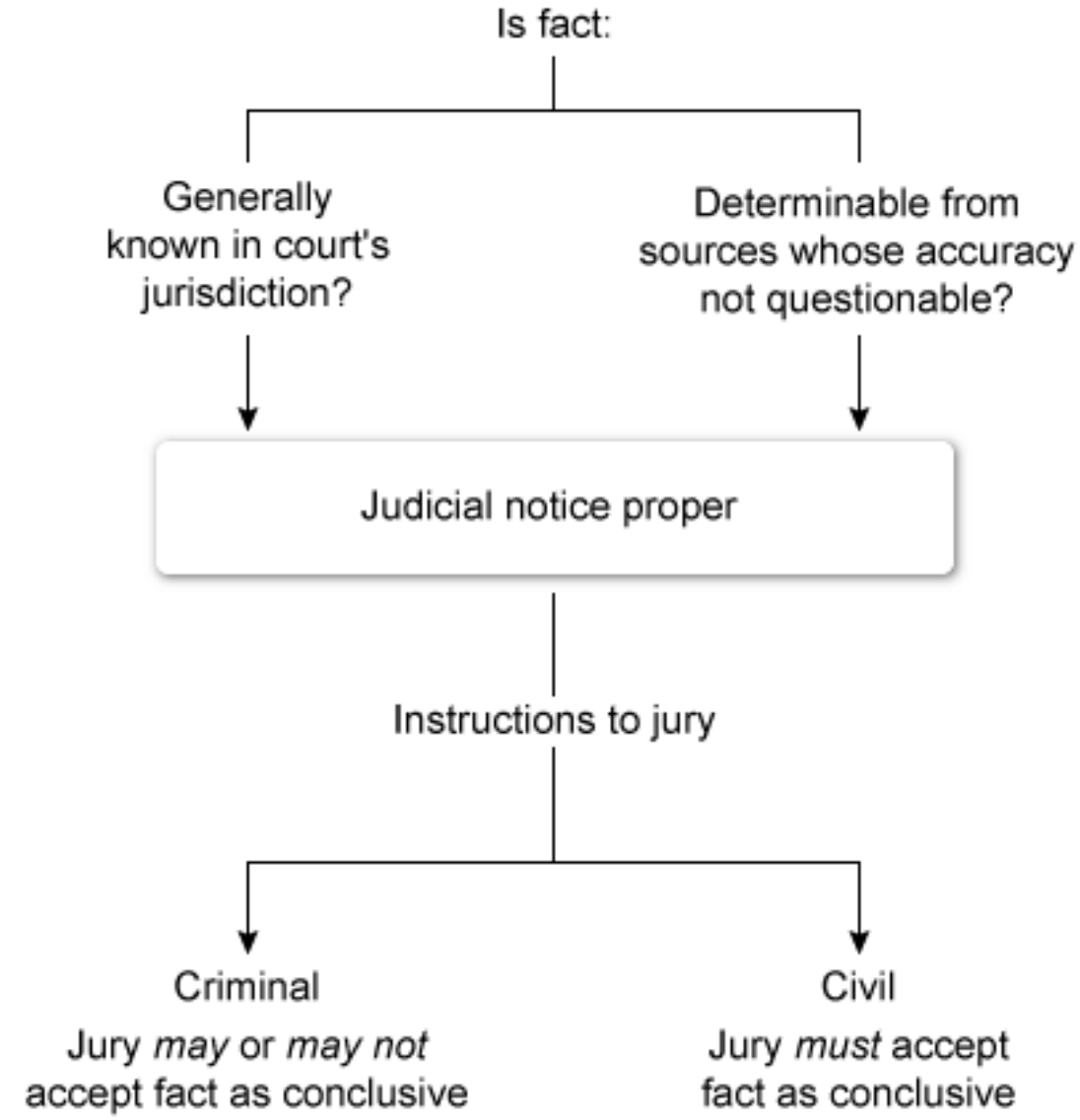
A court can take judicial notice of any adjudicative fact that is not subject to reasonable dispute because it (1) is generally known within the court's jurisdiction or (2) can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.

References

Fed. R. Evid. 201 (judicial notice).

Copyright © UWorld. All rights reserved.

Judicial notice of adjudicative fact



©UWorld

A defendant was on trial for burglary. The prosecutor called the arresting officer to testify that shortly after her arrest and interrogation, the defendant had orally admitted her guilt to the officer. Before the officer testified, the defendant objected that no Miranda warnings had been given to her, and she requested a hearing outside the presence of the jury to hear evidence on that issue.

How should the court proceed?

A. The court may grant or deny the request, because the court has discretion whether to conduct preliminary hearings in the presence of the jury.

B. The court should deny the request and rule the confession admissible, because it is the statement of a party-opponent.

C. The court should deny the request and rule the confession inadmissible, because only signed confessions are permitted in criminal cases.

D. The court should grant the request, because the hearing on the admissibility of the confession must be conducted outside the presence of the jury.

Explanation:

Hearings on preliminary questions

(FRE 104)

Preliminary question must be heard outside jury's presence if:

hearing is on admissibility of confession
criminal defendant-witness so requests *or*
justice so requires
FRE = Federal Rule of Evidence

Under Federal Rule of Evidence 104, the court must decide **preliminary questions** on whether evidence is admissible, a privilege exists, or a witness is qualified to testify. **Hearings** regarding such determinations *must* be conducted **outside the presence of the jury** if:

the hearing involves the **admissibility of a confession**
a defendant in a criminal case is a witness and so requests *or*
justice so requires.
Here, whether the defendant was Mirandized prior to a custodial interrogation is a preliminary question that the court must decide to ultimately rule on the admissibility of the defendant's confession. Since the hearing involves the admissibility of a confession, it *must* be conducted outside the presence of the jury. As a result, the court should grant the defendant's request **(Choice A)**.

(Choice B) The defendant's confession is a statement by a party-opponent and is therefore nonhearsay when offered against the defendant. But the confession would still be inadmissible under the Fifth Amendment if the defendant was not properly Mirandized before making the confession. Therefore, this is not a basis to deny the defendant's request for a hearing and admit the confession.

(Choice C) Both written (signed or unsigned) and oral confessions are admissible in criminal cases.

Educational objective:

Hearings on preliminary questions must be held outside the jury's presence if (1) the hearing involves the admissibility of a confession, (2) a defendant in a criminal case is a witness and so requests, or (3) justice so requires.

References

Fed. R. Evid. 104 (preliminary questions).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A defendant is on trial for bank robbery. Evidence at the trial has included testimony by a bank teller who was present during the robbery. The teller testified for the prosecution after having refreshed her memory by looking at an FBI agent's investigative report that was created shortly after the robbery.

The defendant has asked to examine the report.

How should the court respond?

A. The court may allow the examination if the report was used by the teller to refresh her memory before testifying and must allow it if she used the report during her testimony.

B. The court must allow the examination, but only to the extent that the report contains the teller's own statement to the FBI agent.

C. The court should not allow the examination, because the report was not shown to have been read and approved by the teller while the matter was fresh in her mind.

D. The court should not allow the examination, unless the report was used by the teller to refresh her memory while on the witness stand.

Explanation:

Present recollection refreshed v. Past recollection recorded

Refreshing recollection	Any item may be used to refresh witness's memory *regardless of admissibility* if:
(FRE 612)	witness once knew but is now unable to recall fact or event *and* item will help witness recall that information
Recorded recollection	Record is *admissible* hearsay if it:
(FRE 803(5))	contains information witness once knew but cannot recall well enough to testify fully & accurately was made or adopted by witness when matter was fresh in his/her mind *and* accurately reflects witness's knowledge at time record was made

FRE = Federal Rule of Evidence.

A party may use a **writing** (or other evidence) to **refresh a witness's memory** if (1) the witness once knew but cannot recall a fact or event and (2) the writing will help the witness recall that information. The **opposing party's options depend** on whether the writing is used to refresh the witness's memory:

while testifying – in which case, the **court *must* allow** the opposing party to **inspect the writing**, cross-examine the witness about it, and introduce any relevant portion into evidence *or*

before testifying – in which case, the **court *may* allow** the opposing party to utilize these options in the interest of justice.

Therefore, the court *may* allow the defendant to examine the FBI report if the teller used it to refresh her memory before testifying and *must* allow it if the teller used the report during her testimony **(Choice D)**.

(Choice B) The court would be required to allow the defendant to examine the FBI report if the teller used it to refresh her memory while testifying—regardless of whether the report contains the teller's own statement to the FBI agent.

(Choice C) The defendant's right to examine the report does not turn on whether the teller read and approved (ie, adopted) the report while the robbery was fresh in her mind. But this would be relevant to determining whether the report is admissible as a *recorded recollection*.

Educational objective:

If a witness refreshes his/her memory with a writing *while* testifying, the opposing party *must* be allowed to inspect it, cross-examine the witness on it, and introduce any relevant portion into evidence. If the witness does so *before* testifying, the opposing party *may* be allowed to utilize these options if justice so requires.

References

Fed. R. Evid. 612 (refreshing recollection).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is being tried for the murder of a woman who disappeared 10 years ago and has not been heard from since. Her body has never been found.

The prosecutor has presented strong circumstantial evidence that she was murdered by the defendant. To help establish the fact of her death, the prosecutor has requested that the judge give the following instruction, based on a recognized presumption in the jurisdiction: "A person missing and not heard from in the last seven years shall be presumed to be deceased."

Is the instruction proper?

A. No, because mandatory presumptions are not allowed against a criminal defendant on an element of the charged crime.

B. No, because the fact that someone has not been heard from in seven years does not necessarily lead to a conclusion that the person is dead.

C. Yes, because it expresses a rational conclusion that the jury should be required to accept.

D. Yes, because the defendant has a chance to rebut the presumption by offering evidence that the woman is alive or has been heard from in the last seven years.

Explanation:

Mandatory presumption v. Permissible inference

Mandatory presumption	Rebuttable	Conclusion that *must* be drawn from basic facts unless rebutted
	Conclusive	Conclusion that *must* be drawn from basic facts & cannot be rebutted
Permissible inference	Conclusion that *may* be drawn from basic facts	

The law distinguishes between:

permissible inferences – which *allow* the fact finder to reach a conclusion once a party proves an underlying fact or set of facts (ie, basic facts) and

mandatory presumptions – which ***compel* the fact finder** to **reach a conclusion** from basic facts unless and until it is rebutted.

Mandatory presumptions **cannot be used against a criminal defendant** to establish an **element of the charged crime**. Such use would **violate** the defendant's **due process rights** by relieving the prosecution of its burden to prove every element of the charged crime beyond a reasonable doubt.

Here, the prosecutor requested a jury instruction that "a person missing and not heard from in the last seven years *shall be presumed* to be deceased." This instruction constitutes a mandatory presumption that would relieve the prosecution of its burden to establish the woman's death—an element of the charged murder—beyond a reasonable doubt. As a result, the instruction is improper.

(Choices B & C) A presumption or inference does not have to be certain. Instead, it only requires a rational connection between the basic facts (eg, person missing and not heard from in seven years) and the conclusion drawn from those facts (eg, person dead). Nevertheless, the presumption in the requested instruction is improper because it would violate due process.

(Choice D) Mandatory presumptions on an element of a charged crime are not allowed—regardless of whether the defendant has a chance to rebut the presumption.

Educational objective:

Due process prohibits the use of mandatory presumptions—ie, conclusions that must be drawn from basic facts—against a criminal defendant on an element of the charged crime.

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman is prosecuted for embezzling her employer's funds. As part of its case-in-chief, the prosecution calls the woman's former supervisor to testify. The prosecution asks the supervisor, "Isn't it true that you are the defendant's former supervisor?" The woman's attorney objects to the form of the question.

Is the court likely to sustain the objection?

A. No, because the question relates to a preliminary matter that is not in dispute.

B. No, because the supervisor is a hostile witness.

C. Yes, because leading questions are only permitted on cross-examination.

D. Yes, because the supervisor is not a child.

Explanation:

Leading questions

(FRE 611)

Direct examination	Leading questions *prohibited* unless: necessary to develop testimony child witness or adult with communication difficulty witness aligned with adverse party
Cross-examination	Leading questions *permitted* unless: question goes beyond scope of direct examination

FRE = Federal Rule of Evidence.

A **leading question** is one that suggests the desired response within the question. Under FRE 611, leading questions are **prohibited** on **direct examination unless**:

the witness is a **child** or an **adult with difficulty communicating**
the question is necessary to develop the witness's testimony (eg, to establish a **preliminary matter**—like a **witness's identity or occupation**—that is **not in dispute**) *or*
the witness is **aligned** with an **adverse party** (eg, an adverse or hostile witness).

Here, the prosecution asked the woman's former supervisor on direct examination, "Isn't it true that you are the defendant's former supervisor?" This was a leading question because it suggested the desired response within the question. But since the question relates to a preliminary matter that is not in dispute—the supervisor's identity and occupation—it is permissible. Therefore, the court is *not* likely to sustain the objection to the question.

(Choice B) The supervisor is *not* a hostile witness for the prosecution because there is no indication that the supervisor is aligned with the woman—the adverse party. However, the prosecution's leading question is still permissible because it relates to a preliminary matter that is not in dispute.

(Choice C) Leading questions are permitted on cross-examination unless the question exceeds the scope of direct examination. But such questions are *also* permitted on direct examination to establish preliminary matters such as a witness's identity or occupation (as seen here).

(Choice D) Although the supervisor is not a child, the leading question is still permissible to establish the supervisor's identity and occupation.

Educational objective:

Leading questions—ie, questions that suggest the desired response—are barred on direct examination unless (1) the witness is a child or an adult with difficulty communicating, (2) the question is needed to develop the witness's testimony (eg, to establish an undisputed preliminary matter), or (3) the witness is aligned with an adverse party.

References

Fed. R. Evid. 611 (defining leading questions).

Copyright © UWorld. All rights reserved.

A defendant is on trial for extorting $10,000 from her victim. An issue is the identification of the person who made a telephone call to the victim. The victim is prepared to testify that the caller had a distinctive accent like the defendant's, but that he cannot positively identify the voice as the defendant's.

The victim recorded the call but has not brought the tape to court, although its existence is known to the defendant.

Is the victim's testimony admissible?

A. No, because the tape recording of the conversation is the best evidence.

B. No, because the victim cannot sufficiently identify the caller.

C. Yes, because the defendant waived the "best evidence" rule by failing to subpoena the tape.

D. Yes, because the victim's lack of certainty goes to the weight to be given the victim's testimony, not to its admissibility.

Explanation:

Lay witness testimony

(FRE 602 & 701)

Fact testimony must be based on witness's personal knowledge (ie, firsthand perceptions)
Opinion testimony on common-sense impression must be:
rationally based on witness's firsthand perception
helpful to understanding witness's testimony or determining fact in issue *and*
not based on scientific, technical, or other specialized knowledge
FRE = Federal Rules of Evidence.

A **lay witness** (ie, nonexpert) can testify to any **relevant matter** of which the witness has **personal knowledge**—ie, knowledge based on **firsthand observations and experiences**. This is true even when other evidence could be used to establish the same facts. And though a witness's lack of certainty in recalling those facts may affect the weight (ie, believability) of that testimony, it does not affect its admissibility **(Choice B)**.

Here, the victim seeks to testify about a distinctive accent that he personally heard when a person called him. Since this fact testimony is based on the victim's firsthand observation, it is admissible even though he cannot positively identify the voice as the defendant's.

(Choice A) The best evidence rule applies only when (1) the contents of a writing, recording, or photograph are at issue or (2) a witness is testifying based on facts learned from such items. It does not apply when a witness is testifying as to his/her personal knowledge (as seen here).

(Choice C) Had the contents of the tape been offered as evidence of the conversation, the best evidence rule would have required the victim to produce the original tape or a reliable duplicate. As a result, there would have been no need for the defendant to subpoena the tape.

Educational objective:

A witness can testify to any relevant matter of which the witness has personal knowledge—even if other evidence could be used to establish the same facts or the witness lacks certainty in recalling those facts.

References

Fed. R. Evid. 602 (personal-knowledge requirement).

Fed. R. Evid. 701 (lay witness opinion testimony).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial in federal court for fraudulently inducing an elderly woman to invest her life savings in an investment fund managed by the defendant. The prosecutor has disclosed that the elderly woman suffers from dementia and seeks to call her as a witness. The court, upon its own motion, conducted a competency hearing outside the presence of the jury. At the hearing, the woman gave her personal and family history but could not recall her age, address, or level of education. The woman was also unable to recall the current day, month, or year. However, she was able to understand the difference between the truth and a lie and appreciated the importance of being honest. The woman was also aware that she was in court because her savings had been depleted. When asked if she recognized the defendant, the woman stated that she was sure she had met the defendant but could not recall where.

Should the court allow the woman to testify?

A. No, because due to her dementia, the woman's testimony will not be helpful to the trier of fact.

B. No, because the woman could not sufficiently identify the defendant as a person connected with the crime.

C. Yes, because a crime victim cannot be precluded from testifying against her perpetrator.

D. Yes, because the woman meets the minimum standards for witness competency.

Explanation:

Under Federal Rule of Evidence 601, a person is generally **presumed competent to testify** until proven otherwise.* This includes persons called to testify while they are suffering from mental impairment or illness. When a question regarding a **witness's competency** arises, the court should **allow** the testimony so long as the witness has the **capacity to**:

recall and narrate impressions of the occurrence at issue (eg, the woman was aware that her savings had been depleted and sure that she had met the defendant) *and*

understand the **importance of telling the truth** (eg, the woman understood the difference between the truth and a lie and knew the importance of honesty).

Therefore, the woman meets the minimum standards for witness competency. Any defects in her testimony caused by an impairment—eg, her inability to recall the date or how she knew the defendant—will be weighed by the trier of fact in assessing her credibility.

*Note that the federal rules regarding competency do not apply in federal diversity cases, where the opposing parties are citizens of different states and the amount in controversy exceeds $75,000. Instead, witness competency is assessed under state law.

(Choice A) The woman's dementia may diminish the weight the jury gives her testimony. But that testimony can still be helpful to the jury because, for example, the woman will testify that she is sure she met the defendant.

(Choice B) The ability to identify a defendant as a person connected with the crime is not a requirement for finding a witness competent to testify.

(Choice C) A crime victim must satisfy the same testimonial requirements as any other witness. Therefore, a victim who does not meet the minimum standards for witness competency *can* be precluded from testifying against his/her perpetrator.

Educational objective:

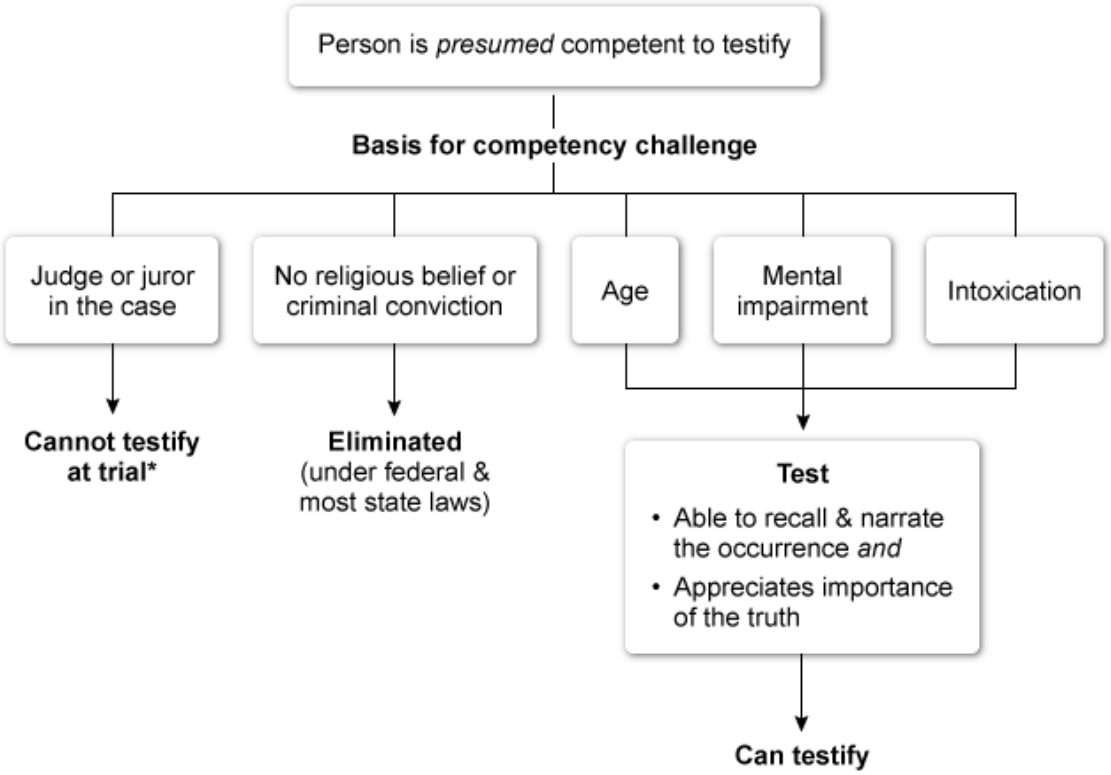
A witness is generally presumed to be competent to testify unless the witness lacks the capacity to (1) recall and narrate his/her impressions of the occurrence at issue and (2) understand the importance of telling the truth.

References

Fed. R. Evid. 601 (competency to testify).

Copyright © UWorld. All rights reserved.

Test for competency of witnesses



*Juror testimony on improper influence during deliberations is permitted after indictment or trial.

©UWorld

A man sued a mechanic for injuries suffered in a car accident allegedly caused by brakes that had been negligently repaired by the mechanic. At a settlement conference, the man exhibited the brake shoe that caused the accident and pointed out the alleged defect to the mechanic's expert, who had carefully examined the brake shoe. No settlement was reached.

The man inadvertently lost the brake shoe before trial. Therefore, the man seeks to testify on the condition of the shoe at trial.

Is the man's testimony admissible?

A. No, because the brake shoe was produced and examined as a part of settlement negotiations.

B. No, because the disappearance of the brake shoe was the man's fault.

C. Yes, because the man had personal knowledge of the shoe's condition.

D. Yes, because the mechanic's expert had been able to examine the shoe carefully.

Explanation:

Witness testimony

	Fact testimony	**Opinion testimony**
Lay witness	Personal knowledge of factual matter	Prohibited unless common-sense impression that: is rationally based on witness's perception helps clarify witness's testimony or fact issue *and* is not based on scientific/technical/specialized knowledge
Expert witness		Admissible from qualified* expert who: testifies based on sufficient facts or data acquired by reliable principles & methods has reasonable degree of certainty in opinion *and* helps trier of fact understand evidence or fact issue

*Has knowledge, skill, experience, training, or education in substantive area.

A witness may testify at trial to any matter:

that is **relevant**—ie, tends to make a material fact more or less probable *and*

about which that witness has **personal knowledge**—ie, knowledge based on firsthand observation or experience.

Here, the man sought to testify about the condition of the brake shoe that allegedly caused the accident (relevance). He had observed the condition of the brake shoe firsthand since he had exhibited it and pointed out the alleged defect to the mechanic's expert (personal knowledge). Therefore, the man's testimony is admissible.

(Choice A) Conduct and statements made during settlement negotiations are not admissible to (1) impeach a party or (2) prove or disprove the amount or validity of the disputed claim. Here, the brake shoe was produced and examined during settlement negotiations. But since the man likely acquired knowledge of the alleged defect on the brake shoe *outside* of the settlement conference, his testimony is admissible.

(Choice B) Under the best evidence rule, secondary evidence (eg, oral testimony) on the contents of a writing, recording, or photograph is only permitted if the original is unavailable due in no part to the proponent's bad faith. But this rule does not apply to physical evidence, and it would not exclude testimony on the *inadvertently* lost brake shoe.

(Choice D) The man can testify about the brake shoe—regardless of whether the mechanic's expert was able to examine it—because the man has personal knowledge of the shoe's condition.

Educational objective:

Witnesses can testify to any relevant matter about which they have personal knowledge—ie, knowledge based on a firsthand observation or experience.

References

Fed. R. Evid. 602 (lay witness personal-knowledge requirement).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A witness for the prosecution in a murder case testified on direct examination that she saw the defendant and the victim in a heated argument at a local bar the same night the victim was murdered. When asked by the prosecutor what time she left the bar, the witness was unable to remember. The prosecutor seeks to show the witness his handwritten notes of the witness's pretrial interview during which she stated that she left the bar at 10:00 p.m.

How is the trial court likely to view the prosecutor's request to show the witness his notes?

A. A proper attempt to introduce a recorded recollection.

B. A proper attempt to refresh the witness's recollection.

C. An improper attempt to lead the witness.

D. An improper attempt to support the witness's credibility.

Explanation:

A party may use **any item** (usually a writing) to **refresh a witness's recollection** when:

the witness **once had personal knowledge** of a fact or event but is now **unable to recall** it *and*

the item will **help the witness recall** that information.

Here, it is clear from the prosecutor's notes that the witness knew what time she left the bar during her pretrial interview and that viewing those notes would help her recall and testify to that time. Therefore, the court will likely view the prosecutor's request to show the witness his notes as a proper attempt to refresh her recollection.

(Choice A) It would only be proper to *admit* the prosecutor's notes into evidence as a recorded recollection if the witness had reviewed the notes when the matter was fresh in her mind and been satisfied that they accurately reflected her knowledge. But the notes can be used to *refresh* her recollection without regard to their admissibility.

(Choice C) Leading questions are ones that suggest the desired response to the person being asked. Although these questions are generally prohibited on direct examination, using a writing or other item to refresh a witness's memory does not constitute leading the witness.

(Choice D) It is improper to offer evidence to support a witness's credibility *before* it has been attacked (ie, before the witness has been impeached). But here, the prosecutor's notes are being used to refresh the witness's memory—not to establish her credibility.

Educational objective:

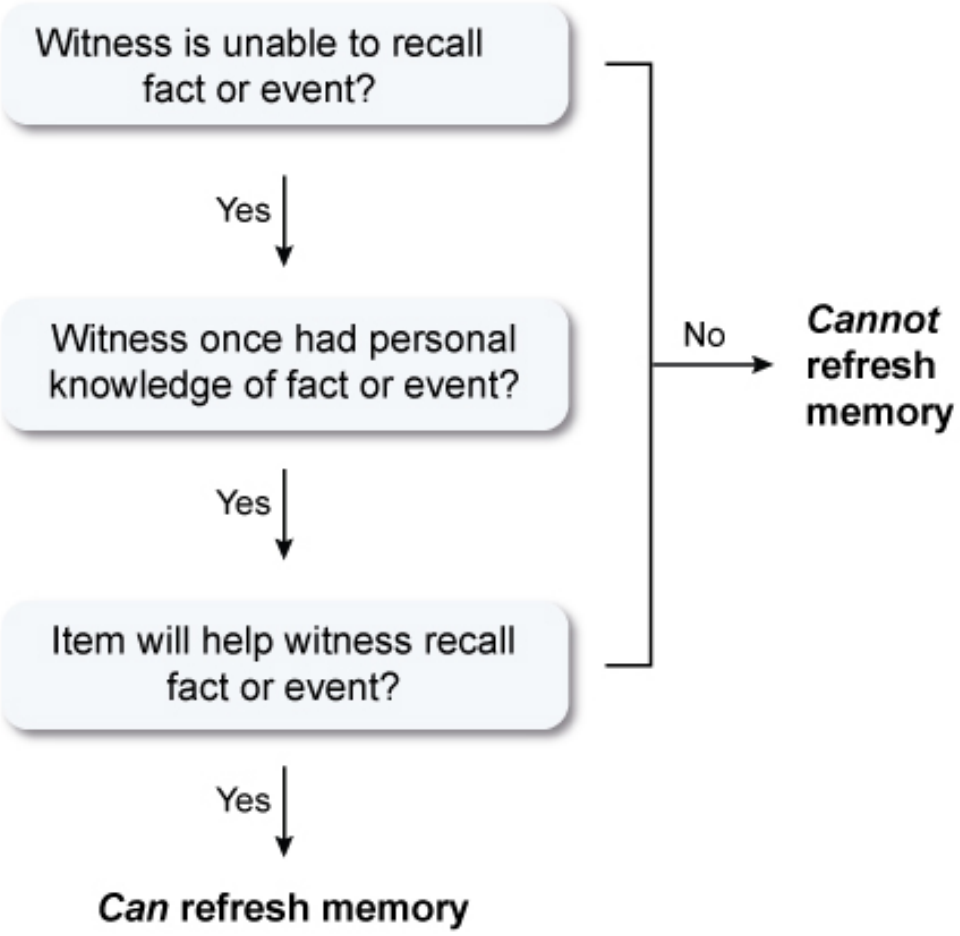
Any item may be used to refresh a witness's memory when (1) the witness once had personal knowledge of a matter but is now unable to recall it and (2) the item will help the witness recall that matter.

References

Fed. R. Evid. 612 (refreshing recollection).

Copyright © UWorld. All rights reserved.

Refreshing witness's recollection



©UWorld

In an automobile negligence action by the plaintiff against the defendant, a witness testified for the plaintiff. The defendant later called his own witness, who testified that the plaintiff's witness's reputation for truthfulness was bad.

On cross-examination of the defendant's witness, the plaintiff's counsel asks, "Isn't it a fact that when you bought your new car last year, you made a false affidavit to escape paying the sales tax?"

Is this question proper?

A. No, because character cannot be proved by specific instances of conduct.

B. No, because one cannot impeach an impeaching witness.

C. Yes, because it bears on the credibility of the defendant's witness.

D. Yes, because it will indicate the defendant's witness's standard of judgment as to reputation for truthfulness.

Explanation:

A **witness's character for truthfulness** (ie, credibility) may be **impeached** through any of the following methods:

Reputation testimony – testimony by someone sufficiently familiar with the witness's reputation among associates or in the community

Opinion testimony – testimony sharing an opinion on the witness's character that is based on personal knowledge and familiarity with the witness

Specific instances of conduct (SICs) that are probative of the witness's character for truthfulness

SICs can always be introduced **intrinsically** (ie, by questioning the witness being impeached about the SIC). But they can only be introduced **extrinsically** (ie, from other sources) if the SIC relates to a **criminal conviction** for a felony or crime of dishonesty.

Here, the plaintiff's counsel seeks to impeach the defendant's witness by cross-examining the witness about falsifying an affidavit to escape paying sales tax. This SIC bears on the witness's credibility, and it is being introduced through the witness's own testimony (ie, intrinsically). Therefore, the question is proper.

(Choice A) Character *can* be proved by SICs when character is an essential element of a charge, claim, or defense OR on cross-examination when the SIC is probative of the witness's character for truthfulness.

(Choice B) *Any* witness can be impeached, including those who are impeaching another witness.

(Choice D) Reputation or opinion testimony can be challenged by questioning the witness's standard of judgment—eg, "You claim she has an untruthful reputation, but did you know she was voted Citizen of the Year?" But here, the question goes to the defense witness's own conduct—not the reputation of the plaintiff's witness.

Educational objective:

A witness may be impeached by a specific instance of conduct that is probative of the witness's character for truthfulness. But this conduct must be introduced with intrinsic evidence unless it is a conviction for a felony or crime of dishonesty.

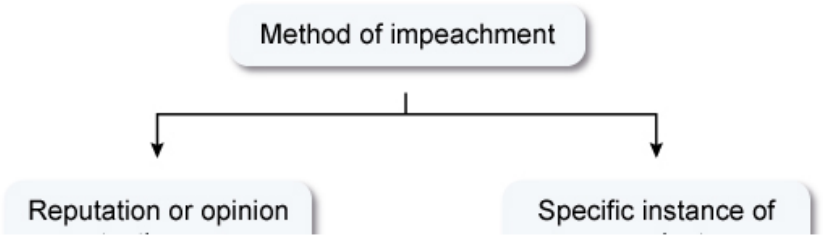
References

Fed. R. Evid. 608 (witness's character for truthfulness).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching witness's character for truthfulness
(FRE 608 & 609)



A plaintiff sued a water park for injuries that she and her son sustained from one of the park's waterslides. The plaintiff alleges that the accident occurred when a water park employee negligently let the plaintiff and her son use a two-person tube on a waterslide that accommodated only single-person tubes. At trial, the plaintiff's first witness testified that, although he did not see the accident, he heard his girlfriend say just before the accident, "I can't believe that employee just waved them through without looking." The water park seeks to cross-examine the witness about a prior incident in which the girlfriend lied on a job application.

Is the water park's proposed cross-examination proper?

A. No, because it refers to hearsay not within any exception.

B. No, because the girlfriend is not available to explain or deny the statement.

C. Yes, as impeachment for a bad act probative of the girlfriend's character for truthfulness.

D. Yes, as impeachment for prior inconsistency.

Explanation:

Hearsay is an out-of-court statement (eg, girlfriend's comment) offered to prove the truth of the matter asserted therein (eg, that the employee waved the plaintiff through without looking). Hearsay is inadmissible unless an exclusion or exception applies. One exception is a present sense impression—ie, a statement describing an event or condition made while or immediately after the declarant perceived it (as seen here).*

When a hearsay statement is admitted, the **hearsay declarant** can be impeached as if he/she were a witness **testifying** at trial. One method of impeaching a witness is by introducing evidence of **specific instances of conduct** (SICs) that are probative of the witness's **character for (un)truthfulness**. Only two types of SICs are admissible for this purpose:

convictions for a felony or crime of dishonesty *and*

other **bad acts**.

Here, in response to the girlfriend's admitted hearsay statement, the water park seeks to question the witness about a prior incident in which the girlfriend lied on a job application. Since this bad act is indicative of the girlfriend's character for untruthfulness, it can be used to impeach her. Therefore, the water park's proposed cross-examination is proper.

*Another exception is an excited utterance—ie, a statement related to a startling event or condition that was made while the declarant was still under the stress of the excitement caused by the event or condition. This exception does not apply here because the event did not seem to shock or excite the girlfriend.

(Choice A) The job application is not hearsay because it is being offered to impeach the girlfriend—not to prove the truth of the matter asserted in the application.

(Choice B) The water park can cross-examine the witness about the girlfriend's statement on her job application regardless of whether she is available to explain or deny it.

(Choice D) A hearsay declarant can be impeached with an inconsistent statement—ie, a statement, regardless of when it was made, that is inconsistent with the declarant's hearsay statement.** Here, the job application is not an inconsistent statement since it is unrelated to the statement made at the water park.

**In contrast, a prior inconsistent statement would be admissible to impeach a testifying witness only if the witness is available to explain or deny, and be questioned by the opposing party about, that statement.

Educational objective:

When an out-of-court statement is admitted under a hearsay exception, the declarant can be impeached as if the declarant had testified at trial—eg, with a bad act that is probative of the declarant's character for (un)truthfulness.

References

Fed. R. Evid. 806 (attacking hearsay declarant's credibility).

Fed. R. Evid. 608 (attacking character for truthfulness).

Copyright © UWorld. All rights reserved.

Impeaching hearsay declarant
(FRE 806)



FRE = Federal Rule of Evidence

©UWorld

A pedestrian died from injuries caused when a driver's car struck him. The pedestrian's executor sued the driver for wrongful death. At trial, the executor calls a nurse to testify that two days after the accident, the pedestrian said to the nurse, "The car that hit me ran the red light." Fifteen minutes thereafter, the pedestrian died. As a foundation for introducing evidence of the pedestrian's statement, the executor offers to the court a doctor's affidavit that the doctor was the intern on duty the day of the pedestrian's death and that several times that day, the pedestrian had said that he knew he was about to die.

May the affidavit be properly considered by the court in ruling on the admissibility of the pedestrian's statement?

A. No, because it is hearsay not within any exception.

B. No, because it is irrelevant since dying declarations cannot be used except in prosecutions for homicide.

C. Yes, because the judge may consider hearsay in ruling on preliminary questions.

D. Yes, because, though hearsay, it is a statement of then-existing state of mind.

Explanation:

Common preliminary questions

(FRE 104)

Evidence	**Preliminary questions on admissibility**
Expert testimony	Expert's qualifications
Lay witness testimony	Competency
Physical evidence	Chain of custody Legality of search/seizure
Existence of privilege	Foundational facts for application of privilege
Out-of-court statement	Foundational facts for hearsay exclusion or exception
Criminal defendant's confession	Miranda rights given Voluntariness of confession

FRE = Federal Rule of Evidence.

Under Federal Rule of Evidence 104, a **court is *not* bound** by **evidentiary rules***—except those relating to privilege—in deciding **preliminary questions of fact** relating to the admissibility of evidence. As a result, a court may consider otherwise inadmissible hearsay when determining the existence of a fact necessary to admit the proffered evidence.

For example, the dying declaration hearsay exception requires the proponent to establish that the declarant made the statement under the belief that death was imminent. The doctor's affidavit provides evidence regarding this fact. Therefore, it can be considered by the court in *ruling* on the admissibility of the pedestrian's statement—regardless of whether the affidavit would be barred by the hearsay rule at trial **(Choice A)**.

With some exceptions, the Federal Rules of Evidence apply to all civil and criminal proceedings before U.S. district courts, U.S. courts of appeal, U.S. bankruptcy courts, the U.S. Court of Federal Claims, and U.S. magistrate judges.

(Choice B) Dying declarations may be admitted in both homicide prosecutions *and* civil cases (as seen here). Therefore, this is not a basis to bar the court from considering the doctor's affidavit.

(Choice D) Out-of-court statements concerning a declarant's then-existing state of mind (eg, motive, intent, plan) are excepted from hearsay. However, this exception does not apply to later statements of memory, belief, or reflection—eg, the doctor's recital of past events contained in the affidavit.

Educational objective:

A court is not bound by evidentiary rules, except those on privilege, in determining preliminary questions of fact relating to the admissibility of evidence.

References

Fed. R. Evid. 1101 (applicability of federal rules of evidence).

Fed. R. Evid. 104 (preliminary questions).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with murder. While walking down the hallway of the federal courthouse during a recess in the defendant's trial, the judge overheard the defendant say to his attorney, "So what if I did it? There's not enough proof to convict." After the judge reported the incident to counsel, the prosecutor called the judge as a witness in the trial.

Is the judge's testimony regarding the defendant's statement admissible?

A. Yes, as the statement of a party-opponent.

B. Yes, because the defendant's statement, although otherwise privileged, was made without reasonable efforts to preserve confidentiality.

C. No, because the statement was a privileged attorney-client communication.

D. No, because a judge may never testify in a trial over which he or she is presiding.

Explanation:

Judge & juror competency as witness

Judge	May not testify in trial over which judge is presiding No objection necessary to preserve issue for appeal	
Juror	During trial	May not testify before jury in which juror is sitting Objection outside jury's presence must be permitted
	After trial	May not testify about jury deliberations
	or indictment	May testify about improper extraneous prejudicial information, outside influence, or mistake on verdict form

Under Federal Rule of Evidence 605, a **judge** is **prohibited from testifying** in a trial over which he/she is **presiding**. This is true even when that testimony pertains to otherwise admissible evidence—eg, statements by party-opponent, unprivileged communications. Therefore, the judge's testimony regarding the defendant's statement is inadmissible.

(Choice A) A statement made by a party-opponent (eg, the defendant) or his/her representative is generally admissible because it is not hearsay. But the statement cannot be admitted through the presiding judge's testimony.

(Choices B & C) Communications between a client and an attorney are privileged if they were intended to be confidential and made for the purpose of obtaining or providing legal assistance for the client. This privilege is not waived by an inadvertent disclosure to a third party (eg, the judge) unless the client failed to take reasonable steps to prevent or rectify the disclosure—eg, by communicating in a public place and loudly enough to be overheard (as seen here). But this does not allow a presiding judge to testify about the communication.

Educational objective:

A judge may never testify in a trial over which he/she is presiding—even when that testimony pertains to otherwise admissible evidence.

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with murder, and a witness testified for the prosecution. On cross-examination of the witness, the defendant seeks to elicit an admission that the witness was also charged with the same murder and that the prosecutor told her, "If you testify against the defendant, we will drop the charges against you after the conclusion of the defendant's trial."

Is the evidence about the prosecutor's promise to the witness admissible?

A. No, because the evidence is hearsay not within any exception.

B. No, because the law encourages plea-bargaining.

C. Yes, as an admission by an agent of a party-opponent.

D. Yes, as proper impeachment of the witness.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

A witness can be **impeached** (ie, discredited) with evidence of **self-interest or bias**—ie, something that may **motivate** the witness to **testify falsely**. Evidence of bias can be introduced intrinsically through the witness's own testimony OR extrinsically from any other source—including another witness's testimony.* Since a prosecutor's promise to drop pending charges may motivate a witness to testify falsely, evidence of the prosecutor's promise is admissible for impeachment purposes.

*The Federal Rules of Evidence do not require that a party lay a foundation by asking the witness about an alleged bias before introducing extrinsic evidence of that bias, but many states' rules of evidence do.

(Choice A) Hearsay is an out-of-court statement offered to prove the *truth* of the matter asserted therein. Since the prosecutor's statement is being offered to show that the witness's testimony is motivated by self-interest—not to prove that the charges would actually be dropped if the witness testified favorably—it is not hearsay.

(Choice B) The law does encourage plea-bargaining—ie, a criminal defendant's agreement to plead guilty or no contest to a crime (not seen here) in exchange for some form of consideration from the prosecutor (eg, probation in lieu of jail time). But this does not provide a basis for excluding evidence.

(Choice C) Statements made by and offered against a party-opponent are not hearsay. This includes statements made by a party's agent on a matter within the scope of the agency relationship. Here, there is no evidence that the witness was the prosecutor's agent, so this is not a basis to admit the testimony.

Educational objective:

Evidence that a witness's testimony was motivated by self-interest or bias is admissible to impeach the witness—ie, to discredit the truthfulness or reliability of the witness's testimony.

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for damages stemming from a slip-and-fall accident on the defendant's property. At trial, the plaintiff's key witness testified that the defendant failed to maintain his property, making it unsafe for visitors. The defendant then called his own witness to testify that the plaintiff's witness has a poor reputation in the community for honesty and had once cheated in a community raffle to win a new car. The plaintiff has objected to the defendant's witness's testimony.

How should the court proceed?

A. Admit the testimony in its entirety.

B. Admit the testimony regarding the plaintiff's witness's reputation for honesty, but exclude the testimony about the community raffle.

C. Exclude the testimony about the plaintiff's witness's reputation for honesty, but admit the testimony about the community raffle.

D. Exclude the testimony in its entirety.

Explanation:

Under Federal Rule of Evidence 608, a party may attack a witness's **character for truthfulness** through:

reputation or opinion testimony about the witness's character for truthfulness *or*

specific instances of conduct (SICs)—ie, convictions for felonies or crimes of dishonesty OR prior bad acts that relate to the witness's character for truthfulness.

Reputation or opinion testimony is introduced **extrinsically**—ie, from a source other than the witness's own testimony (eg, a different witness). Therefore, the court should allow the defendant to call his own witness to testify that the plaintiff's witness has a poor reputation in the community for honesty **(Choices C & D)**.

In contrast, a **SIC** that involves a conviction for a **felony or crime of dishonesty** can be introduced **extrinsically or intrinsically**—ie, through the attacked witness's own testimony. But a SIC involving a **bad act**—eg, cheating in a community raffle—may **only** be introduced **intrinsically**. Therefore, the court should *not* allow the defendant to call his own witness to testify about the plaintiff's witness's bad act **(Choice A)**.

Educational objective:

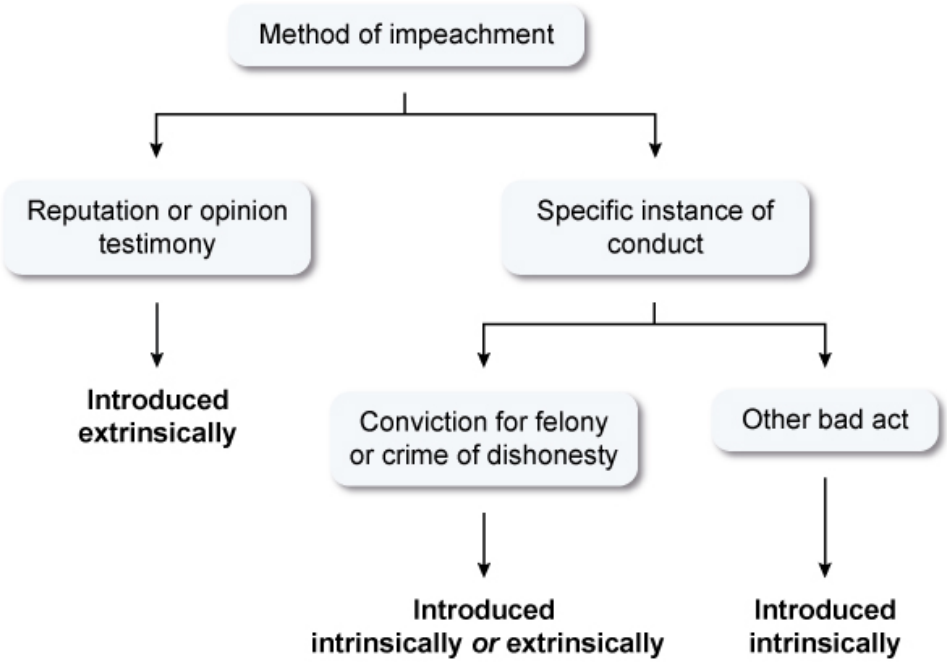
A party may attack a witness's character for truthfulness through (1) reputation or opinion testimony or (2) specific instances of conduct (SICs). A SIC that involves a conviction for a felony or crime of dishonesty can be introduced extrinsically or intrinsically. But a SIC involving a bad act may only be introduced intrinsically.

References

Fed. R. Evid. 608 (attacking witness's character for truthfulness).

Copyright © UWorld. All rights reserved.

Impeaching witness's character for truthfulness
(FRE 608 & 609)



FRE = Federal Rules of Evidence

©UWorld

At trial in an action for personal injuries suffered in a traffic accident, the plaintiff first calls the defendant as an adverse party. The plaintiff then calls a witness who was a passenger in the plaintiff's car but who also happens to be the defendant's former employer. On direct examination, the witness testifies to how the accident occurred and also expresses his opinion that the defendant is not a truthful person.

Which one of the following areas of questioning is most likely to be held beyond the proper scope of cross-examination?

A. In letters to prospective employers, the witness has described the defendant as very honest and dependable.
B. The defendant recently filed an action against the witness for breach of contract.
C. The plaintiff's injuries were not as serious as the plaintiff is claiming.
D. The witness has been falsifying his income tax returns.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

Under Federal Rule of Evidence (FRE) 611, the **scope of cross-examination** is **limited to** (1) the subject matter of **direct examination** and (2) matters affecting the **witness's credibility**. A witness's credibility may be attacked using various methods. For example, a party may introduce evidence of:

a prior inconsistent statement made by the witness **(Choice A)**
a motive for the witness to lie (eg, bias against a party) **(Choice B)** *or*
specific instances of conduct that are probative of the witness's character for truthfulness **(Choice D)**.
And though FRE 611 gives the court discretion to permit inquiry into additional matters, the court is under no obligation to do so.

During the plaintiff's direct examination, the witness testified as to what he observed on the day of the accident and opined that the defendant is not a truthful person. As a result, the defendant can cross-examine the witness on those matters and the witness's credibility. But since a question regarding the extent of the plaintiff's injuries falls into

neither category, it is most likely to be precluded as beyond the proper scope of cross-examination.

Educational objective:

The scope of cross-examination is limited to (1) the subject matter of direct examination and (2) matters affecting the witness's credibility.

References

Fed. R. Evid. 611 (scope of cross-examination).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with possession of a prohibited firearm after a sawed-off shotgun was found in his vehicle during a routine traffic stop. At trial, the prosecutor called the officer who stopped the defendant's vehicle and questioned him about the basis for the traffic stop and the subsequent discovery of the shotgun. Thereafter, the defendant's attorney cross-examined the officer. To clarify the officer's testimony, the court then asked the officer several questions about the discovery of the shotgun that had not been asked by either party. The court excused the officer after giving each attorney a chance for further examination.

Later, while the jury was on its lunch break, the defendant's attorney objected to the court's questioning of the officer. The attorney requested that the court's examination be stricken from the record and that the jury be instructed to disregard it. The court overruled the objection and denied the request. The defendant was subsequently convicted. On appeal, the defendant argues that the court's questioning of the officer was improper.

Is the court of appeals likely to overturn the defendant's conviction on this basis?

A. No, because a trial court may examine a witness for the purpose of clarifying the witness's testimony.

B. No, because the defendant's attorney failed to timely object to the court's questioning of the officer.

C. Yes, because in order to maintain neutrality, a trial judge may not examine a witness.

D. Yes, because the court did not give the defendant notice of its intent to examine the officer.

Explanation:

Court's authority over proceedings

(FRE 611, 614)

Court has reasonable control over mode/order of examining witnesses & presenting evidence to:
effectively determine truth
avoid wasting time
protect witnesses from harassment or undue embarrassment
This allows court to:
call witness upon its own motion or party's suggestion
examine witness, regardless of who called witness
FRE = Federal Rules of Evidence.

Federal Rule of Evidence (FRE) 611 grants the trial court control over the **mode and order** of presenting evidence and examining witnesses. This promotes the court's overarching duty to seek the truth. In furtherance of that duty, FRE 614 **authorizes the court** to develop or clarify testimony by:

calling a witness sua sponte or at the suggestion of a party *and/or*
examining a witness, regardless of who called the witness.
However, the court **abuses this authority** when it **fails to grant** all of the parties an **opportunity to examine** the witness or assume the **role of an advocate**.

Here, the officer was called by the prosecution and examined by both parties. The trial court then questioned the officer about the discovery of the shotgun to clarify his testimony, and the parties were given the opportunity to further examine him. There is no indication that the trial court assumed the role of an advocate, so the appellate court is *not* likely to overturn the defendant's conviction on this basis **(Choice C)**.

(Choice B) An objection is generally timely if it is made at the earliest opportunity. But this rule is relaxed when a party seeks to object to the court's examination of a witness, and the objection may be postponed until the next opportunity that the jury is no longer present (as the defendant did here).*

*This saves the parties from any discomfort that may result from objecting to the court's questioning of a witness before the jury, while ensuring that the objection is raised in time for the court to implement corrective measures.

(Choice D) The court need not provide notice of its intent to examine a witness called by a party (as seen here). But notice should be given when the court intends to call a witness whom neither party intended to call so the parties can prepare to examine the

witness. However, a conviction would only be overturned for failure to provide notice if it amounted to reversible error.

Educational objective:

A court may both call a witness sua sponte or at the suggestion of a party *and* examine a witness to clarify or develop testimony. In doing so, the court may not deprive a party of the opportunity to examine the witness or assume the role of an advocate.

References

Fed. R. Evid. 611 (mode and order of examining witnesses and presenting evidence).

Fed. R. Evid. 614 (court's calling or examining of a witness).

Copyright © UWorld. All rights reserved.

A woman is on trial for murder. The prosecutor calls a witness to testify that after being shot, the victim said, "[the woman] did it." Before the testimony is given, the woman's lawyer asks for a hearing on whether the victim believed his death was imminent when he made the statement.

From whom should the judge hear evidence on the issue before ruling on the admissibility of the dying declaration?

A. Both sides, with the jury not present, and decide whether the witness may testify to the victim's statement.

B. Both sides, with the jury present, and allow the jury to determine whether the witness may testify to the victim's statement.

C. Both sides, with the jury present, and decide whether the witness may testify to the victim's statement.

D. The prosecutor only, with the jury not present, and if the judge believes a jury could reasonably find that the victim knew he was dying, permit the witness to testify to the statement and allow the woman to offer evidence on the issue as a part of her case.

Explanation:

Hearings on preliminary questions

(FRE 104)

Preliminary question must be heard outside jury's presence if:

hearing is on admissibility of confession
criminal defendant-witness so requests *or*
justice so requires
FRE = Federal Rule of Evidence

Under Federal Rule of Evidence 104, the court must decide **preliminary questions of fact** about whether **evidence is admissible**, a privilege exists, or a witness is qualified. In making this decision, the court is only bound by evidentiary rules regarding privilege. Both parties can present evidence at the **hearing**, but it must occur **outside the presence of the jury** if:

it involves the admissibility of a confession
a defendant in a criminal case is a witness and so requests *or*
justice so requires—eg, when the disputed evidence would prejudice a party if heard by the jury.

Here, the woman's lawyer asked for a hearing to determine whether the victim's statement is admissible as a dying declaration. One preliminary issue of fact for this hearsay exception is whether the victim believed his death was imminent. Therefore, the court may hear evidence from both sides to determine whether the witness may ultimately testify to this statement at trial. And since the statement implicates the defendant in murder and would prejudice her if the jury heard it, justice requires that the hearing be held outside the jury's presence **(Choices B & C)**.

(Choice D) Preliminary questions of fact that relate to the *admissibility* of evidence (as seen here) are subject to the preponderance-of-the-evidence standard of proof. Conversely, those relating to the *relevance* of proffered evidence are subject to the prima-facie standard, which asks if a reasonable jury could find the fact. Therefore, whether the jury could reasonably find the victim believed his death was imminent is the wrong standard.

Educational objective:

The court must decide preliminary questions of fact about whether evidence is admissible, a privilege exists, or a witness is qualified. But the hearing must be conducted outside the jury's presence if (1) it involves the admissibility of a confession, (2) a defendant in a criminal case is a witness and so requests, or (3) justice so requires.

References

Fed. R. Evid. 104 (preliminary questions).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was prosecuted for sexually abusing his 13-year-old stepdaughter. The stepdaughter testified to the defendant's conduct. On cross-examination, defense counsel asks the stepdaughter, "Isn't it true that shortly before you complained that [the defendant] abused you, he punished you for maliciously ruining his vintage record collection?"

Is defense counsel's question proper?

A. No, because it falls outside the scope of direct examination.

B. No, because the incident had nothing to do with the stepdaughter's truthfulness.

C. Yes, because it relates to a possible motive for the stepdaughter to falsely accuse the defendant.

D. Yes, because the stepdaughter's misconduct is relevant to her character for veracity.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

A party may **impeach** (ie, discredit) a **witness** by establishing that **bias** or self-interest **motivated** the witness to **testify falsely**. Here, defense counsel asked the defendant's stepdaughter if her accusation of sexual abuse came shortly after the defendant punished her for ruining his records. That question establishes a possible motive for the stepdaughter to retaliate against the defendant by testifying falsely. Therefore, the question is proper.

(Choice A) Cross-examination is generally limited to the scope of direct examination AND any matters impacting the witness's credibility. So though defense counsel's question may fall outside the scope of direct examination, it can still be asked on cross-examination since it relates to the stepdaughter's credibility.

(Choices B & D) The incident—ie, maliciously ruining a record collection—has nothing to do with the stepdaughter's truthful character or veracity. But the defense's question is still proper because the incident is relevant to impeach the *credibility* of the stepdaughter's testimony.

Educational objective:

A party may impeach a witness by establishing that bias or self-interest motivated the witness to testify falsely.

References

Fed. R. Evid. 608 (witness's character for truthfulness).

Fed. R. Evid. 607 (who may impeach witness).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued the defendant for dissolution of their yearlong partnership. One issue concerned the amount of money the plaintiff had received in cash. It was customary for the defendant to give the plaintiff money from the cash register as the plaintiff needed it for personal expenses. The plaintiff testified that, as he received money, he jotted down the amounts in the partnership ledger. Although the defendant had access to the ledger, she made no changes in it.

The ledger was admitted into evidence. The defendant seeks to testify to her memory of much larger amounts she had given the plaintiff.

Is the defendant's testimony admissible or inadmissible?

A. Admissible, because it is based on the defendant's firsthand knowledge.

B. Admissible, because the ledger entries offered by a party-opponent opened the door.

C. Inadmissible, because the defendant's failure to challenge the accuracy of the ledger constituted an adoptive admission.

D. Inadmissible, because the ledger is the best evidence of the amounts the plaintiff received.

Explanation:

Witness testimony

	Fact testimony	**Opinion testimony**
Lay witness	Personal knowledge of factual matter	Prohibited unless common-sense impression that: is rationally based on witness's perception helps clarify witness's testimony or fact issue *and* is not based on scientific/technical/specialized knowledge
Expert witness		Admissible from qualified* expert who: testifies based on sufficient facts or data acquired by reliable principles & methods has reasonable degree of certainty in opinion *and* helps trier of fact understand evidence or fact issue

*Has knowledge, skill, experience, training, or education in substantive area.

A **lay witness** can generally **testify** to any relevant matter based on his/her **personal knowledge**. This includes both:

factual matters that the witness **perceived firsthand**—eg, "I saw a man holding a beer bottle and slurring his words" *and*

common-sense impressions that are rationally based on those perceptions—eg, "The man was drunk."

Here, the defendant seeks to testify that the plaintiff received much larger amounts of cash than those recorded in a ledger. And since this testimony is based on the defendant's firsthand knowledge—her memory of the cash amounts she gave—it is admissible.

(Choice B) The defendant's testimony is admissible—regardless of whether the ledger had been offered by the plaintiff (the party-opponent)—because that testimony is relevant and based on her personal knowledge.

(Choice C) An adoptive admission is a hearsay exception that allows the admission of another's statement that a party-opponent has adopted as his/her own. Therefore, the defendant's failure to challenge the accuracy of the ledger may constitute an adoptive admission if a reasonable person would have done so. But this rule does not preclude the defendant's testimony rebutting the ledger's contents.

(Choice D) The best evidence rule generally requires that an original writing, recording, or photograph (eg, the ledger) be admitted to *prove* its contents. But this rule does not affect the admissibility of the defendant's testimony to *rebut* the ledger's contents.

Educational objective:

A lay witness can generally testify to any relevant matter based on the witness's personal knowledge or a common-sense impression that is rationally based on such knowledge.

References

Fed. R. Evid. 602 (personal knowledge requirement).

Fed. R. Evid. 701 (opinion testimony by lay witnesses).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued an industrial facility in her neighborhood for injuries to her health caused by air pollution. At trial, the plaintiff was asked questions on direct examination about the days on which she had observed large amounts of dust in the air and how long the condition had lasted. She testified that she could not remember the specific times, but that she maintained a diary in which she had accurately recorded this information on a daily basis. When her attorney sought to refresh her recollection with her diary, she still could not remember. The plaintiff's attorney seeks to have the information in the diary admitted at trial.

Is the information admissible?

A. No, because reviewing it did not refresh the plaintiff's recollection.

B. No, unless it is offered by the defendant.

C. Yes, and the plaintiff should be allowed the option of reading it into evidence or having the diary received as an exhibit.

D. Yes, and the plaintiff should be allowed to read the diary into evidence.

Explanation:

Refreshed recollection v. Recorded recollection

	Admissibility	**Use by opponent**
Refreshed recollection	Item may be used to refresh witness's memory either before or during testimony if:	Inspect item Compel production
(FRE 612)	witness once knew but can no longer recall fact *and* item will help witness remember	Use on cross-examination Introduce into evidence
Recorded recollection	Record may be used as substantive proof & read into evidence if:	Offer as exhibit
(FRE 803(5))	witness once knew but can no longer recall fact witness made or adopted record when fresh in mind *and* record accurately reflects witness's knowledge	

FRE = Federal Rule of Evidence.

A witness's memory can be refreshed by allowing him/her to review a record (or other item) before or while testifying, but that record is generally not admitted into evidence. However, under the **past recollection recorded** exception to the hearsay rule, a **record** may be **read into evidence** if:

the witness **once knew** the recorded information **but cannot recall** it at trial
the witness **made or adopted** the record **when the matter was fresh** in his/her mind *and*
the record **accurately** reflects the witness's personal knowledge at the time it was made.

Here, the plaintiff could not recall specific details about the dust in the air at trial, even after her attorney tried to refresh her recollection with her diary. But she once knew this information because she had accurately recorded her personal observations in the diary on a daily basis, when the matter was fresh on her mind. Therefore, she should be allowed to read the information in the diary into evidence **(Choice A)**.

However, she cannot have the diary received as an exhibit because there is a risk that the jury may give greater weight to that record simply because it is in writing. Instead, only an adverse party (eg, the defendant) can do so—allowing portions that might not have been read into evidence to also be considered in the interest of fairness **(Choices B & C)**.

Educational objective:

A past recollection recorded may be read into evidence if: (1) the witness once knew the recorded information but cannot recall it at trial, (2) the witness made or adopted the record when the matter was fresh in his/her mind, and (3) the record accurately reflects the witness's personal knowledge at that time.

References

Fed. R. Evid. 612 (refreshing a witness's recollection).

Fed. R. Evid. 803(5) (recorded recollection exception to hearsay rule).

Fed. R. Evid. 106 (remainder of or related writings or recorded statements).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In contract litigation between a plaintiff and a defendant, a fact of consequence to the determination of the action is whether the plaintiff provided the defendant with a required notice at the defendant's branch office "in the state capital." The plaintiff introduced evidence that he gave notice at the defendant's office in City X. Although City X is the state's capital, the plaintiff failed to offer proof of that fact.

Which of the following statements is most clearly correct with respect to possible judicial notice of the fact that City X is the state's capital?

A. If the court takes judicial notice, it should instruct the jury that it may, but is not required to, accept as conclusive the fact that City X is the capital.

B. If the court takes judicial notice, the burden of persuasion on the issue of whether City X is the capital shifts to the defendant.

C. The court may take judicial notice even though the plaintiff does not request it.

D. The court may take judicial notice only if the plaintiff provides the court with an authenticated copy of the statute that designates City X as the capital.

Explanation:

Judicial notice of adjudicative facts

(FRE 201)

Case type	**Taking notice**	**Instructing jury**
Civil	Court: *may* take notice on its own *must* take notice if party requests & supplies necessary information	Jury *must* accept noticed fact as conclusive
Criminal		Jury *may* accept noticed fact as conclusive

FRE = Federal Rule of Evidence

Judicial notice is the **court's acceptance** of a fact as true without the need for a party to prove that fact. Under Federal Rule of Evidence 201, the court may take judicial notice of *any* **adjudicative fact** that is **not subject to reasonable dispute**—eg, the fact that City X is the state's capital. The court:

***may* take judicial notice** sua sponte* (ie, **on its own initiative**) *or*

must take judicial notice if a party requests it and supplies the court with the necessary information to indicate that the fact is not subject to reasonable dispute **(Choice D)**.

Therefore, the court may take judicial notice of the fact that City X is the state's capital even though the plaintiff does not request it. And since this contract litigation is a **civil case**, that judicial notice is **binding on the jury**. This means that the jury should be instructed that it **must accept the noticed fact** as conclusive **(Choice A)**.

*The court may *not* take judicial notice of a fact based solely on the judge's own personal knowledge. Instead, the fact must be generally known within the community (ie, notorious) OR capable of being accurately and readily determined (ie, manifest).

(Choice B) Once judicial notice is taken in this civil case, the issue of whether City X is the capital is decided and the jury cannot weigh the evidence or reach its own conclusion on this issue. As a result, there is no burden of persuasion (ie, standard of proof) on this issue.

Educational objective:

A court can take judicial notice of an adjudicative fact that is not subject to reasonable dispute (1) on its own initiative or (2) at a party's request. And in a civil case, a noticed fact is binding on the jury.

References

Fed. R. Evid. 201 (judicial notice).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman's car was set on fire by vandals. When she submitted a claim of loss for the car to her insurance company, the insurance company refused to pay, asserting that the woman's policy had lapsed due to the nonpayment of her premium. The woman sued the insurance company for breach of contract.

At trial, the woman testified that she had, in a timely manner, placed a stamped, properly addressed envelope containing the premium payment in the outgoing mail bin at her office. The woman's secretary then testified that every afternoon at closing time he takes all outgoing mail in the bin to the post office. The insurance company later called its mail clerk to testify that he opens all incoming mail and that he did not receive the woman's premium payment.

The woman and the insurance company have both moved for a directed verdict.

For which party, if either, should the court direct a verdict?

A. For the insurance company, because neither the woman nor her secretary has any personal knowledge that the envelope was delivered to the post office.

B. For the insurance company, because the mail clerk's direct testimony negates the woman's circumstantial evidence.

C. For the woman, because there is a presumption that an envelope properly addressed and stamped was received by the addressee.

D. For neither the woman nor the insurance company, because under these circumstances the jury is responsible for determining whether the insurance company received the payment.

Explanation:

Presumptions

(conclusions drawn when party proves underlying facts)

Conclusive Must be accepted as true & cannot be overcome by other evidence

Eg, child under certain age cannot commit intentional tort

Rebuttable May be overcome if opposing party produces sufficient contrary evidence

Eg, witness presumed competent to testify, person presumed sane

A **presumption** is a conclusion that must be drawn once a party proves an underlying fact or set of facts. Most presumptions are **rebuttable**, meaning that they can be overcome if the opposing party produces **sufficient evidence** to **contradict the presumed fact**. Once this occurs, the **presumption vanishes** and the fact finder (eg, jury) must weigh the evidence to decide the issue.*

Here, the woman produced evidence that the envelope containing her premium payment was properly addressed, stamped, and mailed. This created a presumption that the insurance company received it. But it was rebutted by the insurance company's mail clerk, who testified that he opens all incoming mail and did not receive the woman's payment. And since the presumption disappeared, the jury is responsible for determining whether the payment was received. As a result, the court should not direct a verdict for *either* party **(Choices B & C)**.

*This bursting-bubble approach does not apply to conclusive presumptions or in federal diversity cases, where state law governs the effect of a presumption.

(Choice A) Lay witness (ie, nonexpert) testimony must be based on the witness's personal knowledge. Here, the woman's testimony (envelope placed in outgoing mail) and her secretary's testimony (outgoing mail taken to post office) were based on their personal knowledge. And together, that evidence is sufficient to show that the envelope reached the post office and to trigger the rebuttable presumption that the insurance company received it.

Educational objective:

Rebuttable presumptions can be overcome by contrary evidence produced by the opposing party. Once this occurs, the presumption disappears and the fact finder must weigh the evidence to decide the issue.

References

Fed. R. Evid. 301 (presumptions in civil cases).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A defendant was charged in federal court with selling a controlled substance (heroin) in interstate commerce. At trial, the prosecutor introduced evidence that the defendant had obtained the substance from a supplier in Kansas City and had delivered it in Chicago. The defendant denied that the substance in question was heroin, but he introduced no contrary evidence on the issue of transportation.

Which of the following instructions regarding judicial notice may the judge legitimately give the jury?

A. "I instruct you that there is a presumption that the substance was sold in an interstate transaction, but the burden of persuasion on that issue is still on the government."

B. "If you find that the defendant obtained the substance in Kansas City and delivered it to Chicago, I instruct you to find that the substance was sold in an interstate transaction."

C. "If you find that the defendant obtained the substance in Kansas City and delivered it to Chicago, then the burden of persuasion is on the defendant to establish that the transaction was not interstate."

D. "If you find that the defendant obtained the substance in Kansas City and delivered it to Chicago, then you may, but you are not required to, find that the transaction was interstate in nature."

Explanation:

Judicial notice allows a court to **recognize** an adjudicative fact about the case or parties **as true**—without a formal presentation of evidence—if that fact is not subject to reasonable dispute. In **civil** cases, the court must **instruct the jury** to **accept** the noticed fact as conclusive. But in **criminal** cases, the court must instruct the jury that it ***may or may not*** **accept** the noticed fact as conclusive.

Here, the court could take judicial notice of the *undisputed* fact that the defendant transported a substance from Kansas City to Chicago. But since this is a criminal case, the judge cannot instruct the jury to presume or find that the substance was sold in an interstate transaction **(Choices A & B)**. The judge can merely bring the judicially noticed fact to the jury's attention and allow it to freely reject or accept that fact.

(Choice C) A judicially noticed fact in a criminal case cannot shift the constitutionally mandated burden of persuasion requiring the *government* to prove all elements of a crime beyond a reasonable doubt.

Educational objective:

A jury must accept a judicially noticed fact as conclusive in civil cases. But the jury is *not* required to do so in criminal cases.

References

Fed. R. Evid. 201(f) (jury instruction for judicial notice).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Jury instruction on judicially noticed fact



©UWorld

A plaintiff sued the insurer of her home after the insurer denied coverage for water damage to the home allegedly caused by a frozen plastic pipe that burst. At trial, the insurer called as an expert witness an engineer, who testified that the pipe had burst because of age rather than freezing. On cross-examination, the engineer admitted that five years earlier, he had been convicted of tax fraud, even though he had asserted that it was his accountant's error. In response, the insurer calls a witness, who is well acquainted with the engineer and his reputation, to testify that (1) in the witness's opinion, the engineer is a truthful person, and (2) the engineer's neighbors all describe him as a truthful person.

How much, if any, of the witness's testimony is admissible?

A. All of the testimony is admissible to support the engineer's credibility.

B. Only the portion concerning the engineer's reputation is admissible, because where both opinion and reputation evidence are available, only the latter is admissible under a rule of preference.

C. Only the portion concerning the witness's opinion of the engineer's character, because the witness's reporting of the neighbors' comments is hearsay.

D. None of the testimony is admissible, because it is collateral, having no bearing on the engineer's qualifications as an expert.

Explanation:

After a witness's **character for truthfulness** has been attacked, the party who called the witness may **rehabilitate** the witness's truthful character. This can be accomplished by offering **any or all of the following**:

reputation testimony – testimony by someone sufficiently familiar with the witness's reputation among associates or in the community

opinion testimony – testimony sharing an opinion on the witness's character that is based on personal knowledge and familiarity with the witness *or*

testimony on cross-examination about **specific instances of conduct** that are probative of the truthful character of the witness *or* another witness whose character the witness being cross-examined has testified.

Here, the engineer's character for truthfulness was attacked when the plaintiff elicited an admission that the engineer had been convicted of tax fraud five years earlier. In response, the insurer called a witness to testify to (1) the witness's *opinion* of the engineer's character for truthfulness and (2) the engineer's *reputation* among his neighbors, who all describe him as a truthful person. Since both methods can be used to support a witness's truthful character, all of the testimony is admissible for this purpose.

(Choice B) The Federal Rules of Evidence have a general preference for reputation and opinion testimony over evidence of specific instances of conduct. But there is no rule requiring that one of these methods be admitted over others.

(Choice C) The witness's reporting of the neighbor's comments *is* hearsay because these out-of-court statements are being offered for the truth of the matter asserted therein (ie, that the engineer is truthful). However, reputation testimony is *excepted* from the rule against hearsay.

(Choice D) The witness's testimony has no bearing on the engineer's qualifications as an expert. But it is relevant to the engineer's character for truthfulness, which was attacked by the plaintiff. Therefore, the testimony is not collateral (ie, irrelevant).

Educational objective:

After a witness's character for truthfulness has been attacked, the party who called the witness may rehabilitate that character by offering (1) reputation testimony, (2) opinion testimony, or (3) testimony on cross-examination regarding specific instances of conduct.

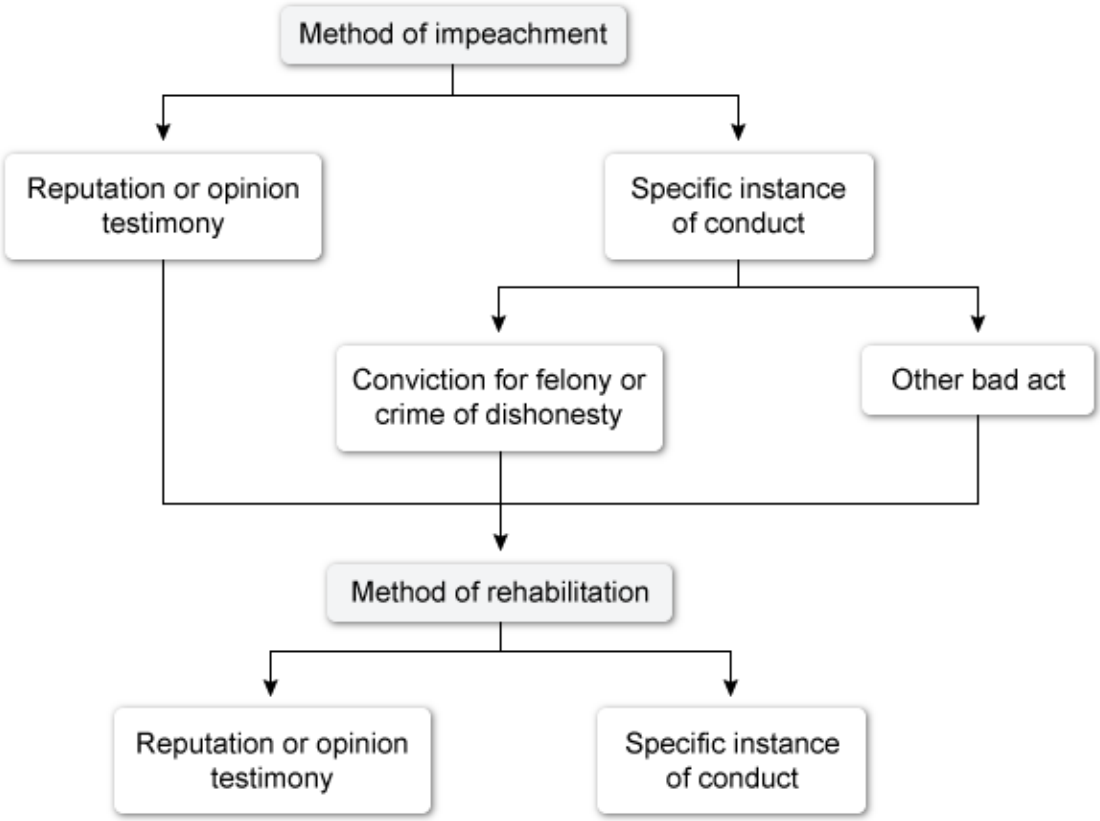
References

Fed. R. Evid. 806 (impeaching and rehabilitating witness's character for truthfulness).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching and rehabilitating witness's truthful character
(FRE 608 & 609)



FRE = Federal Rules of Evidence

©UWorld

A defendant is charged with murder in connection with a carjacking incident during which the defendant allegedly shot the victim while attempting to steal his car. The prosecutor calls the victim's four-year-old son, whose face was horribly disfigured by the same bullet, to testify that the defendant shot his father and him.

Should the son's testimony be admitted or excluded?

A. Admitted, provided the prosecutor first provides evidence that persuades the judge that the son is competent to testify despite his tender age.

B. Admitted, provided there is sufficient basis for believing that the son has personal knowledge and understands his obligation to testify truthfully.

C. Excluded, because it is insufficiently probative in view of the son's tender age.

D. Excluded, because it is more unfairly prejudicial than probative.

Explanation:

Witness testimony is generally admissible once the witness has given an oath or affirmation to **testify truthfully** AND the proponent has established a **proper foundation** for that testimony. A foundation for **lay witness** (ie, nonexpert) testimony is properly laid by showing that the testimony is:

based on the witness's **personal knowledge** – a matter that the witness **perceived firsthand** *and*

relevant to the case – tends to make a **material fact more or less probable** than it would be without the evidence.

Here, the son's testimony is based on personal knowledge since he was disfigured by the same bullet that killed his father. And that testimony is relevant because it tends to make a material fact—that the defendant was the killer— more probable than it would be without that testimony. As a result, this testimony should be admitted unless the opponent raises a valid objection. Two objections could be made here:

incompetency – the witness is unable to testify truthfully and accurately (eg, due to age or mental capacity) *and*

unfair prejudice – the probative value (ie, degree of relevance) of the evidence is substantially outweighed by the risk of unfair prejudice or other concerns.

It is *presumed* that a witness of any age is competent to testify so long as that testimony is (1) based on the witness's personal knowledge and (2) supported by an oath or affirmation to testify truthfully **(Choice A)**. And though the son's disfigured face may prejudice the defendant, the son's testimony regarding the killer's identity goes to the heart of this case. Therefore, its high probative value outweighs the risk of unfair prejudice **(Choices C & D)**.

Educational objective:

Lay witness testimony is generally admissible if (1) the witness has given an oath or affirmation to testify truthfully and (2) the proponent has laid a proper foundation—personal knowledge and relevance—for that testimony.

References

Fed. R. Evid. 602 (personal knowledge requirement).

Fed. R. Evid. 401, 403 (admission and exclusion of relevant evidence).

Fed. R. Evid. 601 (competency to testify).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admission of lay witness testimony

Oath or affirmation	Foundation	Objection

A woman sued a man for damages stemming from an automobile collision. At trial, the woman wishes to show by extrinsic evidence that the man's primary witness is also his partner in a small-scale marijuana growing operation.

Should the court admit the evidence?

A. No, because bias must be shown on cross-examination and not by extrinsic evidence.
B. No, because the evidence would be more prejudicial than probative.
C. Yes, as evidence of the witness's character.
D. Yes, as evidence of the witness's possible bias in favor of the man.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

A party may attack a **witness's credibility** by offering evidence that the witness is **biased** and therefore had a motive to lie while testifying. One method of establishing bias is showing that the witness is **affiliated** with the opposing party outside the context of the litigation. This can be established through either:

intrinsic evidence – by questioning the witness about the affiliation *or*

extrinsic evidence – by introducing the affiliation using **any source** other than the witness's testimony **(Choice A)**.

Here, the woman seeks to introduce extrinsic evidence that the man's primary witness is also his partner in a small-scale marijuana growing operation. Since that affiliation is evidence of the witness's possible bias in favor of the man, the court should admit the evidence.

(Choice B) Relevant evidence may be excluded if its probative value is substantially outweighed by a danger of unfair prejudice—ie, a danger that the jury may decide the case on improper grounds. Here, the evidence poses some danger that the jury may side against

the man because he grows marijuana. But that danger does not outweigh the evidence's probative value since it speaks directly to the witness's bias.

(Choice C) A witness's character for truthfulness becomes relevant when the witness takes the stand to testify, so a party may attack the witness's character—eg, by cross-examining the witness about specific instances of conduct that bear on the witness's truthfulness. But here, the woman seeks to establish the witness's bias, not to attack the witness's general character for truthfulness.

Educational objective:

One method of establishing bias is showing that the witness is affiliated with the opposing party outside the context of the litigation. Such affiliation can be established through intrinsic or extrinsic evidence.

Copyright © UWorld. All rights reserved.

At a defendant's trial for robbery, the defendant called a witness who testified that he and the defendant were camping in a state park on the night in question. On cross-examination, the prosecutor asked the witness if it is true that the witness forged his former manager's signature to gain access to a company expense account. The witness denied forging the signature. The prosecutor now seeks to question the witness about the 30-day suspension that he received after company officials determined that he had forged the manager's signature.

Is the prosecutor's proposed question proper?

A. No, because a party may not reference the consequences of a bad act denied by a witness.

B. No, because the question exceeds the proper scope of cross-examination.

C. Yes, to impeach the witness on a collateral issue.

D. Yes, to rebut the witness's denial of the forgery.

Explanation:

Under Federal Rule of Evidence 608, a party may attack a witness's **character for truthfulness** through:

reputation or opinion testimony *or*

specific instances of conduct (SICs) involving convictions for felonies or crimes of dishonesty OR **prior bad acts** that relate to the witness's character for truthfulness.

Reputation and opinion testimony, and SICs involving convictions, can be introduced *extrinsically**—ie, from a source other than the witness's own testimony. However, SICs involving bad acts (eg, forging a signature) may only be **introduced intrinsically**—ie, by questioning the witness him/herself about the bad act.

As a result, if the **witness denies** the bad act, the examining party **must accept the witness's answer**. The examining party **cannot rebut** the witness's denial by referencing the consequences of the bad act (eg, the witness's 30-day suspension) **(Choice D)**. Doing so would, in effect, violate the prohibition against extrinsic evidence by introducing a third party's (eg, company officials') opinion about the bad act.

*SICs involving convictions may also be introduced intrinsically.

(Choice B) The scope of cross-examination is limited to the subject matter of direct examination and matters affecting the witness's credibility (eg, character for truthfulness). The prosecutor's question about the forgery attempted to attack the witness's character for truthfulness. And the question about the suspension seeks to show that the witness falsely denied the forgery. Therefore, both questions are *within* the scope of cross-examination.

(Choice C) Under the collateral-evidence rule, extrinsic evidence is not admissible to impeach a witness on a collateral issue—ie, a matter that has no bearing on the outcome of the case. Therefore, the reference to the suspension (extrinsic evidence) is *not* admissible to impeach the witness about the forgery—a matter that is collateral to the defendant's robbery trial.

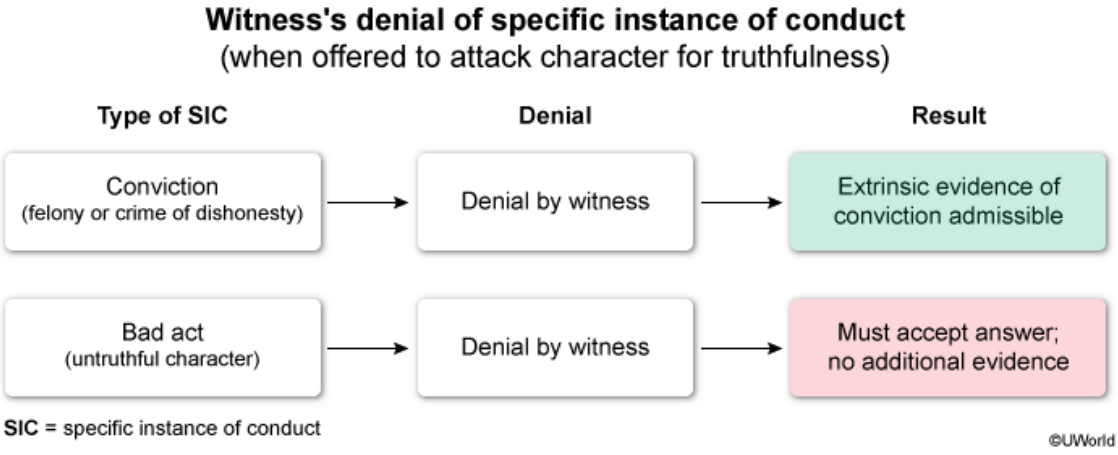
Educational objective:

If a witness denies a bad act offered to attack the witness's character for truthfulness, the examining party must accept the answer. The examining party cannot reference the consequences of the bad act or otherwise rebut the denial with extrinsic evidence.

References

Fed. R. Evid. 608(b) (attacking a witness's character for truthfulness with a specific instance of conduct).

Copyright © UWorld. All rights reserved.



A defendant is charged with mail fraud. At trial, the defendant has not taken the witness stand, but he has called a witness who has testified that the defendant has a reputation for honesty. On cross-examination of the witness, the prosecutor seeks to ask her, "Didn't you hear that two years ago the defendant was arrested for embezzlement?"

Should the court permit the question?

A. No, because the defendant has not testified and therefore has not put his character at issue.

B. No, because the incident was an arrest, not a conviction.

C. Yes, because it seeks to impeach the credibility of the witness.

D. Yes, because the earlier arrest for a crime of dishonesty makes the defendant's guilt of the mail fraud more likely.

Explanation:

The **mercy rule** allows a **criminal defendant** to present evidence of his/her **good character** if that trait is **pertinent to the charged crime**—eg, a defendant's *honesty* is pertinent to a crime of *dishonesty* like mail fraud. But under this rule, the defendant's good character can only be established by calling a witness to provide reputation or opinion testimony (as seen here).

Once the defendant's character witness has testified, the prosecution can **impeach that witness**—or later rebut the witness's testimony—by casting doubt on the witness's opinion of the defendant or knowledge of the defendant's reputation by:

cross-examining the witness about a **specific instance of conduct** (SIC) by the defendant that relates to the trait in question *or*

calling **another witness** to provide **reputation or opinion testimony** on the defendant's corresponding bad-character trait.

Here, the prosecutor seeks to cross-examine the defendant's character witness about a SIC involving the defendant's arrest for embezzlement—a crime of dishonesty. The court should permit this question since it seeks to impeach the witness's credibility regarding the defendant's reputation for honesty.

(Choice A) Although the defendant did not testify, he called a witness to attest to his good character for honesty. This opened the door for the prosecution to impeach that witness's credibility by asking about the defendant's earlier arrest for embezzlement.

(Choice B) A SIC that bears on the defendant's pertinent character trait need not have resulted in a conviction to impeach the defendant's character witness. Therefore, the prosecutor's question regarding the defendant's arrest for a crime of dishonesty should not be excluded on this ground.

(Choice D) Prior crimes or bad acts are inadmissible to show a person's propensity to commit the charged crime and establish guilt. Therefore, the defendant's arrest for embezzlement cannot be used to show that he likely committed mail fraud.

Educational Objective

A witness's reputation or opinion testimony about a criminal defendant's good character can be impeached by (1) cross-examining the witness about a specific instance of conduct by the defendant or (2) presenting opposing reputation or opinion testimony by another witness.

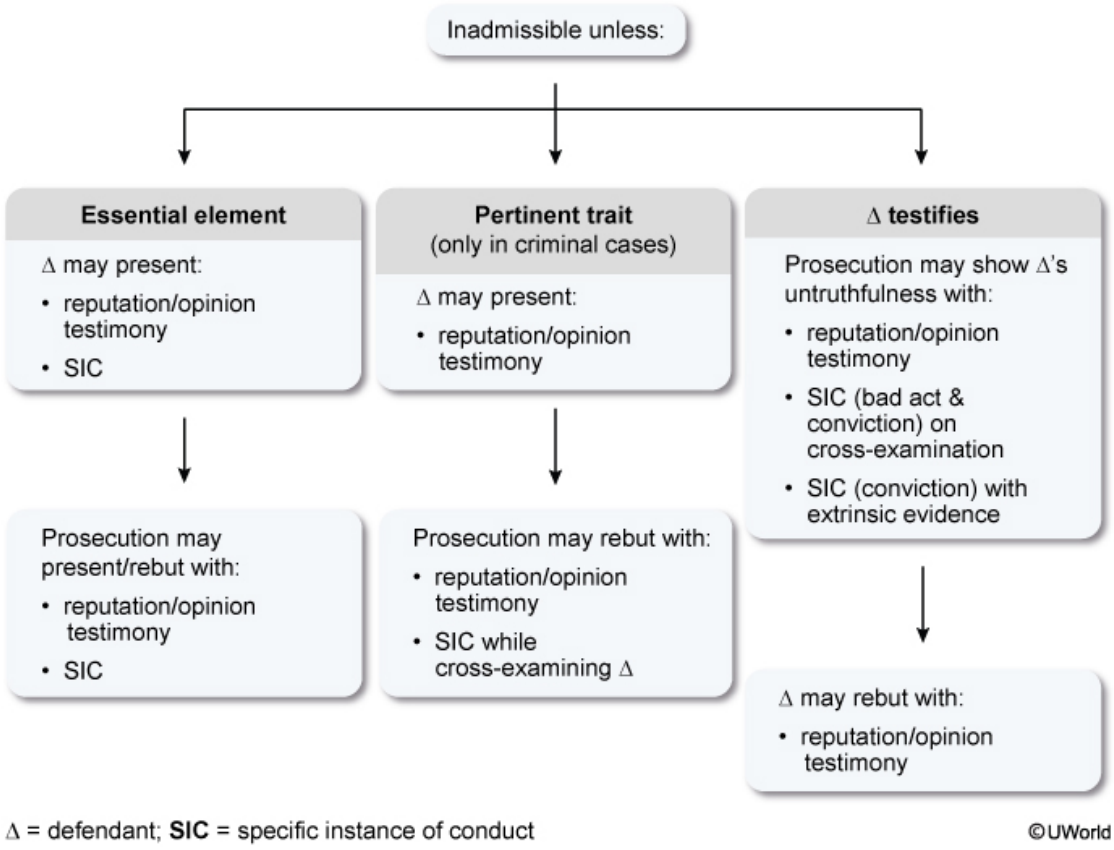
References

Fed. R. Evid. 404(a) (character evidence).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Evidence on criminal defendant's character



Δ = defendant; **SIC** = specific instance of conduct

©UWorld

A plaintiff sued a defendant for injuries allegedly suffered when he slipped and fell on the defendant's business property.

At trial, without asking that the defendant's property manager be declared a hostile witness, the plaintiff called him solely to establish that the defendant was the owner of the property where the plaintiff fell. On cross-examination of the manager, the defendant's attorney sought to establish that the defendant had taken reasonable precautions to make the property safe for business invitees.

Should the defendant's cross-examination of the manager be permitted over the plaintiff's objection?

A. No, because cross-examination should be limited to the subject matter of the direct examination and matters affecting the credibility of the witness.

B. No, because the court has not declared the manager hostile.

C. Yes, because the cross-examiner is entitled to explore matters relevant to any issue in the case, including credibility.

D. Yes, because the manager is the agent of a party, as to whom the scope of cross-examination is unlimited.

Explanation:

Under Federal Rule of Evidence 611(b), the **scope of cross-examination** is **limited to** the subject matter of **direct examination** and matters affecting the **witness's credibility**. And though the court has discretion to permit inquiry into additional matters, a party is never entitled to a wider scope of cross-examination **(Choice C)**.

Here, the plaintiff called the defendant's property manager solely to establish that the defendant owned the property where the plaintiff fell. On cross-examination of the manager, the defendant's attorney sought to establish that the defendant had taken reasonable safety precautions. But since that issue was not raised on direct examination and does not affect the manager's credibility, the cross-examination should not be permitted.

(Choices B & D) The rule governing the scope of cross-examination is the same for *all* witnesses. So the fact that the court has not declared the manager hostile has no effect on that scope. Nor does the fact that the manager is a party's agent.

Educational objective:

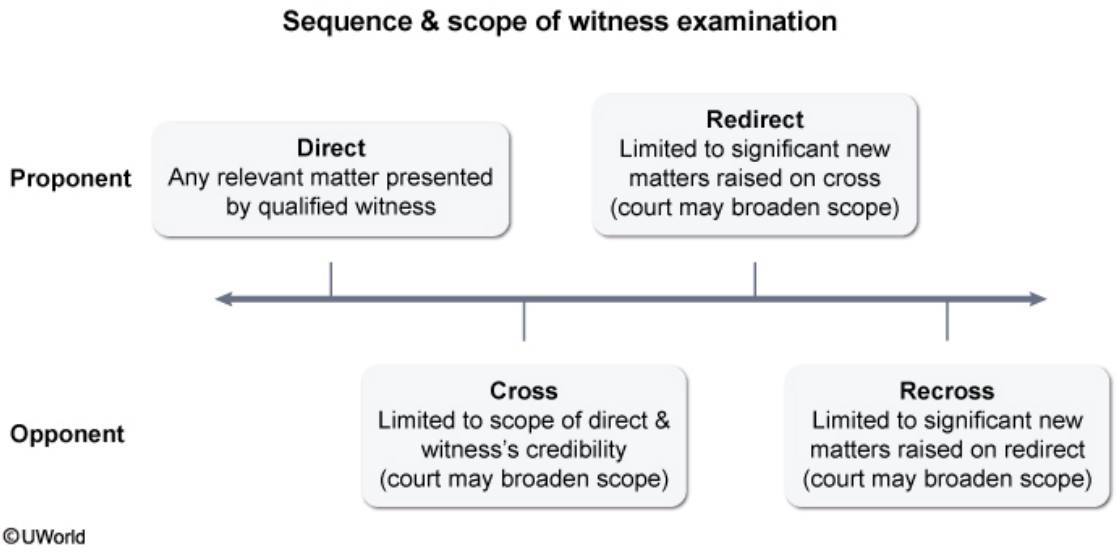
The scope of cross-examination is limited to (1) the subject matter of direct examination and (2) matters affecting the witness's credibility. However, the court *may* permit inquiry into additional matters.

References

Fed. R. Evid. 611(b) (scope of cross-examination).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.



A defendant is on trial in federal court for bank robbery. The prosecutor called a witness who testified that, while in the bank parking lot, she (1) saw the defendant and his accomplice running out of the bank while removing their ski masks and (2) heard the accomplice call the defendant by name as they ran to their red car.

Which of the following areas of questioning most likely exceeds the proper scope of cross-examination?

A. A plane passed loudly overhead as the defendant and his accomplice ran to their car.
B. The witness failed to report income on her federal tax returns for the past five years.
C. The witness has suffered from colorblindness since childhood.
D. The witness is a former alcoholic who regularly attends addiction support meetings.

Explanation:

Under Federal Rule of Evidence (FRE) 611, the **scope of cross-examination** is **limited to**:

the subject matter of direct examination *and*

matters affecting the witness's credibility.

One method of **attacking a witness's credibility** is to establish that, **at the time in question**, the witness's **sensory abilities** were impaired by a **physical or mental condition** or affected by **environmental factors**.

Here, the witness's testimony that she *heard* the accomplice call the defendant's name can be attacked with evidence that a plane was passing loudly overhead **(Choice A)**. And the witness's testimony that she *saw* the defendant and his accomplice running to a *red* car can be attacked with evidence of her colorblindness **(Choice C)**. Therefore, these areas of questioning are within the proper scope of cross-examination.

Another method of attacking a witness's credibility is to introduce **specific instances of conduct** (SICs) that are probative of the witness's **character for truthfulness**. SICs can always be introduced intrinsically—ie, by questioning the witness being impeached about the SIC. Therefore, questioning the witness about her failure to report income on her tax returns is also within the proper scope of cross-examination **(Choice B)**.

However, a witness's **alcoholism or drug addiction** does not bear on the witness's truthfulness. And such addiction **cannot be used** to challenge the witness's sensory abilities unless the addiction affected the witness's memory or sensory perception at the time in question or while testifying. This protects the witness from undue harassment. Therefore, questions about the witness's alcoholism likely exceed the scope of cross-examination.

Educational objective:

Evidence that a witness's senses were impaired by a physical or mental condition or by environmental factors at the time in question can be used to attack the witness's credibility. Specific instances of conduct probative of the witness's truthfulness may also be used, but a witness's addiction typically cannot.

References

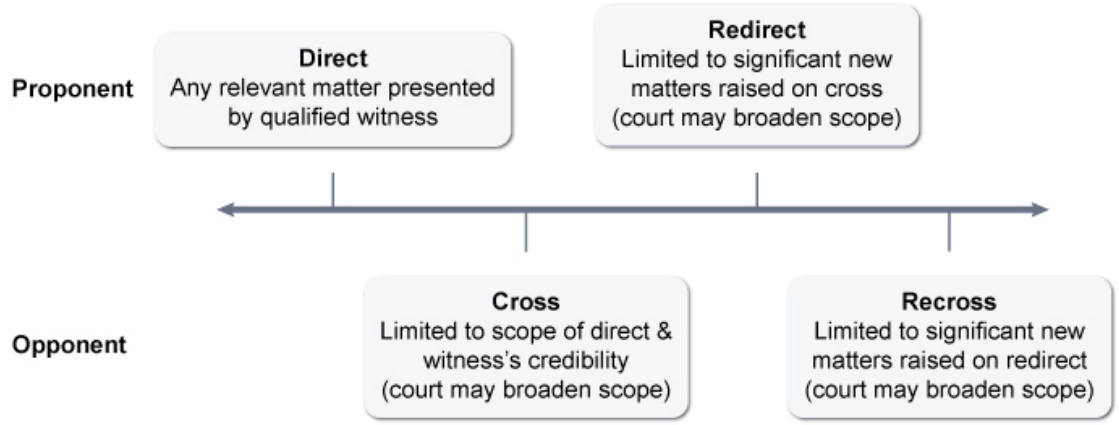
Fed. R. Evid. 611 (scope of cross-examination).

Fed. R. Evid. 608(b) (impeachment through a witness's specific instance of conduct).

Christopher B. Mueller et al., 3 Federal Evidence § 6:80 (4th ed. 2021) (discussing when drug or alcohol addiction can be used to attack the witness's credibility).

Copyright © UWorld. All rights reserved.

Sequence & scope of witness examination



©UWorld

A plaintiff sued a church for damages he suffered when he crashed his motorcycle in an attempt to avoid a cow that had escaped from its corral. The cow and corral belonged to a farm that had recently been left by will to the church.

At trial, the plaintiff seeks to ask the defendant's witness whether she is a member of that church.

Is the question proper?

A. No, because evidence of a witness's religious beliefs is not admissible to impeach credibility.

B. No, because it violates the First Amendment right to free exercise of religion.

C. Yes, for the purpose of ascertaining partiality or bias.

D. Yes, for the purpose of showing capacity to appreciate the nature and obligation of an oath.

Explanation:

Religious beliefs or opinions

(FRE 610)

Evidence of witness's religious beliefs or opinions is:

inadmissible to attack or support witness's character for truthfulness
admissible to show witness's bias (eg, relationship with party)
admissible to show witness's self-interest (ie, stake in case outcome)
FRE = Federal Rule of Evidence

Under Federal Rule of Evidence 610, evidence of a **witness's religious beliefs** is ***not*** **admissible** to attack the witness's **character for truthfulness**. But such evidence ***may be*** **admissible** to prove the **witness's bias or self-interest**, such as when the witness is affiliated with a church that is a party to a lawsuit (as seen here). Therefore, the plaintiff's question is proper for the purpose of ascertaining partiality or bias.

(Choice A) Evidence of a witness's religious beliefs *can* be used to impeach credibility by showing the witness's bias or self-interest. That is because evidence of bias or self-interest shows that the witness has a motive to lie, partiality to a party, or a stake in the outcome of the case.

(Choice B) The First Amendment free exercise clause restricts the *government's* ability to infringe on a person's sincerely held religious beliefs. But this restriction does not apply to the plaintiff here.

(Choice D) A witness is presumed competent to testify unless proven otherwise. Competence concerns, among other things, the ability to understand the nature and obligation of taking an oath. But a witness's religious belief or affiliation—once a basis for determining competence to testify—is no longer considered for this purpose.

Educational objective:

Evidence of a witness's religious beliefs is *not* admissible to attack the witness's character for truthfulness, but it *is* admissible to prove the witness's bias or self-interest.

References

Fed. R. Evid. 610 (religious beliefs or opinions).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In a prosecution of a defendant for forgery, the defense objects to the testimony of a government expert on the ground of inadequate qualifications. The government seeks to introduce a letter from the expert's former criminology professor, stating that the expert is generally acknowledged in his field as well qualified.

On the issue of the expert's qualifications, who may properly consider the letter?

A. Both the judge and the jury, because the letter is not offered for a hearsay purpose.
B. Neither the judge nor the jury, because it is hearsay not within any exception.
C. The judge, without regard to the hearsay rule.
D. The jury, without regard to the hearsay rule.

Explanation:

A witness is qualified to provide **expert opinion testimony** if the witness has specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue in the case. Whether a witness meets these qualifications is a **preliminary question** for the **court**—not the jury. The court is **not bound by the rules of evidence** in deciding such questions.* Therefore, the court may consider otherwise inadmissible hearsay (eg, the professor's letter) in determining if a witness is qualified to provide expert opinion testimony **(Choices A, B & D)**.

*The Federal Rules of Evidence typically apply to all civil and criminal proceedings before U.S. district courts, U.S. courts of appeal, U.S. bankruptcy courts, the U.S. Court of Federal Claims, and U.S. magistrate judges. Preliminary-question hearings are one exception to this rule.

Educational objective:

Whether a witness meets the qualifications to offer expert opinion testimony is a preliminary question for the court—not the jury. The court is not bound by the rules of evidence when determining such questions.

References

Fed. R. Evid. 104 (preliminary questions).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man suffered a broken jaw in a fight with a neighbor that took place when they were both spectators at a soccer match. The man sues the neighbor for personal-injury damages.

Which of the following actions *must* the trial court take if requested by the man?

A. Exclude nonparty eyewitnesses from the courtroom during the testimony of other witnesses.

B. Prevent the neighbor's principal eyewitness from testifying, upon a showing that six years ago the witness was convicted of perjury and the conviction has not been the subject of a pardon or annulment.

C. Refuse to let the neighbor cross-examine the man's medical expert on matters not covered on direct examination of the expert.

D. Require the production of a writing used before trial to refresh a witness's memory.

Explanation:

Exclusion of witnesses

(FRE 615)

Court must exclude witness upon party's request—and may do so on court's own initiative—so that they cannot hear other witnesses' testimony unless witness is:

party who is a natural person
officer or employee of party that is not a natural person after individual has been designated as party's representative by its attorney
person whose presence is essential to party's presentation of its case (e.g., expert witness)
person whose presence is permitted by statute (e.g., victim)
FRE = Federal Rule of Evidence.

Federal Rule of Evidence (FRE) 615—often referred to as "the Rule"—provides that a **court must**, upon a **party's request**, **exclude witnesses** from the courtroom so they cannot hear other witnesses' testimony. A court may also sequester witnesses on its own initiative. However, the Rule **cannot** be used to **exclude**:

parties or their designated representatives

persons whose **presence** is shown to be **essential** to a party's presentation of its case (eg, expert witness) *or*

persons **authorized by statute** to be present (eg, crime victim)

Here, there is no indication that (1) a party has shown the nonparty eyewitnesses' presence to be essential to its case or (2) those witnesses are authorized by statute to be present. Therefore, the trial court must, at the man's request, remove the witnesses from the courtroom during the testimony of other witnesses.

(Choice B) A witness cannot be prevented from testifying simply because he/she has been convicted of a crime—even perjury. Instead, evidence of that conviction may be admitted to impeach the witness.

(Choice C) FRE 611 limits the scope of cross-examination to matters addressed on direct examination or impacting the witness's credibility. But a court has broad discretion to allow questions beyond that scope, so it cannot be *required* to prohibit a cross-examiner from asking questions unrelated to the direct examination.

(Choice D) Under FRE 612, the court *may* order a party to produce a writing that was used before trial to refresh a witness's memory but is not *required* to do so upon another party's request.

Educational objective:

A court must exclude a witness from the courtroom upon a party's request—or may do so on the court's own initiative—unless the witness is (1) a party or its designated representative, (2) a person whose presence is essential to the case, or (3) a person authorized by statute to be present.

References

Fed. R. Evid. 615 (excluding witnesses).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A young entrepreneur is on trial for tax fraud. He testified that the inconsistencies in his tax returns were attributable to bookkeeping errors, not a willful desire to avoid taxes. The prosecution seeks to introduce evidence of the entrepreneur's juvenile adjudication for felony credit-card fraud that occurred nine years earlier. The entrepreneur's attorney objects to introduction of this evidence.

Is evidence of the juvenile adjudication admissible over the entrepreneur's objection?

A. No, because juvenile adjudications are inadmissible to attack a criminal defendant's character for truthfulness.

B. No, because specific instances of conduct cannot be used to attack a criminal defendant's character for truthfulness.

C. Yes, because the juvenile adjudication involves a felony offense.

D. Yes, because the juvenile adjudication occurred within the last ten years.

Explanation:

Under Federal Rule of Evidence (FRE) 609, a **juvenile adjudication** is admissible to attack a witness's character for truthfulness only if:

evidence of the adjudication is offered in a **criminal case** against a **witness other than the defendant**

an adult's conviction for that offense would be admissible to attack the witness's credibility *and*

admitting the evidence is necessary to fairly determine guilt or innocence—eg, when a *full* evaluation of the witness's credibility is essential to a fair outcome.

An adult conviction is admissible to attack a witness's credibility if the conviction (1) involved a **felony** or crime of dishonesty and (2) satisfies any required balancing tests. Adult convictions that are less than ten years old are considered highly probative and, as a result, are typically admissible.

Here, the prosecution seeks to introduce evidence of the entrepreneur's juvenile adjudication for a felony offense that is less than ten years old. But since FRE 609 specifically precludes admission of a juvenile adjudication against a *defendant-witness*, evidence of the entrepreneur's juvenile adjudication is inadmissible **(Choices C & D)**.

(Choice B) Specific instances of conduct *are* admissible to attack a defendant-witness's character for truthfulness. The prosecution may (1) inquire into a bad act on cross-examination or (2) introduce evidence of an *adult* criminal conviction that involved a felony or crime of dishonesty.

Educational objective:

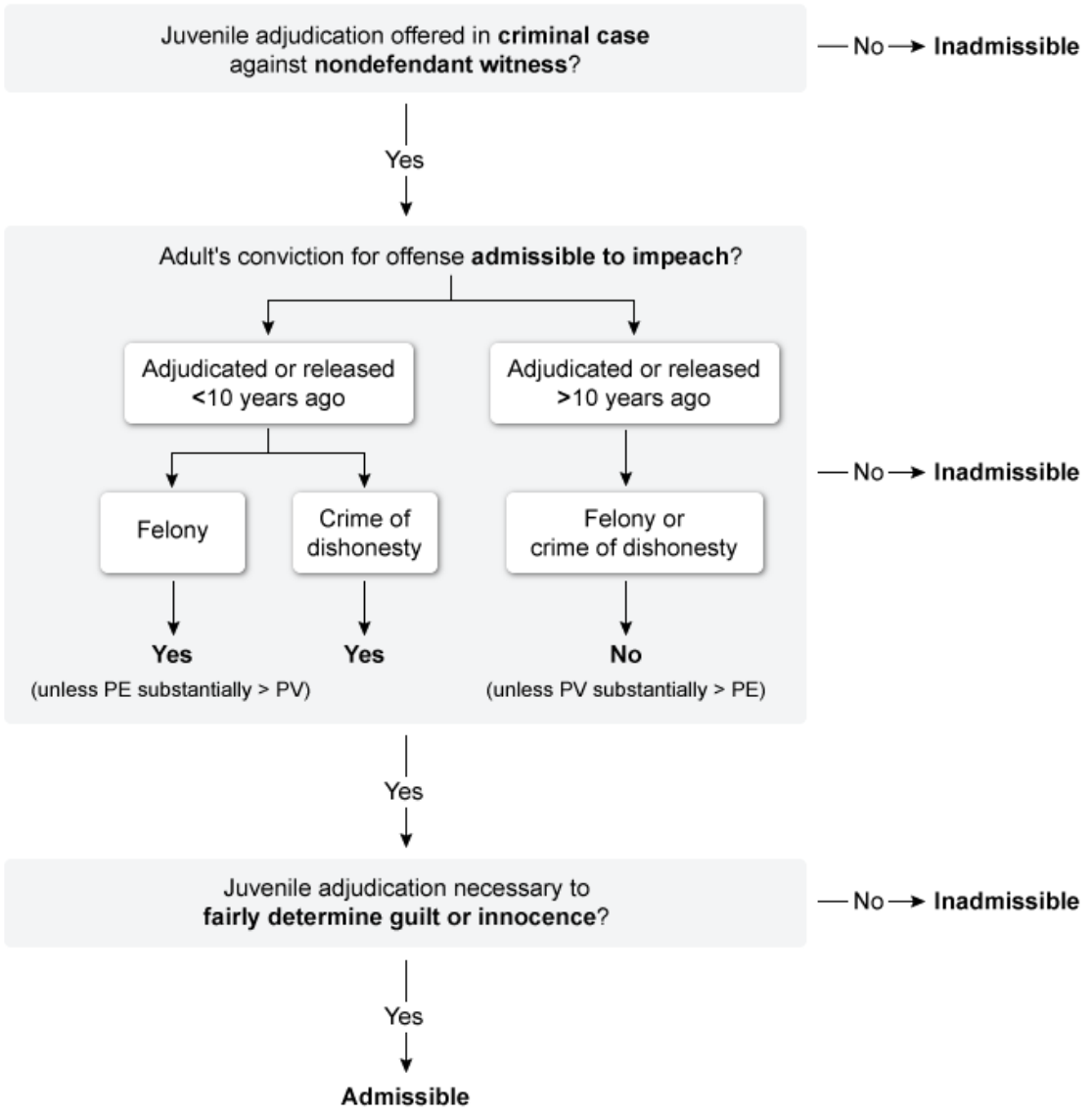
A nondefendant witness's juvenile adjudication is admissible to attack his/her character for truthfulness if (1) the adjudication is offered in a criminal case, (2) an adult's conviction for that offense would be admissible to attack the witness's credibility, and (3) admitting the evidence is necessary to fairly determine guilt or innocence.

References

Fed. R. Evid. 609 (use of juvenile adjudication to attack witness's character for truthfulness).

Copyright © UWorld. All rights reserved.

Impeaching with juvenile adjudication



PV = probative value; **PE** = prejudicial effect

©UWorld

A plaintiff sued a defendant for damages arising out of an automobile collision. At trial, the plaintiff called an eyewitness to the collision. The plaintiff expected the eyewitness to testify that she had observed the defendant's automobile for five seconds prior to the collision and estimated the defendant's speed at the time of the collision to have been 50 miles per hour. Instead, the eyewitness testified that she estimated the defendant's speed to have been 25 miles per hour.

Without finally excusing the eyewitness, the plaintiff then called a second witness, a police officer, to testify that the eyewitness had told him during his investigation at the accident scene that the defendant "was doing at least 50."

Is the police officer's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because the plaintiff may not impeach his own witness.

C. Yes, as a present sense impression.

D. Yes, in order to impeach the eyewitness.

Explanation:

Witness's prior inconsistent statement

Use	Applicability	Methods of introduction
Impeachment	Always admissible to discredit witness's trial testimony	Examining witness about prior statement
Substantive evidence	Admissible to prove truth only if excluded or excepted from hearsay	Introducing extrinsic evidence if: witness can address & opposing party can question witness about statement *or* justice so requires

Prior inconsistent statements are statements made by a witness in the past that are inconsistent with the witness's current testimony. These prior statements are typically subject to the rule against hearsay and—unless they are excluded or excepted from hearsay—cannot be offered to prove the truth of the matter asserted therein. But they *can* be used to **impeach a witness** on a material issue by either:

examining the witness about the statement* *or*

introducing the statement through **extrinsic evidence** if (1) the witness has an opportunity to **explain or deny**—and the opposing party has the opportunity to **question the witness** about—the statement or (2) justice so requires.

Here, the plaintiff seeks to introduce the eyewitness's prior inconsistent statement extrinsically through the police officer's testimony. This hearsay statement cannot be offered for its truth—that the defendant was "doing at least 50"—because it is neither excluded nor excepted from hearsay. But it can be used to impeach the eyewitness's testimony that the defendant's speed was 25 miles per hour **(Choice A)**. That is because the eyewitness has *not* been finally excused and can still address or be questioned about the prior statement.

*A party need not show or disclose the contents of a prior inconsistent statement to a witness before questioning the witness on the inconsistency. But the party must, on request, show the statement or disclose its contents to an adverse party's attorney.

(Choice B) Any party, including the party that called the witness, can impeach a witness.

(Choice C) A present sense impression is a hearsay exception that applies to out-of-court statements describing an event or condition that are made while or immediately after the declarant perceived it. This exception does not apply here because the eyewitness's statement was made during the police officer's investigation—not during or immediately after the collision.

Educational objective:

A witness can be impeached by examining the witness about a prior inconsistent statement. Extrinsic evidence of can also be used if (1) the witness has a chance to explain or deny—and the opposing party has the opportunity to question the witness about—the statement or (2) justice so requires.

References

Fed. R. Evid. 613 (witness's prior statement).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

In a federal civil trial, the plaintiff wishes to establish that the defendant had been convicted of fraud in a state court, a fact that the defendant denies.

Which mode of proof of the conviction is LEAST likely to be permitted?

A. A certified copy of the judgment of conviction, offered as a self-authenticating document.

B. Judicial notice of the conviction, based on the court's telephone call to the clerk of the state court, whom the judge knows personally.

C. Testimony by a witness to whom the defendant made an oral admission that he had been convicted.

D. Testimony of the plaintiff, who was present at the time of the sentence.

Explanation:

Facts not subject to reasonable dispute

(FRE 201)

Type of fact	Definition	Examples
Notorious	Fact is generally known in community where court is sitting	Local custom Town holiday Regional terminology
Manifest	Fact is accurately & readily determinable from authoritative source	Laws & historic facts Weights & measures Geographic data

FRE = Federal Rule of Evidence

Judicial notice allows a court—on its own or upon a party's request—to **recognize a fact as true** without a formal presentation of evidence. The court may take judicial notice of any adjudicative fact about the case or parties that is **not subject to reasonable dispute** because that fact is:

notorious – **generally known** within the community where the court is sitting (ie, the court's territorial jurisdiction) *or*

manifest – **accurately and readily determinable** from sources whose accuracy cannot reasonably be questioned (ie, well-established sources).

Unlike a local event or holiday, the defendant's conviction in state court is likely not generally known in the federal court's territorial jurisdiction. And unlike an almanac, a clerk whom the judge knows personally is not a well-established source that can be used to verify the accuracy of the conviction. Therefore, judicial notice is *unlikely* to be permitted as a mode of proof.

(Choice A) A certified copy of an official record (eg, the judgment of conviction) is self-authenticating. That means that no extrinsic evidence of authenticity—eg, testimony that the document is what it appears to be—is needed to admit the record into evidence. Therefore, this mode of proof would likely be permitted.

(Choice C) Statements made by a party-opponent (eg, the defendant) are not considered hearsay, so they are generally admissible. As a result, the witness can likely testify about the defendant's oral admission.

(Choice D) Lay (ie, nonexpert) witnesses can generally testify to any matter of which they have personal knowledge. This includes facts that the witness *perceived firsthand* or opinions based on the witness's personal observation or experience. Therefore, testimony on the plaintiff's personal observations is likely permissible.

Educational objective:

Judicial notice can be taken of any adjudicative fact about the case or parties that (1) is generally known within the community where the court is sitting or (2) can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.

References

Fed. R. Evid. 201 (judicial notice).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff who was involved in a vehicular collision with a commercial driver filed a personal-injury lawsuit against the driver's employer. The plaintiff planned to introduce evidence of the driver's prior driving-while-intoxicated (DWI) conviction obtained during discovery. The employer filed a pretrial motion in limine to exclude evidence of the DWI conviction on the ground that intoxication was not an issue in the case. The court denied the motion.

At trial, the plaintiff called the driver and asked if he had any prior DWI convictions, and the employer renewed its objection. The judge sustained the objection and instructed the plaintiff not to mention or question the driver about any prior DWI convictions. The plaintiff proceeded to examine the driver without mentioning the DWI conviction. The jury recessed immediately after the driver's testimony. While the jury was in recess, the plaintiff informed the judge on the record of the relevancy of the conviction and basis for the conviction's admissibility. No additional evidence of the conviction was provided.

Can the plaintiff challenge the court's exclusion of the driver's DWI conviction on appeal?

A. No, because the plaintiff did not provide formal evidence of the conviction on the record.

B. No, because the plaintiff's offer of proof was made outside the jury's presence.

C. Yes, because the plaintiff explained the relevancy of the conviction and the grounds for its admissibility.

D. Yes, because the trial court's ruling on the pretrial motion in limine to exclude the conviction was definitive.

Explanation:

Preserving evidentiary rulings for appeal

(FRE 103)

Evidence *admitted*	Opponent of evidence must: timely object or move to strike *and* unless apparent from context, state specific ground(s) for objection or motion
Evidence *excluded*	Proponent of evidence must: obtain definitive ruling *and* unless apparent from context, make timely offer of proof

FRE = Federal Rule of Evidence.

A party must take steps to preserve the right to challenge a trial court's ruling on appeal through a process called "**preservation of error**." When a party disagrees with a judge's **decision to exclude evidence** (as the plaintiff does here), the party offering that evidence ordinarily must preserve error by:

obtaining a definitive ruling on the issue *and*

making a **timely offer of proof**.*

An offer of proof is an **oral or written explanation** of the **relevance and admissibility** of the excluded evidence that is **made on the record**—no formal evidence is required **(Choice A)**. An offer of proof is timely if it is made within a **reasonable time *outside* the jury's presence** so that the judge has the opportunity to correct the alleged error **(Choice B)**.

Here, the judge made a definitive ruling to exclude any mention of the driver's prior DWI conviction. The plaintiff then made a timely offer of proof while the jury was in recess immediately after the driver's testimony. The offer of proof explained the relevancy of the driver's DWI conviction and the basis for its admissibility on the record. As a result, the plaintiff properly preserved error, and the trial court's ruling can be challenged on appeal.

*An offer of proof is not required if the substance of the evidence is apparent from the context (eg, when seeking to admit a statement that constitutes slander per se in a defamation action).

(Choice D) The trial court's pretrial ruling to admit the DWI conviction was definitive because it fully decided the matter. But a court can reconsider a prior definitive ruling and reverse course, as the court did here. The party who is adversely impacted by the new decision must then preserve any error by objecting, moving to strike, or making an offer of proof—as the plaintiff did here.

Educational objective:

To preserve a challenge to the exclusion of evidence for appeal, a party generally must make a timely offer of proof on the record, in the form of an oral or written explanation of the relevance and admissibility of the excluded evidence. No formal evidence is required.

References

Fed. R. Evid. 103 (rulings on evidence).

Copyright © UWorld. All rights reserved.

A defendant is charged with murdering his business partner. At trial, the defendant called a witness to testify that he was with the defendant at an all-day business conference on the day of the murder. The witness further testified that the defendant remained at the conference and did not leave at any point for an extended amount of time. On cross-examination, the prosecutor seeks to impeach the witness by introducing evidence of his five-year-old conviction for stalking for which the witness served two years in prison. The defendant objects on the ground that the witness's conviction was pardoned pursuant to a first-offender pardon program which automatically pardons first-time offenders upon the successful completion of their sentence.

Is evidence of the witness's prior conviction admissible?

A. No, because the witness did not put his character at issue by testifying about the defendant's whereabouts.

B. No, because the witness's character for truthfulness cannot be impeached with a specific instance of conduct.

C. Yes, because prior convictions are probative of a witness's character for truthfulness.

D. Yes, because the conviction was not pardoned based on a finding of innocence.

Explanation:

Any party can impeach **a witness** by attacking the credibility of the witness's testimony or the witness him/herself. The credibility of the witness can be attacked by introducing reputation or opinion testimony OR specific instances of conduct (SICs) that are probative of the witness's **character for (un)truthfulness (Choice B)**.* Only two types of SICs are admissible for this purpose:

Convictions involving a crime of dishonesty or **felony** (ie, a crime punishable by imprisonment for more than one year or death) *or*

Other bad acts

However, such a conviction is **inadmissible** if it was the subject of a **pardon, annulment, or certificate of rehabilitation** based on (1) a finding of innocence or (2) a finding of rehabilitation with no subsequent felony convictions. That is because these procedures are based on an inquiry into the witness's character.

Here, the prosecutor seeks to introduce evidence of the witness's prior conviction for which he served *two* years in prison. Although this felony conviction was later pardoned, the pardon automatically occurred when the witness completed the sentence. This means that the pardon was *not* based on a finding of innocence or rehabilitation, so evidence of the conviction is admissible.

*A witness's character for truthfulness may only be supported by reputation or opinion testimony after it has been attacked.

(Choice A) A witness's character for truthfulness (ie, credibility) is *always* at issue—regardless of the substance of his/her testimony. In contrast, the character of a party (ie, plaintiff, defendant) is at issue only if it is an essential element of the criminal charge, civil claim, or asserted defense.

(Choice C) Prior convictions involving a *felony* or *crime of dishonesty* are probative of a witness's character for truthfulness absent a finding of innocence or rehabilitation. But no other convictions are admissible for this purpose.

Educational objective:

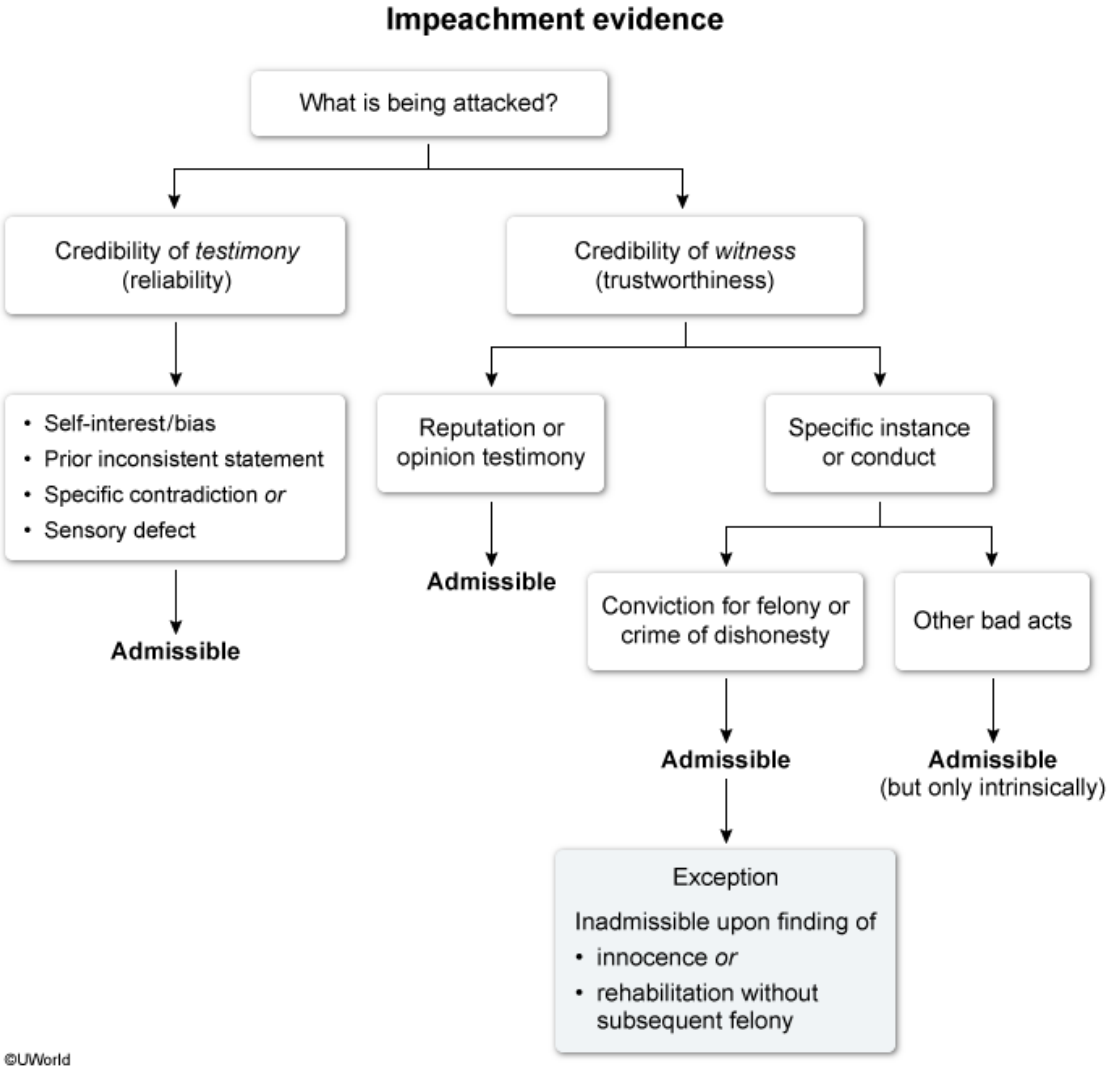
A conviction involving a felony or crime of dishonesty is admissible to impeach a witness's credibility *unless* it was the subject of a pardon, annulment, or certificate of rehabilitation based on a finding of innocence OR a finding of rehabilitation with no subsequent felony convictions.

References

Fed. R. Evid. 608 (witness's character for truthfulness).

Fed. R. Evid. 609(c) (effect of a pardon, annulment, or certificate of rehabilitation).

Copyright © UWorld. All rights reserved.



A plaintiff sued a defendant for illegal discrimination, claiming that the defendant fired him because of his race. At trial, the plaintiff called a witness, expecting her to testify that the defendant had admitted the racial motivation. Instead, the witness testified that the defendant said that he had fired the plaintiff because of his frequent absenteeism.

While the witness is still on the stand, the plaintiff offers a properly authenticated secret tape recording he had made at a meeting with the witness in which the witness related the defendant's admissions of racial motivation.

Is the tape recording admissible?

A. No, because a secret recording is an invasion of the witness's Fourth Amendment right to privacy.

B. No, because it is hearsay not within any exception.

C. Yes, as evidence of the defendant's racial motivation and to impeach the witness's testimony.

D. Yes, but only to impeach the witness's testimony.

Explanation:

Witness's prior inconsistent statement

Use	Applicability	Methods of introduction
Impeachment	Always admissible to discredit witness's trial testimony	Examining witness about prior statement
Substantive evidence	Admissible to prove truth only if excluded or excepted from hearsay	Introducing extrinsic evidence if: witness can address & opposing party can question witness about statement *or* justice so requires

Prior inconsistent statements are statements made by a witness in the past (eg, admissions of racial motivation) that are inconsistent with the witness's current testimony (eg, claims of frequent absenteeism). These statements can be **used to impeach** a witness on a material issue by:

examining the witness about the statement* *or*

introducing the statement through extrinsic evidence if (1) the witness has an opportunity to **explain or deny**—and the opposing party has the opportunity to **question the witness** about—the statement or (2) justice so requires.

Here, the plaintiff seeks to introduce the witness's prior inconsistent statement through a secret tape recording. Since the witness is available to address that statement and the defendant can cross-examine her about it, this extrinsic evidence is admissible to impeach the witness's testimony **(Choice B)**.

However, prior inconsistent statements are typically subject to the **rule against hearsay**, which bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein. As a result, these statements **cannot be used as substantive evidence** unless they are excepted or excluded from hearsay. Since there is no indication that the witness's prior statement falls into an exception or exclusion, it cannot be used to prove that the defendant was racially motivated **(Choice C)**.

*A party need not show or disclose the contents of a prior inconsistent statement to a witness before questioning the witness on the inconsistency. But the party must, on request, show the statement or disclose its contents to an adverse party's attorney.

(Choice A) The Fourth Amendment right to privacy protects the witness from unreasonable *government* intrusions (eg, warrantless searches and seizures)—not the *plaintiff's* secret recording.

Educational objective:

A prior inconsistent statement can be used to impeach a witness, but it cannot be used as substantive evidence unless it is excepted or excluded from the rule against hearsay.

References

Fed. R. Evid. 613, 801(d)(2) (admissibility of prior inconsistent statements).

Fed. R. Evid. 802 (rule against hearsay).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At trial in a civil case arising out of a car accident, the plaintiff has called the investigating police officer to testify regarding a statement that the officer overheard the defendant make at the scene admitting that he had failed to see the stop sign. However, while on the stand, the officer is unable to recall the exact words that the defendant used. The plaintiff proposes to refresh the officer's recollection with a police report written by a fellow officer who was also at the scene and wrote down the defendant's statement. The defendant has objected to the use of this report to refresh the testifying officer's memory.

Should the court permit this use of the report?

A. No, because the report is hearsay not within any exception.

B. No, because the report was not written or adopted by this witness.

C. Yes, because the report fits the public record exception to the hearsay rule.

D. Yes, because the report may be used to refresh recollection without regard to its admissibility.

Explanation:

Present recollection refreshed v. Past recollection recorded

Refreshing recollection	Any item may be used to refresh witness's memory *regardless of admissibility* if:
(FRE 612)	witness once knew but is now unable to recall fact or event *and* item will help witness recall that information
Recorded recollection	Record is *admissible* hearsay if it:
(FRE 803(5))	contains information witness once knew but cannot recall well enough to testify fully & accurately was made or adopted by witness when matter was fresh in his/her mind *and* accurately reflects witness's knowledge at time record was made

FRE = Federal Rule of Evidence.

A witness is permitted to view **any item** (usually a writing) to **refresh his/her recollection** when:

the witness **once had personal knowledge** of a fact or event but is **now unable to recall** it *and*

the writing or other item will **help the witness recall** that information.

Since the item is merely being used to refresh the witness's memory, it **need not be admissible** for substantive purposes (ie, to prove its contents).

Here, the investigating officer was unable to recall the exact words he overheard the defendant use at the scene of the accident, so the plaintiff sought to refresh the officer's memory with a report written by another officer. Since the investigating officer once had personal knowledge of the statement, the report may be used to refresh his memory without regard to its admissibility. Therefore, the court should permit this use of the report.

(Choices A & C) Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is inadmissible absent an exception. And though police reports are typically hearsay, they may be admissible in civil cases under the public records exception. But here, the report's admissibility is irrelevant since the plaintiff is not seeking to introduce it into evidence.

(Choice B) Unlike a recorded recollection, an item used to refresh a witness's memory (eg, the other officer's report) need not have been written or adopted by that witness.

Educational objective:

A witness who once knew but cannot recall a fact or event can view any item (often a writing) to refresh his/her memory—regardless of whether that item is admissible for substantive purposes.

References

Fed. R. Evid. 612 (refreshing recollection).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for tax evasion. The defendant called his accountant to testify that the inconsistencies in the defendant's tax returns were clerical errors that occurred when the defendant's account information was transferred into a new accounting system. On cross-examination, the prosecutor seeks to attack the accountant's credibility by questioning him about his prior arrest for embezzlement and introducing evidence of his prior conviction for disorderly conduct.

If the defendant objects, how should the court rule?

A. Admit evidence of the arrest and the conviction, because the witness opened the door to reputation testimony.

B. Admit evidence of the arrest, but exclude evidence of the conviction because specific instances of conduct must be introduced intrinsically.

C. Exclude evidence of the arrest and the conviction, but allow the prosecutor to cross-examine the accountant about the underlying conduct that led to the arrest.

D. Exclude evidence of the conviction, but admit evidence of the arrest because it involves a crime of dishonesty.

Explanation:

Any party can **impeach a witness** with reputation or opinion testimony OR specific instances of conduct (SICs) that are probative of the witness's **character for (un)truthfulness**.* Only **two types of SICs** are admissible for this purpose: (1) convictions for a felony or crime of dishonesty and (2) other bad acts. A ***conviction* for a felony** or crime of dishonesty can be introduced:

intrinsically – through the witness's own testimony *or*

extrinsically – through another witness's testimony or any other source.

In contrast, **other bad acts** can only be introduced **intrinsically**.

Here, the prosecutor seeks to introduce extrinsic evidence of the accountant's prior conviction for disorderly conduct. However, disorderly conduct is typically a *misdemeanor* offense that involves *unruly* behavior—not dishonesty. As a result, the prosecutor cannot use this conviction to impeach the accountant **(Choice A)**. And though embezzlement is a crime of dishonesty, an arrest is not a conviction.

An **arrest** is also ***not* a bad act** because an arrest for misconduct is not itself misconduct. This means that the prosecutor cannot cross-examine the accountant about his prior arrest for impeachment purposes **(Choices A, B & D)**. In contrast, the underlying conduct (ie, bad acts) that *led* to the embezzlement arrest can be used for impeachment purposes because that conduct is probative of the accountant's character for truthfulness.

*A witness's character for truthfulness may only be supported by reputation or opinion testimony after it has been attacked.

Educational objective:

Specific instances of conduct involving a conviction for a felony or crime of dishonesty OR other bad acts can be admitted to impeach a witness's character for truthfulness. However, a mere arrest—as opposed to the underlying conduct leading to the arrest—is inadmissible for such purposes.

References

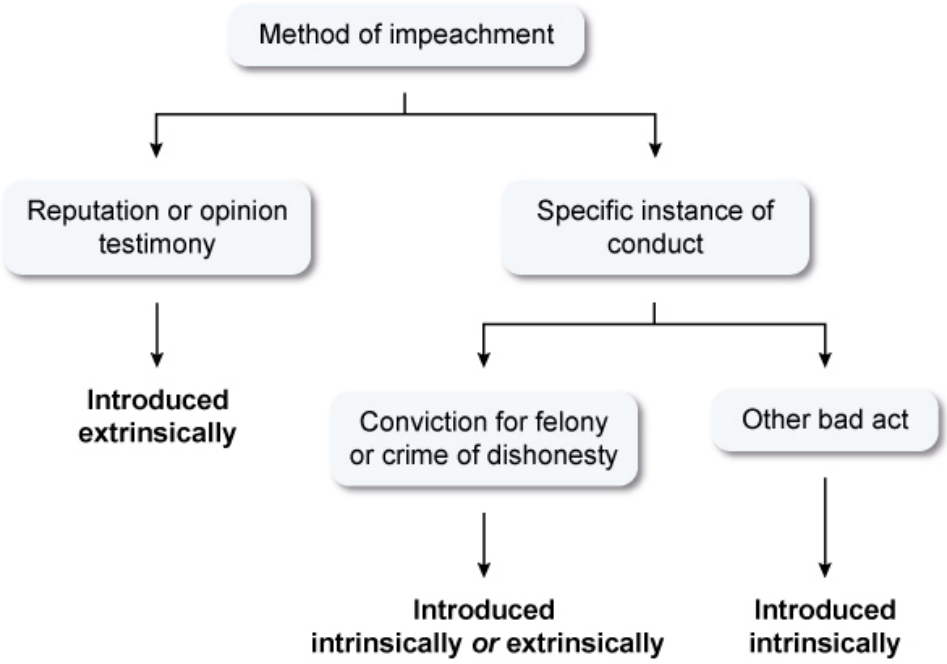
Fed. R. Evid. 608 (witness's character for truthfulness).

Fed. R. Evid. 609 (impeachment by evidence of criminal conviction).

Michelson v. United States, 335 U.S. 469, 482 (1948) (stating that an arrest without more does not impeach the integrity or impair the credibility of a witness).

Copyright © UWorld. All rights reserved.

Impeaching witness's character for truthfulness
(FRE 608 & 609)



FRE = Federal Rules of Evidence

©UWorld

A plaintiff sued a defendant for embezzling company funds. At trial, the defendant's first witness was his brother, who testified that he embezzled the company funds without the defendant's knowledge or assistance. The plaintiff now seeks to cross-examine the witness.

Which one of the following questions is most likely to be permitted on cross-examination?

A. "Didn't you have limited access to the company's financial accounts, or did your position provide you with unrestricted access to those accounts?"

B. "How did your brother feel after he was demoted during the embezzlement investigation?"

C. "Isn't it true that you cofounded several offshore shell corporations with your brother three months before the embezzlement investigation began?"

D. "You must have gotten the account information to access the company funds from the defendant, so he had to know, didn't he?"

Explanation:

Improper questions

Type	**Definition**
Argumentative	Intended to present argument, rather than elicit factual response
Assumes facts	Assumes or insinuates facts that have not been proven
Calls for conclusion / opinion	Requires witness to draw conclusion or state opinion that he/she is not qualified to give
Compound	Requires answers to multiple questions
Leading	Suggests the desired response in question asked on direct examination
Repetitive	Repeats or rephrases previously asked & answered questions*

*A question asked on direct may be repeated on cross-examination or redirect examination to clarify confusion.

A question should be permitted only if it is within the proper scope and in the proper form. The scope of cross-examination is generally limited to matters that were raised on direct examination (eg, embezzling funds) or concern the witness's credibility (ie, impeachment evidence). Therefore, all of the questions here fall within the proper scope.

However, a question that is within the proper scope may still be prohibited if it is asked in an **improper form**. A question is always improper and **never permitted** if it is in any of the following forms:

argumentative – intended to present an argument rather than elicit a factual response

assumes facts – assumes or insinuates facts that have not been proven **(Choice D)**

calls for a conclusion or opinion – requires the witness to draw a conclusion or state an opinion that he/she is not qualified to give **(Choice B)***

compound – requires answers to multiple questions (eg, "Didn't you leave the house, get in your car, and drive away?") **(Choice A)**

repetitive – repeats or rephrases a previously asked and answered question

In contrast, leading questions—ie, questions that suggest the desired response—are generally **prohibited on direct examination** but **allowed on cross-examination**. Therefore, the question asking "*Isn't it true* that you cofounded several

offshore shell corporations with your brother three months before the embezzlement investigation began?" is most likely to be permitted on cross-examination.

*Since the brother is not qualified to give an opinion as to the defendant's feelings, a more proper question would be to ask about the defendant's actions or statements.

Educational objective:

A question is always improper if the form is argumentative, assumes facts, calls for a conclusion or opinion, is compound, or is repetitive. In contrast, a leading question is generally improper on direct examination but allowed on cross-examination.

References

Fed. R. Evid. 611(b) (scope of cross-examination).

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for personal injuries arising out of an automobile accident.

Which of the following would be error?

A. The judge allows cross-examination about the credibility of a witness even though no question relating to credibility has been asked on direct examination.

B. The judge allows the defendant's attorney to ask the defendant questions on cross-examination that go well beyond the scope of direct examination by the plaintiff, who has called the defendant as an adverse witness.

C. The judge, despite the defendant's request for exclusion of witnesses, allows the plaintiff's eyewitness to remain in the courtroom after testifying, even though the eyewitness is expected to be recalled for further cross-examination.

D. The judge refuses to allow the defendant's attorney to cross-examine the defendant by leading questions.

Explanation:

Exclusion of witnesses

(FRE 615)

Court must exclude witness upon party's request—and may do so on court's own initiative—so that they cannot hear other witnesses' testimony unless witness is:

party who is a natural person
officer or employee of party that is not a natural person after individual has been designated as party's representative by its attorney
person whose presence is essential to party's presentation of its case (e.g., expert witness)
person whose presence is permitted by statute (e.g., victim)
FRE = Federal Rule of Evidence.

Upon a **party's request**, the **court must exclude witnesses** from the courtroom so that they cannot hear—or be influenced by—other witnesses' testimony. The court may sequester witnesses on its own initiative as well. However, Federal Rule of Evidence 615 provides that **some witnesses cannot be excluded**:

parties or their designated representatives
persons whose **presence is essential** to a party's presentation of its case (eg, expert witness) *and*
persons **authorized by statute** to be present.
Here, the defendant requested the exclusion of witnesses. And the plaintiff's eyewitness is not a type of witness who is immune from exclusion. Therefore, it would be error for the judge to allow the eyewitness to remain in the courtroom even though the eyewitness is expected to be recalled for further cross-examination.

(Choice A) A witness can always be cross-examined about matters affecting his/her credibility—even when no questions relating to the witness's credibility were asked on direct examination.

(Choice B) Cross-examination is generally limited to the scope of direct examination and matters impacting the witness's credibility. But a court has broad discretion to allow questions that go beyond that scope.

(Choice D) Leading questions are generally permitted on cross-examination.* However, the judge has discretion to limit leading questions when the witness is friendly to the examining party. Therefore, the judge's refusal to allow the defendant's attorney to cross-examine the defendant by leading questions would not be error.

*In contrast, questions that assume facts not in evidence, call for a conclusion, or are compound, argumentative, or repetitious are never permitted.

Educational objective:

A court must exclude witnesses from the courtroom so that they do not hear other witnesses' testimony if a party so requests (or on the court's initiative). But the court cannot exclude certain witnesses: parties or their designated representatives, persons whose presence is essential to the case, and persons authorized by statute to be present.

References

Fed. R. Evid. 615 (excluding witnesses).

Fed. R. Evid. 611 (examining witnesses and presenting evidence).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged with selling cocaine to a police informant. At trial, the alleged cocaine no longer exists, and the only evidence that the substance sold was cocaine is the informant's testimony that it tasted like cocaine and gave her a cocaine-like sensation. The informant has no formal training in identifying controlled substances.

Should the court admit the informant's opinion testimony that the substance was cocaine?

A. No, because identification of a controlled substance requires an expert with formal training.

B. No, because, without a quantity of the controlled substance for testing, opinion testimony is insufficient to make a prima facie case against the defendant.

C. Yes, if the court determines that the informant has sufficient knowledge and experience to identify cocaine.

D. Yes, provided there is evidence sufficient to support a jury finding that the informant has sufficient knowledge and experience to identify cocaine.

Explanation:

A **lay witness** (ie, nonexpert witness) **cannot testify** as to his/her **opinion unless** the opinion is:

rationally based on the witness's perception—ie, firsthand knowledge, observations, or experiences

helpful to clearly understand the witness's testimony or **determine** a **fact in issue** *and*

not based on scientific, technical, or other specialized knowledge.

Whether a lay witness possesses the knowledge or experience to testify to his/her opinion is a preliminary question for the court to determine.

Here, the only evidence that the substance was cocaine is the informant's opinion testimony that it tasted like cocaine and gave her a cocaine-like sensation. This testimony would help determine a fact in issue—ie, whether the substance was actually cocaine—and is not based on scientific, technical, or other specialized knowledge. Therefore, this testimony should be admitted if the court determines that the informant has sufficient knowledge and experience to identify cocaine.

(Choice A) Identification of a controlled substance does *not* require an expert with formal training.

(Choice B) Lay witness opinion testimony *is* sufficient to make a prima facie case—ie, to establish a fact or presumption unless disproved—in a controlled-substance prosecution. This is true even without a quantity of the controlled substance for testing.

(Choice D) When the *relevance* of evidence is conditioned upon the existence of a preliminary fact, the court need only find that there is sufficient evidence to support (but not necessarily establish) a jury finding of that preliminary fact. But here, the court must determine whether the informant *actually* possesses the knowledge or experience to testify to his/her opinion.

Educational objective:

A court should admit a lay witness's opinion testimony only if it is (1) rationally based on the witness's perception, (2) helpful to clearly understand the witness's testimony or determine a fact in issue, and (3) not based on scientific, technical, or other specialized knowledge.

References

Fed. R. Evid. 701 (opinion testimony by lay witness).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Lay witness opinion testimony



©UWorld

A defendant is on trial for burglary. During cross-examination of the defendant, the prosecutor wants to inquire about the defendant's earlier conviction for falsifying a credit application.

Which of the following facts concerning the conviction would be the best reason for the trial court's refusing to allow such examination?

A. The conviction is on appeal.

B. The conviction was for a misdemeanor rather than a felony.

C. The defendant was put on probation rather than imprisoned.

D. The defendant was released from prison 12 years ago.

Explanation:

A witness can be **impeached** with a **prior criminal conviction** for a felony OR any crime of dishonesty—including a misdemeanor **(Choice B)**. This is true even if the conviction is on appeal or the witness was placed on probation **(Choices A & C)**. However, if **more than 10 years** have passed since the witness's **conviction or release from incarceration** (whichever is later), evidence of the conviction is only admissible if:

the adverse party has been given **reasonable written notice** of the party's intent to use the conviction so that the adverse party has a fair opportunity to contest its use *and*

the trial judge determines that the conviction's **probative value**, supported by specific facts and circumstances, ***substantially*** **outweighs** its **prejudicial effect**.

This balancing test is difficult to satisfy because, in effect, it creates a presumption that convictions over 10 years old cannot be used for impeachment. As a result, these old convictions are admitted very rarely and only in exceptional circumstances. This means that the best reason to refuse an inquiry into a prior conviction is that the defendant was released from prison 12 years ago.

Educational objective:

A party may impeach a witness with evidence of the witness's prior convictions. But if more than 10 years have passed from the later of the witness's conviction or release from incarceration, the conviction is only admissible if (1) its probative value substantially outweighs its prejudicial effect and (2) reasonable written notice is given.

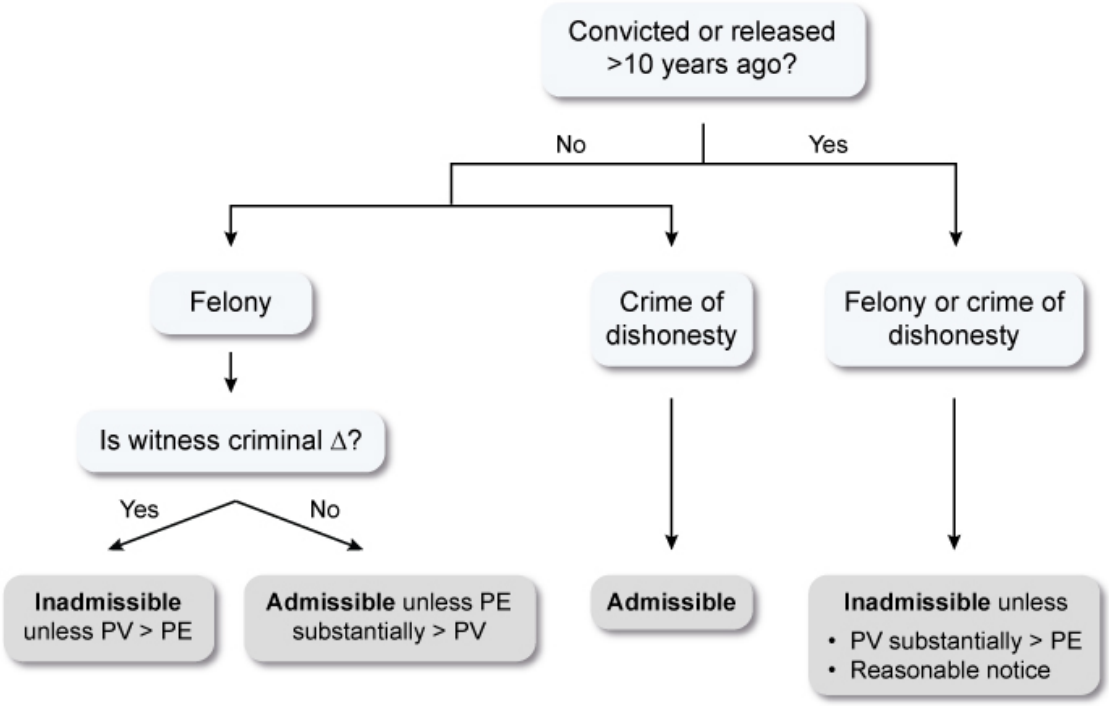
References

Fed. R. Evid. 609 (impeachment with criminal conviction).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching with criminal conviction



Δ = defendant; **PV** = probative value; **PE** = prejudicial effect

©UWorld

In a civil trial arising from a car accident at an intersection, the plaintiff testified on direct examination that he came to a full stop at the intersection. On cross-examination, the defendant's lawyer asked whether the plaintiff claimed to have been exercising due care at the time, and the plaintiff replied that he had been driving carefully. At a sidebar conference, the defendant's lawyer sought permission to ask the plaintiff about two accidents in the previous 12 months in which he had received traffic citations for failing to stop at stop signs. The plaintiff's lawyer has objected.

Should the court allow defense counsel to ask the plaintiff about the two prior accidents?

A. No, because improperly failing to stop on the other occasions does not bear on the plaintiff's veracity and does not contradict his testimony in this case.

B. No, because there is no indication that failing to stop on the other occasions led to convictions.

C. Yes, because improperly failing to stop on the other occasions bears on the plaintiff's credibility, since he claims to have stopped in this case.

D. Yes, because improperly failing to stop on the recent occasions tends to contradict the plaintiff's claim that he was driving carefully at the time he collided with the defendant.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

Any party may **impeach** (ie, discredit) a witness by inquiring into **specific instances of conduct** (SICs) that bear on the **character for truthfulness** of (1) the witness or (2) another witness about whose character the witness being questioned has testified. And a witness can always be impeached with evidence that **contradicts his/her testimony** about an important issue in the case.

Here, defense counsel sought to ask the plaintiff about two prior accidents in which he had been cited for running stop signs. But these SICs do not bear on the plaintiff's truthfulness (ie, veracity) since running stop signs demonstrates carelessness—not dishonesty **(Choice C)**. Nor do they contradict the plaintiff's testimony in this case since he did not claim that he has *never* run a stop sign **(Choice D)**. Therefore, the court should not allow defense counsel to ask the plaintiff about the accidents.

(Choice B) Under Federal Rule of Evidence 608(b), a witness *can* be impeached with bad acts that did not result in criminal convictions. But the plaintiff's prior accidents remain inadmissible because they do not bear on truthfulness or contradict prior testimony.

Educational objective:

A witness can be impeached with specific instances of conduct that bear upon truthfulness. And a witness can also be impeached with evidence that contradicts his/her testimony about an important issue in the case.

References

Fed. R. Evid. 608(b) (impeaching witness's character for truthfulness with specific instances of conduct).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for breach of a commercial contract in which the defendant had agreed to sell the plaintiff all of her requirements for widgets. The plaintiff called an expert witness to testify as to damages.

The defendant seeks to show that the expert witness had provided false testimony as a witness in his own divorce proceedings.

Should the defendant's evidence be admitted?

A. No, because it is impeachment on a collateral issue.

B. No, because it is improper character evidence.

C. Yes, if elicited from the expert witness on cross-examination.

D. Yes, if the false testimony is established by clear and convincing extrinsic evidence.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

The defendant seeks to impeach the plaintiff's expert witness by attacking his **character for truthfulness**. This can be done by introducing ***extrinsic* evidence**—ie, evidence elicited from sources other than the expert's own testimony—to:

show the expert's **reputation** for untruthfulness

present another witness's **opinion** on the expert's truthful character *or*

prove a **specific instance of conduct** (SIC) involving a **criminal conviction** of a felony or crime of dishonesty.

But extrinsic evidence cannot be used to prove a SIC involving a **prior bad act**—ie, an illegal, immoral, or impermissible act that did *not* result in a criminal conviction. A bad act can **only be introduced** through ***intrinsic* evidence**—ie, evidence elicited during a witness's own testimony (usually on cross-examination)—if:

the bad act is probative of the witness's truthful character *and*

the inquiry into that bad act is made in good faith.

This is true even if the prior bad act (eg, the expert's false testimony) can be established by clear and convincing evidence **(Choice D)**. Therefore, evidence of the expert's false testimony should be admitted if it is elicited from the expert on cross-examination.

(Choice A) The collateral-evidence rule prohibits the use of *extrinsic* evidence to impeach a witness on a collateral issue—ie, one that is *irrelevant* to the outcome of the case. But it does not apply here since *intrinsic* evidence would be used to impeach the expert and prior falsity is *relevant* to present credibility.

(Choice B) Character evidence is generally improper when it is used to show that a person acted in accordance with his/her character on the occasion at issue (ie, to prove liability). But it can be used for other purposes, like attacking a witness's credibility (as seen here).

Educational objective:

A witness's character for truthfulness can be attacked by introducing a specific instance of conduct involving a prior bad act only on cross-examination if (1) the bad act is probative of the witness's truthful character and (2) the inquiry is made in good faith.

References

Fed. R. Evid. 608(b) (impeaching witness's character for truthfulness).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At the defendant's trial for burglary, a witness supported the defendant's alibi that they were fishing together at the time of the crime. On cross-examination, the witness was asked whether his statement on a credit card application that he had worked for his present employer for the last five years was false. The witness denied that the statement was false.

The prosecutor then calls the manager of the company for which the witness works to testify that although the witness had been first employed five years earlier and is now employed by the company, there had been a three-year period during which he had not been so employed.

Is the manager's testimony admissible or inadmissible?

A. Admissible, as a matter of right, because the witness "opened the door" by his denial on cross-examination.

B. Admissible, in the judge's discretion, because the witness's credibility is a fact of major consequence to the case.

C. Inadmissible, because the misstatement by the witness could have been caused by misunderstanding of the application form.

D. Inadmissible, because whether the witness lied in his application is a matter that cannot be proved by extrinsic evidence.

Explanation:

Any party can **impeach** (ie, discredit) a **witness's character for truthfulness** by presenting either:

reputation or opinion testimony about the witness's untruthful character *or*

specific instances of conduct (SICs) that are indicative of the witness's untruthful character.

If the SIC involves a **criminal conviction** for a felony or crime of dishonesty, it can be **introduced** intrinsically (ie, through that witness's own testimony) or **extrinsically** (ie, from any other source). **Otherwise**, the SIC can ***only*** be introduced **intrinsically**. And if the **witness denies** the SIC (and it does not involve a qualifying conviction), that denial ***cannot* be rebutted** by **extrinsic evidence**.

Here, the prosecutor attacked the alibi witness's character for truthfulness on cross-examination by asking him about a SIC involving a false statement on a credit card application. Although the witness denied that the statement was false, the prosecutor cannot use extrinsic evidence (eg, the manager's testimony) to rebut that denial since the SIC does not involve a qualifying criminal conviction **(Choice A)**. Therefore, the manager's testimony is *inadmissible*.

(Choice B) Extrinsic evidence can always be used to prove a fact of major consequence—ie, one that is material to the case. But a witness's credibility is merely a collateral (ie, immaterial) matter, so it can *only* be attacked with extrinsic evidence of a SIC involving a qualifying criminal conviction (not seen here).

(Choice C) The reason for the witness's misstatement does not factor into whether the manager's impeachment testimony is admissible.

Educational objective:

Intrinsic evidence of a specific instance of conduct (SIC) can always be used to impeach a witness's character for truthfulness. But extrinsic evidence can only be used if the SIC involves conviction for a felony or crime of dishonesty.

References

Fed. R. Evid. 607 (who may impeach witness).

Fed. R. Evid. 608 (witness's character for truthfulness).

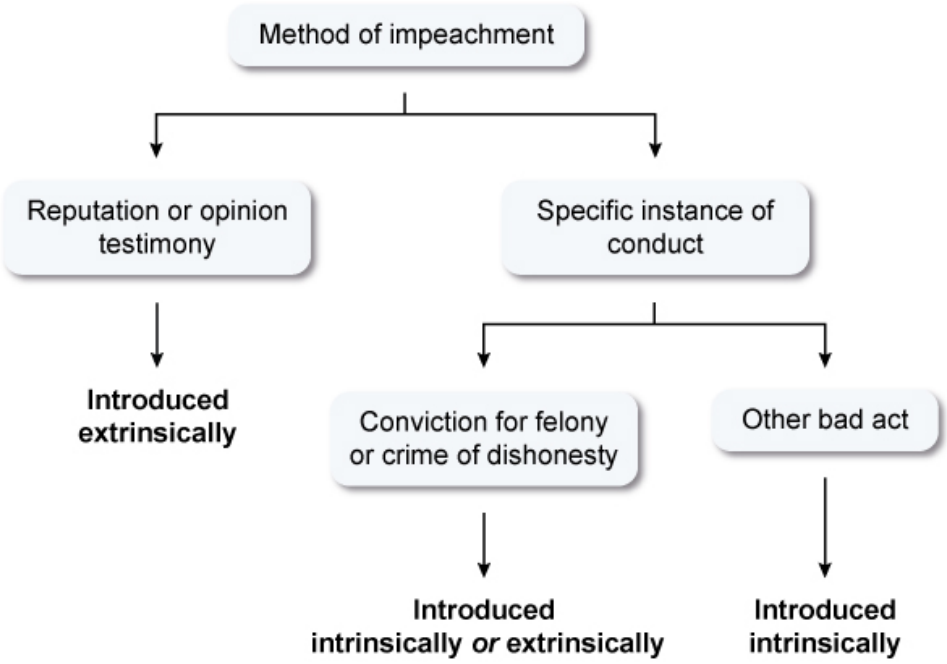
Fed. R. Evid. 404 (character evidence; crimes or other acts).

Fed. R. Evid. 405 (methods of proving character).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching witness's character for truthfulness
(FRE 608 & 609)



FRE = Federal Rules of Evidence

©UWorld

A plaintiff has sued the government for injuries she received when her car was allegedly forced off the road by a military convoy. At trial, an eyewitness testifies for the plaintiff and then is asked on cross-examination whether he belongs to a religious group that refuses on principle to file federal tax returns, because the revenues are used to build weapons of war.

Is the question proper?

A. No, because evidence of the witness's religious beliefs cannot be used for impeachment in this case.

B. No, because the witness's character cannot be impeached by evidence of criminal acts, but only by convictions.

C. Yes, because a person's willingness to violate tax laws indicates possible willingness to testify falsely.

D. Yes, because the witness's beliefs are relevant to the possibility of bias.

Explanation:

Evidence of a **witness's religious beliefs** is **inadmissible** to attack the witness's **character for truthfulness**, but it is ***admissible*** to prove a witness's **bias or self-interest (Choice A)**. Evidence of bias or self-interest attacks a witness's credibility by showing the witness's motive to lie, partiality to a party, or stake in the outcome of the case. Therefore, this impeachment evidence is always relevant.

Here, the government seeks to discredit the eyewitness's unfavorable testimony about the military convoy on cross-examination. The government's question—whether the witness belongs to a religious group that refuses to file federal tax returns because the revenues are used to build weapons of war—goes to the witness's possible anti-military bias. Since evidence of bias is always relevant, it can be used to impeach the witness.

(Choice B) A witness's character for truthfulness *may* be impeached with evidence of a prior criminal act that did not result in a conviction. But here, the government is not asserting that the witness willfully failed to file a tax return (a misdemeanor)—only that he belongs to a religious group that does. And his *character* may not be impeached with such evidence, but it is admissible to show his *bias*.

(Choice C) Evidence of a witness's willingness to break the law—eg, a conviction for a felony or crime of dishonesty—*can* be used to show the witness's willingness to give false testimony. However, the eyewitness's *affiliation* with a group that is willing to break the law is not admissible for that purpose.

Educational objective:

Evidence of a witness's religious beliefs is admissible to show the witness's bias or self-interest, but not to attack the witness's character for truthfulness.

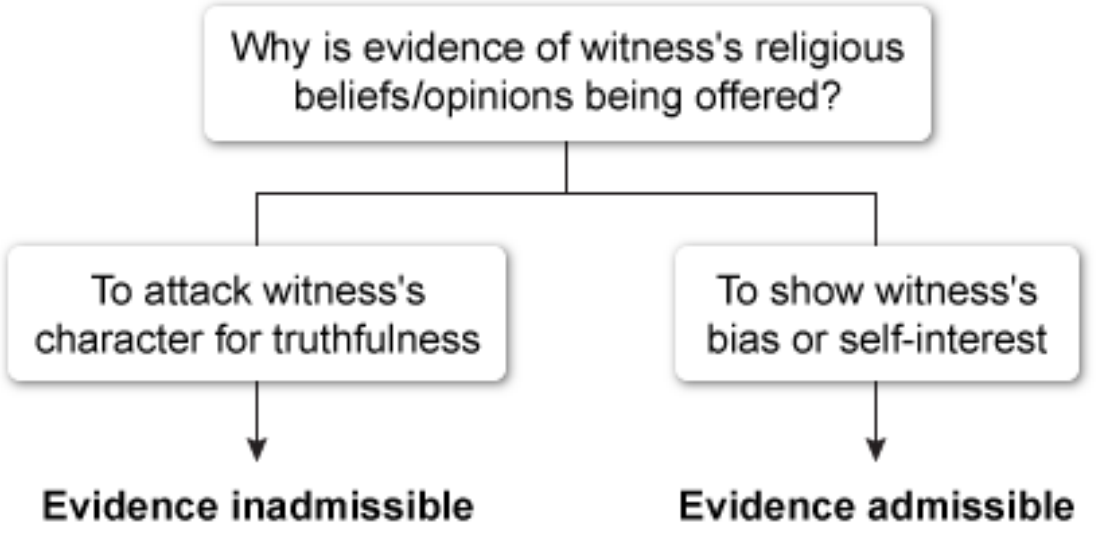
References

Fed. R. Evid. 610 (religious beliefs or opinions).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Witness's religious beliefs
(FRE 610)



FRE = Federal Rule of Evidence

©UWorld

In a civil trial for fraud arising from a real estate transaction, the defendant claimed not to have been involved in the transaction. The plaintiff called a witness to testify concerning the defendant's involvement in the fraudulent scheme. To the plaintiff's surprise, however, the witness testified that the defendant was not involved and denied having made any statement to the contrary.

The plaintiff has now called a second witness to testify that the first witness had stated, while the two were having a dinner conversation, that the defendant was involved in the fraudulent transaction.

Is the testimony of the second witness admissible?

A. No, because a party cannot impeach the party's own witness.

B. No, because it is hearsay not within any exception.

C. Yes, but only to impeach the first witness.

D. Yes, to impeach the first witness and to prove the defendant's involvement.

Explanation:

A **prior inconsistent statement** is a past statement that is contrary to a witness's present testimony. These statements are **inadmissible** to prove the truth of the matter asserted therein (ie, for **substantive purposes**) **unless** they are excepted or excluded from the **hearsay rule**. Since there is no indication that the first witness's prior statement falls within a hearsay exception or exclusion, the second witness's testimony about that statement is *not* admissible to prove the truth of the defendant's involvement **(Choice D)**.

However, prior inconsistent statements are **admissible** to impeach a witness. Intrinsic evidence is always admissible for this purpose. But extrinsic evidence (eg, the second witness's testimony) is admissible only if the impeached witness has the opportunity to explain or deny—and the adverse party can examine the witness about—the inconsistent statement (or if justice so requires). Since the first witness can be recalled to testify, the second witness's testimony is admissible to *impeach* the first witness **(Choice B)**.

(Choice A) Any party may impeach a witness—including the party who called the witness.

Educational objective:

A witness's prior inconsistent statement that is inadmissible as *substantive* proof of the truth of the matter asserted therein may still be admissible for *impeachment* purposes.

References

Fed. R. Evid. 801(d)(2) (when opposing party's statement is nonhearsay).

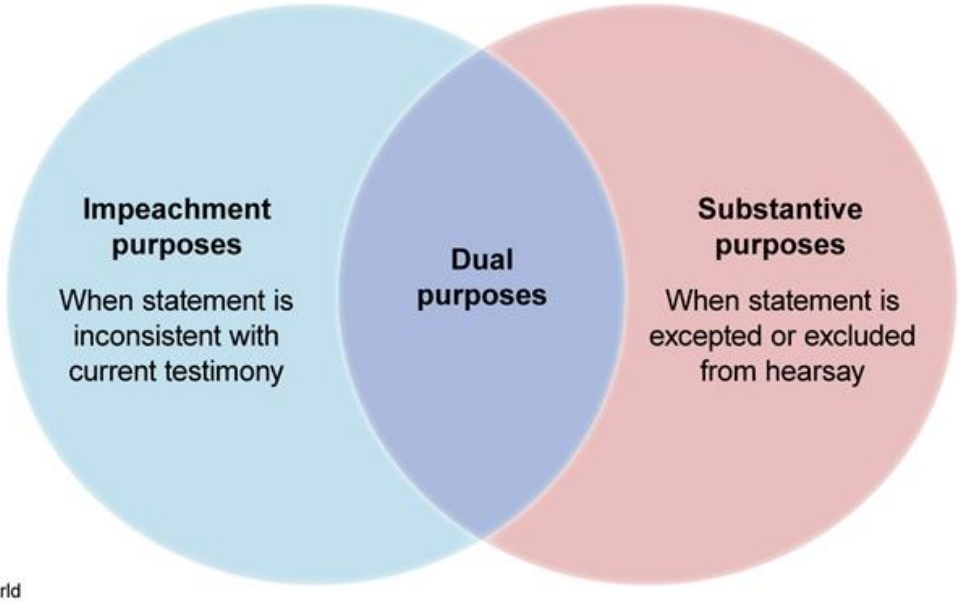
Fed. R. Evid. 613 (admissibility of witness's prior inconsistent statement).

Fed. R. Evid. 607 (who may impeach witness).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Use of witness's prior inconsistent statement



©UWorld

A plaintiff, a former city employee, sued the city for his alleged wrongful discharge from a civil service position. The plaintiff alleged that his supervisor had discharged him in retaliation after she learned that he had told the police he thought the supervisor might be embezzling. At trial, the plaintiff has called the supervisor as an adverse witness, and the supervisor has testified that the plaintiff was fired for incompetence.

The plaintiff's attorney then asks the supervisor, "Isn't it true that before the discharge you were told that [the plaintiff] had reported to the police that you were pilfering money from the office coffee fund?"

For what purpose(s) is the plaintiff's question permissible?

A. Only to establish the supervisor's improper motive in discharging the plaintiff.

B. Only to impeach the supervisor's veracity as a witness because of her dishonesty.

C. Only to impeach the supervisor's veracity as a witness because of her personal bias against her accuser, the plaintiff.

D. Both to impeach by showing bias and to establish improper motive in discharging the plaintiff.

Explanation:

Under Federal Rule of Evidence 607, a witness can be **impeached by any party**—including the party that called the witness. One method of impeachment is establishing that the witness is **biased against a party** and therefore had a **motive to lie** while testifying. For example, evidence that the supervisor learned that the plaintiff had reported her to the police before the firing shows that the supervisor may have reason to lie about why the plaintiff was fired. Therefore, the plaintiff's question is permissible for impeachment purposes **(Choice A)**.

But a question that impeaches a witness may *also* be used to **elicit substantive evidence** if the question goes toward a material fact or issue—ie, a fact or issue that is of consequence in determining the outcome of the case. Here, the plaintiff sued for wrongful discharge, so the reason he was fired is a material fact. Since the plaintiff's question tends to establish an improper motive for discharging him, it is also permissible for this substantive purpose **(Choice C)**.

(Choice B) A party *may* impeach a witness by inquiring into specific instances of conduct that bear on the witness's character for truthfulness. But here, the plaintiff's question addressed the supervisor's *response* to learning that the plaintiff reported her to the police—not whether the supervisor *actually* pilfered the office coffee fund. Therefore, the question does not go to the supervisor's character for truthfulness.

Educational objective:

A witness may be impeached by showing that the witness is biased against a party and therefore had a motive to lie while testifying. A question that impeaches a witness may also be used to elicit substantive evidence if the question concerns a material fact or issue.

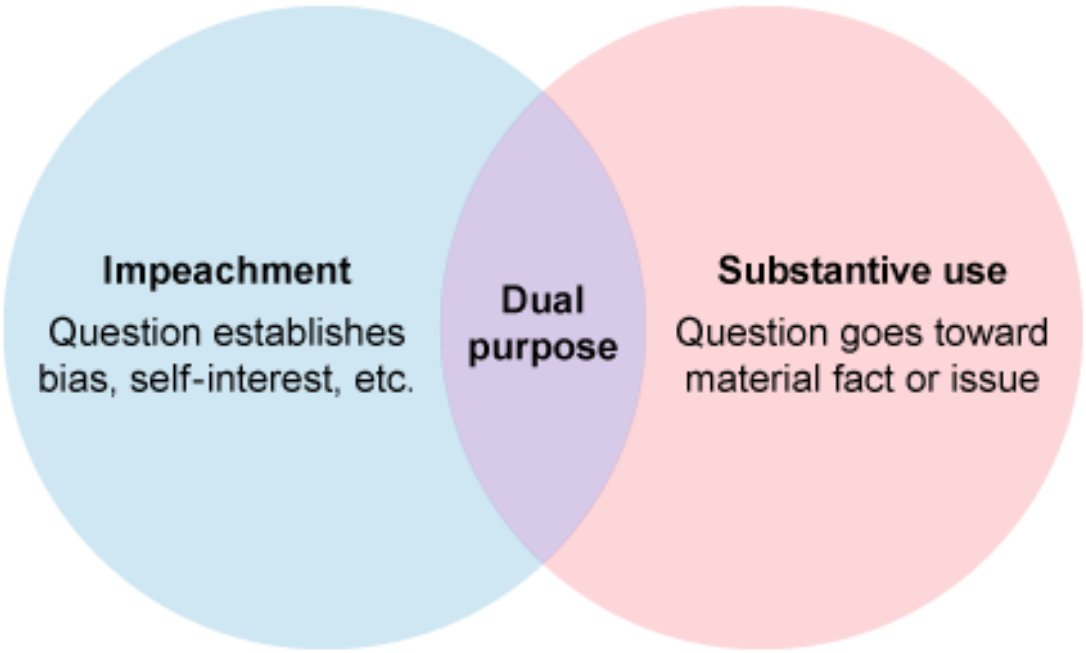
References

Fed. R. Evid. 607 (who may impeach a witness).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeachment v. Substantive use



©UWorld

A daughter is prosecuted for the murder of her mother. At trial, the government seeks to introduce a properly authenticated note written by the mother that reads: "My daughter did it." In laying the foundation for admitting the note as a dying declaration, the prosecution offered an affidavit from the attending physician that the mother knew she was about to die when she wrote the note.

Is the admissibility of the note as a dying declaration a question for the judge or the jury?

A. The judge as a preliminary fact question, and the judge may properly consider the affidavit.

B. The judge as a preliminary fact question, and the judge must not consider the affidavit.

C. The jury as a question of weight and credibility, and the jury may properly consider the affidavit.

D. The jury as a question of weight and credibility, and the jury must not consider the affidavit.

Explanation:

Although a **jury** ultimately determines the **weight and credibility** of evidence, a **judge** must first determine whether that **evidence can be presented** to the jury (ie, admitted) under the Federal Rules of Evidence (FRE) **(Choices C & D)**. Under FRE 804, a dying declaration is admissible hearsay evidence if:

the declarant is unavailable (eg, deceased, no memory, refuses to testify)

the statement was made when the declarant believed that his/her death was imminent *and*

the statement pertains to the cause or circumstances of the anticipated death.

When determining if these preliminary facts are met, the court may **consider *any* relevant evidence**—even evidence that is otherwise inadmissible.*

Here, the prosecution seeks to introduce the mother's note as a dying declaration. To establish the note's admissibility, the prosecution offered the physician's affidavit explaining that the mother knew she was about to die when she wrote the note. And since the physician's affidavit is relevant to determining whether the note was a dying declaration, the judge *may* consider the affidavit in determining the note's admissibility **(Choice B)**.

*The Federal Rules of Evidence typically apply to all civil and criminal proceedings before U.S. district courts, U.S. courts of appeal, U.S. bankruptcy courts, the U.S. Court of Federal Claims, and U.S. magistrate judges. Preliminary-question hearings are one exception to this rule.

Educational objective:

A judge must determine the admissibility of evidence and can consider *any* relevant evidence—even if it is otherwise inadmissible—to do so. But the jury must decide the weight and credibility of the admitted evidence.

References

Fed. R. Evid. 804 (hearsay exceptions declarant unavailable).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Presentation and evaluation of evidence



Present evidence

Determine admissibility
May consider any relevant evidence

Assess weight & credibility
May only consider evidence admitted at trial

Issue verdict

©UWorld

A man is on trial for the brutal murder of his wife. The man's first witness testified that, in her opinion, the man is a peaceful and nonviolent person. The prosecution did not cross-examine the witness, and the witness was then excused from further attendance.

Which one of the following is INADMISSIBLE during the prosecution's rebuttal?

A. Testimony by a neighbor that the witness has a long-standing reputation in the community as an untruthful person.

B. Testimony by a police officer that the defendant has a long-standing reputation in the community as having a violent temper.

C. Testimony by the defendant's former cellmate that he overheard the witness offer to provide favorable testimony if the defendant would pay her $5,000.

D. Testimony by the witness's former employer that the witness submitted a series of false expense vouchers two years ago.

Explanation:

Federal Rule of Evidence 608 provides the framework to attack or support a witness's **character for truthfulness** through:

reputation or opinion testimony about the witness's character for truthfulness **(Choice A)** *or*

specific instances of conduct (SIC)—ie, convictions for felonies or crimes of dishonesty OR prior bad acts that relate to the witness's character for truthfulness.

A SIC that involves a conviction for a **felony or crime of dishonesty** can be introduced **intrinsically** (ie, through the witness's testimony) or **extrinsically** (ie, from other sources). In contrast, a SIC involving a **bad act** may only be **introduced intrinsically**.

Here, the prosecution seeks to attack the witness's character for truthfulness by having the witness's former employer testify that the witness submitted a series of false expense vouchers two years ago. But since this SIC involves a prior bad act, it may only be introduced intrinsically—not extrinsically through the former employer's testimony.

(Choice B) A defendant may offer evidence of his/her pertinent character trait at a criminal trial—eg, defendant's character for peacefulness is pertinent in a murder trial. If the defendant does so, the prosecutor can then offer evidence to rebut that trait—eg, defendant's reputation for violence. Therefore, the police officer's testimony is admissible.

(Choice C) Extrinsic evidence of a SIC involving a bad act cannot be used to attack a witness's character for truthfulness. But it *can* be used to impeach a witness on another basis (eg, to show bias). Therefore, extrinsic evidence in the form of the cellmate's testimony that the witness offered to testify favorably for $5,000 is admissible to show bias.*

*The Federal Rules of Evidence do not require that a party lay a foundation by asking the witness about an alleged bias before introducing extrinsic evidence of that bias. However, many states' rules of evidence do (eg, Alaska, Texas).

Educational objective:

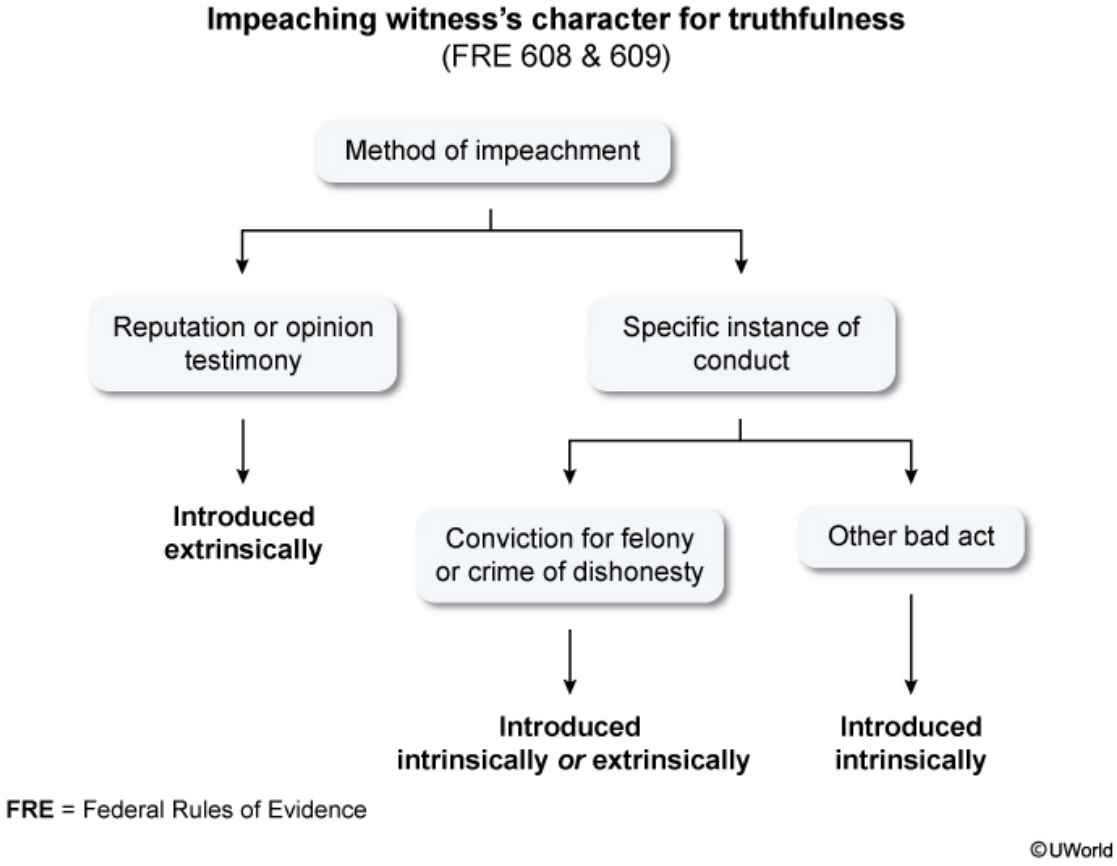
A witness's character for truthfulness can be attacked with a specific instance of conduct (SIC) involving a criminal conviction for a felony or crime of dishonesty—regardless of whether the SIC is introduced intrinsically or extrinsically. But a SIC involving a bad act can only be introduced intrinsically.

References

Fed. R. Evid. 608(b) (attacking a witness's character for truthfulness with a specific instance of conduct).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.



A man and a woman were charged with burglary of a warehouse. They were tried separately. At the man's trial, the woman testified that she saw the man commit the burglary. While the woman is still subject to recall as a witness, the man calls the woman's cellmate to testify that the woman said, "I broke into the warehouse alone because [the man] was too drunk to help."

Is the testimony regarding the woman's statement admissible?

A. No, because it is hearsay not within any exception.

B. No, because the statement is not clearly corroborated.

C. Yes, as a declaration against penal interest.

D. Yes, as a prior inconsistent statement.

Explanation:

A **prior inconsistent statement** is a statement that was made by a witness in the past that is inconsistent with the witness's current testimony. The prior statement may be **used to impeach** (ie, discredit) the witness by:

examining the witness about the statement (ie, intrinsic evidence) *or*

introducing the statement through **extrinsic evidence** if (1) the witness has an **opportunity to explain or deny**, and the opposing party can **question the witness** about, the statement or (2) justice so requires.

But a prior inconsistent statement may not be used as substantive evidence—ie, to prove the truth of the matter asserted—unless the statement is excluded or excepted from the rule against hearsay.

Here, the woman testified that she saw the man burglarize the warehouse. The man then called the woman's cellmate to testify that the woman had previously said that she broke into the warehouse alone. Since the woman is subject to recall, she can explain or deny—and the prosecution can question her about—her prior inconsistent statement. Therefore, the cellmate's testimony is admissible for impeachment purposes. But the woman's prior statement cannot be used substantively because it is neither excluded* nor excepted from the hearsay rule.

*The hearsay exclusion for statements by a declarant-witness does not apply because the woman's prior inconsistent statement was neither made under penalty of perjury at a legal proceeding nor identified a person as someone the declarant perceived earlier.

(Choice A) A prior inconsistent statement is *not* hearsay when it is offered for impeachment and not for the truth of the matter asserted.

(Choice B) Prior inconsistent statements need not be clearly corroborated (ie, supported by other evidence) to be admissible.

(Choice C) A statement against penal interest is a hearsay exception for out-of-court statements that tend to expose the declarant to criminal liability. But since this exception only applies when the declarant (eg, the woman) is *unavailable* as a witness, it does not apply here.

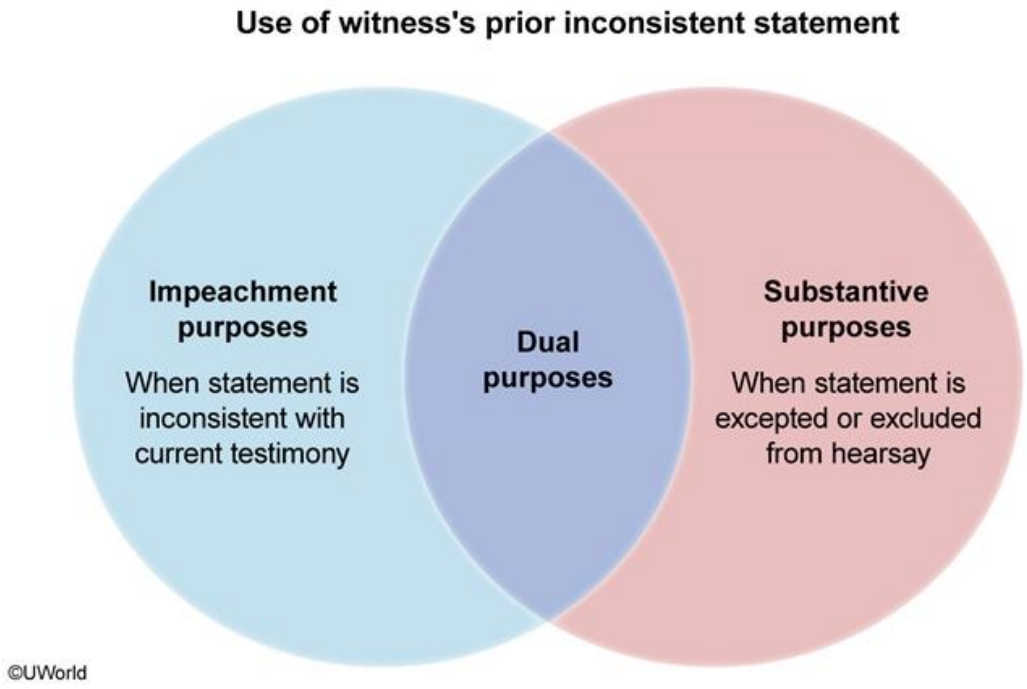
Educational objective:

Extrinsic evidence of a prior inconsistent statement is admissible for impeachment if (1) the witness has a chance to explain or deny, and the opposing party can question the witness about, that statement or (2) justice so requires. And a prior statement is admissible for substantive purposes if it falls within a hearsay exclusion or exception.

References

Fed. R. Evid. 613 (witness's prior inconsistent statement).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.



A plaintiff sued an individual defendant for injuries suffered in a collision between the plaintiff's car and the defendant's truck while the defendant's employee was driving the truck. The plaintiff sought discovery of any accident report the employee might have made to the defendant, but the defendant responded that no such report existed. Before trial, the defendant moved to preclude the plaintiff from asking the defendant in the presence of the jury whether he had destroyed such a report because the defendant would then invoke his privilege against self-incrimination.

Should the court allow the plaintiff to ask the defendant about the destruction of the report?

A. No, because a report that was prepared in anticipation of litigation is not subject to discovery.

B. No, because no inference may properly be drawn from invocation of a legitimate privilege.

C. Yes, because a party in a civil action may not invoke the privilege against self-incrimination.

D. Yes, because the defendant's destruction of the report could serve as the basis of an inference adverse to the defendant.

Explanation:

Fifth Amendment privilege against self-incrimination

Allows any witness (including party-witnesses) in civil & criminal proceedings to refuse to give potentially incriminating testimony

In civil case, opposing party may ask jury to draw adverse inference from witness's claim of privilege
In criminal case, prosecution cannot comment on defendant's failure to take stand & cannot ask jury to draw adverse inference from defendant's claim of privilege
A party can generally present evidence to support an **adverse inference** against the opposing party. For example, the intentional **destruction of relevant evidence** can create an adverse inference that such evidence would have been unfavorable to the party that destroyed it. And in **civil cases**, an adverse inference can also be drawn from a party's invocation of the Fifth Amendment **privilege against self-incrimination**. Therefore, the court should allow the plaintiff to ask the defendant about the destruction of the accident report to raise these inferences.

(Choice A) The accident report would qualify as work product if it was prepared by or for an attorney in anticipation of litigation—but that cannot be determined based on the facts provided. Even if it is work product, this privilege would only protect the report from discovery—not prevent the plaintiff from asking if the report had been destroyed.

(Choice B) Had this been a *criminal* case, the prosecutor would have been prohibited from commenting on the defendant's invocation of the privilege against self-incrimination. The jury would also have been barred from drawing a negative inference from the assertion of that privilege.

(Choice C) The Fifth Amendment privilege against self-incrimination applies in civil *and* criminal cases.

Educational objective:

A party can generally present evidence to support an adverse inference against the opposing party, including evidence on the intentional destruction of relevant evidence. And in civil cases only, a party can ask the jury to draw an adverse inference from the opposing party's invocation of the privilege against self-incrimination.

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for negligence to recover damages that the plaintiff suffered as a result of a crash between the two parties. At trial, the plaintiff's attorney called the plaintiff's wife to testify as to what she witnessed on the day of the crash. On cross-examination of the wife, the defendant's lawyer elicited several responses that tended to show that the plaintiff's actions constituted contributory negligence. The plaintiff's attorney seeks to ask the wife several questions on redirect examination, but the defendant's attorney objected.

What is the strongest argument that the court must allow redirect examination of the wife?

A. The plaintiff's attorney failed to provide all significant information on direct examination.
B. The plaintiff's attorney seeks to reiterate the necessary elements of the claim.
C. The plaintiff's attorney seeks to reply to all matters raised on cross-examination.
D. The plaintiff's attorney seeks to reply to significant new matters raised on cross-examination.

Explanation:

Federal Rule of Evidence 611 gives trial courts the authority to exercise reasonable control over the mode and order of examining witnesses at trial. This includes the discretion to determine whether—and to what extent—redirect examination of witnesses should be permitted. But when a party raises a **significant new matter** while **cross-examining** a witness, the **court *must* allow** the opposing party to address that matter through **redirect examination**.

Therefore, the strongest argument for allowing redirect examination of the plaintiff's wife is that the plaintiff's attorney seeks to reply to significant new matters that were raised on cross-examination.

(Choice A) A party is expected to elicit all significant information during direct examination of a witness. Therefore, a court need not permit redirect examination to allow the party to provide information inadvertently omitted on direct examination.

(Choices B & C) Redirect examination is generally limited to significant *new* matters raised on cross-examination. Therefore, a party is not entitled to redirect examination to (1) reiterate information like the necessary elements of the claim or (2) reply to all matters addressed in cross-examination.

Educational objective:

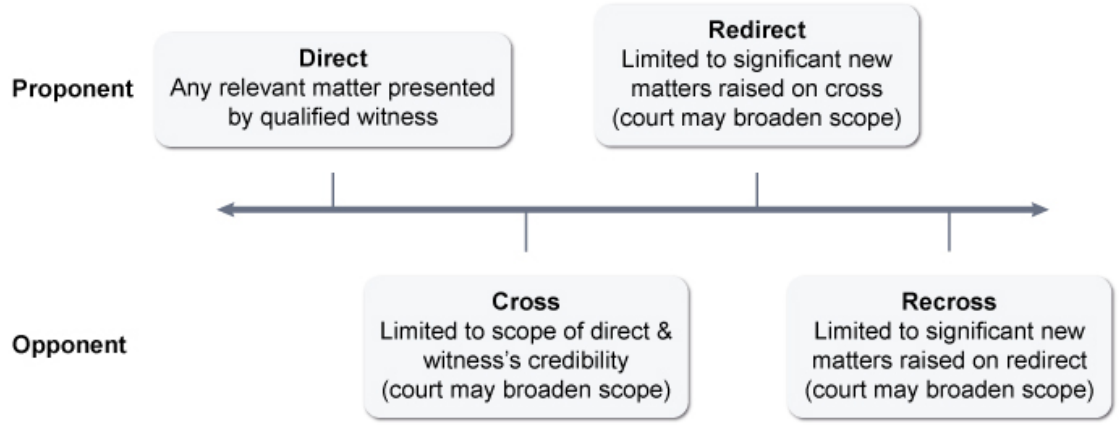
When a party raises a significant new matter on cross-examination of a witness, the court must allow redirect examination by the opposing party to address that matter.

References

Fed. R. Evid. 611 (explaining the mode and order of examining witnesses).

Copyright © UWorld. All rights reserved.

Sequence & scope of witness examination



©UWorld

A plaintiff sued a nonprofit organization after falling down a small set of stairs while visiting its headquarters. The plaintiff alleges that the nonprofit was negligent in failing to adequately mark the stairs. The nonprofit argues that the stairs were adequately marked and that the plaintiff's failure to watch her step caused the fall. At trial, the nonprofit called a witness who testified that he saw the plaintiff looking down at her cellphone just before falling. On cross-examination, the plaintiff's attorney asked the witness whether he had ever made monetary donations to the nonprofit. The witness denied making any donations. The plaintiff's attorney now seeks to introduce donation records from the nonprofit that the witness had made 10 donations to the nonprofit over the past 5 years.

Are the donation records admissible?

A. No, because the donation records are extrinsic evidence of the witness's conduct.

B. No, because the donation records are hearsay not within an exception.

C. Yes, as impeachment evidence of the witness's bias.

D. Yes, as impeachment evidence of the witness's character for truthfulness.

Explanation:

A party may **attack the credibility** of a **witness's testimony** by introducing evidence that the witness is **biased** and therefore had a motive to lie while testifying. This can be done by introducing a **specific instance of conduct** (SIC) that illustrates the witness's bias through:

intrinsic evidence – by questioning the witness about the conduct *or*

extrinsic evidence – from any source other than the witness's own testimony.

Here, the plaintiff cross-examined the witness about his monetary donations to show his bias in favor of the nonprofit (intrinsic evidence). The witness denied the donations, so the plaintiff now seeks to introduce donation records from the nonprofit (extrinsic evidence). Since extrinsic evidence can *also* be used to show a witness's bias, the donation records are admissible.

(Choice A) Extrinsic evidence of a SIC is admissible to impeach a witness *unless* the SIC is a bad act that is probative of the witness's character for truthfulness (not seen here). In that case, only intrinsic evidence of the bad act is admissible and, if the witness denies the bad act, the examining party is stuck with that answer and cannot rebut it.

(Choice B) Hearsay refers to out-of-court statements (eg, donation records) offered for the truth of the matter asserted therein (eg, that donations were made). Such statements are inadmissible unless they are excluded or excepted from the rule against hearsay. And here, the nonprofit's donation records would likely fall within the exception for business records.

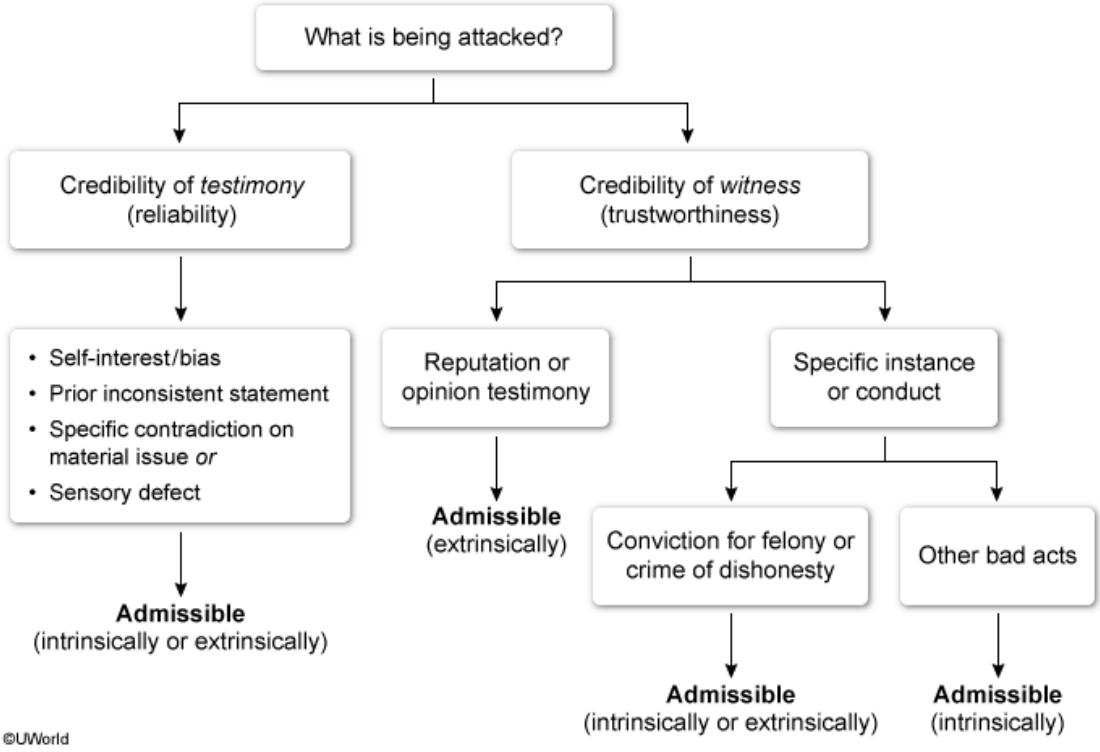
(Choice D) Although the donation records are being used to impeach the witness's testimony, they are not being used to attack the witness's character for truthfulness. That is because donations to the nonprofit do not suggest that the witness has a general propensity for dishonesty.

Educational objective:

The credibility of a witness's testimony can be attacked with evidence (eg, a specific instance of conduct) that shows the witness's bias introduced (1) intrinsically through the witness's own testimony or (2) extrinsically through any other source.

Copyright © UWorld. All rights reserved.

Impeachment evidence



©UWorld

A defendant was charged with possession of marijuana with intent to distribute. On direct examination, the defendant testified that he worked with disadvantaged children as a drug counselor, that he hated drugs, that he would "never possess or distribute drugs," and that he had never used drugs and would not touch them.

The government offered as a rebuttal witness a police officer who would testify that, three years earlier, she saw the defendant buy cocaine from a street dealer. The defendant objected.

Is the testimony of the police officer about the prior drug transaction admissible to impeach the defendant?

A. No, because it is contradiction on a collateral matter.

B. No, because the bad act of buying drugs is not sufficiently probative of a witness's character for truthfulness.

C. Yes, because it is proper contradiction.

D. Yes, because the bad act shows a disregard for the law and makes it less likely that the defendant would respect the oath of truthfulness.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

A witness may be **impeached** (ie, discredited) with evidence that **contradicts** his/her testimony. This can be done by introducing either:

intrinsic evidence – testimony elicited **from that witness** on cross-examination *or*

extrinsic evidence – evidence elicited **from any source** other than that witness.

But under the collateral-evidence rule, **extrinsic evidence cannot be used** to impeach a witness on a **collateral matter**—ie, one that is irrelevant to a material issue in the case.

Here, the prosecution seeks to impeach the defendant-witness with the police officer's testimony that she saw him buy cocaine. Evidence of the prior cocaine purchase is *not* collateral since (1) the defendant-witness is charged with drug possession and (2) the evidence directly contradicts his testimony that he would "never possess or distribute drugs" **(Choice A)**. Therefore, the police officer's testimony is admissible to impeach him by contradiction.

(Choices B & D) Buying drugs is not probative of a witness's character for truthfulness. And even if it were, this specific instance of conduct involving a bad act could

only be used to impeach a witness's truthfulness if it were introduced through *intrinsic* evidence. But here, the prior drug purchase is being used to impeach the defendant-witness by contradiction—not to attack his character for truthfulness—so it can be introduced through *extrinsic* evidence.

Educational objective:

A witness may be impeached with evidence that contradicts his/her testimony. However, under the collateral-evidence rule, extrinsic evidence cannot be used to impeach a witness on a collateral matter.

References

Fed. R. Evid. 403 (excluding relevant evidence).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant in federal court for assault and battery. At trial, the court has allowed the plaintiff to introduce the deposition testimony of a witness, now deceased, that he was with the plaintiff at the time of the incident.

The defendant now seeks to impeach the testimony of the witness with his 13-year-old conviction for burglary (for which he served 18 months in prison) for breaking into the home of a neighbor while she was away and taking some of her valuable jewelry.

Should the court allow evidence of the conviction?

A. No, because the witness did not testify at trial.

B. No, unless the court finds, in the interests of justice, that the probative value of the conviction, supported by specific facts and circumstances, substantially outweighs its prejudicial effect.

C. Yes, because prior convictions are probative to impeach the witness's character for truthfulness.

D. Yes, because the crime involved an act of dishonesty.

Explanation:

A party may **impeach** a witness by eliciting proof of a **criminal conviction** while examining that witness or by introducing a record of that conviction. But the conviction must (1) involve a crime of dishonesty or felony and (2) not be too remote. A crime is too remote if **more than 10 years** have passed since the witness was convicted or released from incarceration—whichever is later. But a **felony conviction** may still be admitted if:

the trial judge determines that its **probative value**, supported by specific facts and circumstances, ***substantially*** **outweighs** its **prejudicial effect** *and*

the adverse party has been given **reasonable written notice** of the party's intent to use the conviction so that the adverse party has a fair opportunity to contest its use.

Here, the defendant seeks to impeach the witness's testimony with his 13-year-old *felony* conviction for burglary. Since this conviction is so remote, this evidence should not be allowed unless the court finds that its probative value substantially outweighs its prejudicial effect (and proper notice has been given).

(Choice A) The witness could not testify at trial because he was deceased. But since the plaintiff was permitted to introduce the witness's deposition testimony, the defendant may impeach that testimony—eg, by introducing evidence of the witness's prior conviction.

(Choices C & D) Convictions for crimes of dishonesty and felonies (like burglary) are probative to impeach a witness's character for truthfulness. But a conviction that is over 10 years old (as seen here) is only admissible if its probative value substantially outweighs its prejudicial effect.

Educational objective:

A witness cannot be impeached with a criminal conviction that is too remote—ie, more than 10 years have passed since the conviction or release from incarceration—unless its probative value substantially outweighs its prejudicial effect.

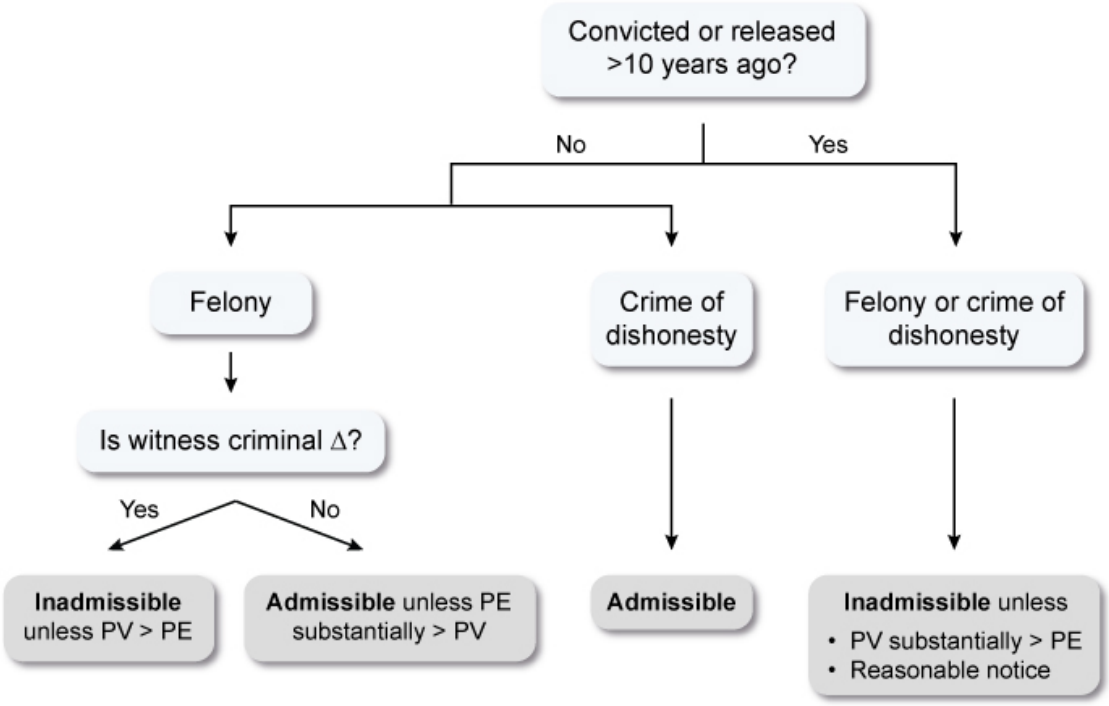
References

Fed. R. Evid. 609(b) (limits on impeaching a witness with a criminal conviction over ten years old).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Impeaching with criminal conviction



Δ = defendant; **PV** = probative value; **PE** = prejudicial effect

©UWorld

A man sued his former business partner for fraud. After a verdict for the man, the business partner talked with a juror about the trial. After talking with the juror, the business partner promptly filed a motion for new trial.

The business partner seeks to have the juror testify as to the reason for his vote at the hearing on the motion for new trial.

Which testimony by the juror would most likely be permitted by the court?

A. The juror learned from a court clerk that the business partner had been accused of fraud in several recent lawsuits.

B. The juror misunderstood the judge's instructions concerning the standard of proof in a fraud case.

C. The juror relied on testimony that the judge had stricken and ordered the jury to disregard.

D. The juror was feeling ill and needed to get home quickly.

Explanation:

Judge & juror competency as witness

Judge	May not testify in trial over which judge is presiding	
	No objection necessary to preserve issue for appeal	
Juror	During trial	May not testify before jury in which juror is sitting
		Objection outside jury's presence must be permitted
	After trial	May not testify about jury deliberations
	or indictment	May testify about improper extraneous prejudicial information, outside influence, or mistake on verdict form

A **juror** is **generally prohibited** from **testifying after trial** about:

any statement made, or incident that occurred, during jury deliberations—eg, a juror's statement about the strength of the evidence presented at trial

the effect of anything upon that juror or another juror's vote—eg, a juror was feeling ill and needed to get home quickly **(Choice D)** *or*

any juror's mental process concerning the verdict—eg, a juror misunderstood the judge's instructions concerning the standard of proof or relied on stricken testimony **(Choices B & C)**.

But since the jury must issue a verdict based *only* on evidence presented at trial, post-trial juror testimony is **admissible if** it addresses:

extraneous prejudicial information brought to the jury's attention
an **outside influence** improperly brought to bear on a juror *or*
a **mistake** made in **entering the verdict** onto the verdict form.
Therefore, testimony that the juror learned from a court clerk that the business partner had been accused of fraud in several recent lawsuits (extraneous prejudicial information) is admissible at the motion for new trial hearing.

Educational objective:

Post-trial juror testimony is admissible if it concerns (1) extraneous prejudicial information brought to the jury's attention, (2) an outside influence improperly brought to bear on a juror, or (3) a mistake made in entering the verdict onto the verdict form.

References

Fed. R. Evid. 606 (juror's competency as a witness).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant testified at a grand jury investigation regarding his employer's alleged tax evasion. The grand jury investigation later uncovered a large bank deposit in the employer's financial records that contradicted the defendant's testimony. The defendant was subsequently charged with obstruction of a grand jury investigation. At trial, the defendant testified that the bank deposit was an accounting discrepancy. On cross-examination, the prosecutor seeks to introduce evidence of the defendant's prior conviction for wire fraud that is currently on appeal.

Is the evidence admissible?

A. No, because evidence of a prior crime cannot be used as character evidence.

B. No, because the pendency of an appeal renders the conviction inadmissible.

C. Yes, because the evidence is probative of the defendant's character for truthfulness.

D. Yes, because the evidence shows absence of mistake.

Explanation:

Admissibility of previous criminal conviction or bad act

(FRE 404, 608 & 609)

Impeach witness's character (FRE 608(b), 609)	Impeach witness with either: conviction for crime of dishonesty or any felony through examination & extrinsic evidence *or* bad act (no conviction) elicited only on examination
Relevant noncharacter purpose (FRE 404(b))	Examination & extrinsic evidence to show **MIMIC**: **M**otive/opportunity **I**ntent **M**istake (absence of) **I**dentity **C**ommon scheme/plan

FRE = Federal Rules of Evidence

A witness's credibility is always relevant—regardless of the substance of the testimony or the witness's role in the case. So when a party (here, the defendant) decides to testify, that party may be impeached in the same manner as any other witness.

For example, a witness can be **impeached** through reputation or opinion testimony OR a **specific instance of conduct** (SIC) that is probative of the **witness's character for truthfulness** (or lack thereof). Two types of SICs are admissible for this purpose:

Convictions involving a felony or crime of dishonesty (eg, wire fraud)

Other bad acts

Such convictions are **admissible** for impeachment purposes **even if** an **appeal is pending**. Therefore, the defendant's wire-fraud conviction that is currently on appeal *is* admissible to impeach the defendant's character for truthfulness **(Choice B)**. However, evidence of the **pending appeal** is **also admissible** to allow the fact finder to decide whether to believe the witness.

(Choices A & D) Evidence of a person's character is generally inadmissible to prove that the person acted in conformity with his/her character on the particular occasion being litigated.* However, evidence of a person's prior crime or bad act can be used for impeachment purposes (as seen here) or noncharacter purposes (eg, to show absence of mistake). But here, the defendant's unrelated wire fraud has no bearing on whether he mistakenly obstructed the current grand jury investigation.

*Character evidence is admissible only when (1) character is an essential element of a criminal charge, civil claim, or asserted defense or (2) a defendant introduces evidence of his/her pertinent trait in a criminal case.

Educational objective:

Any witness, including a party-witness, may be impeached by introducing evidence of a conviction for a felony or crime of dishonesty—even if the conviction is currently on appeal.

References

Fed. R. Evid. 608–09 (impeaching witness's character for truthfulness with criminal conviction on appeal).

United States v. Mitchell, 886 F.2d 667, 671 (4th Cir.1989) (stating that the pendency of an appeal does not render evidence of a conviction inadmissible).

Copyright © UWorld. All rights reserved.

At a defendant's trial for burglary, the defendant has called a witness who has testified without objection that the defendant said shortly after his arrest, "They've got the wrong person for this because I have an alibi." The prosecutor seeks to cross-examine the witness about why she did not mention that statement when the police asked her whether the defendant had said anything to her about having an alibi.

Is the prosecutor's proposed cross-examination proper?

A. No, because the witness's character for truthfulness cannot be attacked by specific instances of conduct.

B. No, because the witness's failure to mention the alibi is collateral.

C. Yes, as impeachment for bias and interest.

D. Yes, as impeachment for prior inconsistency.

Explanation:

Any party may **impeach** a witness with a **prior inconsistent statement**—ie, a statement made by a witness in the past that is inconsistent with the witness's current testimony.* This includes prior statements that **omitted details** later testified to at trial that would have been **natural to include** at the time the statement was made.

Here, the witness testified that shortly after the defendant's arrest, he stated that he had an alibi. But the witness *omitted* that statement when the police asked her if the defendant had said anything about an alibi. Since it would have been natural to mention the defendant's alibi when the witness was questioned by the police, the prosecutor can cross-examine the witness on this prior inconsistency for impeachment purposes.

*A party need not show or disclose the contents of a prior inconsistent statement to a witness before questioning the witness on the inconsistency. But the party must, on request, show the statement or disclose its contents to an adverse party's attorney.

(Choice A) A witness's character for truthfulness *can* be attacked by specific instances of conduct regarding a bad act OR a conviction for a felony or crime of dishonesty.

(Choice B) Under the collateral-evidence rule, *extrinsic* evidence is inadmissible to impeach a witness on a collateral issue—ie, one that is *irrelevant* to the outcome of the case. But here, the prosecutor seeks to impeach the witness using *intrinsic* evidence about her failure to mention the alibi—an issue *relevant* to the outcome of the case.

(Choice C) A witness can be impeached by showing that the witness was motivated to lie while testifying due to bias or self-interest. But since there is no indication that the witness is partial to the defendant or has an interest in the outcome of the case, bias and self-interest are *not* grounds to allow the prosecutor's question.

Educational objective:

Prior inconsistent statements—eg, prior statements that omitted details later testified to at trial that would have been natural to include when the statement was made—are admissible for impeachment purposes.

References

Fed. R. Evid. 613 (witness's prior statement).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is charged with robbing a bank. The prosecutor has supplied the court with information from accurate sources establishing that the bank is a federally insured institution and that this fact is not subject to reasonable dispute. The prosecutor asks the court to take judicial notice of this fact. The defendant objects.

How should the court proceed?

A. The court must take judicial notice and instruct the jury that it is required to accept the judicially noticed fact as conclusive.

B. The court must take judicial notice and instruct the jury that it may, but is not required to, accept the judicially noticed fact as conclusive.

C. The court may refuse to take judicial notice, because judicial notice may not be taken of essential facts in a criminal case.

D. The court must refuse to take judicial notice, because whether a bank is federally insured would not be generally known within the court's jurisdiction.

Explanation:

Judicial notice of adjudicative facts

(FRE 201)

Case type	**Taking notice**	**Instructing jury**
Civil	Court: *may* take notice on its own *must* take notice if party requests & supplies necessary information	Jury *must* accept noticed fact as conclusive
Criminal		Jury *may* accept noticed fact as conclusive

FRE = Federal Rule of Evidence

Judicial notice is a court's recognition of a fact as true without formal proof. Under Federal Rule of Evidence 201, the court may take judicial notice of *any* **adjudicative fact** that is **not subject to reasonable dispute** because it:

is generally known within the court's jurisdiction—ie, common knowledge in the community where the court is sitting *or*

can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned **(Choice D)**.

Judicial notice is **mandatory if a party requests** it and supplies the court with the necessary information to indicate that the fact is not subject to reasonable dispute. But in a **criminal case**, the jury *cannot* be instructed to accept a noticed fact as conclusive since this would impermissibly limit the defendant's right to a jury trial. Instead, the **jury must be instructed** that it **may or may not accept** the noticed fact as conclusive.*

Here, the prosecutor requested judicial notice of the fact that the bank is a federally insured institution. The court must notice this fact since the prosecutor supplied the court with information from accurate sources establishing that the fact is not subject to reasonable dispute. And since this is a criminal case, the court must instruct the jury that it may—but is not required to—accept the judicially noticed fact as conclusive **(Choice A)**.

*Since a jury in a criminal case has the ability to pass upon judicially noticed facts, a court may not take judicial notice against a criminal defendant for the first time on appeal. However, a court may take judicial notice at any time, including on appeal, in all other proceedings.

(Choice C) A court *may* take judicial notice of essential facts (and other adjudicative facts) in a criminal case so long as those facts are not subject to reasonable dispute.

Educational objective:

A court must take judicial notice of a fact if a party requests it and supplies the court with the necessary information to show that the fact is not subject to reasonable dispute. And in a criminal case, the court must instruct the jury that it may or may not accept the noticed fact as conclusive.

References

Fed. R. Evid. 201 (judicial notice).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man's estate brought a wrongful death action against a trucking company that owned a semi-trailer involved in a deadly collision with the man's car. An eyewitness testifies at the jury trial that the driver of the semi-trailer was looking at his cell phone moments before the collision. On cross-examination, the trucking company offers a written statement that the witness submitted to a local newspaper in which the witness describes the accident but makes no mention of the driver looking at his cell phone.

The man's estate objects to the admission of the written statement on hearsay grounds. In the alternative, the estate requests that the court issue a limiting instruction directing the jury to consider the statement only for impeachment purposes and admit the witness's written follow-up statement to the newspaper that mentions the cell phone.

How should the court respond?

A. Overrule the hearsay objection, deny the request for a limiting instruction, and deny the admission of the witness's follow-up statement.

B. Overrule the hearsay objection, give the limiting instruction, and deny the admission of the witness's follow-up statement.

C. Overrule the hearsay objection, give the limiting instruction, and allow the admission of the witness's follow-up statement.

D. Sustain the hearsay objection.

Explanation:

Under the rule against hearsay, an **out-of-court statement** (first statement to newspaper) is generally inadmissible to prove the truth of the matter asserted therein (description of the accident). However, such statements may be **admissible** for **nonhearsay purposes**, such as **impeaching a witness**. One way a witness can be impeached is by presenting evidence of his/her prior inconsistent statement, as the estate did here. Therefore, the court should overrule the estate's hearsay objection **(Choice D)**.

However, when evidence is **admissible** for **one purpose but not another**—eg, for impeachment but not for its truth—the adverse party may request that the court **limit the evidence** to its proper scope and **instruct the jury** accordingly. If that request is timely,* the court *must* then give the limiting instruction **(Choice A)**.

Additionally, under the **rule of completeness**, an adverse party may introduce any **other part** of the admitted statement OR any **other written or recorded statement** that should, in fairness, be considered with the admitted statement. This rule seeks to remedy the misleading effects that an out-of-context or incomplete statement may have on a fact finder. Therefore, the witness's follow-up statement to the newspaper should be admitted because it completes the witness's earlier statement about the accident **(Choice B)**.

*Although there is no strict rule on the timing of a request for a limiting instruction, a request made immediately after the introduction of the contested evidence is always deemed timely.

Educational objective:

When evidence is admissible for one purpose but not another, that evidence can be limited to its proper scope and the jury can be instructed accordingly upon a timely request. Any other part of the admitted statement OR any other statement that should be considered alongside the admitted statement may also be introduced.

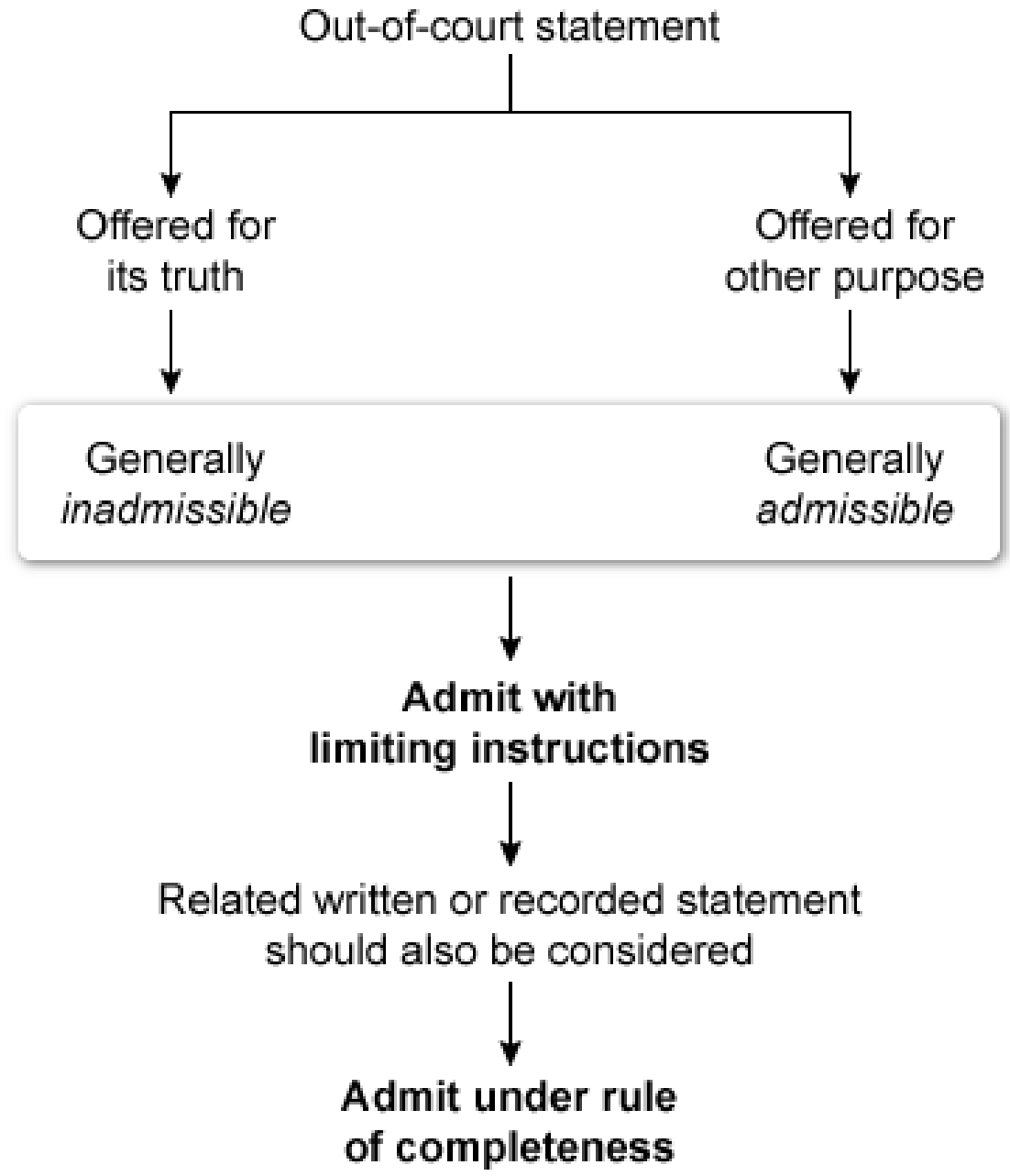
References

Fed. R. Evid. 105 (limiting instructions).

Fed. R. Evid. 106 (rule of completeness).

Copyright © UWorld. All rights reserved.

Use of limiting instruction and rule of completeness



©UWorld

A defendant was indicted on two counts of grand larceny, which occurred near a U.S. canal located between two foreign countries. At the bench trial in federal district court, the prosecution provided direct evidence of the locations of the thefts but provided no evidence that those locations were within the U.S. canal. The defendant was found guilty of grand larceny.

On appeal, the defendant has argued that the prosecution failed to establish that the trial court had jurisdiction because there was no evidence that the charged offenses were committed within the boundaries of the United States. The prosecution has requested that the appellate court take judicial notice of the boundaries of the canal zone. The appellate court has been furnished with official government maps of the boundaries between the U.S. canal and the foreign countries that identify the general area where the offenses occurred.

Is the prosecution's request for judicial notice proper?

A. No, because a court cannot take judicial notice of jurisdictional boundaries that are determinative of its subject-matter jurisdiction.

B. No, because taking judicial notice of jurisdictional boundaries for the first time on appeal violates the defendant's right to confrontation.

C. Yes, because a party is entitled to an opportunity to be heard on the propriety of taking judicial notice and tenor of the matter to be noticed.

D. Yes, because judicial notice may be taken at any stage of this proceeding.

Explanation:

A court may take judicial notice of any adjudicative fact that is **not subject to reasonable dispute** because it:

is generally known within the community where the court is sitting *or*

can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.

Judicial notice can be **taken at any stage** of a proceeding—**even on appeal**, so long as it is **not unfair to the opposing party** AND **does not disrupt the fact finder's authority**. For example, a court cannot take judicial notice of a fact against a criminal defendant for the first time on appeal from a criminal *jury* trial because a criminal jury need not accept a noticed fact as conclusive. But this issue does not arise in bench trials or civil jury trials, where a noticed fact generally must be accepted as conclusive.

Here, the prosecution requests that the appellate court judicially notice the canal-zone boundaries to establish the trial court's jurisdiction (adjudicative fact). The locations of the thefts were determined at trial, so whether those locations fall within U.S. territory can be accurately and readily determined from official maps (no reasonable dispute). And since this is an appeal from a *bench* trial, judicial notice would not interfere with the trial judge's fact-finding authority or be unfair to the defendant. Therefore, the request is proper **(Choice A)**.

(Choice B) Appellate courts cannot take judicial notice if doing so would unfairly limit a criminal defendant's right to confront witnesses. This is not an issue here since the locations of the thefts were determined at trial and are not in dispute on appeal.

(Choice C) The judge must give either party, upon request, an opportunity to be heard on the propriety (ie, appropriateness) of taking judicial notice and the tenor (ie, meaning) of the fact to be noticed. But there is no indication that the parties would not receive this opportunity.

Educational objective:

Judicial notice can be taken at any stage of a proceeding—including on appeal, so long as it is not unfair to the opposing party and does not disrupt the fact finder's authority.

References

Fed. R. Evid. 201 (judicial notice).

29 Am. Jur. 2d Evidence § 45 (2020) (discussing judicial notice taken on appeal).

Copyright © UWorld. All rights reserved.

Jury instruction on judicially noticed fact



©UWorld

At a defendant's trial for mail fraud, the defendant calls his wife to testify that she committed the fraud herself without the defendant's knowledge. On cross-examination, the prosecutor asks the wife, "Isn't it true that you have fled your home several times in fear of your husband?"

Is the prosecutor's question proper?

A. No, because it is leading a witness not shown to be hostile.

B. No, because its probative value is outweighed by the danger of unfair prejudice to the defendant.

C. Yes, because by calling his wife, the defendant has waived his privilege to prevent her from testifying against him.

D. Yes, because it explores the wife's possible motive for testifying falsely.

Explanation:

Methods of impeaching witness

Method	Description	Means
Character for truthfulness	Reputation or opinion testimony	Extrinsic evidence
	SIC involving bad act	Intrinsic evidence
	SIC involving criminal conviction of felony or crime of dishonesty	Intrinsic or extrinsic evidence
Self-interest / bias	Motive to lie or partiality to party	
Prior inconsistent statement	Witness's prior statement inconsistent with present testimony	
Specific contradiction	Evidence directly contradicting witness's testimony on material issue	
Sensory abilities	Evidence showing witness's senses were impaired by physical / mental condition or environmental factors	

SIC = Specific instance of conduct.

A party may **impeach a witness** by presenting evidence of the witness's **self-interest or bias** that may motivate the witness to **testify falsely**—eg, family or employment relationships, benefits received in exchange for testimony, fear, general dislike. Since bias bears on a witness's credibility, it can be raised on cross-examination or introduced extrinsically through other sources.* Therefore, the prosecutor's question is proper because it explores the wife's fear of the defendant as a possible motive for testifying falsely.

*The Federal Rules of Evidence do not require that a party lay a foundation by asking the witness about an alleged bias before introducing extrinsic evidence of that bias. However, many states' rules of evidence do (eg, Alaska, Texas).

(Choice A) Leading questions are permitted on cross-examination, regardless of whether the witness has been shown to be hostile. However, the witness must be hostile to ask leading questions on *direct* examination unless (1) the witness is a child or an adult with difficulty communicating or (2) the question is necessary to develop the witness's testimony (eg, name, occupation).

(Choice B) Relevant evidence can be excluded when its probative value is *substantially* outweighed by the danger of unfair prejudice. Here, the prosecutor's question poses *some* danger of unfair prejudice (depicting the defendant as a batterer) but not enough to substantially outweigh its probative value (assessing the wife's bias).

(Choice C) The spousal-immunity privilege allows a person to refuse to testify against his/her spouse in a criminal case about events that occurred before or during the marriage. The testifying spouse (here, the wife) has the *sole* right to assert or waive the privilege.

Educational objective:

A witness can be impeached with evidence of self-interest or bias that may show the witness's motivation to testify falsely.

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with drug trafficking after a large quantity of heroin was found in the trunk of his car during a traffic stop. The defendant filed a motion to suppress the heroin on the ground that the officer who stopped him had no legal basis to do so. The court granted a hearing on the defendant's motion, at which the defendant testified about his driving behavior prior to the traffic stop. On cross-examination, the prosecutor asked the defendant whether he was aware that the heroin was in the trunk of his car. The defendant's attorney objected to the prosecutor's question.

Is the prosecutor's question proper?

A. No, because a criminal defendant testifying about a specific issue at a preliminary hearing is not subject to cross-examination on other issues in the case.

B. No, because the prosecutor failed to obtain judicial authorization to inquire into additional matters on cross-examination.

C. Yes, because the defendant waived his privilege against self-incrimination as to other issues in the case by voluntarily testifying at the preliminary hearing.

D. Yes, because the question is within the proper scope of cross-examination.

Explanation:

Under Federal Rule of Evidence 104, preliminary questions relating to the **admissibility of evidence** must be decided by the court. This includes questions regarding the legality of a seizure (eg, a traffic stop) that led to the discovery of the contested evidence. To decide these questions, the court may **hold a hearing** and receive testimony from both the prosecution and the defense.

When a **criminal defendant testifies** at such a hearing, that defendant is **subject to cross-examination** about **specific issues** addressed at the hearing (here, the defendant's driving) and issues related to the **defendant's credibility**. This allows the court to fully assess the issues and properly rule on the admissibility of the evidence.

However, the criminal defendant is ***not* subject to cross-examination** on **other issues** in the case **(Choice C)**.* This allows the defendant to participate in the determination of preliminary matters—which often involve the defendant's constitutional rights—without being subjected to cross-examination generally. Therefore, the prosecutor's question asking whether the defendant was aware that there was heroin in his trunk is improper.

*In contrast, a defendant who testifies at trial can be cross-examined about matters not covered on direct examination if the court grants the prosecution authority to inquire into those matters. That is because a testifying defendant is subject to the same rules on cross-examination as other witnesses.

(Choices B & D) The scope of cross-examination is limited to the subject matter of direct examination and matters affecting the witness's credibility. Here, the prosecutor's question addresses neither. And though a party may generally request permission to inquire into additional matters on cross-examination, a court cannot allow such an inquiry against a criminal defendant testifying at a preliminary-question hearing. Therefore, the prosecutor's failure to obtain judicial authorization is irrelevant.

Educational objective:

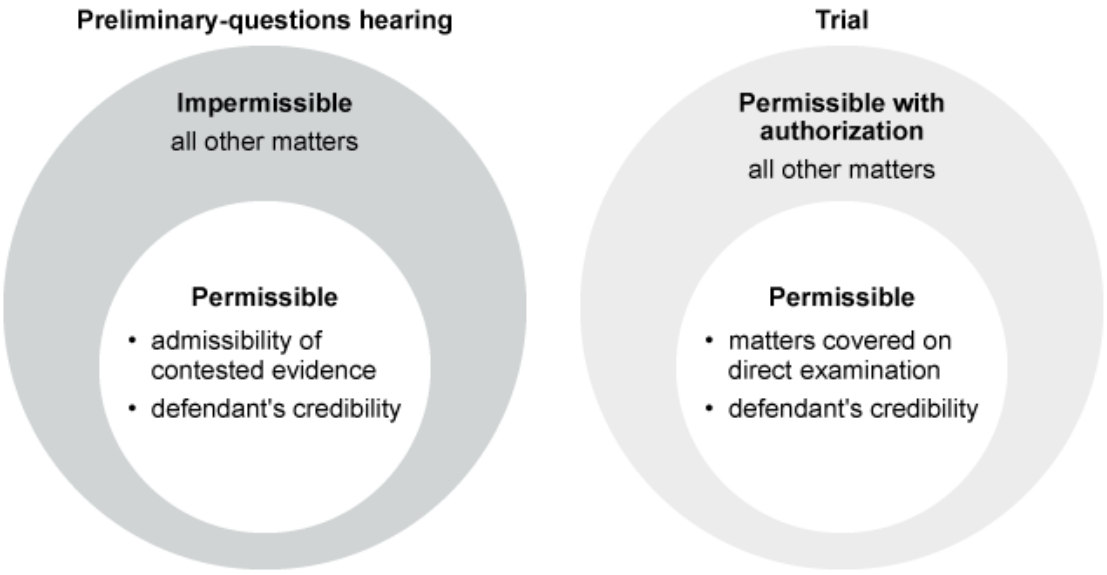
A criminal defendant who testifies at a preliminary-question hearing can be cross-examined about issues related to the admissibility of the contested evidence and the defendant's credibility—but not about other issues in the case.

References

Fed. R. Evid. 104 (preliminary questions).

Copyright © UWorld. All rights reserved.

Cross-examination of criminal defendant



A man was prosecuted in federal court for making threats against the President of the United States. The man was a voluntary patient in a private psychiatric hospital and told a nurse, shortly before the President came to town, that he planned to shoot the President. The nurse reported the threat to FBI agents. The man filed a motion to prevent the nurse from testifying.

Is the man's motion likely to be granted?

A. No, because the man had not been committed involuntarily by court order.

B. No, because the statement was not within any privilege.

C. Yes, because the nurse violated a confidence in reporting the statement.

D. Yes, because the statement was made in a medical setting.

Explanation:

Psychotherapist-patient privilege

Confidential communication between psychotherapist/social worker & patient protected if made during the course of diagnosis or treatment of mental/emotional condition *unless*:

patient's mental condition at issue

communication made during court-ordered mental exam *or*

communication introduced at involuntary-commitment proceeding

Patient holds privilege & psychotherapist must assert in patient's absence

A privilege protects confidential communications from disclosure, discovery, or admission in a legal proceeding. Under Federal Rule of Evidence 501, claims of privilege are generally governed by the common law.* For instance, the common law **psychotherapist-patient privilege** protects confidential communications **between** a **psychotherapist** (ie, a psychologist or psychiatrist) or social worker and a **patient** made during the course of **treatment or diagnosis**.

Here, the psychotherapist-patient privilege is implicated because the man is a patient in a psychiatric hospital. But his statement—ie, the threat against the President—does not fall within that privilege because it was not made to a psychotherapist or social worker OR during treatment or diagnosis. Therefore, though the nurse may have violated a confidence in reporting the statement, the man's motion is unlikely to be granted **(Choice C)**.

*Common law governs claims of privilege in federal court unless (1) the Constitution, a federal statute, or a rule provides otherwise or (2) the suit is based on diversity jurisdiction so state rules on privilege must be applied.

(Choice A) Involuntary commitment is not required to protect a confidential communication under the psychotherapist-patient privilege.

(Choice D) The statement *was* made in a medical setting. But this alone is not a basis to prevent the nurse from testifying about the man's threat against the President.

Educational objective:

The psychotherapist-patient privilege applies to confidential communications (1) between a psychotherapist/social worker and a patient (2) made during the course of treatment or diagnosis.

References

Fed. R. Evid. 501 (privilege in general).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued the manufacturer of a slicing machine for negligent design, after the machine cut off the plaintiff's finger. The plaintiff claims that while he was cleaning the machine, two wires came into contact with each other and caused the machine to turn on.

At trial, the manufacturer has offered evidence that it was unreasonably expensive to design the machine so that the wires could not come into contact. In rebuttal, the plaintiff offers evidence that after this action was filed, the manufacturer redesigned the machine to prevent the wires from coming into contact.

Is evidence of this change in design admissible?

A. No, because the change in design may have been unrelated to this type of accident.

B. No, under the rule regarding remedial measures that encourages manufacturers to make their products safer.

C. Yes, as evidence tending to show that the machine could be designed to keep the wires from coming into contact.

D. Yes, as evidence tending to show that the manufacturer was negligent because its initial design failed to prevent the wires from coming into contact.

Explanation:

Evidence of subsequent remedial measures

(FRE 407)

Inadmissible	Such measures *cannot* be used to:
	prove negligence or other culpable conduct
	prove defect in product or product design
	prove need for product warning or instruction
Admissible	Such measures *can* be used to:
	prove feasibility of precautionary measures
	impeach witness
	prove ownership or control

FRE = Federal Rule of Evidence.

A **subsequent remedial measure** is a precaution taken after an injury has occurred that—if taken earlier—might have prevented the injury. Because social policy encourages taking remedial measures to protect the public, evidence of such measures is **inadmissible to prove negligence** (eg, negligent design) or **other culpable conduct**. But a **court may allow** evidence of subsequent remedial measures for **other limited purposes** such as:

resolving a dispute about the feasibility of precautionary measures

impeaching a witness *or*

proving ownership or control.

Here, the manufacturer changed the slicer's design to prevent the wires from coming into contact after the plaintiff's injury. Although this evidence is inadmissible to prove the manufacturer's negligence, the manufacturer placed the feasibility of redesigning the slicer in dispute by claiming it was unreasonably expensive **(Choices B & D)**. Therefore, evidence of this change in design is admissible to prove the feasibility of designing the machine to keep the wires from coming into contact.

(Choice A) Whether the change in design is related or unrelated to this type of accident goes to the weight of this evidence—not its admissibility.

Educational objective:

Evidence of subsequent remedial measures is inadmissible to prove negligence or other culpable conduct. But such evidence is admissible for other purposes—eg, proving the feasibility of precautionary measures.

References

Fed. R. Evid. 407 (subsequent remedial measures).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman sued a department store for injuries she sustained when she slipped and fell in the store. At trial, the woman proposes to testify that, when the store manager rushed to the scene, he said to the woman, "I'm so sorry about the water on the floor there, but don't worry—the store will pay for the ambulance and your hospital bill." The store's attorney objects.

How should the court rule on the admissibility of the woman's testimony as to the store manager's statement?

A. The testimony about the water is an admissible statement of an opposing party, but the rest of the testimony is inadmissible as an offer to pay medical expenses.

B. The testimony is admissible in its entirety as the statement of an opposing party.

C. The testimony is inadmissible in its entirety, because it is hearsay not within any exception.

D. The testimony is inadmissible in its entirety, because the manager's statement is in the context of an offer to pay medical expenses.

Explanation:

Offers to pay medical expenses

(FRE 409)

Offers to pay medical, hospital, or similar expenses are inadmissible to prove liability for injury

Conduct or statements not part of the offer to pay medical expenses are admissible even if made contemporaneously with offer

FRE = Federal Rule of Evidence.

Under Federal Rule of Evidence (FRE) 409, evidence that a party paid or **offered to pay** medical, hospital, or similar **expenses resulting from an injury** is **inadmissible to prove liability** for that injury. This is true even though the offer would otherwise be admissible as a relevant nonhearsay statement made by, or attributable to, an opposing party—eg, a statement by a party's agent within the scope of his/her agency. Therefore, the store manager's offer to pay the woman's medical expenses is inadmissible **(Choice B)**.

However, FRE 409 does **not extend to** conduct or **statements** that were **not part of the offer** to pay—even if made contemporaneously with that offer. Therefore, the store manager's statement about the water is admissible as a nonhearsay statement attributable to an opposing party—ie, one made by the store's agent on a matter within the scope of his agency **(Choice D)**.

(Choice C) The store manager's statement is not hearsay since it is a statement attributable to an opposing party.

Educational objective:

Evidence that a party paid or offered to pay medical, hospital, or similar expenses is inadmissible to prove liability for an injury. But this rule does not extend to statements or conduct that were not part of the offer to pay, even if made contemporaneously with that offer.

References

Fed. R. Evid. 409 (offers to pay medical expenses).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged with making a false statement to a federally insured financial institution to secure a loan. At trial, the prosecutor calls the defendant's wife as a willing witness to testify that the defendant told her in confidence that he had misrepresented his assets on the loan application.

The defendant objects to his wife's testimony. Should the testimony be admitted?

A. No, because even though the wife is a willing witness, the defendant has the right to exclude confidential marital communications in federal court.

B. No, but only if the law of the state where the defendant and his wife reside recognizes a privilege for confidential marital communications.

C. Yes, because in federal court the right not to testify belongs to the testifying spouse, and she is a willing witness.

D. Yes, because while the adverse testimonial privilege is recognized in federal court, the marital communications privilege is not.

Explanation:

Spousal privileges

	Purpose	Privilege holder	Duration
Spousal-immunity	Shields witness-spouse from testifying against spouse in criminal case about matters that occurred before or during marriage	Witness-spouse	Only during active marriage
Marital-communications	Protects against disclosure of confidential spousal communications made during marriage in criminal & civil cases	Both spouses	Continues after divorce

In federal court, claims of privilege are generally governed by the common law. Two common law privileges apply to **spousal testimony**:

Spousal-immunity (ie, adverse-testimony) privilege – allows a person to refuse to testify against his/her spouse in a criminal case about any matter that occurred before or during marriage

Marital-communications privilege – protects confidential communications between spouses during the marriage from disclosure, discovery, or admission in criminal and civil cases **(Choice D)**

The **spousal-immunity privilege** belongs only to the **witness-spouse**, who can **choose to waive** the privilege **and testify** against the defendant-spouse (as seen here). But the **marital-communications privilege** belongs to ***both* spouses**, so one spouse can **prevent the other from disclosing** a confidential communication. Therefore, the wife's testimony about confidential marital communications should be excluded on this basis **(Choice C)**.

(Choice B) Federal common law privileges apply in federal cases except (1) when the Constitution, a federal statute, or a Supreme Court rule provides otherwise or (2) in diversity cases, where the rules of the state where the court (not the parties) sits will apply. Neither exception applies to this federal criminal case.

Educational objective:

Under the spousal-immunity (ie, adverse-testimony) privilege, a witness-spouse can refuse to testify against his/her spouse in a criminal case about any matter. Under the marital-communications privilege, both spouses can protect confidential communications during marriage from disclosure, discovery, or admission in all cases.

References

Fed. R. Evid. 501 (privilege in general).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant has been charged with making false statements to a financial institution in order to obtain a loan. The government alleges that the defendant misrepresented the value of foreign treasury bonds he wished to use as collateral for the loan. To support that contention at trial, the prosecutor called a foreign banker to testify to the content of a document created by an overseas bond-rating company that is not subject to judicial process. The document, which was not produced at trial, contained the actual values of the defendant's bonds. The actual values of the bonds were much lower than what the defendant stated on his loan application.

The defendant has objected on the ground that the banker's testimony violates the best evidence rule.

Which of the following, if established, would best support admission of the banker's testimony?

A. The banker is an expert in the valuation of treasury bonds.
B. The defendant was given notice that the prosecution would seek to introduce the content of the document at trial.
C. The document was easily obtainable by the defendant prior to trial.
D. The document was not obtainable via subpoena or other judicial process.

Explanation:

Original document unobtainable by judicial process

(FRE 1004(b))

Examples of when original cannot be obtained by judicial process include:

foreign third party not subject to court's subpoena power in possession of original
proponent unable to locate & serve person in possession of original
person in possession of original served but fails/refuses to produce original
third party asserts claim of privilege as to original
FRE = Federal Rule of Evidence.

The **best evidence rule** (ie, original document rule) applies when a **witness relies** on a **document's content while testifying** (as seen here) or when the content of a document is at issue. Under this rule, an **original or reliable duplicate** of a **recording, writing, or photograph** (referred to as "document") must be produced to **prove its content**.

However, one **exception** to this rule allows a party to introduce **other evidence** of a document's content (eg, testimony) when the **original** (1) is in the possession of a **person or entity** that is **not a party** to the litigation and (2) **cannot be obtained** by any available **judicial process**. For example, a party might rely on this exception when the original document is in the possession of a foreign third party who is not subject to the court's subpoena power—as seen with the bond-rating company.*

*A third party located abroad who is neither a national nor a resident of the United States is beyond the subpoena power of a federal district court.

(Choice A) The banker's expertise in the valuation of treasury bonds might provide a basis for the banker to testify to his/her opinion on the value of the defendant's bonds. But it would not provide a basis to admit the banker's testimony about the content of the document created by the bond-rating company.

(Choices B & C) The *proponent* (here, the prosecution) of a document is required to produce the original or establish an exception to the best evidence rule. Therefore, neither notice that the prosecution would seek to introduce the content of the document nor the fact that the document was easily obtainable by the defendant would support admission of the banker's testimony.

Educational objective:

An exception to the best evidence rule allows a party to introduce other evidence of a document's content when the original (1) is in the possession of a person or entity that is not a party to the litigation and (2) cannot be obtained by any available judicial process.

References

Fed. R. Evid. 1002–07 (best evidence rule).

Copyright © UWorld. All rights reserved.

In a federal investigation of a defendant for tax fraud, the grand jury seeks to obtain a letter written January 15 by the defendant to her attorney in which she stated: "Please prepare a deed giving my ranch to the university specified herein. But, in order to get around the tax law, I want it back-dated to December 15."

The attorney refuses to produce the letter on the ground of privilege.

Can the attorney be required to produce the letter?

A. No, because the statement is protected by the attorney-client privilege.
B. No, because the statement is protected by the client's privilege against self-incrimination.
C. Yes, because the attorney-client privilege belongs to the client and can be claimed only by her.
D. Yes, because the statement was in furtherance of crime or fraud.

Explanation:

Common exceptions to attorney-client privilege

Exception	Use of attorney-client communication	Disclosure compelled by
Crime-fraud	Made to further ongoing or future crime/fraud	Party seeking to discover information about crime/fraud
Deceased client	Resolves dispute over deceased client's testamentary intent	Attorney
Self-defense	Used to defend against client's malpractice or ethical claim against attorney	Attorney
Fiduciary	Constitutes legal advice between corporate fiduciaries & corporation's attorney	Stockholders
Joint representation	Made during attorney's prior representation of joint clients	Any joint client in subsequent litigation between joint clients

Common law privileges apply in all stages of a federal legal proceeding, including grand jury proceedings. Consequently, when a grand jury subpoenas a person to testify or produce documents, that person may assert a privilege to protect confidential communications from disclosure, discovery, or admission. This includes the **attorney-client privilege**, which protects **communications** that are:

made for the **purpose** of **obtaining** or providing **legal assistance** for the client *and*

intended to be and **kept confidential**.

But certain **exceptions** require otherwise privileged attorney-client communications to be disclosed. For example, a communication **made in furtherance of** an ongoing or **future crime or fraud** is **not privileged**. Therefore, the defendant's request that her attorney *fraudulently* back-date a deed "in order to get around the tax law" is not protected by the attorney-client privilege, and the attorney can be required to produce the letter **(Choice A)**.

(Choice B) The Fifth Amendment protects the right against self-incrimination by allowing a person to refuse to produce information that incriminates him/her. But here, the *attorney* has no such ground for refusing to produce the *client's* letter.

(Choice C) The attorney-client privilege belongs to the client, who may prevent the attorney from disclosing protected information. However, the defendant's letter here is not protected by the attorney-client privilege because it was written to further a crime (tax fraud).

Educational objective:

Attorney-client communications are not privileged if made to further an ongoing or future crime or fraud and can be disclosed by the attorney without the client's (ie, privilege-holder's) consent.

References

Fed. R. Evid. 1101 (applicability of the rules of evidence).

Fed. R. Evid. 501 (common law privilege).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman is suing a pilot for injuries suffered in the crash of a small airplane, alleging that the pilot had owned the plane and negligently failed to have it properly maintained. The pilot has asserted in defense that he never owned the plane or had any responsibility to maintain it. At trial, the woman calls a witness to testify that he had sold to the pilot a liability insurance policy on the plane.

Is the witness's testimony admissible?

A. No, because of the rule against proof of insurance where insurance is not itself at issue.

B. No, because the policy itself is required under the original document rule.

C. Yes, as some evidence of the pilot's ownership of or responsibility for the airplane.

D. Yes, to show that the pilot had little motivation to invest money in maintenance of the airplane.

Explanation:

Liability insurance

(FRE 411)

Evidence that person was or was not insured against liability is *inadmissible* to prove person acted negligently or wrongfully

Evidence of liability insurance is *admissible* for nonsubstantive purpose—eg:

to impeach witness with evidence of self-interest, bias, or prejudice

to prove agency, ownership, or control

FRE = Federal Rule of Evidence.

Under Federal Rule of Evidence 411, evidence of **liability insurance** or the lack thereof is **inadmissible** to prove **negligence** or wrongdoing. For example, such evidence is inadmissible to support a negligence claim by arguing that the defendant had little motivation to maintain an insured vehicle **(Choice D)**. But such evidence is **admissible** for other purposes, such as proving **ownership or control** of the insured item **(Choice A)**.

Therefore, the witness's testimony that he sold the pilot a liability insurance policy on the airplane is admissible as evidence of the pilot's ownership of or responsibility for that airplane.

(Choice B) The best evidence rule generally requires that an original writing, recording, or photograph be produced to prove its *contents*. But the rule does not apply here because the woman only seeks to show that the pilot had an insurance policy on the plane—not to prove the contents of that policy.

Educational objective:

Evidence of liability insurance or the lack thereof is inadmissible to prove negligence or wrongdoing. But a court may admit such evidence for another purpose, such as to prove ownership or control of the insured item.

References

Fed. R. Evid. 411 (liability insurance).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued his neighbor in state court for negligently disposing of engine oil and polluting the groundwater in their neighborhood. During discovery, the plaintiff's attorney inadvertently disclosed a letter sent by the plaintiff to the attorney containing the plaintiff's mental impressions on the case. The attorney took no immediate steps to rectify the error but eventually recovered the letter. Under the law of the state where the disclosure occurred, the attorney's actions did not waive the attorney-client privilege.

The plaintiff later sued a farm located in an adjoining state in federal court for allegedly spraying its crops with a banned pesticide that contaminated the groundwater in the plaintiff's neighborhood. Upon learning of the lawsuit, the neighbor shared a copy of the plaintiff's letter with the farm. The farm now seeks to introduce the plaintiff's letter into evidence at trial. The plaintiff objects to the introduction of the letter, claiming it is privileged.

Should the letter be admitted?

A. No, because a document containing a person's mental impressions is nearly always privileged.

B. No, because the disclosure did not constitute a waiver under state law.

C. Yes, because the disclosure waived the privilege under the federal rules.

D. Yes, provided there is evidence that the farm has a substantial need for the letter.

Explanation:

The **attorney-client privilege** protects communications between an attorney and a client that were (1) made for the purpose of obtaining or providing legal assistance for the client and (2) intended to be and kept confidential. If such a communication was disclosed in a **state court proceeding** and is now being offered in a **federal proceeding** (as seen here), the federal court will review the federal rules *and* the law of the state where the disclosure occurred. Whichever **law offers more protection** will **determine** the **effect of the disclosure**.*

Under the federal rules, a disclosure of a privileged communication will operate as a waiver *unless*:

the disclosure was inadvertent

the privilege holder had taken reasonable steps to prevent disclosure *and*

the privilege holder promptly took reasonable steps to rectify the error (not seen here).

However, the attorney's disclosure here did *not* waive the attorney-client privilege under the law of the state where the disclosure occurred. Since the state law offers more protection, it will determine the effect of the disclosure in this later federal proceeding **(Choice C)**. Therefore, the letter should not be admitted into evidence.

**This procedural rule applies to all federal cases, even those based on diversity jurisdiction*. But it does not apply if the state court issued an order concerning the effect of the disclosure. In that case, the state court order would control.

(Choice A) Under the attorney work-product doctrine, opinion work product—ie, material containing an *attorney's* mental impressions—is privileged and discoverable only in rare instances or compelling circumstances. But this protection does not apply to a letter containing a *client's* mental impressions.

(Choice D) In civil suits, the production of ordinary work product may be compelled by showing a substantial need and that the materials cannot be obtained without undue hardship. Ordinary work product refers to *facts* gathered by or for an attorney in anticipation of litigation (eg, witness statements)—not a client's mere *opinions*.

Educational objective:

If a privileged communication was disclosed in state court and is now being offered in federal court, the federal court will review the federal rules *and* the law of the state where the disclosure occurred. Whichever law offers more protection determines the effect of the disclosure.

References

Fed. R. Evid. 502(c) (limitations on waiver of attorney-client privilege).

Copyright © UWorld. All rights reserved.

Determining the effect of a disclosure at a prior state-court proceeding



©UWorld

A corporation sued a defendant for 10 fuel oil deliveries not paid for. The defendant denied that the deliveries were made.

At trial, the corporation calls its office manager to testify that the corporation's employees always record each delivery in duplicate, give one copy to the customer, and place the other copy in the corporate files; that he is the custodian of those files; and that his examination of the files before coming to court revealed that the 10 deliveries were made.

Is the office manager's testimony that the invoices show 10 deliveries admissible?

A. No, because the records are self-serving.

B. No, because the records must be produced in order to prove their contents.

C. Yes, because it is based on regularly kept business records.

D. Yes, because the office manager has firsthand knowledge of the contents of the records.

Explanation:

Under the **best evidence rule**, an original or reliable duplicate of a **recording, writing, or photograph** (collectively referred to as "document") must generally be produced to **prove its contents**. As a result, this rule only applies when a document's contents are at issue—ie, when:

the document is used to prove that an event occurred (eg, police incident report)

the document has a legal effect (eg, contract, will, power of attorney) *or*

the witness is testifying based on facts learned from the document, as opposed to personal knowledge (ie, knowledge based on firsthand observations or experience)

Here, the office manager learned of the 10 deliveries by examining the invoices that had been placed in the corporate files before coming to court—not through personal knowledge. As a result, the contents of those records cannot be proved through the office manager's testimony. Instead, an original or reliable duplicate of those records must be produced to prove their contents.

(Choice A) A document is self-serving if it primarily contains information that is helpful to its proponent. But this, without more, does not affect the admissibility of the document or related testimony.

(Choice C) The *invoices* are admissible under the business records exception to the hearsay rule because a corporate employee recorded each delivery as a regular practice of the corporation. But the office manager's *testimony* to the contents of the invoices is inadmissible unless the invoice records are produced.

(Choice D) The office manager would have had firsthand knowledge of the contents of the records had he, for example, personally observed the disputed deliveries. Merely examining the files before coming to court is not sufficient for him to testify to their contents.

Educational objective:

The best evidence rule only applies when the contents of a recording, writing, or photograph are at issue—eg, when a witness testifies based on facts learned from a document, as opposed to personal knowledge.

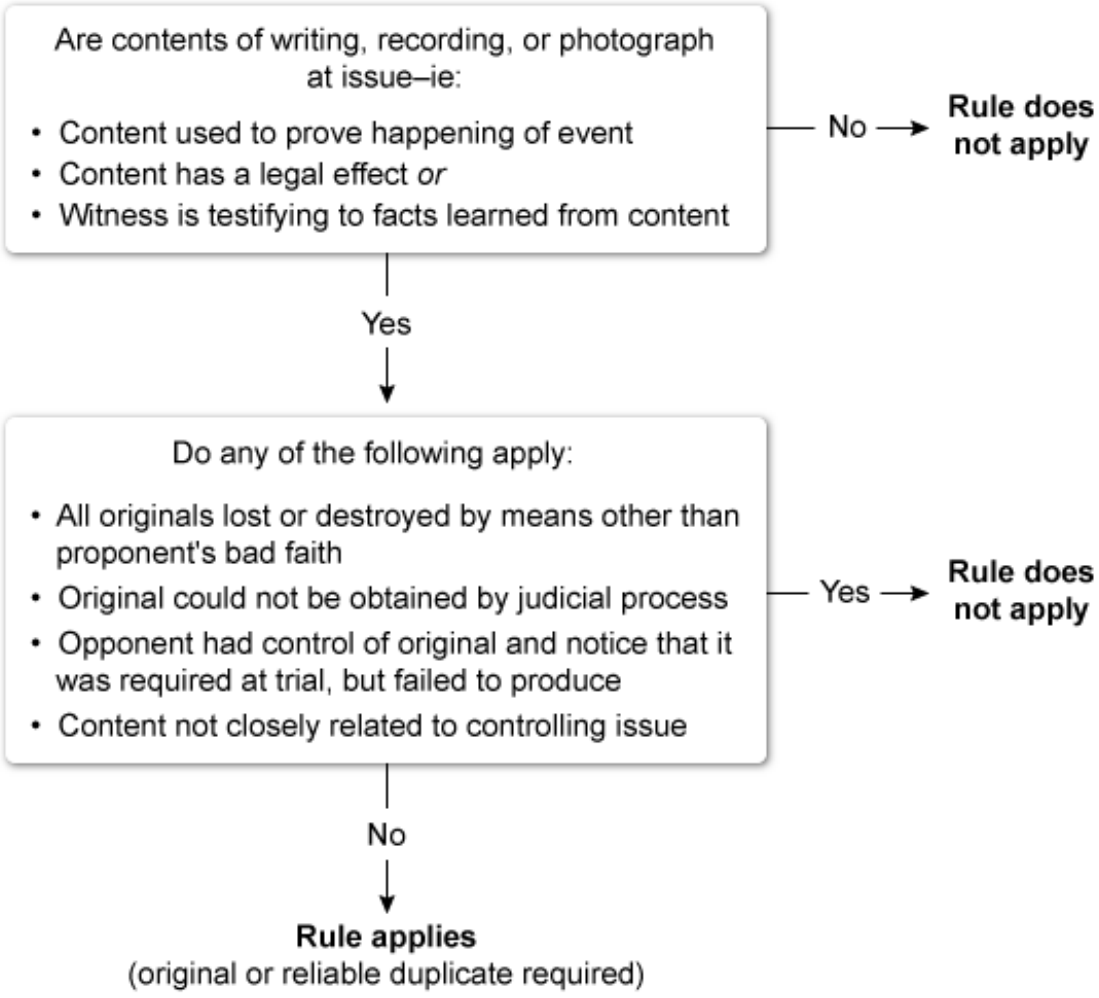
References

Fed. R. Evid. 1002–04 (best evidence rule).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Best evidence rule
(FRE 1001–04)



FRE = Federal Rules of Evidence

©UWorld

A plaintiff sued an equipment supplier for breach of contract. The plaintiff alleged that the supplier failed to deliver equipment according to the terms of a contract between the parties. The supplier responded by general denial. At the time the suit was filed, the original contract was located at the supplier's corporate office. No copies of the contract exist. At trial, prior to calling the plaintiff to testify, the plaintiff's attorney asked the supplier's attorney for the contract so that the terms could be recited to the jury. The supplier's attorney responded that the contract remained at the supplier's office and that the supplier was not obligated to produce it. The plaintiff's attorney then sought to have the plaintiff testify to the contract's terms.

The supplier has objected to the plaintiff's testimony on the ground that it violates the best evidence rule.

Should the testimony be admitted?

A. No, because the plaintiff bears the burden of proof in the contract dispute and therefore must produce his own documentary evidence of the contract.

B. No, because the plaintiff did not specifically request that the supplier produce the contract at trial.

C. Yes, because the best evidence rule does not apply.

D. Yes, because the plaintiff alleged that the contract's terms were breached.

Explanation:

Party-opponent in possession of original document

(FRE 1004(c))

Court may admit other evidence of content when party against whom original would be offered:

had control of original
was put on notice that original would be subject of proof at trial *and*
failed to produce original
FRE = Federal Rule of Evidence.

The **best evidence rule** (ie, original document rule) applies when a witness relies on a document's contents while testifying or when the contents of a document are at issue, such as when the document has a legal effect (eg, contracts) **(Choice C)**. This rule generally requires that an **original or reliable duplicate** of a **recording, writing, or photograph** (referred to as "document") be produced to **prove its contents**. However, there are some exceptions.

One exception allows a party to introduce **other evidence** of the document's content (eg, testimony) when the **party against whom** the **original** would be **offered**:

had **control of** the **original**
was put **on notice** (by **pleadings** or otherwise) that the original would be a subject of proof at trial *and*
failed to produce the original at trial.

Here, the equipment supplier had control of the original contract between the parties and failed to produce it at trial. And though the plaintiff did not specifically request that the supplier produce the contract, the supplier was put on notice by the plaintiff's pleadings—which alleged breach of contract—that the contract would be a subject of proof at trial **(Choice B)**. Therefore, the plaintiff may use other evidence to prove the contract's terms, and his testimony should be admitted for that purpose.

(Choice A) The plaintiff *does* bear the burden of proof in the contract dispute. But since the defendant was put on notice that the contract would be a subject of proof at trial and failed to produce it, the plaintiff's testimony as to the contract's terms is admissible.

Educational objective:

One exception to the best evidence rule allows a party to introduce other evidence of a document's content when the party against whom the original would be offered (1) had

control of the original, (2) was put on notice that the original would be a subject of proof at trial, and (3) failed to produce the original at trial.

References

Fed. R. Evid. 1002–07 (best evidence rule).

Copyright © UWorld. All rights reserved.

A plaintiff brought a diversity action in State A federal court against a defendant, a spinal surgeon, alleging medical malpractice. The plaintiff claims that the defendant ignored established medical guidelines while performing a procedure on the plaintiff, causing her ongoing and debilitating back pain. The defendant contends that the plaintiff's back pain is attributable to her failure to follow recovery instructions. The defendant has filed a motion to compel production of medical records from the plaintiff's family physician that contain a statement by the plaintiff that her back pain began after she picked up her child against the defendant's recovery instructions. The plaintiff has objected, citing the physician-patient privilege recognized under State A law.

Should the court uphold the plaintiff's privilege claim?

A. No, because the physician-patient privilege is not applicable in federal proceedings.

B. No, because the plaintiff's physical condition is at issue.

C. Yes, because State A recognizes the physician-patient privilege.

D. Yes, provided the statement was made for the purpose of obtaining medical treatment.

Explanation:

Physician-patient privilege

Applicability	Not recognized by federal common law, which applies in federal-question suits Typically recognized by state law, which applies in federal diversity suits
Scope	Protects confidential communications between patient & physician made for purpose of obtaining medical treatment *unless*: patient's physical condition is at issue communication was part of crime or tort dispute between physician & patient patient contractually waived privilege
Privilege holder	Patient holds privilege until his/her death, then privilege terminates

The **physician-patient privilege** protects confidential communications between a patient and a physician made for the purpose of obtaining medical treatment. Federal common law, which generally governs privilege claims in federal court, does not recognize this privilege. But **state rules on privilege** must be applied when a federal suit is based on diversity jurisdiction (as seen here). Since State A recognizes the physician-patient privilege, it *could* apply in this federal diversity action **(Choice A)**.

However, even when recognized by state law, the physician-patient privilege is **inapplicable** in the following circumstances:

the patient's **physical condition** is **at issue**

the communication was part of the **commission of a crime or tort**

a **dispute** exists between the **physician and patient** *or*

the patient contractually **waived** the privilege.

Here, the plaintiff's physical condition is at issue because she alleges that her back pain was caused by the defendant's failure to follow established medical guidelines. The statements in the family physician's medical records are relevant to this issue because they suggest that the pain instead resulted from the plaintiff's failure to follow recovery instructions. Therefore, the plaintiff's privilege claim should *not* be upheld **(Choices C & D)**.

Educational objective:

The physician-patient privilege, if recognized by state law, applies in federal diversity suits *unless* (1) the patient's physical condition is at issue, (2) the patient-physician

communication was part of a crime or tort, (3) there is a dispute between the patient and physician, or (4) the patient contractually waived the privilege.

References

Fed. R. Evid. 501 (privileges).

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for breach of contract. At a jury trial, the plaintiff testified that the original contract was destroyed in a fire at his office that was caused by faulty electrical wiring. The plaintiff further testified that no copies of the contract exist. Over the defendant's objection, the judge allowed the plaintiff to testify as to the terms of the contract. The defendant then testified that no contract between the parties was ever executed and, on that basis, moved to strike the plaintiff's testimony regarding the contract from the record.

How should the court proceed?

A. The court must deny the motion, because a party may properly prove the terms of the contract by testimony.

B. The court must deny the motion, because whether there was a contract between the parties is a question for the jury.

C. The court may grant the motion, provided it is convinced that a contract between the parties never existed.

D. The court must grant the motion, because the original contract was never produced.

Explanation:

Overview of best evidence rule

General rule

Must produce original or reliable duplicate* to prove contents of document relied on by witness or whose contents are at issue

Exceptions

Original unavailable	Other evidence can be used to prove content if: originals lost or destroyed (not by proponent's bad faith) originals not attainable by judicial process opponent had original, knew it was required & failed to produce *or* content not closely related to controlling issue
Admission by party	Contents can be proven by opposing party's testimony, deposition, or written statement
Public record	Contents of public record can be proven by: certified copy copy of records & comparison testimony *or* other evidence if above proof is not reasonably obtainable

*Duplicates are admissible unless original's authenticity is questioned or it would be unfair to admit them.

The **best evidence rule** requires that an original or reliable duplicate of a recording, writing, or photograph (referred to as the "document") be produced to **prove its contents**. However, a party may use other, **secondary evidence** (eg, testimony) to prove a document's contents if certain **factual conditions are established** (eg, all originals are lost or destroyed).

Whether a party has fulfilled the factual conditions for admitting secondary evidence is ordinarily a **determination for the court**. But in a jury trial, the **jury determines** any issue about **whether**:

an asserted **document ever existed**
another document produced at a hearing or trial is the **original** *or*
other evidence of content **accurately reflects** the document's content.

Here, the plaintiff testified that the original contract was destroyed and no duplicate exists, so the court allowed the plaintiff to testify to the contract's terms in lieu of producing the

original contract **(Choice D)**. The defendant then testified that no contract was ever executed, thereby raising an issue that the jury must decide. The court should therefore deny the defendant's motion to strike the plaintiff's testimony so that the jury can consider the evidence on this issue **(Choice A)**.

(Choice C) Even if the court was convinced that no contract existed, it could only decide this issue if a directed verdict was warranted—ie, if there was *no* legally sufficient evidence for a reasonable jury to reach a different conclusion. Since a reasonable jury *could* find that a contract existed, the court must allow the jury to resolve this issue.

Educational objective:

The court ordinarily determines whether factual conditions allow the admission of secondary evidence to prove a document's contents. But in a jury trial, the jury determines any issues of whether (1) the document ever existed, (2) another document is the original, or (3) other evidence of content accurately reflects the document's content.

References

Fed. R. Evid. 1008 (functions of court and jury).

Copyright © UWorld. All rights reserved.

A woman sued a homeowner, alleging that, while the woman was on her morning walk, a limb fell from a tree on the homeowner's property and hit her. The woman further alleged that the tree had started to rot, causing the limb to fall, and that the homeowner was negligent in failing to maintain the tree. The homeowner denied responsibility, claiming that the tree sits on city property. Over a year later, the case went to trial. The woman failed to produce a plat map that would have accurately indicated the boundaries of the homeowner's property. Instead, while testifying, the woman offered a video that had been taken the week prior and showed the homeowner cutting down the tree, which had entirely rotted by that time.

Should the court admit the video?

A. No, because it constitutes evidence of a subsequent remedial measure.

B. No, because it is not the best evidence of the tree's location.

C. Yes, because it helps establish ownership of the tree.

D. Yes, provided that the woman can show that she was the maker of the video.

Explanation:

Evidence of subsequent remedial measures

(FRE 407)

Inadmissible	Such measures *cannot* be used to:
	prove negligence or other culpable conduct
	prove defect in product or product design
	prove need for product warning or instruction
Admissible	Such measures *can* be used to:
	prove feasibility of precautionary measures
	impeach witness
	prove ownership or control

FRE = Federal Rule of Evidence.

A **subsequent remedial measure** is a precaution taken after an injury has occurred that—if taken earlier—might have prevented the injury. Because social policy encourages remedial measures to protect the public, evidence of such measures is **inadmissible to prove negligence** or **other culpable conduct**. But a **court may allow** evidence of subsequent remedial measures for **other limited purposes** such as:

resolving a dispute about the feasibility of precautionary measures

impeaching a witness *or*

proving ownership or control.

Here, the woman offered video evidence of the homeowner's subsequent remedial measure of cutting down the tree, which had entirely rotted by the time of trial. That evidence is *not* admissible to prove the homeowner's negligence in failing to maintain the tree. However, it *is* admissible to prove ownership of the tree **(Choice A)**. And the video is relevant to ownership since it is unlikely that the homeowner would have cut down the tree if the homeowner truly believed that it sat on city property.

(Choice B) The best evidence rule applies when a witness relies on a recording, writing, or photograph's contents while testifying or when the contents of the item are at issue (not seen here). Additionally, this rule does not require that a party introduce the most definitive evidence of a fact that the party seeks to prove.

(Choice D) A video is authenticated by having a witness with personal knowledge of the thing depicted (here, the tree) testify that the video fairly and accurately depicts that thing. Therefore, the video need not be authenticated by the person who made it.

Educational objective:

Evidence of subsequent remedial measures is inadmissible to prove negligence or other culpable conduct. But such evidence is admissible to (1) resolve a dispute about the feasibility of precautionary measures, (2) impeach a witness, or (3) prove ownership or control.

References

Fed. R. Evid. 407 (subsequent remedial measures).

Copyright © UWorld. All rights reserved.

A defendant is being prosecuted for conspiracy to possess cocaine with intent to distribute. At trial, the government seeks to have its agent testify to a conversation that he overheard between the defendant and a coconspirator regarding the incoming shipment of a large quantity of cocaine. That conversation was also audiotaped, though critical portions of it are inaudible.

The defendant objects to the testimony of the agent on the ground that it is not the best evidence of the conversation.

Is the testimony admissible?

A. No, because the testimony of the agent is not the best evidence of the conversation.

B. No, because the testimony of the agent reports hearsay not within any exception.

C. Yes, because the audiotape is partly inaudible.

D. Yes, because the best evidence rule does not require proof of the conversation through the audiotape.

Explanation:

Best evidence rule

(FRE 1002–04)

Original (or reliable duplicate) of writing, recording, or photograph must be produced to prove its content *unless*:

all originals lost or destroyed by means other than proponent acting in bad faith
original cannot be obtained by judicial process
nonproponent had control of original & notice that original was required at trial or hearing, but failed to produce it
writing, recording, or photograph not closely related to controlling issue
FRE = Federal Rules of Evidence.

The **best evidence rule** generally requires that an original or reliable duplicate of a recording, writing, or photograph (collectively referred to as "document") be produced to prove its contents. As a result, this rule **only applies** when a document's **contents are at issue**—ie, when:

the document is used to prove happening of an event (eg, video of bank robbery)
the document has a legal effect (eg, audiotape of oral contract) *or*
the witness is **testifying** based on **facts learned from the document** (eg, x-ray image)
Here, the agent seeks to testify based on his personal knowledge (ie, what the agent overheard)—not on facts learned from the audiotape. Therefore, the best evidence rule does not apply, and the agent's testimony is admissible regardless of whether the audiotape is produced **(Choice A)**.

(Choice B) Statements made by or attributable to a party-opponent—eg, those made by a defendant's coconspirator—are nonhearsay and admissible if offered against that party. Therefore, the testimony reporting what the defendant and coconspirator said is nonhearsay.

(Choice C) The agent may testify to what he *personally* heard regardless of whether an audiotape exists or is audible.

Educational objective:

The best evidence rule only applies when a document's contents are at issue—ie, when (1) the document is used to prove the happening of an event, (2) the document has a legal effect, or (3) the witness is testifying based on facts learned from the document.

References

Fed R. Evid. 1002-04 (best evidence rule).

Fed. R. Evid. 602 (witness's personal knowledge).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant in federal court for allegedly violating the plaintiff's civil rights. The plaintiff claims that the defendant's actions caused him ongoing mental and emotional distress. The defendant has filed a motion to compel production of the plaintiff's psychiatric therapy session notes. The plaintiff has objected, citing the psychotherapist-patient privilege.

Should the court uphold the plaintiff's privilege claim?

A. No, because federal common law does not recognize the psychotherapist-patient privilege.

B. No, because the plaintiff's mental condition is at issue.

C. Yes, because the plaintiff's claim is based on federal law.

D. Yes, because the records contain communications made during psychiatric treatment.

Explanation:

Psychotherapist-patient privilege

General rule	Protects confidential communications between patient & psychotherapist or social worker made during course of treatment or diagnosis
Exceptions	Protection does not apply when: communication was result of court-ordered exam case is commitment proceeding against patient *or* patient's mental condition at issue

Under Federal Rule of Evidence 501, claims of privilege in federal cases are generally governed by federal common law.* Federal common law **recognizes** the **psychotherapist-patient privilege (Choice A)**. This privilege protects confidential communications between a patient and a psychotherapist (ie, psychologist, psychiatrist) or social worker made during the course of treatment or diagnosis. However, it **does *not* apply** when:

the communication was the result of a **court-ordered exam**
the case is a **commitment proceeding** against the patient *or*
the patient's **mental condition is at issue**.

Here, the plaintiff claims that the defendant's actions caused him ongoing mental and emotional distress—thereby placing his mental condition at issue. As a result, the psychotherapist-patient privilege does *not* apply in this federal suit, and the court should deny the plaintiff's claim of privilege as to the psychiatric therapy session notes **(Choices C & D)**.

*Federal common law governs claims of privilege in federal court unless (1) the Constitution, a federal statute, or a rule provides otherwise or (2) the suit is based on diversity jurisdiction so state rules on privilege must be applied.

Educational objective:

Federal common law recognizes the psychotherapist-patient privilege. But the privilege does not apply when (1) the communication resulted from a court-ordered exam, (2) the case is a commitment proceeding against the patient, or (3) the patient's mental condition is at issue.

References

Fed. R. Evid. 501 (privileges).

Copyright © UWorld. All rights reserved.

A pedestrian sued a driver for personal injuries sustained when the driver's car hit the pedestrian. Immediately after the accident, the driver got out of his car, raced over to the pedestrian, and said, "Don't worry, I'll pay your hospital bill."

Is the pedestrian's testimony concerning the driver's statement admissible to prove the driver's liability?

A. No, because it is an offer to pay medical expenses.

B. No, provided that the driver kept his promise to pay the pedestrian's medical expenses.

C. Yes, because it is an admission of liability by a party-opponent.

D. Yes, because it is within the excited utterance exception to the hearsay rule.

Explanation:

Offer of compromise v. Offer to pay medical expenses

	Admissibility	**Rationale**
Offer of compromise (FRE 408)	Inadmissible to: prove/disprove validity of disputed claim *or* impeach party through prior inconsistent statement or contradiction	Settlement of disputes
Offer to pay medical expenses (FRE 409)	Always inadmissible to prove liability for injury	Assistance to injured persons

FRE = Federal Rule of Evidence

Under Federal Rule of Evidence (FRE) 409, evidence that a party has paid or **offered to pay** medical, **hospital**, or similar **expenses** resulting from an injury is **inadmissible to prove liability** for that injury. Therefore, the pedestrian's testimony concerning the driver's statement is inadmissible to prove the driver's liability.

(Choice B) A promise to pay medical expenses is inadmissible to prove liability for an injury even if the offering party kept that promise.

(Choice C) A party-opponent's statement is excluded from the rule against hearsay when offered against that party (ie, is nonhearsay). But here, since the driver's nonhearsay statement was an offer to pay the pedestrian's medical expenses, it is inadmissible under FRE 409.

(Choice D) The excited utterance hearsay exception applies to statements (1) relating to a startling event or condition and (2) made while the declarant was under the stress of excitement caused by that event or condition. Here, no hearsay exception is necessary since the driver's statement is nonhearsay. But even if the statement fell within this exception, it would still be inadmissible under FRE 409.

Educational objective:

Evidence that a party has paid or offered to pay medical, hospital, or similar expenses resulting from an injury is inadmissible to prove liability for that injury.

References

Fed. R. Evid. 409 (offers to pay medical expenses).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant in federal court in connection with the dissolution of a franchise. In response to the plaintiff's request for production, the defendant provided his attorney with thousands of documents pertaining to the franchise. Included in those documents was a letter that the defendant had written to his attorney, which discussed the defendant's understanding of the agreement to dissolve the franchise. The defendant had given the letter to his nephew to proofread before delivering it to his attorney. Before producing these documents to the plaintiff, the defendant's attorney took reasonable steps to redact any privileged information but did not notice the defendant's letter. As a result, the letter was turned over to the plaintiff. The defendant's attorney later learned of the inadvertent disclosure but did nothing to rectify the error.

The plaintiff seeks to introduce the letter into evidence at trial. The defendant has objected, invoking the attorney-client privilege.

Should the court uphold the defendant's privilege claim?

A. No, because the defendant's attorney waived the privilege by failing to take reasonable steps to rectify the error.

B. No, because the letter was disclosed to the defendant's nephew and therefore is not privileged.

C. Yes, because the defendant holds the privilege and the attorney cannot waive the privilege on the defendant's behalf.

D. Yes, because the defendant's attorney may claim the privilege on the defendant's behalf.

Explanation:

The **attorney-client privilege** protects communications between an attorney and a client that were (1) made for the purpose of obtaining legal advice or representation and (2) intended to be and kept confidential. A **communication is confidential** if the circumstances indicate an **intention of secrecy** between the client and the attorney. This means that a communication is **not confidential** if the client **discloses** it **to a third party** (here, the defendant's nephew). As a result, the defendant's letter is not protected by this privilege.

But even if the letter had been privileged, any protection would have been waived when the defendant's attorney turned the letter over to the plaintiff. That is because the client, as the holder of the privilege, can waive it directly or through an attorney/agent acting with the client's authority. In a federal proceeding, a **disclosure** operates as a **waiver *unless***:

the disclosure was inadvertent

the privilege holder had taken **reasonable steps** to **prevent disclosure** *and*

the privilege holder promptly took **reasonable steps to rectify** the error.

Here, the letter was inadvertently produced despite the reasonable steps that the defendant, through his attorney, had taken to redact any privileged information. But the attorney made no effort to rectify the error upon learning of the disclosure, so the privilege (had it existed) would have been waived **(Choice A)**. However, since the letter had been shared with the defendant's nephew, it was not privileged. As a result, a waiver analysis is unnecessary. Instead, the court should reject the defendant's privilege claim because the letter was not privileged.

(Choice C) The client, as the holder of the attorney-client privilege, can waive this privilege directly or through an attorney or agent acting with the client's authority. As a result, the defendant's attorney could have waived the defendant's privilege.

(Choice D) An attorney can claim the attorney-client privilege on his/her client's behalf, but this will only protect communications that fall under the privilege (not seen here).

Educational objective:

The attorney-client privilege applies only to *confidential* communications. This privilege is waived when the communication is disclosed to a third party unless the disclosure was inadvertent and the privilege holder took reasonable steps to prevent disclosure and to rectify the error.

References

Fed. R. Evid. 502 (effect of inadvertent disclosure on attorney-client privilege).

Copyright © UWorld. All rights reserved.

Waiving attorney-client privilege

By voluntarily waiving privilege

Discloses to third party



Client 3rd Party

Gives up privilege



Client

By failing to assert privilege

Inadvertent disclosure



Another's disclosure



← Previous

In a federal investigation of a man for bank robbery, the grand jury has reason to believe that the man confided in his psychiatrist that he committed the offense. As a result, the grand jury subpoenaed the psychiatrist to testify regarding the man's statement.

The psychiatrist refuses to testify on the ground of privilege.

Can the psychiatrist be forced to testify?

A. No, because the psychiatrist must assert the psychotherapist-patient privilege in the patient's absence.
B. No, because the testimony would violate the man's privilege against self-incrimination.
C. Yes, because the psychotherapist-patient privilege belongs to the man and may only be asserted by him.
D. Yes, because the psychotherapist-patient privilege cannot be invoked at grand jury proceedings.

Explanation:

Psychotherapist-patient privilege

Confidential communication between psychotherapist/social worker & patient protected if made during the course of diagnosis or treatment of mental/emotional condition *unless*:

patient's mental condition at issue

communication made during court-ordered mental exam *or*

communication introduced at involuntary-commitment proceeding

Patient holds privilege & psychotherapist must assert in patient's absence

Under Federal Rule of Evidence 501, claims of privilege in federal court are generally governed by the common law.* For instance, the common law **psychotherapist-patient privilege** protects **confidential communications** between a patient and a psychotherapist (ie, psychologist or psychiatrist) or social worker made during the course of **treatment or diagnosis**. Although this privilege belongs to the patient, the **psychotherapist must assert it** in the **patient's absence**—eg, when the patient is not a party to the proceeding (as seen here) **(Choice C)**.

*Common law governs privilege claims in federal court unless (1) the Constitution, a federal statute, or a rule provides otherwise or (2) the suit is based on diversity jurisdiction so state rules on privilege must be applied.

(Choice B) The Fifth Amendment protects a person from being compelled to produce *self*-incriminating testimonial communications (eg, oral testimony). As a result, this would entitle the psychiatrist to refuse to provide incriminating testimony regarding him/herself—but not regarding the man.

(Choice D) Claims of privilege can be invoked at all stages of a legal proceeding, including grand jury investigations.

Educational objective:

The psychotherapist-patient privilege protects confidential communications between a patient and a psychotherapist or social worker made during the course of treatment or diagnosis. This privilege belongs to the patient but must be asserted by the psychotherapist in the patient's absence.

References

Fed. R. Evid. 501 (applicability of common law privileges).

Copyright © UWorld. All rights reserved.

A defendant was charged with burglary. At trial, a police officer testified that, after the defendant had been arrested and had agreed to answer questions, the officer interrogated him with a stenographer present, but that the officer could not recall what the defendant had said. The prosecutor presented the officer with a photocopy of the stenographic transcript of the interrogation. After looking at it, the officer began to testify that he recalled that the defendant had admitted to being in the area of the burglary.

The defendant has objected to the officer's testimony on the ground that it violates the "original document" rule (also known as the "best evidence" rule).

Should the officer's testimony concerning the defendant's recorded confession be admitted?

A. No, because a photocopy cannot be used without a showing that the original is unavailable.

B. No, because the stenographer has not testified to the accuracy of the transcript.

C. Yes, because a photocopy is a duplicate of the original.

D. Yes, because the prosecutor is not attempting to prove the contents of the document.

Explanation:

A party may use **any item** (usually a writing) to **refresh a witness's recollection** if:

the witness **once had personal knowledge** of a fact or event but is now **unable to recall** it *and*

the item will **help the witness recall** that information.

Use of a writing to refresh a witness's recollection **does not implicate** the best evidence rule because this rule only applies when a party is trying to prove the contents of the writing.

Here, the prosecutor is trying to prove what the defendant said during the interrogation—not the *contents* of the transcript. The officer cannot remember what the defendant said at the interrogation, but the officer once had personal knowledge of the interrogation because he was there and the transcript will help him recall it. Therefore, it is proper to refresh the officer's recollection with the transcript and admit his testimony.

(Choice A) The best evidence rule allows the admission of a reliable duplicate (eg, a photocopy) *without* a showing that the original is unavailable.

(Choice B) When a copy of a transcript is used to refresh a witness's recollection, the witness's subsequent testimony—not the transcript—is introduced into evidence. Therefore, a document used in this manner does not have to be accurate or reliable because the document is not being admitted.

(Choice C) Under the best evidence rule, a reliable duplicate is admissible to the same extent as the original unless (1) a genuine question is raised about the original's authenticity or (2) the circumstances make it unfair to admit the duplicate. This rule does not apply here because the prosecutor is not trying to prove the transcript's contents.

Educational objective:

A writing may be used to refresh a witness's recollection if (1) the witness once had personal knowledge of a fact or event but can no longer recall it and (2) the writing can help the witness recall that information. And since the writing is not being offered to prove its contents, this use does not implicate the best evidence rule.

References

Fed. R. Evid. 612 (refreshed recollection).

Fed R. Evid. 1002-04 (best evidence rule).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Use of writings at trial

To refresh recollection V. To prove contents



©UWorld

A plaintiff, a national restaurant chain, brought a trademark infringement suit against the owner of a small eatery. The plaintiff claims that the owner willfully traded on the plaintiff's registered mark, causing customers to associate the eatery's inferior food with the plaintiff's restaurants.

The plaintiff has filed a motion to compel production of two sets of emails that were sent prior to the lawsuit. In the first set of emails, the owner notes the similarities between its logo and the plaintiff's and asks his attorney for an opinion on potential trademark infringement liability. The attorney never responded. In the second set of emails, both the owner and the attorney discuss the eatery's business potential, given its highly recognizable logo. The owner objects, citing the attorney-client privilege.

How should the court rule on the owner's privilege claim?

A. Both sets of emails are privileged.

B. Only the first set of emails is privileged, because the second set of emails does not provide legal advice.

C. Only the second set of emails email is privileged, because the first set of emails does not include the attorney's response.

D. Neither set of emails is privileged, because both tend to establish willful trading on the plaintiff's mark.

Explanation:

Attorney-client privileged communications

(FRE 502)

Privileged	Any communication between attorney & client: made to obtain or provide legal assistance for client *and* intended to be & kept confidential
Not privileged	Purely factual information Client's identity (generally) Existence of attorney-client relationship Client's legal fees & other incidentals Attorney's fee records Business advice or opinions

FRE = Federal Rule of Evidence.

The **attorney-client privilege** protects **confidential communications*** that are **made for** the purpose of **obtaining or providing legal assistance** for the client. This allows the client to freely and frankly communicate with an attorney (and vice versa). As a result, the first set of emails in which the owner sought legal advice regarding the eatery's potential liability for trademark infringement is protected by this privilege **(Choice C)**.

In contrast, attorney-client communications that are **made for some other purpose** are ***not* protected** by this privilege. This includes communications in which the client solicits, or the attorney offers, mere **business advice or opinions**. Therefore, the second set of emails about the eatery's business potential—which solicited business advice rather than legal advice—is *not* protected by this privilege **(Choice A)**.

*Communications are confidential if they were intended to be and kept private.

(Choice D) The fact that both sets of emails tend to establish that the owner willfully traded on the plaintiff's mark has no bearing on the applicability of the attorney-client privilege. Instead, this privilege turns on whether the communication was made to obtain legal advice/representation.

Educational objective:

The attorney-client privilege protects confidential communications that are made for the purpose of obtaining or providing legal assistance for the client. But communications made for other purposes—including rendering business advice or opinions—are not protected.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © UWorld. All rights reserved.

A corporation's in-house legal department initiated an internal investigation after being informed of potential misconduct involving payments made to government officials. As part of the investigation, an attorney from the legal department interviewed every member of the corporation's accounting department responsible for making such payments. The attorney took detailed notes of the accountants' statements and her corresponding mental impressions. Upon completing the internal investigation, the corporation's legal department informed the Internal Revenue Service (IRS) of the payments. The IRS then opened an investigation into the legality of such payments and now seeks the production of the interview notes. The corporation's legal counsel has objected on the ground of privilege.

Which portion of the notes, if any, is likely privileged?

A. All of the notes are privileged.

B. Only the portion concerning the accountants' statements is privileged.

C. Only the portion containing the attorney's mental impressions is privileged.

D. None of the notes are privileged, provided that the IRS can show a substantial need for the notes and cannot otherwise obtain them without undue hardship.

Explanation:

Attorney-client privilege for corporate clients

Control-group test (minority state view)	Confidential communication* privileged if it: was received from employee in position of control or who takes substantial part in decision-making
Federal standard (& majority state view)	Confidential communication* privileged if it: was made by any employee for express purpose of securing legal advice for corporation *and* related to employee's specific corporate duties

*A communication is confidential if it was intended to be & was kept confidential.

The **attorney-client privilege** protects confidential communications between an attorney and a client made for the purpose of obtaining or providing legal assistance for the client. When an attorney represents a **corporate client**, some states limit this privilege to communications received from employees in a position of control or who take a substantial part in decision-making (ie, the "control group"). However, federal law extends this privilege to communications from **non-control-group employees** if the communication:

concerned **matters within** the employee's **corporate duties** *and*
was made for the **purpose of securing legal advice** for the corporation.

Here, the attorney's notes include statements made by employees in the corporation's accounting department. Although these employees may not be part of the "control group," the statements concern payments made to government officials—a matter that likely is within the accountants' corporate duties. And since the accountants presumably knew that they were being interviewed so that the corporation could obtain legal advice about those payments, the communications contained in the notes are likely privileged**(Choices C & D)**.

However, the attorney's mental impressions are not covered by the attorney-client privilege; they are protected by the attorney work-product privilege. Under this doctrine, ordinary work product (eg, witness statements) is discoverable if the requesting party shows a substantial need for the information and cannot otherwise obtain it without undue hardship. But *opinion* work product (eg, mental impressions) is discoverable only in rare instances. Therefore, the portion containing the attorney's mental impressions is likely privileged too **(Choices B & D)**.

Educational objective:

For corporate clients, federal law extends the attorney-client privilege to confidential communications from any employee that (1) concerned matters within the employee's corporate duties and (2) were made for the purpose of securing legal advice for the corporation.

References

Upjohn Co. v. United States, 449 U.S. 383, 394 (1981) (extending attorney-client privilege to employee communications concerning matters within the employee's corporate duties made to obtain legal advice for the corporation).

Copyright © UWorld. All rights reserved.

A defendant was charged with sexual assault. At trial, the defendant has called the victim's best friend to testify that the victim stated on the night of the alleged assault that she intended to sleep with the defendant.

Is the best friend's testimony admissible?

A. No, because evidence of the victim's sexual behavior is inadmissible.

B. No, because the testimony is hearsay not within any exception.

C. Yes, because the testimony goes to the issue of consent.

D. Yes, provided that the testimony's probative value substantially outweighs any harm to the victim.

Explanation:

Under FRE 412, evidence offered to prove (1) that a **victim** engaged in other **sexual behavior** or (2) a victim's **sexual predisposition** is generally **inadmissible** in a criminal proceeding involving **sexual misconduct**. This rule is designed to shield the alleged victim from the embarrassment associated with disclosure of such private information and to prevent the jury from relying on stereotypes during the fact-finding process.

However, there are **exceptions** to this rule. In a **criminal case**, the court may admit:

evidence of specific instances of a victim's sexual behavior, if offered to prove that **someone other than the defendant** was the source of semen, injury, or other physical evidence

evidence of specific instances of a victim's sexual behavior **with respect to the defendant**, if offered by the defendant **to prove consent** or if offered by the prosecutor *and/or*

evidence whose exclusion would **violate** the **defendant's constitutional rights**.

An alleged victim's statements of intent to engage in sexual intercourse with the defendant constitute evidence of specific instances of sexual behavior with respect to the defendant. This evidence may be offered by the defendant to prove consent on the occasion in question, so the best friend's testimony is admissible here **(Choice A)**.

(Choice B) One hearsay exception applies to a declarant's then-existing state of mind—eg, motive, plan, intent. This exception applies to the victim's statement here—that she intended to sleep with the defendant—so it is also admissible under this exception.

(Choice D) Whether the probative value of evidence of a victim's sexual behavior substantially outweighs harm to the victim is the test used to determine the admissibility of such evidence in *civil* cases. But in this criminal case, the victim's statement is admissible to prove consent without employing this balancing test.

Educational objective:

Evidence of a victim's other sexual behavior or predisposition is inadmissible in a criminal case unless (1) the behavior is offered to prove another was the perpetrator, (2) it was with respect to and is offered by the defendant to prove consent or by the prosecutor and/or (3) exclusion would violate the defendant's constitutional rights.

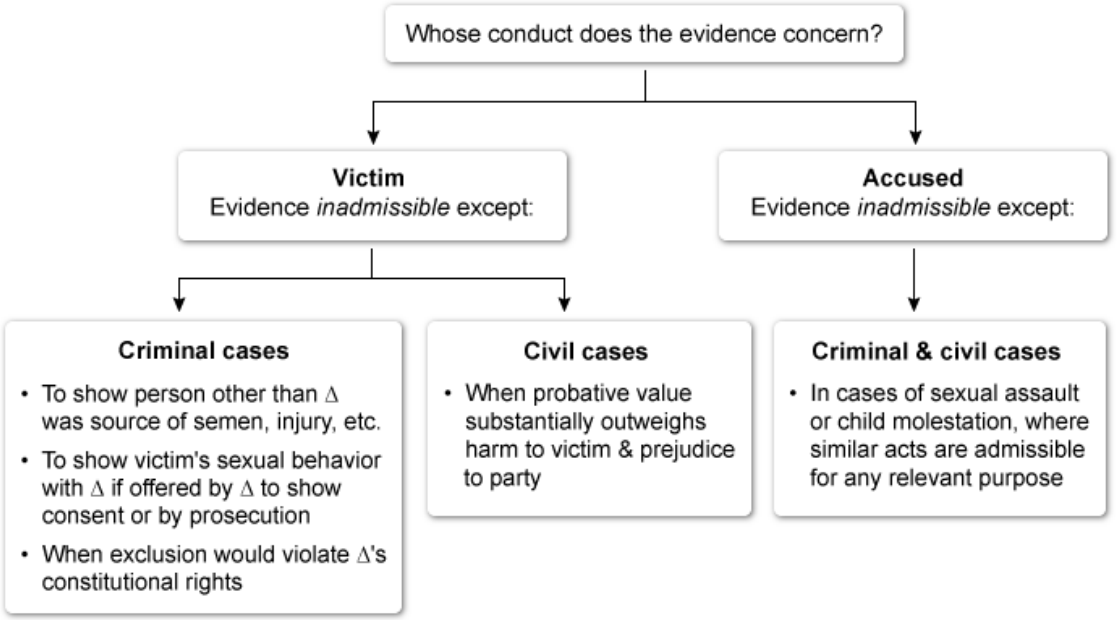
FRE = Federal Rule of Evidence.

References

Fed. R. Evid. 412 (victim's other sexual behavior).

Copyright © UWorld. All rights reserved.

Admissibility of other sexual behavior



Δ = Defendant

©UWorld

A plaintiff sued a defendant for breach of contract, claiming that the defendant failed to pay the plaintiff for services rendered under the contract between the parties. At trial, without offering the contract or accounting for its absence, the plaintiff seeks to admit a portion of the defendant's deposition testimony in which the defendant recited the terms of the contract.

The defendant has objected to the deposition testimony on the ground that it violates the best evidence rule.

Should the defendant's deposition testimony be admitted?

A. No, because a statement by a party-opponent cannot be used to prove the contents of a writing.

B. No, because the original contract must be used to prove the terms of the contract.

C. Yes, because the best evidence rule does not apply.

D. Yes, because the defendant's deposition testimony can be used against him to prove the terms of the contract.

Explanation:

Overview of best evidence rule

General rule

Must produce original or reliable duplicate* to prove contents of document relied on by witness or whose contents are at issue

Exceptions

Original unavailable	Other evidence can be used to prove content if: originals lost or destroyed (not by proponent's bad faith) originals not attainable by judicial process opponent had original, knew it was required & failed to produce *or* content not closely related to controlling issue
Admission by party	Contents can be proven by opposing party's testimony, deposition, or written statement
Public record	Contents of public record can be proven by: certified copy copy of records & comparison testimony *or* other evidence if above proof is not reasonably obtainable

*Duplicates are admissible unless original's authenticity is questioned or it would be unfair to admit them.

The **best evidence rule** (ie, original document rule) applies when a witness relies on a document's contents while testifying or when the contents of a document are at issue, such as when the document has a legal effect (eg, contracts, wills). This rule generally requires that an **original** or reliable duplicate of a **recording, writing, or photograph** (referred to as "document") be produced to **prove its contents**. However, there are exceptions to the rule that allow a party to prove a document's contents by methods *other than* introducing the original **(Choice B)**.

A common **exception** requires the proponent of the evidence to prove that all originals are lost, destroyed, or otherwise unattainable before allowing other evidence to be used to prove the document's contents (not seen here).

Another exception allows a party to **prove a document's contents** through the **testimony, deposition, or written statement** of a **party-opponent** *without* accounting for the document's absence **(Choice A)**. Since the defendant's deposition testimony concerning the

contract terms falls under this exception, that testimony can be used against him to prove the terms of the contract. Therefore, it should be admitted over the defendant's objection.

(Choice C) The best evidence rule *does* apply because the contents of the contract are at issue in this breach-of-contract case.

Educational objective:

The best evidence rule requires that an original or reliable duplicate of a recording, writing, or photograph be produced to prove its contents. But one exception allows a party to instead prove the contents of a document through the testimony, deposition, or written statement of the party against whom the evidence is offered.

References

Fed. R. Evid. 1002–07 (best evidence rule).

Copyright © UWorld. All rights reserved.

A defendant is charged with conspiracy to sell and distribute cocaine. The defendant's attorney contacted the prosecutor to enter plea negotiations. The prosecutor stated that the defendant would first have to agree that any statements made by the defendant during negotiations could be used to impeach him at trial in the event that a plea bargain could not be reached. After deliberating with his attorney, the defendant agreed to proceed under those terms, but the negotiations were fruitless.

At trial, the defendant testified as to his lack of involvement in the alleged conspiracy. The prosecutor now seeks to cross-examine the defendant about a contrary statement that he made during plea discussions.

Is the proposed cross-examination proper?

A. No, because statements made during plea negotiations cannot be used to impeach a defendant.

B. No, because the protections for statements made during plea negotiations are not subject to waiver.

C. Yes, because the defendant and the prosecutor did not reach a plea bargain.

D. Yes, because the defendant knowingly and voluntarily agreed to waive any protections.

Explanation:

The law encourages settlement of disputes and plea-bargaining, so statements made during **settlement or plea negotiations** are generally ***not*** **admissible against a defendant** who participated in the negotiations or made the plea. However, a defendant may **waive this protection**—just like any other privilege—if the waiver is made **knowingly and voluntarily (Choice B)**.

Here, the statements that the defendant made during plea negotiations would typically be inadmissible at trial. However, the defendant knowingly and voluntarily waived this protection after deliberating with his attorney. That waiver allows the prosecutor to use any statements made during plea negotiations to impeach the defendant's trial testimony, so the prosecutor's proposed cross-examination is proper.

(Choice A) Statements made during plea negotiations generally cannot be used against the defendant for any purpose—including impeachment. However, this protection is lost once it has been waived (as seen here).

(Choice C) The rule excluding statements made during plea negotiations applies even when a plea bargain was not reached. Otherwise, the negotiating parties would be penalized if no agreement was reached, which would discourage the settlement of disputes.

Educational objective:

Statements made during settlement or plea negotiations are generally inadmissible against a defendant who participated in the negotiations or made the plea. However, a defendant may waive this protection if the waiver is made knowingly and voluntarily.

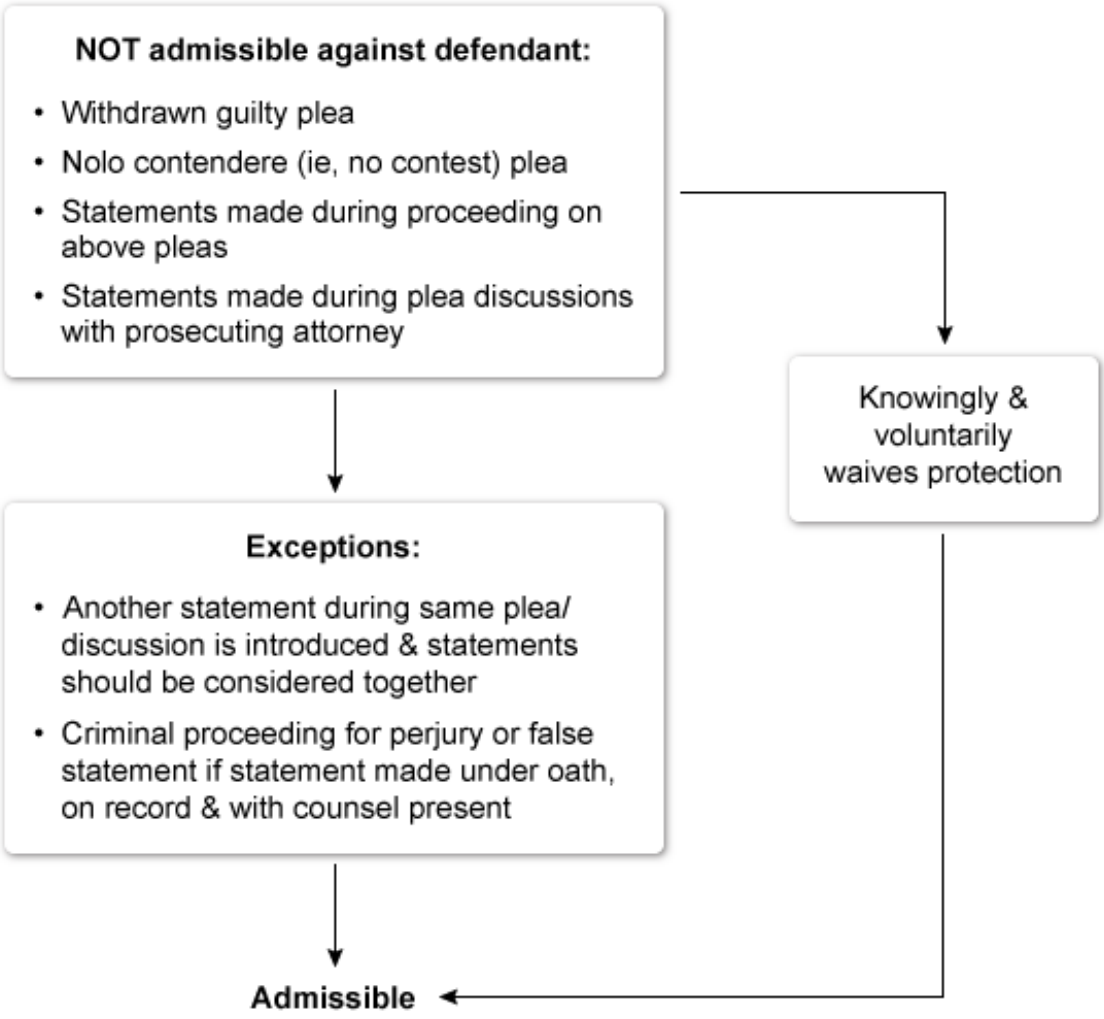
References

Fed. R. Evid. 410 (prohibited use of pleas, plea discussions, and related statements).

United States v. Mezzanatto, 513 U.S. 196, 210 (1995) (upholding a criminal defendant's agreement to waive the protections afforded under the plea-statement rules if the agreement was made knowingly and voluntarily).

Copyright © UWorld. All rights reserved.

Pleas, plea discussions & related statements
(FRE 410)



FRE = Federal Rule of Evidence.

©UWorld

A plaintiff sued a freight company for damages incurred when the freight company's driver negligently destroyed the plaintiff's cargo in a trucking accident. Among the contested issues is the amount of the plaintiff's cargo on the freight company's truck at the time of the accident. At trial, the freight company manager testified that the company creates and keeps a detailed manifest for each load of cargo it transports. The manager further testified that the manifest for the cargo at issue was destroyed in a flood at the company's office but that he carefully reviewed the manifest prior to its destruction. The court allowed the manager to testify to the content of the manifest. The freight company then requested that the court instruct the jury that it must accept that the manager's testimony accurately reflects the content of the manifest.

Should the court issue the requested instruction?

A. No, because whether the manager's testimony accurately reflects the manifest's content is a question for the jury.

B. No, unless the court first determines that the manager's testimony accurately reflects the manifest's content.

C. Yes, because the manifest was not destroyed by the freight company in bad faith.

D. Yes, because the manifest was prepared prior to the event giving rise to the litigation.

Explanation:

Functions of court & jury under FRE 1008

(admitting other evidence of content)

Court Determines whether proponent has fulfilled factual conditions for admitting other evidence of content of writing, recording, or photograph

Jury Determines any issue about whether:

asserted writing, recording, or photograph ever existed
another writing, recording, or photograph is the original *or*
other evidence of content accurately reflects the content

FRE = Federal Rule of Evidence.

The **best evidence rule** requires that an original or reliable duplicate of a recording, writing, or photograph (referred to as "document") be produced to **prove its content**. However, a party may use other, **secondary evidence** (eg, testimony) to prove a document's content if certain **factual conditions are established** (eg, all originals are lost or destroyed). Whether a party has fulfilled the factual conditions for admitting secondary evidence is a **determination for the court**. But in a jury trial, the **jury determines** any issue about **whether**:

an asserted document ever existed
another document produced at a hearing or trial is the original *or*
other evidence of content **accurately reflects** the content.

Here, the freight company manager testified that the original cargo manifest was destroyed in a flood at the company's office, so the court allowed the manager to testify to the manifest's content. The freight company then requested an instruction that the jury *must* accept that the manager's testimony accurately reflects the content of the cargo manifest. But the jury is free to conclude otherwise—since the issue of accuracy is solely for the jury **(Choice B)**. Therefore, the requested instruction is improper, and the court should not issue it.

(Choice C) The manifest was not destroyed by the freight company in bad faith. But this goes to whether the court should allow secondary evidence to prove the manifest's content. It does not justify the issuance of the improper instruction.

(Choice D) The manifest was prepared prior to the event giving rise to the litigation (the trucking accident). But this is no basis for the court to issue the improper instruction.

Educational objective:

The court determines whether a party has fulfilled the factual conditions to admit other evidence to prove the content of a document. But in a jury trial, the jury determines any issue of whether (1) an asserted document ever existed, (2) another document is the original, or (3) other evidence of content accurately reflects the content.

References

Fed. R. Evid. 1002–07 (best evidence rule).

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant, the owner of a department store, for injuries sustained when he slipped and fell in the defendant's store. The cause of the fall is in dispute. In preparation for trial, the plaintiff's attorney interviewed the only eyewitness to the incident and took notes as the eyewitness narrated the events leading up to the fall. The eyewitness had not spoken to anyone else about the incident and is now deceased. The defendant filed a motion to compel the production of the notes during discovery. The plaintiff's attorney objects on the ground of privilege.

Will production of the notes be required?

A. No, because the notes are protected by the attorney-client privilege.

B. No, because the notes are protected by the attorney work-product doctrine.

C. Yes, because the eyewitness's account is unavailable by other means.

D. Yes, provided there is good reason to believe that the notes contain inconsistent statements.

Explanation:

Attorney work-product doctrine

(protects materials prepared by or for attorney in anticipation of litigation)

	Description	**Exception**
Opinion work product	Attorney's opinions, legal theories & conclusions, mental impressions	Discoverable in *rare* instances of compelling need—eg, to show attorney's fraud
Ordinary work product	Facts gathered by attorney—eg, witness statements, notes & other materials	Discoverable in *civil* suit if requesting party shows substantial need & undue hardship

Under the **attorney work-product doctrine**, materials (eg, documents and tangible things) prepared by or for an attorney in anticipation of litigation are **privileged** and are **generally not subject to discovery**. This doctrine encompasses two types of work product:

Opinion work product – an attorney's opinions, legal theories and conclusions, and mental impressions (not seen here)

Ordinary work product – facts gathered by an attorney as well as witness statements, notes, and other items prepared in anticipation of litigation (as seen with the notes here)

Opinion work product is almost always protected from discovery. However, in **civil suits**,* a party may **compel the production** of **ordinary work product** if the party demonstrates that it (1) has a **substantial need** for the materials to prepare its case and (2) **cannot obtain** the materials by other means **without undue hardship**.

Here, there is no other eyewitness to the fall, so the defendant has a substantial need for the information in the notes. And since the eyewitness is now deceased, the defendant cannot obtain the information by other means. Therefore, the court will likely require the production of the notes **(Choice B)**.

*In criminal cases, the prosecution is constitutionally required to disclose exculpatory evidence contained within work-product materials—but not the work product itself. And the defense is only required to disclose work product contained in certain scientific or medical reports.

(Choice A) The attorney-client privilege protects communications between an attorney and a client that were (1) made for the purpose of obtaining or providing legal assistance for the client and (2) intended to be confidential. Therefore, this privilege does not cover the attorney's notes from an eyewitness interview.

(Choice D) Good reason to believe that the notes contain inconsistent statements helps show that the notes are relevant to the defendant's case and therefore within the scope of discovery. But relevancy alone is not a basis to overcome a valid claim of privilege.

Educational objective:

Production of ordinary work product—eg, witness statements and notes gathered in anticipation of litigation—can be compelled only if the requesting party demonstrates that it (1) has a substantial need for the materials and (2) cannot obtain the materials by other means without undue hardship.

References

Fed. R. Civ. P. 26(b)(3) (attorney work product).

Hickman v. Taylor, 329 U.S. 495, 509 (1947) (recognizing the work-product privilege).

Copyright © UWorld. All rights reserved.

Police received a tip from an informant that a man that lived on his street might be dealing drugs out of his home. An investigation was initiated in response to the informant's tip. During the investigation, an undercover officer purchased cocaine from the man at his home on multiple occasions. Police ultimately obtained a valid warrant to search the man's home and, while executing the warrant, found a large quantity of cocaine. The man was subsequently charged with knowingly possessing cocaine with the intent to distribute.

Prior to trial, the man requested disclosure of the identity of the informant and the contents of the informant's statement to police. The prosecutor refused to disclose the informant's identity and the substance of the informant's statement to police, claiming that both are privileged.

How should the court rule on the prosecutor's privilege claims?

A. Both the identity of the informant and the contents of the informant's statement to police are privileged.
B. Only the contents of the informant's statement to police are privileged.
C. Only the identity of the informant is privileged.
D. Neither the identity of the informant nor the contents of the informant's statement to police are privileged.

Explanation:

The **government-informant privilege protects** the **government** from being **compelled** to **disclose** the **identity of informants**—ie, persons who supply information to law enforcement about an alleged crime. This furthers a public interest in encouraging citizens to share information about criminal activity by protecting the citizens' anonymity. However, the government-informant privilege is not absolute. The **privilege does not apply** if:

the informant's identity is already known to those with cause to resent the communication to law enforcement, (not seen here) *or*

the defendant shows that the informant's **identity is material** to the establishment of a **defense** or otherwise necessary and essential to a **fair determination** of the case.

Here, the man has not demonstrated—nor is there an argument to be made—that the informant's identity is material to the establishment of his defense or otherwise necessary to a fair determination of the case. That is because the informant merely provided a tip that police later verified through a thorough investigation. Therefore, the informant's identity is privileged **(Choices B & D)**.

However, the privilege does not protect the *contents* of an informant's communication so long as the communication does not reveal the informant's identity. Therefore, the man is entitled to disclosure of the informant's statement—ie, that the man might be dealing drugs out of his home—because it does not reveal the informant's identity **(Choice A)**.

Educational objective:

The government-informant privilege generally allows the government to withhold the identity of a confidential informant. However, the privilege does not preclude disclosure of the content of a communication provided by an informant if its disclosure will not reveal the informant's identity.

References

Roviaro v. United States, 353 U.S. 53, 61–62 (1957) (identity of informant must be disclosed when the informant's testimony is relevant and helpful to defense).

Copyright © UWorld. All rights reserved.

Government-informant privilege



©UWorld

A plaintiff, the owner of a motel chain, brought a breach-of-contract action against a defendant, a construction company, in federal court. The plaintiff alleged that the defendant's poor workmanship in constructing the plaintiff's new motel led to major defects in the motel's foundation. The plaintiff further alleged that the defendant knew about the defects but willfully concealed them.

During settlement negotiations, the defendant produced a quality control report that it had created during the motel's construction but had not previously shared with the plaintiff. The report indicated that the defendant was aware of the foundation defects, and it included an estimate on the cost of repair. The defendant relied on the report during the settlement negotiations in order to justify its settlement offer; however, no settlement was reached.

At trial, the plaintiff seeks to introduce the quality control report to establish the issue of willful concealment.

Is the report admissible?

A. No, because all statements made during settlement negotiations are inadmissible.

B. No, because the report is hearsay not within any exception.

C. Yes, because statements made in settlement negotiations are admissible when offered to prove the validity of a claim.

D. Yes, because the report was created for purposes other than settlement negotiations and is otherwise admissible.

Explanation:

Compromise offers & negotiations

(FRE 408)

Applicability	Offers made with intent to compromise (ie, avoid or end) claim Conduct/statements made during compromise negotiations about claim
Prohibited use	Not admissible to: prove/disprove validity or amount of disputed claim *or* impeach by prior inconsistent statement or contradiction
Exceptions	Conduct/statements admissible for above purposes if: made during negotiations in civil dispute involving government regulatory, investigative, or enforcement agency *and* offered in subsequent criminal case Admissible for other purpose—eg: proving witness's bias or prejudice negating contention of undue delay proving effort to obstruct criminal investigation or prosecution

FRE = Federal Rule of Evidence.

Federal Rule of Evidence (FRE) 408 is an exclusionary rule designed to encourage compromise and settlement of disputes. As a result, the following evidence is generally ***not*** **admissible** to prove/disprove the validity or amount of a disputed claim OR to impeach a witness with a prior inconsistent statement:

Offers of compromise made with the intent to avoid or settle the claim

Conduct or statements made during compromise or settlement negotiations

However, FRE 408 **does not apply** to evidence **created for reasons other than settlement**, so a party cannot immunize evidence from admission merely by producing it during settlement negotiations **(Choice A)**. Accordingly, evidence created for nonsettlement reasons is **admissible** so long as it is not barred by another rule (eg, the rule against hearsay). Here, the quality control report was created during the motel's construction and *before* settlement negotiations were ever contemplated. Therefore, the report is not barred under FRE 408.*

Nor is the report barred by the rule against hearsay, under which out-of-court statements are *not* admissible to prove the truth of the matter asserted therein. That is because out-of-court statements that are made by a party-opponent (eg, the defendant's report) and offered against that party are excluded from this rule and considered nonhearsay **(Choice B)**. Since there is no other basis for exclusion, the report is admissible.

*In contrast, a similar report made for settlement negotiations would be subject to the limitations set forth in FRE 408.

(Choice C) Statements made during settlement negotiations are not always admissible to prove a claim's validity. Such statements are *inadmissible* for this purpose unless (1) made during negotiations in a civil dispute involving a government regulatory, investigative, or enforcement agency and (2) offered in a subsequent criminal case.

Educational objective:

Statements made during settlement negotiations are generally inadmissible to prove/disprove the validity of a claim or impeach a party with a prior inconsistent statement. But a party cannot immunize evidence created for reasons other than settlement from admission merely by producing the evidence during settlement negotiations.

References

Fed. R. Evid. 408 (compromise offers and negotiations).

Copyright © UWorld. All rights reserved.

A woman sued her friend for injuries she received as a passenger in the friend's car. On direct examination, the woman testified that the friend had been speeding and ran a red light. On cross-examination, the woman was asked whether she was under the influence of drugs at the time of the accident. The woman invoked the privilege against self-incrimination.

How should the court treat the woman's claim of privilege?

A. Deny it, because evidence of the woman's drug intoxication is essential to assessing the accuracy of her observations.

B. Deny it, because the woman waived the privilege by voluntarily testifying.

C. Uphold it, because the privilege applies in both civil and criminal cases.

D. Uphold it, because the woman's credibility cannot be impeached by a crime for which she has not been convicted.

Explanation:

The Fifth Amendment **privilege against self-incrimination**:

protects a criminal defendant from being compelled to produce self-incriminating testimonial communications (eg, testify at trial) *and*

allows a **witness**—in both **civil and criminal cases**—to refuse to answer questions that the witness reasonably believes might incriminate him/her.

Here, the woman invoked her privilege against self-incrimination after being asked if she was under the influence of drugs at the time of the accident. The woman's belief that her answer might incriminate her—by subjecting her to a future prosecution for drug possession—was reasonable. And since the privilege against self-incrimination applies in both civil and criminal cases, the court should uphold her claim of privilege.

(Choice A) As a general evidentiary principle, a party may impeach (ie, discredit) a witness by challenging the witness's perception and recollection. Evidence of the woman's drug intoxication—which would affect both—*is* essential to assessing the accuracy of her observations. However, her constitutional right against self-incrimination trumps this principle.

(Choice B) Although a *criminal defendant* waives the privilege against self-incrimination by testifying as to his/her culpability, a *witness* does not waive the privilege by voluntarily testifying. However, if the witness voluntarily testifies about a potentially incriminating matter (not seen here), the privilege is waived, and the opposing party may examine the witness on that matter.

(Choice D) A witness's credibility *can* be impeached by a crime for which he/she has not been convicted if (1) the crime affected the witness's perception or memory (as argued here) or (2) the crime concerns the witness's character for truthfulness. Therefore, this is not a basis to uphold the woman's claim of privilege.

Educational objective:

The privilege against self-incrimination (1) protects a criminal defendant from being compelled to produce self-incriminating testimonial communications and (2) allows a witness, in both civil and criminal cases, to refuse to answer questions that the witness reasonably believes might incriminate him/her.

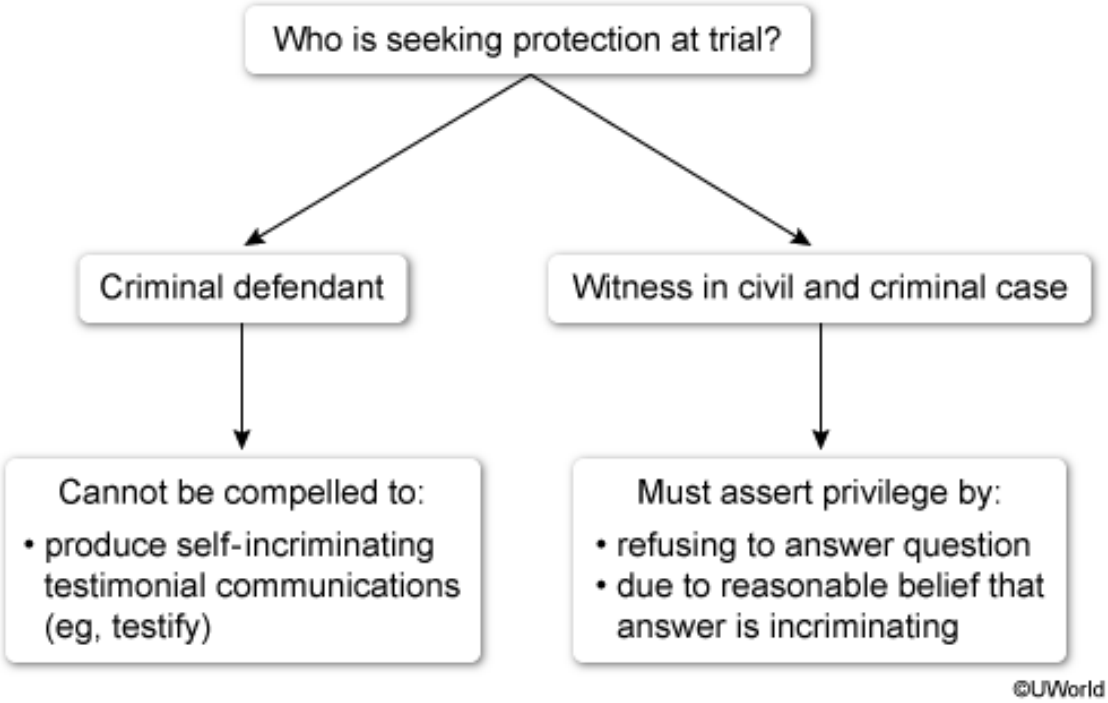
References

U.S. Const. amend. V (privilege against self-incrimination).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Privilege against self-incrimination



©UWorld

A plaintiff sued a defendant, alleging that she was seriously injured when the defendant ran a red light and struck her while she was walking in a crosswalk. During the defendant's case, a witness testified that the plaintiff had told him that she was "barely touched" by the defendant's car.

On cross-examination, should the court allow the plaintiff to elicit from the witness the fact that he is an adjuster for the defendant's insurance company?

A. No, because testimony about liability insurance is barred by the rules of evidence.

B. No, because the reference to insurance raises a collateral issue.

C. Yes, for both substantive and impeachment purposes.

D. Yes, for impeachment purposes only.

Explanation:

Liability insurance

(FRE 411)

Evidence that person was or was not insured against liability is *inadmissible* to prove person acted negligently or wrongfully

Evidence of liability insurance is *admissible* for nonsubstantive purpose—eg:

to impeach witness with evidence of self-interest, bias, or prejudice

to prove agency, ownership, or control

FRE = Federal Rule of Evidence.

Under Federal Rule of Evidence 411, evidence that a person was (or was not) covered by **liability insurance** is ***not*** **admissible** as **substantive proof** of negligence or wrongdoing. This helps ensure that the jury will not infer fault based on the existence or lack of coverage or base its verdict on the defendant's or insurer's ability to pay. However, this evidence *is* **admissible** for nonsubstantive **purposes**—eg, to impeach a witness.

Here, testimony that the witness is an adjuster for the defendant's insurance company shows that the defendant had liability insurance. Therefore, it cannot be admitted as substantive proof of the defendant's negligence **(Choice C)**. But it can be admitted for impeachment purposes—eg, to show that the witness, as an employee of the defendant's insurance company, may have a self-interest in minimizing the plaintiff's loss **(Choice A)**.

(Choice B) The reference to insurance shows the witness's potential self-interest or bias—an issue that is never collateral (ie, irrelevant). But even if it were, the collateral-evidence rule only bars the use of extrinsic evidence—ie, evidence from sources *other than* a witness's own testimony—to impeach a witness on such matters.

Educational objective:

Evidence of liability insurance coverage is not admissible as substantive proof that a party acted negligently or wrongfully. However, this evidence can be offered for nonsubstantive purposes like impeachment.

References

Fed. R. Evid. 411 (liability insurance).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman sued a car manufacturer alleging that she was seriously injured when a defect in her car's engine caused it to seize while the car was in motion. The manufacturer's chief engineer prepared a report on the engine's production history and failure rate at the request of the manufacturer's attorney in preparation for trial. The report was then delivered to the attorney. The woman demands that the report be produced during discovery.

Will production of the report be required?

A. No, because it is a privileged attorney-client communication.

B. No, because the report contains hearsay.

C. No, because the report is self-serving.

D. Yes, because business reports are not privileged.

Explanation:

Common-law privileges

Attorney-client	Communications between attorney & client made to obtain or provide legal assistance for client
	Client holds privilege forever—even after client is no longer represented or dies
Work product	Materials prepared by or for attorney in preparation for litigation
Spousal	Marital communications – communications between spouses *during* marriage
	Both spouses hold privilege—even after marriage has ended
	Spousal immunity – shields spouse from testifying against criminal defendant-spouse about events that occurred *before or during* marriage
	Witness-spouse holds privilege until marriage ends
Psychotherapist-patient	Communications between psychotherapist (or clinical social worker) & patient made for diagnosis or treatment for mental or emotional condition
	Patient holds privilege & psychotherapist must assert in patient's absence
Religious	Communications between clergy member & penitent
	Penitent holds privilege & clergy member must assert in penitent's absence

*Federal courts apply common law privileges except in diversity cases where state rules apply.

During discovery, a party may request production of information that relates to any issue in the lawsuit (eg, the identity of witnesses). But the opposing party is **not required to produce** privileged information, like communications protected by the **attorney-client privilege**. This privilege applies to:

communications between a client and an attorney that

were made for the purpose of obtaining or providing legal assistance for the client *and*

were intended to be and kept **confidential**.

Here, the manufacturer's chief engineer prepared and delivered a report at the request of the manufacturer's attorney (communication). The woman then demanded production of that report during discovery. But the report is privileged because it was created in preparation for trial (to obtain legal assistance) and there is no indication that it was shared with anyone other than the manufacturer's attorney (confidential). Therefore, production is not required.

(Choice B) The report *may* contain hearsay—ie, out-of-court statements offered to prove the truth of the matter asserted therein. But this would only affect the report's *admissibility* at trial—not immunize it from *production*.

(Choice C) The report may be self-serving if it only contains information that is helpful to the manufacturer's defense. But since a party may request *any* information that relates to the lawsuit, the fact that the report may be self-serving is not a basis for withholding it from production.

(Choice D) Business reports made for the purpose of securing legal advice *are* privileged if they were (1) intended to be and kept confidential and (2) communicated between a member of the company and its legal counsel.

Educational objective:

The attorney-client privilege applies to (1) communications between a client and an attorney that (2) were made to obtain or provide legal assistance for the client and (3) were intended to be and kept confidential. As a result, such communications need not be produced during discovery or at trial.

Copyright © UWorld. All rights reserved.

A woman entered a guilty plea to a charge of embezzlement. Her attorney hired a retired probation officer as a consultant to gather information for the preparation of a sentencing plan for the woman that would avoid jail. For that purpose, the consultant interviewed the woman for three hours.

Thereafter, the prosecution undertook an investigation of the woman's possible involvement in other acts of embezzlement. The consultant was subpoenaed to testify before a grand jury. The consultant refused to answer any questions concerning his conversation with the woman.

The prosecution has moved for an order requiring the consultant to answer those questions.

How should the court rule on the prosecution's motion?

A. Deny the motion in the absence of probable cause to believe the interview developed evidence relevant to the grand jury's inquiry.
B. Deny the motion on the basis of the attorney-client privilege.
C. Grant the motion because exclusionary evidentiary rules do not apply in grand jury proceedings.
D. Grant the motion because the consultant is not an attorney.

Explanation:

Common law privileges apply in all stages of a federal legal proceeding, including grand jury proceedings.* This includes the **attorney-client privilege**, which protects **communications**—even those made with the **attorney's agent**—that are (1) made for the purpose of obtaining or providing **legal assistance** for the client *and* (2) intended to be and kept **confidential**.

Here, the attorney hired a consultant to help him prepare the woman's sentencing plan. The consultant therefore acted as the attorney's agent when he interviewed the woman for that purpose. And since that interview was in furtherance of the woman's legal representation and likely intended to be confidential, it is protected by the attorney-client privilege **(Choice D)**. As a result, the prosecution's motion should be denied.

*The Federal Rules of Evidence do not specifically address evidentiary privileges (or constitutional limitations on admissibility). They merely instruct federal courts to apply common law privileges except in diversity cases, where state rules apply.

(Choice A) A grand jury gathers evidence (eg, subpoenas persons to testify) to determine if there is probable cause to indict the accused. But probable cause is not required to subpoena information relevant to the grand jury's investigation. Therefore, this is not a basis for denying the motion.

(Choice C) The Federal Rules of Evidence—except those regarding privilege—do not apply at grand jury proceedings. Therefore, exclusionary evidentiary rules (eg, the rule against hearsay) are inapplicable in a grand jury hearing, but the attorney-client privilege can still be asserted.

Educational objective:

Attorney-client communications are privileged when made to obtain or provide legal assistance for the client *and* intended to be and kept confidential. This privilege extends to confidential communications between a client and the attorney's agent if those communications are made in furtherance of the legal representation.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.


Communications covered by attorney-client privilege
Attorney
PRIVILEGE
Attorney's Assistant
Attorney's Consultant
Client (privilege holder)

©UWorld

In a personal injury case, the plaintiff sued a retail store for injuries she sustained from a fall in the store. The plaintiff alleged that the store had negligently allowed its entryway to become slippery from snow tracked in from the sidewalk. Before the lawsuit was filed, when the plaintiff first threatened to sue, the store's manager said, "I know that there was slush on that marble entryway, but I think your four-inch-high heels were the real cause of your fall. So let's agree that we'll pay your medical bills, and you release us from any claims you might have." The plaintiff refused the offer. At trial, the plaintiff seeks to testify to the manager's statement that "there was slush on that marble entryway."

Is the statement about the slush in the entryway admissible?

A. No, because it is a statement made in the course of compromise negotiations.
B. No, because the manager denied that the slippery condition was the cause of the plaintiff's fall.
C. Yes, as a statement by an agent about a matter within the scope of his authority.
D. Yes, because the rule excluding offers of compromise does not protect statements of fact made during compromise negotiations.

Explanation:

Compromise offers & negotiations

(FRE 408)

Applicability	Offers made with intent to compromise (ie, avoid or end) claim Conduct/statements made during compromise negotiations about claim
Prohibited use	Not admissible to: prove/disprove validity or amount of disputed claim *or* impeach by prior inconsistent statement or contradiction
Exceptions	Conduct/statements admissible for above purposes if: made during negotiations in civil dispute involving government regulatory, investigative, or enforcement agency *and* offered in subsequent criminal case Admissible for other purpose—eg: proving witness's bias or prejudice negating contention of undue delay proving effort to obstruct criminal investigation or prosecution

FRE = Federal Rule of Evidence.

Public policy encourages the settlement of disputes. As a result, FRE 408 **bars the admission** of evidence of (1) **offers of compromise** or (2) conduct or statements made during **compromise negotiations** when that evidence is offered to:

prove or disprove the validity or amount of a **disputed claim** *or*
impeach by a **prior inconsistent statement or contradiction**.

Here, the plaintiff seeks to testify to the store manager's statement that there was slush on the store's marble entryway where the plaintiff fell. That statement is being offered to prove the validity of the plaintiff's disputed claim that the store negligently allowed its entryway to become slippery, thereby causing her fall. But since that statement was made in the course of compromise negotiations, it is inadmissible.

(Choice B) The manager's denial that the slippery condition caused the plaintiff's fall has no bearing on the admissibility of his statement made during a compromise negotiation.

(Choice C) Out-of-court statements made by a party-opponent's agent about a matter within the scope of the agent's authority are excluded from the rule against hearsay (ie, are nonhearsay). But since the manger's statement here was made during compromise negotiations, it cannot be used to prove the validity of a disputed claim.

(Choice D) FRE 408 *does* protect statements of fact made during compromise negotiations.

Educational objective:

Compromise offers and negotiations are inadmissible when offered to (1) prove or disprove the validity or amount of a disputed claim or (2) impeach by a prior inconsistent statement or contradiction.

References

Fed. R. Evid. 408 (compromise offers and negotiations).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff, the owner of a hardware store, sued her attorney for malpractice after losing a lawsuit involving a defective product that was sold by the hardware store. The plaintiff claims that the attorney negligently handled the defense because he lacked sufficient expertise. At trial, the plaintiff, seeking to establish the attorney's negligence, produced a letter written by the attorney to the plaintiff summarizing a commonly used litigation strategy that the attorney failed to use at trial. In response, the attorney plans to testify to communications that the attorney made in meetings with the plaintiff regarding an alternative defense strategy, which they agreed to pursue. The plaintiff objects to the attorney's testimony, invoking the attorney-client privilege.

Should the court uphold the client's privilege claim?

A. No, because the attorney's professional relationship with the plaintiff has ended.

B. No, because the statement is not protected by the attorney-client privilege.

C. Yes, because only the client, as the holder of the privilege, can waive it.

D. Yes, because the communications were made for the purpose of obtaining legal assistance and intended to be kept confidential.

Explanation:

Common exceptions to attorney-client privilege

Exception	Use of attorney-client communication	Disclosure compelled by
Crime-fraud	Made to further ongoing or future crime/fraud	Party seeking to discover information about crime/fraud
Deceased client	Resolves dispute over deceased client's testamentary intent	Attorney
Self-defense	Used to defend against client's malpractice or ethical claim against attorney	Attorney
Fiduciary	Constitutes legal advice between corporate fiduciaries & corporation's attorney	Stockholders
Joint representation	Made during attorney's prior representation of joint clients	Any joint client in subsequent litigation between joint clients

The **attorney-client privilege** protects confidential communications between an attorney and a client that were made for the purpose of obtaining or providing legal assistance for the client. One exception to this privilege applies to **communications** that are **relevant** to an **ongoing dispute** between the attorney and the client (eg, attorney's compensation, malpractice). In such cases, the **attorney may disclose** confidential communications that are **relevant to the attorney's claim or defense** on the disputed issue without the client's consent.

Here, the attorney plans to testify about confidential communications that he made during meetings with the plaintiff (client) regarding an alternative defense strategy (legal assistance). But since these communications are relevant to establishing the attorney's defense in this ongoing malpractice dispute, the attorney-client privilege does not apply **(Choice D)**. Therefore, the court should *deny* the client's privilege claim.

(Choice A) The privilege remains in effect even after the attorney-client relationship has ended (as seen here) or the client dies. Therefore, this would not be a basis for denying the plaintiff's privilege claim.

(Choice C) The attorney-client privilege can be waived by the client directly or by an attorney or other agent acting with the client's authority. But here, the client's waiver is unnecessary since the attorney-client privilege does not apply.

Educational objective:

Attorney-client communications are not privileged if they are relevant to an ongoing dispute between the attorney and the client. Therefore, the attorney may disclose these communications without the client's consent.

Copyright © UWorld. All rights reserved.

After a night of drinking at a bar, a man and his friend got into an argument over a sports team. The man became so upset that he punched the friend, breaking the friend's nose. The man was arrested for battery. The friend subsequently filed a civil action against the man for battery. In an attempt to dispose of both the criminal charge and the civil suit, the man offered to settle the civil suit with the friend for $10,000 if the friend would refuse to testify against the man in his criminal trial for battery. The friend declined and later informed the prosecutor of the man's offer. The prosecutor then filed an additional charge of obstruction of justice against the man.

Is the man's offer admissible at his trial for obstruction of justice?

A. No, because offers of compromise and statements made during compromise negotiations are inadmissible.

B. No, because the underlying civil dispute did not involve a government regulatory, investigative, or enforcement agency.

C. Yes, as a statement against interest.

D. Yes, because offers of compromise are admissible for the limited purpose of proving efforts to obstruct a criminal prosecution.

Explanation:

Compromise offers & negotiations

(FRE 408)

Applicability	Offers made with intent to compromise (ie, avoid or end) claim Conduct/statements made during compromise negotiations about claim
Prohibited use	Not admissible to: prove/disprove validity or amount of disputed claim *or* impeach by prior inconsistent statement or contradiction
Exceptions	Conduct/statements admissible for above purposes if: made during negotiations in civil dispute involving government regulatory, investigative, or enforcement agency *and* offered in subsequent criminal case Admissible for other purpose—eg: proving witness's bias or prejudice negating contention of undue delay proving effort to obstruct criminal investigation or prosecution

FRE = Federal Rule of Evidence.

Public policy encourages the settlement of disputes. As a result, Federal Rule of Evidence 408 generally bars the admission of evidence of **offers of compromise**, or conduct or statements made during **compromise negotiations**, when that evidence is offered to:

prove the validity or amount of a **disputed claim** *or*

impeach a witness with a prior inconsistent statement.

However, evidence of compromise offers and conduct and statements made during compromise negotiations is **admissible** if offered for **other purposes (Choice A)**. These include proving **witness bias**, negating contentions of **undue delay**, and proving efforts to **obstruct** a **criminal investigation or prosecution**.

Here, the man attempted to settle his civil suit by offering the friend $10,000 to refuse to testify against the man in his criminal battery trial. While evidence of compromise offers is generally inadmissible, the man's offer constituted an effort to obstruct a criminal prosecution. Therefore, the offer is admissible for that limited purpose.

(Choice B) Conduct or statements made during compromise negotiations may be used to prove a claim's *validity* or amount, or to *impeach* with a prior inconsistent statement, if (1) made during a civil dispute with a government agency exercising its regulatory, investigative, or enforcement authority and (2) offered in a subsequent criminal case. Here,

the man's offer would be used to prove his effort to *obstruct* a criminal prosecution, so there is no requirement that the civil dispute involved a government agency.

(Choice C) A statement against interest is a hearsay exception for statements so contrary to an unavailable declarant's proprietary, pecuniary, or penal interest that a reasonable person in the declarant's position would have said it only if he/she believed it to be true. But here, a hearsay exception is unnecessary since the man's offer qualifies as a *nonhearsay* statement of a party-opponent.

Educational objective:

Evidence of compromise offers is generally inadmissible to prove the amount or validity of a claim or to impeach by prior inconsistent statement. However, such evidence may be admissible for other purposes, such as proving bias, negating contentions of undue delay, or proving efforts to obstruct a criminal investigation or prosecution.

References

Fed. R. Evid. 408 (compromise offers and negotiations).

Copyright © UWorld. All rights reserved.

A defendant has pleaded not guilty to a federal bank robbery charge.

The principal issue at trial is the identity of the robber. The prosecutor has called the defendant's wife to testify to the clothing that the defendant wore as he left their house on the day the bank was robbed, expecting her description to match that of eyewitnesses to the robbery. Both the defendant and his wife have objected to her testifying against the defendant.

Should the wife be required to testify?

A. No, because the defendant has a privilege to prevent his wife from testifying against him in a criminal case.

B. No, because the wife has a privilege not to testify against her husband in a criminal case.

C. Yes, because the spousal testimonial privilege does not apply in criminal cases.

D. Yes, because the wife's viewing of the defendant's clothing was not a confidential communication.

Explanation:

Two common law privileges apply to **spousal testimony** when in federal court:

Spousal-communications privilege – protects confidential communications between spouses during the marriage from disclosure in a civil or criminal case, even after the marriage has ended

Spousal-immunity (ie, spousal-testimonial) privilege – protects persons in an active marriage from **testifying against** their **spouse** in a **criminal case** about any matters that occurred before or during the marriage **(Choice C)**

The **witness-spouse** holds the spousal-immunity privilege and therefore has the **unilateral right** to either (1) **refuse to testify** against the other spouse or (2) waive the privilege and testify.

Here, the wife holds the spousal-immunity privilege because she is the testifying spouse. Therefore, the defendant cannot prevent her from testifying against him in his criminal prosecution for bank robbery **(Choice A)**. Nor can the prosecution require her to do so.

(Choice D) The spousal-communications privilege allows either spouse to refuse to disclose or prevent the other from disclosing confidential communications—not mere observations (eg, noticing a spouse's clothing). But the wife need not testify if she asserts the spousal-immunity privilege.

Educational objective:

The spousal-*communications* privilege protects confidential communications during the marriage from disclosure in a civil or criminal case. In contrast, the spousal-*immunity* privilege protects persons from being required to testify against their spouse in a criminal case about events that occurred before or during the marriage.

References

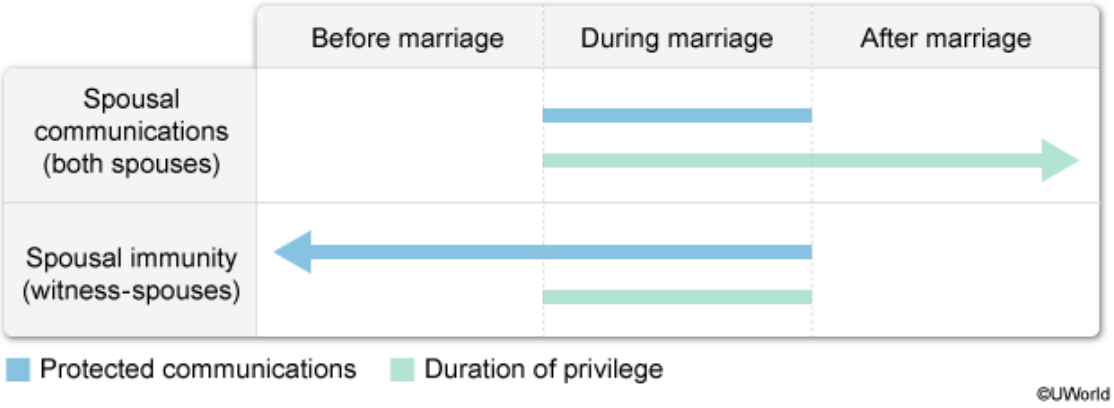
Trammel v. United States, 445 U.S. 40, 53 (1980) (vesting spousal-immunity privilege in the witness-spouse).

Fed. R. Evid. 501 (privileges).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Spousal communications v. Spousal immunity



©UWorld

A man was charged with the sale of narcotics. The federal prosecutor arranged with the man's wife for her to testify against her husband in exchange for leniency in her case. At trial, the prosecution calls the wife, who had been granted immunity from prosecution, to testify, among other things, that she saw her husband sell an ounce of heroin.

Which of the following statements is most clearly correct in federal courts?

A. The wife can be called as a witness but cannot testify, over her husband's objection, that she saw him sell heroin.
B. The wife can be required to be a witness and to testify that she saw her husband sell heroin.
C. The wife can refuse to be a witness against her husband.
D. The wife cannot be called as a witness over her husband's objection.

Explanation:

Spousal privileges

	Purpose	Privilege holder	Duration
Spousal-immunity	Shields witness-spouse from testifying against spouse in criminal case about matters that occurred before or during marriage	Witness-spouse	Only during active marriage
Marital-communications	Protects against disclosure of confidential spousal communications made during marriage in criminal & civil cases	Both spouses	Continues after divorce

Two common law privileges apply to **spousal testimony** in federal courts:

Marital-communications privilege – protects confidential communications between spouses during the marriage from disclosure in a civil or criminal case, even after the marriage has ended

Spousal-immunity (ie, spousal-testimonial) privilege – protects persons in an active marriage from **testifying against** their **spouse** in a **criminal case** about any matters that occurred before or during the marriage

Both spouses hold the marital-communications privilege, so one spouse can prevent the other from testifying to a confidential marital communication. But since the **witness-spouse** is the sole holder of the spousal-immunity privilege, the witness-spouse can choose whether to testify—even over the defendant-spouse's objection **(Choice D)**. Therefore, the correct statement is that the wife can refuse to be a witness against her husband in this criminal case **(Choices A & B)**.

Educational objective:

The marital-communications privilege protects confidential communications during the marriage from disclosure in a civil or criminal case. In contrast, the spousal-immunity privilege protects persons from being required to testify against their spouse in a criminal case about events that occurred before or during the marriage.

References

Fed. R. Evid. 501 (privileges).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for tax evasion. The prosecutor, seeking to establish the defendant's income by showing his expenditures, has asked the defendant's attorney to produce records showing only how much the defendant had paid his attorney in fees.

Should the demand for the attorney's fee records be upheld?

A. No, because the records are protected by the attorney work-product doctrine.

B. No, because the records are protected by the attorney-client privilege.

C. Yes, because it calls for relevant information not within the attorney-client privilege.

D. Yes, because the attorney-client privilege cannot be invoked to conceal evidence of a crime.

Explanation:

Attorney-client privileged communications

(FRE 502)

Privileged	Any communication between attorney & client: made to obtain or provide legal assistance for client *and* intended to be & kept confidential
Not privileged	Purely factual information Client's identity (generally) Existence of attorney-client relationship Client's legal fees & other incidentals Attorney's fee records Business advice or opinions

FRE = Federal Rule of Evidence.

Attorney-client communications are privileged if they are (1) made for the purpose of obtaining or providing legal assistance for the client and (2) intended to be and kept confidential. As a result, communications that are **merely incidental** to providing **legal assistance** (eg, attorney's fee records) are ***not* privileged (Choice B)**. These nonprivileged communications are therefore subject to disclosure, discovery, and admission in a legal proceeding so long as they are relevant to the case.

Here, the attorney's fee records are not privileged because they are merely incidental to the attorney's representation. And since they are relevant to the defendant's personal income and expenditures in this tax-evasion case, the demand for the attorney's fee records should be upheld.

(Choice A) The attorney work-product doctrine protects materials prepared by an attorney or client in anticipation of litigation—eg, attorney's impressions, opinions, or research. But the amount a client paid his attorney for legal representation is outside the protection of this doctrine.

(Choice D) The attorney-client privilege *can* be invoked to conceal confidential communications regarding a past (not ongoing or planned) crime or fraud. But this privilege does not apply to records regarding attorney fees.

Educational objective:

Attorney-client communications are privileged if (1) made for the purpose of obtaining or providing legal assistance for the client and (2) intended to be and kept

confidential. Communications that are merely incidental to the client's legal representation do not fall within this privilege.

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man was charged with embezzling a large sum of money from a company account and consulted with an attorney. After the attorney agreed to take the case, her legal assistant called the man to discuss a fee arrangement and asked the man to make a large payment to place into escrow, which he did. The attorney then retained a forensic accountant to review financial statements released by the prosecution during discovery. In doing so, the forensic accountant met with the man and privately discussed the statements in the attorney's office.

The prosecution subpoenaed both the legal assistant and the forensic accountant to testify at trial. Each has refused to answer any questions concerning their respective conversations with the man, citing the attorney-client privilege.

The prosecution has moved for an order requiring testimony from both the legal assistant and the forensic accountant.

How should the court rule on the prosecution's motion?

A. Deny the motion as to both witnesses.

B. Grant the motion as to the forensic accountant but deny it as to the legal assistant.

C. Grant the motion as to the legal assistant but deny it as to the forensic accountant.

D. Grant the motion as to both witnesses.

Explanation:

The **attorney-client privilege** protects **communications** that are:

made for the purpose of obtaining or providing **legal assistance** for the client *and*

intended to be (and kept) **confidential**.

This privilege **extends to the attorney's agents** (eg, consultant, legal assistant) but does not protect communications that are **merely incidental** to legal representation (eg, communications about legal fees).

Here, the forensic accountant was hired to help with the man's legal representation and therefore qualifies as the attorney's agent. Since his private conversation with the man about the financial statements released during discovery was essential to the man's legal representation, the conversation is protected by this privilege. The court should therefore *deny* the prosecution's motion seeking testimony from the forensic accountant **(Choices B & D)**.

The attorney's legal assistant also qualifies as the attorney's agent. But since her presumably private conversation with the man only concerned the attorney's fees, it was merely incidental to the man's legal representation. The court should therefore *grant* the prosecution's motion seeking testimony from the legal assistant **(Choice A)**.

Educational objective:

The attorney-client privilege protects communications made for the purpose of obtaining or providing legal advice or representation that are intended to be (and kept) confidential. This privilege extends to the attorney's agents but does not protect communications that are merely incidental to legal representation.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © UWorld. All rights reserved.


Communications covered by attorney-client privilege
Attorney
PRIVILEGE
Attorney's Assistant
Attorney's Consultant
Client (privilege holder)

©UWorld

A defendant has been charged with sexual exploitation of children after several images depicting the defendant's young daughter engaged in sexual conduct were found on a flash drive in his garage. The defendant has pleaded not guilty, claiming that the flash drive belonged to someone else.

At the jury trial in federal district court, the prosecutor seeks to call the defendant's wife, the child's stepmother, to testify that the defendant privately told her that he was likely "going away for a long time for what he did" and that "it would be best for protective services to remove their child from the home immediately." The wife has agreed to testify but the defendant has objected, citing spousal privilege.

Is the wife's proposed testimony admissible?

A. No, because the spousal-immunity privilege may be asserted by the defendant-spouse.

B. No, because the statements made by the defendant to his wife are protected under the marital-communications privilege.

C. Yes, because a defendant cannot assert spousal privilege when charged with a crime against a child of either spouse.

D. Yes, because the marital-communications privilege is held only by the witness-spouse.

Explanation:

Spousal privileges

	Spousal-immunity	**Marital-communications**
Purpose	Shields witness-spouse from testifying against spouse in criminal case about matters that occurred before or during marriage	Protects against disclosure of confidential spousal communications made during marriage in criminal & civil cases
Privilege holder	Witness-spouse	Both spouses
Duration	Only during active marriage	Continues after divorce
Exceptions	Not applicable when spouse is (1) suing other spouse or (2) accused of crime against other spouse or child of either	

Two common-law privileges apply to **spousal testimony** in federal court:

Spousal-immunity (ie, spousal-testimonial) privilege – protects persons in an active marriage from testifying against their spouse in a criminal case about any matters that occurred before or during the marriage

Marital-communications (ie, spousal-communications) privilege – protects confidential communications between spouses during the marriage from disclosure in a civil or criminal case, even after the marriage has ended

The spousal-immunity privilege is held only by the witness-spouse, so the defendant here cannot assert this privilege to prevent his wife from testifying against him **(Choice A)**. Conversely, the marital-communications privilege is held by *both* spouses. Therefore, one spouse generally can use it to prevent the other from testifying to a confidential marital communication—eg, the defendant's private statements to the wife **(Choice D)**.

However, **neither privilege applies** when one **spouse is charged** with a **crime against** the other **spouse or a child of either spouse**—including stepchildren. Since the defendant here has been accused of committing a crime against his own child, he cannot use the marital-communications privilege to prevent the wife from disclosing his confidential statements related to that crime **(Choice B)**.* Therefore, the wife's proposed testimony is admissible.

*Similarly, the wife cannot assert the spousal-immunity privilege to avoid testifying against the defendant in this case.

Educational objective:

Spousal privileges do not apply in federal cases where one spouse is charged with a crime against the other spouse or a child of either spouse—including stepchildren.

References

Fed. R. Evid. 501 (applicability of common-law privileges).

Copyright © UWorld. All rights reserved.

A patient sued a doctor for medical malpractice for allegedly prescribing an incorrect medication, causing the patient to undergo substantial hospitalization. When the doctor learned of the medication problem, she immediately offered to pay the patient's hospital expenses. At trial, the patient offers evidence of the doctor's offer to pay the costs of his hospitalization.

Is evidence of the doctor's offer admissible?

A. No, because it is an offer to compromise.

B. No, because it is an offer to pay medical expenses.

C. Yes, although hearsay, as a statement against interest.

D. Yes, as a nonhearsay statement of a party.

Explanation:

Offer of compromise v. Offer to pay medical expenses

	Admissibility	**Rationale**
Offer of compromise (FRE 408)	Inadmissible to: prove/disprove validity of disputed claim *or* impeach party through prior inconsistent statement or contradiction	Settlement of disputes
Offer to pay medical expenses (FRE 409)	Always inadmissible to prove liability for injury	Assistance to injured persons

FRE = Federal Rule of Evidence

Public policy encourages assistance of injured persons. As a result, Federal Rule of Evidence 409 renders evidence that a party has paid or **offered to pay medical**, hospital, or similar expenses **inadmissible** to prove **liability for an injury**. Therefore, evidence of the doctor's offer to pay the patient's hospital costs cannot be admitted for this purpose.

(Choice A) The doctor did not make a compromise offer because her statement was not intended to avoid or end a claim asserted against her. But even if she had, the offer would only be inadmissible to (1) prove or disprove the validity or amount of the claim or (2) impeach her by an inconsistent statement or contradiction if there was an actual dispute between the parties when she made the offer.

(Choice C) Statements against interest—eg, statements that exposes the declarant to civil liability—are excepted from the hearsay rule when the declarant is unavailable as a witness. Since there is no indication that the doctor is unavailable, this hearsay exception does not apply. Additionally, no hearsay exception is necessary here since the doctor's statement was made by a party-opponent.

(Choice D) Out-of-court statements made by a party-opponent and offered against that party are excluded from the rule against hearsay (ie, are nonhearsay). But since the doctor's statement here was an offer to pay the patient's hospital expenses, it is inadmissible despite being nonhearsay.

Educational objective:

Evidence that a party paid or offered to pay medical, hospital, or similar expenses is inadmissible to prove liability for an injury.

References

Fed. R. Evid. 409 (offers to pay medical expenses).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant in connection with the dissolution of a partnership they had formed to run a parcel delivery service. They had relied on a business attorney in establishing the business. After the business failed, the plaintiff and the defendant disagreed about their respective obligations.

At trial, both have hired new counsel. The plaintiff calls the business attorney to testify to representations the defendant made in meetings she had with the plaintiff and the business attorney. The defendant objects to the business attorney's testimony, invoking the attorney-client privilege.

Should the court uphold the defendant's privilege claim?

A. No, because the business attorney's professional relationship with the plaintiff and the defendant has ended.

B. No, because the plaintiff and the defendant consulted the business attorney jointly.

C. Yes, because either the plaintiff or the defendant may block disclosure of statements made during such meetings.

D. Yes, because either the plaintiff or the defendant may claim the privilege on behalf of the partnership.

Explanation:

Common exceptions to attorney-client privilege

Exception	Use of attorney-client communication	Disclosure compelled by
Crime-fraud	Made to further ongoing or future crime/fraud	Party seeking to discover information about crime/fraud
Deceased client	Resolves dispute over deceased client's testamentary intent	Attorney
Self-defense	Used to defend against client's malpractice or ethical claim against attorney	Attorney
Fiduciary	Constitutes legal advice between corporate fiduciaries & corporation's attorney	Stockholders
Joint representation	Made during attorney's prior representation of joint clients	Any joint client in subsequent litigation between joint clients

The **attorney-client privilege** bars the disclosure of communications between an attorney and client that were:

made for the purpose of obtaining or providing legal assistance for the client *and*

intended to be and remained confidential.

This privilege continues even after the attorney-client relationship ends or the client dies—with limited exceptions **(Choice A)**. One such **exception** allows an attorney to disclose confidential communications with **jointly represented clients** in **subsequent litigation between those clients**.

Here, the plaintiff and the defendant *jointly* consulted the business attorney, so the attorney can testify to representations made during those consultations in this subsequent suit between the parties. As a result, the court should reject the defendant's privilege claim.

(Choice C) Jointly represented individuals may block disclosure of statements made during meetings with their attorney *except* when those communications are relevant to a subsequent action between them (as seen here).

(Choice D) The attorney was hired to help the parties establish their business—not to represent the partnership. Therefore, no attorney-client privilege exists between the partnership and the attorney.

Educational objective:

Attorney-client communications are privileged when (1) made to obtain or provide legal assistance for the client and (2) intended to be and kept confidential. But an attorney may disclose communications with jointly represented clients in subsequent litigation between those clients.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for unlawfully using the plaintiff's idea for an animal robot as a character in the defendant's science fiction movie. The defendant admitted that he had received a model of an animal robot from the plaintiff, but he denied that it had any substantial similarity to the movie character. After the model had been returned to the plaintiff, she destroyed it.

If the plaintiff seeks to testify to the model's appearance, what must she do prior to testifying?

A. The plaintiff must give advance notice of her intent to introduce the oral testimony.

B. The plaintiff must introduce a photograph of the model if one exists.

C. The plaintiff must show that she did not destroy the model in bad faith.

D. The plaintiff need do nothing because the "best evidence rule" applies only to writings, recordings, and photographs.

Explanation:

Best evidence rule

(FRE 1002–04)

Original (or reliable duplicate) of writing, recording, or photograph must be produced to prove its content *unless*:

all originals lost or destroyed by means other than proponent acting in bad faith
original cannot be obtained by judicial process
nonproponent had control of original & notice that original was required at trial or hearing, but failed to produce it
writing, recording, or photograph not closely related to controlling issue
FRE = Federal Rules of Evidence.

The **best evidence rule** generally requires that an original or reliable duplicate of a **recording, writing, or photograph** (collectively referred to as "document") be produced to **prove its contents**. As a result, this rule only applies when a document's contents are at issue—ie, when:

the document is used to prove the happening of an event (eg, video of bank robbery)

the document has a legal effect (eg, audiotape of oral contract) *or*

the witness is testifying based on facts learned from the document (eg, x-ray image), as opposed to personal knowledge (ie, knowledge based on firsthand observations or experience).

Here, the plaintiff seeks to testify to her personal knowledge of the model's appearance—not to prove the contents of a recording, writing, or photograph. Therefore, the best evidence rule does not apply. And since a witness can testify to any relevant matter of which the witness has personal knowledge—and personal knowledge can be established by the witness's own testimony (or other means)—the plaintiff need not do anything prior to testifying.

(Choice A) A party need not provide advance notice of his/her intent to orally testify.

(Choice B) The plaintiff would have needed to introduce a photograph of the model or a reliable duplicate to testify to the model's appearance if the plaintiff learned of the model's appearance through a photograph (not seen here).

(Choice C) The plaintiff need not show that she did not destroy the model in bad faith. Instead, she need do nothing because the best evidence rule applies only to writings,

recordings, and photographs—not to the plaintiff's testimony about her personal knowledge of the model's appearance.

Educational objective:

The best evidence rule applies only when the contents of a recording, writing, or photograph are at issue—not when a witness is testifying based on personal knowledge.

References

Fed. R. Evid. 1002-04 (best evidence rule).

Fed. R. Evid. 602 (personal knowledge requirement).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant over title to land on a riverbank. Changes in the water level over time were important to the plaintiff's case.

For 15 years, a commercial fisherman had kept a daily log of the water level at his dock on the riverbank opposite the land in order to forecast fishing conditions. The plaintiff hired a draftsman to graph the data from the fisherman's logs for use as a trial exhibit.

At trial, the fisherman testified to the care with which he had made the measurements and recorded them in his logs, which had been made available for the defendant's inspection. The draftsman then testified to the manner in which he had prepared the graphs.

With this foundation, are the graphs admissible?

A. No, because they are hearsay not within any exception.

B. No, because they violate the "best evidence" rule.

C. Yes, as summaries of voluminous business records.

D. Yes, as the draftsman's expert opinion of the water levels.

Explanation:

Summaries to prove content

(FRE 1006)

Proponent of writings, recordings, or photographs may use summary, chart, or calculation to prove contents if proponent establishes:

originals are voluminous & cannot be conveniently examined in court
originals would be admissible
originals or duplicates were made available for other parties to examine/copy *and*
summary is fair & accurate
FRE = Federal Rule of Evidence.

A party may offer a **summary** (or chart or calculation) to **prove the contents** of voluminous writings, recordings, or photographs if a **proper foundation** for admitting the summary is laid. This requires the summary's proponent to **establish** that:

the **originals are voluminous** and cannot be conveniently examined in court (eg, 15 years of daily logs)
the originals would be **admissible** (eg, the fisherman's logs are admissible business records)
the originals or duplicates were **made available** to all parties **to examine and copy*** (as seen here) *and*
the **summary** is **fair and accurate** (as established by the fisherman's and draftsman's testimony).
Therefore, the graphs of the data from the fisherman's voluminous logs are admissible with this foundation.

*The examination and copying must occur at a reasonable time and place OR at trial in response to a court order.

(Choice A) Although the fisherman's daily logs are out-of-court writings that implicate the hearsay rule, they would be admissible under the business records hearsay exception. And the graphs summarizing this voluminous business data are also admissible because the proper foundation has been laid.

(Choice B) The "best evidence" rule requires that an original writing, recording, or photograph be produced in order to prove its contents. But summaries of voluminous information are excepted from this rule so long as the originals are made available for inspection to all parties (as seen here).

(Choice D) Expert testimony from a qualified person with specialized knowledge is admissible if that testimony is relevant to the litigated issue. But here, there is no indication

that the draftsman is an expert on measuring water levels merely because he graphed data from the fisherman's logs for use as a trial exhibit.

Educational objective:

The foundation for admitting a summary, chart, or calculation of voluminous content is laid when the proponent shows that (1) the voluminous content cannot be conveniently examined in court, (2) the originals would be admissible, (3) the content was made available to all parties, and (4) the summary is fair and accurate.

References

Fed. R. Evid. 1006 (summaries to prove content).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A pro se defendant was charged with mail fraud. The defendant pleaded guilty and was sentenced to three years in prison. In response to the sentence, the defendant stated that he had been induced to plead guilty after the prosecutor assured him that the judge would only impose a three-month sentence and a small fine. After hearing evidence on the issue, the judge set aside the judgment and allowed the defendant to withdraw the guilty plea. At trial, the defendant testified to his innocence. The prosecution now seeks to introduce a certified copy of the guilty plea in which the defendant admitted to mail fraud.

Is the certified copy of the guilty plea admissible?

A. No, because the guilty plea was withdrawn.

B. No, because the privilege against self-incrimination bars the admission of a prior incriminating statement.

C. Yes, because a certified guilty plea is a self-authenticating public record.

D. Yes, to impeach the defendant with a prior inconsistent statement.

Explanation:

Pleas, plea discussions & related statements

(FRE 410)

General rule	The following are *not* admissible against Δ in civil or criminal case: Withdrawn guilty pleas Nolo contendere (ie, no contest) pleas Statements made during proceeding on above pleas Statements made during plea discussions with prosecutor
Exceptions	Statement during same plea discussions is introduced & both statements should in fairness be considered Criminal proceeding for perjury or false statement if Δ's statement under oath, on record & with counsel

FRE = Federal Rule of Evidence; **Δ** = Defendant.

In civil and criminal cases, statements made during **settlement and plea negotiations** are generally **inadmissible against the defendant** who participated in the negotiations or made the plea. This **includes guilty pleas** that are **later withdrawn**, since admitting the guilty plea would effectively nullify the order permitting withdrawal. Therefore, the certified copy of the guilty plea at issue here is *not* admissible against the defendant.

(Choice B) The Fifth Amendment privilege against self-incrimination allows a witness (here, the defendant) to refuse to give testimony that tends to incriminate him/herself. But this is not a basis for excluding the certified guilty plea because the privilege, when invoked, only applies to current (not prior) statements.

(Choice C) Tangible evidence (eg, documents) must generally be authenticated through extrinsic evidence that shows the thing is what the proponent claims it to be before it can be admitted. And though certain evidence (eg, certified copies of public records) is self-authenticating and does not require such proof, that evidence can still be excluded on other grounds (as seen here).

(Choice D) The rule excluding statements made during plea negotiations applies even when such statements are offered for impeachment purposes. Therefore, the prosecutor cannot introduce the certified copy of the guilty plea to impeach the defendant's testimony at trial.

Educational objective:

Evidence of statements made during settlement or plea negotiations is generally inadmissible against a defendant. This includes a guilty plea that is later withdrawn.

References

Fed. R. Evid. 410(a)(1) (evidence of withdrawn guilty plea is inadmissible against defendant).

Copyright © UWorld. All rights reserved.

A defendant is on trial for the crime of obstructing justice by concealing records that were subpoenaed in a government investigation. The government calls the defendant's attorney to testify that after concealing the records, the defendant contacted the attorney and asked him how to comply with the regulations regarding the transfer of records to a safe-deposit box in Mexico.

Is the attorney's testimony privileged?

A. No, provided the attorney knew the advice was sought for an illegal purpose.

B. No, whether or not the attorney knew the advice was sought for an illegal purpose.

C. Yes, because an attorney is required to keep the confidences of his clients.

D. Yes, because it relates to conduct outside the jurisdiction of the United States.

Explanation:

Common exceptions to attorney-client privilege

Exception	Use of attorney-client communication	Disclosure compelled by
Crime-fraud	Made to further ongoing or future crime/fraud	Party seeking to discover information about crime/fraud
Deceased client	Resolves dispute over deceased client's testamentary intent	Attorney
Self-defense	Used to defend against client's malpractice or ethical claim against attorney	Attorney
Fiduciary	Constitutes legal advice between corporate fiduciaries & corporation's attorney	Stockholders
Joint representation	Made during attorney's prior representation of joint clients	Any joint client in subsequent litigation between joint clients

Communications between an **attorney and client** are **privileged** and protected from disclosure, discovery, or admission in a legal proceeding if they were:

made to **obtain or provide legal assistance** for the client *and*

intended to be and kept **confidential**.

The client holds this privilege, and the attorney cannot disclose (eg, testify to) the confidential communication unless the client waives the privilege. However, when a client **seeks legal assistance in furtherance of** an **ongoing or future crime** or fraud, this privilege does not apply.

Here, the defendant is charged with obstructing justice by willfully concealing subpoenaed records. She asked her attorney how to transfer the records to a safe-deposit box in Mexico in furtherance of that *ongoing* crime. Therefore, the attorney's testimony regarding his communication with the defendant is not privileged—whether or not the attorney knew the assistance was sought for the illegal purpose of concealing the records **(Choice A)**.

(Choice C) An attorney is required to keep communications with the client confidential, but not when the crime-fraud exception applies.

(Choice D) The attorney's testimony relates to conduct *within* the jurisdiction of the United States—ie, the defendant's inquiry on how to comply with transfer regulations.

Educational objective:

Confidential attorney-client communications are privileged and therefore protected from disclosure, discovery, or admission. However, this protection does not apply if the client was seeking legal advice in furtherance of an ongoing or future crime or fraud.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a defendant for damages for physical injuries allegedly caused by the defendant's violation of the federal civil rights law. The incident occurred wholly within State A, but the case was tried in federal court. The State A code says, "The common law privileges are preserved intact in this state."

At trial, the defendant called the plaintiff's physician to testify to confidential statements made to her by the plaintiff in furtherance of his medical treatment for the injuries allegedly caused by the defendant. The plaintiff objects, claiming a physician-patient privilege.

What law applies here and how should the court rule on the plaintiff's privilege claim?

A. Federal law applies and the court should recognize the plaintiff's claim of privilege.

B. Federal law applies and the court should reject the plaintiff's claim of privilege.

C. State law applies and the court should recognize the plaintiff's claim of privilege.

D. State law applies and the court should reject the claim of privilege.

Explanation:

Common-law privileges

Attorney-client	Communications between attorney & client made to obtain or provide legal assistance for client
	Client holds privilege forever—even after client is no longer represented or dies
Work product	Materials prepared by or for attorney in preparation for litigation
Spousal	Marital communications – communications between spouses *during* marriage
	Both spouses hold privilege—even after marriage has ended
	Spousal immunity – shields spouse from testifying against criminal defendant-spouse about events that occurred *before or during* marriage
	Witness-spouse holds privilege until marriage ends
Psychotherapist-patient	Communications between psychotherapist (or clinical social worker) & patient made for diagnosis or treatment for mental or emotional condition
	Patient holds privilege & psychotherapist must assert in patient's absence
Religious	Communications between clergy member & penitent
	Penitent holds privilege & clergy member must assert in penitent's absence

*Federal courts apply common law privileges except in diversity cases where state rules apply.

When a claim **arises under federal law** (eg, a federal civil rights law), federal law applies to both substantive and procedural issues. As a result, the court should only recognize the plaintiff's claim of privilege if it involves a federal common law privilege **(Choices C & D)**. And since there is **no physician-patient privilege** under federal law, the court should reject the plaintiff's claim of privilege **(Choice A)**.

Educational objective:

Federal rules of privilege apply to claims arising under federal law. However, the physician-patient privilege is not recognized under federal law.

References

Fed. R. Evid. 501 (federal common law privilege).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At the start of the trial of a defendant and a codefendant for robbery, the codefendant and her attorney offered to give the prosecutor information about facts that would strengthen the prosecutor's case against the defendant in exchange for leniency toward the codefendant. The prosecutor refused the offer. Shortly thereafter, the codefendant committed suicide.

During the defendant's trial, the prosecutor called the codefendant's attorney and asked him to relate the information that the codefendant had revealed to the attorney.

Is the attorney's testimony admissible?

A. No, because the codefendant's communications are protected by the attorney-client privilege.

B. No, because the plea discussion was initiated by the codefendant rather than by the prosecutor.

C. Yes, because the codefendant intended to disclose the information.

D. Yes, because the information the codefendant gave to her attorney revealing her knowledge of the crime would be a statement against the codefendant's penal interest.

Explanation:

Common law privileges protect confidential communications from disclosure, discovery, or admission in federal legal proceedings.* One such privilege applies to **attorney-client communications** that are (1) made for the purpose of obtaining or providing **legal assistance** for the client and (2) intended to be and **kept confidential**.

As the holder of the attorney-client privilege, the client can refuse to disclose confidential communications to third parties and prevent the attorney from doing so. The privilege **remains in effect even after** the attorney-client **relationship terminates** or the **client dies** (as seen here). However, the client may **waive the privilege** by:

voluntarily disclosing the information **to a third party**
voluntarily giving up the privilege (eg, contractually)
failing to timely claim the privilege (eg, after inadvertent disclosure) *or*
failing to object to another's disclosure of confidential information (eg, at trial).

Here, the codefendant shared facts about the robbery with her attorney. That communication was protected by the attorney-client privilege because it was made to obtain legal assistance and was, at least initially, intended to be kept confidential. And though the codefendant offered those facts to the prosecutor during a plea discussion, she did not *actually* disclose them. Her mere offer—regardless of who initiated the discussion—did not waive the privilege, so the attorney's testimony about those facts is inadmissible **(Choices B & C)**.

*Federal courts apply common law privileges except in diversity cases, where state privilege rules apply.

(Choice D) A statement against interest is not barred by the rule against hearsay when the declarant is unavailable (eg, deceased). Here, the deceased codefendant's information was likely against her penal interest because it revealed her knowledge of the crime. But it remains barred by the attorney-client privilege.

Educational objective:

Attorney-client communications are privileged when (1) made to obtain or provide legal assistance for the client and (2) intended to be and kept confidential. Merely offering to share the privileged information does not waive the privilege.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Waiving attorney-client privilege

By voluntarily waiving privilege

Discloses to third party



Client 3rd Party

Gives up privilege



Client

By failing to assert privilege

Inadvertent disclosure



Another's disclosure



← Previous

A plaintiff sued a defendant for breach of contract, alleging that the defendant violated the terms of an employment contract between the parties. At trial, without offering the contract or accounting for its absence, the plaintiff seeks to admit an oral statement that the defendant made to an acquaintance in which the defendant recited the terms of the contract.

The defendant has objected to the oral statement on the ground that it violates the best evidence rule.

Should the court admit the defendant's oral statement?

A. No, because a statement by a party-opponent cannot serve as a basis to prove the content of a writing.

B. No, because the plaintiff did not account for the contract's absence.

C. Yes, because the best evidence rule is not implicated.

D. Yes, because the contract's terms can be proved by the defendant's statement.

Explanation:

Overview of best evidence rule

General rule

Must produce original or reliable duplicate* to prove contents of document relied on by witness or whose contents are at issue

Exceptions

Original unavailable	Other evidence can be used to prove content if: originals lost or destroyed (not by proponent's bad faith) originals not attainable by judicial process opponent had original, knew it was required & failed to produce *or* content not closely related to controlling issue
Admission by party	Contents can be proven by opposing party's testimony, deposition, or written statement
Public record	Contents of public record can be proven by: certified copy copy of records & comparison testimony *or* other evidence if above proof is not reasonably obtainable

*Duplicates are admissible unless original's authenticity is questioned or it would be unfair to admit them.

The **best evidence rule** (ie, original document rule) generally requires that an **original or reliable duplicate** of a **recording, writing, or photograph** (referred to as "document") be produced **to prove its content**. The rule is implicated when the content of a document is at issue—such as when the document has a legal effect (eg, contracts, wills) **(Choice C)**. One exception to this rule allows a party to use other evidence to prove the document's content upon proving that all originals are lost, destroyed, or otherwise unattainable (not seen here).

Another **exception** allows a party to **prove a document's content** through the **testimony**, **deposition**, **or written statement** of a **party-opponent** without accounting for the original document's absence **(Choice A)**. However, a party-opponent's **oral statement** that was **made outside** the context of **testimony or deposition** does *not* fall within this exception. As a result, the proponent must first account for the document's absence before the proponent may use the statement to prove the document's content.

Here, the plaintiff sought to admit the defendant's oral statement that recited the terms of the contract, but that statement was made outside the context of testimony or deposition. Therefore, it does not fall under the exception allowing use of a party-opponent's statement to prove the content of a document **(Choice D)**. And since the plaintiff did not account for the contract's absence, the court should not admit the defendant's oral statement.

Educational objective:

An exception to the best evidence rule allows a party to prove a document's content through the testimony, deposition, or written statement of a party-opponent without accounting for the original document's absence. But an oral statement that occurred outside the context of testimony or deposition does not fall under this exception.

References

Fed. R. Evid. 1002–07 (best evidence rule).

Copyright © UWorld. All rights reserved.

A defendant has been charged with tax evasion. The government alleges that the defendant created numerous sham trusts to hide his income and, over the course of several years, made thousands of wire transfers to those trusts. During discovery, the government produced a summary of the wire transfer statements and notified the defendant of its intent to introduce the summary to prove the contents of the statements. The government also made the authenticated wire transfer statements available for inspection at its office.

At trial, the government called the investigating IRS agent to testify. After laying a proper foundation, the government sought to introduce the summary of the wire transfer statements as substantive evidence of the defendant's tax evasion. The defendant has objected to its introduction.

Should the court admit the summary?

A. No, because the summary cannot be admitted as substantive evidence.

B. No, because the wire transfer statements must be produced in court.

C. Yes, because the government made the original wire transfer statements available before trial.

D. Yes, because the summary is a business record.

Explanation:

Summaries to prove content

(FRE 1006)

Proponent of writings, recordings, or photographs may use summary, chart, or calculation to prove contents if proponent establishes:

originals are voluminous & cannot be conveniently examined in court
originals would be admissible
originals or duplicates were made available for other parties to examine/copy *and*
summary is fair & accurate
FRE = Federal Rule of Evidence.

The **best evidence rule** (ie, original document rule) applies when a witness relies on a document's contents while testifying or when the contents of a document are at issue. This rule generally requires that an **original or reliable duplicate** of a recording, writing, or photograph (referred to as "document") be produced to ***prove its contents***.

However, under FRE 1006, a party may instead use a **summary**, **chart, or calculation** to prove the content of documents that are **too voluminous** to be conveniently examined in court. The proponent must make the **originals or duplicates available** to other parties **for examination, copying**, or both, at a reasonable time and place. But **originals or duplicates need not be produced** in court **unless ordered** by the court **(Choice B)**.

Since FRE 1006 summaries are **admitted substantively** in lieu of the underlying voluminous documents, the underlying documents (not the summary) must be admissible—eg, under the hearsay exception for business records **(Choice A)**.

Here, the government sought to introduce a summary of the defendant's voluminous wire transfer statements and, after providing the defendant a copy of the summary, made the originals available for inspection before trial. The government was not ordered to produce the statements in court, so the requirements of FRE 1006 were satisfied. And since the statements qualify as business records, the court should admit the summary as substantive evidence of the defendant's tax evasion.

(Choice D) The summary is not a business record because it was created in anticipation of trial—not as a regular practice in the course of regular business activities. However, the summary derives its admissibility as substantive evidence from the fact that the wire transfer statements are business records.

Educational objective:

A summary, chart, or calculation may be used to prove the contents of the documents it summarizes if the contents are too voluminous to be conveniently examined in court. The originals or duplicates must be made available to an adverse party for examination or copying, but they need not be produced in court unless ordered by the court.

References

Fed. R. Evid. 1006 (summaries).

Copyright © UWorld. All rights reserved.

In a suit against the defendant, the plaintiff sought to subpoena an audiotape on which the defendant had narrated his version of the dispute for his attorney. Counsel for the defendant moves to quash the subpoena on the ground of privilege.

In which of the following circumstances is the audiotape most likely to be subject to subpoena?

A. The defendant has been deposed and there is good reason to believe that the audiotape may contain inconsistent statements.
B. The defendant is deceased and thus unavailable to give testimony in person.
C. The defendant played the audiotape for his father to get his reactions.
D. The lawsuit involved alleged criminal behavior by the defendant.

Explanation:

Waiving attorney-client privilege

Waiver	Only client can waive privilege by:
	voluntarily disclosing information to third party
	voluntarily giving up privilege (eg, contractually)
	failing to timely claim privilege (eg, after inadvertent disclosure)
	failing to object to another's disclosure of confidential information
No waiver	Privilege *not* waived by:
	client's death
	termination of attorney-client relationship

A subpoena can be quashed if it requests information protected from disclosure by a privilege. For example, the **attorney-client privilege** protects **communications** that are (1) made for the purpose of obtaining or providing **legal assistance** for the client *and* (2) intended to be and kept **confidential**. This privilege remains intact *unless* the **client waives** it—eg, by **voluntarily disclosing** the information to a third party.

Here, the defendant's audiotaped version of the dispute is privileged because he gave it to his attorney to obtain legal advice and presumably intended that it be kept confidential. But the defendant would waive this privilege if he voluntarily played the audiotape for his father, thereby disclosing its contents to a third party. And in such circumstances, the audiotape would likely be subject to subpoena.

(Choice A) Good reason to believe that an item might contain statements inconsistent with a witness's sworn testimony is not a basis to overcome a valid claim of privilege.

(Choice B) A defendant's availability has no impact on the ability to subpoena privileged information. Therefore, the defendant's audiotaped narration remains privileged even after his death.

(Choice D) Attorney-client communications made to further an *ongoing* or *future* crime are not privileged. But here, the lawsuit concerns a *past* dispute. So even if the lawsuit involved the defendant's alleged criminal behavior, his audiotaped narration of that dispute for his attorney is privileged.

Educational objective:

The attorney-client privilege protects communications made to obtain or provide legal assistance for the client when they are intended to be and kept confidential. But a client can waive the privilege by voluntarily disclosing protected information to a third party.

References

Fed. R. Evid. 501 (federal common law privileges).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

The plaintiff sued a company for injuries suffered in the crash of the plaintiff's dune buggy, allegedly caused by a defective auto part manufactured by the company. The company claims that the part was a fraudulent imitation, not produced by the company.

Which of the following is NOT admissible on the issue of whether the part was manufactured by the company?

A. A judgment for another plaintiff against the company in another case involving substantially similar facts.
B. Testimony that the part was purchased from a parts house to which the company regularly sold parts.
C. The fact that the defective part bears the company's insignia or trademark.
D. The part itself and a concededly genuine part manufactured by the company for the jury's comparison.

Explanation:

Evidence is relevant if it has any tendency to make a material fact more or less probable than it would be without that evidence. **Relevant evidence** is **admissible** unless excluded by a rule, law, or constitutional provision. For example, Federal Rule of Evidence 403 allows a court to **exclude** relevant evidence when its **probative value** is **substantially outweighed** by the **danger** of:

unfair prejudice – evidence tends to encourage the jury to decide the case on improper grounds

confusing the issues – evidence leads the jury to focus on a nonmaterial matter

misleading the jury – evidence creates misconceptions in the jurors' minds

undue delay or wasting time – caused by presentation of voluminous evidence *or*

needless cumulation – similar evidence on the same issue has already been admitted.

Here, another plaintiff's judgment against the company is not probative of whether the company manufactured the part at issue in *this* case. Even if it was, the other judgment may mislead the jury or unfairly prejudice the company by encouraging the jury to decide the present case on improper grounds (ie, a prior ruling). This danger would substantially outweigh the minimal probative value of this evidence, so it is NOT admissible.

(Choices B & C) Testimony that the defective part was purchased from a parts house to which the company regularly sold parts is highly probative on the issue of whether the part was manufactured by the company—as is the fact that the part bears the company's insignia or trademark. Therefore, this evidence is admissible.

(Choice D) The jury or an expert witness may compare an item that has been authenticated (eg, the genuine part) with a disputed specimen (eg, the defective part) to determine if the disputed specimen is also genuine. Therefore, the defective and genuine parts are admissible for this purpose.

Educational objective:

Evidence is relevant if it has any tendency to make a material fact more or less probable than it would be without that evidence. Although relevant evidence is generally admissible, it can be excluded if its probative value is substantially outweighed by dangers like misleading the jury or unfair prejudice.

References

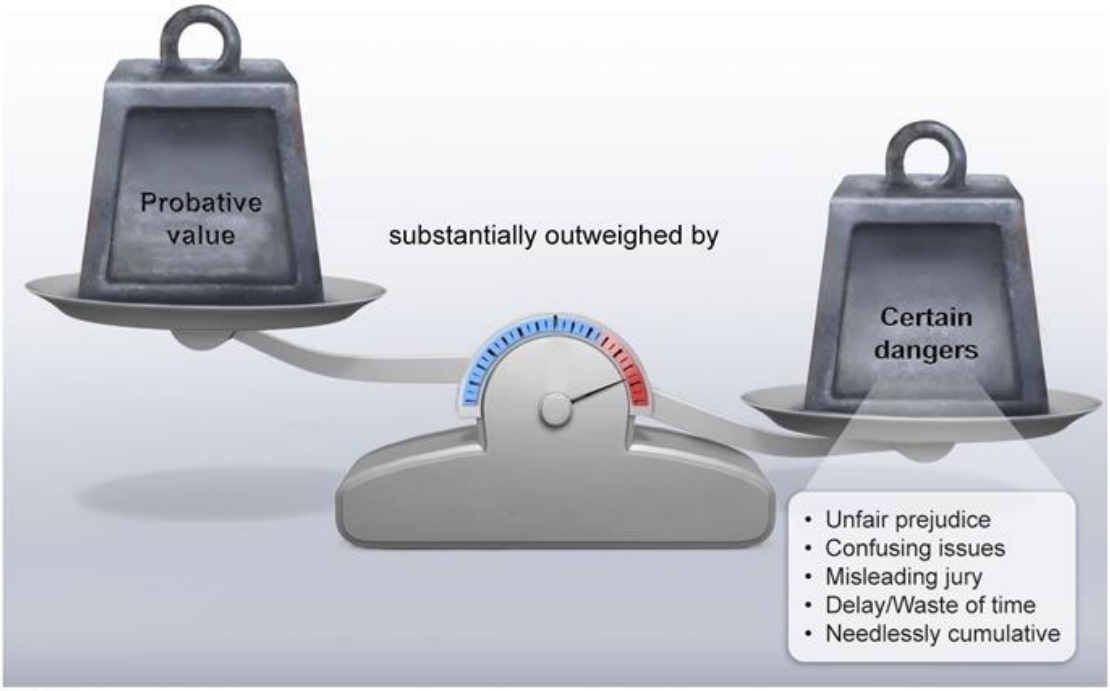
Fed. R. Evid. 401 (test for relevance).

Fed. R. Evid. 403 (excluding relevant evidence for certain dangers)

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

A plaintiff sued a police officer for false arrest. The officer's defense was that, based on a description he heard over the police radio, he reasonably believed the plaintiff was an armed robber. The police radio dispatcher, reading from a note, had broadcast the description of an armed robber on which the officer claims to have relied.

The officer offers as evidence: his testimony relating the description he heard; the dispatcher's testimony relating the description she read over the radio; and the note containing the description the dispatcher testifies she read over the radio.

Which are admissible on the issue of what description the officer heard?

A. The dispatcher's testimony and the note only.

B. The officer's testimony and the dispatcher's testimony only.

C. The officer's testimony and the note only.

D. The officer's testimony, the dispatcher's testimony, and the note.

Explanation:

False arrest occurs when a person is held in custody without a valid warrant or probable cause. As a result, any evidence that would tend to make the existence of probable cause—and any other material fact—more or less probable is relevant. **Relevant evidence** is **admissible *unless*** it is **excluded** by a constitutional provision, law, or rule—including the **rule against hearsay**. That rule bars the admission of out-of-court statements offered to prove the truth of the matter asserted. But it **does not bar** out-of-court statements offered for a **different purpose**—eg:

to prove that a statement was ***made***

to identify a statement's ***contents***—but not to prove its truth—*or*

to show a statement's ***effect*** on the person who heard it.

Here, the officer offered three items of evidence—(1) his testimony to the description he heard broadcast over the radio shortly before the plaintiff's arrest, (2) the police radio dispatcher's testimony to what she said during that broadcast, and (3) the dispatcher's authenticated written note from which she read the armed robber's description. These items would be inadmissible hearsay if offered to prove the truth of the matter asserted therein—ie, that the person described was the armed robber.

But the dispatcher's testimony and the note are admissible to prove that the statements were *made* and to prove their *contents*. And the officer's testimony is admissible to show the description's *effect* on him—ie, that it caused him to *believe* that the plaintiff was the robber. Therefore, the officer's testimony, the dispatcher's testimony, and the note are all admissible to prove that the officer reasonably believed the plaintiff was the armed robber **(Choices A, B & C)**.

Educational objective:

Testimony to what a witness heard is generally inadmissible hearsay if offered for the truth of the matter asserted. But such testimony may be admissible for other purposes—eg, to show that a statement was made or affected another.

References

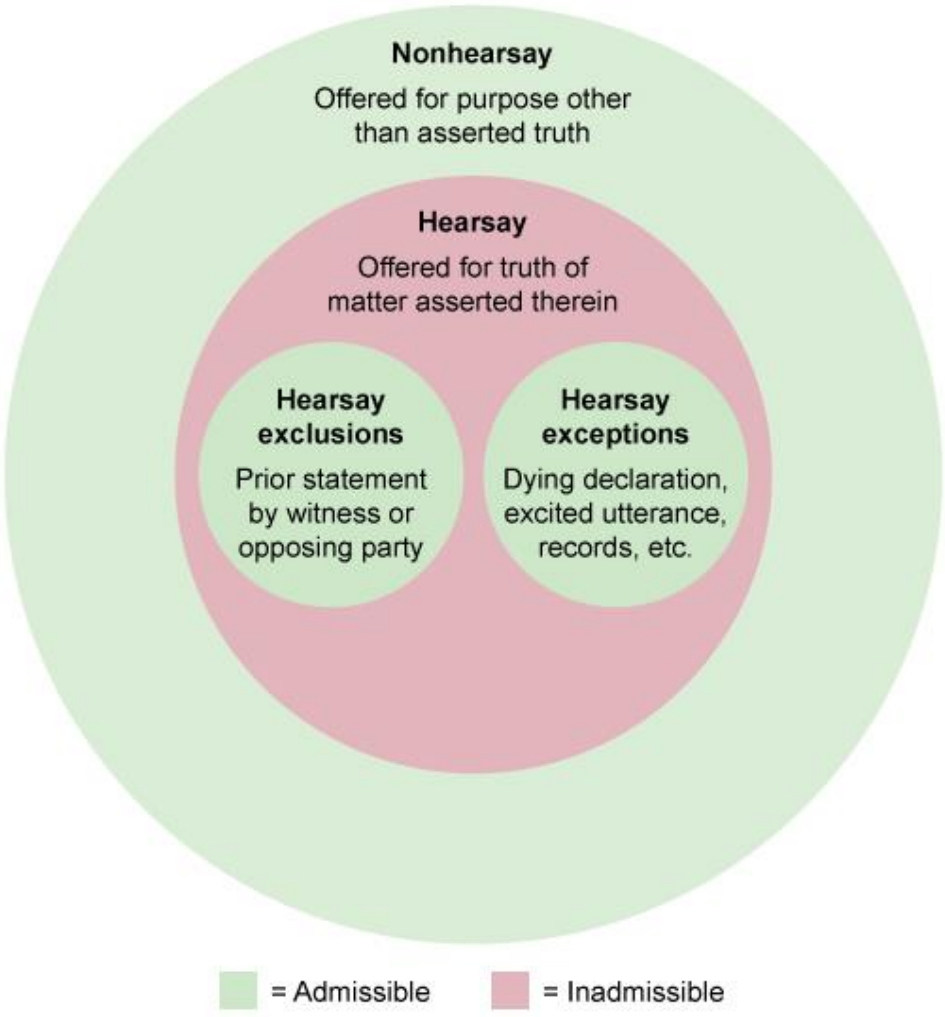
Fed. R. Evid. 401 (test for relevant evidence).

Fed. R. Evid. 801 (exclusions from hearsay).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of out-of-court statements



©UWorld

A plaintiff, the owner of a condominium building, sued a defendant, a young architect, in federal court. The plaintiff alleged that the defendant was negligent in designing the plaintiff's building and that defects in the building's structural design rendered it unsafe and uninhabitable. At trial, the plaintiff called a structural engineer as an expert witness and asked her several questions about her education and experience. The court found that the engineer was qualified to testify as an expert and permitted her to offer an opinion on the soundness of the building's design. On cross-examination, the defendant asked the engineer if it was true that she had failed three engineering classes while in graduate school. The plaintiff has objected to the question.

Should the court allow the defendant's question?

A. No, because the court already decided that the engineer is an expert.

B. No, because the engineer's character has not been placed in issue.

C. Yes, because a party may inquire into specific instances of conduct that bear on a witness's truthfulness during cross-examination.

D. Yes, because it goes to the weight to be given to the engineer's testimony.

Explanation:

Under Federal Rule of Evidence 104, the court must decide if a witness is qualified to testify as an expert. To make this decision, the court considers the witness's specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue being litigated. A **finding that a witness** is **qualified as an expert** typically means that the witness **may offer an opinion on an ultimate issue**. But such a finding **does not preclude** the **opposing party from inquiring** into matters that might **affect the weight** given to the witness's testimony.

Here, the court found that the engineer was qualified as an expert and allowed her to testify as to the soundness of the building's design—an ultimate issue in the case. However, that finding does not preclude the defendant from inquiring into matters that might affect the weight of the engineer's testimony. Therefore, the court should allow the defendant to ask the engineer about failing three engineering classes in graduate school—a matter that may diminish the weight given to the engineer's testimony **(Choice A)**.

(Choices B & C) The engineer's character for truthfulness was placed in issue when the plaintiff called the engineer as a witness. However, the defendant's question pertained to the weight to be given to the engineer's testimony—not her character for truthfulness.

Educational objective:

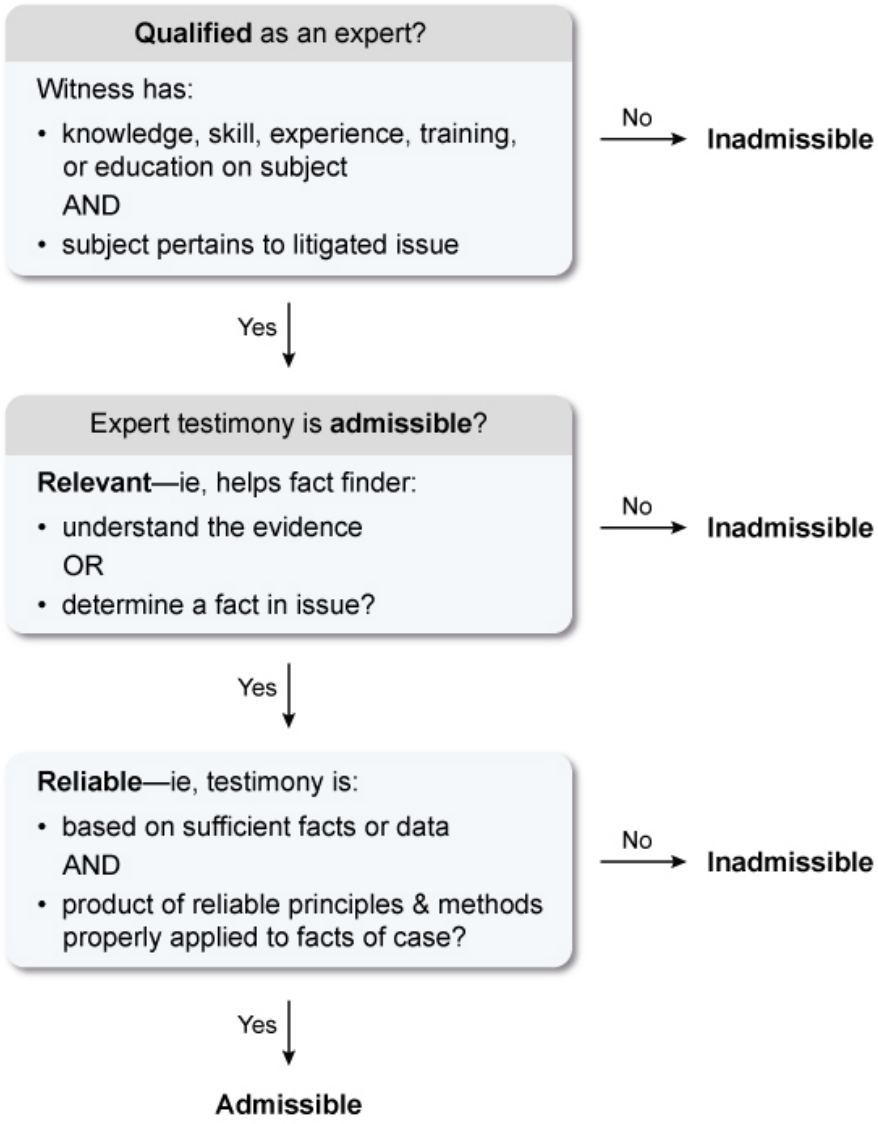
A court must determine whether a witness is qualified to testify as an expert. But a finding that the witness meets the requirements for expert testimony does not preclude the opposing party from inquiring into matters that might affect the weight of the witness's testimony.

References

Fed. R. Evid. 104 (preliminary questions).

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A building owner sued a company that manufactures and sells water filtration systems, alleging that a defect in a system purchased by the building owner caused extensive flooding in his building. In preparation for trial, the building owner hired a photographer to take photographs of the water filtration system and the damage caused by the flooding. At trial, the photographer testified about the film used for the photographs and where it was sent to be developed. The building owner then moved to admit prints of the photographs into evidence. The company has objected to the introduction of the prints.

Which of the following provides the best basis for the judge to sustain the company's objection?

A. The building owner did not lay a proper foundation for the admission of the prints.
B. The building owner hired an amateur photographer instead of an expert.
C. The photographer could not establish chain of custody for the development of the prints.
D. The prints of the photographs violate the best evidence rule.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

Tangible evidence (eg, a photograph) must be authenticated before it can be admitted into evidence. Authentication requires a prima facie showing that the object is what the proponent claims it to be. A **photograph** is authenticated by having a **witness with personal knowledge** of the thing depicted **testify** that the photograph **fairly and accurately depicts** that thing.

Here, the building owner sought to introduce prints of photographs depicting the water filtration system and the damage caused by the flooding in his building. But the building owner failed to elicit testimony from someone with personal knowledge that the prints fairly and accurately depicted the filtration system and the resulting damage. Therefore, no proper foundation was laid, and the judge will most likely sustain the company's objection on this basis.

(Choice B) Photographs need not be taken by an expert or professional photographer to be admissible. Therefore, this would not be a basis for sustaining the company's objection.

(Choice C) Chain of custody must be used to authenticate physical evidence—eg, gun, knife, blood sample—that could easily be tampered with or is not readily identifiable. Since photographs can be readily identified by someone who has personal knowledge of the thing depicted, chain-of-custody authentication is unnecessary.

(Choice D) The best evidence rule generally requires that an original be produced to prove the contents of a writing, recording, or photograph. An original photograph includes the negative and any prints made from it (as seen here).

*The best evidence rule is unlikely to have been implicated here since there is no indication that the building owner was relying solely on the photographs to prove that the flood occurred.

Educational objective:

A photograph is authenticated when a witness with personal knowledge of the thing depicted testifies that the photograph fairly and accurately depicts that thing.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © UWorld. All rights reserved.

A defendant was charged with fraud for allegedly making false statements to obtain federal workers' compensation benefits. At trial, the prosecution sought to introduce an application for benefits in which the prosecution alleged that the defendant had lied about his ability to work. The defendant objected, arguing that the prosecution could not authenticate the signature on the document as his and therefore could not link the document to him. In response, the prosecution called a Department of Labor employee who was assigned to work on the defendant's file. The employee testified that after receiving a telephone inquiry from a person using the defendant's name, she mailed a letter to the defendant's home address containing instructions on how to apply for benefits. She then testified that, a week later, the application for benefits offered by the prosecution arrived by mail at her office.

Should the court admit the application?

A. No, because it is hearsay not within any exception.

B. No, because the prosecution failed to lay a proper foundation for the application.

C. Yes, because it has been properly authenticated.

D. Yes, because it is a statement of the defendant's then-existing physical condition.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

Documentary and other tangible evidence is admissible provided the party seeking admission authenticates the evidence. One method of authenticating documentary evidence is to establish that the document qualifies as a **reply letter**. This is accomplished by showing that:

the document was written in **response to** an **earlier communication** *and*

the contents make it **unlikely** that the response was **written by someone other than** the **recipient** of the earlier communication.

This method of authentication stems from the general rule that an item's distinctive characteristics—taken together with other relevant circumstances—are sufficient to prove that the item is what the proponent claims it to be.

Here, the prosecution seeks to introduce an application purportedly submitted by the defendant. The prosecution has shown that the application was completed in response to an earlier letter sent by a Department of Labor employee to the defendant's address. The contents of the application and the circumstances surrounding its submission make it unlikely to have been written by someone other than the defendant. Therefore, the application qualifies as a reply letter. Since a proper foundation was laid, the court should admit the application **(Choice B)**.

(Choice A) The application was authenticated as having been made by the defendant. As a result, it is excluded from the rule against hearsay as a statement of a party-opponent.

(Choice D) Statements concerning the declarant's then-existing state of mind (eg, motive, intent, plan) or emotional/physical condition (eg, mental feeling, pain, bodily health) are excepted from the rule against hearsay. But here, no exception is necessary since the application is a nonhearsay statement of a party-opponent.

Educational objective:

A document can be authenticated by establishing that it qualifies as a reply letter. To do so, the proponent must show that (1) the document was written in response to an earlier communication and (2) the contents make it unlikely that it was written by someone other than the recipient of the earlier communication.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © UWorld. All rights reserved.

A defendant has been charged with war crimes. The prosecution alleges that, before immigrating to the United States under an alias, the defendant was a high-ranking official in a brutal foreign regime. At trial, the prosecution seeks to introduce a diamond-encrusted pendant found among the defendant's possessions after his arrest. The prosecution claims that such pendants were only given to high-ranking officials of the regime.

The defendant has objected to the introduction of the pendant, arguing lack of authentication. In response, the prosecution has produced a pendant obtained from a human rights museum, which has been authenticated as formerly belonging to a general of the regime. The prosecution has requested that both pendants be conditionally admitted so that the jury can compare them.

Should the court admit the pendants?

A. No, because comparison of the pendants for authentication purposes must be done by an expert.

B. No, because the authenticity of physical evidence must be established by testimony of a witness with personal knowledge of the object.

C. Yes, because the jury may properly compare the pendants for authentication purposes.

D. Yes, provided the court is satisfied the pendants are of sufficient similarity to allow for jury comparison.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

A **physical object** must be **authenticated** before it can be admitted at trial. Authentication requires a prima facie showing that the object is what the proponent claims it to be. One method of authentication involves **comparing an object** that the proponent seeks to admit (defendant's pendant) **with** one that has been **authenticated as genuine** (museum's pendant). The comparison may be made by an expert *or* the trier of fact **(Choice A)**. Therefore, the court should admit both pendants so that the jury, as the trier of fact, can compare them.

(Choice B) An object can be authenticated by testimony from a witness with personal knowledge of the object, but this is not the only available method of authentication.

(Choice D) There is no requirement that the court be satisfied that the items are sufficiently similar before allowing the jury to compare them. However, as a practical matter, the items will often bear strong similarities.

Educational objective:

A physical object may be authenticated by comparison to another that has been authenticated as genuine. Such a comparison may be made by either an expert or the trier of fact.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © UWorld. All rights reserved.

A plaintiff has brought a products liability action against a defendant, the manufacturer of a sport-utility vehicle that the plaintiff's decedent was driving when she was fatally injured in a rollover accident.

The plaintiff claims that a design defect in the vehicle caused it to roll over. The defendant claims that the cause of the accident was the decedent's driving at excessive speed during an ice storm. Eyewitnesses to the accident have given contradictory estimates about the vehicle's speed just before the rollover. It is also disputed whether the decedent was killed instantly.

Which of the following items of offered evidence is the court most likely to admit?

A. A videotape offered by the defendant of a test conducted by the defendant showing that a sport-utility vehicle of the same model the decedent was driving did not roll over when driven by a professional driver on a dry test track at the top speed testified to by the eyewitnesses.

B. A videotape offered by the plaintiff of a television news program about sport-utility vehicles that includes footage of accident scenes in which the vehicles had rolled over.

C. Evidence offered by the defendant that the decedent had received two citations for speeding in the previous three years.

D. Photographs taken at the accident scene and during the autopsy that would help the plaintiff's medical expert explain to the jury why she concluded that the decedent did not die instantly.

Explanation:

Dangers to weigh against probative value

(FRE 403 balancing test)

Unfair prejudice	Evidence tends to encourage jury to decide case on improper grounds
Confusing the issues	Evidence leads jury to focus on nonmaterial matter
Misleading the jury	Evidence creates misconceptions in jurors' minds
Undue delay/wasting time	Presenting evidence will cause unnecessary delay or waste time
Needless cumulation	Similar evidence on same issue has already been admitted

FRE = Federal Rule of Evidence.

Demonstrative evidence includes videos, photographs, models, and other devices used to explain a fact at issue in a case. The **admissibility** of such evidence is governed by the **balancing test** set forth in Federal Rule of Evidence 403. Under this rule, a demonstration is **inadmissible** if its **probative value** is **substantially outweighed** by the danger of unfair prejudice, confusion, misleading the jury, undue delay, wasting time, or needless cumulation.

Whether the decedent was killed instantly in the accident is a material fact in dispute, so photographs that would help a medical expert explain why she concluded that the decedent did not die instantly would be highly probative. The photographs may unfairly prejudice the defendant since they were taken at the accident scene and autopsy, but not enough to substantially outweigh their high probative value. Therefore, the court is mostly likely to admit this evidence.

(Choice A) Demonstrative evidence is admissible to prove how an accident happened if the test conditions were substantially similar to the incident at issue. But a test conducted on a dry track with a professional driver *differs* from the icy conditions the decedent faced.

(Choice B) A videotape of sport-utility vehicles with scenes of rollover accidents has little probative value because there is no indication that those vehicles and accidents are similar to the case at hand. Therefore, it is likely that the videotape's probative value is substantially outweighed by its danger of unfair prejudice and confusion.

(Choice C) In civil cases, evidence of a person's character (eg, speeding citations) is inadmissible to prove that the person acted in accordance with that character on the occasion at issue *unless* character is an essential element of a claim or defense. But safe driving is not an essential element of this products liability claim.

Educational objective:

Demonstrative evidence is inadmissible if its probative value is substantially outweighed by the danger of unfair prejudice, confusion, misleading the jury, undue delay, wasting time, or needless cumulation of evidence.

References

Fed. R. Evid. 401 (test for relevant evidence).

Fed. R. Evid. 403 (excluding relevant evidence for certain dangers).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man sued his neighbor for damage to an expensive in-ground sprinkler system caused by the neighbor's large dogs. At trial, the man testified that the neighbor's dogs broke through the fence separating his and the neighbor's properties and, while in his backyard, dug up and destroyed the sprinkler system. Wanting the jury to understand the full extent of the damage, the man sought to introduce a photograph of his backyard that was taken by his wife.

Should the court admit the photograph of the man's backyard?

A. No, because, in light of the man's testimony, the photograph is needlessly cumulative.

B. No, because only the man's wife can properly authenticate the photograph.

C. Yes, because the photograph is relevant evidence of the damage to the man's backyard.

D. Yes, provided that the man properly authenticates the photograph.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

Tangible evidence must be **authenticated** before it can be admitted at trial. This requires a prima facie showing that the object is what the proponent claims it to be. A **photograph** is authenticated by having a witness with personal knowledge—ie, knowledge based on firsthand observation or experience—of the thing depicted testify that the photograph **fairly and accurately depicts** that thing.

Here, the man and his wife both have personal knowledge of the condition of the backyard. The court should therefore admit the photograph, provided that the man properly authenticates it by testifying, or having his wife testify, that the photograph fairly and accurately depicts his backyard after the damage.

(Choice A) Under FRE 403, a court may exclude relevant evidence if it is needlessly cumulative—ie, if the evidence is unnecessarily duplicative or repetitious. Here, although the man testified about the damage to his backyard, the photograph is not needlessly

cumulative. That is because photographs are commonly admitted to illustrate witness testimony and the man is only seeking to introduce one photograph.

(Choice B) There is no requirement that the person who took the photograph (here, the man's wife) testify for the purpose of authentication. Instead, a photograph can be authenticated by *any witness* with the requisite personal knowledge.

(Choice C) The photograph *is* relevant evidence of the damage to the man's backyard. But even if tangible evidence is relevant, it still must be properly authenticated before it can be introduced into evidence.

Educational objective:

A photograph is authenticated by having a witness with personal knowledge of the thing depicted testify that the photograph fairly and accurately depicts that thing.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © UWorld. All rights reserved.

A defendant has been charged with robbery. At trial, the prosecutor called a police detective who testified that her investigation led her to believe that the defendant committed the robbery. On cross-examination, the defendant's attorney questioned the detective about irregularities in her investigative methods, which the detective acknowledged. Before the defendant's attorney could ask another question, the detective volunteered that she felt confident that the defendant was guilty because his sister, who was unavailable to testify, told numerous people in the community that the defendant committed the robbery.

The defendant's attorney objected and moved to strike the detective's volunteered testimony. The objection was sustained, the testimony was stricken from the record, and the jury was instructed to disregard the testimony. The defendant's attorney, reasonably concerned that the jury would not be able to disregard the prejudicial statement, now seeks to call the sister's neighbor to testify that he heard that the sister actually told numerous people in the community that another person, and not the defendant, committed the robbery.

Is the neighbor's testimony likely admissible?

A. No, because the detective's testimony cannot be rebutted with hearsay evidence.

B. No, because the jury was instructed to disregard the detective's volunteered testimony.

C. Yes, because the defendant may offer similar evidence to cure the prejudice caused by the detective's volunteered testimony.

D. Yes, because the neighbor's testimony reports the sister's prior identification of the robber.

Explanation:

Under the rule against hearsay, an out-of-court statement offered to prove the truth of the matter asserted therein is inadmissible unless an exclusion or exception applies. One hearsay exclusion applies when a declarant testifies and is subject to cross-examination about a prior statement that identified someone the declarant had perceived earlier. But this exclusion does not apply to the neighbor's testimony because the sister is unavailable to testify and her statement did not identify anyone she had perceived earlier **(Choice D)**.

However, the neighbor's testimony may still be admissible under the **doctrine of curative admissibility**. Under this doctrine, **otherwise inadmissible evidence** (neighbor's hearsay testimony) may be admitted to **rebut** prejudicial evidence that has already been **improperly admitted** (detective's volunteered testimony). But this remedy is only available when:

the prejudicial evidence was improperly admitted through **no fault of the party prejudiced** by the evidence (here, the detective *volunteered* her testimony)

the prejudiced party **objected to and moved to strike** the prejudicial evidence (as the defendant's attorney did here) *and*

an **instruction to disregard** that evidence is **insufficient** to **remedy the prejudice** caused by its admission (here, such an instruction is likely insufficient because the detective's testimony reporting that the defendant's *own sister* accused him of robbery is highly prejudicial) **(Choice B)**.*

However, this prejudice could be cured by allowing the defendant to rebut the detective's testimony with similar evidence—the neighbor's testimony that the sister had reported that another person, not the defendant, committed the robbery. Therefore, the neighbor's testimony, though hearsay, is likely admissible under the doctrine of curative admissibility.

*Curative admissibility provides a middle ground between an instruction to disregard and a mistrial. This promotes judicial efficiency by avoiding the time and cost of a new trial or appeal.

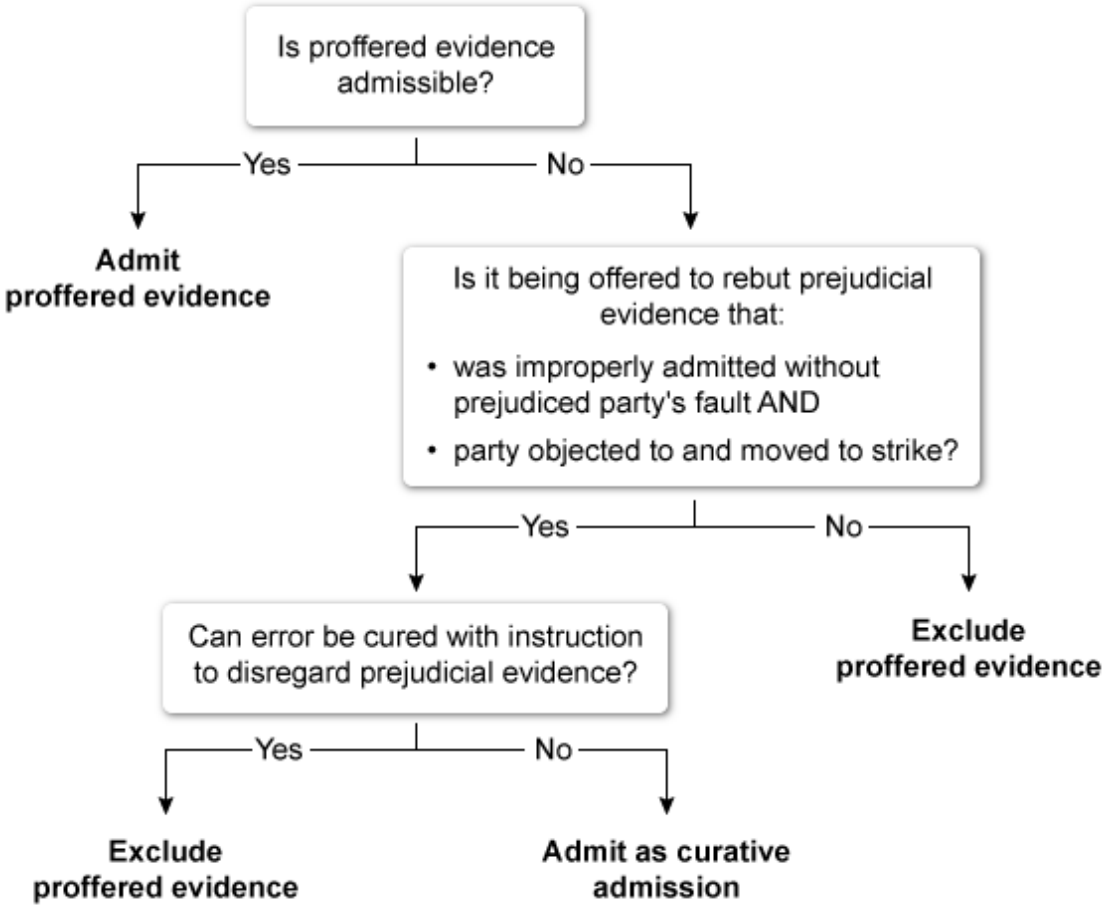
(Choice A) The detective's testimony *can* be rebutted with the neighbor's hearsay testimony under the doctrine of curative admissibility.

Educational objective:

The doctrine of curative admissibility allows otherwise inadmissible evidence to be admitted to rebut prejudicial evidence when (1) the evidence was improperly admitted through no fault of the prejudiced party, (2) that party objected to and moved to strike the evidence, and (3) an instruction to disregard cannot remedy the prejudice.

Copyright © UWorld. All rights reserved.

Doctrine of curative admissibility



©UWorld

After a fire destroyed her home, a plaintiff sued the insurance company that insured the home for the proceeds of her policy. The company claimed that the policy had lapsed.

At trial, the plaintiff admits that she failed to make a timely premium payment; however, she cites a policy provision that required the company to give her notice that it had not received the premium by a specified date and testifies that she never received such a notice. The company then calls its chief billing clerk, who is prepared to testify that, because of the plaintiff's unusual name, the clerk remembers preparing the plaintiff's notice and placing it in the "out" box on his desk, and that an employee from the company's mailroom daily picks up all mail from office "out" boxes and places it in a U.S. mail deposit box.

How should the court rule on the admissibility of the billing clerk's testimony?

A. It is admissible only if the company produces corroborative evidence, such as a mailing checklist.

B. It is admissible without more, because it is evidence of the routine practice of a business.

C. It is inadmissible, because evidence of the mailroom employee's general practice does not prove the particular mailing.

D. It is inadmissible, because the billing clerk lacks personal knowledge of the actual mailing.

Explanation:

Evidence of a person's habit or an **organization's routine practice** (eg, sending daily mail) is **admissible to prove** that the person or organization **acted in accordance** with that habit or practice on a particular occasion (eg, mailed plaintiff's notice of nonpayment) **(Choice C)**. Both habit and routine practice can be proven by evidence of:

specific instances of conduct that tend to show a regular response to a specific, recurring situation *or*

opinion testimony of a witness with **personal knowledge** of the habit or routine practice.*

This evidence is admissible regardless of whether it is corroborated (eg, by a mailing checklist) or an eyewitness was present on the particular occasion **(Choice A)**.

Here, the billing clerk testified to placing the plaintiff's notice in the "out" box on his desk. And he had personal knowledge of the mailroom's daily process for picking up mail from "out" boxes and placing it in a U.S. mail deposit box. Therefore, the clerk's testimony is admissible without more as evidence of the company's routine business practice.

*The proponent of habit or routine practice evidence has the burden of establishing that the habit or practice is inflexibly regular by demonstrating an adequate and representative sample.

(Choice D) The billing clerk need only have personal knowledge of the company's routine mailing practice—not the actual mailing of the plaintiff's notice—for his testimony to be admissible.

Educational objective:

Evidence of a person's habit or an organization's routine business practice is admissible to prove that the person or organization acted in accordance with that habit or practice on a particular occasion—even if the evidence is not corroborated and no eyewitness was present on that occasion.

References

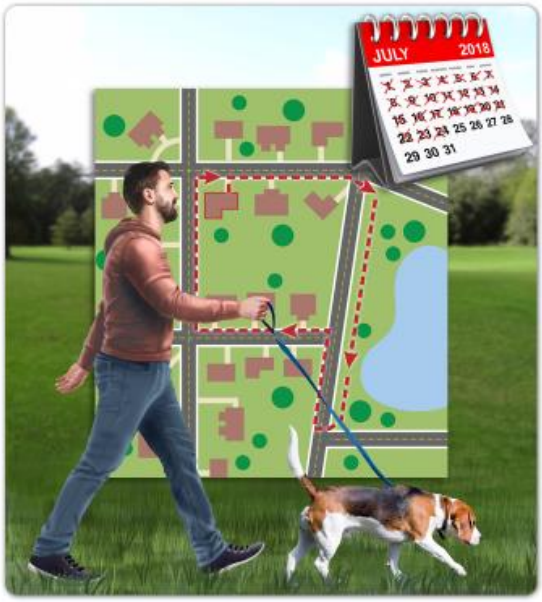
Fed. R. Evid. 406 (habit and routine practice).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Proving typical response to recurring situation
(FRE 406)

Person's habit



Business's routine practice



FRE = Federal Rule of Evidence

©UWorld

A plaintiff sued a defendant for damages for back injuries received in a car wreck. The defendant disputed the damages and sought to prove that the plaintiff's disability, if any, resulted from a childhood horseback riding accident. The plaintiff admitted the childhood accident but contended it had no lasting effect.

The plaintiff calls an orthopedist who had never examined the plaintiff and poses to the orthopedist a hypothetical question as to the cause of the disability that omits any reference to the horseback riding accident. The question was not provided to opposing counsel before trial.

What is the best ground for objecting to this question?

A. Hypothetical questions are no longer permitted.
B. Sufficient notice of the hypothetical question was not given to opposing counsel before trial.
C. The hypothetical question omitted a clearly significant fact.
D. The orthopedist lacked firsthand knowledge concerning the plaintiff's condition.

Explanation:

Common uses of hypothetical questions

Party may pose hypothetical question to expert to:

allow expert to give opinion on facts not known to expert
challenge bases for expert's opinion
test expert's skill/credibility *or*
illustrate party's theory of case

An **expert witness** is one who possesses specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue in the litigation. A party may pose a **hypothetical question**—ie, one that asks the expert to assume certain facts to render an opinion—when examining an expert witness **(Choice A)**. This allows the expert to offer an opinion about facts of which the witness lacks firsthand knowledge **(Choice D)**.

However, hypothetical questions ***cannot* omit undisputed material facts** because an expert opinion lacks probative value when it was formed without all necessary facts. Therefore, the best ground for objecting to the plaintiff's hypothetical question is that it omitted a clearly significant undisputed fact—the plaintiff's horseback riding accident.

(Choice B) There is no requirement that a party (1) notify opposing counsel of its intention to ask an expert witness a hypothetical question or (2) provide that question to opposing counsel before trial.

Educational objective:

When examining an expert witness, a party may ask a hypothetical question so long as it includes any undisputed material facts.

References

Fed. R. Evid. 703 (bases of expert opinion testimony).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A factory worker is charged with criminal assault on his manager after losing money to the manager during a game of poker. The factory worker testified that he struck the manager while acting in self-defense. The state now seeks to call a witness to testify that, on two prior occasions, the witness saw the factory worker assault someone without provocation after a poker game and thereafter falsely claim self-defense.

Is the witness's testimony admissible?

A. No, because it is improper character evidence.

B. No, because it is not relevant.

C. Yes, as evidence of the factory worker's violent nature.

D. Yes, as evidence that the factory worker did not act in self-defense on this occasion.

Explanation:

Noncharacter purposes for admitting crime or bad act

(MIMIC)

Motive	To show purpose for committing charged crime
Intent	To establish guilty mind or negate good faith
Absence of Mistake	To negate mistake or accident & prove deliberate act
Identity	To connect defendant to crime with unique pattern of behavior (ie, criminal signature)
Common plan or scheme	To show preparation or planning
Other	To show knowledge of crime, opportunity to commit crime, consciousness of guilt, etc.

Evidence of prior **crimes or bad acts** is not admissible to prove a person's character by showing that the person acted in accordance with that character on a particular occasion **(Choice A)**. However, evidence of a prior crime or bad act is **admissible** for relevant, **noncharacter purposes**—eg, to establish a **pattern of operation or scheme**. Therefore, the witness's testimony that the factory worker had a pattern of assaulting people and then falsely claiming self-defense is admissible to show that he did not act in self-defense on this occasion.

(Choice B) The witness's testimony *is* relevant because it tends to make a material fact—ie, that the factory worker did not act in self-defense—more probable.

(Choice C) Evidence of a defendant's bad character (eg, violent nature) is not admissible to show that the defendant acted in accordance with that character on the occasion at issue. Therefore, the witness's testimony is *not* admissible to show the factory worker's violent nature—but it *is* admissible for the relevant, noncharacter purpose of establishing a pattern of operation or scheme.

Educational objective:

Evidence of prior crimes or bad acts is admissible for relevant, *noncharacter* purposes—eg, to show a pattern of operation or scheme.

References

Fed. R. Evid. 404(b) (crimes, wrongs, or other acts).

Copyright © UWorld. All rights reserved.

A man is charged with possession of heroin. The prosecution called as a witness an experienced dog trainer who testified that he was in the airport with a dog trained to detect heroin. As the man approached, the dog immediately became alert and pawed and barked frantically at the man's briefcase. The man managed to run outside and throw his briefcase into the river, from which it could not be recovered. After the witness's experience is established, he is asked to testify as an expert that the dog's reaction told him that the man's briefcase contained heroin.

Is the witness's testimony admissible?

A. No, because it is based on hearsay not within any exception.

B. No, because of the unreliability of the reactions of an animal.

C. Yes, as evidence of the man's guilt.

D. Yes, because an expert may rely on hearsay.

Explanation:

An **expert witness** is one who possesses specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue in litigation. Expert witness **testimony is admissible** for substantive purposes—ie, to help prove a material fact or issue—if it is both:

relevant – the testimony will **help the trier of fact** (1) understand the evidence OR (2) **determine a fact** in issue *and*

reliable – the testimony is (1) **based on sufficient facts** or data AND (2) the **product of reliable principles** and methods that the expert reliably applied to the facts of the case.

Here, the prosecution called an experienced dog trainer who seeks to testify that the dog's reaction to the man's briefcase told him that the briefcase contained heroin. This expert testimony would help the trier of fact determine the fact in issue—ie, whether the man possessed heroin—and is likely reliable based on his experience. Therefore, his testimony is admissible as substantive evidence of the man's guilt.

(Choices A & D) Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is inadmissible unless excluded or excepted from the hearsay rule. An expert *may* rely on inadmissible hearsay to form an opinion. But for a statement to constitute hearsay, the declarant must be a person—not a dog.

(Choice B) The reactions of trained animals (eg, drug-detection dogs) are commonly relied upon as a basis for expert testimony.

Educational objective:

Expert testimony is admissible as substantive evidence if it will help the trier of fact understand the evidence or determine a fact in issue (ie, relevant) AND is based on sufficient facts/data and the product of reliable principles/methods reliably applied by the expert (ie, reliable).

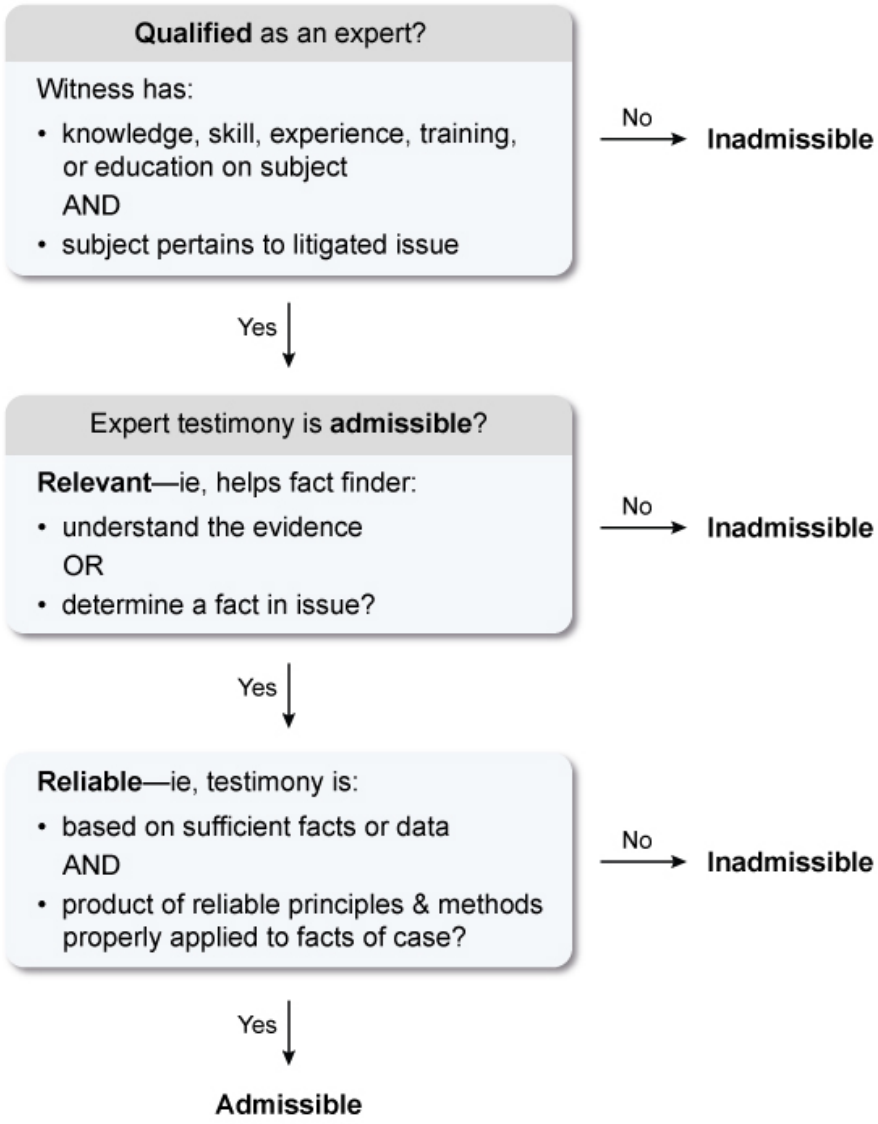
References

Fed. R. Evid. 702 (expert witness testimony).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

At a man's trial for public intoxication, the prosecutor offered a videotape of the man being booked into the city jail. The videotape showed the man hardly able to stand unassisted and badly slurring his words when responding to routine booking questions.

Should the court admit the videotape?

A. No, because the privilege against self-incrimination applies to the booking process.
B. No, because the videotape is overly prejudicial.
C. Yes, because the videotape contains statements by a party-opponent.
D. Yes, because the videotape is probative of the man's conduct.

Explanation:

Evidence is **relevant** if it has *any* tendency to make a material fact more or less probable than it would be without that evidence. Relevant evidence is admissible unless there is some other legal basis for excluding it. For example, under Federal Rule of Evidence 403, relevant evidence may be **excluded** if its **probative value** is **substantially outweighed** by the danger of **unfair prejudice**. This danger exists when the evidence would tend to **encourage the jury** to **decide** the case on **improper grounds** (eg, emotion).

Here, the man is being tried for public intoxication. The prosecutor has offered a videotape of the man exhibiting obvious signs of intoxication when he was booked into the city jail. That videotape is relevant and probative of the man's conduct since it tends to make it more probable that he was intoxicated when he was arrested. And since the videotape poses little danger of encouraging the jury to decide the case on improper grounds, it is not overly prejudicial **(Choice B)**. Therefore, the court should admit it.

(Choice A) Under the routine-booking exception, the Fifth Amendment privilege against self-incrimination does not apply to routine biographical questions asked by police while booking a suspect into jail. As a result, police may ask such questions without first issuing the suspect Miranda warnings.

(Choice C) An out-of-court statement made by and offered against a party-opponent is admissible as nonhearsay. Here, the videotape offered by the prosecution may contain nonhearsay statements made by and offered against the man. But this is inconsequential since there is no indication that the prosecutor has offered those statements for the truth of the matter asserted therein.

Educational objective:

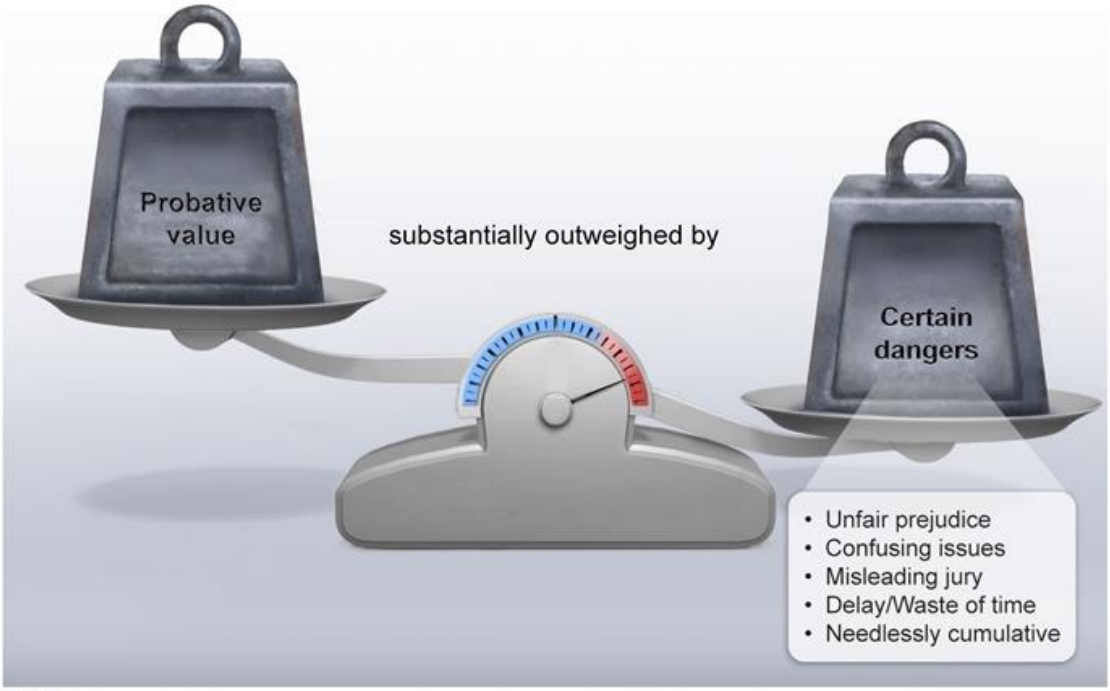
Otherwise relevant evidence may be excluded if its probative value is substantially outweighed by the danger of unfair prejudice. This danger exists when the evidence would tend to encourage the jury to decide the case on improper grounds.

References

Fed. R. Evid. 403 (excluding relevant evidence).

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

A defendant was tried on multiple counts of bank fraud for a scheme in which he allegedly made withdrawals from the bank accounts of others by using false identification cards and forging signatures on checks. A codefendant, who had assisted the defendant in 5 of the 75 transactions for which the defendant was being tried, testified that he was present and saw the defendant endorse 5 of the checks.

Thereafter, the prosecutor moved for admission of all 75 checks that the defendant had allegedly endorsed, arguing that a comparison by the jury of the signatures on the checks identified by the codefendant with those on the other 70 checks would demonstrate that they were all signed by the defendant.

Should the court permit the proposed comparison of the handwriting specimens by the jury?

A. No, because such a comparison may be done only by an expert.

B. No, because such a comparison may be done only by an expert or by a non-expert who can testify to the genuineness of the handwriting.

C. Yes, because the jurors are allowed to determine the genuineness of handwriting specimens based on comparison with authenticated specimens.

D. Yes, but only if the court first makes a preliminary finding of authenticity as to the other 70 checks.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

Documentary evidence (eg, letter, writing) must be **authenticated** before it can be admitted at trial. Authentication requires the proponent to produce sufficient evidence to support a finding that the thing is what the proponent claims it to be. Documentary evidence is commonly authenticated by stipulation, eyewitness testimony, or **handwriting verification**. There are **two methods** of verifying handwriting:

Non-expert opinion – a lay witness with personal knowledge of the claimed author's handwriting (not acquired for the current litigation) testifies as to whether a document is in the author's handwriting

Comparison – an expert witness or the trier of fact compares the writing in question with another writing that has been authenticated

Here, the first 5 checks were authenticated through the codefendant's lay testimony that he personally saw the defendant endorse them (non-expert-opinion method). This means that the *jurors*, as the triers of fact, can now determine the genuineness of the 70 remaining checks by comparing them with the 5 authenticated checks (comparison method) **(Choices A & B)**. The court should therefore permit the proposed comparison.

(Choice D) If some evidence is found to be genuine (ie, authenticated), the judge need not make a preliminary finding of authenticity as to the remainder. Instead, the jury or expert witness can make the determination.

Educational objective:

Documentary evidence can be authenticated by two methods of handwriting verification: (1) a lay witness with personal knowledge of the claimed author's handwriting testifies about it or (2) an expert witness or the trier of fact compares the writing in question with another authenticated writing.

References

Fed. R. Evid. 901 (authenticating/identifying evidence).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A famous author had a life insurance policy. Her son was the beneficiary. The author disappeared from her residence two years ago and has not been seen since. On the day that she disappeared, a plane headed to another country vanished. The plane's passenger list included a name similar to the author's.

The son is now suing the life insurance company for the proceeds of his mother's policy. At trial, the son offers to testify that his mother told him that she planned to write her next novel under a pen name identical to the name on the missing plane's passenger list.

Is the son's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because the author has not been missing more than seven years.

C. Yes, as a party admission, because the author and her son are in privity with each other.

D. Yes, as circumstantial evidence that the author was on the plane.

Explanation:

Evidence is only admissible if it is **relevant**—ie, tends to make a **material fact more or less probable**. Here, the son can only collect the proceeds of his mother's life insurance policy if she is proved dead. The son seeks to testify that his mother told him she planned to write her next novel under a pen name identical to a name on the missing plane's passenger list. This testimony provides circumstantial evidence that his mother was on the plane—making the material fact that she died more probable. Therefore, the testimony is relevant.

However, relevant evidence can still be **excluded** by other laws or evidentiary rules. One basis for exclusion raised in this question is the **hearsay rule**, which generally bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein. But the mother's out-of-court statement concerning her pen name is *not* hearsay since it is being used to prove that she was on the plane—not that she was going to use the name for her next novel (the matter asserted) **(Choice A)**. Therefore, the son's testimony is admissible.

(Choice B) In many jurisdictions, a person must be missing more than seven years to be *presumed* dead. But this would not preclude a party from introducing relevant evidence that the person is *actually* dead.

(Choice C) Party admissions—ie, statements made by or attributable to an opposing party and offered against that party—are excluded from the hearsay rule. Here, the mother's statement is not hearsay and would not fall under this exclusion if it were. That is because she is not a party to the son's lawsuit and there is no legal basis (privity or otherwise) for attributing her statement to him.

Educational objective:

Evidence is only admissible if it is relevant—ie, has some tendency to make a material fact more or less probable. But relevant evidence can still be excluded by other laws or evidentiary rules—eg, the hearsay rule barring the admission of out-of-court statements offered for the truth of the matter asserted therein.

References

Fed. R. Evid. 401 (test for relevant evidence).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Legal bases for excluding relevant evidence
(FRE 402)

U.S. Constitution
(eg, obtained illegally)



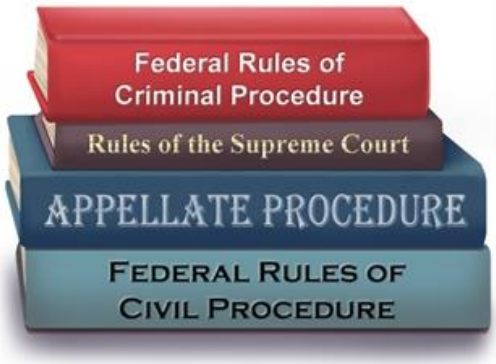
Federal statute
(eg, prohibited disclosure)



Federal Rules of Evidence
(eg, hearsay)



Other rules promulgated by
U.S. Supreme Court



FRE = Federal Rules of Evidence

A defendant has been charged with tax evasion. The prosecution alleged that the defendant failed to report income from all his rental properties on his tax returns. The defendant pleaded not guilty, claiming that he reported all his properties and the income each generated. At trial, the prosecutor seeks to introduce into evidence a copy of the state register of deeds listing the defendant as the owner of a house that was not included on his tax return. The copy is not signed, sealed, or certified. The defendant has objected to the admission of the state register of deeds on the ground that it has not been properly authenticated.

Should the court admit the register of deeds?

A. No, because it is hearsay not within any exception.

B. No, unless the prosecutor introduces evidence that the register was recorded or filed in a public office or that the register is from the office where items of that kind are kept.

C. Yes, because the register is self-authenticating despite not being signed, sealed, or certified.

D. Yes, provided the prosecutor offers testimony detailing the chain of custody for the register.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

Documentary evidence must be **authenticated** before it can be **admitted** into evidence. This requires that the proponent produce evidence sufficient to support a finding that the document is what the proponent claims it is. Public records that do not qualify for self-authentication (as seen here) may still be **authenticated through evidence that the document**:

was recorded or filed in a public office as authorized by law *or*
is from the office where items of that kind are kept.

Here, the prosecutor seeks to introduce the state register of deeds (public record) listing the defendant as the owner of a house that was not included on his tax return. But the register must be properly authenticated before it can be admitted. And since the register is not self-authenticating, the court should not admit it unless the prosecutor can provide evidence that the register was recorded or filed in a public office or is from the office where items of that kind are kept.

(Choice A) The rule against hearsay bars the admission of out-of-court statements (eg, register of deeds) offered to prove the truth of the matter asserted therein (eg, ownership of house). However, an exception to this rule applies to *existing* public records (as seen here).

(Choice C) A public record is self-authenticating only if it is (1) certified as correct by a custodian or person authorized to do so, (2) sealed and signed by a government entity, or (3) signed by an employee of the government entity whose signature is certified as genuine by another public officer (not seen here).

(Choice D) Chain of custody must be used to authenticate physical evidence that could easily be tampered with or is not readily identifiable—eg, gun, knife, blood sample. Here, the copy of the register of deeds is unlikely to have been tampered with, as there is an original for comparison, and it is readily identifiable. Therefore, chain-of-custody authentication is unnecessary.

Educational objective:

Public records may be authenticated through evidence that the document (1) was recorded or filed in a public office as authorized by law or (2) is from the office where items of that kind are kept.

References

Fed. R. Evid. 901(b)(7) (authenticating or identifying public records).

Fed. R. Evid. 902(4) (certified copies of public records).

Copyright © UWorld. All rights reserved.

A defendant is on trial for attempted fraud. The state charges that the defendant switched a price tag from a cloth coat to a more expensive fur-trimmed coat and then presented the latter for purchase at the cash register. The defendant has testified in her own behalf that someone else must have switched the tag. On cross-examination, the prosecutor asks whether the defendant was convicted twice within the last five years of misdemeanor fraud of a retailer by the same means of switching the price tag on a fur-trimmed coat.

Is the question about the prior convictions proper either to impeach the defendant or to prove that the defendant committed the crime?

A. It is not proper for either purpose.

B. It is proper for both purposes.

C. It is proper to impeach the defendant, but not to prove that the defendant committed the crime.

D. It is proper to prove that the defendant committed the crime, but not to impeach the defendant.

Explanation:

Admissibility of previous criminal conviction or bad act

(FRE 404, 608 & 609)

Impeach witness's character (FRE 608(b), 609)	Impeach witness with either: conviction for crime of dishonesty or any felony through examination & extrinsic evidence *or* bad act (no conviction) elicited only on examination
Relevant noncharacter purpose (FRE 404(b))	Examination & extrinsic evidence to show **MIMIC**: **M**otive/opportunity **I**ntent **M**istake (absence of) **I**dentity **C**ommon scheme/plan

FRE = Federal Rules of Evidence

Evidence that a witness has been convicted of a **crime of dishonesty** (eg, fraud) may be offered to **impeach** the **witness** by showing that his/her **testimony is untruthful**. When such a conviction is less than 10 years old (as seen here), it must be admitted by the court—even when the witness is a criminal defendant. Therefore, the defendant's previous fraud convictions are admissible to impeach her **(Choices A & D)**.

In contrast, evidence that a **criminal defendant** previously committed a **crime or bad act** is inadmissible to show the defendant's propensity or inclination to commit the charged crime. But such evidence may be **admissible** for other **relevant, noncharacter purposes** (ie, **MIMIC**). Therefore, the defendant's prior convictions for switching tags can be used to prove that she intentionally did so here and committed attempted fraud **(Choices A & C)**.

Educational objective:

Convictions for crimes of dishonesty that occurred within the last 10 years are admissible to impeach a witness's credibility. And evidence of prior crimes or bad acts is admissible for MIMIC purposes, such as proving intent.

References

Fed. R. Evid. 404(b) (admissibility of MIMIC evidence).

Fed. R. Evid. 609 (attacking a witness's character for truthfulness with a criminal conviction).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A defendant was charged with attempted murder of a man in a sniping incident in which the defendant allegedly shot at the man from ambush as the man drove his car along an expressway.

The prosecutor offers evidence that seven years earlier the defendant had fired a shotgun into a woman's home and that the defendant had once pointed a handgun at another driver while driving on the street.

Is this evidence admissible?

A. No, because it is improper character evidence.

B. No, because such evidence can be elicited only during cross-examination.

C. Yes, as evidence of the defendant's propensity toward violence.

D. Yes, as relevant evidence of defendant's identity, plan, or motive.

Explanation:

The prosecution **cannot introduce** evidence of a **criminal defendant's** prior **crime or bad act** to show the defendant's **propensity to commit the charged crime** and establish his/her guilt. This ensures that the jury convicts the defendant for committing the charged crime—not for having a bad character. But evidence of a prior crime or bad act is **admissible for noncharacter purposes** (ie, MIMIC).

Here, the prosecutor offered evidence that the defendant had pointed or shot a gun at others in the past. But these prior bad acts are *not* admissible to show that the defendant had a propensity for violence that likely caused him to shoot at the man on the expressway **(Choice C)**. And there is no indication that this evidence was offered for a noncharacter purpose—eg, to prove the defendant's intent, plan, or motive for attempted murder **(Choice D)**. As a result, the defendant's prior bad acts are improper and inadmissible character evidence.

(Choice B) If a criminal defendant introduces testimony regarding his/her good character, then the prosecution can only impeach that witness during cross-examination—eg, by inquiring about the defendant's prior bad acts. But the prosecution can offer evidence of a defendant's prior bad acts for *noncharacter* purposes at any time—not just during cross-examination.

Educational objective:

A criminal defendant's prior crime or bad act is inadmissible when it is offered to show the defendant's propensity to commit the charged crime. But such evidence is admissible for noncharacter purposes (ie, MIMIC).

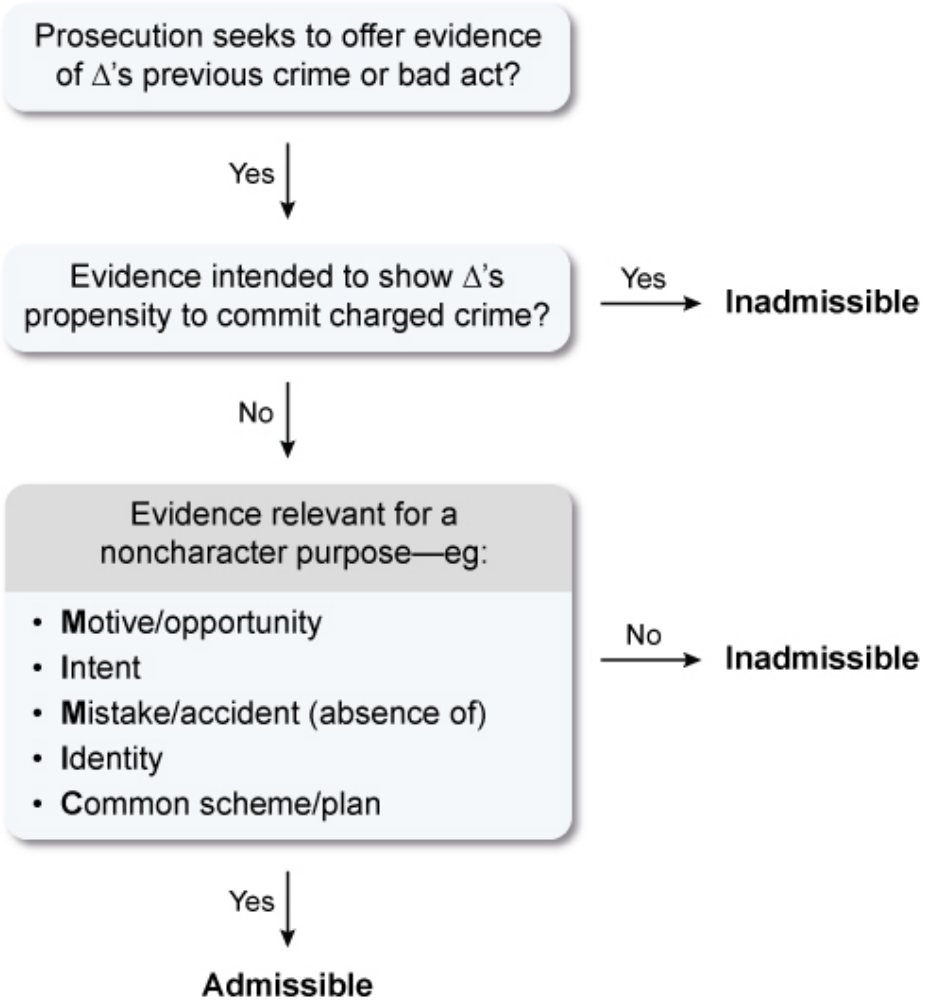
References

Fed. R. Evid. 404(b) (crimes, wrongs, or other acts).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Criminal defendant's previous crimes or bad acts (MIMIC)



Δ = defendant

©UWorld

At trial in a criminal prosecution for aggravated battery, the defendant testified that she was acting in self-defense when she struck the victim. The defendant has now called a witness to testify that the victim has a reputation in the community as a violent person. The prosecutor has objected to the witness's testimony.

Should the testimony be admitted?

A. No, because the prosecution has not introduced evidence of the defendant's violent character.

B. No, because the prosecution has not introduced evidence of the victim's peaceful character.

C. Yes, because the testimony calls the victim's character for truthfulness into question.

D. Yes, because the testimony supports the defendant's claim of self-defense.

Explanation:

Under FRE 404, evidence of a person's character is generally inadmissible to prove that the person acted in accordance with that character on the occasion being litigated. However, a criminal defendant may offer evidence of an alleged **victim's character**, to show conformity therewith, if it is **pertinent to the case**.*

Here, for example, the criminal defendant is on trial for battery and has argued self-defense. As a result, evidence of the victim's violent character is admissible because it is pertinent to the asserted defense. The evidence may be used to support an argument that the victim was the first aggressor or to show that the defendant reasonably believed she needed to use force to defend herself.

Once admitted, the evidence may be **rebutted by the prosecution** with evidence of the **victim's good character** for the pertinent trait (eg, peacefulness) *and* the **defendant's bad character** for the same **pertinent trait** (eg, violence).

*However, under FRE 412, evidence offered to prove that a victim engaged in other sexual behavior or a victim's sexual predisposition is inadmissible in civil or criminal proceedings involving sexual misconduct—with some exceptions.

(Choices A & B) A criminal defendant's ability to introduce evidence of a victim's pertinent character trait is *not* predicated upon the prosecution opening the door to that evidence. To the contrary, the prosecution may only introduce evidence of a defendant's or victim's character after the defendant has opened the door to that evidence.

(Choice C) Evidence of the victim's reputation for violence has no bearing on the victim's character for truthfulness because it does not show that the victim has a general propensity for dishonesty. It merely supports the defendant's testimony that she was acting in self-defense.

Educational objective:

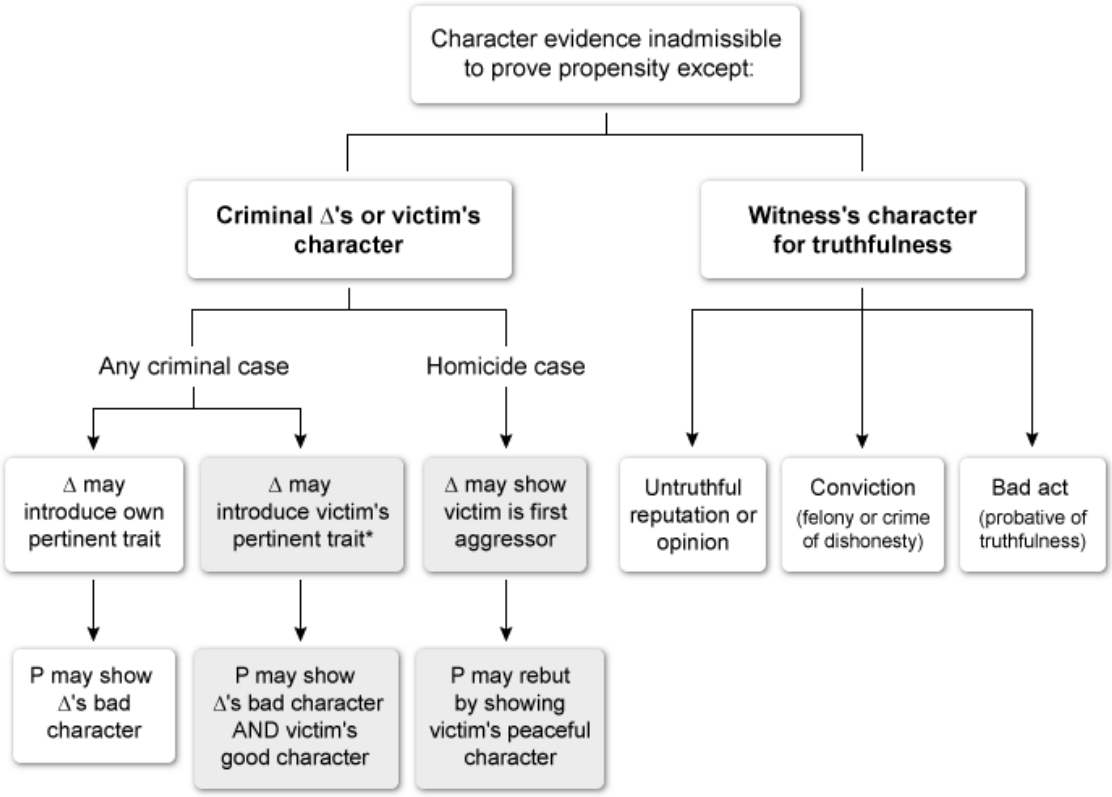
A criminal defendant may introduce evidence of an alleged victim's character if it is pertinent to the case. The prosecution may then rebut that evidence with evidence of (1) the victim's good character for the pertinent trait and (2) the defendant's bad character for that trait.

References

Fed. R. Evid. 404(a)(2) (character evidence regarding victim in criminal cases).

Copyright © UWorld. All rights reserved.

Admissibility of character evidence for propensity
(FRE 404)



Δ = Defendant; **P** = Prosecution; **FRE** = Federal Rule of Evidence

*Evidence of a victim's sexual behavior or predisposition is generally inadmissible in criminal proceedings involving sexual misconduct.

©UWorld

A defendant was charged with possession of cocaine. At the defendant's trial, the prosecution called a police officer to testify that, when approached by police on a suburban residential street corner, the defendant dropped a plastic bag and ran, and that when the officer returned to the corner a few minutes later after catching the defendant, he found a plastic bag containing white powder.

The defendant objects to introduction of this bag (the contents of which would later be established to be cocaine), citing lack of adequate identification.

How should the court rule on the defendant's objection?

A. Overrule the objection, because the objection should have been made on the basis of incomplete chain of custody.

B. Overrule the objection, because there is sufficient evidence to find that the bag was the one the defendant dropped.

C. Sustain the objection, because the defendant did not have possession of the bag at the time he was arrested.

D. Sustain the objection, unless the judge makes a finding by preponderance of the evidence that the bag was the one dropped by the defendant.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

Physical objects, like all tangible evidence, must be **authenticated** before they can be admitted at trial. Authentication requires a **prima facie showing** that the object is what the proponent claims it to be. This is most commonly done by **testimony** of someone with **personal knowledge** of the object, which comes from firsthand observations or experiences.

Here, the police officer testified that he saw the defendant drop a plastic bag before running and that he recovered a bag from that *same* area a few minutes after catching the defendant. Since this testimony is based on the police officer's personal knowledge and provides sufficient evidence to find that the recovered bag was the one the defendant had dropped, the defendant's objection should be overruled.

(Choice A) An objection based on incomplete chain of custody may have been sustained if the prosecution failed to establish a substantially unbroken account of the bag's

whereabouts from the time it was obtained until its introduction at trial. However, there are insufficient facts to determine if the prosecution could meet this burden.

(Choice C) Although the bag was not found on the defendant's person, there is still sufficient evidence to find that the bag was the one he dropped.

(Choice D) Authentication merely requires proof that the item is what the proponent claims it to be. This is a lesser standard than a preponderance of the evidence, which requires that a party show that the greater weight of the evidence (more than 50%) supports his/her argument.

Educational objective:

Before physical evidence can be admitted at trial, it must be authenticated through a prima facie showing that the item is what the proponent claims it to be. This is commonly done by testimony of personal knowledge of the object.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant is on trial for kidnapping. The victim has testified that one of the kidnappers referred to the other as "Speed." The prosecutor calls a jail employee to testify that, while the defendant was in jail awaiting trial, other inmates addressed the defendant as "Speed."

Is the jail employee's testimony admissible?

A. No, because it is hearsay not within any exception.

B. No, because it is substantially more prejudicial than probative.

C. Yes, as circumstantial evidence that the defendant was one of the kidnappers.

D. Yes, to support the truthfulness of the victim.

Explanation:

Evidence is only admissible if it is **relevant**—ie, tends to make a **material fact more or less probable**—and is not barred by other evidentiary rules. For example, Federal Rule of Evidence 403 requires the **exclusion** of relevant evidence when its **probative value** (ie, degree of relevance) is **substantially outweighed** by the danger of any of the following:

unfair prejudice – evidence tends to encourage the jury to decide the case on improper grounds

confusing the issues – evidence leads the jury to focus on a nonmaterial matter

misleading the jury – evidence creates misconceptions in the jurors' minds

undue delay or wasting time – presentation of the evidence will cause unnecessary delay or waste time

needless cumulation – similar evidence on the same issue has already been admitted

Here, the victim testified that one of the kidnappers referred to the other as "Speed." The jail employee now plans to testify that other inmates called the defendant "Speed." The jail employee's testimony is highly relevant because it provides circumstantial evidence that connects the defendant to the kidnapping—making the material fact that the defendant was a kidnapper more probable. As a result, it is unlikely that the danger of unfair prejudice *substantially* outweighs the testimony's high probative value, and this testimony should be admitted **(Choice B)**.

(Choice A) Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein. But the mere use of a person's name or nickname (as seen here) is not a "statement" under this rule because those words are not intended to convey an assertion.

(Choice D) A party may support a witness's character for truthfulness only when (1) that witness's character for truthfulness has been attacked and (2) that support comes in the form of reputation or opinion testimony—neither of which is the case here.

Educational objective:

Federal Rule of Evidence 403 requires the exclusion of relevant evidence when its probative value (ie, degree of relevance) is substantially outweighed by the danger of unfair prejudice, confusing the issues, misleading the jury, undue delay/waste of time, or needless cumulation of evidence.

References

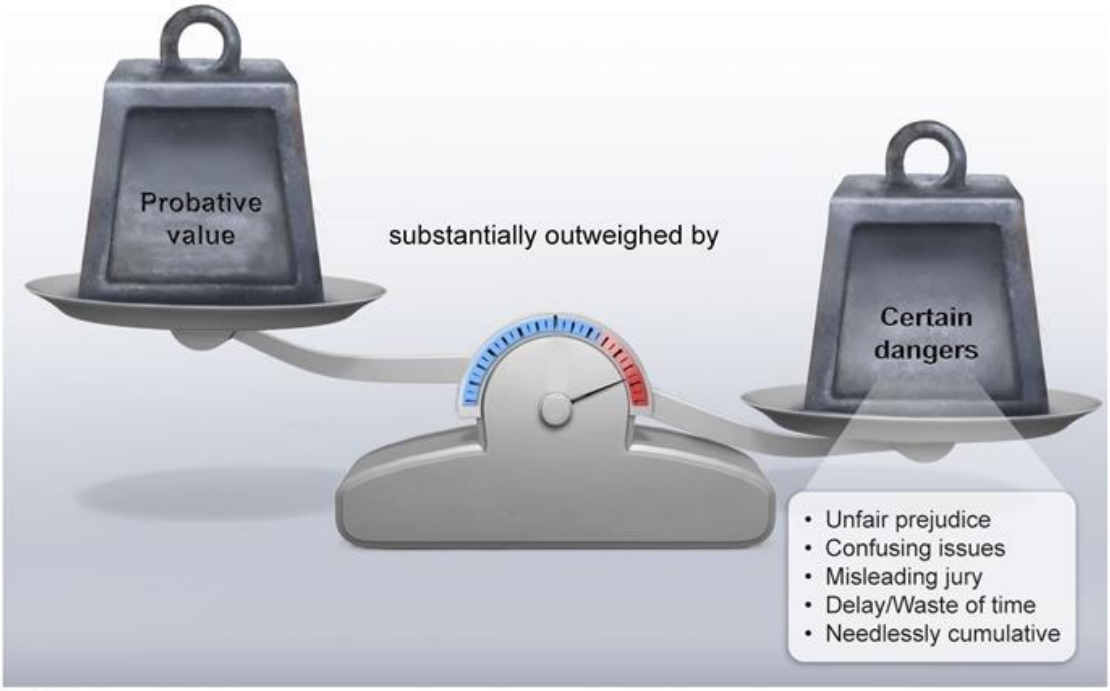
Fed. R. Evid. 401 (test for relevant evidence).

Fed. R. Evid. 403 (excluding relevant evidence for certain dangers).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

On trial for murdering her husband, a woman testified she acted in self-defense. The woman calls a psychologist as an expert witness to testify that under hypnosis the woman had described the killing, and that in the psychologist's expert opinion the woman had been in fear for her life at the time of the killing.

Is the psychologist's testimony admissible?

A. No, because it expresses an opinion concerning the woman's mental state at the time of the killing.
B. No, because reliance on information tainted by hypnosis is unconstitutional.
C. Yes, because it reports a prior consistent statement by a witness (the woman) subject to examination concerning it.
D. Yes, because the psychologist was able to ascertain that the woman was speaking truthfully.

Explanation:

Expert opinion on ultimate issue

(FRE 704)

Admissible unless:

offered in criminal case *and*
concerns requisite mental state for charged crime or asserted defense
FRE = Federal Rule of Evidence.

An **expert witness** may typically offer an opinion on an **ultimate issue**—ie, a point that, by itself or in conjunction with other points, is sufficient to resolve the case. But in a **criminal case**, an expert **may not** offer an opinion about whether the defendant possessed the **requisite mental state** for the **charged crime** or an **asserted defense**. Only the trier of fact can decide this ultimate issue.

Here, the psychologist seeks to offer his expert opinion that the woman feared for her life at the time of the killing. This opinion goes toward whether the woman possessed the requisite mental state for self-defense—ie, an actual and reasonable belief that she faced imminent death or serious harm. Therefore, the psychologist's testimony is *not* admissible.

(Choice B) There is no constitutional prohibition against admitting evidence obtained by hypnosis. And since it is the woman (not the prosecution) who is offering this evidence, a constitutional argument is misplaced.

(Choice C) The proffered testimony reports the psychologist's expert opinion—not the woman's prior consistent statement.

(Choice D) The psychologist may have been able to ascertain whether the woman was speaking truthfully. But this does not make the psychologist's opinion on the woman's mental state admissible.

Educational objective:

An expert witness may offer an opinion on an ultimate issue *except* when the opinion is offered in a criminal case and concerns whether the defendant possessed the requisite mental state for a charged crime or asserted defense.

References

Fed. R. Evid. 704 (opinion on ultimate issue).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man was charged with armed robbery of a store and denied that he was the person who had robbed the store. In presenting the state's case, the prosecutor seeks to introduce evidence that the man had robbed two other stores in the past year.

Is this evidence admissible?

A. No, because character must be proved by reputation or opinion and may not be proved by specific acts.

B. No, because its probative value is substantially outweighed by the danger of unfair prejudice.

C. Yes, to prove a pertinent trait of the man's character and the man's action in conformity therewith.

D. Yes, to prove the man's identity.

Explanation:

The prosecution cannot introduce evidence that a **criminal defendant** previously committed similar **crimes or bad acts** to prove that the defendant had the propensity or inclination to commit the charged crime. That is because the **probative value** (ie, degree of relevance) of such evidence is **substantially outweighed by** the **danger of unfair prejudice** when it is offered for this purpose. In other words, the danger that the jury may convict the defendant for having a bad character—not for committing the charged crime—is too high.

As a result, evidence that the man had robbed two other stores in the past year is **inadmissible unless** it is offered for **relevant, noncharacter purposes** (ie, **MIMIC**). This includes proving the perpetrator's *identity*—eg, showing that a defendant's prior crimes or bad acts are so distinctive, and so similar in method to the charged crime, that they all bear the same criminal "signature." But since there is no indication that the man's prior robberies have the same "signature" as the charged one, the prior robberies are inadmissible for this purpose **(Choice D)**.

(Choice A) Character *may* be proved by specific acts in some instances—eg, when character is an essential element of a claim, charge, or defense.

(Choice C) The prosecution can only introduce evidence to prove a defendant's pertinent (ie, relevant) character trait *after* the defendant has opened the door by presenting good-character evidence on that trait. So had the man first introduced evidence of his peaceful character—a trait pertinent to violent crimes like armed robbery—the prosecutor could have introduced the prior robberies to rebut that evidence.

Educational objective:

Evidence of a criminal defendant's prior crimes or bad acts is inadmissible if it is offered to show the defendant's propensity to commit the charged crime. But it may be admissible for noncharacter purposes (ie, MIMIC).

References

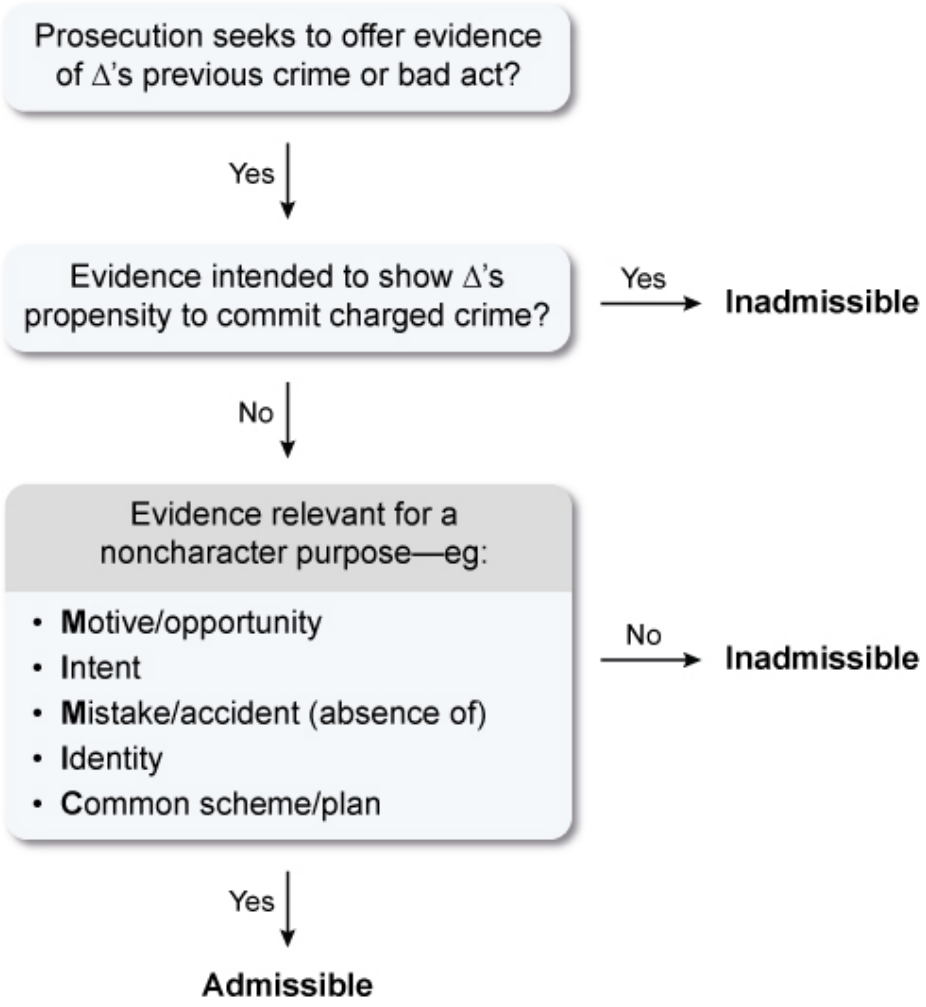
Fed. R. Evid. 404(a) (character evidence).

Fed. R. Evid. 404(b) (crimes, wrongs, or other acts).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Criminal defendant's previous crimes or bad acts (MIMIC)



Δ = defendant

©UWorld

A plaintiff sues the defendant for breach of a promise made in a letter allegedly written by the defendant to the plaintiff. The defendant denies writing the letter.

Which of the following would NOT be a sufficient basis for admitting the letter into evidence?

A. Comparison by the trier of fact of the letter with an admitted signature of the defendant.
B. Evidence that the letter was written in response to one written by the plaintiff to the defendant.
C. Opinion testimony of a non-expert witness based upon familiarity acquired to authenticate the signature.
D. Testimony by the plaintiff that she is familiar with the defendant's signature and recognizes it on the letter.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

Documentary evidence (eg, letters) must be **authenticated** before it can be admitted at trial. This requires the proponent to produce sufficient evidence to support a finding that the thing is what the proponent claims it to be. Documentary evidence is often authenticated through **handwriting verification**, which can be achieved in two ways:

Non-expert opinion – a lay witness with **personal knowledge** of the claimed author's handwriting (**not acquired** for the **current litigation**) testifies that a document is in the author's handwriting **(Choice D)**

Comparison – an expert witness or the trier of fact compares the writing in question (eg, the defendant's alleged letter) with another writing that has been authenticated **(Choice A)**

Therefore, the testimony of a non-expert witness who acquired familiarity with the defendant's handwriting only to authenticate the signature is *not* a sufficient basis for admitting the letter into evidence.

(Choice B) Documentary evidence can be authenticated by evidence that it was written in response to another communication (ie, a reply letter). However, the contents must make it unlikely that the response was written by someone other than the recipient of the first communication.

Educational objective:

Documentary evidence can be authenticated by having a lay witness with personal knowledge of the claimed author's handwriting—not acquired for the current litigation—testify that the document is in the author's handwriting.

References

Fed. R. Evid. 901 (authenticating/identifying evidence).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A driver sued her insurance company on an accident insurance policy covering personal injuries to the driver. The insurance company defended on the ground that the driver's injuries were intentionally self-inflicted and therefore excluded from the policy's coverage.

The driver testified at trial that she had inflicted the injuries, as her negligence had caused the crash in which she was injured, but that she had not done so intentionally. She then called as a witness her treating psychiatrist to give his opinion that the driver had been mentally unbalanced, but not self-destructive, at the time of the crash.

Should the court admit the witness's opinion?

A. No, because it is a statement about the driver's credibility.

B. No, because it is an opinion about a mental state that constitutes an element of the defense.

C. No, because the witness did not first state the basis for his opinion.

D. Yes, because it is a helpful opinion by a qualified expert.

Explanation:

A **qualified expert witness** is one with specialized knowledge, skill, experience, training, or education on a subject that pertains to an issue being litigated. To be **admissible**, the expert's testimony must be both:

relevant – the testimony will help the trier of fact (1) understand the evidence OR (2) determine a fact in issue *and*

reliable – the testimony is (1) based on sufficient facts or data AND (2) the product of reliable principles and methods that the expert has reliably applied to the facts of the case.

Here, it can be presumed that the witness, as the driver's treating psychiatrist, has *specialized knowledge* pertinent to the driver's mental state at the time of the crash that was *reliably* applied to the facts of the case. His opinion that the driver had been mentally unbalanced but not self-destructive is *relevant* because it will help the jury determine whether her injuries were intentionally self-inflicted. Therefore, the court should admit this testimony.

(Choice A) The witness is offering to testify to the driver's pertinent mental state—not the driver's credibility. If the witness were to do so, the testimony would be inadmissible because credibility is a question for the jury to decide.

(Choice B) An expert may *not* state an opinion about whether a criminal defendant had the requisite mental state for any element of a charged crime or asserted defense. But all other expert testimony on a party's mental state—including the witness's proffered testimony here—is admissible.

(Choice C) An expert may state an opinion without first testifying to the underlying facts or data. But the expert may be required to disclose the basis for that opinion on cross-examination.

Educational objective:

A qualified expert's testimony is admissible if it (1) will help the trier of fact understand the evidence OR determine a fact in issue and (2) is based on sufficient facts or data AND the product of reliable principles and methods that the expert has reliably applied to the facts of the case.

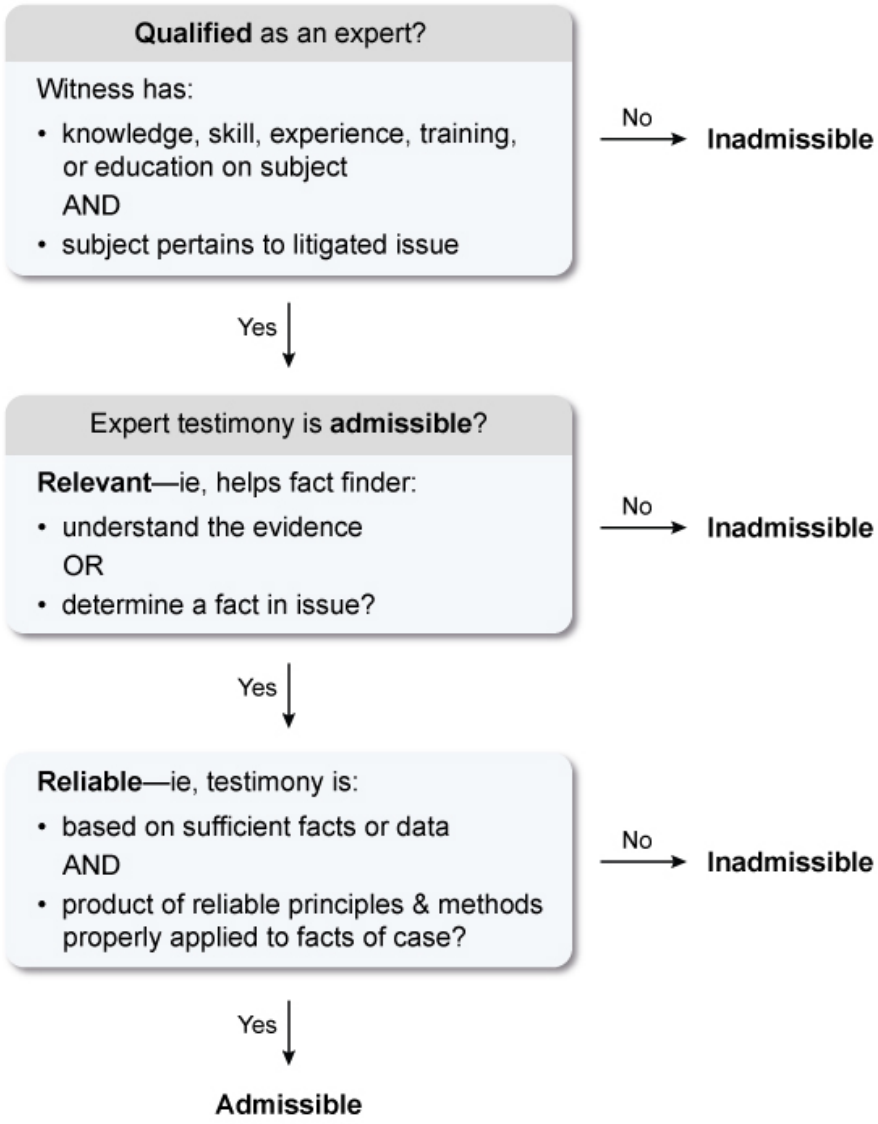
References

Fed. R. Evid. 702 (expert testimony).

Copyright © 2013 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A man and his neighbor were involved in an ongoing dispute over loud parties frequently held at the neighbor's home. One morning, after the neighbor hosted a particularly raucous affair, the man approached the neighbor and a fight ensued.

The man was charged with assault. At trial, the man did not take the stand but sought to offer opinion evidence of his good character for truth and honesty.

Should the testimony be admitted?

A. No, because character cannot be used to prove conduct in conformity therewith.

B. No, because the testimony is evidence of a trait not pertinent to the case.

C. Yes, because a criminal defendant may always offer evidence of his good character.

D. Yes, because a party's credibility is in issue.

Explanation:

Pertinent trait v. Truthful character

(admissibility of evidence on criminal defendant's character)

Pertinent trait	Defendant may offer evidence of pertinent character trait by:
(FRE 404(a))	reputation or opinion testimony Prosecution may rebut with:
	reputation or opinion testimony *or* SIC (only on cross-examination)
Truthful character	If defendant testifies, prosecution may impeach with:
(FRE 608)	reputation or opinion testimony SIC (only on cross-examination) *or* extrinsic evidence of conviction for felony or crime of dishonesty Defendant may rebut with:
	reputation or opinion testimony *or* SIC (only on cross-examination)

FRE = Federal Rule of Evidence; **SIC** = Specific instance of conduct.

Under Federal Rule of Evidence (FRE) 404, a **criminal defendant** may offer evidence of his/her **good character** when that trait is **pertinent to the charged crime (Choice C)**. For example, evidence of a defendant's *peacefulness* is admissible when the defendant is charged with a violent crime. But *truthfulness* is not pertinent to violent crimes like assault, so evidence of this trait should not be admitted on this basis.

However, evidence of a criminal defendant's truthfulness also may be admissible if the defendant testifies at trial—even when that trait is not pertinent to the charged crime. FRE 608 allows the admission of reputation or opinion testimony to prove the **witness's truthful character after** it has been **attacked**. But since the defendant here did not testify at trial, testimony regarding his character for truth and honesty remains inadmissible.

(Choice A) The prosecution cannot use character evidence to prove that the defendant's criminal conduct conforms with his/her character. But when a defendant offers evidence of a *pertinent* character trait, the door opens for the prosecution to rebut that evidence by proving the defendant's corresponding bad-character trait.

(Choice D) A party's credibility is "in issue" if (1) that character trait is an essential element of a criminal charge, civil claim, or asserted defense or (2) that party becomes a witness by testifying at trial—neither of which is the case here.

Educational objective:

A criminal defendant may offer evidence of his/her (1) good character if that trait is pertinent to the crime charged and (2) truthful character if it was attacked after the defendant testified at trial.

References

Fed. R. Evid. 404 (character evidence).

Fed R. Evid. 608 (witness's character for truthfulness).

Copyright © UWorld. All rights reserved.

At a defendant's trial for drug dealing, a prosecution witness testified that he had heard the defendant telling a group of people to come to the defendant's house because he had "a great crop of apples for sale." The prosecutor then called and qualified a drug enforcement agent as an expert in how drug dealing is conducted. The prosecutor now seeks to have the expert testify that in her opinion, based on years of experience with drug dealers, the defendant's statement about the apples was code for his having drugs for sale.

Should the expert's opinion be admitted?

A. No, because an expert must base his or her opinion on scientific or technical data, not merely on experience.

B. No, because the opinion is based on the criminal actions of others engaged in drug dealing, and thus is substantially more unfairly prejudicial than probative.

C. Yes, because the opinion is based on her specialized knowledge, and it will assist the trier of fact in understanding the evidence and determining facts in issue in the case.

D. Yes, provided that the expert first testifies about the specific information upon which she based her view that the defendant was using "apples" as a code word to refer to drugs.

Explanation:

A witness is qualified to provide **expert opinion testimony** if the witness has specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue in litigation. However, expert testimony is only **admissible if** the court determines that it is both:

relevant – the testimony will **help the trier of fact** (1) **understand** the evidence or (2) **determine a fact** in issue *and*

reliable – the testimony is (1) **based on sufficient facts** or data and (2) the **product of reliable principles** and methods that have been reliably applied by the expert to the facts of the case

Here, the drug enforcement agent was qualified as an expert in drug dealing. Her expert opinion testimony is relevant because it will help the trier of fact understand the defendant's statement regarding a "great crop of apples" (evidence) and determine if the defendant was selling drugs (fact in issue). That testimony is also reliable because her years of experience with drug dealers (sufficient facts and data) are being applied to the facts of this drug case. Therefore, the expert's opinion should be admitted.

(Choice A) To be reliable, an expert's opinion testimony must be based on sufficient facts or data—but this information can stem from the witness's experience (as seen here) as well as scientific or technical data.

(Choice B) The expert's opinion will assist the jury in understanding and determining a key issue in the case—whether the defendant was dealing drugs. Therefore, the probative value of this evidence outweighs any danger of unfair prejudice.

(Choice D) Unless the court orders otherwise, an expert may state an opinion *before* testifying to the underlying facts or data upon which that opinion is based. The opponent may then inquire into the bases for the opinion on cross-examination.

Educational objective:

Expert opinion testimony is admissible if it will help the trier of fact understand the evidence or determine a fact in issue (ie, relevant) and is based on sufficient facts/data and the product of reliable principles/methods reliably applied by the expert (ie, reliable).

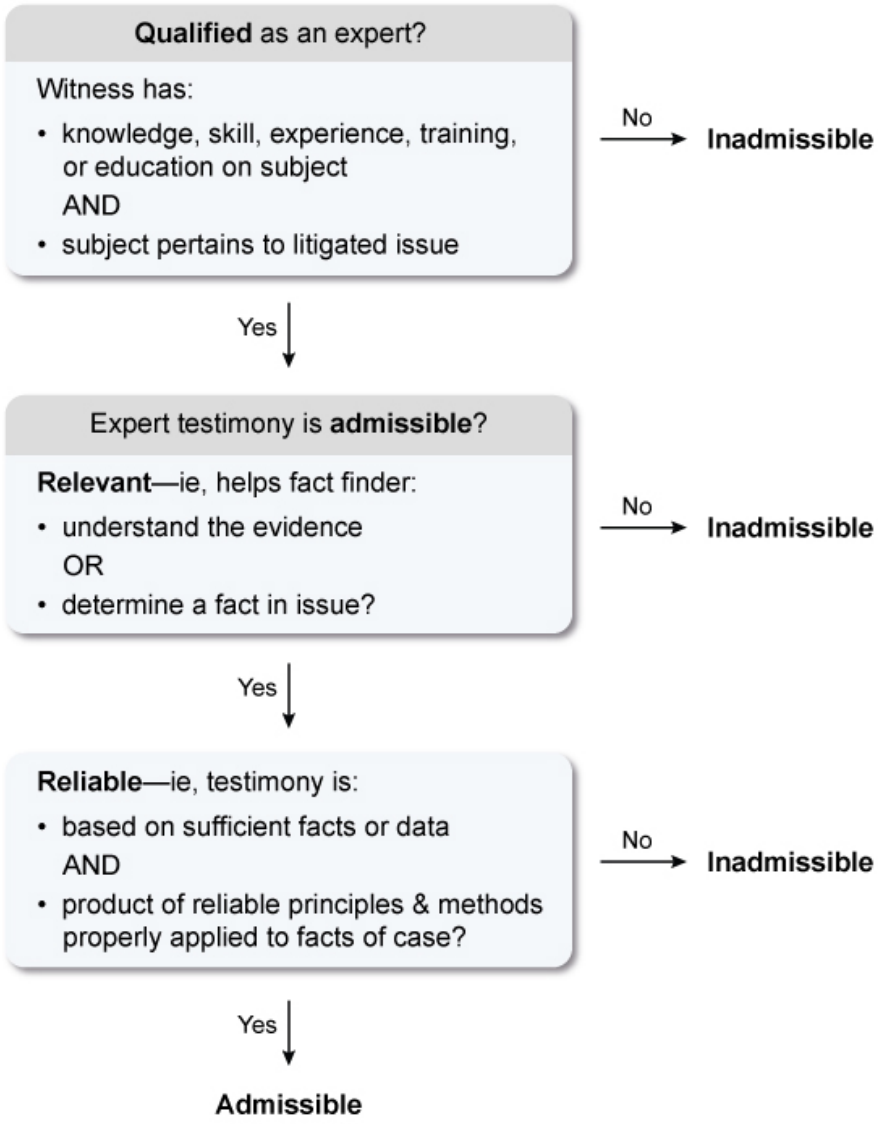
References

Fed. R. Evid. 702 (expert witness testimony).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A defendant is charged with murder. At trial, the prosecution has called a witness who heard gun shots around the time the murder occurred. The witness did not see the murder but has testified that he saw the defendant running past his bedroom window, which faces an alley near the scene of the murder. The prosecution seeks to introduce a model of the neighborhood that shows where the witness's house is located in relation to the crime scene. The witness has testified that the model accurately depicts the layout of the neighborhood on the date in question. The creator of the model was not called to testify. The defendant argues that the prosecutor has not sufficiently authenticated the model.

Is the model admissible?

A. No, because demonstrative evidence prepared in anticipation of litigation must be authenticated by its creator to be admissible.

B. No, because there is no evidence that a reliable process or technique was used to create the reproduction.

C. Yes, because the model is self-authenticating and accurately depicts the scene it purports to represent.

D. Yes, because the witness's testimony attesting to the accuracy of the model is sufficient for it to be admissible.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

Tangible evidence must be **authenticated** before it can be admitted at trial. Authentication requires a prima facie showing that the evidence is what the proponent claims it to be. When **reproductions** (eg, models, drawings, photographs, maps) are offered into evidence, they may be authenticated by the **testimony of a witness** with personal knowledge that the **reproduction accurately depicts** what its proponent claims it does.

Here, the prosecution has introduced the model as a reproduction of the neighborhood where the murder occurred. The witness lives in that neighborhood, so he has personal knowledge about the layout of the neighborhood. Therefore, his testimony attesting to the accuracy of the model was sufficient to authenticate this evidence, rendering it admissible.

(Choices A & B) A reproduction can be authenticated by having its creator testify that the reproduction process and technique produces an accurate result. However, a reproduction can also be authenticated by other means (as seen here).

(Choice C) Certain types of documentary evidence (ie, evidence in a writing or other document) are self-authenticating, but physical objects (eg, the model) are not.

Educational objective:

Reproductions (eg, models, drawings, photographs, maps) may be authenticated by the testimony of a witness with personal knowledge that the reproduction accurately depicts what its proponent claims it does.

References

Fed. R. Evid. 901 (authenticating physical objects).

Copyright © UWorld. All rights reserved.

A motorist sued a commuter railway company for personal injuries suffered in a train-automobile collision. The motorist called an eyewitness, who testified that the train was going 20 miles per hour. The railway company then offered the testimony of an experienced police accident investigator that, based on his training and experience and on his examination of the physical evidence, it is his opinion that the train was going between 5 and 10 miles per hour.

Is the accident investigator's testimony proper?

A. No, because the investigator is unable to establish the speed with a sufficient degree of scientific certainty.

B. No, because there cannot be both lay and expert opinion on the same issue.

C. Yes, because a police accident investigator has sufficient expertise to express an opinion on speed.

D. Yes, because the motorist first introduced opinion evidence as to speed.

Explanation:

A witness is qualified to provide **expert opinion testimony** if the witness has specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue being litigated. Expert opinion testimony is admissible if it is both:

relevant – the testimony will **help the trier of fact** (1) understand the evidence OR (2) **determine a fact** in issue *and*

reliable – the testimony is (1) **based on sufficient facts** or data AND (2) the **product of reliable principles** and methods that the expert has reliably applied to the facts of the case.

Here, the railway company called a police accident investigator to refute testimony on the train's speed at the time of the collision being litigated. The investigator is trained and experienced in investigating accidents and therefore qualified to offer expert opinion testimony on speed. And since his testimony is relevant and he presumably applied reliable principles in examining the physical evidence, the testimony is proper.

(Choice A) An expert witness's opinion need only be based on a *reasonable* degree of certainty—not a scientific degree of certainty.

(Choice B) Lay and expert opinions can be presented on the same issue. However, lay witness opinion testimony is only admissible if it is (1) rationally based on the witness's perception, (2) helpful to understand the witness's testimony or determine a fact in issue, and (3) not based on scientific, technical, or other specialized knowledge.

(Choice D) There is no requirement that an opposing party present opinion evidence on an issue before expert witness testimony is introduced.

Educational objective:

A witness is qualified to provide expert opinion testimony if the witness has specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue being litigated.

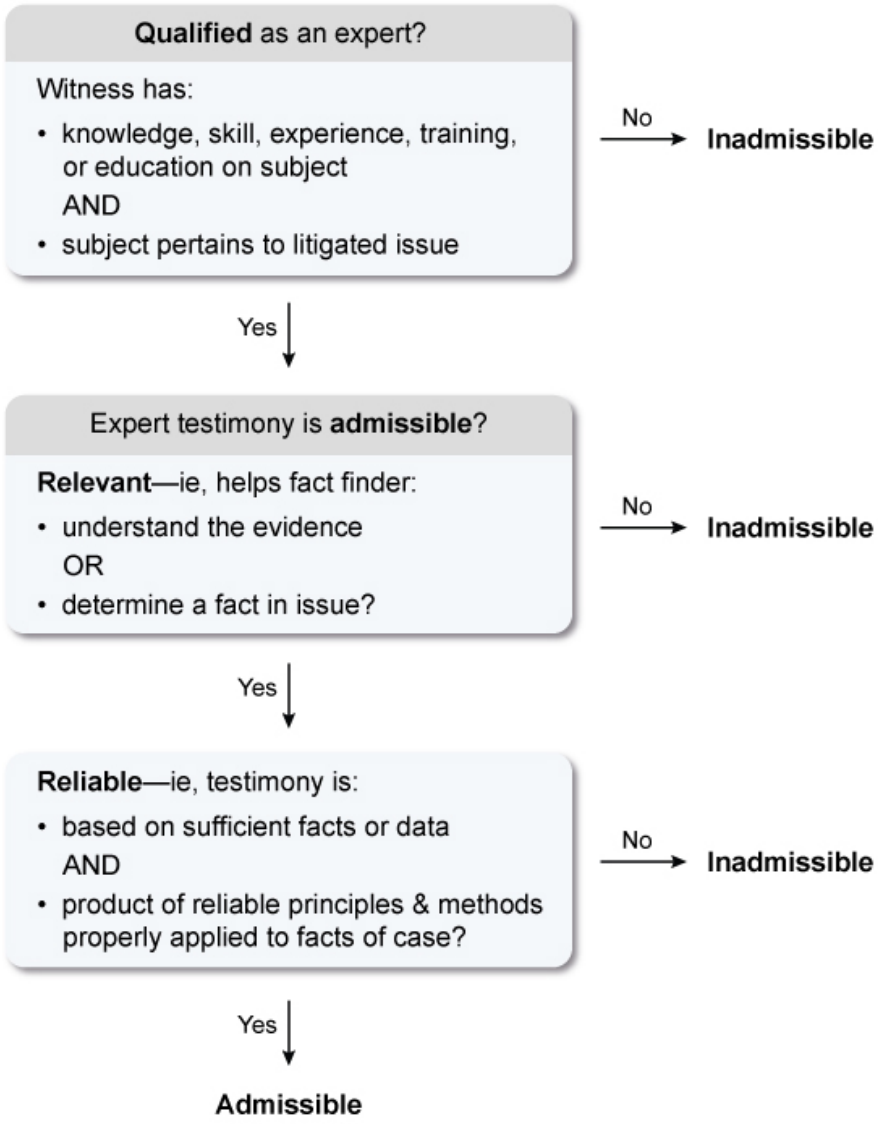
References

Fed. R. Evid. 702 (expert witness testimony).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A plaintiff sued the manufacturer of his lawn mower, alleging that, as the result of a design defect, he was injured when the mower's blade flew off after striking a sprinkler head in the lawn.

At trial, the manufacturer has called as an expert witness a product safety engineer, who testifies that the manufacturer retained him for a fee to test identical mowers and, if his opinion was helpful, to testify in the case. The expert then testifies that he did test the mowers, and that the blade, as designed and installed by the manufacturer, could not fly off in the manner claimed by the plaintiff. Assume that the expert has used a reliable method for reaching his conclusion.

Should the court admit the expert's testimony?

A. No, because it goes to an ultimate issue that only the jury can decide.

B. No, because the manufacturer paid the expert to render a certain opinion, in violation of rules barring paid testimony.

C. Yes, because expert testimony on such issues of causation is relevant and helpful to the jury.

D. Yes, provided that the plaintiff had notice and an opportunity to participate in the testing process.

Explanation:

Under Federal Rule of Evidence 702, **expert testimony** is **admissible** at trial if it is both:

relevant – will help the trier of fact (1) understand the evidence or (2) determine a fact in issue *and*

reliable – is (1) based on sufficient facts or data and (2) the product of reliable principles and methods that have been properly applied by the expert to the facts of the case.

Here, it is assumed that the expert's testimony is reliable. That expert testimony is also relevant because it will help the trier of fact determine if the manufacturer's lawn mower caused the plaintiff's injury. Therefore, the court should admit this testimony.

(Choice A) An ultimate issue is a final question that must be decided by the trier of fact to resolve the case—eg, whether the manufacturer was negligent. Although witnesses were precluded from testifying about such issues at common law, this rule has been abolished and therefore would not prevent the admission of the expert's testimony.

(Choice B) The rule barring a party from paying a witness to testify in a certain manner was not violated here. That is because the manufacturer retained the expert to testify *if* his opinion would be helpful—not to render a certain opinion.

(Choice D) Before trial, a party must disclose the identity of any expert witness it may use at trial and, among other things, the opinions the expert will express. But a party need not notify the opposing party of its intention to conduct pretrial tests or allow the opposing party to participate in such tests.

Educational objective:

Expert witness testimony is only admissible if it is (1) relevant—ie, the expert's knowledge will help the trier of fact understand the evidence or determine a fact in issue—and (2) reliable—ie, based on sufficient facts or data and the product of reliable principles and methods that the expert has properly applied to the facts of the case.

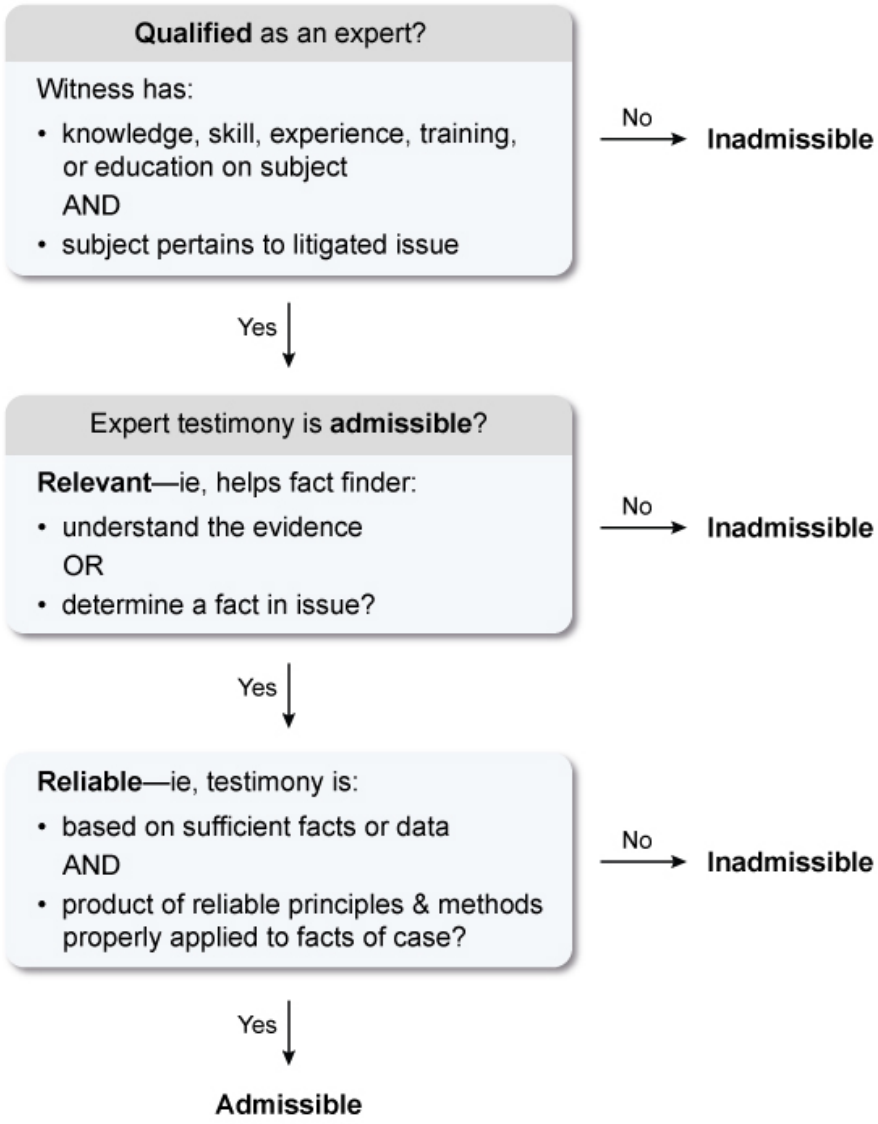
References

Fed. R. Evid. 702 (testimony by expert witness).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A defendant's house was destroyed by fire, and she was charged with arson. To prove that the defendant had a motive to burn down her house, the government offered evidence that the defendant had fully insured the house and its contents.

Should the court admit this evidence?

A. No, because evidence of insurance is not admissible on the issue of whether the insured acted wrongfully.

B. No, because the probative value of the evidence of insurance on the issue of whether the defendant intentionally burned her house down is substantially outweighed by the dangers of unfair prejudice and confusion of the jury.

C. Yes, because any conduct of a party to the case is admissible when offered against the party.

D. Yes, because evidence of insurance on the house has a tendency to show that the defendant had a motive to burn down the house.

Explanation:

All relevant evidence is **admissible** unless excluded by a rule, law, or constitutional provision. Under Federal Rule of Evidence (FRE) 401, evidence is **relevant** if:

it has ***any*** **tendency** to make a **fact more or less probable** than it would be without that evidence (ie, **probative**) *and*

the **fact is of consequence** in determining the action (ie, **material**).

Here, evidence that the defendant had fully insured the house and its contents does not conclusively show that she committed the arson. But to be relevant, evidence need only have a *slight* tendency to make a material fact more or less probable. The insurance tends to show that the defendant had a financial motive to burn down the house. And since none of the grounds for exclusion raised in this question apply, this evidence should be admitted.

(Choice A) Under FRE 411, evidence of liability insurance or the lack thereof is inadmissible to prove negligence or wrongdoing. But such evidence is admissible for other purposes, including proof of motive.

(Choice B) A court may exclude relevant evidence if its probative value is substantially outweighed by certain dangers, including unfair prejudice and confusing the jury. But here, evidence of insurance poses no such danger.

(Choice C) There is no broad rule that any conduct of a party can be admitted against that party.

Educational objective:

Evidence is relevant if it has even the slightest tendency to make a material fact more or less probable than it would be without that evidence.

References

Fed. R. Evid. 401 (test for relevancy).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Legal bases for excluding relevant evidence
(FRE 402)

U.S. Constitution
(eg, obtained illegally)



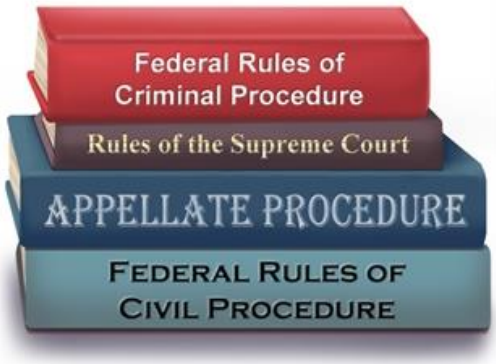
Federal statute
(eg, prohibited disclosure)



Federal Rules of Evidence
(eg, hearsay)



Other rules promulgated by
U.S. Supreme Court



FRE = Federal Rules of Evidence

A woman sued her ex-boyfriend for libel. After the woman testified that the ex-boyfriend wrote to the woman's employer that the woman is a thief, the ex-boyfriend offers evidence that the woman once stole money from a former employer.

Is the evidence of prior theft admissible?

A. No, because character may not be shown by specific instances of conduct.

B. No, because such evidence is more unfairly prejudicial than probative.

C. Yes, as substantive evidence to prove that the woman is a thief.

D. Yes, but only to impeach the woman's credibility.

Explanation:

Examples of character as essential element

	Definition	Character at issue
Defamation	Injuring plaintiff's reputation with spoken (slander) or written (libel) false statement	Plaintiff
Negligent entrustment	Injuring plaintiff by negligently entrusting dangerous article to reckless or incompetent person	Person entrusted
Child custody	Modifying child custody, visitation, or other parental rights	Parent or guardian
Entrapment	Criminal defense alleging government inducement & defendant's lack of predisposition to commit crime	Defendant
Negligent hiring	Injuring plaintiff by negligently hiring person of dangerous or untrustworthy character	Hiree

Character evidence is generally **inadmissible** when it is used to imply (and thereby prove) that a **person acted in conformity** with his/her character during the litigated event. But such evidence is **admissible** in rare instances when character is an **essential element** of a civil claim, criminal charge, or asserted defense. Character evidence can then be used as **substantive evidence** and introduced by *any* party through:

reputation or opinion testimony on that essential character trait *or*
specific instances of conduct (eg, a prior theft) demonstrating that essential character trait **(Choice A)**.
Here, the woman sued her ex-boyfriend for libel. Her character is an essential element of this claim since she must prove that she is *not* a thief to show that the ex-boyfriend's writing was false. As a result, the ex-boyfriend can introduce the woman's prior theft as substantive evidence to prove that she *is* a thief and, therefore, that his writing was truthful.

(Choice B) Evidence of the prior theft is prejudicial (ie, harmful) to the woman. But this character evidence has high probative value since it addresses an essential element of this libel case—whether the ex-boyfriend's writing was false. And since this evidence is more probative than prejudicial, it should be admitted.

(Choice D) Since the woman testified, evidence of the prior theft can be used to impeach her credibility as a witness by showing that she has an untruthful character and should not be believed. But this character evidence can *also* be used as substantive evidence to prove an essential element of this case.

Educational objective:

Character evidence is admissible if a person's character is an essential element of a civil claim, criminal charge, or asserted defense.

References

Fed. R. Evid. 405 (methods of proving character).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

At a civil trial for slander, the plaintiff showed that the defendant had called the plaintiff a thief. In defense, the defendant called a witness to testify, "I have been the plaintiff's neighbor for many years, and people in our community generally have said that he is a thief."

Is the testimony concerning the plaintiff's reputation in the community admissible?

A. No, because character is an essential element of the defense, and proof must be made by specific instances of conduct.
B. Yes, to prove that the plaintiff is a thief and to reduce or refute the damages claimed.
C. Yes, to prove that the plaintiff is a thief but not on the issue of damages.
D. Yes, to reduce or refute the damages claimed but not to prove that the plaintiff is a thief.

Explanation:

Methods of proving character

(FRE 405)

Reputation testimony	Testimony about person's reputation among associates or in community by witness familiar with person's reputation
Opinion testimony	Personal opinion of person's character offered by witness who knows person
Specific instances of conduct	Prior acts that illustrate person's character

FRE = Federal Rule of Evidence

Character evidence is generally inadmissible to prove that a person acted in conformity with that character on the occasion at issue. But such evidence is **admissible** when a person's character is **directly in issue**—ie, when character is an **essential element** of a **charge, claim, or defense**. Character can then be proved by reputation or opinion testimony OR by specific instances of conduct **(Choice A)**.

In slander cases—where the defendant allegedly made a false statement that injured the plaintiff's reputation—the plaintiff's character is directly in issue for two reasons:

Truth is an absolute defense to slander, and the plaintiff's actual character will determine whether the defendant's statement was true.

The plaintiff will claim that he/she has been damaged by the defendant's statement (ie, that his/her reputation has been tarnished), and damages are limited if the plaintiff already had a bad reputation.

Therefore, testimony that the plaintiff has a reputation for being a thief is admissible in this slander case to prove that the plaintiff is a thief (for the defendant's truth defense) and to reduce or refute the damages claimed (because the plaintiff already had a bad reputation) **(Choices C & D)**.

Educational objective:

When a person's character is directly in issue—ie, it is an essential element of a charge, claim, or defense—character evidence can be admitted through (1) reputation or opinion testimony *or* (2) specific instances of conduct.

References

Fed. R. Evid. 405 (methods of proving character).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

At a student's trial for stealing an automobile, the student called his college professor as a character witness. The professor testified that the student had an excellent reputation for honesty. In rebuttal, the prosecutor calls one of the student's classmates to testify that he recently saw the student cheat on a college examination.

Is the classmate's testimony admissible?

A. No, because it has no probative value on any issue in the case.

B. No, because the student's cheating can be inquired into only on cross-examination of the college professor.

C. Yes, because the cheating involves "dishonesty or false statement."

D. Yes, because the student "opened the door" to the prosecutor's proof of bad-character evidence.

Explanation:

A **criminal defendant** may offer **evidence of his/her good character** if that trait is **pertinent to the crime charged**—eg, a defendant's peaceful nature is pertinent to a violent crime. This can be accomplished by calling a character witness to provide **reputation or opinion testimony** about that character trait. But once this testimony is admitted, the defendant opens the door for the **prosecution to rebut** it by introducing:

reputation or opinion testimony from its own witness about the defendant's pertinent character trait *or*

specific instances of conduct involving that trait—but only while cross-examining the defendant's character witness (ie, no extrinsic evidence).

Here, the student called his professor to testify to the student's excellent reputation for honesty—a character trait pertinent to vehicle theft. This testimony opened the door for the prosecution to offer rebuttal evidence showing the student's bad character for honesty **(Choice D)**. But since evidence that the student had cheated on a college exam is a specific instance of conduct, it can only be admitted on cross-examination of the professor—not through extrinsic evidence like the classmate's testimony. Therefore, the classmate's testimony is inadmissible.

(Choice A) Evidence is probative when it tends to make a material fact more or less probable. Cheating on the exam *is* probative of the student's character for truthfulness, but it can only be admitted if it complies with other evidentiary rules.

(Choice C) Since the student's cheating involves dishonesty or a false statement, the prosecution can use this evidence to rebut the student's evidence showing his honest character. But the prosecution can only inquire into this specific instance of conduct while cross-examining the professor.

Educational objective:

A criminal defendant may call a character witness to testify about a character trait that is pertinent to the crime charged. If the defendant does so, the prosecution can rebut that evidence by introducing (1) reputation or opinion testimony from any witness or (2) specific instances of conduct while cross-examining the defendant's witness.

References

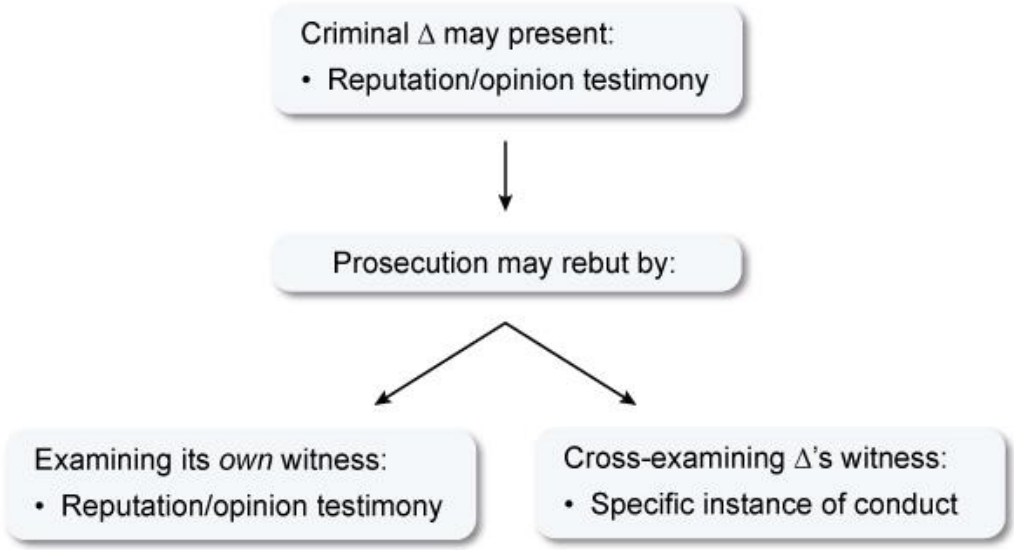
Fed. R. Evid. 404 (character evidence).

Fed. R. Evid. 405 (methods of proving character).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Character evidence on pertinent trait



Δ = defendant

©UWorld

A defendant was charged with possession of cocaine with intent to distribute. He had been stopped while driving a car and several pounds of cocaine were found in the trunk.

In her opening statement, the defendant's counsel asserted that her client had no key to the trunk and no knowledge of its contents. The prosecutor offers the state motor vehicle registration, shown to have been found in the glove compartment of the car, listing the defendant as the owner.

Should the court admit the registration?

A. No, as hearsay not within any exception.

B. No, unless authenticated by testimony of or certification by a state official charged with custody of vehicle registration records.

C. Yes, as a statement against interest.

D. Yes, as evidence of the defendant's close connection with the car and, therefore, knowledge of its contents.

Explanation:

Evidence is **relevant**, and admissible unless otherwise provided by law or other rules, if:

it has any tendency to make a fact more or less probable than it would be without that evidence (ie, **probative**) *and*

the fact is of consequence to the outcome of the case (ie, **material**).

Whether the defendant knew that there was cocaine in his possession is an issue of material fact in this case. The defendant's counsel claimed that he had no key to the trunk and no knowledge of the cocaine found therein. But a state motor vehicle registration found in the glove compartment listing the defendant as the owner provides circumstantial evidence of his close connection with the car. Since this would make it more probable that the defendant knew that there was cocaine in his trunk, the registration is *relevant*.

However, one basis for exclusion raised in this question is the **hearsay rule**, which generally bars the admission of **out-of-court statements** (eg, vehicle registrations) offered to prove the **truth of the matter asserted** therein (eg, the vehicle's owner). Here, the registration is *not* hearsay because it is being offered to prove the defendant's close connection to the car—not his ownership of it. Therefore, the registration need not be excepted (eg, as a statement against interest) or excluded from hearsay to be admitted **(Choices A & C)**.

The other basis for exclusion raised here is lack of **authenticity**. All tangible evidence must be authenticated—ie, proven to be what the proponent claims it to be—before it can be admitted to **prove its contents**. Therefore, a state custodian would have to certify the registration (ie, a public record) to prove that the defendant owned the car, but not to establish his connection to it **(Choice B)**. And since no other grounds for exclusion have been raised, the court should admit the registration.

Educational objective:

Evidence is relevant if it has any tendency to make a material fact more or less probable. Relevant evidence is admissible unless it is excluded by law or other rules—eg, hearsay, authenticity requirements.

References

Fed. R. Evid. 401 (test for relevance).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Legal bases for excluding relevant evidence
(FRE 402)

U.S. Constitution
(eg, obtained illegally)



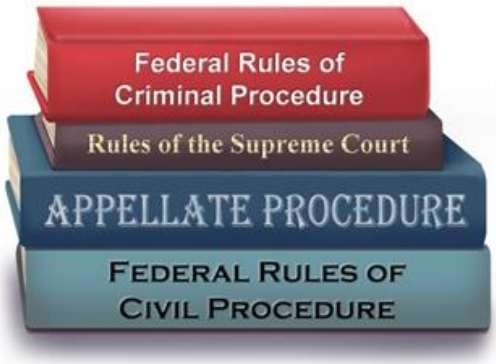
Federal statute
(eg, prohibited disclosure)



Federal Rules of Evidence
(eg, hearsay)



Other rules promulgated by
U.S. Supreme Court



FRE = Federal Rules of Evidence

A prominent investment advisor sued a former client for slander. In his complaint, the investment advisor alleged that the client publicly accused him of being a con artist. The client timely filed an answer whereby she admitted to making the statement but also asserted that the statement was true.

At trial, the client offers evidence that the investment advisor had knowingly managed a fraudulent investment fund commonly referred to as a Ponzi scheme.

Is evidence of the investment advisor's management of the fraudulent investment fund admissible?

A. No, because character must be shown by reputation or opinion.

B. No, because its relevance is substantially outweighed by the danger of unfair prejudice.

C. Yes, because specific instances of conduct may be proved when character is directly in issue.

D. Yes, because the investment advisor's action constituted a felony.

Explanation:

Examples of character as essential element

	Definition	Character at issue
Defamation	Injuring plaintiff's reputation with spoken (slander) or written (libel) false statement	Plaintiff
Negligent entrustment	Injuring plaintiff by negligently entrusting dangerous article to reckless or incompetent person	Person entrusted
Child custody	Modifying child custody, visitation, or other parental rights	Parent or guardian
Entrapment	Criminal defense alleging government inducement & defendant's lack of predisposition to commit crime	Defendant
Negligent hiring	Injuring plaintiff by negligently hiring person of dangerous or untrustworthy character	Hiree

Evidence of a person's **character** is generally inadmissible to prove that the person acted in conformity with that character on the occasion in question. But such evidence is **admissible** when the person's character is **directly in issue**—ie, is an **essential element** of a charge, claim, or defense. Character may then be proved by reputation or opinion testimony as well as specific instances of conduct **(Choice A)**.

Here, the investment advisor sued a former client for slander after she publicly accused him of being a con artist. The investment advisor's character is directly in issue because truth is an absolute defense to slander, and his actual character will determine whether the client's statement was true. Therefore, evidence that the investment advisor knowingly managed a fraudulent investment fund (a specific instance of conduct) is admissible to prove his actual character as a con artist.

(Choice B) Relevant evidence may be excluded if its probative value is substantially outweighed by a danger of unfair prejudice. This danger exists when the evidence may cause the jury to decide the case on an improper basis (eg, emotion). But here, any danger of unfair prejudice posed by the evidence does *not* substantially outweigh its probative value because the evidence is *essential* to the client's truth defense.

(Choice D) When character is directly in issue, *any* specific acts that show this character are admissible. So the fact that the investment advisor's action constituted a felony is irrelevant.

Educational objective:

Character evidence is admissible when a person's character is an essential element of a charge, claim, or defense (ie, when character is directly in issue). Character can then be proved by evidence of reputation, opinions, or specific instances of conduct.

References

Fed. R. Evid. 405 (methods of proving character).

Copyright © UWorld. All rights reserved.

In a civil action for breach of an oral contract, the defendant denied having entered into a contract with the plaintiff, although he admitted that he had discussed doing so.

Which of the following standards of admissibility should the court apply to evidence proffered as relevant to prove whether a contract was formed?

A. Whether a reasonable juror would find the evidence determinative of whether the contract was or was not formed.
B. Whether the evidence has any tendency to make the fact of contract formation more or less probable than without the evidence.
C. Whether the evidence is sufficient to prove, absent contrary evidence, that the contract was or was not formed.
D. Whether the evidence makes it more likely than not that a contract was or was not formed.

Explanation:

Under Federal Rule of Evidence 401, **relevant evidence** is admissible unless it is barred by law or other evidentiary rules. Evidence is relevant if it has ***any*** **tendency** to make a **material fact** more or less **probable** than it would be without that evidence. A fact is material if it is of consequence in determining the outcome of the case.

In a breach-of-contract dispute, a material fact is the formation of a contract. Therefore, the standard of admissibility the court should apply in this case is "whether the evidence has any tendency to make the fact of contract formation more or less probable than without the evidence" **(Choice D)**.

(Choices A & C) Whether evidence is admissible is a preliminary question for the *court* to decide. If the evidence is admitted, then the *jury* must decide if the evidence is sufficient to prove or determinative of whether a contract was formed.

(Choice D) The preponderance standard—eg, whether the evidence makes it more likely than not that a contract was formed—is the burden of proof that juries must apply to admitted evidence in most civil cases.

Educational objective:

The test for relevancy is whether the evidence has any tendency to make a material fact more or less probable than it would be without that evidence.

References

Fed. R. Evid. 401 (test for relevant evidence).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with armed robbery and pleaded not guilty. At trial, the victim testified that she was unable to see the robber's face because he wore a mask. She also testified that the robber used a pistol with a unique camouflage paint job. The prosecutor then called a witness to testify that a week before the victim was robbed, the defendant robbed the witness with a camouflage pistol. The defendant has not been convicted of robbing the witness.

Should the court admit the witness's testimony?

A. No, because it is impermissible character evidence.

B. No, because the defendant has not been convicted of robbing the witness.

C. Yes, to prove that the defendant robbed the victim.

D. Yes, to prove the defendant's propensity to commit robbery.

Explanation:

Noncharacter purposes for admitting crime or bad act

(MIMIC)

Motive	To show purpose for committing charged crime
Intent	To establish guilty mind or negate good faith
Absence of Mistake	To negate mistake or accident & prove deliberate act
Identity	To connect defendant to crime with unique pattern of behavior (ie, criminal signature)
Common plan or scheme	To show preparation or planning
Other	To show knowledge of crime, opportunity to commit crime, consciousness of guilt, etc.

Evidence that a **criminal defendant** committed similar **crimes or bad acts** is improper character evidence and is **inadmissible** when it is offered for **propensity purposes**—ie, to prove the defendant's character trait and his/her conformance with that trait on the occasion at issue **(Choice D)**. This protects criminal defendants from being convicted on the basis of bad character (as opposed to actual guilt).

However, such evidence may be **admissible** for **relevant, noncharacter purposes** (MIMIC). This includes proving the perpetrator's **identity**—eg, by showing a similarity between the defendant's prior bad acts and the charged crime to link the defendant to that crime. Therefore, testimony that the defendant robbed the witness with a camouflage pistol the week before the victim was robbed is admissible to prove that the defendant also robbed the victim **(Choice A)**.

(Choice B) Although the defendant has not been convicted of robbing the witness, this does not preclude the prosecution from introducing evidence of this bad act. Instead, the analysis turns on whether the prosecution is introducing the witness's testimony about the defendant for character or noncharacter purposes.

Educational objective:

Evidence that a criminal defendant committed similar crimes or bad acts is inadmissible character evidence when it is offered for propensity purposes. However, such evidence may be admissible for relevant, noncharacter purposes (MIMIC).

References

Fed. R. Evid. 404(b) (other crimes, wrongs, or acts).

Copyright © UWorld. All rights reserved.

A defendant is on trial for arson. In its case-in-chief, the prosecution offers evidence that the defendant had secretly obtained duplicate insurance from two companies on the property that burned and that the defendant had threatened to kill his ex-wife if she testified for the prosecution.

What evidence should the court admit?

A. Neither the defendant's obtaining duplicate insurance nor threatening to kill his ex-wife.

B. The defendant's obtaining duplicate insurance only.

C. The defendant's threatening to kill his ex-wife only.

D. Both the defendant's obtaining duplicate insurance and threatening to kill his ex-wife.

Explanation:

Noncharacter purposes for admitting crime or bad act

(MIMIC)

Motive	To show purpose for committing charged crime
Intent	To establish guilty mind or negate good faith
Absence of Mistake	To negate mistake or accident & prove deliberate act
Identity	To connect defendant to crime with unique pattern of behavior (ie, criminal signature)
Common plan or scheme	To show preparation or planning
Other	To show knowledge of crime, opportunity to commit crime, consciousness of guilt, etc.

The prosecution cannot introduce evidence of a **criminal defendant's** prior **crimes or bad acts** to prove that the defendant has a criminal disposition (ie, bad character) and likely committed the charged crime as a result. But evidence of prior crimes or bad acts may be **admissible** for **relevant, *noncharacter* purposes** (ie, **MIMIC**). This includes proving the defendant's **motive** for committing the charged crime or **consciousness of guilt**.

Here, evidence that the defendant obtained duplicate insurance policies on the property before it burned down can be used to show his motive for committing arson—to collect insurance proceeds. And evidence that he threatened to kill his ex-wife to dissuade her from testifying against him can be used to show that he was aware of his guilt. Therefore, evidence of both should be admitted **(Choices A, B & C)**.

Educational objective:

The prosecution may offer evidence of a criminal defendant's prior crimes or bad acts for a relevant, *noncharacter* purpose—eg, to prove the defendant's motive or consciousness of guilt.

References

Fed. R. Evid. 404(b) (crimes, wrongs, other acts).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A woman is on trial for nighttime breaking and entering of a warehouse. The warehouse owner had set up a camera to take infrared pictures of any intruders and testifies that a picture taken at the time of the burglary is a fair and accurate depiction of the warehouse. After an expert establishes the reliability of infrared photography, the prosecutor offers the authenticated infrared picture of the intruder to show the similarities to the woman.

Is the photograph admissible?

A. No, because infrared photography deprives a defendant of the right to confront witnesses.

B. No, because there was no eyewitness to the scene available to authenticate the photograph.

C. Yes, provided an expert witness points out to the jury the similarities between the person in the photograph and the woman.

D. Yes, to allow the jury to compare the person in the photograph and the woman.

Explanation:

Authenticating physical objects

(FRE 901)

Personal knowledge	Testimony by witness with personal knowledge of object (or that reproduction depicts original object) Most common method of authentication
Comparison	Comparison of object or writing against authenticated specimen by expert or trier of fact
Distinctive characteristics	Testimony on object's appearance, contents, substance, internal patterns, or other distinctive characteristics
Chain of custody	Substantially unbroken account of object's whereabouts from time it was obtained until introduction at trial Required method for authenticating objects that could easily be tampered with or confused with similar item (eg, blood sample)
X-ray images & electrocardiograms	Evidence showing accurate process was used, machine was working properly, machine operator was qualified & chain of custody Required method for authenticating physical representations of things that cannot otherwise be seen

FRE = Federal Rule of Evidence.

All tangible evidence must be **authenticated** before it can be admitted at trial. This requires a prima facie showing that the object is what the proponent claims it to be. For a **photograph**, authentication is often done by having a **witness with personal knowledge** of the thing depicted **testify** that the photograph **fairly and accurately depicts** that thing—just as the warehouse owner testified here **(Choice B)**.

But since the **photograph** was taken at night with an infrared camera, it is a representation of something that could **not otherwise be seen** (similar to an X-ray image). As a result, it requires evidence that the process for taking that photograph was reliable—just as the expert testified here. Since the photograph was authenticated, it is admissible to allow an expert witness *or* the trier of fact (here, the jury) to compare the person depicted in that photograph to the woman **(Choice C)**.

(Choice A) The Sixth Amendment confrontation clause secures a defendant's right to confront witnesses offering testimonial evidence against him/her in a criminal case. Evidence is testimonial if it was made primarily for use in a criminal investigation or prosecution, so a photograph taken *before* a criminal investigation commenced is not testimonial. And even if it was, the defendant can confront the warehouse owner and expert.

Educational objective:

A photograph is generally authenticated when a witness with personal knowledge of the thing depicted testifies that the photograph fairly and accurately depicts that thing. But if the photograph depicts something that could not otherwise be seen, the process for taking that photograph (eg, infrared camera) must be proven reliable.

References

Fed. R. Evid. 901 (authenticating or identifying evidence).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff sued a utility company that owns a reservoir that is open to the public for recreation pursuant to a license from a federal agency. The plaintiff was severely injured in the reservoir when he dove from a boat into what he thought was deep water and hit an unmarked submerged island. The plaintiff alleges that the company was negligent in failing to mark the submerged island. At trial, the plaintiff has called an engineer and qualified him as an expert in managing reservoirs.

Which of the following opinions by the plaintiff's expert is the court most likely to admit?

A. "The accident probably occurred in the manner shown by this computer-animated film I made."

B. "The company could have marked the island in a day and at a cost of $300."

C. "The company was required by federal law to mark the island."

D. "The plaintiff was not contributorily negligent."

Explanation:

An **expert witness** is one who possesses specialized knowledge, skill, experience, education, or training in a subject that pertains to an issue in litigation. Once qualified as an expert, a witness may testify on a disputed issue if that testimony is:

relevant – the testimony will help the trier of fact (1) understand the evidence OR (2) determine a fact in issue *and*

reliable – the testimony is (1) based on sufficient facts or data AND (2) the product of reliable principles and methods that the expert has reliably applied to the facts of the case.

But the expert's **opinion must relate** to his/her **field of expertise**. And since the engineer's area of expertise is managing reservoirs, the court is most likely to admit his opinion that the company could have marked the island in a day at a cost of $300.

(Choice A) A qualified expert may offer an opinion as to how an accident probably occurred and may use demonstrative evidence (eg, computer animation) to do so. But since there is no indication that the engineer is an expert in the cause or manner of accidents, the court is unlikely to admit this opinion.

(Choice C) An expert may offer a legal opinion in certain circumstances—eg, when testifying in a legal-malpractice case—if that opinion relates to the expert's field of expertise (not seen here).

(Choice D) A qualified expert may testify as to a plaintiff's contributory negligence (or lack thereof), but there is no indication that the engineer is qualified to give such an opinion in this case.

Educational objective

A qualified expert witness may offer an opinion on a disputed issue if that opinion relates to the witness's field of expertise.

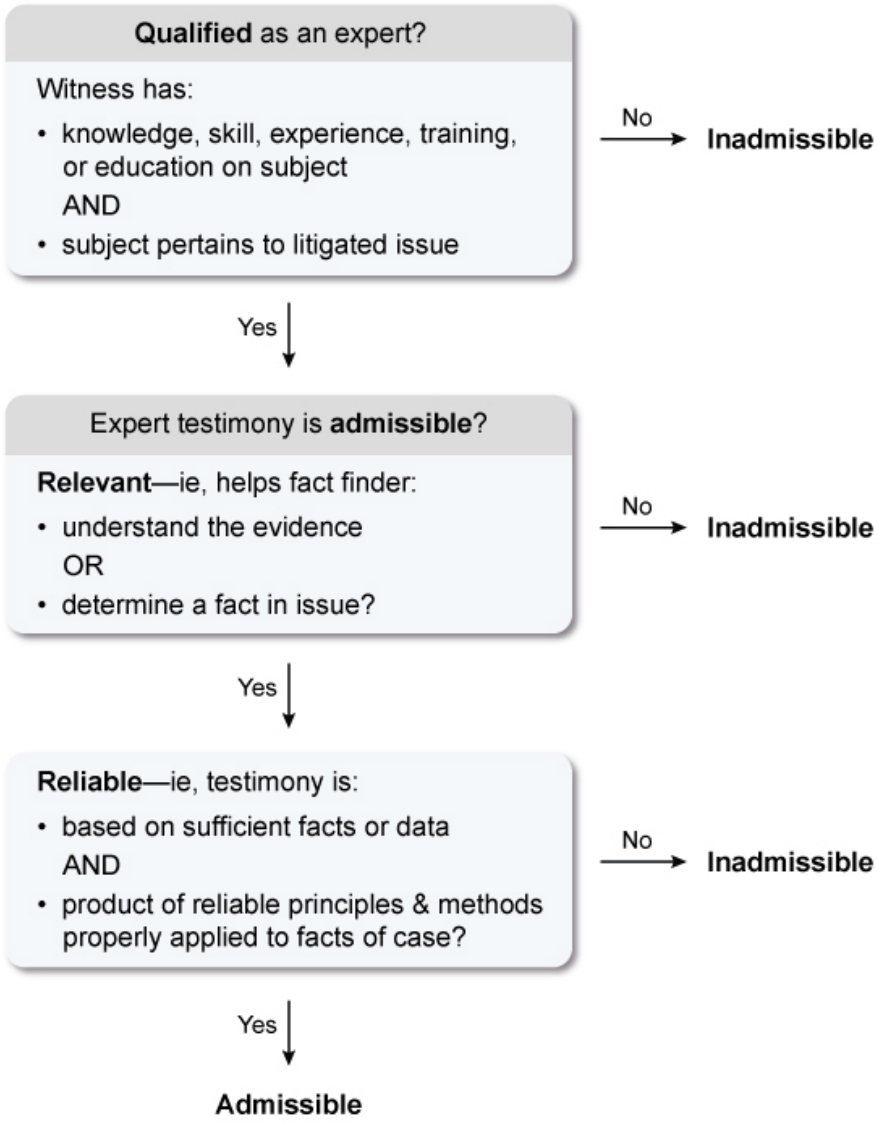
References

Fed. R. Evid. 702 (expert witness testimony).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of expert testimony



©UWorld

A plaintiff brought a wrongful death action against a defendant following the death of her husband. The plaintiff's husband was in a collision with the defendant and died one week later from a massive brain hemorrhage. The cause of the brain hemorrhage is disputed. At trial, the plaintiff called a medical expert who testified that, in her expert opinion, the husband's brain hemorrhage was caused by the collision and not a congenital defect in his artery. The expert further testified that her opinion was based in part on information contained in a private and nonroutine letter that a medical examiner had written for the husband's life insurance company after the husband's autopsy explaining his injuries and cause of death. The plaintiff now seeks disclose the contents of the letter to the jury.

Is the jury entitled to hear this evidence?

A. No, because the expert lacks personal knowledge of the autopsy.

B. No, because the contents of the medical examiner's letter are hearsay and cannot be heard by the jury.

C. Yes, because all facts relied upon in forming the bases of an expert opinion are automatically admitted into evidence.

D. Yes, provided that its probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect.

Explanation:

Bases of expert's opinion testimony

(FRE 703)

Expert opinion testimony may be based on facts/data:
personally observed by expert
made known to expert *during* trial OR
made known to expert *before* trial if other experts would reasonably rely on fact/data when forming opinion
Otherwise inadmissible facts/data may be admitted if probative value in helping jury evaluate opinion substantially outweighs prejudicial effect
FRE = Federal Rule of Evidence.

Under Federal Rule of Evidence 703, an **expert witness's opinion** can be **based on facts or data** that the expert has:

personally observed

been made aware of during trial *or*

been made aware of before trial if other experts in the field would reasonably rely on those kinds of facts or data to form an opinion.

Here, the plaintiff's expert witness explained that her opinion was based, in part, on information from the medical examiner's letter to the insurance company. Although the expert lacked personal knowledge of the husband's autopsy, other medical experts in this field would reasonably rely on information from a medical examiner to determine a person's cause of death. Therefore, the plaintiff's expert properly based her opinion on that letter **(Choice A)**.

However, the mere fact that the expert relied on the letter to form her opinion does not automatically make it admissible **(Choice C)**. The facts or data relied on by the expert **must be admissible** under the evidentiary rules. If not, then that information can be **disclosed to the jury only if** the court determines that its probative value in helping the jury evaluate the expert's opinion **substantially outweighs** its prejudicial effect.

Here, the contents of the medical examiner's letter falls within the rule against hearsay,* which generally bars the admission of out-of-court statements offered to prove the truth of the matter asserted therein—here, the cause of the brain hemorrhage. But the statement may nevertheless be disclosed, provided that its probative value substantially outweighs its prejudicial effect **(Choice B)**.

*The hearsay exceptions for public records and business records do not apply to the medical examiner's letter because it was private and not made and kept as a regular practice in the course of regularly conducted business activities (ie, nonroutine).

Educational objective:

If an expert opinion relies on otherwise inadmissible facts or data, then that information may be disclosed to the jury only if the court determines that its probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect.

References

Fed. R. Evid. 703 (bases of expert's opinion testimony).

Copyright © UWorld. All rights reserved.

A plaintiff sued for injuries arising from a car accident, claiming a back injury. At trial, she wishes to testify that before the accident she had never had any problems with her back.

Is the plaintiff's proposed testimony admissible?

A. No, because the plaintiff has not been qualified as an expert.

B. No, because the plaintiff's pain could have been caused by factors arising after the accident, such as an injury at work.

C. Yes, because it is probative evidence of the plaintiff's injury.

D. Yes, because the testimony of parties is not subject to the lay opinion rule.

Explanation:

Evidence is **relevant**, and admissible unless otherwise provided by law or other rules, if:

it has any tendency to make a fact more or less probable than it would be without that evidence (ie, **probative**) *and*

the fact is of consequence to the outcome of the case (ie, **material**).

Here, the plaintiff's proposed testimony is probative because it tends to make the fact that she was injured from the car accident more probable. It is also material because it will impact her ability to recover for those injuries. And since no other rules raised in this question apply, the plaintiff's proposed testimony is admissible.

(Choice A) A witness need not be qualified as an expert to testify to a matter of personal knowledge—ie, knowledge based on firsthand observation or experience (as seen here).

(Choice B) The plaintiff can testify that she never had any problems with her back *before* the accident even if other factors *after* the accident may have contributed to her back pain. However, if admitted, the jury may consider these other factors in assessing the weight of the plaintiff's testimony.

(Choice D) Under the lay opinion rule, *all* nonexpert opinion testimony must be (1) rationally based on the witness's firsthand perception, (2) helpful to understanding the witness's testimony or determining a fact in issue, and (3) not based on scientific, technical, or other specialized knowledge. This includes a party's testimony.

Educational objective:

Evidence is relevant if it has any tendency to make a fact more or less probable than it would be without that evidence (ie, probative) and the fact is of consequence to the outcome of the case (ie, material).

References

Fed. R. Evid. 401 (test for relevance).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Legal bases for excluding relevant evidence
(FRE 402)

U.S. Constitution
(eg, obtained illegally)



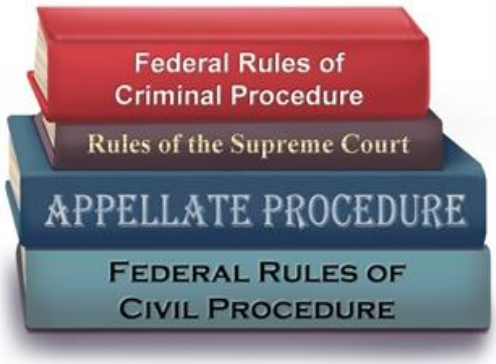
Federal statute
(eg, prohibited disclosure)



Federal Rules of Evidence
(eg, hearsay)



Other rules promulgated by
U.S. Supreme Court



FRE = Federal Rules of Evidence

A defendant has been charged with murder. At trial, the defendant testified that he and the victim were discussing politics when the victim became enraged and lunged at him with a knife. The defendant further testified that he feared for his life and had no choice but to kill the victim. On rebuttal, the prosecution seeks to call a witness to testify that the victim had a reputation in the community as a peaceful and nonviolent person.

Is the witness's testimony admissible?

A. No, because the defendant has not offered evidence of his own pertinent trait.

B. No, because the defendant has not offered evidence of the victim's bad character.

C. Yes, because the defendant introduced evidence of the victim's violent character.

D. Yes, because the defendant testified that the victim was the first aggressor.

Explanation:

Evidence of a person's character is generally inadmissible to prove that the person acted in accordance with that character on a particular occasion. However, the **character of a *victim*** in a criminal case is **admissible in two circumstances**:

In **any criminal case**, a defendant may offer evidence of the **victim's** pertinent trait,* and the prosecution may then offer (1) evidence to **rebut that trait** and (2) evidence that the defendant has the **same trait**.

In a **homicide case**, if the defendant offers evidence that the victim was the first aggressor, the prosecutor may offer evidence of the **victim's character for peacefulness** to **rebut** that evidence.

Evidence of a victim's character must be introduced through reputation or opinion testimony—except on cross-examination of a character witness, where relevant specific instances of the victim's conduct may also be introduced.

In this homicide case, the defendant testified that the victim became enraged and attacked the defendant with a knife—evidencing that the victim was the first aggressor. The defendant thereby opened the door for the prosecution to rebut this testimony by introducing evidence of the victim's peaceful and nonviolent character. Therefore, the witness's reputation testimony is admissible.

*Under Federal Rule of Evidence 412, evidence offered to prove (1) that a victim engaged in other sexual behavior or (2) a victim's sexual predisposition is inadmissible in civil or criminal proceedings involving sexual misconduct—with some exceptions.

(Choice A) The fact that the defendant has not offered testimony of his own pertinent trait is irrelevant since doing so would merely open the door for the prosecution to rebut the defendant's character—not the victim's character.

(Choices B & C) The defendant did *not* offer evidence of the victim's bad or violent character—traits pertinent to the defendant's self-defense claim. That is because his testimony referred only to one instance of violence as opposed to the victim's general propensity for violence. Had the defendant offered such character evidence, the prosecution could have introduced evidence to rebut it.

Educational objective:

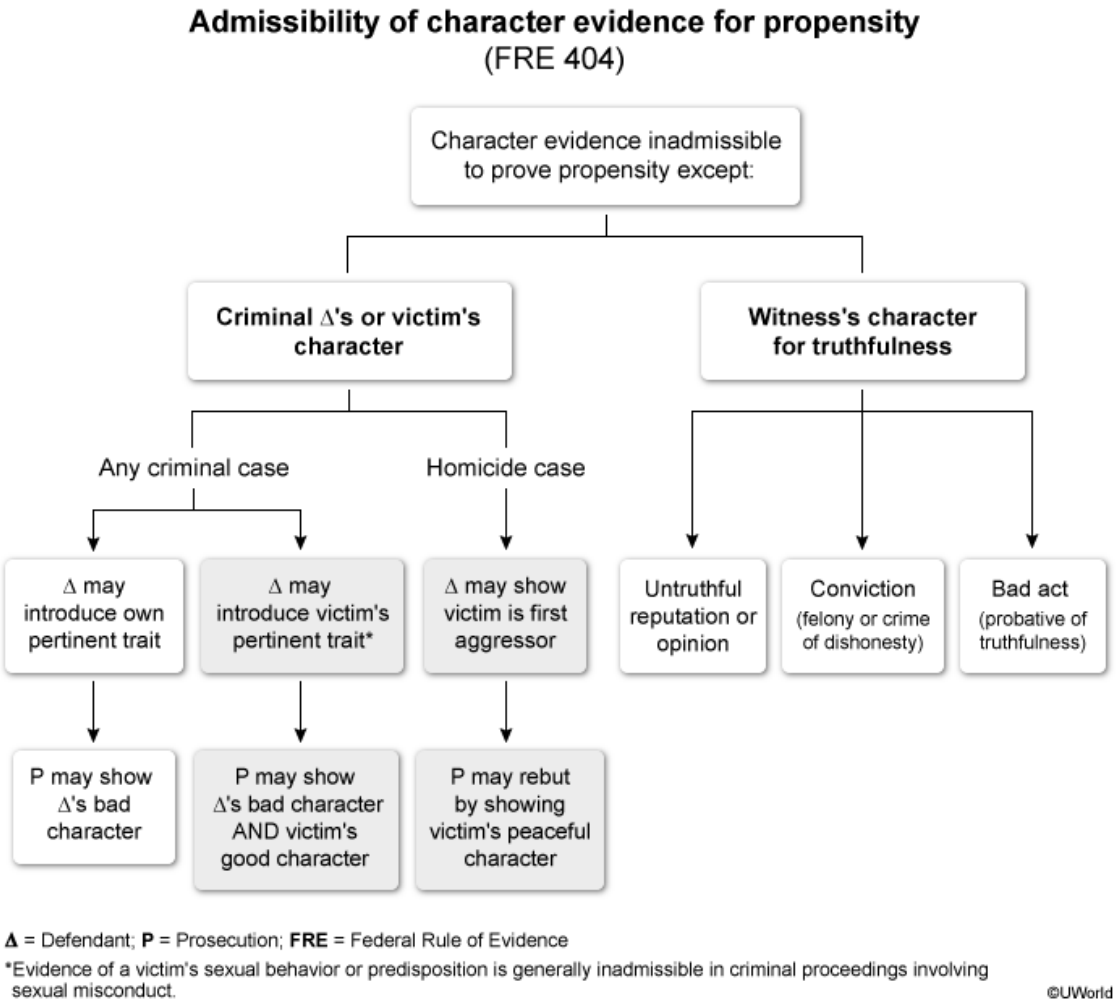
Evidence of a victim's character is generally inadmissible. But in criminal cases, a defendant may offer evidence of the victim's pertinent trait, which the prosecution may then rebut. And in homicide cases, the prosecutor may offer evidence of the victim's peaceful character to rebut evidence that the victim was the first aggressor.

References

Fed. R. Evid. 404(a)(2) (character evidence regarding victim in criminal cases).

Fed. R. Evid. 405 (methods of proving character).

Copyright © UWorld. All rights reserved.



In a suit based on a will, the distribution of $1 million depends upon whether the wife survived her husband when both died in the crash of a small airplane. An applicable statute provides that, for purposes of distributing an estate after a common disaster, there is a rebuttable presumption that neither spouse survived the other.

A witness has been called to testify that as she approached the plane she heard what she thought was a woman's voice saying, "I'm dying," although by the time the husband and wife were removed from the wreckage they were both dead.

Is the witness's testimony admissible?

A. No, because the matter is governed by the presumption that neither spouse survived the other.

B. No, because the witness's testimony is too speculative to support a finding.

C. Yes, because it is relevant and not otherwise prohibited.

D. Yes, because the hearsay rule does not apply to statements by decedents in actions to determine rights under a will.

Explanation:

To be admissible, **evidence must be relevant**. This means that the evidence must have some tendency to make a **material fact more or less probable**. Here, the outcome of the suit depends on whether the wife survived the husband. And the witness's testimony that she heard a woman's voice say, "I'm dying," as she approached the wreckage increases the likelihood that the wife outlived the husband and rebuts the statutory presumption that neither spouse survived the other. Therefore, the witness's testimony is relevant.

However, relevant evidence **may be excluded** by a specific **rule, law, or constitutional provision**. One ground for exclusion raised here pertains to the **hearsay rule**, which prohibits out-of-court statements offered to prove the truth of the matter asserted therein. But the out-of-court statement, "I'm dying," is *not* hearsay since it is being used to prove that the woman could speak and so was alive when the statement was made—not to prove that she was actually dying **(Choice D)**. Therefore, the witness's testimony is admissible.

(Choice A) Under the "bursting bubble" approach* followed by the Federal Rules of Evidence in civil cases, a party can overcome a presumption (eg, that neither spouse survived the other) by producing sufficient contrary evidence. Once this occurs, the presumption "bursts" and no longer governs the matter.

(Choice B) The witness's testimony is *not* too speculative since there is no requirement that a witness be absolutely certain of matters about which he/she testifies.

*This bursting-bubble approach does not apply to conclusive presumptions or in federal diversity cases, where state law governs the effect of a presumption.

Educational objective:

Evidence is only admissible if it is relevant—ie, tends to make a material fact more or less probable. But relevant evidence may be excluded by a specific rule, law, or constitutional provision (eg, the hearsay rule).

References

Fed. R. Evid. 401 (test for relevant evidence).

Fed. R. Evid. 402 (general admissibility of relevant evidence).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Legal bases for excluding relevant evidence
(FRE 402)

U.S. Constitution
(eg, obtained illegally)



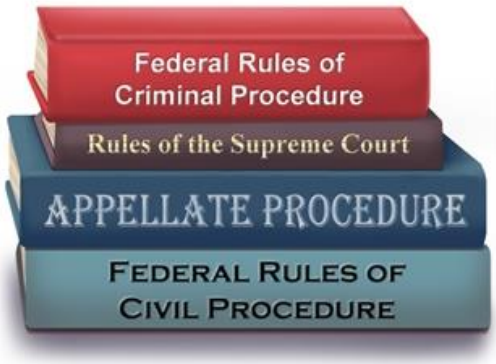
Federal statute
(eg, prohibited disclosure)



Federal Rules of Evidence
(eg, hearsay)



Other rules promulgated by
U.S. Supreme Court



FRE = Federal Rules of Evidence

At the defendant's murder trial, the defendant calls his first witness to testify that the defendant has a reputation in their community as a peaceful and truthful person. The prosecutor objects on the ground that the witness's testimony would constitute improper character evidence.

Should the court admit or exclude the witness's testimony?

A. Admit the testimony as to peacefulness but exclude the testimony as to truthfulness.
B. Admit the testimony as to truthfulness but exclude the testimony as to peacefulness.
C. Admit the testimony as to both character traits.
D. Exclude the testimony as to both character traits.

Explanation:

Pertinent trait v. Truthful character

(admissibility of evidence on criminal defendant's character)

Pertinent trait	Defendant may offer evidence of pertinent character trait by:
(FRE 404(a))	reputation or opinion testimony Prosecution may rebut with:
	reputation or opinion testimony *or* SIC (only on cross-examination)
Truthful character	If defendant testifies, prosecution may impeach with:
(FRE 608)	reputation or opinion testimony SIC (only on cross-examination) *or* extrinsic evidence of conviction for felony or crime of dishonesty Defendant may rebut with:
	reputation or opinion testimony *or* SIC (only on cross-examination)

FRE = Federal Rule of Evidence; **SIC** = Specific instance of conduct.

A **criminal defendant** may offer evidence of his/her ***good* character** in the form of reputation or opinion testimony if that character trait is **pertinent** (ie, relevant) **to the charged crime**. Here, the defendant's character for peacefulness (but not truthfulness) is pertinent to murder since it is a violent crime. Therefore, the witness's testimony as to the defendant's reputation for peacefulness should be admitted on this basis **(Choice D)**.

Alternatively, a defendant may offer evidence of his/her ***truthful* character** if (1) the **defendant has testified** and (2) the **prosecution has impeached** that testimony by attacking the defendant's truthfulness. Here, the defendant has not testified since he has only called his first witness. Therefore, testimony as to the defendant's truthful reputation is inadmissible on this basis **(Choices B & C)**.

Educational objective:

A criminal defendant may introduce evidence of his/her *good* character if that trait is pertinent to the charged crime. And evidence of a defendant's *truthful* character may be introduced if the defendant testified and his/her truthfulness was then attacked.

References

Fed. R. Evid. 404(a) (character evidence).

Fed. R. Evid. 608 (witness's character for truthfulness).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A company sued the defendant, its former vice president, for return of $230,000 that had been embezzled during the previous two years. Called by the company as an adverse witness, the defendant testified that his annual salary had been $75,000, and he denied the embezzlement.

The company calls a banker as a witness to show that, during the two-year period, the defendant had deposited $250,000 in his bank account.

Is the banker's testimony admissible?

A. No, because its prejudicial effect substantially outweighs its probative value.

B. No, because the deposits could have come from legitimate sources.

C. Yes, as circumstantial evidence of the defendant's guilt.

D. Yes, to impeach the defendant.

Explanation:

Evidence is **relevant** if:

it has *any* tendency to make a fact more or less probable than it would be without that evidence (ie, **probative**) *and*

the fact is of consequence to the outcome of the case (ie, **material**).

Here, the plaintiff offers the banker's testimony that the defendant deposited $250,000 in his bank account over a two-year period—an amount well above his $75,000 annual salary. This testimony is circumstantial evidence that the defendant took another's money, which is a material fact in this embezzlement case. Therefore, the banker's testimony is relevant.

Relevant evidence is **admissible unless** otherwise excluded by law or other rules. One example is Federal Rule of Evidence 403, which excludes relevant evidence if its **prejudicial effect substantially outweighs** its **probative value**. Testimony about the defendant's deposits is *not* unfairly prejudicial because it does not tend to encourage the jury to decide the case on improper grounds **(Choice A)**. And since no other ground for exclusion has been raised, the testimony is admissible as circumstantial evidence of the defendant's guilt.

(Choice B) Whether the defendant's deposits could have come from legitimate sources may affect the strength or probative value that the jury assigns to the banker's testimony. But it does not make this testimony inadmissible, because evidence is relevant if it has even the slightest tendency to make a material fact more or less probable.

(Choice D) One method of impeachment is to specifically contradict the witness's testimony. But testimony that the defendant deposited $250,000 in his bank account does not directly contradict the defendant's testimony that he made $75,000 a year and did not embezzle money.

Educational objective:

Evidence is relevant if it has any tendency to make a material fact more or less probable than it would be without that evidence. Relevant evidence is admissible unless otherwise provided by law or other rules—eg, when its prejudicial effect substantially outweighs its probative value.

References

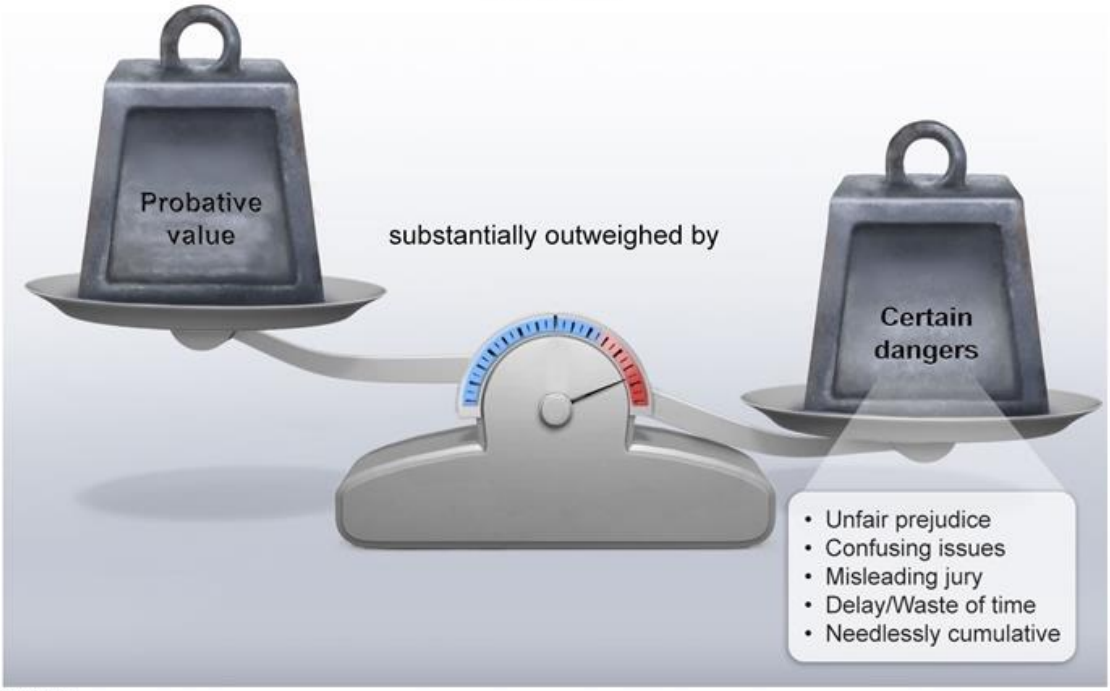
Fed. R. Evid. 401 (test for relevance).

Fed. R. Evid. 403 (exclusion of relevant evidence for certain dangers).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

A woman sued a factory owner under an age discrimination statute, alleging that the factory owner refused to hire her because she was over age 65. The factory owner's defense was that he refused to employ the woman because he reasonably believed that she would be unable to perform the job. The factory owner seeks to testify that the woman's former employer advised him not to hire the woman because she was unable to perform productively for more than four hours a day.

Is the factory owner's testimony admissible?

A. No, because the factory owner's opinion of the woman's abilities is not based on personal knowledge.

B. No, because the former employer's statement is hearsay not within any exception.

C. Yes, as evidence of the factory owner's reason for refusing to hire the woman.

D. Yes, as evidence that the woman would be unable to work longer than four hours per day.

Explanation:

Evidence is **admissible** if it is **relevant**—ie, tends to make a material fact more or less probable—and **not excluded** by law or other evidentiary rules. For example, the **rule against hearsay bars** otherwise relevant **out-of-court statements** that are (1) offered to prove the **truth of the matter asserted** therein and (2) not excluded or excepted from the hearsay rule. But the hearsay rule does not bar out-of-court statements that are offered for *another* purpose—eg, to show the statement's effect on the listener.

Here, any evidence pertinent to the factory owner's hiring decision is relevant in this age discrimination suit. The factory owner seeks to testify that he did not hire the woman because he reasonably believed that she was unable to perform the job. That belief stemmed from the former employer's out-of-court statement that the woman was unable to work more than four hours a day. Although this statement is not admissible to prove the truth asserted therein, it *is* admissible to show the statement's effect on the factory owner's hiring decision **(Choices B & D)**.

(Choice A) The factory owner is not offering an opinion of the woman's abilities, which would require personal knowledge. He is instead seeking to testify as to why he did not hire her.

Educational objective:

The hearsay rule bars out-of-court statements that are offered to prove the truth of the matter asserted therein, but not those that are offered for some other purpose—eg, to show the statement's effect on the listener.

References

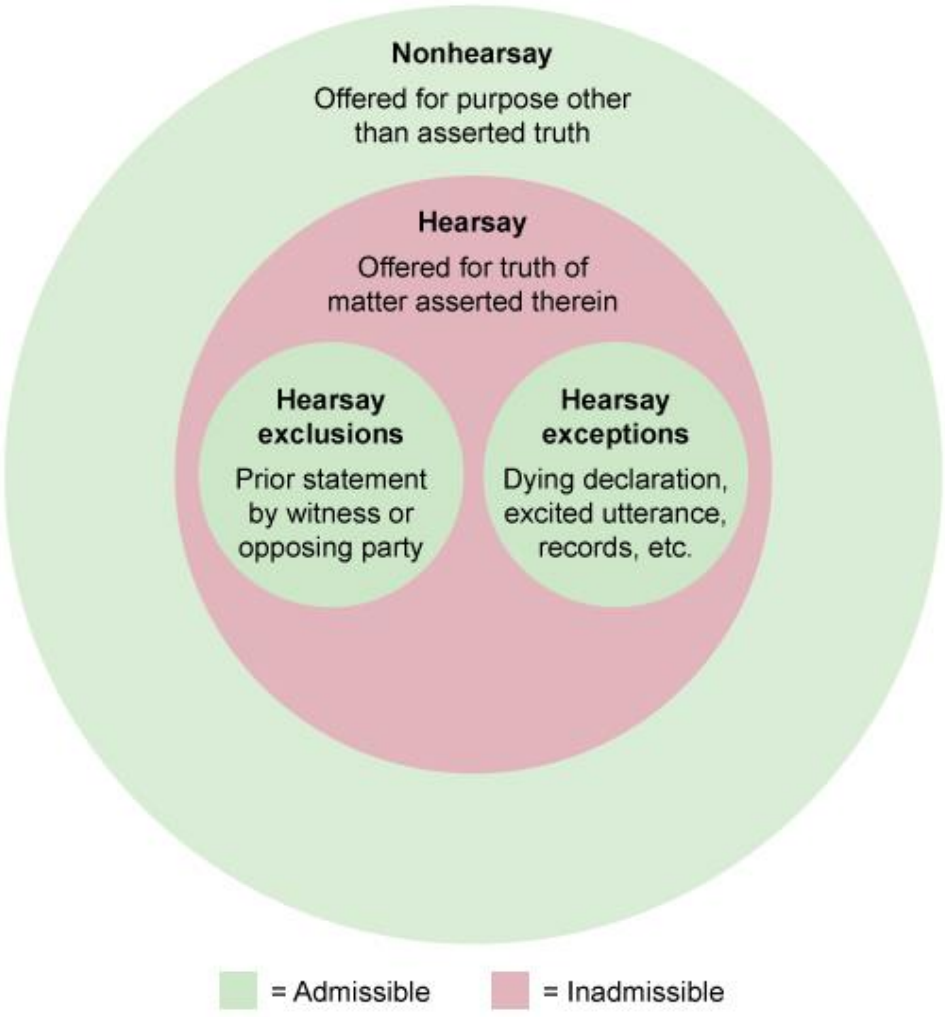
Fed. R. Evid. 801 (definition of hearsay).

Fed. R. Evid. 401 (relevance).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Admissibility of out-of-court statements



©UWorld

A plaintiff, who had been injured in an automobile collision, sued for damages. The defendant denied negligence and denied that the plaintiff's injuries were severe.

At trial, the plaintiff has offered in evidence a color photograph of himself made from a videotape taken by a television news crew at the scene of the collision. The plaintiff has demonstrated that the videotape has since been routinely reused by the television station and that the footage of the plaintiff was erased. The photograph shows the plaintiff moments after the collision, with his bloodied head protruding at a grotesque angle through the broken windshield of his car.

Should the photograph be admitted over the defendant's objection?

A. No, because the plaintiff has failed to establish that a duplicate could not be found.
B. No, because the plaintiff has failed to produce the original videotape or a duplicate.
C. Yes, because a photograph that establishes a disputed fact cannot be excluded as prejudicial.
D. Yes, because it tends to prove a controverted fact.

Explanation:

Relevant evidence—ie, evidence that tends to make a material fact more or less probable—is **admissible unless** otherwise provided by law or other evidentiary rules. For example, Federal Rule of Evidence (FRE) 403 bars the admission of relevant evidence if its **probative value** is ***substantially*** **outweighed** by its **danger of unfair prejudice**. This rule applies even when the proffered evidence establishes a disputed fact **(Choice C)**.

Here, the photograph offered by the plaintiff poses a danger of unfair prejudice because it shows the plaintiff's bloodied head protruding at a grotesque angle through the windshield. But the photograph has a *high* probative value because it goes to a controverted material fact—ie, that the plaintiff's injuries from the collision were severe. As a result, the photograph would likely pass FRE 403's balancing test and should be admitted.

Relevant evidence may also be barred by the best evidence rule. This rule generally requires that an **original be produced** to prove the contents of a **writing, recording, or photograph**. An original photograph includes the negative and any prints made from it. Therefore, the photograph would be considered an original that satisfies the best evidence rule if it is found to be a print from the negative of the videotape.

But even if the photograph was a **duplicate**, it would be **admissible** to the **same extent as an original** *unless* (1) a question is raised about the original's authenticity or (2) circumstances make it unfair to admit the duplicate. Since no such questions or circumstances appear here and the plaintiff need not show that other duplicates are unavailable, the photograph should be admitted over the defendant's objection **(Choices A & B)**.

Educational objective:

Relevant evidence is inadmissible if its probative value is substantially outweighed by its danger of unfair prejudice. And under the best evidence rule, relevant evidence in the form of a writing, recording, or photograph can be excluded if an original or reliable duplicate is not produced.

References

Fed R. Evid. 401 (defining relevant evidence).

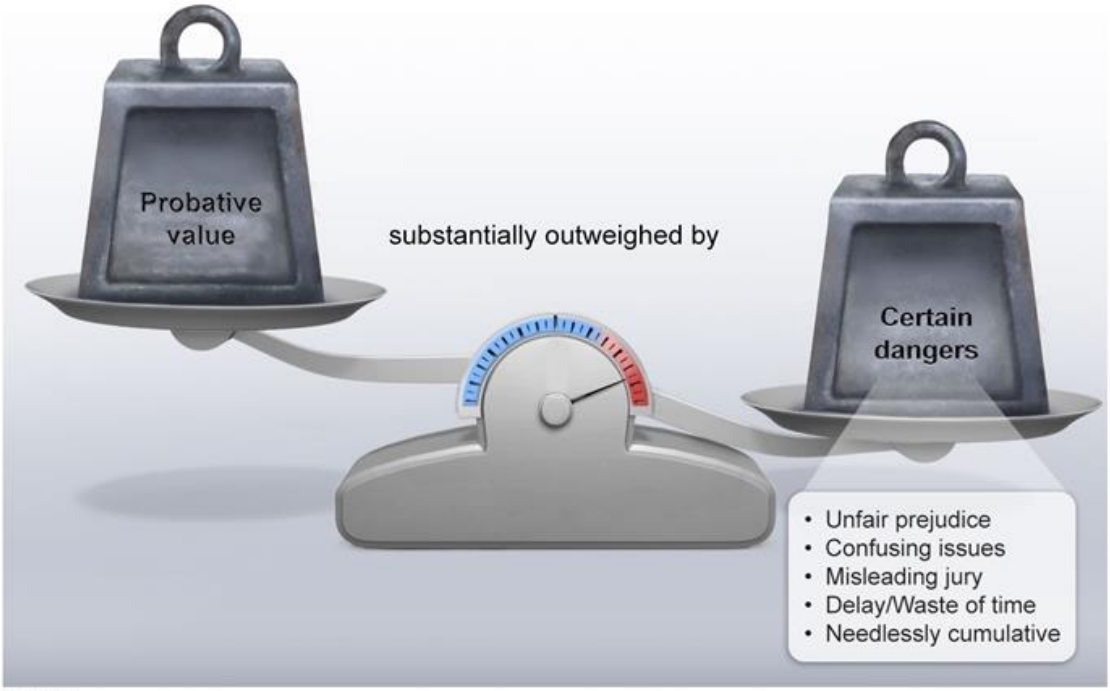
Fed R. Evid. 403 (test for excluding relevant evidence for certain dangers).

Fed R. Evid. 1001–04 (best evidence rule).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

When a man entered a bank and presented a check for payment, the bank teller recognized the signature on the check as a forgery because the check was drawn on the account of a customer whose handwriting she knew. The bank teller called the police. Before the police arrived, the man picked up the check from the counter and left. The man was charged with attempting to cash a forged check.

At trial, the prosecutor has called the bank teller to testify that the signature on the check was forged.

Is the bank teller's testimony admissible?

A. No, because it is not possible for either the jury or an expert to compare the signature on the missing check with a signature established as genuine.

B. No, because the bank teller was at fault in allowing loss of the original by failing to secure the check.

C. Yes, because a bank teller is by occupation an expert on handwriting.

D. Yes, because it is rationally based on the bank teller's perception and is helpful to the jury.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

A **signature** on a check (or other handwriting) that was forged can be **authenticated**—ie, proven to be what the proponent says it is—through two methods:

comparison – an **expert witness** or the **trier of fact** compares an authenticated signature against the disputed signature **(Choice A)** *or*

non-expert opinion – a lay witness with **personal knowledge** (ie, firsthand perception) of the **authentic signature** that was not acquired for the current litigation gives **opinion testimony** on a disputed signature.

Here, the bank teller is not a handwriting expert because she has no scientific, technical, or specialized knowledge in handwriting analysis **(Choice C)**. But she has seen the actual accountholder's signature firsthand on multiple occasions because she routinely accepted checks from the accountholder. And since this personal knowledge forms the basis of her opinion testimony on the forged signature, her testimony is admissible to help the jury determine if the check was forged.

(Choice B) The best evidence rule generally requires production of an original writing to prove its content. But this rule does not apply here since the bank teller is testifying to her personal knowledge of the forged signature—not the check's contents.

Educational objective:

Handwriting can be authenticated by (1) allowing an expert witness or the trier of fact to compare the authenticated and disputed handwriting or (2) allowing a lay witness with personal knowledge of the authentic handwriting (acquired outside of the current litigation) to give opinion testimony on the disputed handwriting.

References

Fed. R. Evid. 901(b)(2) (handwriting authentication by non-expert).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man has sued a police officer, alleging that the officer violated the man's civil rights by using excessive force while arresting him. At trial, the officer admits having hit the man in the head with the butt of his gun but contends that the force was necessary, because the man was resisting arrest. In support of his contention, the officer seeks to introduce evidence that the man had resisted arrest on three prior occasions during the last 10 years.

Is this testimony regarding the man's conduct during the three prior arrests admissible?

A. No, because evidence of the prior incidents constitutes impermissible character evidence.

B. No, because the officer has not shown that the man was convicted in connection with the prior incidents.

C. Yes, because the incidents in question are relevant evidence of the man's propensity for violence.

D. Yes, because the incidents in question are sufficient to constitute a habit.

Explanation:

Admissibility of previous criminal conviction or bad act

(FRE 404, 608 & 609)

Impeach witness's character (FRE 608(b), 609)	Impeach witness with either: conviction for crime of dishonesty or any felony through examination & extrinsic evidence *or* bad act (no conviction) elicited only on examination
Relevant noncharacter purpose (FRE 404(b))	Examination & extrinsic evidence to show **MIMIC**: **M**otive/opportunity **I**ntent **M**istake (absence of) **I**dentity **C**ommon scheme/plan

FRE = Federal Rules of Evidence

Character evidence is evidence of a person's general traits or propensities. Such evidence is generally **inadmissible** when used to prove that a person acted in conformity with a particular trait or propensity on the occasion at issue. That is because of the risk that a jury could punish a person for his/her bad character instead of what actually happened. Therefore, evidence of a person's **previous crimes or other acts** can only be **used for impeachment or noncharacter** purposes.

Here, the officer seeks to testify that the man had resisted arrest on three prior occasions. This testimony would support the officer's contention that the man resisted arrest on the occasion leading to this lawsuit because he has a propensity for doing so. As a result, this testimony constitutes character evidence and is *not* admissible.

(Choice B) The man's prior incidents cannot be used to prove that he resisted arrest on the occasion in question—regardless of whether the officer shows that those incidents resulted in convictions. But proof of a criminal conviction may have been necessary had the man testified and the officer introduced the man's prior incidents for impeachment purposes.

(Choice C) The prior incidents of resisting arrest are relevant since they tend to make it more probable that the man resisted arrest in this instance. But relevant evidence can still be excluded by a constitutional provision, law, or rule—eg, the rule prohibiting the use of character evidence.

(Choice D) Evidence of a person's habit is admissible to prove that the person acted in accordance with that habit on a particular occasion. Habit differs from character in that it

focuses on a person's regular response to a repeated specific situation (eg, regularly using a turn signal) instead of a general trait (eg, carefulness). And since the man's three prior incidents do not prove that he *regularly* resists arrest, they do not constitute a habit.

Educational objective:

Prior crimes and other acts cannot be used to prove a person's character—ie, one's propensity to behave in a certain manner.

References

Fed. R. Evid. 404(b) (crimes, wrongs, or other acts).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant who is a doctor has been charged with sexual assault for allegedly touching a patient inappropriately during a routine examination. The defendant pleaded not guilty and denied that any inappropriate conduct occurred during the patient's examination. At trial, the prosecutor seeks to show the defendant's propensity to commit sexual assault. The prosecutor has therefore called three of the defendant's other patients to testify that the defendant touched them inappropriately during routine examinations.

Should the testimony be admitted?

A. No, because character must be proved by reputation or opinion testimony.

B. No, because evidence of a prior crime or bad act is inadmissible to prove propensity.

C. Yes, because the defendant has been charged with sexual assault.

D. Yes, provided that the court finds beyond a reasonable doubt that the other incidents occurred.

Explanation:

Evidence of a **crime, wrong, or other act** is **generally not admissible** to **prove a person's character** by showing that the person acted in accordance with that character on the occasion being litigated. This ban on character evidence stems from concerns that a jury would give too much weight to this evidence and judge a person based on his/her bad record as opposed to the case at hand.

However, the Federal Rules of Evidence provide an **exception** for criminal and civil cases involving **sexual assault or child molestation**. In such cases, evidence that the accused committed any other sexual assault or child molestation is **admissible** for ***any*** **relevant purpose**—even to show the accused's **propensity** to commit the charged assault or molestation **(Choice B)**. Therefore, the testimony by the defendant's other patients should be admitted.

(Choice A) Character must generally be proved by reputation or opinion testimony. But when a party seeks to prove a defendant's propensity to commit sexual assault or child molestation, character can also be proved by introducing specific instances of conduct (eg, prior sexual assaults).*

(Choice D) The testimony regarding the other incidents is admissible if there is sufficient evidence for a reasonable jury to find that the incidents occurred by a preponderance of the evidence—a lower standard than beyond a reasonable doubt.

*Specific instances of conduct are also admissible when character is an essential element of the claim, charge, or defense.

Educational objective:

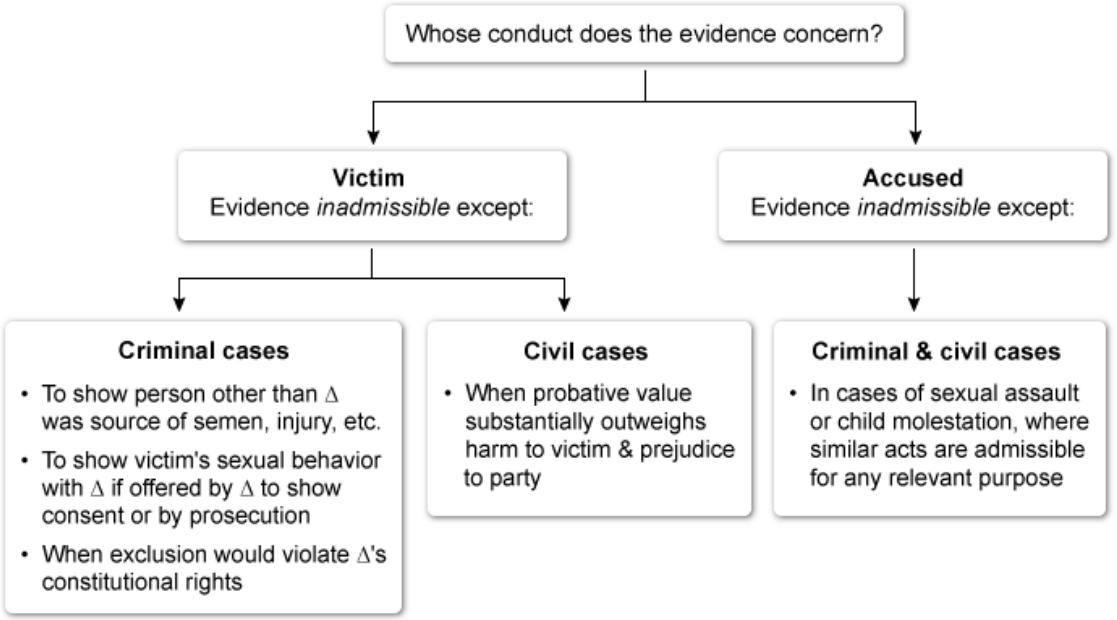
In criminal and civil cases involving sexual assault or child molestation, evidence that the accused committed any other sexual assault or child molestation is admissible for *any* relevant purpose—even to show the accused's propensity to commit the charged assault or molestation.

References

Fed. R. Evid. 413–15 (similar acts in criminal and civil cases involving sexual assault or child molestation).

Copyright © UWorld. All rights reserved.

Admissibility of other sexual behavior



Δ = Defendant

©UWorld

At trial in a criminal prosecution for theft, the defendant calls a witness to testify that he formerly knew the defendant as an army supply sergeant and that the defendant had turned down many opportunities for black-marketeering.

Is the witness's testimony admissible?

A. No, because it is irrelevant to the present charge.
B. No, because the defendant may not prove his good character by specific instances of good conduct.
C. Yes, because a criminal defendant may prove his good character as a basis for inferring conduct.
D. Yes, because, by accusing the defendant of being a thief, the prosecution has put his character in issue.

Explanation:

A **criminal defendant** may present evidence of a **pertinent character trait**—ie, a trait that is relevant to the charged crime—so that the jury can infer that the defendant acted in conformity with that trait on the occasion at issue **(Choice C)**. And since honesty is pertinent to theft (a crime of dishonesty), the defendant *can* provide evidence of this good-character trait **(Choice A)**. But he can only do so with **reputation or opinion testimony**—not a specific instance of **conduct** (eg, turning down opportunities for black-marketeering).

(Choice D) A person's character is "in issue" when that character is an essential element of a civil claim, criminal charge, or asserted defense. In these rare instances (none of which apply here), that character may be proved by specific instances of conduct.

Educational objective:

A criminal defendant may present reputation or opinion testimony—but not a specific instance of conduct—regarding his/her good character if that character trait is pertinent to the charged crime.

References

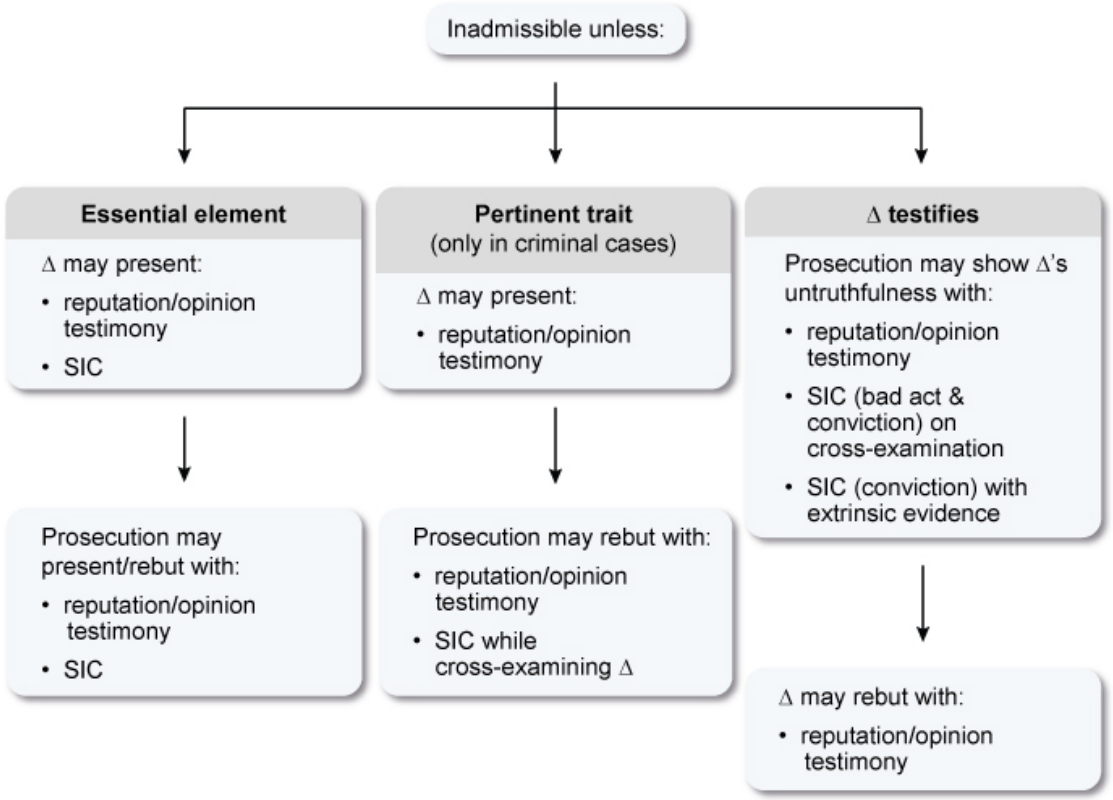
Fed. R. Evid. 404 (character evidence).

Fed. R. Evid. 405 (methods of proving character).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Evidence on criminal defendant's character



Δ = defendant; **SIC** = specific instance of conduct

©UWorld

The defendant, a young doctor, was charged with falsely claiming deductions on her federal income tax return. At trial, a witness testified for the defendant that she has a reputation in the community for complete honesty. After a sidebar conference at which the prosecutor gave the judge a record showing that the defendant's medical school had disciplined her for altering her transcript, the prosecutor proposed to ask the witness on cross-examination: "Have you ever heard that the defendant falsified her medical school transcript?"

Is the prosecutor's question proper?

A. No, because it calls for hearsay not within any exception.

B. No, because its minimal relevance on the issue of income tax fraud is substantially outweighed by the danger of unfair prejudice.

C. Yes, because an affirmative answer will be probative of the defendant's character trait for dishonesty and, therefore, her guilt.

D. Yes, because an affirmative answer will impeach the witness's credibility.

Explanation:

The **prosecution *cannot* introduce** evidence regarding the defendant's character **unless**:

the defendant's character is an essential element of the charged crime or an asserted defense *or*

the **defendant introduces** testimony on his/her own **pertinent character trait** (as seen here).

But if the defendant introduces such testimony (placing his/her character in issue), the door opens for the **prosecution** to **rebut** it by either:

calling its *own* witness to present **reputation or opinion testimony** about the defendant's pertinent trait *or*

cross-examining the ***defendant's* character witness** about a **specific instance of conduct** attributable to the defendant—thereby impeaching that witness's credibility.

Here, the prosecutor seeks to cross-examine the defendant's character witness about the defendant's specific instance of conduct—falsifying a medical school transcript. Since an affirmative answer will impeach the witness's credibility regarding the defendant's honest reputation, the question is proper.

(Choice A) The prosecutor's question does concern an out-of-court statement. But it does not call for hearsay since the response will be used to impeach the witness's assessment of the defendant's character—not to prove the truth of the matter asserted therein (ie, that the defendant actually falsified a transcript).

(Choice B) Evidence is inadmissible when its probative value (ie, degree of relevance) is *substantially* outweighed by its prejudicial effect. Evidence is relevant if it (1) tends to make a material fact more or less probable or (2) addresses a witness's credibility (as seen here). And since a character witness's credibility is *highly* relevant, the probative value of the falsified transcript would not be substantially outweighed by the danger of unfair prejudice.

(Choice C) An affirmative answer to the prosecutor's question cannot be used to prove the defendant's character trait for dishonesty and, therefore, her guilt of tax fraud. But it can be used to *impeach* the defendant's character witness by showing lack of knowledge of the defendant's character.

Educational objective:

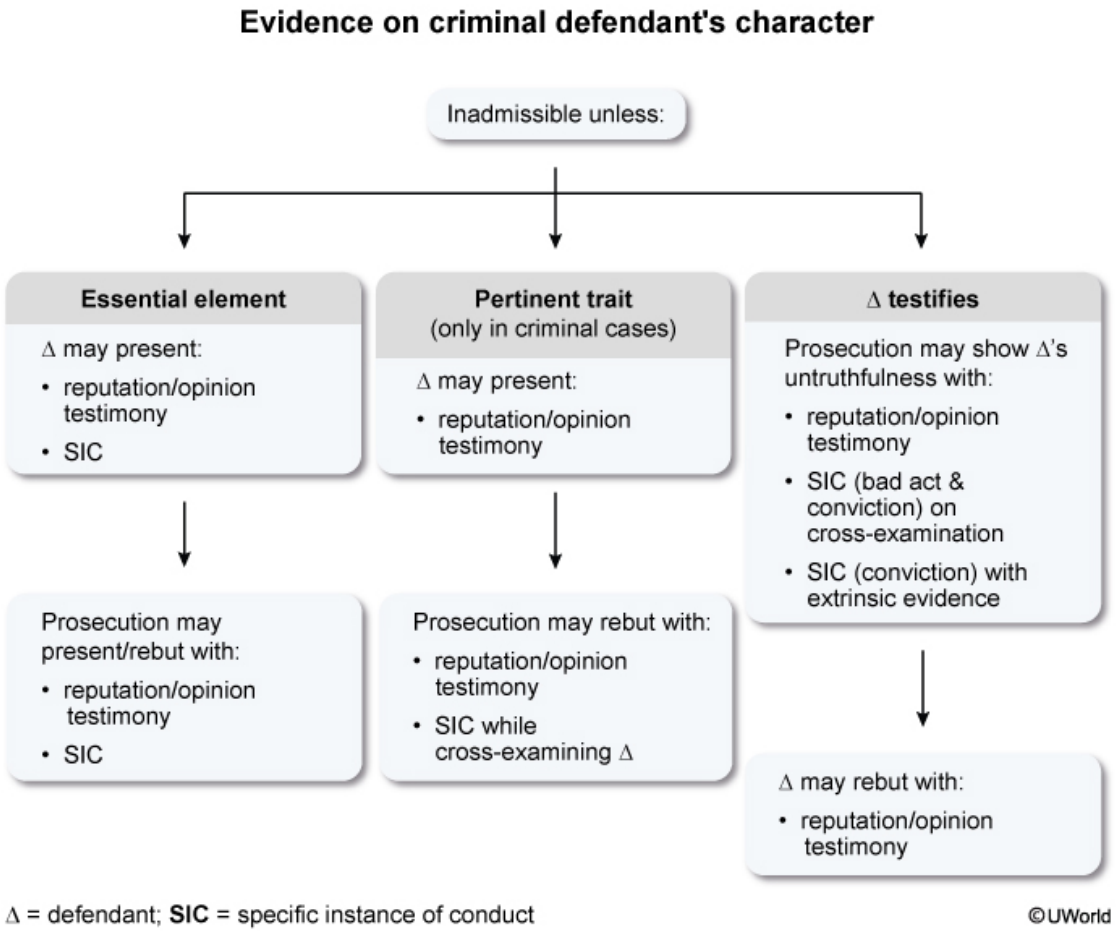
When a defendant introduces evidence on his/her pertinent character trait, the prosecution can rebut that evidence by (1) calling its own witness to provide reputation or opinion testimony or (2) cross-examining the defendant's character witness about a specific instance of conduct.

References

Fed. R. Evid. 404 (character evidence).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.



A plaintiff sued her employer, alleging that poor working conditions had caused her to develop a stomach ulcer. At trial, the plaintiff's medical expert testified to the cause of the plaintiff's ulcer and stated that his opinion was based in part on information in a letter the plaintiff's personal doctor had written to the plaintiff's employer, explaining why the plaintiff had missed work. The plaintiff offered the doctor's letter to prove the cause of her condition.

Is the letter admissible?

A. No, because it is hearsay not within any exception.

B. No, because the plaintiff's doctor is not shown to be unavailable.

C. Yes, because it was relied upon by the plaintiff's medical expert.

D. Yes, under the business records exception to the hearsay rule.

Explanation:

Hearsay is an out-of-court statement (eg, the doctor's letter) offered to prove the truth of the matter asserted therein (eg, the cause of the plaintiff's condition). An **expert witness's opinion** can be **based on a hearsay statement** if other experts in the field would reasonably rely on that statement to form an opinion. The expert witness can then testify as to that opinion—as the medical expert did here. But the **hearsay statement** itself is **inadmissible unless**:

it is **excluded or excepted** from the rule against hearsay *or*

its probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect.

The only hearsay exception raised in this question is for business records. But since the doctor's letter was not made and kept as a regular practice in the course of regularly conducted business activities (eg, providing medical treatment), it is not a business record under this exception **(Choice D)**. Nor is it otherwise excluded or excepted from the hearsay rule. And though the letter may help the jury evaluate the expert's opinion, it is unlikely that the letter's probative value *substantially* outweighs its prejudicial effect. Therefore, it is inadmissible.

(Choice B) Certain exceptions only allow a hearsay statement to be admitted if the declarant is unavailable. But since none of those exceptions apply to the doctor's letter, his availability is irrelevant.

(Choice C) An expert's mere reliance on a hearsay statement is not independently sufficient to admit that statement.

Educational objective:

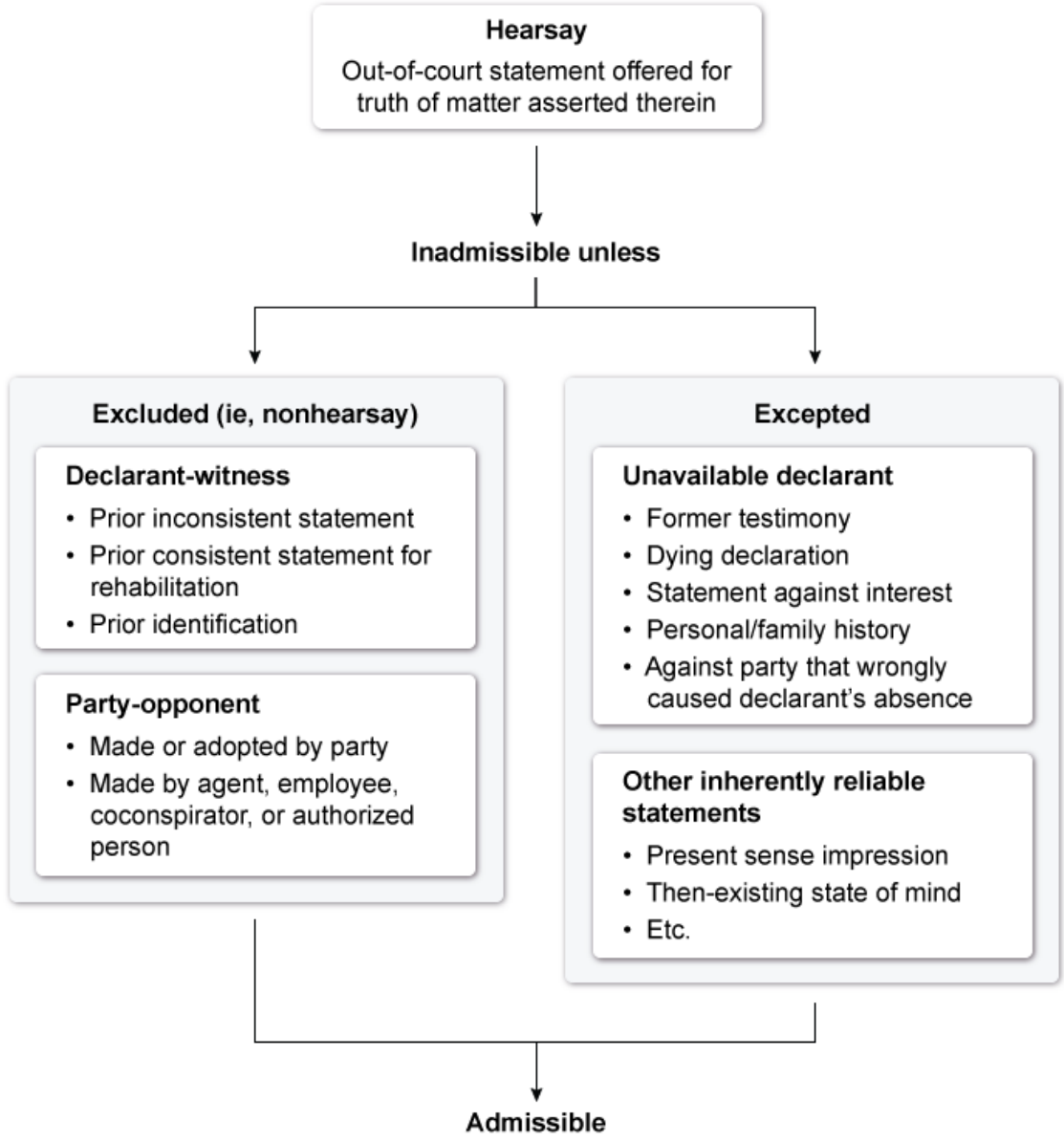
Expert witness testimony may be based on a hearsay statement if other experts in the field would reasonably rely on it. But the statement itself is inadmissible unless (1) it is excluded or excepted from the hearsay rule or (2) its probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect.

References

Fed. R. Evid. 703 (bases of expert's opinion testimony).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.


Hearsay
Out-of-court statement offered for truth of matter asserted therein
Inadmissible unless
Excluded (ie, nonhearsay)
Declarant-witness
• Prior inconsistent statement
• Prior consistent statement for rehabilitation
• Prior identification
Party-opponent
• Made or adopted by party
• Made by agent, employee, coconspirator, or authorized person
Excepted
Unavailable declarant
• Former testimony
• Dying declaration
• Statement against interest
• Personal/family history
• Against party that wrongly caused declarant's absence
Other inherently reliable statements
• Present sense impression
• Then-existing state of mind
• Etc.
Admissible

©UWorld

A defendant who is an accountant has been charged with fraud for allegedly helping a client file false income tax returns by shifting substantial medical expenses from one year to another. The defendant has pleaded not guilty, claiming that he made an honest mistake as to the date the expenses were paid. At trial, the prosecutor offers evidence of the defendant's involvement in an earlier scheme to help a different client falsify tax returns in the same way.

Is the evidence of the defendant's involvement in the earlier scheme admissible?

A. No, because it is impermissible character evidence.

B. No, because it is not relevant to the issues in this case.

C. Yes, to show absence of mistake.

D. Yes, to show the defendant's propensity to commit the crime.

Explanation:

Evidence that a criminal defendant previously committed a **similar crime or bad act** is **inadmissible** if it is being offered to show the **defendant's propensity** (ie, inclination) to commit the charged crime **(Choice D)**. But that evidence may be **admissible** for **relevant, noncharacter purposes** (ie, **MIMIC**). This includes proving the defendant's **absence of mistake**. Therefore, evidence that the defendant falsified tax returns in the past is admissible to show that he did not make a mistake in the present case.

(Choice A) Evidence of previous crimes or bad acts is *not* character evidence—ie, evidence offered to show a person's conformity with his/her personality traits or propensities—when offered to show absence of mistake.

(Choice B) Evidence is relevant if it has a tendency to prove or disprove a material fact (ie, a fact of consequence in the case). Here, the defendant's involvement in the earlier scheme *is* relevant to show that his acts in the present case were not accidental.

Educational objective:

Evidence that a criminal defendant previously committed a similar crime or bad act is inadmissible to show the defendant's propensity to commit the charged crime. But such evidence may be admissible for relevant, noncharacter purposes (ie, MIMIC).

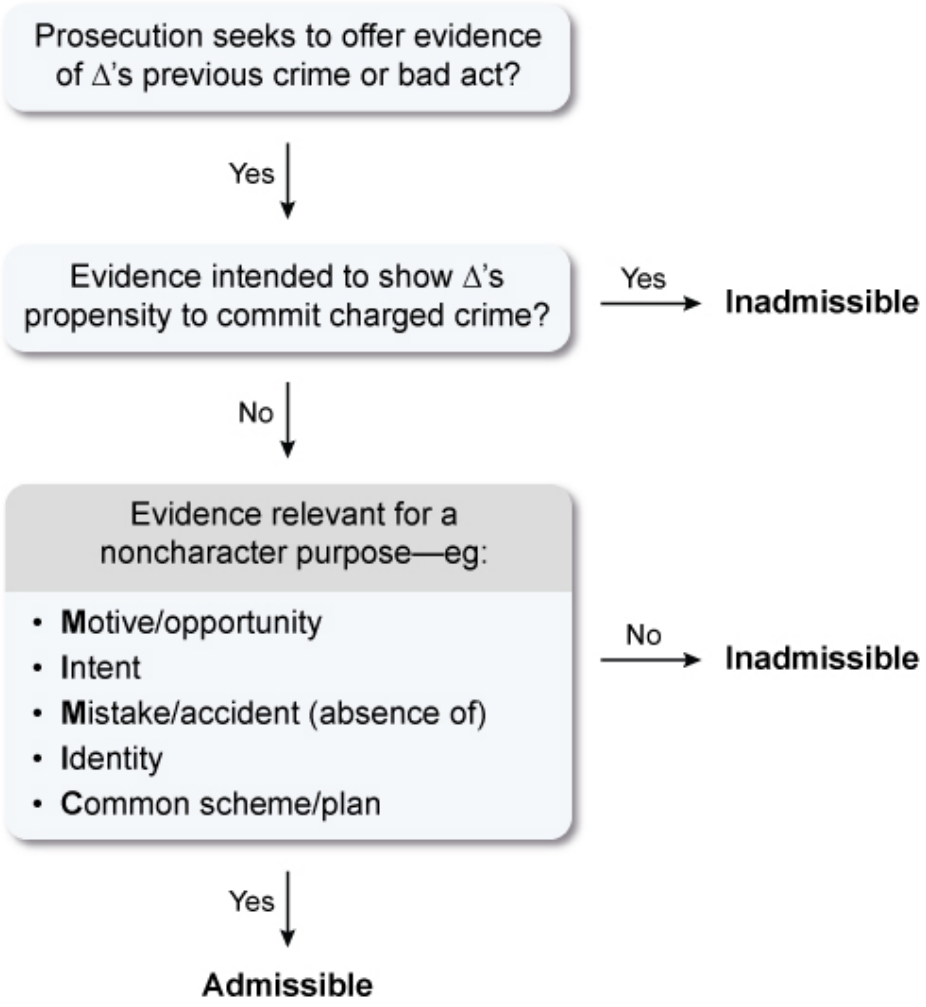
References

Fed. R. Evid. 404 (admissibility of crimes, wrongs, or other acts).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Criminal defendant's previous crimes or bad acts (MIMIC)



Δ = defendant

©UWorld

A defendant was tried for the homicide of a girl whose strangled body was found beside a remote logging road with her hands taped together. After the defendant offered evidence of alibi, the state calls a witness to testify that the defendant had taped the witness's hands and tried to strangle her in the same location two days before the homicide but that she escaped.

Is the evidence admissible?

A. No, because it is improper character evidence.

B. No, because it is unfairly prejudicial.

C. Yes, as tending to show the defendant is the killer.

D. Yes, as tending to show the defendant's violent nature.

Explanation:

Noncharacter purposes for admitting crime or bad act

(MIMIC)

Motive	To show purpose for committing charged crime
Intent	To establish guilty mind or negate good faith
Absence of Mistake	To negate mistake or accident & prove deliberate act
Identity	To connect defendant to crime with unique pattern of behavior (ie, criminal signature)
Common plan or scheme	To show preparation or planning
Other	To show knowledge of crime, opportunity to commit crime, consciousness of guilt, etc.

Evidence of a **criminal defendant's** prior **crimes or bad acts** is inadmissible if it is used to show the defendant's propensity (ie, inclination) to commit the charged crime. This ensures that the jury convicts the defendant for committing the charged crime—not for having a bad character. But evidence of a prior crime or bad act may be **admissible** for **relevant, noncharacter purposes** (ie, **MIMIC**).

This includes proving the perpetrator's **identity**—eg, showing that the prior crimes or bad acts were committed in a unique manner that is **similar in nature, location, and/or time** to the charged crime (ie, criminal "signature"). Therefore, evidence that the defendant had taped the witness's hands and tried to strangle her in the same location two days before the victim's homicide is admissible as tending to show that the defendant is the killer.

(Choices A & D) The witness's testimony would be inadmissible if it was offered to prove the defendant's bad character (eg, violent nature) to show that he acted in accordance with that character and murdered the victim. But here, this evidence is being offered to prove the killer's *identity* and is admissible for that purpose.

(Choice B) Relevant evidence may be excluded if its probative value (ie, degree of relevance) is substantially outweighed by the danger of unfair prejudice or other concerns. Here, the witness's testimony *is* prejudicial to the defendant. But since that testimony is central to the case, its high probative value outweighs the risk of unfair prejudice.

Educational objective:

Evidence of a criminal defendant's prior crimes or bad acts is inadmissible to show the defendant's propensity to commit the charged crime. But it may be admissible for MIMIC purposes—eg, to prove the perpetrator's identity.

References

Fed. R. Evid. 404(b) (admissibility of crimes, wrongs, or other acts).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A man sued an auto manufacturer for his wife's death, claiming that a defective steering mechanism on the family car caused it to veer off the road and hit a tree when his wife was driving. The auto manufacturer claims that the steering mechanism was damaged in the collision and offers testimony that the deceased wife was intoxicated at the time of the accident.

Is the testimony concerning the wife's intoxication admissible?

A. No, because it is improper to prove character evidence by specific conduct.

B. No, because it is substantially more prejudicial than probative.

C. Yes, as proper evidence of the wife's character.

D. Yes, to provide an alternate explanation of the accident's cause.

Explanation:

Evidence must be **relevant** to be admissible. This means that the proffered evidence must tend to **make a material fact**—ie, one of consequence in determining the lawsuit—**more or less probable**. Therefore, testimony that the wife was intoxicated at the time of the accident is relevant because it tends to reduce the probability of a material fact—that a defective mechanism caused the accident. But even when this low threshold for relevance is met, evidence can still be **excluded** by other laws or evidentiary rules.

For example, Federal Rule of Evidence 403 excludes relevant evidence when its **probative value** (ie, degree of relevance) is **substantially outweighed by** the danger of **unfair prejudice** to the opposing party. But here, testimony on the wife's intoxication addresses the accident's cause—a central issue in this case. As a result, the testimony has a high probative value that is *not* substantially outweighed by the danger of unfair prejudice **(Choice B)**.

The other grounds for exclusion raised in this question pertain to character evidence—ie, evidence of a person's general disposition. But the proffered testimony is *not* character evidence since it seeks to provide an alternative explanation for the accident's cause—not to prove the wife's general disposition for intoxication. Additionally, character evidence is only admissible in a civil case when character is an essential element of a claim or defense (not seen here) **(Choices A & C)**. Therefore, testimony concerning the wife's intoxication is admissible.

Educational objective:

Evidence must be relevant—ie, tend to make a material fact more or less probable—to be admissible. But even relevant evidence can be excluded by other laws or evidentiary rules (eg, unfair prejudice, character evidence).

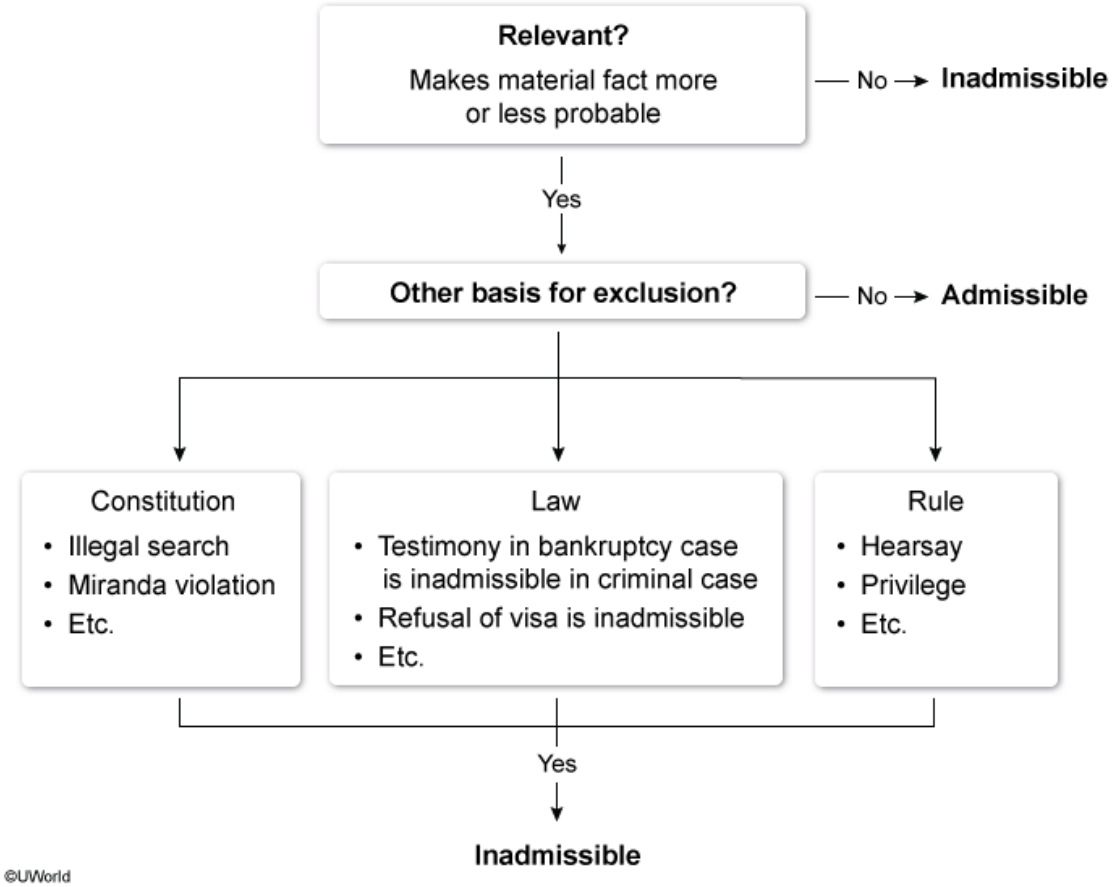
References

Fed. R. Evid. 401 (test for relevant evidence).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Exclusion of relevant evidence
(FRE 402)



©UWorld

A defendant is on trial for the murder of his father. The defendant's defense is that he shot his father accidentally.

The prosecutor calls a police officer to testify that on two occasions in the year prior to this incident, he had been called to the defendant's home because of complaints of loud arguments between the defendant and his father, and had found it necessary to stop the defendant from beating his father.

Is this evidence admissible?

A. No, because it is improper character evidence.

B. No, because the police officer lacks firsthand knowledge of who started the quarrels.

C. Yes, to show that the defendant is a violent person.

D. Yes, to show that the defendant killed his father intentionally.

Explanation:

Noncharacter purposes for admitting crime or bad act

(MIMIC)

Motive	To show purpose for committing charged crime
Intent	To establish guilty mind or negate good faith
Absence of Mistake	To negate mistake or accident & prove deliberate act
Identity	To connect defendant to crime with unique pattern of behavior (ie, criminal signature)
Common plan or scheme	To show preparation or planning
Other	To show knowledge of crime, opportunity to commit crime, consciousness of guilt, etc.

Evidence of a **criminal defendant's** prior **crimes or bad acts** is improper character evidence, and is inadmissible, when it is offered to prove that the defendant:

has a particular character trait (eg, a violent disposition) *and*

acted in accordance with that trait on the occasion at issue (eg, committed the charged murder because of that violent disposition).

But evidence of prior crimes or bad acts may be **admissible** for **relevant, noncharacter purposes** (ie, **MIMIC**). This includes proving the defendant's **absence of mistake or accident**. Therefore, evidence that the police officer stopped the defendant from beating his father twice in the prior year is admissible to show that the defendant killed his father intentionally—not accidentally **(Choices A & C)**.

(Choice B) The beatings can be used to show lack of accident on the occasion at issue regardless of who started the quarrels, so the fact that the police officer lacks firsthand knowledge of who did so is irrelevant.

Educational objective:

Evidence of a criminal defendant's prior crimes or bad acts may be admissible for relevant, *noncharacter* purposes (ie, MIMIC). This includes proving the defendant's absence of mistake or accident.

References

Fed. R. Evid. 404(b) (admissibility of crimes, wrongs, or other acts).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

A defendant was charged with using a forged prescription from a local doctor to obtain a powerful painkiller from a drugstore on May 1. At trial, the pharmacist identified the defendant as the customer, but the defendant testified that he had not been in the store. In rebuttal, the prosecutor calls two other pharmacists to testify that on May 1 a man they identified as the defendant had presented prescriptions for the same painkiller from the same local doctor at each of their drugstores.

Is the testimony of the two other pharmacists admissible?

A. No, because it proves specific acts rather than reputation or opinion.

B. No, because other crimes may not be used to show propensity.

C. Yes, to identify the man who presented the prescription at the first pharmacist's drugstore.

D. Yes, to prove a pertinent trait of the defendant's character and his action in conformity therewith.

Explanation:

Evidence that a **criminal defendant** committed similar **crimes or bad acts** is **inadmissible** for **propensity purposes**—ie, to prove the defendant's character trait and his/her conformance with that trait on the occasion at issue. This protects criminal defendants from being convicted on the basis of bad character (as opposed to actual guilt).

But such evidence may be **admissible** for **relevant, noncharacter purposes** (ie, MIMIC). This includes proving the perpetrator's **identity**—eg, by showing a sufficient similarity (in nature, location, and/or time) between the defendant's prior bad acts and the charged crime to link the defendant to that crime. Therefore, evidence that the defendant presented identical prescriptions at two other drugstores on the same day is admissible to identify him as the man who presented the prescription at the first pharmacist's drugstore **(Choice B)**.

(Choice A) Under Federal Rule of Evidence 405, specific acts cannot be used to prove *character* unless it is an essential element of a claim, charge, or defense. But specific acts can always be used for relevant, *noncharacter* purposes—eg, to prove identity (as seen here).

(Choice D) The prosecution may prove a pertinent trait of the defendant's character if the defendant has opened the door to such evidence. This occurs when the defendant offers reputation or opinion testimony on a good character trait that is pertinent (ie, relevant) to the charged crime. Here, there is no indication that the defendant has offered such testimony, so the pharmacists' testimony cannot be admitted for this purpose.

Educational objective:

Evidence that a criminal defendant committed similar crimes or bad acts is inadmissible to prove his/her propensity to commit the charged crime. But it may be admissible for relevant, noncharacter purposes (ie, MIMIC).

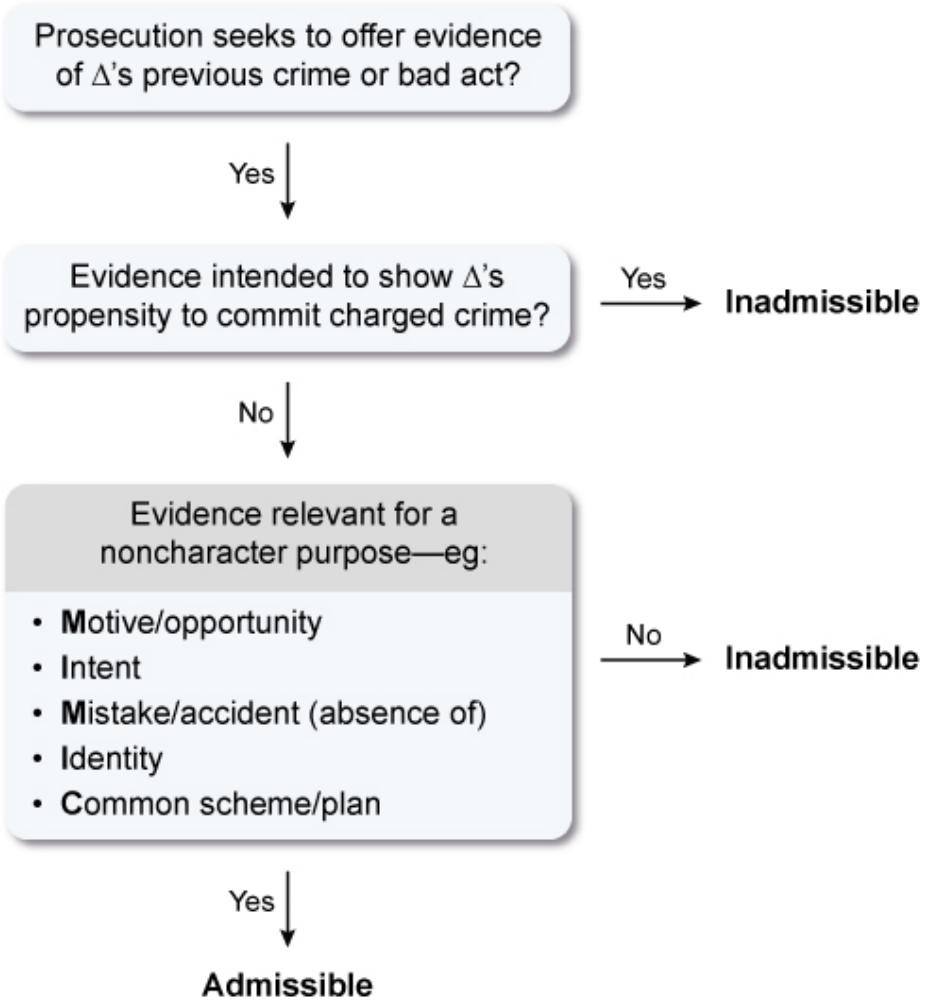
References

Fed. R. Evid. 404(b) (admissibility of crimes, wrongs, or other acts).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Criminal defendant's previous crimes or bad acts (MIMIC)



Δ = defendant

©UWorld

Which of the following items of evidence is LEAST likely to be admitted without a supporting witness?

A. In a case involving contaminated food, a can label purporting to identify the canner as the defendant, a food processing company.

B. In a case involving injury to a pedestrian, a pamphlet on stopping distances issued by a state's highway department.

C. In a defamation case, a document purporting to be a memorandum from the defendant company's president to "All Personnel," printed on the company letterhead.

D. In a libel action, a copy of a newspaper purporting to be published by the defendant, a newspaper publishing company.

Explanation:

Self-authenticating evidence

(FRE 902)

Public documents with official's signature & certification by second official or seal
Certified copies of public records & records of regularly conducted activities
Newspapers, periodicals & official publications
Documents with trade inscription
Acknowledged documents
Commercial paper with signature & related documents
FRE = Federal Rule of Evidence.

Tangible evidence must be **authenticated** before it can be **admitted** into evidence. This requires that the proponent produce extrinsic evidence—ie, evidence outside the document—to support a finding that the thing is what the proponent claims it to be. However, some tangible evidence is **self-authenticating** and therefore admissible without extrinsic evidence of authenticity. This includes:

trade inscriptions (eg, a can label) affixed in the course of business that indicate ownership **(Choice A)**

official publications issued by a public authority (eg, a pamphlet issued by a state's highway department) **(Choice B)**

printed materials purporting to be a **newspaper or periodical (Choice D)**

In contrast, a purported memorandum from a company's president printed on company letterhead is *not* self-authenticating. That is because company letterhead is held by many employees (not just the president) and can easily be copied or stolen. Therefore, the memorandum is *least* likely to be admitted without a supporting witness or other extrinsic evidence of authenticity (eg, an acknowledgement or seal attesting that the memorandum was from the president).

Educational objective:

Some tangible evidence is self-authenticating and can be admitted without extrinsic evidence of authenticity—eg, trade inscriptions affixed in the course of business that indicate ownership, official publications issued by a public authority, newspapers, and periodicals.

References

Fed. R. Evid. 902 (self-authenticating evidence).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.
Copyright © UWorld. All rights reserved.

Under the rule allowing exclusion of relevant evidence because its probative value is substantially outweighed by other considerations, which of the following is NOT to be considered?

A. The evidence is likely to arouse unfair prejudice on the part of the jury.
B. The jury may be confused about the appropriate application of the evidence to the issues of the case.
C. The opponent is surprised by the evidence and not fairly prepared to meet it.
D. The trial will be extended and made cumbersome by hearing evidence of relatively trivial consequence.

Explanation:

Under Federal Rule of Evidence (FRE) 403, a court may **exclude relevant evidence** if its **probative value** is **substantially outweighed** by a **danger** of one or more of the following:

unfair prejudice – evidence tends to encourage the jury to decide the case on improper grounds **(Choice A)**

confusing the issues – evidence leads the jury to focus on a nonmaterial matter **(Choice B)**

misleading the jury – evidence creates misconceptions in the jurors' minds

undue delay or wasting time – presenting the evidence will cause unnecessary delay or waste time **(Choice D)**

needless cumulation – similar evidence on the same issue has already been admitted

Therefore, in applying FRE 403, the court cannot consider whether a party is surprised by the evidence and not fairly prepared to meet it.

Educational objective:

A court may exclude relevant evidence when its probative value is substantially outweighed by a danger of unfair prejudice, confusing the issues, misleading the jury, undue delay, wasting time, or needless cumulation of evidence.

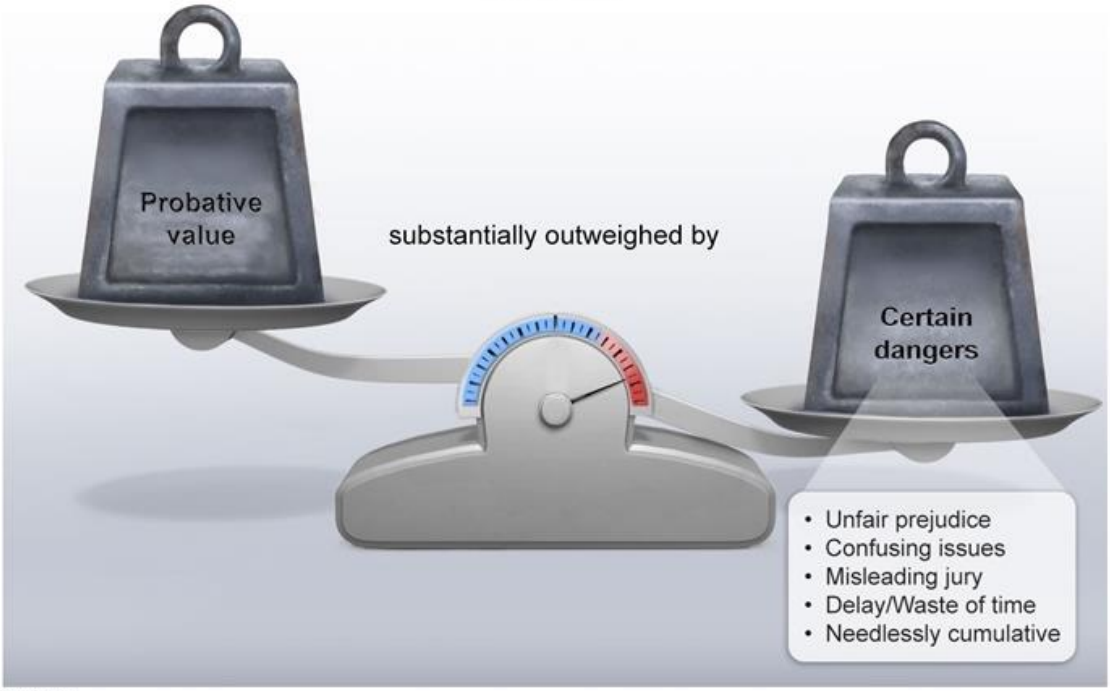
References

Fed. R. Evid. 403 (exclusion of relevant evidence).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

In a prosecution for aggravated battery, a police officer testified that when he arrested the defendant, he took a knife from the defendant and delivered it to the medical examiner. The medical examiner testified that the knife blade was consistent with the victim's wound but admitted on cross-examination that any number of other knives could also have caused the wound.

Should the judge grant a motion to strike the medical examiner's testimony?

A. No, because the probative worth of this evidence is for the jury to assess.

B. Yes, because in light of the medical examiner's admission, his testimony has insufficient probative value.

C. Yes, because the medical examiner could not state the probability that the wound was caused by the defendant's knife.

D. Yes, because the probative value is substantially outweighed by the danger of unfair prejudice.

Explanation:

Evidence is **relevant** if:

it has ***any*** **tendency** to make a **fact more or less probable** than it would be without that evidence (ie, **probative**) *and*

the **fact is of consequence** in determining the action (ie, **material**).

All relevant evidence is admissible unless excluded by law or other rules. Once the evidence is admitted, the jury will determine how much weight to give it (ie, its probative worth).

Here, the medical examiner's testimony has probative value because it links the defendant's knife to the type of knife that could have caused the victim's wound **(Choice B)**. And since the cause of the victim's wound is material to this aggravated battery case, this testimony is relevant. The testimony may not be very strong since other knives could also have caused the wound. But the probative worth of this testimony is for the jury to assess. Therefore, the motion to strike should be denied **(Choice C)**.

(Choice D) Federal Rule of Evidence 403 allows relevant evidence to be excluded when its probative value is substantially outweighed by certain dangers, including unfair prejudice. Here, testimony that the defendant had a type of knife that may have caused the victim's wound poses minimal risk of unfair prejudice to the defendant, let alone enough to *substantially* outweigh the probative value of this testimony.

Educational objective:

Evidence is relevant if it has *any* tendency to make a fact more or less probable than it would be without that evidence (probative) and the fact is of consequence in determining the action (material). Once relevant evidence is admitted, the jury determines how much weight to give it.

References

Fed. R. Evid. 401 (test for relevance).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A plaintiff, after his multi-story building collapsed, sued his insurance company for the proceeds owed under the insurance policy. The plaintiff alleges that lightning struck a structural support beam and caused the building to collapse. The insurance company contends that the collapse was a result of the plaintiff overloading the support beam by installing a gym on the top floor of the building.

At trial, the plaintiff produced an incident report that identified charring on the support beam. To explain the charring, the insurance company seeks to introduce an affidavit given by a journalist over 40 years ago. The affidavit describes a fire that occurred in the building at that time, while the building was still under construction. The insurance company called the editor of the local newspaper, who testified that the journalist's affidavit was kept in the article archives and is in the same condition as the articles it was stored with. The editor further testified that the newspaper has always archived articles and supporting documents as soon as the article is published.

If the insurance company offers the journalist's affidavit into evidence, is it likely to be admitted?

A. No, because the affidavit contains hearsay not within any exception.

B. No, because the affidavit is not based on the editor's personal knowledge.

C. Yes, because the editor testified as to the authenticity of the affidavit.

D. Yes, because the editor's testimony established the chain of custody for the affidavit.

Explanation:

Authenticating documents

(FRE 901)

Common methods	Stipulation or eyewitness testimony
Ancient documents & data compilation	At least 20 years old when offered condition creates no suspicion about authenticity *and* was in place where authentic document would likely be
Public records	Record was recorded or filed in public office as authorized by law or in office where that type of item is kept
Reply letter	Document written in response to communication *and* contents make it unlikely response was written by someone other than recipient of first communication
Handwriting	Comparison – expert witness or trier of fact compares authenticated against disputed handwriting (or fingerprints, hair, cloth fibers) *or* Non-expert opinion – witness with personal knowledge of authentic handwriting not acquired for litigation gives opinion on disputed handwriting
Self-authenticating	Public documents with official's signature & authorized by official or seal Certified copies of public records & records of regularly conducted activities Newspapers, periodicals & official publications Documents with trade inscription Acknowledged documents Commercial papers, including signature & related documents

FRE = Federal Rule of Evidence.

Documentary evidence, like other tangible evidence, must be authenticated before it can be admitted into evidence. This is commonly done by stipulation or eyewitness testimony. However, an "**ancient document**" or data compilation can also be **authenticated** by showing that it:

is at least **20 years old** at the time it is offered
is in a **condition** that creates **no suspicion** about its authenticity *and*
was found in a place **where it would likely be** if it were authentic.

Here, the journalist's affidavit is over 40 years old. The editor testified that it is in the same condition as the articles it was stored with and was kept in the newspaper's archives where similar documents are stored. Since this testimony shows that there is no suspicion about the affidavit's authenticity, it was properly authenticated. As a result, it is admissible unless another exclusionary rule applies.

One such rule is the rule against hearsay, which generally bars the admission of out-of-court statements (eg, those in the affidavit) offered to prove the truth of the matter asserted therein (eg, that the building previously caught fire). However, statements in ancient documents prepared before January 1, 1998 are excepted from this rule, so the affidavit will likely be admitted **(Choice A)**.

(Choice B) The rule for authenticating ancient documents was created to address problems caused when firsthand witnesses die, recollections fade, or alternative evidence is lost with the passage of time. As a result, ancient documents need not be authenticated by someone with personal knowledge of its creation.

(Choice D) Chain of custody must be used to authenticate physical evidence—as opposed to documentary evidence—that could easily be tampered with or is not readily identifiable (eg, gun, knife, blood sample).

Educational objective:

An ancient document can be authenticated by showing that the document (1) is at least 20 years old when offered, (2) is in a condition that creates no suspicion about its authenticity, and (3) was found in a place where it would likely be if it were authentic.

References

Fed. R. Evid. 901 (authenticating ancient documents).

Fed. R. Evid. 803(16) (hearsay exception for statements in ancient documents).

Copyright © UWorld. All rights reserved.

A defendant was charged with stealing fur coats from a van. At trial, a witness testified she saw the defendant take the furs.

The jurisdiction in which the defendant is being tried does not allow in evidence lie-detector results. On cross-examination by the defendant's attorney, the witness was asked, "The light was too dim to identify the defendant, wasn't it?" She responded, "I'm sure enough that it was the defendant that I passed a lie-detector test administered by the police." The defendant's attorney immediately objects and moves to strike.

Should the trial court grant the motion?

A. No, because it is proper rehabilitation of an impeached witness.

B. No, because the defendant's attorney "opened the door" by asking the question.

C. Yes, because the probative value of the unresponsive testimony is substantially outweighed by the danger of unfair prejudice.

D. Yes, because the question was leading.

Explanation:

A **motion to strike** is a request for the court to order that (1) inadmissible evidence (eg, testimony) be removed from the trial record and (2) the jury disregard that evidence. Even **relevant evidence** may be stricken if it is inadmissible under a specific rule, law, or constitutional provision. For example, relevant evidence is **inadmissible** if its **probative value** is **substantially outweighed** by a danger of **unfair prejudice** to the opposing party. This danger exists when the evidence would encourage the jury to decide the case on an improper basis.

Here, when the witness was asked if the light was too dim to identify the defendant, she responded, "I'm sure enough that it was the defendant that I passed a lie-detector test." Although that nonresponsive testimony is relevant, its probative value is substantially outweighed by the danger of unfair prejudice to the defendant. That is because the testimony referenced inadmissible lie-detector test results—an improper basis on which the jury might base its decision. Therefore, the court should grant the defendant's motion to strike.

(Choice A) A witness's truthful character may only be rehabilitated if it has been impeached (ie, discredited). But here, the defendant's attorney questioned the witness's ability to *perceive* the defendant in the dim light, not her *truthfulness*.

(Choice B) A party "opens the door" when it refers to evidence that has previously been ruled inadmissible. The opposing party may then introduce that evidence. But here, the attorney's question did not "open the door" to the witness's statement since he did not ask her about the inadmissible lie-detector test.

(Choice D) A party generally may not ask leading questions—ie, questions that suggest the desired response—during *direct* examination of a witness. But leading questions are allowed on *cross*-examination (as seen here).

Educational objective:

Relevant evidence should be excluded if its probative value is substantially outweighed by a risk of unfair prejudice to the opposing party. Unfair prejudice arises when evidence would encourage the jury to decide the case on an improper basis.

References

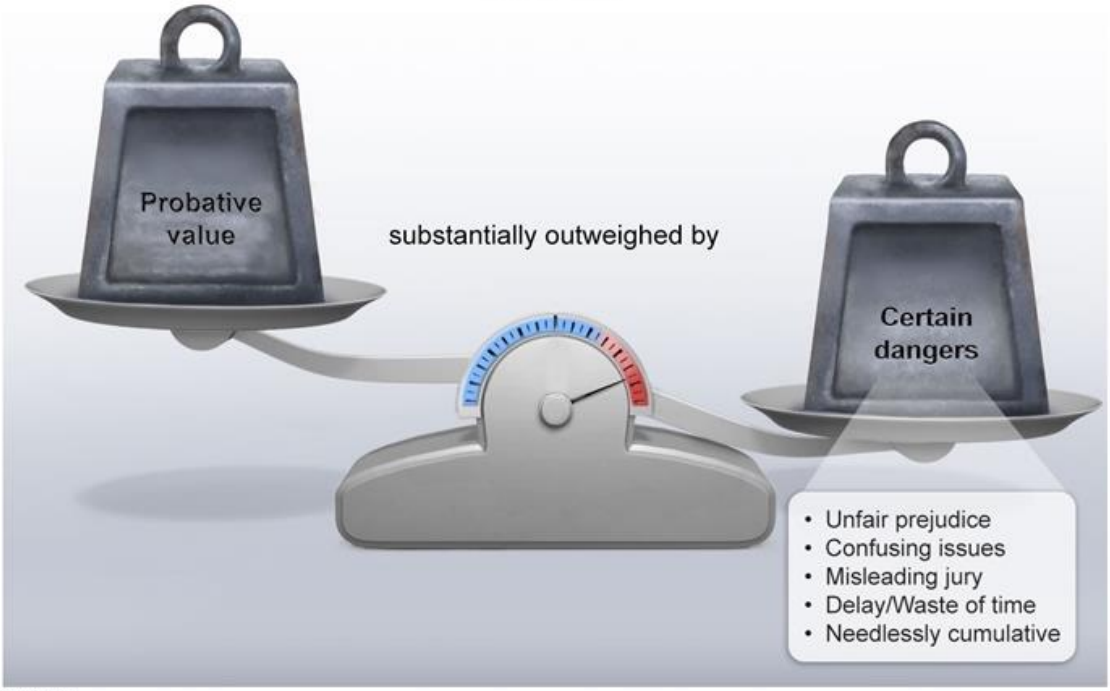
Fed. R. Evid. 401 (test for relevant evidence).

Fed. R. Evid. 403 (excluding relevant evidence).

Copyright © 1995 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

A defendant is on trial for possession of heroin. During the prosecution's case-in-chief, a police officer testifies that he watched another officer seize a bag of white powder from the defendant and seal it in an envelope, which both officers initialed and dated and then placed in the police property room.

The prosecutor then calls a chemist to testify that she obtained, intact from the property room, the dated, sealed envelope with the initials of both police officers, whose handwriting she recognized from previous experience, and that testing disclosed that the powder therein was heroin. The defendant argues that the prosecutor has not sufficiently authenticated the powder tested by the chemist as the powder that was seized from the defendant.

Is the chemist's testimony admissible?

A. No, because the chemist lacks firsthand knowledge that the powder came from the defendant.

B. No, unless the envelope and powder are produced in court or their absence is explained.

C. Yes, because an object in official custody is self-authenticating.

D. Yes, because the powder is sufficiently identified as having come from the defendant.

Explanation:

Real evidence (eg, bag of white powder) is only admissible if it is properly **authenticated**—ie, proven to be what the proponent claims it to be. This foundation can be laid by:

presenting identification testimony – testimony from a witness who can recognize the item based on **personal knowledge** of the item's distinctive and **readily identifiable features** *or*

establishing a chain of custody – evidence establishing a **substantially unbroken history** of the item's **condition, location, and custodians** from when it was acquired to when it is presented in court.

Here, the chemist cannot provide identification testimony because she lacks firsthand knowledge that the bag of powder came from the defendant. Instead, a police officer testified that he saw another officer seize that bag from the defendant and seal it in an envelope that they dated, initialed, and placed in the property room. And the chemist seeks to testify that she personally removed that same envelope—intact and identifiable by the officers' initials—from the property room and tested the powder. As a result, her testimony is admissible to complete the chain of custody needed to sufficiently identify the powder as having come from the defendant **(Choice A)**.

(Choice B) Although the chemist's testimony is necessary to admit the envelope and powder into evidence, her testimony can be admitted without those items being produced or their absence being explained.

(Choice C) Federal Rule of Evidence 902 limits self-authenticating evidence to documentary evidence (ie, evidence supplied by a writing)—not real evidence (ie, tangible items—as seen here).

Educational objective:

Real evidence can be authenticated through testimony on its readily identifiable features by a witness with personal knowledge. This can also be done by establishing a chain of custody that shows the substantially unbroken history of the item's condition, location, and custodians from when it was acquired to when it is presented in court.

References

Fed. R. Evid. 901 (authenticating evidence).

Fed. R. Evid. 104(b) (preliminary questions).

Copyright © 2019 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Chain of custody for authentication
(unbroken history of item's condition, location, and custodians)



Confiscating evidence | Identifying/storing evidence | Retrieving evidence from storage | Testing evidence

©UWorld

A person purporting to be the defendant makes a threatening telephone call to the plaintiff.

In which instance is the telephone call MOST likely to be admitted against the defendant?

A. The caller identified himself using the defendant's name.
B. The plaintiff believes that the defendant is capable of making such threats.
C. The plaintiff had given her unlisted number only to the defendant and a few other persons.
D. The plaintiff had previously given damaging testimony against the defendant in another lawsuit.

Explanation:

Authenticating oral statements

(FRE 901(b)(5)–(6))

Voice identification	Authenticated by any person who: has heard speaker's voice firsthand or through device at any time (including litigation) *and* can connect speaker's voice to oral statement at issue
Telephone conversation	Authenticated by caller who testifies that: caller recognized speaker's voice speaker knew facts only particular person would know caller dialed number believed to be speaker's & speaker identified him/herself upon answering *or* caller dialed business & spoke with person who answered about business regularly transacted by phone

FRE = Federal Rule of Evidence.

Before evidence of a **telephone call** may be admitted, it must be **authenticated by identifying the speaker** when that identity is important (as seen here). This can be accomplished by having a party to the telephone conversation testify that:

the party recognized the speaker's voice

the speaker knew facts that only certain persons would know

the party dialed a number believed to be the speaker's, and the speaker identified him/herself upon answering *or*

the party dialed a business and spoke to the person who answered about business regularly conducted over the phone.

Evidence that the plaintiff had given her unlisted number only to the defendant and a few other persons shows that the caller knew a fact that only certain persons would know. As a result, the telephone call would likely be admitted against the defendant in that instance.

(Choice A) A *caller* may authenticate the voice of the person who *answered* if the caller (1) dialed a number believed to be the speaker's and (2) the speaker identified him/herself upon answering. But since the plaintiff *received* the call, she cannot use this method to authenticate the caller's voice.

(Choice B) The plaintiff's mere belief that the defendant is capable of making such threats is irrelevant as to identifying the caller.

(Choice D) The plaintiff's prior damaging testimony against the defendant may show that the defendant had motive to make the threatening call, but this is very weak evidence of the caller's identity.

Educational objective:

A telephone call can be authenticated by having a party to the conversation testify that (1) the party recognized the speaker's voice, (2) the speaker knew facts only certain persons would know, (3) the party dialed a number believed to be the speaker's and the speaker confirmed that identify upon answering, or (4) the party dialed a business and they spoke about business regularly conducted over the phone.

References

Fed. R. Evid. 901(b)(5)-(6) (authentication of telephone call).

Copyright © 1997 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

A defendant was charged with the crime of defrauding the federal agency where he worked as an accountant. At trial, the court allowed the defendant to call his supervisor at the large corporation where he had previously worked, who testified about the defendant's good reputation in the community for honesty. Over objection, the defendant then sought to elicit testimony from his former supervisor that on several occasions the corporation had, without incident, entrusted him with large sums of money.

Should the testimony be admitted?

A. No, because good character cannot be proved by specific instances of conduct unless character is an essential element of the charge or defense.

B. No, because the testimony is extrinsic evidence on a collateral matter.

C. Yes, because it is evidence of a pertinent character trait offered by an accused.

D. Yes, because it is relevant to whether the defendant was likely to have taken money as charged in this case.

Explanation:

A **criminal defendant** may offer evidence of his/her good character when that character trait is:

an **essential element** of the charged crime or asserted defense—ie, the trait must be proven for the defendant to be convicted of a crime or prevail in a defense *or*

otherwise **pertinent** to the charged crime—ie, the trait is relevant to, but not an element of, a crime or defense.

Reputation and opinion **testimony** can ***always*** **be used** to prove a criminal defendant's good character. But **specific instances of conduct** (SICs) can ***only*** **be used** when **character is an essential element** of the crime or defense. That is because SICs pose a great risk of prejudicing or confusing the jury.

Here, the defendant was charged with fraud—ie, a knowing misrepresentation made to induce another to act. Since character is not an essential element of this offense, testimony from the defendant's former supervisor about specific instances when the defendant was entrusted with large sums of money should *not* be admitted. But since honesty is pertinent to fraud, testimony about the defendant's honest reputation was properly admitted.

(Choice B) Under the collateral-evidence rule, extrinsic evidence is not admissible to impeach a witness on a matter that is collateral (ie, irrelevant) to the case. But this rule does not apply here since the supervisor's testimony that the defendant had been entrusted with substantial monies is relevant to the case and would not be used to impeach the supervisor's credibility.

(Choices C & D) The testimony is (1) evidence of the defendant's pertinent character for honesty and (2) relevant to whether he likely took money. But since character is not an essential element of fraud, this trait cannot be proved by a SIC.

Educational objective:

A criminal defendant may offer reputation or opinion testimony on his/her good character when that character is (1) an essential element of a crime or defense or (2) otherwise pertinent to the case. But specific instances of conduct may only be used when character is an essential element of a crime or defense.

References

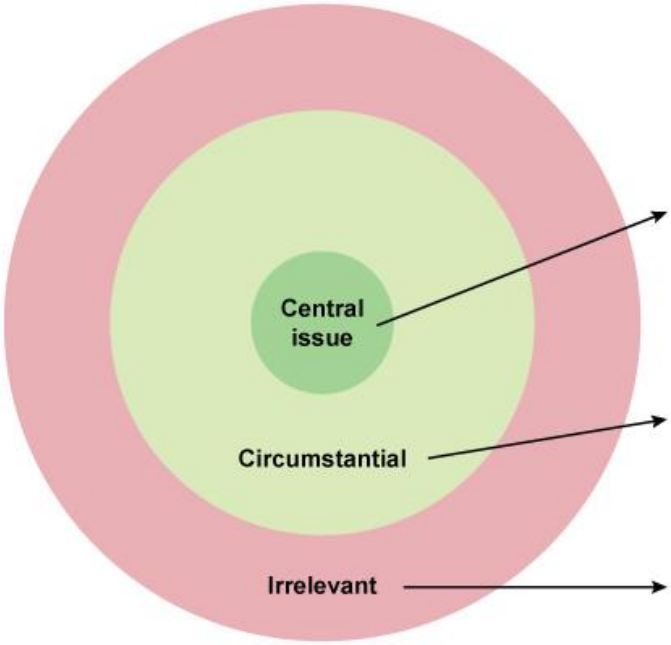
Fed. R. Evid. 404 (character evidence).

Fed. R. Evid. 405 (methods of proving character).

Copyright © 2011 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Evidence of criminal defendant's character



Essential element

P & Δ can present:

- reputation & opinion testimony
- SIC

Pertinent trait

Δ can present (then P can rebut):

- reputation & opinion testimony
- SIC on cross-exam of Δ's witness

Other

Inadmissible character evidence

P = prosecution; Δ = defendant; **SIC** = specific instance of conduct

©UWorld

A woman sued a delivery driver for injuries sustained during a car collision. The woman called her treating physician to testify as to the nature and extent of her injuries. The woman now seeks to introduce several color printouts of photographs taken on a smartphone at the accident scene by a witness. The photographs depict the gruesome nature of the woman's injuries.

What is the strongest basis for an objection to the admission of the photographs?

A. The photographs are not relevant in light of the physician's testimony.
B. The photographs' probative value is substantially outweighed by the danger of unfair prejudice.
C. The photographs violate the best evidence rule.
D. The woman did not take the photographs and therefore cannot authenticate them.

Explanation:

Evidence is relevant if it has *any* tendency to make a material fact more or less probable than it would be without that evidence. Relevant evidence is admissible unless otherwise excluded by law or other rules. For example, Federal Rule of Evidence 403 excludes relevant evidence if its **probative value** is **substantially outweighed** by any of the following **dangers**:

unfair prejudice – evidence tends to encourage the jury to decide the case on improper grounds

confusing the issues – evidence leads the jury to focus on a nonmaterial matter

misleading the jury – evidence creates misconceptions in the jurors' minds

undue delay or wasting time – presenting the evidence will cause unnecessary delay or waste time

needless cumulation – similar evidence on the same issue has already been admitted

Here, the photographs taken at the accident scene are relevant to this car-accident lawsuit because they help prove the extent of the woman's injuries. But the probative value of the photographs is diminished by the physician's testimony regarding the same issue **(Choice A)**. And their gruesomeness poses a danger of unfair prejudice that may substantially outweigh their probative value. As a result, this is the strongest basis for an objection.

(Choice C) Under the best evidence rule, the production of an original writing, recording, or photograph (or reliable duplicate) is generally required to prove the item's contents. An original photograph includes the negative and any print made from it, so the color printouts of the accident photographs do not violate this rule.

(Choice D) The photographs, like all tangible evidence, must be authenticated before they can be admitted at trial. This can be done by presenting testimony from *any* witness with personal knowledge of the accident scene—not just the person who took the photographs—to confirm that the photographs fairly and accurately depict that scene.

Educational objective:

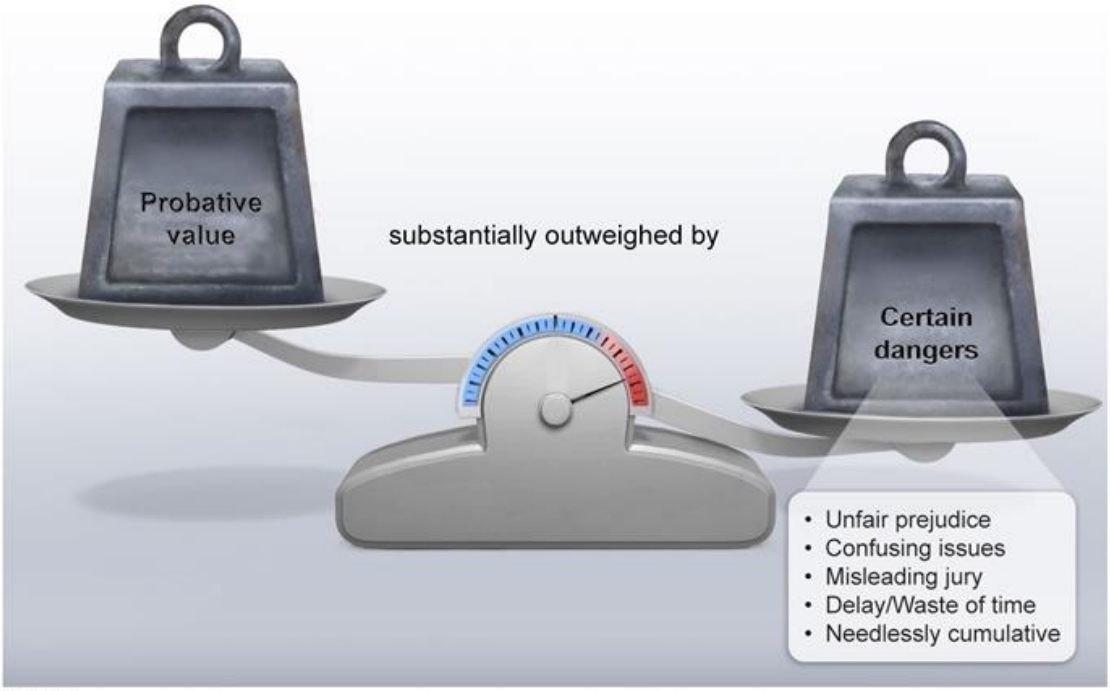
A court may exclude relevant evidence when its probative value is substantially outweighed by a danger of unfair prejudice, confusing the issues, misleading the jury, undue delay, wasting time, or needless cumulation of evidence.

References

Fed. R. Evid. 403 (excluding relevant evidence).

Copyright © UWorld. All rights reserved.

Excluding relevant evidence
(FRE 403)



©UWorld

A construction company sued a developer for money owed on a cost-plus contract that required notice of proposed expenditures beyond original estimates. The developer asserted that it never received the required notice. At trial the construction company calls its general manager to testify that it is the construction company's routine practice to send cost overrun notices as required by the contract. The manager also offers a photocopy of the cost overrun notice letter to the developer on which the construction company is relying, and which he has taken from the construction company's regular business files.

On the issue of giving notice, is the letter copy admissible?

A. No, because it is hearsay not within any exception.

B. No, because it is not the best evidence of the notice.

C. Yes, because of the routine practices of the company.

D. Yes, though hearsay, under the business record exception.

Explanation:

Under Federal Rule of Evidence 406, evidence of an **organization's routine practice** is **admissible to prove** that the organization **acted in accordance** with that practice on a particular occasion. Any witness who is familiar with the organization (eg, the construction company's manager) can testify regarding the existence of a routine practice (eg, the company routinely sends cost overrun notices). And that testimony can supply the basis for the introduction of evidence consistent with that practice (eg, the copy of the cost overrun notice letter).

(Choices A & D) Hearsay is an out-of-court statement offered to prove the truth of the matter asserted therein and is inadmissible absent an exclusion or exception. Here, the letter copy is *not* hearsay since it is being offered to prove that the company gave notice—not that there was a cost overrun (the matter asserted). But it would probably be admissible under the business records exception if it *were* being offered to prove the truth of the matter asserted.

(Choice B) The best evidence rule generally requires that an original writing or a reliable duplicate (eg, the letter copy) be produced to prove its contents. As a result, this rule would not block the introduction of the letter copy. Additionally, this rule does not apply since the letter copy is being used to prove notice—not its contents.

Educational objective:

Under Federal Rule of Evidence 406, evidence of an organization's routine practice is admissible to prove that the organization acted in accordance with that practice on a particular occasion.

References

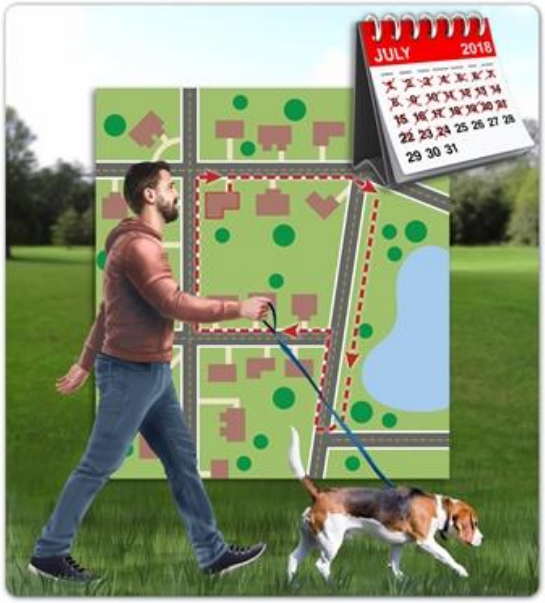
Fed. R. Evid. 406 (habit; routine practice).

Copyright © 2002 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Proving typical response to recurring situation
(FRE 406)

Person's habit



Business's routine practice



FRE = Federal Rule of Evidence

©UWorld

A plaintiff sued a defendant for civil battery. At trial, the defendant testified that he was nowhere near the plaintiff when the plaintiff sustained the injuries at issue. The defendant now seeks to call a witness to testify to the defendant's reputation for both peacefulness and truthfulness. The plaintiff has objected to the testimony.

How should the court proceed?

A. Admit the testimony in its entirety, because evidence concerning a defendant's character is always admissible.

B. Admit the testimony regarding the defendant's reputation for peacefulness, but exclude the testimony regarding his reputation for truthfulness.

C. Exclude the testimony regarding the defendant's reputation for peacefulness, but admit the testimony regarding his reputation for truthfulness.

D. Exclude the testimony in its entirety, because this is a civil suit and the defendant's character for truthfulness was not attacked.

Explanation:

Under Federal Rule of Evidence 404, evidence of a person's character is generally **inadmissible** to prove that the person acted in accordance with that character on the occasion being litigated. One **exception** to this rule allows **criminal defendants** to introduce testimony regarding their **good character** if it is pertinent **to the charged crime**—eg, peacefulness is pertinent to violent crimes such as battery. But this exception **does not apply to civil cases**. As a result, testimony regarding the defendant's reputation for peacefulness should be excluded in this *civil* battery suit **(Choices A & C)**.

The defendant has also offered testimony regarding his reputation for truthfulness. Under Federal Rule of Evidence 608, evidence may be offered to **support** a witness's **character for truthfulness**—but only ***after*** **that character has been attacked**. Here, the defendant became a witness when he testified in this case. But the court should *exclude* testimony regarding his truthful reputation because there is no indication that his character for truthfulness has been attacked **(Choices A & B)**.

Educational objective:

The character-evidence exception allowing criminal defendants to introduce testimony regarding a pertinent character trait does not apply in civil cases. And any party may offer evidence to support a witness's character for truthfulness only after it has been attacked.

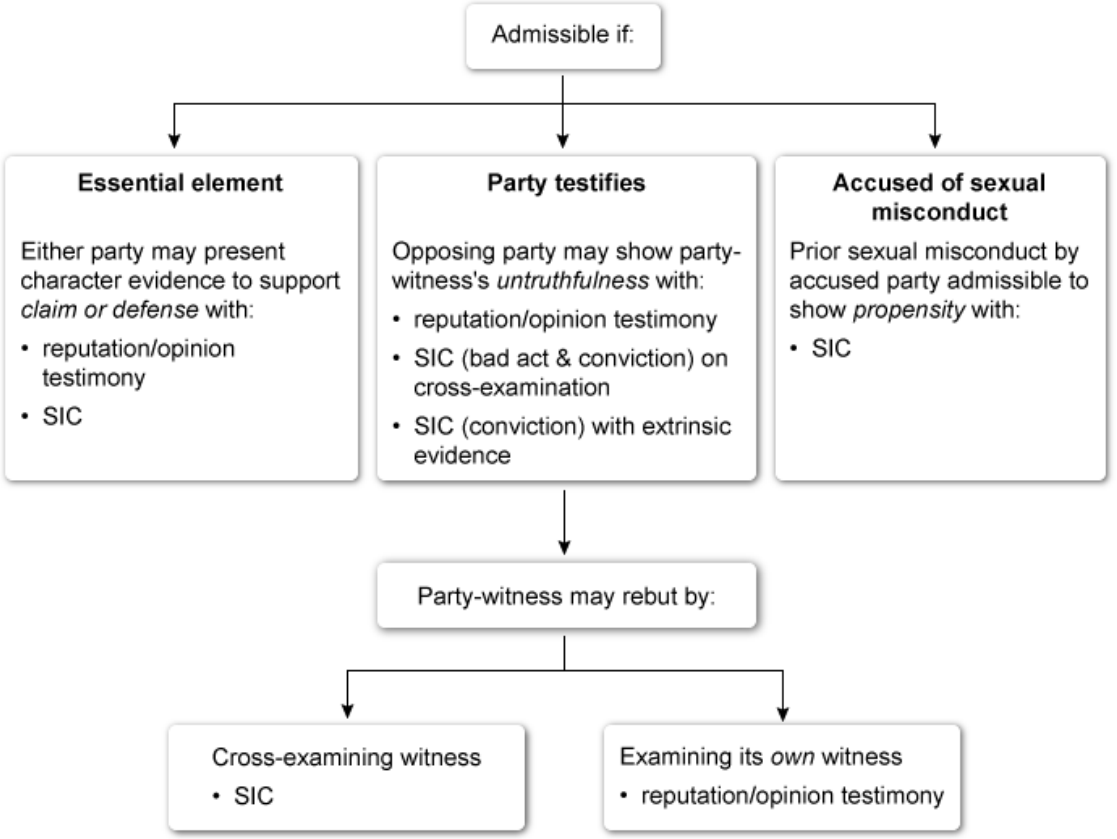
References

Fed. R. Evid. 404 (admissibility of character evidence).

Fed. R. Evid. 608 (witness's character for truthfulness).

Copyright © UWorld. All rights reserved.

Evidence of party's character in civil cases



SIC = specific instance of conduct.

©UWorld

A defendant has been charged with the murder of a coworker with whom he had a bad working relationship. At trial, the defendant testified that he was out of town on the day of the murder and therefore someone else must have killed the coworker. On rebuttal, the prosecution seeks to call a witness to testify that the coworker had a reputation for peacefulness in the community to show that he was unlikely to have been targeted by anyone other than the defendant. The defendant has objected to the witness's testimony.

Should the testimony be admitted?

A. No, because only evidence of the defendant's pertinent character trait is admissible.

B. No, because the prosecution's right to use the witness's testimony has not been triggered.

C. Yes, because the defendant has placed the coworker's character for peacefulness in issue.

D. Yes, because the defendant is charged with murder.

Explanation:

Character evidence is generalized information about a person's behavior that is generally inadmissible. However, Federal Rule of Evidence 404 allows the prosecution to offer evidence of a **victim's good character**, but only *after*:

the **defendant** has introduced evidence of the **victim's bad character** for a trait pertinent to an asserted defense *or*

in a **homicide case**, evidence that the **victim** was the **first aggressor** has been introduced.

Therefore, the **prosecution's use** of evidence relating to the victim's good character is **limited to rebuttal**.

Here, the defendant did not offer evidence of the coworker's bad character for a trait pertinent to his defense that he was elsewhere on the day of the murder. Additionally, there is no evidence that the coworker was the first aggressor in an altercation between the two. Therefore, the prosecution's right to use the testimony regarding the coworker's peaceful character has not been triggered and the testimony should not be admitted **(Choice C)**.

(Choice A) A defendant may introduce evidence of his/her good character if it is pertinent to the crime charged—eg, a defendant's character for peacefulness is pertinent to a murder charge. But this is not the only type of character evidence that is admissible in a criminal case (as shown above).

(Choice D) The defendant is charged with murder. But in a murder case, the prosecution may only initiate the introduction of evidence regarding the victim's character (as seen here) when evidence is admitted that the victim was the first aggressor (not seen here).

Educational objective:

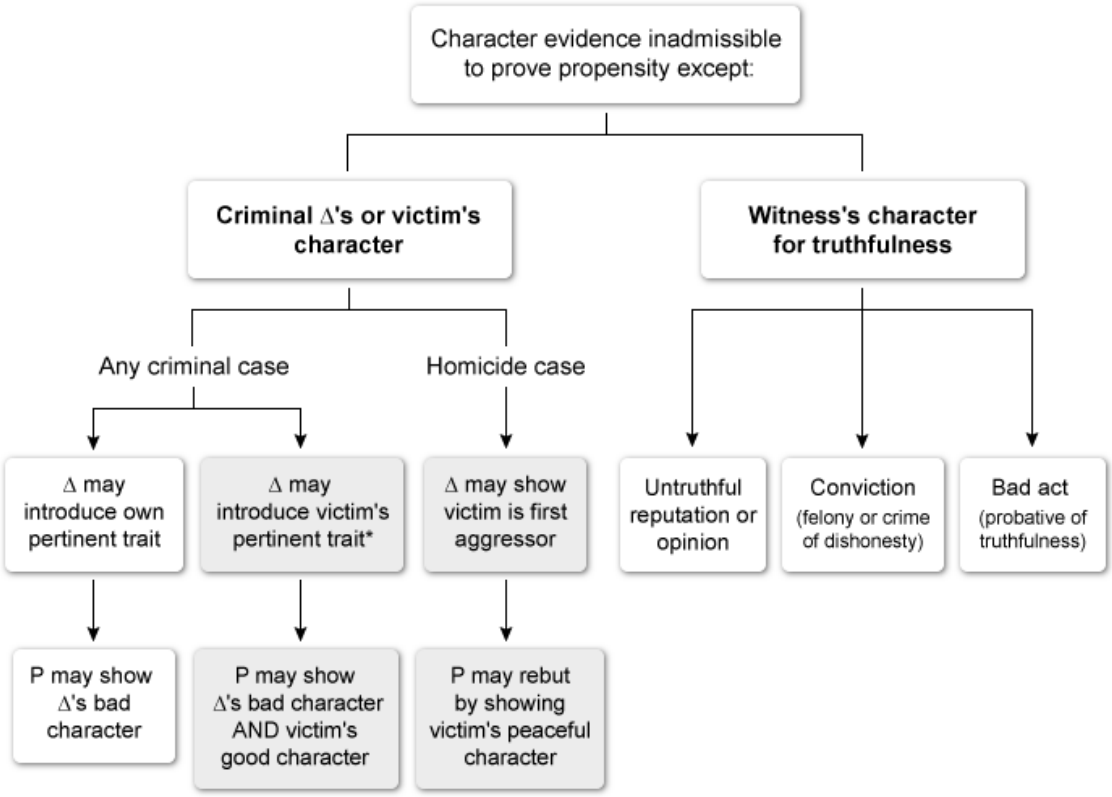
The prosecution may offer evidence of a victim's good character, but only after (1) the defendant introduces evidence of the victim's pertinent character trait or (2) in a homicide case, evidence that the victim was the first aggressor has been introduced.

References

Fed. R. Evid. 404(a)(2) (character evidence regarding victim in criminal cases).

Copyright © UWorld. All rights reserved.

Admissibility of character evidence for propensity
(FRE 404)



Δ = Defendant; **P** = Prosecution; **FRE** = Federal Rule of Evidence

*Evidence of a victim's sexual behavior or predisposition is generally inadmissible in criminal proceedings involving sexual misconduct.

©UWorld

A defendant was charged with battery for allegedly attacking a man after the two of them left a local bar together. No one else witnessed the incident. At trial, each testified that he had acted only in self-defense. The defendant has called his next-door neighbor as a witness to testify to the defendant's reputation both for truthfulness and for peacefulness. The government has objected to the testimony in its entirety.

How should the court proceed?

A. Admit the evidence in its entirety.

B. Admit the evidence regarding the defendant's reputation for peacefulness, but exclude the evidence regarding his truthfulness.

C. Exclude the evidence regarding the defendant's reputation for peacefulness, but admit the evidence regarding his truthfulness.

D. Exclude the evidence in its entirety.

Explanation:

Although character evidence is generally inadmissible, the Mercy Rule allows **criminal defendants** to offer **evidence of their good character** if it is **pertinent to the charges** against them. This means that a defendant who is charged with battery—a crime of violence—may offer evidence of his/her peaceful nature. Such evidence must be in the form of reputation or opinion testimony. Therefore, in this battery case, the court should *admit* the neighbor's testimony regarding the defendant's peaceful reputation **(Choices C & D)**.

Character evidence can also be offered by **any party** to (1) attack a witness's character for truthfulness or (2) **support a witness's character for truthfulness**—but only ***after* it has been attacked** (to promote judicial efficiency). Here, the defendant became a witness when he testified in this case. But the court should *exclude* the testimony regarding his truthful reputation since there is no indication that his character for truthfulness had been attacked **(Choices A & C)**.

Educational objective:

A criminal defendant may offer reputation or opinion testimony regarding his/her pertinent character trait. And any party may offer evidence (1) to attack a witness's character for truthfulness or (2) to support a witness's character for truthfulness *after* it has been attacked.

References

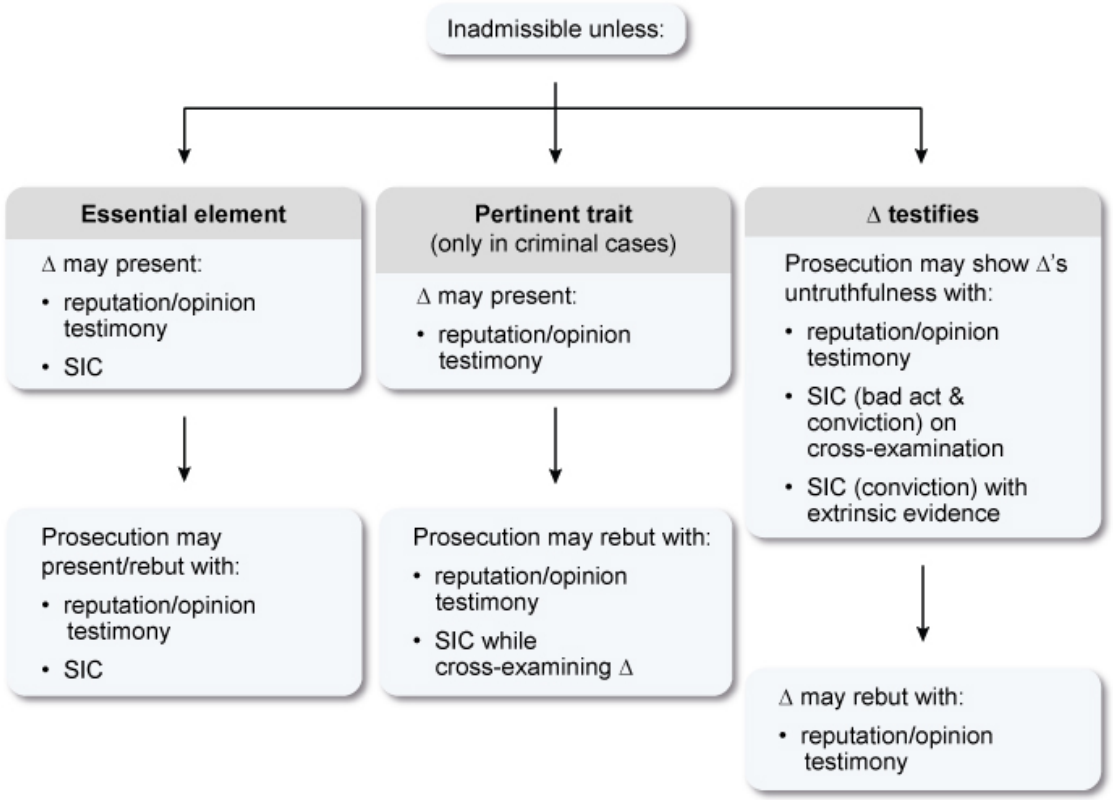
Fed. R. Evid. 404 (character evidence).

Fed. R. Evid. 608 (witness's character for truthfulness).

Copyright © 2014 by the National Conference of Bar Examiners. All rights reserved.

Copyright © UWorld. All rights reserved.

Evidence on criminal defendant's character



Δ = defendant; **SIC** = specific instance of conduct

©UWorld

A seller and a buyer signed a contract of sale for improved real property. The contract contained a financing contingency for a certain percentage of the purchase price. The buyer obtained the requisite financing from a bank.

At the closing, the buyer executed a note to the seller for a portion of the purchase price, which note was not secured by a mortgage. The buyer then executed a second note, secured by a mortgage to the bank, applying the bank loan proceeds to the purchase price of the property. The bank had actual knowledge of the prior note to the seller. The bank promptly recorded its mortgage.

The buyer is now in default on both notes.

There is no applicable statute.

Which party has priority?

A. The bank, because its loan satisfied the financing contingency in the contract of sale.
B. The bank, because its note is secured by a purchase-money mortgage.
C. The seller, because he retained a vendor's lien that was first in time.
D. The seller, because the bank had actual knowledge of the seller's note.